

119TH CONGRESS
2D SESSION

S. _____

To provide for the reform and continuation of agricultural and other programs of the Department of Agriculture through fiscal year 2031, and for other purposes.

IN THE SENATE OF THE UNITED STATES

Mr. BOOZMAN introduced the following bill; which was read twice and referred to the Committee on _____

A BILL

To provide for the reform and continuation of agricultural and other programs of the Department of Agriculture through fiscal year 2031, and for other purposes.

1 *Be it enacted by the Senate and House of Representa-*
2 *tives of the United States of America in Congress assembled,*

3 **SECTION 1. SHORT TITLE; TABLE OF CONTENTS.**

4 (a) SHORT TITLE.—This Act may be cited as the
5 “Agricultural Act of 2026”.

6 (b) TABLE OF CONTENTS.—The table of contents for
7 this Act is as follows:

- Sec. 1. Short title; table of contents.
- Sec. 2. Definitions.

TITLE I—COMMODITIES

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Subtitle A—Commodity Policy

- Sec. 1101. Suspension of permanent price support authority.
- Sec. 1102. Servicing of loans.
- Sec. 1103. Certification of average adjusted gross income by enrolled agents.
- Sec. 1104. Commodity Credit Corporation records, reports, and data.
- Sec. 1105. Storage facility loans.
- Sec. 1106. Strengthening domestic food production supply chains.
- Sec. 1107. Dry edible beans study.

Subtitle B—Dairy

- Sec. 1201. Reauthorizations.
- Sec. 1202. Mandatory reporting of dairy product processing costs.
- Sec. 1203. Dairy reports.

Subtitle C—Supplemental Agricultural Disaster Assistance

- Sec. 1301. Noninsured crop disaster assistance program.
- Sec. 1302. Supplemental agricultural disaster assistance.
- Sec. 1303. Tree assistance program.
- Sec. 1304. Specialty crop emergency assistance framework.
- Sec. 1305. Assistance in the form of block grants.

Subtitle D—Administration

- Sec. 1401. Regulations.
- Sec. 1402. Technical correction.
- Sec. 1403. Implementation.

TITLE II—CONSERVATION

Subtitle A—Conservation Reserve Program

- Sec. 2101. Conservation reserve.
- Sec. 2102. Conservation reserve enhancement program.
- Sec. 2103. Farmable wetland program.
- Sec. 2104. Duties of the Secretary.
- Sec. 2105. Payments.

Subtitle B—Environmental Quality Incentives Program

- Sec. 2201. Definitions.
- Sec. 2202. Establishment and administration.
- Sec. 2203. Limitation on payments.
- Sec. 2204. Conservation innovation grants and payments.

Subtitle C—Conservation Stewardship Program

- Sec. 2301. Duties of the Secretary.

Subtitle D—Funding and Administration

- Sec. 2401. Funding.
- Sec. 2402. Conservation standards and requirements.
- Sec. 2403. Establishment and review of conservation practice standards.
- Sec. 2404. Delivery of technical assistance.
- Sec. 2405. Administrative requirements for conservation programs.
- Sec. 2406. Temporary administration of conservation programs.

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Subtitle E—Agricultural Conservation Easement Program

- Sec. 2501. Definitions.
- Sec. 2502. Agricultural land easements.
- Sec. 2503. Wetland reserve easements.
- Sec. 2504. Administration.
- Sec. 2505. Adjusted gross income limitation.

Subtitle F—Regional Conservation Partnership Program

- Sec. 2601. Establishment and purposes.
- Sec. 2602. Definitions.
- Sec. 2603. Regional conservation partnerships.
- Sec. 2604. Assistance to producers.
- Sec. 2605. Funding.
- Sec. 2606. Critical conservation areas.

Subtitle G—Forest Conservation Easement Program

- Sec. 2701. Forest Conservation Easement Program.
- Sec. 2702. Healthy forests reserve program.

Subtitle H—Other Conservation Programs

- Sec. 2801. Watershed Protection and Flood Prevention Act.
- Sec. 2802. Emergency conservation programs.
- Sec. 2803. Feral swine eradication and control program.
- Sec. 2804. Conservation of private grazing land.
- Sec. 2805. State conservation assistance.

TITLE III—TRADE

Subtitle A—Food for Peace Act

- Sec. 3101. United States policy.
- Sec. 3102. Food aid quality assurance.
- Sec. 3103. Repeal of minimum levels of assistance.
- Sec. 3104. Food Aid Consultative Group.
- Sec. 3105. Program oversight, monitoring, and evaluation.
- Sec. 3106. International food relief partnership.
- Sec. 3107. Use of Commodity Credit Corporation.
- Sec. 3108. Technical corrections and administrative provisions.
- Sec. 3109. Expiration date.
- Sec. 3110. Minimum level of nonemergency food assistance.
- Sec. 3111. Micronutrient fortification programs.
- Sec. 3112. John Ogonowski and Doug Bereuter Farmer-to-Farmer Program.

Subtitle B—Agricultural Trade Act of 1978

- Sec. 3201. Preserving foreign markets for goods using common names.
- Sec. 3202. Technical assistance to improve infrastructure in foreign markets
for United States agricultural commodities.
- Sec. 3203. Report on competitiveness of United States exports of specialty
crops.
- Sec. 3204. Agricultural trade promotion and facilitation.
- Sec. 3205. Interagency seasonal and perishable fruits and vegetable working
group.

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Subtitle C—Other Agricultural Trade Laws

- Sec. 3301. Food for Progress Act of 1985.
- Sec. 3302. Bill Emerson Humanitarian Trust Act.
- Sec. 3303. McGovern-Dole International Food for Education and Child Nutrition Program.
- Sec. 3304. International agricultural education fellowship program.
- Sec. 3305. International agriculture cultural immersion and exchange program.
- Sec. 3306. International food security technical assistance.
- Sec. 3307. Global Crop Diversity Trust.
- Sec. 3308. Local and regional food aid procurement projects.

Subtitle D—Reports

- Sec. 3401. Report on the domestic competitiveness of United States-grown agricultural commodities.
- Sec. 3402. Report on international shrimp trade.

TITLE IV—NUTRITION

Subtitle A—Supplemental Nutrition Assistance Program

- Sec. 4101. Food distribution program on Indian reservations.
- Sec. 4102. Prohibited fees.
- Sec. 4103. Permanent authority for online purchasing.
- Sec. 4104. Approval of retail food stores and wholesale food concerns.
- Sec. 4105. Administrative processes for retailers.
- Sec. 4106. Animal protein as eligible incentive food.
- Sec. 4107. Staffing flexibility.
- Sec. 4108. Quality control improvements.
- Sec. 4109. Authorization of appropriations.
- Sec. 4110. Retail food store and recipient trafficking.
- Sec. 4111. The Emergency Food Assistance Program.
- Sec. 4112. Dairy nutrition incentive program.

Subtitle B—Commodity Distribution Programs

- Sec. 4201. Delivering for rural seniors.
- Sec. 4202. Commodity distribution program.
- Sec. 4203. Commodity supplemental food program.
- Sec. 4204. Distribution of surplus commodities to special nutrition projects.

Subtitle C—Miscellaneous

- Sec. 4301. Seniors farmers' market nutrition program.
- Sec. 4302. Purchase of fresh fruits and vegetables for distribution to schools and service institutions.
- Sec. 4303. Gus Schumacher Nutrition Incentive Program reauthorization.
- Sec. 4304. Buy American requirements.
- Sec. 4305. Dietary guidelines.
- Sec. 4306. Strengthening Local Food Security Program.
- Sec. 4307. Healthy food financing initiative.
- Sec. 4308. Technical corrections.

TITLE V—CREDIT

Subtitle A—Farm Credit System

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- Sec. 5101. Extension of credit to businesses providing services to producers or harvesters of aquatic products.
- Sec. 5102. Export finance authority.
- Sec. 5103. Support for rural water systems.
- Sec. 5104. Financing for essential rural community facilities.
- Sec. 5105. Limitation on rural business investment companies.
- Sec. 5106. Loan guarantees.
- Sec. 5107. Standards for qualified loans.

Subtitle B—Farm Ownership and Operating Loans

- Sec. 5201. Limitations on loan amounts.
- Sec. 5202. Inflation percentage.
- Sec. 5203. Precision agriculture under the conservation loan and loan guarantee program.
- Sec. 5204. Down payment loan program.
- Sec. 5205. Persons eligible for loans.
- Sec. 5206. Refinancing of bridge loans.
- Sec. 5207. Support for resolving ownership and succession issues relating to farmland.
- Sec. 5208. Limitation on microloan amounts.
- Sec. 5209. Cooperative lending pilot projects.
- Sec. 5210. Refinancing of guaranteed loans into direct loans.
- Sec. 5211. Pilot projects for preapproval of direct farm ownership loans.
- Sec. 5212. Definition of qualified beginning farmer or rancher.
- Sec. 5213. Use of additional funds for direct operating microloans under certain conditions.
- Sec. 5214. State agricultural mediation programs.
- Sec. 5215. Prompt approval of loans and loan guarantees.
- Sec. 5216. Farm operating loans for commercial fishing.

Subtitle C—Administrative Provisions

- Sec. 5301. Beginning farmer and rancher individual development accounts pilot program.
- Sec. 5302. Loan authorization levels.
- Sec. 5303. Loan fund set-asides.
- Sec. 5304. Temporary prohibition of loans to borrowers that have received debt forgiveness.
- Sec. 5305. Technical corrections.

TITLE VI—RURAL DEVELOPMENT

Subtitle A—Rural Electrification Act of 1936

PART I—RURAL BROADBAND ACCESS

- Sec. 6101. Streamlining broadband authorities.
- Sec. 6102. Expansion of middle mile infrastructure into rural areas.
- Sec. 6103. Community Connect Grant Program.
- Sec. 6104. Last mile broadband deployment.

PART II—ADDITIONAL AMENDMENTS

- Sec. 6111. Guarantees for bonds and notes issued for utility infrastructure purposes.
- Sec. 6112. Rural development loans and grants.

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Sec. 6113. Expansion of 911 access.

Subtitle B—Consolidated Farm and Rural Development Act

- Sec. 6201. Water, waste disposal, and wastewater facility grants.
- Sec. 6202. SEARCH grants.
- Sec. 6203. Rural water, wastewater, and waste disposal facility direct loans.
- Sec. 6204. Rural water and wastewater technical assistance and training programs.
- Sec. 6205. Rural water and wastewater circuit rider program.
- Sec. 6206. Rural water and wastewater cybersecurity circuit rider program.
- Sec. 6207. Tribal college and university essential community facilities.
- Sec. 6208. Essential community facilities technical assistance and training.
- Sec. 6209. Emergency preparedness and response technical assistance program.
- Sec. 6210. Assistance to provide water and wastewater services in financially distressed rural areas.
- Sec. 6211. Community facilities direct and guaranteed loans for health care services.
- Sec. 6212. Emergency and imminent community water assistance grant program.
- Sec. 6213. Additional assistance for rural water systems.
- Sec. 6214. Water systems for rural and native villages in Alaska.
- Sec. 6215. Rural decentralized water systems.
- Sec. 6216. Healthy drinking water affordability assistance program.
- Sec. 6217. Solid waste management grants.
- Sec. 6218. Rural business development grants.
- Sec. 6219. Rural cooperative development grants.
- Sec. 6220. Locally or regionally produced agricultural products.
- Sec. 6221. Appropriate technology transfer for rural areas program.
- Sec. 6222. Rural economic area partnership zones.
- Sec. 6223. Intermediary relending program.
- Sec. 6224. Lender fees in guaranteed loan programs; rural water refinancing improvements.
- Sec. 6225. Definition of rural and rural area.
- Sec. 6226. Streamlining review.
- Sec. 6227. Rural Business-Cooperative Service programs technical assistance and training.
- Sec. 6228. National Rural Development Partnership.
- Sec. 6229. Grants for NOAA weather radio transmitters.
- Sec. 6230. Rural microentrepreneur assistance program.
- Sec. 6231. Health care services.
- Sec. 6232. Strategic community investment plans.
- Sec. 6233. Rural innovation stronger economy grant program.
- Sec. 6234. Rural Development Innovation Center.
- Sec. 6235. Rural business investment program.

Subtitle C—Miscellaneous

PART I—RURAL CARE ECONOMY

- Sec. 6301. Improving the rural care economy; prioritizations.
- Sec. 6302. Rural hospital revitalization.
- Sec. 6303. Rural health care facility assistance.

PART II—OTHER MISCELLANEOUS PROVISIONS

- Sec. 6311. Distance learning and telemedicine.

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- Sec. 6312. Agriculture Innovation Center Demonstration Program.
- Sec. 6313. Rural Energy Savings Program.
- Sec. 6314. Interagency task force on outdoor recreation coordination.
- Sec. 6315. New, mobile, and expanded meat and poultry processing and rendering grants.
- Sec. 6316. Annual efficiency report.

TITLE VII—RESEARCH, EXTENSION, AND RELATED MATTERS

Subtitle A—National Agricultural Research, Extension, and Teaching Policy Act of 1977

- Sec. 7101. National Agricultural Research, Extension, Education, and Economics Advisory Board.
- Sec. 7102. Specialty crop committee.
- Sec. 7103. Veterinary medicine loan repayment.
- Sec. 7104. Veterinary services grant program.
- Sec. 7105. Grants and fellowships for food and agriculture sciences education.
- Sec. 7106. Agricultural and food policy research centers.
- Sec. 7107. Education grants to Alaska Native serving institutions and Native Hawaiian serving institutions.
- Sec. 7108. Nutrition education program.
- Sec. 7109. Continuing animal health and disease research programs.
- Sec. 7110. Extension at 1890 land-grant colleges, including Tuskegee University.
- Sec. 7111. Agricultural research at 1890 land-grant colleges, including Tuskegee University.
- Sec. 7112. Scholarships for students at 1890 Institutions.
- Sec. 7113. Grants to upgrade agricultural and food sciences facilities at 1890 land-grant colleges, including Tuskegee University.
- Sec. 7114. Grants to upgrade agriculture and food sciences facilities and equipment at insular area land-grant institutions.
- Sec. 7115. New beginning for Tribal students.
- Sec. 7116. Hispanic-serving institutions.
- Sec. 7117. Binational agricultural research and development.
- Sec. 7118. International agriculture partnerships and grants program.
- Sec. 7119. Research equipment grants.
- Sec. 7120. University research.
- Sec. 7121. Cooperative extension service.
- Sec. 7122. Supplemental and alternative crops.
- Sec. 7123. New Era Rural Technology Program.
- Sec. 7124. Capacity building grants for NLGCA institutions.
- Sec. 7125. Agriculture Advanced Research and Development Authority.
- Sec. 7126. Aquaculture assistance programs.
- Sec. 7127. Rangeland research programs.
- Sec. 7128. Special authorization for biosecurity planning and response.
- Sec. 7129. Distance education and resident instruction grants program for insular area institutions of higher education.
- Sec. 7130. Limitation on certain research in countries of concern.

Subtitle B—Food, Agriculture, Conservation, and Trade Act of 1990

- Sec. 7201. Best utilization of biological applications.
- Sec. 7202. Integrated management systems.
- Sec. 7203. Sustainable agriculture technology development and transfer program.

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- Sec. 7204. National training program.
- Sec. 7205. National Genetics Resources Program.
- Sec. 7206. National Agricultural Weather Information System.
- Sec. 7207. Agricultural genome to phenome initiative.
- Sec. 7208. High-priority research and extension initiatives.
- Sec. 7209. Organic agriculture research and extension initiative.
- Sec. 7210. Farm business management.
- Sec. 7211. Urban, indoor, and other emerging agricultural production research, education, and extension initiative.
- Sec. 7212. Centers of Excellence at 1890 Institutions.
- Sec. 7213. Assistive technology program for farmers with disabilities.
- Sec. 7214. National Rural Information Center Clearinghouse.

Subtitle C—Agricultural Research, Extension, and Education Reform Act of
1998

- Sec. 7301. National food safety training, education, extension, outreach, and technical assistance program.
- Sec. 7302. Integrated research, education, and extension competitive grants program.
- Sec. 7303. Support for research regarding diseases of wheat, triticale, and barley caused by *Fusarium graminearum* or by *Tilletia indica*.
- Sec. 7304. Grants for youth organizations.
- Sec. 7305. Specialty crop research initiative.
- Sec. 7306. Food Animal Residue Avoidance Database program.
- Sec. 7307. Forestry products advanced utilization research.

Subtitle D—Food, Conservation, and Energy Act of 2008

PART I—AGRICULTURAL SECURITY

- Sec. 7401. Agricultural biosecurity communication center.
- Sec. 7402. Assistance to build local capacity in agricultural biosecurity planning, preparation, and response.
- Sec. 7403. Research and development of agricultural countermeasures.
- Sec. 7404. Agricultural biosecurity grant program.

PART II—MISCELLANEOUS PROVISIONS

- Sec. 7411. Grazinglands research laboratory.
- Sec. 7412. Farm and Ranch Stress Assistance Network.
- Sec. 7413. Natural products research program.
- Sec. 7414. Sun grant program.

Subtitle E—Other Matters

- Sec. 7501. Agricultural and food law research.
- Sec. 7502. Critical Agricultural Materials Act.
- Sec. 7503. Equity in Educational Land-Grant Status Act of 1994.
- Sec. 7504. Report on the extension service needs of Tribal lands and populations.
- Sec. 7505. Restoration of 4-H name and emblem authority.
- Sec. 7506. Amendments to the Hatch Act.
- Sec. 7507. Agriculture and Food Research Initiative.
- Sec. 7508. Extension Design and Demonstration Initiative.
- Sec. 7509. Biomass research and development.
- Sec. 7510. Renewable Resources Extension Act of 1978.

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- Sec. 7511. National Aquaculture Act of 1980.
- Sec. 7512. Federal agriculture research facilities.
- Sec. 7513. Enhanced use lease authority program.

TITLE VIII—FORESTRY

Subtitle A—Forest Data Modernization

- Sec. 8101. Forest inventory and analysis strategic plan.
- Sec. 8102. Forest inventory and analysis program blue ribbon panel.

Subtitle B—Forest Health and Management

- Sec. 8201. Definitions.

PART I—FOREST SERVICE MANAGEMENT

- Sec. 8211. Hazardous fuel reduction on Federal land.
- Sec. 8212. Insect infestations and related diseases.
- Sec. 8213. Insect and disease treatment areas.
- Sec. 8214. Collaborative restoration project.
- Sec. 8215. Wildfire resilience project size.
- Sec. 8216. Greater sage-grouse and mule deer habitat.
- Sec. 8217. Fuel breaks in forests and other wildland vegetation.
- Sec. 8218. Categorical exclusion for high-priority hazard trees.
- Sec. 8219. Categorical exclusion for electric utility lines rights-of-way.
- Sec. 8220. Consultation under certain land and resource management plans and land use plans.
- Sec. 8221. Forest Service participation in ACES program.
- Sec. 8222. Timber sales on National Forest System land.

PART II—STATE AND PRIVATE PARTNERSHIPS

- Sec. 8231. Support for State assessments and strategies for forest resources.
- Sec. 8232. State and private forest landscape-scale restoration program.
- Sec. 8233. Promoting cross-boundary wildfire mitigation.
- Sec. 8234. Extension of stewardship contracting maximum term limits.
- Sec. 8235. Water source protection program.
- Sec. 8236. Watershed condition framework improvements.
- Sec. 8237. Authorization for lease of Forest Service sites.
- Sec. 8238. Modification of good neighbor authority.
- Sec. 8239. Collaborative forest landscape restoration program.
- Sec. 8240. Joint Chiefs Landscape Restoration Partnership program.

PART III—TIMBER INNOVATION

- Sec. 8251. Wood innovations grant program.
- Sec. 8252. Community Wood Facilities Grant Program.
- Sec. 8253. Report on use of mass timber in construction of Department of Agriculture facilities and other Federal structures.

Subtitle C—Forest Conservation

- Sec. 8301. Semiarid agroforestry research center.
- Sec. 8302. Forest Service Legacy Road and Trail Remediation program.

Subtitle D—Land Designations

- Sec. 8401. Chester County reversionary and mineral interests release.

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- Sec. 8402. Rough Mountain Wilderness and Rich Hole Wilderness designations.
- Sec. 8403. Conveyance of specified Forest Service property to Perry County, Arkansas.
- Sec. 8404. Okhissa Lake rural economic development land conveyance.
- Sec. 8405. Lake Winnibigoshish land exchange.
- Sec. 8406. Release of reversionary interest, Black River State Forest, Wisconsin.
- Sec. 8407. Shawnee National Forest conservation.
- Sec. 8408. Shenandoah Mountain.
- Sec. 8409. Flatside Wilderness additions.
- Sec. 8410. Talladega National Forest boundary modification.
- Sec. 8411. Benton MacKaye National Scenic Trail feasibility study.
- Sec. 8412. Relocation of memorial honoring the 9 Air Force crew members who lost their lives in an airplane crash during a training mission on August 31, 1982.
- Sec. 8413. Appraisals.

Subtitle E—White Oak Resilience

- Sec. 8501. White Oak Restoration Initiative Coalition.
- Sec. 8502. Forest Service pilot program.
- Sec. 8503. White oak regeneration and upland oak habitat.
- Sec. 8504. Tree nursery shortages.

Subtitle F—Other Matters

- Sec. 8601. National Forest Foundation Act.
- Sec. 8602. Rural revitalization technologies.
- Sec. 8603. Resource advisory committees.
- Sec. 8604. Tribal forest protection management.
- Sec. 8605. Civilian Conservation Centers.
- Sec. 8606. Permits and agreements with electrical utilities.
- Sec. 8607. Exemption for previously analyzed areas of National Forest System land.
- Sec. 8608. Alignment of Farm Service Agency and Forest Service drought response.
- Sec. 8609. Technical corrections.

TITLE IX—ENERGY

- Sec. 9001. Definition of advanced biofuel.
- Sec. 9002. Biobased markets program.
- Sec. 9003. Biorefinery, renewable chemical, biobased product manufacturing, and sustainable aviation fuel assistance.
- Sec. 9004. Bioproduct labeling terminology.
- Sec. 9005. Bioenergy program for advanced biofuels.
- Sec. 9006. Biodiesel fuel education program.
- Sec. 9007. Rural Energy for America Program.
- Sec. 9008. Feedstock flexibility program for bioenergy producers.
- Sec. 9009. Biomass crop assistance program.
- Sec. 9010. Carbon utilization and biogas education program.
- Sec. 9011. Sustainable aviation fuels strategy.
- Sec. 9012. Leveraging efficiency awareness for pumping systems.
- Sec. 9013. Technical corrections.

TITLE X—HORTICULTURE

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Subtitle A—Horticulture Marketing and Information

- Sec. 10101. Marketing orders.
- Sec. 10102. Specialty crops market news allocation.
- Sec. 10103. Local agriculture market program.
- Sec. 10104. Acer access and development program.
- Sec. 10105. National organic program.
- Sec. 10106. National organic certification cost-share program.
- Sec. 10107. Food safety education initiatives.
- Sec. 10108. National Plant Diagnostic Network.
- Sec. 10109. Specialty crop block grants.
- Sec. 10110. Organic inputs verification.
- Sec. 10111. Office of Urban Agriculture and Innovative Production.
- Sec. 10112. National organic program oversight protocols and inspection requirements.

Subtitle B—Regulatory Reform

- Sec. 10201. Biostimulants.
- Sec. 10202. Soil health study.
- Sec. 10203. FIFRA interagency working group.
- Sec. 10204. Interstate movement outside of the continental United States.
- Sec. 10205. Construction projects to support emergency plant health response efforts.
- Sec. 10206. Agriculture quarantine and inspection program reserve fee.
- Sec. 10207. Registration review.
- Sec. 10208. Office of Pest Management Policy.
- Sec. 10209. Coordination.
- Sec. 10210. Multiple crop and pesticide use survey.
- Sec. 10211. Office of Biotechnology Policy.

TITLE XI—CROP INSURANCE

- Sec. 11001. Management of Corporation.
- Sec. 11002. Identification of holders of substantial interests.
- Sec. 11003. Restoration of final agency determinations.
- Sec. 11004. Coverage of revenue losses.
- Sec. 11005. Yield determinations.
- Sec. 11006. Crop insurance support for beginning and veteran farmers and ranchers.
- Sec. 11007. Marketability.
- Sec. 11008. Reimbursement rates for administrative and operating costs.
- Sec. 11009. Quality loss adjustment coverage.
- Sec. 11010. Limitation on farm program participation.
- Sec. 11011. Pilot program to review effectiveness of coverage penalty.
- Sec. 11012. Program compliance and integrity.
- Sec. 11013. Whole farm improvements.
- Sec. 11014. Research and development.
- Sec. 11015. Risk management study for lamb.
- Sec. 11016. Report on standard reinsurance agreement.

TITLE XII—MISCELLANEOUS

Subtitle A—Livestock

- Sec. 12101. Animal importation inspections.
- Sec. 12102. Animal disease prevention and management.

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- Sec. 12103. Engagement with export markets.
- Sec. 12104. Report on support for livestock and poultry producers during a foreign animal disease outbreak.
- Sec. 12105. Additional training facilities.
- Sec. 12106. Allowed interest of livestock auction owners in meatpacking businesses.
- Sec. 12107. Hazard analysis and critical control point guidance and resources for small and very small poultry and meat establishments.
- Sec. 12108. National Poultry Improvement Plan.
- Sec. 12109. U.S. Swine Health Improvement Plan.
- Sec. 12110. Interstate internet sales of certain State-inspected meat and poultry.
- Sec. 12111. Outreach on Cooperative Interstate Shipment.
- Sec. 12112. Livestock and meat marketing study.

Subtitle B—National Security

- Sec. 12201. Definitions; organizational updates.
- Sec. 12202. Reporting requirements.
- Sec. 12203. Civil penalties.
- Sec. 12204. Investigative actions.
- Sec. 12205. Public inspection.
- Sec. 12206. Secretarial reports.
- Sec. 12207. Office of Homeland Security, Department of Agriculture.

Subtitle C—Fertilizer

- Sec. 12301. Crop Input Economist.
- Sec. 12302. Fertilizer research.

Subtitle D—United States Grain Standards Reauthorization

- Sec. 12401. Prioritizing improvements to grain grading technology.
- Sec. 12402. Additional flexibilities.
- Sec. 12403. Investment authority.
- Sec. 12404. Administrative and supervisory costs.
- Sec. 12405. General authorities.
- Sec. 12406. Reporting requirements.
- Sec. 12407. Improving advisory committee nominations efficiency and continuity.
- Sec. 12408. Reauthorization of other expiring provisions.

Subtitle E—Other Miscellaneous Provisions

- Sec. 12501. Protecting animals with shelter.
- Sec. 12502. Importation of live dogs.
- Sec. 12503. Dairy business innovation initiatives.
- Sec. 12504. Country of origin labeling for cooked king crab and tanner crab and cooked and canned salmon.
- Sec. 12505. Establishment of Office of Seafood.
- Sec. 12506. Study and report on expanding seafood processing capacity.
- Sec. 12507. Innovative feed enhancement.
- Sec. 12508. Cattle Fever Tick Eradication Program review and report.
- Sec. 12509. Qualified renewable biomass.
- Sec. 12510. Promoting precision agriculture.
- Sec. 12511. Farming opportunities training and outreach.
- Sec. 12512. Improvements to United States Drought Monitor.

Sec. 12513. Whole milk under the school breakfast program.

Sec. 12514. Commission on Rural Maternal Health.

1 **SEC. 2. DEFINITIONS.**

2 In this Act:

3 (1) DEPARTMENT.—The term “Department”
4 means the Department of Agriculture.

5 (2) SECRETARY.—The term “Secretary” means
6 the Secretary of Agriculture.

7 **TITLE I—COMMODITIES**

8 **Subtitle A—Commodity Policy**

9 **SEC. 1101. SUSPENSION OF PERMANENT PRICE SUPPORT**
10 **AUTHORITY.**

11 Section 1602 of the Agricultural Act of 2014 (7
12 U.S.C. 9092) is amended by striking “2023” each place
13 it appears and inserting “2031”.

14 **SEC. 1102. SERVICING OF LOANS.**

15 (a) MARKETING ASSISTANCE LOANS.—Section 1204
16 of the Agricultural Act of 2014 (7 U.S.C. 9034) is amend-
17 ed by adding at the end the following:

18 “(j) EFFECT OF LAPSE IN APPROPRIATIONS.—The
19 servicing of a marketing assistance loan under section
20 1201 by an officer or employee of the Department of Agri-
21 culture shall be deemed, for purposes of section 1342 of
22 title 31, United States Code, services for emergencies in-
23 volving the safety of human life or the protection of prop-
24 erty.”.

1 (b) LOANS UNDER SUGAR PROGRAM.—Section
2 156(d) of the Federal Agriculture Improvement and Re-
3 form Act of 1996 (7 U.S.C. 7272(d)) is amended by add-
4 ing at the end the following:

5 “(4) EFFECT OF LAPSE IN APPROPRIATIONS.—

6 The servicing of a loan under this section by an offi-
7 cer or employee of the Department shall be deemed,
8 for purposes of section 1342 of title 31, United
9 States Code, services for emergencies involving the
10 safety of human life or the protection of property.”.

11 **SEC. 1103. CERTIFICATION OF AVERAGE ADJUSTED GROSS**
12 **INCOME BY ENROLLED AGENTS.**

13 Section 1001D of the Food Security Act of 1985 (7
14 U.S.C. 1308–3a) is amended—

15 (1) in subsection (a)(3)(A), by striking “ac-
16 countant or attorney” and inserting “accountant, an
17 enrolled agent properly licensed to practice as re-
18 quired under rules promulgated under section
19 330(a) of title 31, United States Code, or an attor-
20 ney”; and

21 (2) in subsection (c)(1)(A), by inserting “, an
22 enrolled agent properly licensed to practice as re-
23 quired under rules promulgated under section
24 330(a) of title 31, United States Code,” after “cer-
25 tified public accountant”.

1 **SEC. 1104. COMMODITY CREDIT CORPORATION RECORDS,**
2 **REPORTS, AND DATA.**

3 (a) IN GENERAL.—Section 13 of the Commodity
4 Credit Corporation Charter Act (15 U.S.C. 714k) is
5 amended—

6 (1) by striking the section designation and
7 heading and all that follows through “The Corpora-
8 tion” in the first sentence and inserting the fol-
9 lowing:

10 **“SEC. 13. RECORDS, REPORTS, AND DATA.**

11 **“(a) RECORDS.—The Corporation”;**

12 (2) in subsection (a) (as so designated), in the
13 first sentence, by striking “account and shall” and
14 inserting the following: “account.

15 **“(b) ANNUAL REPORTS.—The Corporation shall”;**

16 (3) in subsection (b) (as so designated)—

17 (A) in the first sentence, by striking “for-
18 warded by the Secretary of Agriculture to the
19 President for transmission to the” and inserting
20 “transmitted by the Secretary of Agriculture
21 to”; and

22 (B) in the second sentence, by striking “In
23 addition to the annual report,” and inserting
24 the following:

25 **“(c) QUARTERLY REPORTS.—In addition to the an-**
26 **nual reports filed under subsection (b),”;**

1 (4) in subsection (c) (as so designated), by
2 striking “\$10,000” and inserting “\$25,000”; and

3 (5) by adding at the end the following:

4 “(d) COMMODITY ESTIMATE BOOKS.—

5 “(1) DATA.—In addition to the reports under
6 subsections (b) and (c), the Corporation shall bian-
7 nually submit to Congress a report comprising a
8 Commodity Estimate Book that contains the data
9 included in, and in a format substantially similar to,
10 the Commodity Estimate Books formerly published
11 by the budget division of the Farm Service Agency,
12 which shall contain both actual and estimated years
13 of budgetary data by program and account for the
14 Corporation, including the latest policy assumptions
15 and supporting economic data.

16 “(2) PUBLIC AVAILABILITY.—Each Commodity
17 Estimate Book submitted under paragraph (1) shall
18 be made publicly available in a searchable electronic
19 format on a website maintained by the Department
20 of Agriculture.

21 “(e) SUBMISSION TO CONGRESS.—Each report re-
22 quired to be submitted to Congress under this section shall
23 be submitted to—

24 “(1) the Committee on Agriculture of the
25 House of Representatives;

1 “(2) the Committee on Agriculture, Nutrition,
2 and Forestry of the Senate;

3 “(3) the Committee on Appropriations of the
4 House of Representatives; and

5 “(4) the Committee on Appropriations of the
6 Senate.

7 “(f) CATEGORIZATION OF CERTAIN DATA.—To the
8 extent a report prepared and submitted to Congress under
9 this section includes a description of expenditures made
10 by the Secretary pursuant to section 5, each of those ex-
11 penditures shall be clearly categorized by the cor-
12 responding subsection of section 5 providing the authority
13 for the expenditure.”.

14 (b) APPLICABILITY.—The amendments made by sub-
15 section (a) shall apply to the reports required under sec-
16 tion 13 of the Commodity Credit Corporation Charter Act
17 (15 U.S.C. 714k) beginning with the first calendar year
18 that begins after the date of enactment of this Act.

19 **SEC. 1105. STORAGE FACILITY LOANS.**

20 (a) IN GENERAL.—Section 1614(a) of the Food, Con-
21 servation, and Energy Act of 2008 (7 U.S.C. 8789(a)) is
22 amended—

23 (1) by striking “funds for producers” and in-
24 serting the following: “funds for—

25 “(1) producers”;

1 (2) in paragraph (1) (as so designated), by
2 striking the period at the end and inserting “; and”;
3 and

4 (3) by adding at the end the following:

5 “(2) producers to construct or upgrade storage
6 facilities for propane and fertilizer that is primarily
7 used for agricultural production (as defined in sec-
8 tion 4279.2 of title 7, Code of Federal Regulations
9 (as in effect on the date of enactment of this para-
10 graph)).”.

11 (b) RULEMAKING.—Not later than 180 days after the
12 date of enactment of this Act, the Secretary shall amend
13 part 1436 of title 7, Code of Federal Regulations, to re-
14 flect the amendments made by subsection (a), including
15 to ensure that, with respect to fertilizer, loans may be
16 made under the Farm Storage Facility Loan Program for,
17 at a minimum, the following:

18 (1) Dry bins and dry flat storage.

19 (2) Fertilizer blenders.

20 (3) Liquid tanks.

21 (4) Anhydrous ammonia pressure vessels.

22 (5) Foundations, electrical systems, conveyors,
23 plumbing, piping, and pumps necessary for the re-
24 ceipt, storage, and removal of fertilizer products.

1 **SEC. 1106. STRENGTHENING DOMESTIC FOOD PRODUCTION**
2 **SUPPLY CHAINS.**

3 (a) IN GENERAL.—Subtitle C of title I of the Agricul-
4 tural Act of 2014 (Public Law 113–79; 128 Stat. 688)
5 is amended by adding at the end the following:

6 **“SEC. 1302. STRENGTHENING DOMESTIC FOOD PRODUC-**
7 **TION SUPPLY CHAINS.**

8 “(a) IN GENERAL.—With respect to any Federal pol-
9 icy that would impact the administration of the programs
10 described in the provisions of law described in this subtitle
11 or any rule, policy, or guidance issued pursuant to such
12 programs, the preservation and strengthening of the do-
13 mestic production described in subsection (b) shall be a
14 priority objective of the President.

15 “(b) DOMESTIC PRODUCTION DESCRIBED.—The do-
16 mestic production described in this subsection is the pro-
17 duction of an agricultural commodity—

18 “(1) described in a program described in sub-
19 section (a); and

20 “(2) from which a food ingredient that serves
21 an important function throughout the domestic food
22 production supply chain is derived.”.

23 (b) CLERICAL AMENDMENT.—The table of contents
24 for the Agricultural Act of 2014 (Public Law 113–79; 128

1 Stat. 649) is amended by inserting after the item relating
2 to section 1301 the following:

“1302. Strengthening domestic food production supply chains.”.

3 **SEC. 1107. DRY EDIBLE BEANS STUDY.**

4 (a) IN GENERAL.—Not later than 60 days after the
5 date of enactment of this Act, the Secretary shall contract
6 with 1 or more qualified entities to conduct a study to
7 determine whether the inclusion of dry edible beans as a
8 covered commodity (as defined in section 1111 of the Agri-
9 cultural Act of 2014 (7 U.S.C. 9011)) and a loan com-
10 modity (as defined in section 1201(a) of that Act (7
11 U.S.C. 9031(a))) under the programs authorized under
12 subtitles A and B of title I of that Act (7 U.S.C. 9011
13 et seq.) would provide producers of dry edible beans with
14 an effective safety net.

15 (b) ANALYSIS REQUIRED.—The Secretary shall en-
16 sure that the 1 or more entities conducting the study re-
17 quired under this section include evaluations and rec-
18 ommendations concerning the appropriate establishment
19 of—

- 20 (1) loan rates;
- 21 (2) reference prices;
- 22 (3) base acres;
- 23 (4) payment acres and yields; and

1 (5) other relevant program details to effectuate
2 full inclusion of dry edible beans as a covered com-
3 modity and a loan commodity.

4 (c) REPORT REQUIRED.—Not later than 120 days
5 after the date of enactment of this Act, the Secretary shall
6 submit to the Committee on Agriculture, Nutrition, and
7 Forestry of the Senate and the Committee on Agriculture
8 of the House of Representatives a report describing the
9 findings of the study required under this section.

10 (d) MITIGATION.—There are authorized to be appro-
11 priated such sums as necessary to establish a mitigation
12 program under which the Secretary shall reduce stocks-
13 to-use ratios of dry edible beans to achieve and maintain
14 average historical levels.

15 **Subtitle B—Dairy**

16 **SEC. 1201. REAUTHORIZATIONS.**

17 (a) DAIRY FORWARD PRICING PROGRAM.—Section
18 1502 of the Food, Conservation, and Energy Act of 2008
19 (7 U.S.C. 8772) is amended by striking subsection (e).

20 (b) DAIRY INDEMNITY PAYMENT PROGRAM.—Sec-
21 tion 3 of Public Law 90–484 (7 U.S.C. 4553) is amended
22 by striking “2023” and inserting “2031”.

23 (c) DAIRY PROMOTION AND RESEARCH BOARD.—
24 Section 113(e)(2) of the Dairy Production Stabilization

1 Act of 1983 (7 U.S.C. 4504(e)(2)) is amended by striking
2 “2023” and inserting “2031”.

3 **SEC. 1202. MANDATORY REPORTING OF DAIRY PRODUCT**
4 **PROCESSING COSTS.**

5 Section 273 of the Agricultural Marketing Act of
6 1946 (7 U.S.C. 1637b) is amended—

7 (1) in subsection (b)—

8 (A) in paragraph (1)—

9 (i) in subparagraph (A)(ii), by strik-
10 ing “and” at the end;

11 (ii) in subparagraph (B), by striking
12 the period at the end and inserting “;
13 and”; and

14 (iii) by adding at the end the fol-
15 lowing:

16 “(C) for each manufacturer required to re-
17 port under subparagraph (A) for any product,
18 require that manufacturer to report production
19 cost and product yield information, as deter-
20 mined by the Secretary, for all products proc-
21 essed in the same facility or facilities.”; and

22 (B) in paragraph (2)(A), by inserting
23 “products and” after “those”;

24 (2) in subsection (c)(3)(B), by inserting “, sub-
25 ject to subsection (b)(1),” after “of information”;

1 (3) in subsection (d)—

2 (A) in the subsection heading, by striking
3 “ELECTRONIC REPORTING”; and inserting
4 “REPORTING”;

5 (B) in paragraph (1)—

6 (i) in the paragraph heading, by strik-
7 ing “ELECTRONIC REPORTING” and insert-
8 ing “REPORTING”; and

9 (ii) by striking “this section” and in-
10 sserting “subparagraphs (A) and (B) of
11 subsection (b)(1)”;

12 (C) in paragraph (2), by striking “this sec-
13 tion” and inserting “subparagraphs (A) and
14 (B) of subsection (b)(1)”;

15 (D) by adding at the end the following:

16 “(3) DAIRY PRODUCT PROCESSING COSTS.—Not
17 later than 2 years after the date of enactment of the
18 Agricultural Act of 2026, and every 2 years there-
19 after, the Secretary shall publish a report containing
20 the information obtained under subsection (b)(1)(C),
21 subject to the conditions described in subsection
22 (b)(2).”.

23 (4) by redesignating subsection (e) as sub-
24 section (f); and

1 (5) by inserting after subsection (d) the fol-
2 lowing:

3 “(e) REGULATION.—Any actions taken by the Sec-
4 retary under this section shall not be subject to review
5 under Executive Order 12866 (5 U.S.C. 601 note; relating
6 to regulatory planning and review) or any successor
7 order.”.

8 **SEC. 1203. DAIRY REPORTS.**

9 Section 301(4) of the Dairy and Tobacco Adjustment
10 Act of 1983 (7 U.S.C. 4514(4)) is amended by striking
11 “Not later” and all that follows through “an annual re-
12 port” and inserting “With respect to each calendar year
13 beginning after the date of enactment of the Agricultural
14 Act of 2026, a report (which shall be submitted not later
15 than 18 months after the last day of each calendar year)”.

16 **Subtitle C—Supplemental**
17 **Agricultural Disaster Assistance**

18 **SEC. 1301. NONINSURED CROP DISASTER ASSISTANCE PRO-**
19 **GRAM.**

20 Section 196(c)(2) of the Federal Agriculture Im-
21 provement and Reform Act of 1996 (7 U.S.C. 7333(c)(2))
22 is amended by adding at the end the following:

23 “(C) COMMUNITY DITCHES.—

24 “(i) DEFINITION OF COMMUNITY
25 DITCH.—In this subparagraph, the term

1 ‘community ditch’ means a private, unin-
2 corporated or cooperative irrigation ditch
3 system, including an acequia or an unin-
4 corporated mutual ditch company.

5 “(ii) CAUSES OF LOSS.—On making a
6 determination described in subsection
7 (a)(3) for producers that rely on a commu-
8 nity ditch, the Secretary shall provide as-
9 sistance under this section to those pro-
10 ducers from all losses suffered as a result
11 of the causes described in subsection
12 (a)(3).”.

13 **SEC. 1302. SUPPLEMENTAL AGRICULTURAL DISASTER AS-**
14 **SISTANCE.**

15 (a) DEFINITIONS.—Section 1501(a)(4)(G) of the Ag-
16 ricultural Act of 2014 (7 U.S.C. 9081(a)(4)(G)) is amend-
17 ed by striking “livestock,” and inserting “livestock (in-
18 cluding unweaned livestock),”.

19 (b) LIVESTOCK INDEMNITY PAYMENTS.—Section
20 1501(b) of the Agricultural Act of 2014 (7 U.S.C.
21 9081(b)) is amended—

22 (1) in paragraph (1)(A), by inserting “(includ-
23 ing Mexican Gray Wolves), panthers,” after
24 “wolves”; and

25 (2) by adding at the end the following:

1 “(6) WEIGHT CATEGORIES.—For the purposes
2 of establishing weight categories to carry out para-
3 graph (1) with respect to non-adult livestock de-
4 scribed in subsection (a)(4)(A), the Secretary shall
5 establish weight categories of—

6 “(A) less than 400 pounds; and

7 “(B) such other weights that are more
8 than 400 pounds as the Secretary determines to
9 be appropriate.

10 “(7) REQUIRED DOCUMENTATION FOR CERTAIN
11 LOSSES.—With respect to eligible attacks by animals
12 or avian predators, the Secretary shall treat docu-
13 mentation showing probability or confirmation of
14 such an attack as sufficient to qualify for payments
15 under this subsection.”.

16 (c) EMERGENCY ASSISTANCE FOR LIVESTOCK,
17 HONEY BEES, AND FARM-RAISED FISH.—Section
18 1501(d)(2) of the Agricultural Act of 2014 (7 U.S.C.
19 9081(d)(2)) is amended by striking “reduce losses” and
20 all that follows through the period at the end and inserting
21 the following: “reduce—

22 “(A) losses caused by feed or water short-
23 ages (including transportation costs that are
24 necessary to reduce losses), disease, adverse
25 weather, drought, or other factors, as deter-

1 mined by the Secretary, including inspections of
2 cattle tick fever; and

3 “(B) winter stockpile grazing losses.”.

4 **SEC. 1303. TREE ASSISTANCE PROGRAM.**

5 Section 1501(e) of the Agricultural Act of 2014 (7
6 U.S.C. 9081(e)) is amended—

7 (1) in paragraph (1)—

8 (A) in subparagraph (A), by inserting “or
9 biennial” after “annual”; and

10 (B) in subparagraph (B), by inserting “or
11 pest” after “insect”; and

12 (2) by adding at the end the following:

13 “(6) TIMING REQUIREMENTS.—An eligible or-
14 chardist or nursery tree grower shall agree, as a
15 condition on receipt of assistance under this sub-
16 section, to carry out any replacement and rehabilita-
17 tion activities for which the assistance is provided
18 not later than—

19 “(A) 2 years after the application for the
20 assistance is approved; or

21 “(B) if the period described in subpara-
22 graph (A) is not adequate for tree survival,
23 such period as is necessary to ensure tree sur-
24 vival.

25 “(7) ALTERNATIVES USED IN REPLANTING.—

1 “(A) IN GENERAL.—An eligible orchardist
2 or nursery tree grower that receives assistance
3 under this subsection with respect to tree loss
4 may use the assistance to replant using—

5 “(i) an alternative variety from the
6 variety used prior to the loss;

7 “(ii) an alternative stand density from
8 the stand density used prior to the loss;
9 and

10 “(iii) an alternative location from the
11 location used prior to the loss.

12 “(B) PAYMENT LIMITATIONS WITH RE-
13 SPECT TO ALTERNATIVES.—Assistance provided
14 for replanting under subparagraph (A) may not
15 exceed—

16 “(i) for a use described in subpara-
17 graph (A)(i), the amount the eligible or-
18 chardist or nursery tree grower would re-
19 ceive if the eligible orchardist or nursery
20 tree grower replanted using the variety
21 lost;

22 “(ii) for a use described in subpara-
23 graph (A)(ii), the amount the eligible or-
24 chardist or nursery tree grower would re-
25 ceive if the eligible orchardist or nursery

1 tree grower replanted using the stand den-
2 sity lost; and

3 “(iii) for a use described in subpara-
4 graph (A)(iii), the amount the eligible or-
5 chardist or nursery tree grower would re-
6 ceive if the eligible orchardist or nursery
7 tree grower replanted in the location in
8 which the loss occurred.

9 “(8) NOTICE OF APPLICATION STATUS.—Not
10 later than 120 days after receiving an application
11 for assistance under this subsection, the Secretary
12 shall—

13 “(A) approve or deny such application; and

14 “(B) notify the applicant of the approval
15 or denial.

16 “(9) INITIAL PAYMENTS.—

17 “(A) IN GENERAL.—An eligible orchardist
18 or nursery tree grower may opt to receive an
19 initial assistance payment with respect to losses
20 described in paragraph (2) before incurring the
21 costs described in paragraph (3) relating to
22 such losses.

23 “(B) AMOUNT.—An initial assistance pay-
24 ment under subparagraph (A) shall be in an
25 amount that is equal to the fair market value

1 of the estimated costs described in paragraph
2 (3) that the eligible orchardist or nursery tree
3 grower is likely to incur with respect to losses
4 described in paragraph (2), as determined by
5 the Secretary.

6 “(C) SUBSEQUENT PAYMENT.—

7 “(i) IN GENERAL.—In the case of an
8 eligible orchardist or nursery tree grower
9 that opts to receive an initial payment
10 under subparagraph (A) with respect to
11 losses described in paragraph (2), the Sec-
12 retary shall, as soon as practicable after
13 providing such initial payment, provide a
14 subsequent payment to the eligible or-
15 chardist or nursery tree grower in an
16 amount equal to—

17 “(I) the payment amount the eli-
18 gible orchardist or nursery tree grow-
19 er would have received with respect to
20 such losses under paragraph (3) or
21 pursuant to paragraph (5); minus

22 “(II) the initial payment amount
23 provided to such eligible orchardist or
24 nursery tree grower under subpara-
25 graph (B) with respect to such losses.

1 “(ii) OVERPAYMENT.—If an initial
2 payment under subparagraph (B) with re-
3 spect to losses described in paragraph (2)
4 is greater than the amount an eligible or-
5 chardist or nursery tree grower would have
6 received under paragraph (3) or pursuant
7 to paragraph (5) for such losses, such eli-
8 gible orchardist or nursery tree grower
9 shall repay the Secretary the excess
10 amount.

11 “(D) SUNSET.—The authority to make
12 payments under this paragraph shall terminate
13 on September 30, 2035.”.

14 **SEC. 1304. SPECIALTY CROP EMERGENCY ASSISTANCE**
15 **FRAMEWORK.**

16 (a) IN GENERAL.—The Federal Agriculture Improve-
17 ment and Reform Act of 1996 is amended by inserting
18 after section 196 (7 U.S.C. 7333) the following:

19 **“SEC. 197. SPECIALTY CROP EMERGENCY ASSISTANCE**
20 **FRAMEWORK.**

21 “(a) IN GENERAL.—In the case of additional funds
22 made available after the date of enactment of this section,
23 the Secretary shall establish a framework to provide direct
24 assistance to producers of specialty crops the production
25 of which is impacted by an adverse event (including an

1 economic crisis or market disruption), as determined by
2 the Secretary, in accordance with this section.

3 “(b) PAYMENT CALCULATION.—In determining a
4 payment calculation for purposes of direct assistance to
5 a producer of specialty crops under subsection (a), the
6 Secretary shall calculate payments based on—

7 “(1) the producer’s sales of specialty crops for
8 a calendar year that precedes the year in which the
9 adverse event described in such subsection occurred
10 or the average of such sales over a set of consecutive
11 calendar years that precedes the year in which such
12 adverse event occurred, as determined by the Sec-
13 retary; multiplied by

14 “(2) a payment factor the Secretary deter-
15 mines, subject to the availability of funds, to address
16 losses of such specialty crops from such adverse
17 event.

18 “(c) SPECIAL RULES.—Subject to subsection (d), in
19 providing direct assistance pursuant to this section, the
20 Secretary shall consider—

21 “(1) the higher value of specialty crops relative
22 to other crops;

23 “(2) the greater input costs required to grow
24 specialty crops relative to other crops; and

1 “(3) diverse types of legal entities and business
2 structures used by specialty crop producers.

3 “(d) LIMITATIONS.—

4 “(1) TOTAL AMOUNT.—

5 “(A) IN GENERAL.—Except as provided in
6 subparagraph (B), the total amount of pay-
7 ments received, directly or indirectly, by a per-
8 son or legal entity (except a qualified pass-
9 through entity) (as such terms are defined in
10 section 1001(a) of the Food Security Act of
11 1985 (7 U.S.C. 1308(a))) for any crop year
12 under this section may not exceed the amount
13 specified in subsection (b) of section 1001 of
14 the Food Security Act of 1985 (7 U.S.C. 1308),
15 as adjusted pursuant to subsection (i) of such
16 section.

17 “(B) EXCEPTION.—In the case of a person
18 or legal entity with an average gross income (as
19 calculated under subparagraph (B) of section
20 1001D(b)(4) of the Food Security Act of 1985
21 (7 U.S.C. 1308–3a(b)(4))) for which greater
22 than or equal to 75 percent of the average de-
23 rives from farming, ranching, or silviculture ac-
24 tivities (as defined in subparagraph (A) of that
25 section)—

1 “(i) subparagraph (A) of this para-
2 graph shall not apply; and

3 “(ii) the total maximum amount of
4 payments received, directly or indirectly,
5 by such person or legal entity for any crop
6 year under this section shall be set by the
7 Secretary, except such amount may not be
8 less than \$900,000.

9 “(2) NOTIFICATION OF INTERESTS; ELIGI-
10 BILITY; DENIALS.—Sections 1001A(a), 1001B, and
11 1001C of the Food Security Act of 1985 (7 U.S.C.
12 1308–1(a); 1308–2; 1308–3) shall apply to a pro-
13 ducer of a specialty crop under this section in the
14 same manner as such sections apply to a person or
15 legal entity with respect to a covered commodity, ex-
16 cept to the extent such sections relate to the applica-
17 tion of subsections (b) through (d) of section 1001A
18 of that Act (7 U.S.C. 1308–1).

19 “(e) DEFINITION OF SPECIALTY CROP.—In this sec-
20 tion, the term ‘specialty crop’ has the meaning given the
21 term in section 3 of the Specialty Crops Competitiveness
22 Act of 2004 (7 U.S.C. 1621 note; Public Law 108–465).”.

23 (b) PAYMENT LIMITATION CONFORMING AMEND-
24 MENT.—Section 1001D(b) of the Food Security Act of
25 1985 (7 U.S.C. 1308–3a(b)) is amended—

1 (1) in paragraph (2)(E), by inserting “or sec-
2 tion 197 of that Act” before the period at the end;
3 and

4 (2) in paragraph (4)(A)(i)(II), by inserting “or
5 section 197 of that Act” before the semicolon.

6 **SEC. 1305. ASSISTANCE IN THE FORM OF BLOCK GRANTS.**

7 (a) IN GENERAL.—Subtitle E of title I of the Agricul-
8 tural Act of 2014 (7 U.S.C. 9081) is amended by adding
9 at the end the following:

10 **“SEC. 1502. ASSISTANCE IN THE FORM OF BLOCK GRANTS.**

11 “(a) IN GENERAL.—In the case of additional funds
12 made available after the date of the enactment of this sec-
13 tion for covered losses, the Secretary may make assistance
14 for such losses available in the form of block grants to
15 States.

16 “(b) COVERED LOSSES.—In this section, the term
17 ‘covered losses’ means losses—

18 “(1) of revenue, quality, or production of crops,
19 trees, bushes, vines, poultry, or livestock as a con-
20 sequence of a natural disaster (as determined by the
21 Secretary); and

22 “(2) for which assistance is not available pursu-
23 ant to any other Federal law.”.

24 (b) CLERICAL AMENDMENT.—The table of contents
25 for the Agricultural Act of 2014 (Public Law 113–79; 128

1 Stat. 650) is amended by inserting after the item relating
2 to section 1501 the following:

“1502. Assistance in the form of block grants.”.

3 **Subtitle D—Administration**

4 **SEC. 1401. REGULATIONS.**

5 Section 1601(c)(2) of the Agricultural Act of 2014
6 (7 U.S.C. 9091(c)(2)) is amended by striking “and section
7 10109 of that Act” and inserting “section 10109 of that
8 Act, and title I of the Agricultural Act of 2026 and the
9 amendments made by that title”.

10 **SEC. 1402. TECHNICAL CORRECTION.**

11 Section 1001E(c) of the Food Security Act of 1985
12 (7 U.S.C. 1308–4(c)) is amended by striking “Agricul-
13 tural Stabilization and Conservation Service” and insert-
14 ing “Farm Service Agency”.

15 **SEC. 1403. IMPLEMENTATION.**

16 Section 1614 of the Agricultural Act of 2014 (7
17 U.S.C. 9097) is amended—

18 (1) in subsection (d)—

19 (A) in paragraph (1)—

20 (i) by striking “pursuant 2 U.S.C.
21 901(a)” and inserting “pursuant to section
22 251(a) of the Balanced Budget and Emer-
23 gency Deficit Control Act of 1985 (2
24 U.S.C. 901(a))”; and

1 (ii) by striking “subtitle B” the first
2 place it appears and all that follows
3 through the period at the end and insert-
4 ing “a covered provision of law.”;

5 (B) in paragraph (2)—

6 (i) by striking “of subtitles B or C”;

7 and

8 (ii) by striking “under subtitles B or
9 C” and inserting “under the repayment
10 provisions”; and

11 (C) by adding at the end the following:

12 “(3) DEFINITIONS.—In this subsection:

13 “(A) COVERED PROVISION OF LAW.—The
14 term ‘covered provision of law’ means—

15 “(i) subtitle B or C or the amend-
16 ments made by subtitle B or C;

17 “(ii) the amendments made by sub-
18 title B or C of title I of the Agriculture
19 Improvement Act of 2018 (Public Law
20 115–334; 132 Stat. 4509), except with re-
21 spect to the assistance provided under sec-
22 tions 1207(c) and 1208; and

23 “(iii) section 156 of the Federal Agri-
24 culture Improvement and Reform Act of
25 1996 (7 U.S.C. 7272).

1 “(B) REPAYMENT PROVISIONS.—The term
2 ‘repayment provisions’ means the repayment re-
3 quirements under—

4 “(i) subtitle B or C; or

5 “(ii) section 156 of the Federal Agri-
6 culture Improvement and Reform Act of
7 1996 (7 U.S.C. 7272).”;

8 (2) in subsection (e)—

9 (A) in paragraph (1), in the matter pre-
10 ceding subparagraph (A), by striking “Agri-
11 culture Improvement Act of 2018” and insert-
12 ing “Agricultural Act of 2026”;

13 (B) in paragraph (2)—

14 (i) in subparagraph (A), in the matter
15 preceding clause (i), by striking “Agri-
16 culture Improvement Act of 2018” and in-
17 serting “Agricultural Act of 2026”; and

18 (ii) in subparagraph (B)—

19 (I) by redesignating clauses (ii)
20 through (viii) as clauses (x) through
21 (xvi), respectively; and

22 (II) by inserting after clause (i)
23 the following:

1 “(ii) Title I of division N of the Con-
2 solidated Appropriations Act, 2023 (Public
3 Law 117–328; 136 Stat. 5201).

4 “(iii) Title I of division B of the Ex-
5 tending Government Funding and Deliv-
6 ering Emergency Assistance Act (Public
7 Law 117–43; 135 Stat. 356).

8 “(iv) Chapter 1 of subtitle B of title
9 VII of division N of the Consolidated Ap-
10 propriations Act, 2021 (Public Law 116–
11 260; 134 Stat. 2105).

12 “(v) Title I of division B of the
13 Coronavirus Aid, Relief, and Economic Se-
14 curity Act (Public Law 116–136; 134 Stat.
15 505).

16 “(vi) Section 791 of division B of the
17 Further Consolidated Appropriations Act,
18 2020 (Public Law 116–94; 133 Stat.
19 2658).

20 “(vii) Title I of the Additional Supple-
21 mental Appropriations for Disaster Relief
22 Act, 2019 (Public Law 116–20; 133 Stat.
23 871).

1 “(viii) Title I of the Agriculture Im-
2 provement Act of 2018 (Public Law 115–
3 334; 132 Stat. 4490).

4 “(ix) Title I of the Further Additional
5 Supplemental Appropriations for Disaster
6 Relief Requirements Act, 2018 (Public
7 Law 115–123; 132 Stat. 65).”; and

8 (3) in subsection (f), in the matter preceding
9 paragraph (1), by striking “2023” and inserting
10 “2031”.

11 **TITLE II—CONSERVATION**
12 **Subtitle A—Conservation Reserve**
13 **Program**

14 **SEC. 2101. CONSERVATION RESERVE.**

15 (a) IN GENERAL.—Section 1231(a) of the Food Se-
16 curity Act of 1985 (16 U.S.C. 3831(a)) is amended by
17 striking “2023” and inserting “2031”.

18 (b) ELIGIBLE LAND.—Section 1231(b) of the Food
19 Security Act of 1985 (16 U.S.C. 3831(b)) is amended—

20 (1) in paragraph (1)(B), by striking “the Agri-
21 culture Improvement Act of 2018” and inserting
22 “the Agricultural Act of 2026”;

23 (2) in paragraph (5)(E), by adding “or” at the
24 end;

1 (3) in paragraph (6)(B)(ii), by striking “; or”
2 and inserting a period; and

3 (4) by striking paragraph (7).

4 (c) ENROLLMENT.—Section 1231(d) of the Food Se-
5 curity Act of 1985 (16 U.S.C. 3831(d)) is amended—

6 (1) in paragraph (1), by striking “during—” in
7 the matter preceding subparagraph (A) and all that
8 follows through the period at the end of subpara-
9 graph (E) and inserting “during fiscal years 2027
10 through 2031 not more than 27,000,000 acres.”;

11 (2) in paragraph (2)(A)—

12 (A) in clause (i), by striking “and” at the
13 end; and

14 (B) by striking clause (ii) and inserting the
15 following:

16 “(ii) in carrying out clause (i), to the
17 maximum extent practicable, the Secretary
18 shall maintain not fewer than 2,000,000
19 acres in the conservation reserve at any
20 one time during fiscal years 2027 through
21 2031; and

22 “(iii) the Secretary shall not maintain
23 in the conservation reserve more than
24 12,000,000 acres of land described in sub-
25 section (b)(3).”; and

1 (3) in paragraph (6)—

2 (A) in subparagraph (A)(i)—

3 (i) in subclause (II), by striking
4 “and” at the end; and

5 (ii) by adding at the end the fol-
6 lowing:

7 “(IV) land that will be enrolled
8 under the State acres for wildlife en-
9 hancement practice established by the
10 Secretary; and”; and

11 (B) in subparagraph (B)—

12 (i) in clause (i), by striking “2023;
13 and” and inserting “2031.”;

14 (ii) by striking clause (ii); and

15 (iii) by striking “paragraph (1)—” in
16 the matter preceding clause (i) and all that
17 follows through “the Secretary” in clause
18 (i) and inserting “paragraph (1), the Sec-
19 retary”.

20 (d) ELIGIBILITY FOR CONSIDERATION.—Section
21 1231(h) of the Food Security Act of 1985 (16 U.S.C.
22 3831(h)) is amended by adding at the end the following:

23 “(3) LAND WITH GRAZING INFRASTRUCTURE.—

24 On the expiration of a contract entered into under
25 this subchapter that covers land that includes graz-

1 ing infrastructure established with cost sharing as-
2 sistance under section 1234(b)(1)(B)—

3 “(A) the Secretary shall consider that land
4 to be planted for purposes of subsection
5 (b)(1)(B); and

6 “(B) that land shall be eligible for reenroll-
7 ment in the conservation reserve, subject to the
8 requirements of this subchapter.”.

9 **SEC. 2102. CONSERVATION RESERVE ENHANCEMENT PRO-**
10 **GRAM.**

11 Section 1231A of the Food Security Act of 1985 (16
12 U.S.C. 3831a) is amended—

13 (1) in subsection (a)(4), in the matter pre-
14 ceding subparagraph (A), by inserting “(other than
15 an agreement described in subsection (e))” after
16 “this subchapter”;

17 (2) in subsection (b)—

18 (A) in paragraph (2)(A)(vi), by inserting
19 “or other appropriate practices, such as dryland
20 agricultural uses and grazing,” after “conserva-
21 tion practices”; and

22 (B) in paragraph (3), by adding at the end
23 the following:

24 “(C) UPDATES TO EXISTING AGREE-
25 MENTS.—

1 “(i) IN GENERAL.—

2 “(I) OPTION TO UPDATE.—The
3 Secretary shall provide an option to
4 signatories to an agreement under
5 this subsection to update the agree-
6 ment, without renegotiating other pro-
7 visions of the agreement, to include
8 new incentives made available under
9 this subchapter beginning on January
10 1, 2018, such as riparian forest buffer
11 management payments.

12 “(II) MATCHING FUNDS.—Re-
13 quirements for matching funds de-
14 scribed in paragraph (2)(B) shall not
15 apply to the updates to an agreement
16 described in subclause (I).

17 “(ii) DROUGHT AND WATER CON-
18 SERVATION AGREEMENTS.—In the case of
19 an agreement covered by subparagraph (B)
20 of subsection (c)(5) entered into before the
21 date of enactment of that subparagraph
22 under which the payment rate is lower
23 than the payment rate that would be cal-
24 culated for the agreement under that sub-
25 paragraph, the Secretary shall modify the

1 agreement by calculating the payment rate
2 in accordance with that subparagraph.”;

3 (3) in subsection (c), by adding at the end the
4 following:

5 “(5) DROUGHT AND WATER CONSERVATION
6 AGREEMENTS.—

7 “(A) RETIREMENT OF WATER RIGHTS.—In
8 the case of an agreement described in sub-
9 section (e) that includes a permanent retire-
10 ment of water rights, the payment rates for an-
11 nual payments shall be equal to the irrigated
12 acre payment rates determined by the Sec-
13 retary.

14 “(B) DRYLAND AGRICULTURAL USES.—In
15 the case of an agreement described in sub-
16 section (e) that permits dryland agricultural
17 uses pursuant to paragraph (2) of that sub-
18 section, the payment rates for annual payments
19 shall be equal to the difference between—

20 “(i) the irrigated acre payment rates
21 determined by the Secretary; and

22 “(ii) the dryland acre payment rates
23 determined by the Secretary.”; and

24 (4) in subsection (e)(3), by inserting “subject to
25 subsection (c)(5),” before “calculate”.

1 **SEC. 2103. FARMABLE WETLAND PROGRAM.**

2 Section 1231B(a)(1) of the Food Security Act of
3 1985 (16 U.S.C. 3831b(a)(1)) is amended by striking “the
4 2008 through 2023 fiscal years” and inserting “each of
5 fiscal years 2008 through 2031”.

6 **SEC. 2104. DUTIES OF THE SECRETARY.**

7 Section 1233(b) of the Food Security Act of 1985
8 (16 U.S.C. 3833(b)) is amended—

9 (1) in paragraph (1)—

10 (A) in subparagraph (A)(ii), by inserting
11 “subject to subclauses (I) and (III) of clause
12 (i), and subclauses (I) and (II) of clause (ii), of
13 subparagraph (B),” before “are subject to”;
14 and

15 (B) in subparagraph (B)(i)—

16 (i) by redesignating subclauses (I)
17 through (VI) as subclauses (II) through
18 (VII), respectively;

19 (ii) by inserting before subclause (II)
20 (as so redesignated) the following:

21 “(I) emergency haying in re-
22 sponse to a localized or regional
23 drought, flooding, wildfire, or other
24 emergency, on certain practices, out-
25 side the primary nesting season or
26 during the final 2 weeks of the pri-

1 mary nesting season, on not more
2 than 50 percent of contract acres, as
3 identified in the site-specific plan,
4 when—

5 “(aa) the county is des-
6 ignated as D2 (severe drought)
7 or greater according to the
8 United States Drought Monitor;

9 “(bb) there is at least a 40
10 percent loss in forage production
11 in the county; or

12 “(cc) the Secretary, in co-
13 ordination with the State tech-
14 nical committee, determines that
15 the program can assist in the re-
16 sponse to a natural disaster event
17 without permanent damage to
18 the established cover;”; and

19 (iii) in subclause (II) (as so redesign-
20 ated), in the matter preceding item (aa),
21 by striking “emergency haying, emergency
22 grazing, or other emergency use” and in-
23 serting “emergency grazing or other emer-
24 gency use”; and

25 (2) in paragraph (2)(B)—

1 (A) by redesignating clause (ii) as clause
2 (iv); and

3 (B) by inserting after clause (i) the fol-
4 lowing:

5 “(ii) DAMAGE TO COVER FOR WILD-
6 LIFE POPULATIONS.—Haying or grazing
7 described in paragraph (1) shall not be
8 permitted on land subject to a contract
9 under the conservation reserve program, or
10 under a particular practice, if haying or
11 grazing during the final 2 weeks of the pri-
12 mary nesting season under that practice,
13 as applicable, would cause long-term dam-
14 age to vegetative cover for wildlife popu-
15 lations supported by the applicable practice
16 on that land.

17 “(iii) APPLICABILITY OF NEPA.—The
18 exceptions described in clauses (i) and (ii)
19 shall not be subject to the requirements of
20 the National Environmental Policy Act of
21 1969 (42 U.S.C. 4321 et seq.).”.

22 **SEC. 2105. PAYMENTS.**

23 (a) COST SHARING PAYMENTS.—Section 1234(b) of
24 the Food Security Act of 1985 (16 U.S.C. 3834(b)) is
25 amended—

1 (1) in paragraph (1)—

2 (A) by striking “establishing water” and
3 inserting the following: “establishing—

4 “(A) water”;

5 (B) in subparagraph (A) (as so des-
6 ignated), by striking the period at the end and
7 inserting “; and”; and

8 (C) by adding at the end the following:

9 “(B) grazing infrastructure and water in-
10 frastructure under each contract, for all prac-
11 tices, if grazing is included in the conservation
12 plan and addresses a resource concern.”; and

13 (2) in paragraph (2), by striking subparagraph
14 (B) and inserting the following:

15 “(B) MANAGEMENT PAYMENTS.—The Sec-
16 retary shall make cost sharing payments to an
17 owner or operator under this subchapter for
18 any management activity described in section
19 1232(a)(5), except for those management ac-
20 tivities relating to haying or grazing.”.

21 (b) ANNUAL RENTAL PAYMENTS.—Section
22 1234(d)(1) of the Food Security Act of 1985 (16 U.S.C.
23 3834(d)(1)) is amended—

1 (1) by redesignating subparagraphs (A) through
2 (C) as clauses (i) through (iii), respectively, and in-
3 denting appropriately;

4 (2) in the matter preceding clause (i) (as so re-
5 designated), by striking “the Secretary shall con-
6 sider—” and inserting the following: “the Sec-
7 retary—

8 “(A) shall determine for a tract of land a
9 rental rate based on the 3 predominant soils of
10 cropland on that tract, and apply that rental
11 rate to any land within that tract that is en-
12 rolled in the conservation reserve under this
13 subchapter;

14 “(B) subject to subparagraph (A), shall
15 consider—”;

16 (3) in subparagraph (B)(iii) (as so designated),
17 by striking the period at the end and inserting “;
18 and”; and

19 (4) by adding at the end the following:

20 “(C) notwithstanding clauses (i) through
21 (iii) of subparagraph (B), shall not apply an ad-
22 justment based on the rate of inflation to any
23 payment, overall rental payment, or other pay-
24 ment that an owner or operator receives under
25 this subchapter.”.

1 (c) PAYMENT LIMITATION FOR RENTAL PAY-
2 MENTS.—Section 1234(g)(1) of the Food Security Act of
3 1985 (16 U.S.C. 3834(g)(1)) is amended by striking
4 “\$50,000” and inserting “\$125,000”.

5 **Subtitle B—Environmental Quality**
6 **Incentives Program**

7 **SEC. 2201. DEFINITIONS.**

8 Section 1240A of the Food Security Act of 1985 (16
9 U.S.C. 3839aa–1) is amended—

10 (1) in paragraph (6)(B)(v), by inserting “(in-
11 cluding planning for the adoption of precision agri-
12 culture practices and precision agriculture tech-
13 nology)” after “planning”;

14 (2) by redesignating paragraphs (7) through
15 (10) as paragraphs (9) through (12), respectively;
16 and

17 (3) by inserting after paragraph (6) the fol-
18 lowing:

19 “(7) **PRECISION AGRICULTURE.**—The term
20 ‘precision agriculture’ means managing, tracking, or
21 reducing crop or livestock production inputs, includ-
22 ing seed, feed, fertilizer, chemicals, water, and time,
23 at a heightened level of spatial and temporal granu-
24 larity and biological targeting to improve efficiencies,
25 reduce waste, and maintain environmental quality.

1 “(8) PRECISION AGRICULTURE TECHNOLOGY.—

2 The term ‘precision agriculture technology’ means
3 any technology (including targeted inputs and the
4 equipment that is necessary for the deployment of
5 such technology) that directly contributes to a reduc-
6 tion in, or improved efficiency of, inputs used in
7 crop or livestock production, including—

8 “(A) Global Positioning System-based or
9 geospatial mapping;

10 “(B) satellite or aerial imagery;

11 “(C) yield monitors;

12 “(D) soil mapping;

13 “(E) sensors for gathering data on crop,
14 soil, or livestock conditions;

15 “(F) Internet of Things and telematics
16 technologies;

17 “(G) data management software and ad-
18 vanced analytics;

19 “(H) network connectivity products and
20 solutions;

21 “(I) Global Positioning System guidance or
22 auto-steer systems;

23 “(J) variable rate technology for applying
24 inputs, such as section control; and

1 “(K) any other technology, as determined
2 by the Secretary, that leads to a reduction in,
3 or improves efficiency of, crop and livestock
4 production inputs, which may include seed,
5 feed, fertilizer, chemicals, water, and time.”.

6 **SEC. 2202. ESTABLISHMENT AND ADMINISTRATION.**

7 (a) PAYMENTS.—Section 1240B(d) of the Food Se-
8 curity Act of 1985 (16 U.S.C. 3839aa–2(d)) is amended—

9 (1) in paragraph (4)(B)(ii), by striking “shall”
10 and inserting “may”;

11 (2) in paragraph (6)—

12 (A) by striking “A producer shall” and in-
13 serting the following:

14 “(A) PAYMENTS UNDER THIS SUBTITLE.—
15 A producer shall”; and

16 (B) by adding at the end the following:

17 “(B) CONSERVATION LOAN AND LOAN
18 GUARANTEE PROGRAM PAYMENTS.—

19 “(i) IN GENERAL.—A producer receiv-
20 ing payments for practices on eligible land
21 under the program may also receive a loan
22 or loan guarantee under section 304 of the
23 Consolidated Farm and Rural Develop-
24 ment Act (7 U.S.C. 1924) to cover costs
25 for the same practices on the same land.

“(ii) NOTICE TO PRODUCERS.—The Secretary shall inform a producer participating in the program in writing of the availability of a loan or loan guarantee under section 304 of the Consolidated Farm and Rural Development Act (7 U.S.C. 1924) as it relates to the costs of implementing practices under the program.”;

10 (3) in paragraph (7), in the paragraph heading,
11 by inserting “STATE-DETERMINED” before “HIGH-
12 PRIORITY”; and

13 (4) by adding at the end the following:

14 “(8) WAIVER OF IRRIGATION HISTORY RE-
15 QUIREMENT.—

“(A) REQUESTS.—The Secretary shall provide an opportunity for a State technical committee established under section 1261(a) to submit to the Secretary a request to waive a requirement established by the Secretary that, to be eligible for a payment under the program, there shall be a history of irrigation on the applicable land.

24 “(B) COVERED LAND.—A request sub-
25 mitted under subparagraph (A) may cover—

1 “(i) all of the land in a State; or

2 “(ii) 1 or more regions in the State,
3 as described in the request.

4 “(C) REQUIREMENT OF NO ADVERSE IM-
5 PACT.—The Secretary may approve a request
6 submitted under subparagraph (A) if the State
7 technical committee demonstrates that the
8 waiver would not create an adverse impact to
9 aquifer depletion or surface streams experi-
10 encing decreased flow.

11 “(D) EFFICIENCY REQUIREMENT.—In the
12 case of a contract entered into under the pro-
13 gram that includes a payment pursuant to a
14 waiver under this paragraph, the contract shall
15 require the implementation of irrigation equip-
16 ment and an irrigation water management con-
17 servation plan that is as efficient on water re-
18 sources as practicable.”.

19 (b) ALLOCATION OF FUNDING.—Section 1240B(f)(1)
20 of the Food Security Act of 1985 (16 U.S.C. 3839aa–
21 2(f)(1)) is amended by striking “2023” and inserting
22 “2031”.

23 (c) WATER CONSERVATION OR IRRIGATION EFFI-
24 CIENCY PRACTICE.—Section 1240B(h)(2) of the Food Se-
25 curity Act of 1985 (16 U.S.C. 3839aa–2(h)(2)) is amend-

1 ed by striking subparagraphs (C) and (D) and inserting
2 the following:

3 “(C) PAYMENT LIMITATIONS.—With re-
4 spect to contracts entered into under this para-
5 graph during the period of fiscal years 2027
6 through 2031, payments to an entity, directly
7 or indirectly, may not exceed, in aggregate,
8 \$2,000,000.”.

9 (d) PAYMENT LIMITATIONS FOR PAYMENTS FOR
10 CONSERVATION PRACTICES RELATED TO ORGANIC PRO-
11 Duction.—Section 1240B(i)(3)(A) of the Food Security
12 Act of 1985 (16 U.S.C. 3839aa–2(i)(3)(A)) is amended—

13 (1) in clause (i)(II), by striking “and” at the
14 end;

15 (2) in clause (ii), by striking the period at the
16 end and inserting “; and”; and

17 (3) by adding at the end the following:

18 “(iii) during the period of fiscal years
19 2027 through 2031, \$140,000.”.

20 (e) REQUIREMENTS.—Section 1240B of the Food Se-
21 curity Act of 1985 (16 U.S.C. 3839aa–2) is amended by
22 adding at the end the following:

23 “(k) REQUIREMENTS.—The Secretary shall not re-
24 quire as a term or condition of any contract or implemen-
25 tation of a practice for payment under the program—

1 “(1) soil testing, unless the practice standard
2 for the practice requires soil testing; or

3 “(2) a whole-farm assessment, whole farm plan,
4 or other conservation assessment or conservation
5 plan beyond what is required to implement the prac-
6 tice.”.

7 **SEC. 2203. LIMITATION ON PAYMENTS.**

8 Section 1240G of the Food Security Act of 1985 (16
9 U.S.C. 3839aa–7) is amended—

10 (1) by striking “2018, or” and inserting
11 “2018,”; and

12 (2) by inserting “or the period of fiscal years
13 2027 through 2031,” after “2023,”.

14 **SEC. 2204. CONSERVATION INNOVATION GRANTS AND PAY-**
15 **MENTS.**

16 (a) COMPETITIVE GRANTS FOR INNOVATIVE CON-
17 SERVATION APPROACHES.—Section 1240H(a)(1) of the
18 Food Security Act of 1985 (16 U.S.C. 3839aa–8(a)(1))
19 is amended—

20 (1) by striking “pay the cost of” and inserting
21 “award”;

22 (2) by inserting “the development and evalua-
23 tion of new and” before “innovative approaches”;
24 and

1 (3) by inserting “, including for the purpose of
2 incorporating innovation and new technologies into
3 existing conservation practice standards or estab-
4 lishing new conservation practice standards” before
5 the period at the end.

6 (b) REPORTING AND DATABASE.—Section
7 1240H(d)(2)(A) of the Food Security Act of 1985 (16
8 U.S.C. 3839aa–8(d)(2)(A)) is amended—

9 (1) in clause (i)—

10 (A) by striking “practices” and inserting
11 “practices, including both management and
12 structural practices,”; and

13 (B) by striking “and” at the end;

14 (2) by redesignating clause (ii) as clause (iii);

15 (3) by inserting after clause (i) the following:

16 “(ii) evaluation data for new and
17 emerging technology and recommendations
18 for State and regional applications; and”;
19 and

20 (4) in clause (iii) (as so redesignated), by strik-
21 ing “practices.” and inserting “practices for consid-
22 eration through the process established under sec-
23 tion 1242(h)(3).”.

1 **Subtitle C—Conservation**
2 **Stewardship Program**

3 **SEC. 2301. DUTIES OF THE SECRETARY.**

4 Section 1240L(f) of the Food Security Act of 1985
5 (16 U.S.C. 3839aa–24(f)) is amended by striking “2019
6 through 2023” and inserting “2027 through 2031”.

7 **Subtitle D—Funding and**
8 **Administration**

9 **SEC. 2401. FUNDING.**

10 Section 1241(a) of the Food Security Act of 1985
11 (16 U.S.C. 3841(a)) is amended—

12 (1) in paragraph (1)—

13 (A) in subparagraph (A), by striking
14 “and” at the end;

15 (B) in subparagraph (B), by striking the
16 period at the end and inserting “; and”; and

17 (C) by adding at the end the following:

18 “(C) \$100,000,000 for each of fiscal years
19 2027 through 2031 to provide cost sharing pay-
20 ments under section 1234(b)(1)(B) for acreage
21 not enrolled under section 1231(d)(2).”;

22 (2) in paragraph (3)—

23 (A) in subparagraph (A), by striking
24 clauses (i) through (vi) and inserting the fol-
25 lowing:

1 “(i) \$2,500,000,000 for fiscal year
2 2027;

3 “(ii) \$2,600,000 for fiscal year 2028;

4 “(iii) \$2,700,000,000 for fiscal year
5 2029;

6 “(iv) \$2,900,000,000 for fiscal year
7 2030; and

8 “(v) \$3,255,000,000 for fiscal year
9 2031; and”; and

10 (B) in subparagraph (B), by striking
11 clauses (i) through (vi) and inserting the fol-
12 lowing:

13 “(i) \$1,275,000,000 for fiscal year
14 2027;

15 “(ii) \$1,300,000,000 for fiscal year
16 2028;

17 “(iii) \$1,325,000,000 for fiscal year
18 2029;

19 “(iv) \$1,325,000,000 for fiscal year
20 2030; and

21 “(v) \$1,325,000,000 for fiscal year
22 2031.”; and

23 (3) by adding at the end the following:

1 “(5) The Forest Conservation Easement Pro-
2 gram under subtitle I, using, to the maximum extent
3 practicable—

4 “(A) \$25,000,000 for fiscal year 2027;

5 “(B) \$50,000,000 for fiscal year 2028;

6 “(C) \$50,000,000 for fiscal year 2029;

7 “(D) \$50,000,000 for fiscal year 2030;

8 and

9 “(E) \$65,000,000 for fiscal year 2031.”.

10 **SEC. 2402. CONSERVATION STANDARDS AND REQUIRE-**
11 **MENTS.**

12 Section 1241(j)(1) of the Food Security Act of 1985
13 (16 U.S.C. 3841(j)(1)) is amended—

14 (1) in subparagraph (B), by striking “and” at
15 the end;

16 (2) in subparagraph (C), by striking the period
17 at the end and inserting “; and”; and

18 (3) by adding at the end the following:

19 “(D) a schedule for the revision of exist-
20 ing, and establishment of new, conservation
21 practice standards under section 1242(h).”.

22 **SEC. 2403. ESTABLISHMENT AND REVIEW OF CONSERVA-**
23 **TION PRACTICE STANDARDS.**

24 Section 1242(h) of the Food Security Act of 1985
25 (16 U.S.C. 3842(h)) is amended—

1 (1) in the subsection heading, by inserting “ES-
2 TABLISHMENT AND” before “REVIEW”;

3 (2) in paragraph (1)—

4 (A) in subparagraph (A)—

5 (i) by striking “not later than 1 year
6 after the date of enactment of the Agri-
7 culture Improvement Act of 2018” and in-
8 serting “not less frequently than once
9 every 5 years”;

10 (ii) by inserting “on a rolling basis,”
11 after “standard,”; and

12 (iii) by striking “that Act” and insert-
13 ing “the Agricultural Act of 2026”;

14 (B) in subparagraph (C), by striking
15 “and” at the end;

16 (C) in subparagraph (D), by striking “en-
17 sures equivalent natural resource benefits.” and
18 inserting “integrates new and innovative tech-
19 nologies that provide equivalent or improved
20 natural resources benefits compared to the cur-
21 rent conservation practice standard;” and

22 (D) by adding at the end the following:

23 “(E) provide an opportunity for public
24 input on each conservation practice standard
25 under review;

1 “(F) publicly post a summary of comments
2 received under subparagraph (E) and decisions
3 made or not made due to those comments; and

4 “(G) publish each revised conservation
5 practice standard.”;

6 (3) by striking paragraph (3) and inserting the
7 following:

8 “(3) ESTABLISHMENT OF CONSERVATION PRAC-
9 TICE STANDARDS.—

10 “(A) IN GENERAL.—Not later than 1 year
11 after the date of enactment of the Agricultural
12 Act of 2026, the Secretary shall—

13 “(i) develop, for the programs under
14 this title, a streamlined, publicly accessible,
15 administrative process for establishing, in-
16 cluding proposing, reviewing, and adopting,
17 interim conservation practice standards
18 and conservation practice standards; and

19 “(ii) publish a detailed description of
20 the process developed under clause (i), in-
21 cluding—

22 “(I) specific thresholds appro-
23 priate for expedited review; and

24 “(II) an associated timeline for
25 the implementation of the review.

1 “(B) REQUIREMENTS.—Under the process
2 established under subparagraph (A), the Sec-
3 retary shall—

4 “(i) consider conservation innovations
5 and scientific and technological advance-
6 ments, including from projects developed
7 under section 1240H;

8 “(ii) allow State and local flexibility in
9 the creation of—

10 “(I) interim conservation practice
11 standards and supplements to existing
12 conservation practice standards to ad-
13 dress the considerations described in
14 clause (i); and

15 “(II) partnership-led proposals
16 for new and innovative techniques to
17 facilitate implementing agreements
18 and grants under this title;

19 “(iii) solicit regular input from State
20 technical committees established under sec-
21 tion 1261(a) for recommendations that
22 identify innovations or advancements de-
23 scribed in clause (i); and

1 “(iv) allow for public submission of
2 conservation practices for consideration as
3 interim conservation practice standards.

4 “(C) INNOVATIVE TECHNOLOGY PRI-
5 ORITY.—The Secretary shall prioritize the re-
6 view of conservation practice standards and in-
7 terim conservation practice standards under the
8 process established under subparagraph (A) for
9 the purpose of integrating innovative tech-
10 nologies, including—

11 “(i) precision agriculture technologies;

12 “(ii) biological sources of fertilizer,
13 nutrient use efficiency technologies, and
14 other tools, as determined by the Sec-
15 retary, that reduce nutrient loss;

16 “(iii) animal feed additives;

17 “(iv) perennial production systems, in-
18 cluding agroforestry and perennial forages
19 and grain crops; and

20 “(v) any other innovative technology,
21 as determined by the Secretary.

22 “(D) PUBLIC INFORMATION.—Under the
23 process established under subparagraph (A),
24 the Secretary shall make publicly available in-
25 formation describing—

1 “(i) what constitutes—

2 “(I) a conservation practice
3 standard; and

4 “(II) an interim conservation
5 practice standard;

6 “(ii) the process by which the public
7 can submit to the Secretary conservation
8 practices for consideration as interim con-
9 servation practice standards, including a
10 template and written instructions for how
11 to submit a conservation practice for con-
12 sideration;

13 “(iii) the data, metrics, third-party or
14 scientific information, and other relevant
15 information that the Secretary needs to
16 consider in the establishment of interim
17 conservation practice standards;

18 “(iv) the process by which an interim
19 conservation practice standard becomes a
20 conservation practice standard;

21 “(v) the means by which the public
22 can engage State technical committees es-
23 tablished under section 1261(a) to consider
24 interim conservation practice standards al-
25 ready in effect in other States; and

1 “(vi) such other information as the
2 Secretary determines to be appropriate.”;
3 and

4 (4) in paragraph (4)—

5 (A) in the matter preceding subparagraph
6 (A)—

7 (i) by striking “Agriculture Improve-
8 ment Act of 2018” and inserting “Agricul-
9 tural Act of 2026”; and

10 (ii) by striking “Congress a report
11 on—” and inserting “Congress and make
12 publicly available on a website of the De-
13 partment of Agriculture a report describ-
14 ing—”;

15 (B) in subparagraph (A), by inserting “a
16 detailed description of” before “the administra-
17 tive”;

18 (C) in subparagraph (B)—

19 (i) by striking “or revised”; and

20 (ii) by striking “and” at the end;

21 (D) in subparagraph (C), by striking the
22 period at the end and inserting “; and”; and

23 (E) by adding at the end the following:

24 “(D) such other information as the Sec-
25 retary determines to be appropriate with re-

1 spect to improving the process for reviewing
2 and establishing conservation practice stand-
3 ards.”.

4 **SEC. 2404. DELIVERY OF TECHNICAL ASSISTANCE.**

5 Section 1242 of the Food Security Act of 1985 (16
6 U.S.C. 3842) is amended—

7 (1) in subsection (a)—

8 (A) by redesignating paragraphs (1) and
9 (2) as paragraphs (2) and (3), respectively; and

10 (B) by inserting before paragraph (2) (as
11 so redesignated) the following:

12 “(1) APPROVED NON-FEDERAL CERTIFYING EN-
13 TITY.—The term ‘approved non-Federal certifying
14 entity’ means a non-Federal entity approved by the
15 Secretary under subsection (e)(5)(C)(ii) to perform
16 certifications of third-party providers under this sec-
17 tion.”;

18 (2) in subsection (b), by striking “science-
19 based, site-specific practices designed” and inserting
20 “timely, science-based, and site-specific practice de-
21 sign and implementation assistance”;

22 (3) in subsection (d), by inserting “(including
23 private sector entities)” after “non-Federal entities”;

24 (4) in subsection (e)—

1 (A) in paragraph (2), by striking “Food,
2 Conservation, and Energy Act of 2008” and in-
3 serting “Agricultural Act of 2026”;

4 (B) in paragraph (3)(A), by striking “en-
5 sure” and all that follows through “engineer-
6 ing,” and inserting “ensure that third-party
7 providers with expertise in the technical aspects
8 of conservation planning, watershed planning,
9 environmental engineering, conservation prac-
10 tice design, implementation, and evaluation, or
11 other technical skills, as determined by the Sec-
12 retary,”; and

13 (C) by striking paragraphs (4) and (5) and
14 inserting the following:

15 “(4) CERTIFICATION.—The Secretary shall cer-
16 tify a third-party provider through—

17 “(A) a certification process administered
18 by the Secretary, acting through the Chief of
19 the Natural Resources Conservation Service;

20 “(B) a non-Federal entity (other than a
21 State agency) approved by the Secretary to per-
22 form the certification; or

23 “(C) a State agency with statutory author-
24 ity to certify, administer, or license profes-
25 sionals in one or more fields of natural re-

1 sources, agriculture, or engineering approved by
2 the Secretary to perform the certification.

3 “(5) NON-FEDERAL CERTIFYING ENTITY PROC-
4 ESS.—

5 “(A) ESTABLISHMENT.—Not later than
6 180 days after the date of enactment of the Ag-
7 ricultural Act of 2026, the Secretary shall es-
8 tablish a process for the certification of third-
9 party providers through approved non-Federal
10 certifying entities, with the goal of increasing
11 third-party provider capacity, including the cer-
12 tification of qualified agricultural retailers, co-
13 operatives, professional societies, service pro-
14 viders, and organizations described in section
15 1265A(4)(B)(i).

16 “(B) ELIGIBILITY OF NON-FEDERAL ENTI-
17 TIES.—In determining the eligibility of an enti-
18 ty described in subparagraph (B) or (C) of
19 paragraph (4) (referred to in this paragraph as
20 a ‘non-Federal entity’) to perform certifications,
21 the Secretary shall consider—

22 “(i) the ability of the non-Federal en-
23 tity to assess qualifications of a third-party
24 provider and certify third-party providers
25 at scale;

1 “(ii) the experience of the non-Federal
2 entity in working with third-party pro-
3 viders and eligible participants;

4 “(iii) the expertise of the non-Federal
5 entity in the technical and science-based
6 aspects of conservation delivery described
7 in paragraph (3)(A);

8 “(iv) the history of the non-Federal
9 entity in working with agricultural pro-
10 ducers; and

11 “(v) such other qualifications as the
12 Secretary determines to be appropriate.

13 “(C) APPROVAL.—Not later than 60 busi-
14 ness days after the date on which the Secretary
15 receives an application submitted by a non-Fed-
16 eral entity to perform certifications of third-
17 party providers under this section, the Sec-
18 retary shall—

19 “(i) determine if the non-Federal enti-
20 ty meets the eligibility requirements estab-
21 lished under subparagraph (B); and

22 “(ii) if the Secretary makes a positive
23 determination under clause (i), approve the
24 non-Federal entity to perform certifications
25 of third-party providers under this section.

1 “(D) TIMELY DECISIONS.—Not later than
2 10 business days after the date on which the
3 Secretary receives a notification submitted by a
4 third-party provider that the third-party pro-
5 vider has been certified by an approved non-
6 Federal certifying entity to provide technical as-
7 sistance for specified practices and conservation
8 activities, the Secretary shall—

9 “(i) review the certification; and

10 “(ii) if the certification is satisfactory
11 to the Secretary, include the name of the
12 third-party provider on the registry of cer-
13 tified third-party providers maintained by
14 the Secretary.

15 “(E) DUTIES OF APPROVED NON-FEDERAL
16 CERTIFYING ENTITIES.—An approved non-Fed-
17 eral certifying entity shall—

18 “(i) assess the ability of a third-party
19 provider to appropriately provide technical
20 assistance to eligible participants for speci-
21 fied practices and conservation activities;
22 and

23 “(ii) provide to third-party providers
24 certified by the approved non-Federal cer-
25 tifying entity—

1 “(I) training to ensure that the
2 third-party providers are qualified to
3 provide the technical assistance de-
4 scribed in clause (i); and

5 “(II) continuing education, as
6 appropriate, to ensure that the third-
7 party providers are educated in the
8 most recent technical- and science-
9 based aspects of conservation delivery.

10 “(6) STREAMLINED CERTIFICATION.—Not later
11 than 180 days after the date of enactment of the
12 Agricultural Act of 2026, the Secretary shall provide
13 a streamlined certification process for a third-party
14 provider that has an appropriate specialty certifi-
15 cation, including a certified crop advisor certified by
16 the American Society of Agronomy, a professional
17 engineer, or a holder of a technical certification ap-
18 proved by the Secretary.”; and

19 (5) in subsection (f)—

20 (A) by striking paragraph (3) and insert-
21 ing the following:

22 “(3) REVIEW.—Not later than 1 year after the
23 date of enactment of the Agricultural Act of 2026,
24 and additionally thereafter at the discretion of the
25 Secretary, the Secretary shall—

1 “(A) review certification requirements for
2 third-party providers;

3 “(B) make any adjustments considered
4 necessary by the Secretary to improve participa-
5 tion and the quality and effectiveness of con-
6 servation practices implemented and adopted
7 with support from technical service providers;
8 and

9 “(C) conduct outreach to and receive input
10 from third-party providers, both that currently
11 participate in the program under this section
12 and those that no longer participate in the pro-
13 gram, and entities, organizations, and associa-
14 tions providing or supporting consultative serv-
15 ices to agriculture, livestock, and forest pro-
16 ducers to assess barriers and opportunities for
17 the use of third-party provider assistance for
18 improved conservation program delivery.”;

19 (B) in paragraph (4)(A)(i), by inserting
20 “maintenance,” after “outreach,”; and

21 (C) by striking paragraph (5) and insert-
22 ing the following:

23 “(5) PAYMENT AMOUNTS.—

24 “(A) IN GENERAL.—The Secretary shall
25 establish fair and reasonable amounts of pay-

1 ments for technical services provided by third-
2 party providers at rates equivalent to, but that
3 do not exceed, technical assistance provided by
4 the Secretary.

5 “(B) CONSIDERATIONS.—In determining
6 fair and reasonable payment amounts under
7 subparagraph (A), the Secretary shall consider
8 specialized equipment, frequency of site visits,
9 training, travel and transportation, and such
10 other factors as the Secretary determines to be
11 appropriate.

12 “(C) EXCLUSION.—A payment provided
13 under another Federal program directly to an
14 eligible participant for technical assistance pro-
15 vided by a third-party provider certified under
16 this section shall be—

17 “(i) excluded from cost-sharing re-
18 quirements under the program under
19 which the payment was provided; and

20 “(ii) equal to not more than 100 per-
21 cent of the fair and reasonable payment
22 amount for the applicable technical assist-
23 ance determined under subparagraph (B).

24 “(6) TRANSPARENCY.—Not later than 1 year
25 after the date of establishment of the processes

1 under paragraphs (5)(A) and (6) of subsection (e),
2 and routinely thereafter, the Secretary shall provide
3 accessible public information on—

4 “(A) funds obligated to third-party pro-
5 viders through—

6 “(i) contracts entered into under this
7 subtitle; and

8 “(ii) agreements with public and pri-
9 vate sector entities to secure third-party
10 technical assistance;

11 “(B) certification results, including—

12 “(i) the number of third-party pro-
13 viders certified by the Secretary;

14 “(ii) the number of approved non-
15 Federal certifying entities;

16 “(iii) the number of third-party pro-
17 viders certified through approved non-Fed-
18 eral certifying entities; and

19 “(iv) the number of third-party pro-
20 viders certified based on State agency or
21 professional association credentialing; and

22 “(C) to the maximum extent practicable,
23 the estimated number of staff hours or full-time
24 equivalents saved through work accomplished by
25 third-party providers.”.

1 **SEC. 2405. ADMINISTRATIVE REQUIREMENTS FOR CON-**
2 **SERVATION PROGRAMS.**

3 Section 1244(f) of the Food Security Act of 1985 (16
4 U.S.C. 3844(f)) is amended—

5 (1) in paragraph (1)—

6 (A) by striking the paragraph designation
7 and heading and all that follows through “The
8 Secretary” in subparagraph (A) and inserting
9 the following:

10 “(1) ENROLLMENTS.—The Secretary”; and

11 (B) by striking subparagraph (B); and

12 (2) in paragraphs (2) and (3), by striking
13 “(1)(A)” each place it appears and inserting “(1)”.

14 **SEC. 2406. TEMPORARY ADMINISTRATION OF CONSERVA-**
15 **TION PROGRAMS.**

16 (a) INTERIM ADMINISTRATION.—Subject to sub-
17 section (d), the Secretary shall use the applicable regula-
18 tions in effect on the day before the date of enactment
19 of this Act, to the extent that the terms and conditions
20 of those regulations are consistent with the amendments
21 made by this title, to carry out the programs under laws
22 as amended by this title, including—

23 (1) the conservation reserve program under
24 subchapter B of chapter 1 of subtitle D of title XII
25 of the Food Security Act of 1985 (16 U.S.C. 3831
26 et seq.) (as amended by subtitle A);

1 (2) the environmental quality incentives pro-
2 gram under subchapter A of chapter 4 of subtitle D
3 of title XII of the Food Security Act of 1985 (16
4 U.S.C. 3839aa et seq.) (as amended by subtitle B);

5 (3) the conservation stewardship program under
6 subchapter B of chapter 4 of subtitle D of title XII
7 of the Food Security Act of 1985 (16 U.S.C.
8 3839aa–21 et seq.) (as amended by subtitle C); and

9 (4) the agricultural conservation easement pro-
10 gram established under subtitle H of title XII of the
11 Food Security Act of 1985 (16 U.S.C. 3865 et seq.)
12 (as amended by subtitle E).

13 (b) REGIONAL CONSERVATION PARTNERSHIP PRO-
14 GRAM.—Notwithstanding section 1271E(e) of the Food
15 Security Act of 1985 (16 U.S.C. 3871e(e)), and subject
16 to subsection (d), for fiscal year 2027, the Secretary may
17 use an availability of program funding announcement con-
18 sistent with the amendments made by subtitle F to carry
19 out the regional conservation partnership program under
20 subtitle I of title XII of the Food Security Act of 1985
21 (16 U.S.C. 3871 et seq.) without issuing a regulation.

22 (c) FUNDING.—The Secretary may only use funds
23 authorized to be made available by this title or the amend-
24 ments made by this title for the specific programs de-
25 scribed in paragraphs (1) through (4) of subsection (a)

1 and subsection (b), in accordance with any restrictions on
2 the use of those funds, for the purposes described in sub-
3 sections (a) and (b).

4 (d) TERMINATION OF AUTHORITY.—The authority of
5 the Secretary to carry out subsections (a) and (b) shall
6 terminate 270 days after the date of enactment of this
7 Act.

8 (e) PERMANENT ADMINISTRATION.—Effective begin-
9 ning on the termination date described in subsection (d),
10 the Secretary shall carry out this title and the amend-
11 ments made by this title in accordance with such final reg-
12 ulations as the Secretary considers necessary to carry out
13 this title and the amendments made by this title.

14 **Subtitle E—Agricultural**
15 **Conservation Easement Program**

16 **SEC. 2501. DEFINITIONS.**

17 (a) IN GENERAL.—Section 1265A of the Food Secu-
18 rity Act of 1985 (16 U.S.C. 3865a) is amended—

19 (1) in paragraph (2)—

20 (A) in subparagraph (A)—

21 (i) in clause (i)—

22 (I) by striking “an eligible enti-
23 ty” the first place it appears and in-
24 serting “one or more eligible entities”;
25 and

1 (II) by striking “an eligible entity
2 owns or is” and inserting “one or
3 more of those eligible entities own or
4 are”;

5 (ii) in clause (ii)—

6 (I) in the matter preceding sub-
7 clause (I), by striking “the eligible en-
8 tity certifies to the Secretary that
9 the” and inserting “each eligible enti-
10 ty certifies to the Secretary that an”;

11 (II) in subclause (I)—

12 (aa) by striking the sub-
13 clause designation and all that
14 follows through “hold” in item
15 (bb) and inserting the following:

16 “(I) hold”;

17 (bb) by striking “transfer
18 ownership of the land” and in-
19 serting “ownership of the land
20 will be transferred”; and

21 (cc) by striking “and” at the
22 end;

23 (III) in subclause (II), by insert-
24 ing “that owns the land subject to the
25 agricultural land easement held by an-

1 other eligible entity” after “eligible
2 entity”; and

3 (IV) by adding at the end the fol-
4 lowing:

5 “(III) at no time hold both an
6 agricultural land easement and owner-
7 ship of the land subject to that agri-
8 cultural land easement; and”; and

9 (iii) in clause (iii), by striking “by the
10 eligible entity” and all that follows through
11 the period at the end and inserting “by
12 one or more eligible entities if such an eli-
13 gible entity fails to transfer ownership
14 under clause (ii).”; and

15 (B) in subparagraph (B), by striking
16 “(A)(ii)(I)(bb)” and inserting “(A)(ii)(I”;

17 (2) by redesignating paragraphs (3) through
18 (7) as paragraphs (4) through (8), respectively;

19 (3) by inserting after paragraph (2) the fol-
20 lowing:

21 “(3) BUY-SELL-PROTECT TRANSACTION.—The
22 term ‘buy-sell-protect transaction’ means a legal ar-
23 rangement—

24 “(A) between one or more eligible entities
25 and the Secretary relating to land that one or

1 more of those eligible entities own or are going
2 to purchase prior to acquisition of an agricul-
3 tural land easement; and

4 “(B) under which each eligible entity cer-
5 tifies to the Secretary that an eligible entity
6 shall hold an agricultural land easement on that
7 land, but ownership of the land will be trans-
8 ferred to a farmer or rancher that is not an eli-
9 gible entity prior to or on acquisition of the ag-
10 ricultural land easement.”; and

11 (4) in paragraph (5) (as so redesignated), in
12 subparagraph (A)(i)—

13 (A) in subclause (I), by striking “or” at
14 the end;

15 (B) in subclause (II), by adding “or” at
16 the end; and

17 (C) by adding at the end the following:

18 “(III) a buy-sell-protect trans-
19 action;”.

20 (b) CONFORMING AMENDMENT.—Section
21 1271A(4)(I) of the Food Security Act of 1985 (16 U.S.C.
22 3871a(4)(I)) is amended by striking “1265A(3)(B)” and
23 inserting “1265A(4)(B)”.

1 **SEC. 2502. AGRICULTURAL LAND EASEMENTS.**

2 (a) AVAILABILITY OF ASSISTANCE.—Section
3 1265B(a) of the Food Security Act of 1985 (16 U.S.C.
4 3865b(a)) is amended—

5 (1) in paragraph (2), by striking “and” at the
6 end;

7 (2) in paragraph (3), by striking the period at
8 the end and inserting “; and”; and

9 (3) by adding at the end the following:

10 “(4) buy-sell-protect transactions.”.

11 (b) COST-SHARE ASSISTANCE.—Section 1265B(b) of
12 the Food Security Act of 1985 (16 U.S.C. 3865b(b)) is
13 amended—

14 (1) in paragraph (2)—

15 (A) in subparagraph (A), in the matter
16 preceding clause (i), by striking “50 percent”
17 and inserting “60 percent, except as provided in
18 subparagraph (B)(ii)(I),”;

19 (B) in subparagraph (B)—

20 (i) in clause (i), by striking “that is at
21 least equivalent to that provided by the
22 Secretary” and inserting “of not less than
23 40 percent, except as provided in clause
24 (ii)(II), of the fair market value of the ag-
25 ricultural land easement”; and

26 (ii) in clause (ii)—

1 (I) by striking “Secretary, the
2 Secretary” and inserting the fol-
3 lowing: “Secretary—

4 “(I) the Secretary”;

5 (II) in subclause (I) (as so des-
6 ignated)—

7 (aa) by striking “75 per-
8 cent” and inserting “80 per-
9 cent”; and

10 (bb) by striking the period
11 at the end and inserting “; and”;
12 and

13 (III) by adding at the end the
14 following:

15 “(II) the eligible entity shall pro-
16 vide a share that is not less than 20
17 percent of the fair market value of the
18 agricultural land easement.”; and

19 (C) by adding at the end the following:

20 “(C) LOWER COST-SHARE OPTION.—

21 “(i) IN GENERAL.—Notwithstanding
22 paragraph (4)(C)(iii), an eligible entity
23 may elect to enter into an agreement under
24 paragraph (4) in which the terms and con-
25 ditions of the agricultural land easement

1 funded under the agreement do not include
2 a right of enforcement for the Secretary if
3 the eligible entity agrees to a Federal
4 share that does not exceed 25 percent of
5 the fair market value of the agricultural
6 land easement, as determined by the Sec-
7 retary under subparagraph (A).

8 “(ii) MINIMUM TERMS AND CONDI-
9 TIONS.—Under an agreement described in
10 clause (i), an eligible entity shall be au-
11 thorized to use its own terms and condi-
12 tions for agricultural land easements so
13 long as the Secretary determines such
14 terms and conditions—

15 “(I) are consistent with the pur-
16 poses of the program; and

17 “(II) permit effective enforce-
18 ment of the conservation purposes of
19 such easements.

20 “(iii) ENTITY ENFORCEMENT.—Under
21 an agreement described in clause (i), the
22 Secretary shall require the terms and con-
23 ditions for the agricultural land easement
24 to include a right of enforcement for the
25 eligible entity.

1 “(iv) CASH CONTRIBUTION.—Under
2 an agreement described in clause (i), the
3 eligible entity shall provide cash resources
4 in an amount that is not less than 50 per-
5 cent of the fair market value of the agri-
6 cultural land easement, as determined by
7 the Secretary under subparagraph (A).”;
8 and

9 (2) by striking paragraph (5) and inserting the
10 following:

11 “(5) CERTIFICATION OF ELIGIBLE ENTITIES.—

12 “(A) CERTIFICATION PURPOSE.—The pur-
13 pose of the certification of eligible entities
14 under this paragraph is—

15 “(i) to minimize administrative bur-
16 dens on the Secretary; and

17 “(ii) to recognize the ability of experi-
18 enced eligible entities to carry out the pur-
19 poses of the program with minimal over-
20 sight by the Secretary.

21 “(B) CERTIFICATION PROCESS.—The Sec-
22 retary shall establish a process under which the
23 Secretary—

1 “(i) directly certifies eligible entities
2 that meet established criteria described in
3 subparagraph (C) or (D);

4 “(ii) enters into long-term agreements
5 with certified eligible entities;

6 “(iii) accepts proposals for cost-share
7 assistance for the purchase of agricultural
8 land easements throughout the duration of
9 such agreements;

10 “(iv) allows a certified eligible entity
11 to use its own terms and conditions, not-
12 withstanding paragraph (4)(C), as long as
13 the terms and conditions are consistent
14 with the purposes of the program;

15 “(v) may allow a certified eligible enti-
16 ty to include the minimum deed terms es-
17 tablished by the Secretary under para-
18 graph (4)(C); and

19 “(vi) may allow a certified eligible en-
20 tity to assist a non-certified eligible entity
21 in the purchase and stewardship of an ag-
22 ricultural land easement.

23 “(C) CERTIFICATION CRITERIA FOR ELIGI-
24 BLE ENTITIES.—To be certified through the
25 process established under subparagraph (B), an

1 eligible entity shall demonstrate to the Sec-
2 retary that the eligible entity—

3 “(i) will maintain, at a minimum, for
4 the duration of the agreement and the du-
5 ration of each agricultural land easement
6 acquired under the agreement—

7 “(I) a plan for administering ag-
8 ricultural land easements that is con-
9 sistent with the purpose of the pro-
10 gram;

11 “(II) the capacity and resources
12 to monitor and enforce agricultural
13 land easements consistent with the
14 purposes of the program; and

15 “(III) policies and procedures to
16 ensure—

17 “(aa) the long-term integrity
18 of agricultural land easements on
19 eligible land consistent with the
20 purposes of the program;

21 “(bb) timely completion of
22 acquisitions of such agricultural
23 land easements;

24 “(cc) timely and complete
25 evaluation and reporting to the

1 Secretary on the use of funds
2 provided under the program; and

3 “(dd) compliance with pro-
4 gram requirements, including
5 timely notification to the Sec-
6 retary required under the pro-
7 gram, such as notifications of de-
8 minimis adjustments in accord-
9 ance with section
10 1265D(c)(6)(B); and

11 “(ii) has—

12 “(I) acquired not fewer than 10
13 agricultural land easements under the
14 program or any predecessor program;
15 and

16 “(II) successfully met the respon-
17 sibilities of the eligible entity under
18 the applicable agreements with the
19 Secretary, as determined by the Sec-
20 retary, relating to agricultural land
21 easements that the eligible entity has
22 acquired under the program or any
23 predecessor program.

24 “(D) EXPEDITED CERTIFICATION OF PUB-
25 LIC ENTITIES AND ACCREDITED LAND

1 TRUSTS.—The Secretary may certify an eligible
2 entity using an expedited certification process
3 under subparagraph (B) if the eligible entity
4 demonstrates that it—

5 “(i) is—

6 “(I) accredited by the Land
7 Trust Accreditation Commission, or
8 by an equivalent accrediting body, as
9 determined by the Secretary; or

10 “(II) a public agency with statu-
11 tory authority for farm and ranchland
12 protection;

13 “(ii) has acquired not fewer than 5
14 agricultural land easements under the pro-
15 gram or any predecessor program;

16 “(iii) has successfully met the respon-
17 sibilities of the eligible entity under the ap-
18 plicable agreements with the Secretary, as
19 determined by the Secretary, relating to
20 agricultural land easements that the eligi-
21 ble entity has acquired under the program
22 or any predecessor program; and

23 “(iv) meets the requirements of sub-
24 paragraph (C)(i).

1 “(E) APPLICABILITY TO REGIONAL CON-
2 SERVATION PARTNERSHIP PROGRAM.—The cer-
3 tification of an eligible entity under this para-
4 graph, and the authorities under this paragraph
5 resulting from that certification, shall apply to
6 the establishment by the eligible entity of ease-
7 ments under the regional conservation partner-
8 ship program under subtitle I.

9 “(F) REVIEW; REVOCATION.—

10 “(i) REVIEW.—

11 “(I) IN GENERAL.—The Sec-
12 retary shall conduct a review of eligi-
13 ble entities certified under subpara-
14 graph (B) every 3 years to ensure
15 that such entities are meeting the cri-
16 teria established under subparagraphs
17 (C) and (D).

18 “(II) DE MINIMIS ADJUST-
19 MENTS.—Each review under subclause
20 (I) shall include a review of any de
21 minimis adjustments made by each
22 certified eligible entity under section
23 1265D(c)(6)(B), including a review of
24 whether timely notification of each de
25 minimis adjustment was made to the

1 Secretary in accordance with clause
2 (iii)(I) of that section.

3 “(ii) REVOCATION.—If the Secretary
4 finds that a certified eligible entity no
5 longer meets the criteria established under
6 subparagraph (C) or (D), as applicable,
7 the Secretary may—

8 “(I) allow the certified eligible
9 entity a specified period of time, at a
10 minimum 180 days, in which to take
11 such actions as may be necessary to
12 meet the criteria; and

13 “(II) revoke the certification of
14 the eligible entity, if, after the speci-
15 fied period of time, the certified eligi-
16 ble entity does not meet such cri-
17 teria.”.

18 **SEC. 2503. WETLAND RESERVE EASEMENTS.**

19 Section 1265C of the Food Security Act of 1985 (16
20 U.S.C. 3865c) is amended—

21 (1) in subsection (b)(1)(C), by striking “; or”
22 and inserting “; and”;

23 (2) by striking “subsection (f)” each place it
24 appears and inserting “subsection (g)”;

1 (3) in subsection (c)(1), by inserting “technical
2 and” before “financial”;

3 (4) by redesignating subsections (e) through (g)
4 as subsections (f) through (h), respectively; and

5 (5) by striking subsection (d) and inserting the
6 following:

7 “(d) EASEMENT STEWARDSHIP.—

8 “(1) IN GENERAL.—Using amounts made avail-
9 able to carry out the program, the Secretary shall,
10 with respect to eligible land enrolled under this sec-
11 tion—

12 “(A) regularly assess and monitor the en-
13 rolled land;

14 “(B) provide technical and financial assist-
15 ance for the repair, necessary maintenance, and
16 enhancement activities described in the wetland
17 reserve easement plan developed for the eligible
18 land under subsection (g)(1); and

19 “(C) create and execute a 5-year steward-
20 ship plan for assessment, capacity, and per-
21 formance, ensuring the monitoring, repair,
22 maintenance, and enhancement activities de-
23 scribed in subparagraphs (A) and (B) are com-
24 pleted to ensure wetland reserve easements ful-
25 fill the purposes of—

1 “(i) the program; and

2 “(ii) the wetland reserve easement
3 plans described in subparagraph (B).

4 “(2) PAYMENTS.—In carrying out this sub-
5 section, the Secretary shall make payments in
6 amounts that are not more than 100 percent of the
7 eligible costs, as determined by the Secretary.

8 “(3) REPORT.—Not later than December 31,
9 2028, the Secretary shall submit to the Committee
10 on Agriculture of the House of Representatives and
11 the Committee on Agriculture, Nutrition, and For-
12 estry of the Senate a report describing—

13 “(A) an inventory of the existing steward-
14 ship needs of all wetland reserve easements;

15 “(B) a plan to address the stewardship
16 needs described in that inventory;

17 “(C) the amounts the Secretary will allo-
18 cate to address those stewardship needs; and

19 “(D) the planned use of compatible uses
20 under subsection (b)(5)(C), contracts or agree-
21 ments under subsection (e)(2), or wetland re-
22 serve easement plans under subsection (g)(1) to
23 ensure that each of those stewardship needs is
24 addressed.

25 “(e) ASSISTANCE.—

1 “(1) IN GENERAL.—The Secretary shall assist
2 owners in complying with the terms and conditions
3 of a wetland reserve easement.

4 “(2) CONTRACTS OR AGREEMENTS.—The Sec-
5 retary may enter into 1 or more contracts or agree-
6 ments with a Federal, State, or local government
7 agency, nongovernmental organization, Indian Tribe
8 or Tribal organization, or private entity to carry out
9 necessary restoration, enhancement, maintenance,
10 repair, assessment, or monitoring of a wetland re-
11 serve easement if the Secretary determines that the
12 contract or agreement will advance the purposes of
13 the program.”.

14 **SEC. 2504. ADMINISTRATION.**

15 Section 1265D(c) of the Food Security Act of 1985
16 (16 U.S.C. 3865d(c)) is amended by adding at the end
17 the following:

18 “(6) DE MINIMIS ADJUSTMENTS.—

19 “(A) IN GENERAL.—The Secretary may
20 approve and make a de minimis adjustment, as
21 determined by the Secretary and subject to con-
22 ditions determined by the Secretary, to any in-
23 terest in land, or portion of such interest, ad-
24 ministered by the Secretary, directly or on be-
25 half of the Commodity Credit Corporation,

1 under the program if the Secretary determines
2 that the adjustment—

3 “(i) increases conservation values or
4 has a neutral or limited negative effect on
5 conservation values;

6 “(ii) is in the public interest or fur-
7 thers the practical administration of the
8 program; and

9 “(iii) is not a subordination, modifica-
10 tion, exchange, or termination, as deter-
11 mined by the Secretary.

12 “(B) DE MINIMIS ADJUSTMENTS BY CER-
13 TIFIED ELIGIBLE ENTITIES.—

14 “(i) IN GENERAL.—The Secretary
15 may authorize an eligible entity certified
16 under section 1265B(b)(5) that has dem-
17 onstrated the ability to make easement
18 management decisions consistent with the
19 purposes of the program to approve and
20 make de minimis adjustments described in
21 clause (ii) to any interest in eligible land
22 held by the certified eligible entity if the
23 certified eligible entity determines that the
24 adjustment—

1 “(I) increases conservation values
2 or has a neutral or limited negative
3 effect on conservation values;

4 “(II) is consistent with the pro-
5 gram purposes for which the interest
6 was originally acquired and furthers
7 the practical administration of the
8 program;

9 “(III) is not made to resolve a
10 violation or a potential violation; and

11 “(IV) is not made with respect to
12 an easement that is co-held by the
13 United States.

14 “(ii) TYPES OF DE MINIMIS ADJUST-
15 MENTS.—The de minimis adjustments re-
16 ferred to in clause (i) are limited to—

17 “(I) title corrections;

18 “(II) corrections of typographical
19 errors;

20 “(III) changes in legal descrip-
21 tions as a result of minor survey or
22 mapping errors;

23 “(IV) changes to the boundary of
24 one or more building envelopes that
25 do not result in an increase in the

1 total number of building envelopes or
2 that will result in an increase in the
3 total area of the original building en-
4 velope boundary; and

5 “(V) relocation of easement ac-
6 cess.

7 “(iii) NOTIFICATION.—

8 “(I) IN GENERAL.—Not later
9 than 30 days after the date on which
10 a certified eligible entity records a de
11 minimis adjustment under clause (i),
12 the certified eligible entity shall pro-
13 vide to the Secretary a notice of the
14 de minimis adjustment and a copy of
15 the recorded instrument.

16 “(II) FAILURE TO COMPLY.—If
17 an eligible entity fails to comply with
18 subclause (I), the Secretary may—

19 “(aa) immediately revoke
20 the certification of the eligible en-
21 tity under section 1265B(b)(5);
22 and

23 “(bb) pursue any other rem-
24 edies available to the Secretary.

1 “(iv) RULE OF CONSTRUCTION.—
2 Nothing in this subparagraph requires the
3 Secretary to determine whether each eligi-
4 ble entity seeking certification under sec-
5 tion 1265B(b)(5) meets the requirements
6 to make de minimis adjustments under
7 this subparagraph.”.

8 **SEC. 2505. ADJUSTED GROSS INCOME LIMITATION.**

9 (a) EXEMPTION.—Section 1265D of the Food Secu-
10 rity Act of 1985 (16 U.S.C. 3865d) is amended by adding
11 at the end the following:

12 “(f) ADJUSTED GROSS INCOME EXEMPTION.—The
13 adjusted gross income limitation described in section
14 1001D(b)(1) shall not apply to any payment or other as-
15 sistance under this subtitle.”.

16 (b) CALCULATION.—Section 1001D(b) of the Food
17 Security Act of 1985 (7 U.S.C. 1308–3a(b)) is amended
18 by adding at the end the following:

19 “(5) EXCEPTION FOR COMPENSATION UNDER
20 ACEP.—For purposes of this subsection, the ad-
21 justed gross income of a person or legal entity that
22 is a landowner of eligible land (as defined in section
23 1265A) shall not include any income received as
24 compensation for the acquisition of an agricultural

1 land easement or a wetland reserve easement on that
2 eligible land under subtitle H of title XII.”.

3 **Subtitle F—Regional Conservation**
4 **Partnership Program**

5 **SEC. 2601. ESTABLISHMENT AND PURPOSES.**

6 Section 1271(b) of the Food Security Act of 1985
7 (16 U.S.C. 3871(b)) is amended by striking paragraph (2)
8 and inserting the following:

9 “(2) To address natural resource concerns on
10 eligible land on a regional or watershed scale, includ-
11 ing—

12 “(A) the conservation, protection, restora-
13 tion, and sustainable use of soil;

14 “(B) the conservation and protection of
15 water, including sources of drinking water and
16 groundwater;

17 “(C) the prevention and mitigation of the
18 effects of flooding and drought, and the im-
19 provement or expansion of flood resiliency; and

20 “(D) the conservation of wildlife, agricul-
21 tural land, and related natural resources.”.

22 **SEC. 2602. DEFINITIONS.**

23 Section 1271A of the Food Security Act of 1985 (16
24 U.S.C. 3871a) is amended—

25 (1) in paragraph (1)—

1 (A) by striking subparagraph (E); and

2 (B) by redesignating subparagraph (F) as
3 subparagraph (E); and

4 (2) in paragraph (4), by adding at the end the
5 following:

6 “(K) An agricultural retailer (including an
7 agrichemical business and a farm retail outlet
8 or supplier).”.

9 **SEC. 2603. REGIONAL CONSERVATION PARTNERSHIPS.**

10 Section 1271B of the Food Security Act of 1985 (16
11 U.S.C. 3871b) is amended—

12 (1) by striking subsection (a) and inserting the
13 following:

14 “(a) PARTNERSHIP AGREEMENTS AUTHORIZED.—

15 “(1) IN GENERAL.—The Secretary may enter
16 into a partnership agreement with an eligible part-
17 ner to implement a project that will assist producers
18 with installing and maintaining an eligible activity
19 on eligible land.

20 “(2) STREAMLINING REQUIRED.—The Sec-
21 retary shall ensure that a partnership agreement
22 under paragraph (1)—

23 “(A) is entered into not later than 180
24 days after the date on which an application is
25 selected under subsection (e); and

1 “(B) contains only the information de-
2 scribed under subsections (c) and (d) necessary
3 to fund and carry out the project to be imple-
4 mented under the partnership agreement.”;
5 (2) in subsection (c)(2), by adding at the end
6 the following:

7 “(D) OTHER PROGRAMS.—Notwith-
8 standing any other provision of law, a contribu-
9 tion of an eligible partner under this paragraph
10 may be used to satisfy matching or cost partici-
11 pation requirements under another Federal pro-
12 gram (other than another Department of Agri-
13 culture program) or non-Federal program.”;
14 (3) in subsection (d)—

15 (A) by striking paragraphs (4) and (5);

16 (B) by redesignating paragraph (3) as
17 paragraph (4);

18 (C) by inserting after paragraph (2) the
19 following:

20 “(3) make covered program authorities, such as
21 entity certification under section 1265B(b)(5), avail-
22 able in the implementation of a partnership agree-
23 ment; and”;

1 (D) in paragraph (4) (as so redesignated),
2 by striking the semicolon at the end and insert-
3 ing a period; and
4 (4) in subsection (e)(4)(D), by inserting “Trib-
5 al,” after “State,”.

6 **SEC. 2604. ASSISTANCE TO PRODUCERS.**

7 (a) PAYMENTS TO CERTAIN PRODUCERS.—

8 (1) IN GENERAL.—Section 1271C(c) of the
9 Food Security Act of 1985 (16 U.S.C. 3871c(c)) is
10 amended—

11 (A) by redesignating paragraph (3) as
12 paragraph (5); and

13 (B) by inserting after paragraph (2) the
14 following:

15 “(3) ADVANCE PAYMENTS TO PRODUCERS.—

16 “(A) IN GENERAL.—On an election by a
17 producer, the Secretary may provide an advance
18 payment for costs related to purchasing mate-
19 rials or contracting associated with imple-
20 menting an eligible activity.

21 “(B) RETURN OF FUNDS.—If the funds
22 provided under subparagraph (A) are not ex-
23 pended within 90 days, the Secretary may—

24 “(i) determine that the producer is in
25 violation of the program contract; and

1 “(ii) require the funds to be returned
2 within a reasonable period, as determined
3 by the Secretary.

4 “(4) ADVANCE PAYMENTS TO ELIGIBLE PART-
5 NERS.—

6 “(A) IN GENERAL.—On an election by an
7 eligible partner, the Secretary may provide an
8 advance payment to the eligible partner related
9 to project implementation, as provided in the
10 partnership agreement, including an alternative
11 funding arrangement under subsection (d)(1).

12 “(B) TIMEFRAME.—If the funds provided
13 under subparagraph (A) are not expended with-
14 in the period specified in the partnership agree-
15 ment, but not more than 120 days, the Sec-
16 retary shall not provide any additional advance
17 payment under that paragraph until the eligible
18 partner demonstrates the ability to expend the
19 funds within the applicable period.

20 “(C) RETURN OF FUNDS.—The Secretary
21 may determine that an eligible partner is in vio-
22 lation of the partnership agreement and require
23 the funds to be returned within a reasonable
24 period, as determined by the Secretary, if the
25 eligible partner—

1 “(i) fails to expend the funds within
2 the applicable period; or

3 “(ii) otherwise fails to manage any
4 funds in accordance with the terms of the
5 partnership agreement.”.

6 (2) CONFORMING AMENDMENT.—Section
7 1241(i)(2)(B) of the Food Security Act of 1985 (16
8 U.S.C. 3841(i)(2)(B)) is amended by striking
9 “1271C(c)(3)” and inserting “1271C(c)(5)”.

10 (b) FUNDING THROUGH ALTERNATIVE FUNDING
11 ARRANGEMENTS.—Section 1271C(d) of the Food Security
12 Act of 1985 (16 U.S.C. 3871c(d)) is amended—

13 (1) in the subsection heading, by striking “OR
14 GRANT AGREEMENTS”;

15 (2) in paragraph (1), by striking “or grant”;

16 (3) in paragraph (2)(B), by striking “or grant
17 agreements”; and

18 (4) in paragraph (3)(A)(iii)—

19 (A) in subclause (I), by striking “and” at
20 the end;

21 (B) in subclause (II), by striking “or” at
22 the end and inserting “and”; and

23 (C) by adding at the end the following:

1 “(III) agricultural equipment and
2 processing that can help scale con-
3 servation benefits; and”.

4 **SEC. 2605. FUNDING.**

5 Section 1271D of the Food Security Act of 1985 (16
6 U.S.C. 3871d) is amended—

7 (1) by redesignating subsection (e) as sub-
8 section (f);

9 (2) by striking subsection (d) and inserting the
10 following:

11 “(d) FEDERAL SHARE.—Of the funds made available
12 under subsection (a), no single project shall receive a Fed-
13 eral share of funds greater than \$15,000,000.

14 “(e) LIMITATION ON ADMINISTRATIVE EXPENSES.—

15 “(1) IN GENERAL.—The Secretary may provide
16 to an eligible partner a payment for indirect costs to
17 cover administrative expenses of the eligible partner
18 under a partnership agreement.

19 “(2) RATE.—The rate of a payment for indirect
20 costs under paragraph (1) shall be—

21 “(A) an indirect cost rate negotiated by
22 the Secretary and the eligible partner, which
23 shall not exceed 15 percent; or

1 “(B) if the eligible partner does not have
2 a negotiated indirect cost rate described in sub-
3 paragraph (A), 10 percent.”; and
4 (3) in subsection (f) (as so redesignated)—

5 (A) by striking paragraphs (1) and (2) and
6 inserting the following:

7 “(1) IN GENERAL.—

8 “(A) NO SEPARATE AGREEMENTS.—The
9 Secretary shall not require an eligible partner
10 to enter into an agreement separate from the
11 partnership agreement to provide technical as-
12 sistance to producers.

13 “(B) AUTHORIZATION.—An eligible part-
14 ner may provide technical assistance to pro-
15 ducers as needed to support project planning
16 and implementation for conservation benefits.

17 “(2) LIMITATIONS.—

18 “(A) IN GENERAL.—The Secretary shall
19 limit costs of the Secretary for technical assist-
20 ance to costs specific and necessary to carry out
21 the objectives of the program.

22 “(B) TECHNICAL ASSISTANCE BY THE
23 SECRETARY.—The Secretary shall not use
24 amounts provided under a partnership agree-
25 ment for technical assistance provided by the

1 Secretary without providing explicit notification
2 to the eligible partner.

3 “(C) TECHNICAL ASSISTANCE BY ELIGIBLE
4 PARTNERS.—The Federal share of the cost of
5 technical assistance provided by an eligible
6 partner shall be not more than 30 percent of
7 the total cost of the project.”; and

8 (B) in paragraph (3), by striking “pursu-
9 ant to a partnership agreement” and inserting
10 “and producers participating in the program”.

11 **SEC. 2606. CRITICAL CONSERVATION AREAS.**

12 Section 1271F of the Food Security Act of 1985 (16
13 U.S.C. 3871f) is amended—

14 (1) in subsection (a)(2)—

15 (A) in the matter preceding subparagraph
16 (A), by inserting “or substantially affecting”
17 after “located in”; and

18 (B) in subparagraph (C), by inserting “,
19 including restoration and enhancement of wild-
20 life habitat connectivity and wildlife migration
21 corridors” after “local level”; and

22 (2) in subsection (b), by striking “In admin-
23 istering funds under section 1271D(d)(2), the Sec-
24 retary” and inserting “The Secretary”.

1 **Subtitle G—Forest Conservation**
2 **Easement Program**

3 **SEC. 2701. FOREST CONSERVATION EASEMENT PROGRAM.**

4 (a) IN GENERAL.—Title XII of the Food Security
5 Act of 1985 (16 U.S.C. 3801 et seq.) is amended—

6 (1) by redesignating subtitle I (16 U.S.C. 3871
7 et seq.) as subtitle J; and

8 (2) by inserting after subtitle H (16 U.S.C.
9 3865 et seq.) the following:

10 **“Subtitle I—Forest Conservation**
11 **Easement Program**

12 **“SEC. 1267. DEFINITIONS.**

13 “In this subtitle:

14 “(1) ACREAGE OWNED BY AN INDIAN TRIBE.—

15 The term ‘acreage owned by an Indian Tribe’
16 means—

17 “(A) land that is held in trust by the
18 United States for an Indian Tribe or individual
19 Indian;

20 “(B) land the title to which is held by an
21 Indian Tribe or individual Indian, subject to a
22 Federal restriction against alienation or encum-
23 brance;

1 “(C) land that is subject to rights of use,
2 occupancy, and benefit of 1 or more Indian
3 Tribes;

4 “(D) land that is held in fee title by an In-
5 dian Tribe;

6 “(E) land that is owned by a Native cor-
7 poration established under—

8 “(i) section 17 of the Act of June 18,
9 1934 (commonly known as the ‘Indian Re-
10 organization Act’) (25 U.S.C. 5124); or

11 “(ii) section 8 of the Alaska Native
12 Claims Settlement Act (43 U.S.C. 1607);
13 and

14 “(F) any combination of 1 or more types
15 of land described in subparagraphs (A) through
16 (E).

17 “(2) ELIGIBLE ENTITY.—The term ‘eligible en-
18 tity’ means—

19 “(A) an agency of State or local govern-
20 ment or an Indian Tribe (including a land re-
21 source council established under State law); and

22 “(B) an organization that is—

23 “(i) organized for, and at all times
24 since the formation of the organization has
25 been operated principally for, 1 or more of

1 the conservation purposes specified in
2 clause (i), (ii), (iii), or (iv) of section
3 170(h)(4)(A) of the Internal Revenue Code
4 of 1986;

5 “(ii) an organization described in sec-
6 tion 501(c)(3) of that Code that is exempt
7 from taxation under section 501(a) of that
8 Code; or

9 “(iii) described in—
10 “(I) paragraph (1) or (2) of sec-
11 tion 509(a) of that Code; or

12 “(II) section 509(a)(3) of that
13 Code, and is controlled by an organi-
14 zation described in section 509(a)(2)
15 of that Code.

16 “(3) ELIGIBLE LAND.—The term ‘eligible land’
17 means private land or acreage owned by an Indian
18 Tribe—

19 “(A) that is—

20 “(i) forest land; or

21 “(ii) being restored to forest land;

22 “(B) in the case of a forest land ease-
23 ment—

1 “(i) the enrollment of which would
2 protect working forests and related con-
3 servation values by conserving land; or

4 “(ii) the protection of which will fur-
5 ther a State or local policy in accordance
6 with the purposes of the Program; and

7 “(C) in the case of a forest reserve ease-
8 ment, the enrollment of which will maintain, re-
9 store, enhance, or otherwise measurably—

10 “(i) increase the likelihood of recovery
11 of a species that is listed as endangered or
12 threatened under section 4 of the Endan-
13 gered Species Act of 1973 (16 U.S.C.
14 1533); or

15 “(ii) improve the well-being of a spe-
16 cies that—

17 “(I) is not listed as endangered
18 or threatened under that section; but

19 “(II)(aa) is a candidate for that
20 listing or listing as a State-listed spe-
21 cies or a species of special concern; or

22 “(bb) is designated by a State
23 wildlife action plan as a species of
24 greatest conservation need.

1 “(4) FOREST LAND EASEMENT.—The term ‘for-
2 est land easement’ means an easement or other in-
3 terest in eligible land that—

4 “(A) is conveyed to an eligible entity for
5 the purpose of protecting the natural resources
6 and forest nature of the eligible land; and

7 “(B) permits the landowner the right to
8 continue working forest production and related
9 uses, in accordance with an applicable forest
10 management plan.

11 “(5) FOREST MANAGEMENT PLAN.—The term
12 ‘forest management plan’ means—

13 “(A) a forest stewardship plan described in
14 section 5(f) of the Cooperative Forestry Assist-
15 ance Act of 1978 (16 U.S.C. 2103a(f));

16 “(B) a forest plan approved by the applica-
17 ble State forester or State forestry agency;

18 “(C) a forest plan developed under a third-
19 party certification system determined appro-
20 priate by the Secretary; and

21 “(D) any other plan determined appro-
22 priate by the Secretary.

23 “(6) FOREST RESERVE EASEMENT.—The term
24 ‘forest reserve easement’ means an easement or
25 other interest in eligible land that—

1 “(A) is conveyed by the landowner to the
2 Secretary for the purpose of protecting the nat-
3 ural resources and forest nature of the eligible
4 land; and

5 “(B) permits the landowner the right to
6 continue working forest production and related
7 uses, in accordance with the applicable forest
8 reserve easement plan developed under section
9 1267C(e)(1).

10 “(7) PROGRAM.—The term ‘Program’ means
11 the Forest Conservation Easement Program estab-
12 lished under section 1267A(a).

13 “(8) SOCIALLY DISADVANTAGED FOREST LAND-
14 OWNER.—The term ‘socially disadvantaged forest
15 landowner’ means a forest landowner who is a mem-
16 ber of a socially disadvantaged group (as defined in
17 section 2501(a) of the Food, Agriculture, Conserva-
18 tion, and Trade Act of 1990 (7 U.S.C. 2279(a))).

19 **“SEC. 1267A. ESTABLISHMENT AND PURPOSES.**

20 “(a) ESTABLISHMENT.—The Secretary shall estab-
21 lish a program, to be known as the ‘Forest Conservation
22 Easement Program’, for the conservation and restoration
23 of eligible land and natural resources through the acqui-
24 sition of forest land easements or forest reserve easements.

1 “(b) PURPOSES.—The purposes of the Program
2 are—

3 “(1) to protect the viability and sustainability
4 of working forests and related conservation values of
5 eligible land and limit the negative effects of non-
6 forest uses;

7 “(2) to protect and enhance forest ecosystem
8 and landscape functions and values;

9 “(3) to promote the restoration, protection, and
10 improvement of habitats of species that are threat-
11 ened, endangered, or otherwise at-risk; and

12 “(4) to carry out the purposes and functions of
13 the healthy forests reserve program established
14 under title V of the Healthy Forests Restoration Act
15 of 2003 (16 U.S.C. 6571 et seq.) (as in effect on the
16 day before the date of enactment of this section).

17 **“SEC. 1267B. FOREST LAND EASEMENTS.**

18 “(a) AUTHORIZATION.—As part of the Program, the
19 Secretary shall facilitate and provide funding in accord-
20 ance with this section for—

21 “(1) the purchase by eligible entities of forest
22 land easements on eligible land;

23 “(2) the development of forest management
24 plans; and

1 “(3) technical assistance to implement this sec-
2 tion.

3 “(b) APPLICATIONS.—

4 “(1) IN GENERAL.—To be eligible to receive as-
5 sistance under this section, an eligible entity shall
6 submit to the Secretary an application at such time,
7 in such manner, and containing such information as
8 the Secretary may require.

9 “(2) CRITERIA.—

10 “(A) IN GENERAL.—The Secretary shall
11 establish evaluation and ranking criteria with
12 respect to applications submitted under this
13 subsection to maximize the benefit of Federal
14 investments under the Program.

15 “(B) CONSIDERATIONS.—In establishing
16 the criteria under subparagraph (A), the Sec-
17 retary shall emphasize support for—

18 “(i) protecting working forests and re-
19 lated conservation values of eligible land;

20 “(ii) reducing fragmentation of forest
21 land; and

22 “(iii) maximizing the areas protected
23 from conversion to nonforest uses.

24 “(3) PRIORITY.—In evaluating applications
25 under this subsection, the Secretary shall give pri-

1 ority to an application for the purchase of a forest
2 land easement—

3 “(A) that maintains the viability of a
4 working forest, as determined by the Secretary;
5 and

6 “(B) on eligible land for which a forest
7 management plan has been developed at the
8 time of application.

9 “(4) FOREST MANAGEMENT PLAN.—

10 “(A) IN GENERAL.—If eligible land pro-
11 posed to be subject to a forest land easement
12 under the Program does not have in effect a
13 forest management plan on the date on which
14 an application relating to the eligible land is
15 submitted under this subsection, the landowner,
16 in partnership with the applicable eligible enti-
17 ty, shall develop a forest management plan for
18 that eligible land as a condition of acquisition
19 of the forest land easement.

20 “(B) REIMBURSEMENT.—The Secretary
21 may reimburse a landowner for the cost of de-
22 velopment of a forest management plan under
23 subparagraph (A).

24 “(5) TREATMENT.—The Secretary may evalu-
25 ate and rank applications submitted under this sub-

1 section by eligible entities for the purchase of forest
2 land easements from landowners who are socially
3 disadvantaged forest landowners separately from ap-
4 plications submitted for the purchase of forest land
5 easements from other landowners.

6 “(c) COST-SHARE ASSISTANCE.—

7 “(1) IN GENERAL.—The Secretary shall protect
8 working forests, and related conservation values of
9 eligible land, through cost-share assistance to eligible
10 entities for purchasing forest land easements.

11 “(2) AGREEMENTS.—

12 “(A) IN GENERAL.—As a condition of re-
13 ceipt of cost-share assistance under the Pro-
14 gram, an eligible entity shall enter into an
15 agreement with the Secretary to stipulate the
16 terms and conditions under which the eligible
17 entity is permitted to use the cost-share assist-
18 ance.

19 “(B) DURATION.—An agreement under
20 subparagraph (A) shall be for a term of not less
21 than 3, but not more than 5, years, unless the
22 Secretary determines that a longer term is jus-
23 tified.

24 “(C) MINIMUM TERMS AND CONDITIONS.—

25 An eligible entity shall be authorized to use

1 such terms and conditions as the eligible entity
2 determines to be appropriate for a forest land
3 easement purchased using assistance under this
4 section, subject to the condition that the Sec-
5 retary shall determine that those terms and
6 conditions—

7 “(i) are consistent with—

8 “(I) the purposes of the Pro-
9 gram; and

10 “(II) the forestry activities to be
11 conducted on the eligible land;

12 “(ii) permit effective enforcement of
13 the conservation purposes of the forest
14 land easement;

15 “(iii) include a requirement to imple-
16 ment a forest management plan on eligible
17 land subject to the forest land easement,
18 subject to the condition that the forest
19 management plan shall not be incorporated
20 in, or attached to, the deed for the forest
21 land easement;

22 “(iv) include a limit on the impervious
23 surfaces to be allowed that is consistent
24 with the forestry activities to be conducted;
25 and

1 “(v) include a right of enforcement for
2 the Secretary that—

3 “(I) may be used only if the
4 terms and conditions of the forest
5 land easement are not enforced by the
6 eligible entity; and

7 “(II) does not extend to a right
8 of inspection unless—

9 “(aa)(AA) the holder of the
10 forest land easement fails to pro-
11 vide monitoring reports in a
12 timely manner; or

13 “(BB) the Secretary has a
14 reasonable and articulable belief
15 that the terms and conditions of
16 the forest land easement have
17 been violated; and

18 “(bb) prior to the inspection,
19 the Secretary notifies the eligible
20 entity and the landowner of the
21 inspection and provides a reason-
22 able opportunity for the eligible
23 entity and the landowner to par-
24 ticipate in the inspection.

1 “(D) ADDITIONAL TERMS AND CONDI-
2 TIONS.—An eligible entity may include any ad-
3 ditional terms and conditions for a forest land
4 easement purchased using assistance under this
5 section that—

6 “(i) are intended to keep the eligible
7 land subject to the forest land easement in
8 active forest management, as determined
9 by the Secretary;

10 “(ii) allow subsurface mineral develop-
11 ment on the eligible land subject to the
12 forest land easement, in accordance with
13 applicable State law, if the Secretary deter-
14 mines that—

15 “(I) the subsurface mineral de-
16 velopment—

17 “(aa) has a limited and lo-
18 calized impact;

19 “(bb) does not harm the for-
20 est use and conservation values
21 of the eligible land;

22 “(cc) does not materially
23 alter or affect the existing topog-
24 raphy;

1 “(dd) complies with a sub-
2 surface mineral development plan
3 that—

4 “(AA) includes a plan
5 for the remediation of im-
6 pacts to the forest use and
7 conservation values of the el-
8 igible land; and

9 “(BB) is approved by
10 the Secretary prior to the
11 initiation of mineral develop-
12 ment activity;

13 “(ee) is not accomplished by
14 any surface mining method;

15 “(ff) is within the imper-
16 vious surface limits of the forest
17 land easement under subpara-
18 graph (C)(iv); and

19 “(gg) uses practices and
20 technologies that minimize the
21 duration and intensity of impacts
22 to the forest use and conserva-
23 tion values of the eligible land;
24 and

1 “(II) each area impacted by the
2 subsurface mineral development is re-
3 claimed and restored by the holder of
4 the mineral rights at cessation of op-
5 eration; and

6 “(iii) include other relevant activities
7 relating to the forest land easement, as de-
8 termined by the Secretary.

9 “(E) SUBSTITUTION OF QUALIFIED
10 PROJECTS.—An agreement under subparagraph
11 (A) shall allow, on mutual agreement of the
12 parties, substitution of qualified projects that
13 are identified at the time of the proposed sub-
14 stitution.

15 “(F) EFFECT OF VIOLATION.—If a viola-
16 tion of a term or condition of an agreement
17 under subparagraph (A) occurs, the Secretary
18 may—

19 “(i) terminate the agreement; and

20 “(ii) require the eligible entity to re-
21 fund all, or any part of, the payments re-
22 ceived by the eligible entity under the Pro-
23 gram, with interest on the payments as de-
24 termined to be appropriate by the Sec-
25 retary.

1 “(3) SCOPE.—

2 “(A) FEDERAL SHARE.—

3 “(i) IN GENERAL.—Except as pro-
4 vided in clause (ii), an agreement under
5 paragraph (2) shall provide for a Federal
6 share of 50 percent of the fair market
7 value of the forest land easement, as deter-
8 mined by the Secretary.

9 “(ii) EXCEPTION.—An agreement
10 under paragraph (2) may provide for a
11 Federal share of not more than 75 percent
12 of the fair market value of a forest land
13 easement in the case of eligible land that
14 is—

15 “(I) a forest of special environ-
16 mental significance, as determined by
17 the Secretary; or

18 “(II) owned by a socially dis-
19 advantaged forest landowner.

20 “(B) NON-FEDERAL SHARE.—

21 “(i) IN GENERAL.—Under an agree-
22 ment under paragraph (2), the eligible en-
23 tity shall provide a non-Federal share that
24 is equivalent to the remainder of the fair
25 market value of the forest land easement

1 not provided by the Secretary under sub-
2 paragraph (A).

3 “(ii) PERMISSIBLE FORMS.—The non-
4 Federal share provided by an eligible entity
5 under this subparagraph may comprise—

6 “(I) cash resources;

7 “(II) a charitable donation or
8 qualified conservation contribution (as
9 defined in section 170(h) of the Inter-
10 nal Revenue Code of 1986) from the
11 private forest landowner from whom
12 the forest land easement will be pur-
13 chased;

14 “(III) costs associated with se-
15 curing a deed to the forest land ease-
16 ment, including the costs of appraisal,
17 survey, inspection, and title; and

18 “(IV) other costs, as determined
19 by the Secretary.

20 “(C) DETERMINATION OF FAIR MARKET
21 VALUE.—For purposes of this paragraph, the
22 Secretary shall determine the fair market value
23 of a forest land easement using—

24 “(i) the Uniform Standards of Profes-
25 sional Appraisal Practice;

1 “(ii) an areawide market analysis or
2 survey; or
3 “(iii) another industry-approved meth-
4 od.

5 “(d) METHODS OF ENROLLMENT.—On acquisition of
6 a forest land easement by an eligible entity using assist-
7 ance provided under this section, the Secretary shall enroll
8 the eligible land subject to the forest land easement in the
9 Program through the use of—

10 “(1) a permanent easement; or

11 “(2) an easement for the maximum duration al-
12 lowed under applicable State law.

13 “(e) TECHNICAL ASSISTANCE.—The Secretary may
14 provide technical assistance, on request, to assist in com-
15 pliance with the terms and conditions of a forest land
16 easement under this section.

17 **“SEC. 1267C. FOREST RESERVE EASEMENTS.**

18 “(a) AUTHORIZATION.—As part of the Program, the
19 Secretary shall provide to landowners of eligible land as-
20 sistance to restore, protect, and enhance the eligible land
21 through—

22 “(1) acquisition by the Secretary of forest re-
23 serve easements on eligible land;

24 “(2) assistance in developing forest reserve
25 easement plans under subsection (e); and

1 “(3) technical assistance to implement this sec-
2 tion.

3 “(b) OFFERS.—

4 “(1) IN GENERAL.—To be eligible to grant to
5 the Secretary a forest reserve easement under this
6 section, a landowner of eligible land shall submit to
7 the Secretary an offer at such time, in such manner,
8 and containing such information as the Secretary
9 may require.

10 “(2) CRITERIA.—The Secretary shall establish
11 evaluation and ranking criteria with respect to offers
12 submitted under this subsection.

13 “(3) PRIORITY.—In evaluating offers under this
14 subsection, the Secretary shall give priority to an
15 offer for a forest reserve easement that provides the
16 greatest conservation benefit—

17 “(A) primarily, to a species listed as en-
18 dangered or threatened under section 4 of the
19 Endangered Species Act of 1973 (16 U.S.C.
20 1533); and

21 “(B) secondarily, to any species that—

22 “(i) is not listed as endangered or
23 threatened under that section; but

1 “(ii)(I) is a candidate for that listing
2 or listing as a State-listed species or spe-
3 cies of special concern; or

4 “(II) is designated by a State wildlife
5 action plan as a species of greatest con-
6 servation need.

7 “(4) OTHER CONSIDERATIONS.—The Secretary
8 may give additional consideration to eligible land the
9 enrollment under this section of which will—

10 “(A) improve biological diversity;

11 “(B) restore a native forest ecosystem;

12 “(C) conserve forest land that provides a
13 habitat for any species described in paragraph
14 (3);

15 “(D) reduce fragmentation of forest land;

16 or

17 “(E) increase carbon sequestration.

18 “(5) TREATMENT.—The Secretary may evalu-
19 ate and rank offers submitted under this subsection
20 by landowners who are socially disadvantaged forest
21 landowners separately from offers submitted by
22 other landowners.

23 “(c) METHODS OF ENROLLMENT.—

24 “(1) IN GENERAL.—The Secretary shall enroll
25 eligible land under this section—

1 “(A) through the use of—

2 “(i) permanent easements;

3 “(ii) 30-year easements; or

4 “(iii) easements for the maximum du-
5 ration allowed under applicable State law;

6 and

7 “(B) in the case of acreage owned by an
8 Indian Tribe, through the use of—

9 “(i) 30-year contracts, the compensa-
10 tion for which shall be equivalent to the
11 compensation for 30-year easements; or

12 “(ii) permanent easements.

13 “(2) LIMITATION.—Not more than 10 percent
14 of amounts made available to carry out this section
15 for a fiscal year may be used for 30-year easements
16 under this subsection.

17 “(d) EASEMENTS.—

18 “(1) TERMS AND CONDITIONS.—

19 “(A) IN GENERAL.—A forest reserve ease-
20 ment shall include terms and conditions that—

21 “(i) are consistent with the purposes
22 of the Program and the forestry activities
23 to be conducted on the eligible land;

24 “(ii) are consistent with—

1 “(I) the management objectives
2 of the landowner of the eligible land;
3 and

4 “(II) the implementation of the
5 relevant forest reserve easement plan
6 developed under subsection (e)(1);

7 “(iii) permit effective enforcement of
8 the conservation purposes of forest reserve
9 easements;

10 “(iv) provide for the efficient and ef-
11 fective establishment or enhancement of
12 forest ecosystem functions and values; and

13 “(v) include such additional provisions
14 as the Secretary determines to be appro-
15 priate—

16 “(I) to carry out the Program; or

17 “(II) to facilitate the practical
18 administration of the Program.

19 “(B) REQUESTED TERMS AND CONDI-
20 TIONS.—A landowner of eligible land may re-
21 quest that a term or condition be included in a
22 forest reserve easement, and the Secretary may
23 include the term or condition, if the Secretary
24 determines that the term or condition—

25 “(i) is consistent with—

1 “(I) the management objectives
2 of the landowner; and

3 “(II) the implementation of the
4 relevant forest reserve easement plan;
5 and

6 “(ii) does not conflict with any term
7 or condition included under subparagraph
8 (A).

9 “(2) COMPENSATION.—

10 “(A) PERMANENT EASEMENTS.—In the
11 case of eligible land enrolled in a permanent
12 easement under this section, the Secretary shall
13 pay to the landowner of the eligible land an
14 amount equal to the difference between, as de-
15 termined by the Secretary—

16 “(i) the fair market value of the eligi-
17 ble land before enrollment in the perma-
18 nent easement; and

19 “(ii) the fair market value of the eligi-
20 ble land as encumbered by the permanent
21 easement.

22 “(B) OTHER.—The Secretary shall pay to
23 the landowner of eligible land enrolled under
24 this section in a 30-year contract, a 30-year
25 easement, or an easement for the maximum du-

1 ration allowed under applicable State law not
2 less than 50 percent, and not more than 75
3 percent, of the compensation that would be paid
4 under subparagraph (A) if the land were en-
5 rolled in a permanent easement under this sec-
6 tion.

7 “(C) DETERMINATION OF FAIR MARKET
8 VALUE.—For purposes of this paragraph, the
9 Secretary shall determine the fair market value
10 of eligible land using—

11 “(i) the Uniform Standards of Profes-
12 sional Appraisal Practice; or

13 “(ii) another industry-approved meth-
14 od.

15 “(e) FOREST RESERVE EASEMENT PLANS.—

16 “(1) IN GENERAL.—Eligible land enrolled in a
17 forest reserve easement under this section shall be
18 subject to a forest reserve easement plan, to be de-
19 veloped jointly by the landowner and the Secretary,
20 that describes such activities to be carried out on the
21 eligible land as are necessary to restore, maintain,
22 and enhance habitat for species described in sub-
23 section (b)(3).

24 “(2) PRACTICES AND MEASURES.—A forest re-
25 serve easement plan under paragraph (1) may in-

1 clude, with respect to the eligible land subject to the
2 plan—

3 “(A) vegetative management and
4 silviculture practices;

5 “(B) structural practices and measures;

6 “(C) practices to increase carbon seques-
7 tration;

8 “(D) practices to improve biological diver-
9 sity; and

10 “(E) other practices and measures, as de-
11 termined by the Secretary.

12 “(3) FINANCIAL ASSISTANCE.—

13 “(A) IN GENERAL.—The Secretary shall
14 provide to landowners of eligible land enrolled
15 in a forest reserve easement under this section
16 financial assistance to carry out the activities,
17 practices, and measures described in the forest
18 reserve easement plan developed for the eligible
19 land under paragraph (1).

20 “(B) PAYMENTS.—With respect to finan-
21 cial assistance under subparagraph (A), the
22 Secretary shall pay—

23 “(i) in the case of a forest reserve
24 easement plan for eligible land enrolled in
25 a permanent easement, an amount equal to

1 not more than 100 percent of the eligible
2 costs described in subparagraph (C), as de-
3 termined by the Secretary; and

4 “(ii) in the case of a forest reserve
5 easement plan for eligible land enrolled in
6 a 30-year contract, a 30-year easement, or
7 an easement for the maximum duration al-
8 lowed under applicable State law, an
9 amount equal to not less than 50 percent,
10 and not more than 75 percent, of the eligi-
11 ble costs described in subparagraph (C), as
12 determined by the Secretary.

13 “(C) ELIGIBLE COSTS.—The costs eligible
14 for payments under this paragraph are the
15 costs of activities, practices, and measures de-
16 scribed in the applicable forest reserve easement
17 plan that are associated with restoration or en-
18 hancement of the habitat conditions specified
19 for the applicable species described in the forest
20 reserve easement plan.

21 “(D) TIMING.—

22 “(i) DETERMINATION.—As soon as
23 practicable after the commencement on eli-
24 gible land enrolled in a forest reserve ease-
25 ment of an activity, practice, or measure

1 described in subparagraph (C), the Sec-
2 retary shall determine whether the activity,
3 practice, or measure is established in ac-
4 cordance with appropriate standards and
5 specifications.

6 “(ii) PAYMENT.—A payment under
7 this paragraph shall be made for an activ-
8 ity, practice, or measure only, and as soon
9 as practicable, after the Secretary makes a
10 positive determination under clause (i)
11 with respect to that activity, practice, or
12 measure.

13 “(E) LIMITATIONS.—A payment provided
14 by the Secretary under this paragraph may not
15 exceed \$500,000 per easement or 30-year con-
16 tract.

17 “(f) PROTECTIONS AND MEASURES.—

18 “(1) PROTECTIONS.—In the case of a land-
19 owner who enrolls eligible land in a forest reserve
20 easement, and whose conservation activities under
21 the forest reserve easement plan developed for that
22 eligible land result in a net conservation benefit for
23 a species described in subsection (b)(3), the Sec-
24 retary shall make available to the landowner safe
25 harbor or similar assurances and protection under—

1 “(A) section 7(b)(4) of the Endangered
2 Species Act of 1973 (16 U.S.C. 1536(b)(4)); or

3 “(B) section 10(a)(1) of that Act (16
4 U.S.C. 1539(a)(1)).

5 “(2) MEASURES.—If protection under para-
6 graph (1) requires the taking of measures that are
7 in addition to the measures covered by the forest re-
8 serve easement plan developed for the applicable eli-
9 gible land, the cost of the additional measures, and
10 the cost of any related permit, shall be considered to
11 be costs eligible for payments under subsection
12 (e)(2).

13 “(g) TECHNICAL ASSISTANCE.—

14 “(1) IN GENERAL.—The Secretary shall provide
15 to landowners of eligible land technical assistance to
16 assist the landowners in—

17 “(A) developing a forest reserve easement
18 plan under subsection (e); and

19 “(B) complying with the terms and condi-
20 tions of a forest reserve easement, including the
21 implementation of a forest reserve easement
22 plan.

23 “(2) CONTRACTS OR AGREEMENTS.—The Sec-
24 retary may enter into 1 or more contracts or agree-
25 ments with a Federal, State, or local government

1 agency, nongovernmental organization, Indian Tribe
2 or Tribal organization, or private entity to provide
3 technical assistance described in paragraph (1), if
4 the Secretary determines that the contract or agree-
5 ment will advance the purposes of the Program.

6 “(h) ADMINISTRATIVE PROVISIONS.—

7 “(1) DELEGATION.—

8 “(A) FEDERAL AND STATE AGENCIES.—

9 The Secretary may delegate any of the manage-
10 ment, monitoring, or enforcement responsibil-
11 ities of the Secretary under this section to an-
12 other Federal agency or a State agency that
13 has the appropriate authority, expertise, and re-
14 sources necessary to carry out the delegated re-
15 sponsibilities.

16 “(B) CONSERVATION ORGANIZATIONS.—

17 The Secretary may delegate any of the manage-
18 ment responsibilities of the Secretary under this
19 section to a nonprofit conservation organization,
20 if the Secretary determines that the organiza-
21 tion has the appropriate expertise and resources
22 necessary to carry out the delegated responsibil-
23 ities.

1 “(2) INVOLVEMENT BY OTHER AGENCIES AND
2 ORGANIZATIONS.—In carrying out this section, the
3 Secretary may consult with—

4 “(A) private forest landowners;

5 “(B) other Federal agencies;

6 “(C) State forestry agencies;

7 “(D) State fish and wildlife agencies;

8 “(E) State environmental quality agencies;

9 “(F) other State conservation agencies;

10 and

11 “(G) nonprofit conservation organizations.

12 **“SEC. 1267D. ADMINISTRATION.**

13 “(a) INELIGIBLE LAND.—

14 “(1) IN GENERAL.—The Secretary shall not use
15 amounts made available to carry out the Program
16 for purposes of acquiring any easement on—

17 “(A) land owned by a Federal agency,
18 other than land that is acreage owned by an In-
19 dian Tribe;

20 “(B) land owned in fee title by a State, in-
21 cluding an agency or a subdivision of a State,
22 or a unit of local government;

23 “(C) land subject to an easement or deed
24 restriction that, as determined by the Secretary,

1 provides similar protection as would be provided
2 by enrollment in the Program; or

3 “(D) land the enrollment in the Program
4 of which would undermine the purposes of the
5 Program due to onsite or offsite conditions,
6 such as risk of hazardous substances, permitted
7 or existing rights-of-way, infrastructure devel-
8 opment, or adjacent land uses.

9 “(2) LIMITATION.—The Secretary shall not
10 limit the eligibility of land, except in the case of land
11 owned by a foreign entity or foreign individual from
12 a country that is a foreign adversary described in
13 section 791.4(a) of title 15, Code of Federal Regula-
14 tions (or a successor regulation), for purposes of the
15 Program based on—

16 “(A) acreage size;

17 “(B) the type of private forest landowner
18 or the size of their ownership; or

19 “(C) the presence of severed mineral
20 rights.

21 “(b) SUBORDINATION, EXCHANGE, MODIFICATION,
22 AND TERMINATION.—

23 “(1) SUBORDINATION.—The Secretary may
24 subordinate any interest in eligible land, or a portion
25 of such an interest, administered by the Secretary

1 (including for the purposes of utilities and energy
2 transmission services) directly or on behalf of the
3 Commodity Credit Corporation under the Program if
4 the Secretary determines that the subordination—

5 “(A) increases conservation values or has a
6 limited negative effect on conservation values;

7 “(B) minimally affects the acreage subject
8 to the interest in eligible land; and

9 “(C) is in the public interest or furthers
10 the practical administration of the Program.

11 “(2) MODIFICATION AND EXCHANGE.—

12 “(A) MODIFICATION.—

13 “(i) AUTHORITY.—The Secretary may
14 approve a modification of any interest in
15 land, or a portion of such an interest, ad-
16 ministered by the Secretary, directly or on
17 behalf of the Commodity Credit Corpora-
18 tion, under the Program if the Secretary
19 determines that the modification—

20 “(I) will support the viability and
21 sustainability of working forests and
22 the conservation values of the applica-
23 ble easement;

24 “(II) will result in equal or in-
25 creased conservation values;

1 “(III) is consistent with the origi-
2 nal intent of the easement;

3 “(IV) is consistent with the pur-
4 poses of the Program; and

5 “(V) is in the public interest or
6 furthers the practical administration
7 of the Program, including correcting
8 errors and exercising reserved rights.

9 “(ii) LIMITATION.—In modifying an
10 interest in land, or a portion of such inter-
11 est, under this subparagraph, the Sec-
12 retary may not, except in the case of a
13 modification that includes a change to an
14 easement to add acreage, increase any pay-
15 ment to an eligible entity.

16 “(B) EXCHANGE.—

17 “(i) AUTHORITY.—The Secretary may
18 approve an exchange of any interest in
19 land, or a portion of such an interest, ad-
20 ministered by the Secretary, directly or on
21 behalf of the Commodity Credit Corpora-
22 tion, under the Program if the Secretary
23 determines that—

24 “(I) no reasonable alternative to
25 the exchange exists;

1 “(II) the effect of the exchange
2 on the interest in land is avoided or
3 minimized to the maximum extent
4 practicable; and

5 “(III) the exchange—

6 “(aa) results in equal or in-
7 creased conservation values;

8 “(bb) results in equal or in-
9 creased economic value to the
10 United States;

11 “(cc) is consistent with the
12 original intent of the easement;

13 “(dd) is consistent with the
14 purposes of the Program; and

15 “(ee) is in the public inter-
16 est or furthers the practical ad-
17 ministration of the Program.

18 “(ii) LIMITATION.—In exchanging an
19 interest in land, or a portion of such an in-
20 terest, pursuant to this subparagraph, the
21 Secretary may not increase any payment to
22 an eligible entity.

23 “(3) TERMINATION.—The Secretary may ap-
24 prove a termination of any interest in eligible land,
25 or a portion of such an interest, administered by the

1 Secretary, directly or on behalf of the Commodity
2 Credit Corporation, under the Program if the Sec-
3 retary determines that—

4 “(A) termination is in the interest of the
5 Federal Government;

6 “(B) the United States will be fully com-
7 pensated for—

8 “(i) the value of the interest in the
9 land, as determined by the Secretary;

10 “(ii) any costs relating to the termi-
11 nation; and

12 “(iii) any damages determined appro-
13 priate by the Secretary; and

14 “(C) the termination will—

15 “(i) address a compelling public need
16 for which there is no practicable alter-
17 native even with avoidance and minimiza-
18 tion; and

19 “(ii) further the practical administra-
20 tion of the Program.

21 “(4) CONSENT.—The Secretary shall obtain
22 consent from the landowner and eligible entity, if ap-
23 plicable, for any subordination, exchange, modifica-
24 tion, or termination of an interest in eligible land, or
25 portion of such an interest, under this subsection.

“(5) NOTICE.—Not less than 90 days before taking any termination action described in paragraph (3), the Secretary shall provide written notice of that action to the Committee on Agriculture, Nutrition, and Forestry of the Senate and the Committee on Agriculture of the House of Representatives.

8 “(c) LAND ENROLLED IN OTHER PROGRAMS.—In
9 accordance with section 2702(b) of the Agricultural Act
10 of 2026, land enrolled in the healthy forests reserve pro-
11 gram established under title V of the Healthy Forests Res-
12 toration Act of 2003 (16 U.S.C. 6571 et seq.) on the day
13 before the date of enactment of this section shall be con-
14 sidered to be enrolled in the Program.

15 “(d) PAYMENT LIMITATIONS EXCEPTIONS.—The at-
16 tribution of payments limitation described in section
17 1001(e) and the adjusted gross income limitation de-
18 scribed in section 1001D(b)(1) shall not apply to any pay-
19 ment or other assistance under the Program.”.

20 (b) TECHNICAL AND CONFORMING AMENDMENTS.—

(1) Section 1201(a) of the Food Security Act of 1985 (16 U.S.C. 3801(a)) is amended—

(A) in the matter preceding paragraph (1),
by striking “subtitles A through I:” and insert-
ing “subtitles A through J:”; and

1 (B) by striking paragraph (14) and insert-
2 ing the following:

3 “(14) INDIAN TRIBE.—The term ‘Indian Tribe’
4 has the meaning given the term in section 4 of the
5 Indian Self-Determination and Education Assistance
6 Act (25 U.S.C. 5304).”.

7 (2) Title XII of the Food Security Act of 1985
8 (16 U.S.C. 3801 et seq.) is amended—

9 (A) by striking “Indian tribes” each place
10 it appears and inserting “Indian Tribes”; and

11 (B) by striking “Indian tribe” each place
12 it appears and inserting “Indian Tribe”.

13 (3) Section 1231A(a)(3)(C) of the Food Secu-
14 rity Act of 1985 (16 U.S.C. 3831a(a)(3)(C)) is
15 amended by striking “(as defined in section 4 of the
16 Indian Self-Determination and Education Assistance
17 Act (25 U.S.C. 5304))”.

18 (4) Section 1241(e)(1) of the Food Security Act
19 of 1985 (16 U.S.C. 3841(e)(1)) is amended by strik-
20 ing “subtitle I” and inserting “subtitle J”.

21 (5) Section 1244 of the Food Security Act of
22 1985 (16 U.S.C. 3844) is amended—

23 (A) in subsection (b)(1)(A)(ii), by striking
24 “(as defined by the Secretary)”; and

1 (B) in subsection (d), by striking “I.” and
2 inserting “J.”.

3 **SEC. 2702. HEALTHY FORESTS RESERVE PROGRAM.**

4 (a) REPEAL.—Title V of the Healthy Forests Res-
5 toration Act of 2003 (16 U.S.C. 6571 et seq.) is repealed.

6 (b) TRANSITIONAL PROVISIONS.—

7 (1) EFFECT ON EXISTING CONTRACTS, AGREE-
8 MENTS, AND EASEMENTS.—The repeal made by sub-
9 section (a) shall not affect—

10 (A) the validity or terms of any contract,
11 agreement, or easement entered into by the
12 Secretary under title V of the Healthy Forests
13 Restoration Act of 2003 (16 U.S.C. 6571 et
14 seq.) before the date of enactment of this Act;
15 or

16 (B) any payment or technical assistance
17 required to be made in connection with a con-
18 tract, agreement, or easement described in sub-
19 paragraph (A).

20 (2) FUNDING.—

21 (A) USE OF PRIOR YEAR FUNDS.—Not
22 withstanding the repeal made by subsection (a),
23 any funds made available from the Commodity
24 Credit Corporation to carry out the healthy for-
25 ests reserve program established under title V

1 of the Healthy Forests Restoration Act of 2003
2 (16 U.S.C. 6571 et seq.) (as in effect on the
3 day before the date of enactment of this Act)
4 for any of fiscal years 2019 through 2026 shall
5 be made available to carry out contracts, agree-
6 ments, or easements referred to in paragraph
7 (1)(A).

8 (B) OTHER.—The Secretary may use
9 funds made available to carry out the Forest
10 Conservation Easement Program established
11 under subtitle I of the Food Security Act of
12 1985 (as amended by section 2701) to continue
13 to carry out contracts, agreements, or ease-
14 ments referred to in paragraph (1)(A) using the
15 provisions of law (including regulations) in ef-
16 fect on the day before the date of enactment of
17 this Act that are applicable to those contracts,
18 agreements, and easements.

19 (c) CONFORMING AMENDMENTS.—

20 (1) The table of contents in section 1(b) of the
21 Healthy Forests Restoration Act of 2003 (Public
22 Law 108–148; 117 Stat. 1887) is amended by strik-
23 ing the items relating to title V.

1 (2) Section 1271A(1) of the Food Security Act
2 of 1985 (16 U.S.C. 3871a(1)) is amended by strik-
3 ing subparagraph (D) and inserting the following:

4 “(D) The Forest Conservation Easement
5 Program established under subtitle I.”.

6 **Subtitle H—Other Conservation**
7 **Programs**

8 **SEC. 2801. WATERSHED PROTECTION AND FLOOD PREVEN-**
9 **TION ACT.**

10 (a) SHORT TITLE; FINDINGS; DECLARATION OF POL-
11 ICY.—The first section of the Watershed Protection and
12 Flood Prevention Act (16 U.S.C. 1001) is amended to
13 read as follows:

14 **“SECTION 1. SHORT TITLE; FINDINGS; DECLARATION OF**
15 **POLICY.**

16 “(a) SHORT TITLE.—This Act may be cited as the
17 ‘Watershed Protection and Flood Prevention Act’.

18 “(b) FINDINGS.—Congress finds that erosion, flood-
19 water, drought, and sediment damages in the watersheds
20 of the rivers and streams of the United States cause loss
21 of life, declines in agricultural production, harm to fish,
22 birds, wildlife, and recreation opportunities, and damage
23 to property, thereby constituting a menace to the national
24 welfare.

1 “(c) SENSE OF CONGRESS.—It is the sense of Con-
2 gress that the Federal Government should cooperate with
3 local organizations for the purposes of—

4 “(1) preventing the damages described in sub-
5 section (b);

6 “(2) furthering the conservation, management,
7 development, utilization, and disposal of water, and
8 the conservation and utilization of land; and

9 “(3) thereby preserving, protecting, and improv-
10 ing land and water resources and the quality of the
11 environment.”.

12 (b) DEFINITIONS.—Section 2 of the Watershed Pro-
13 tection and Flood Prevention Act (16 U.S.C. 1002) is
14 amended to read as follows:

15 **“SEC. 2. DEFINITIONS.**

16 “In this Act:

17 “(1) CONSERVATION OF WATER.—The term
18 ‘conservation of water’ means a reduction in total
19 annual consumptive water use, as compared to total
20 annual consumptive water use before a work of im-
21 provement is carried out under this Act.

22 “(2) LOCAL ORGANIZATION.—The term ‘local
23 organization’ means—

24 “(A)(i) any State, political subdivision of a
25 State, soil or water conservation district, flood

1 prevention or control district, or combination
2 thereof; or

3 “(ii) any other governmental agency having
4 authority under State law to carry out, main-
5 tain, and operate a work of improvement;

6 “(B) any irrigation district or reservoir
7 company, water users’ association, canal com-
8 pany, ditch association, acequia, or similar enti-
9 ty, as determined by the Secretary, with—

10 “(i) the capacity to engage in the
11 planning or implementation of land treat-
12 ment and related conservation measures;
13 or

14 “(ii) the authority to construct and
15 maintain structural measures; or

16 “(C) any Indian Tribe or Tribal organiza-
17 tion (as those terms are defined in section 4 of
18 the Indian Self-Determination and Education
19 Assistance Act (25 U.S.C. 5304)) having au-
20 thority under Federal, State, or Indian Tribal
21 law to carry out, maintain, and operate a work
22 of improvement.

23 “(3) MANAGEMENT OF WATER.—The term
24 ‘management of water’ means any project or activity
25 carried out to increase the efficiency of water use,

1 transfer, diversion, or conveyance, as compared to
2 the efficiency of water use, transfer, diversion, or
3 conveyance before a work of improvement is carried
4 out under this Act.

5 “(4) SECRETARY.—The term ‘Secretary’ means
6 the Secretary of Agriculture.

7 “(5) WORK OF IMPROVEMENT.—

8 “(A) IN GENERAL.—The term ‘work of im-
9 provement’ means any undertaking carried out
10 in a watershed or subwatershed area not ex-
11 ceeding 250,000 acres (including on Federal
12 land necessary to accomplish the purposes of
13 the undertaking) for—

14 “(i) flood prevention (including struc-
15 tural and land treatment measures);

16 “(ii) the conservation, management,
17 development, utilization, and disposal of
18 water; or

19 “(iii) the conservation and proper uti-
20 lization of land.

21 “(B) EXCLUSION.—The term ‘work of im-
22 provement’ does not include any single struc-
23 ture that provides—

24 “(i) more than 12,500 acre-feet of
25 floodwater detention capacity; and

1 “(ii) more than 25,000 acre-feet of
2 total capacity.

3 “(C) REQUIREMENT FOR AGRICULTURE
4 BENEFITS.—Each undertaking described in
5 subparagraph (A) shall contain benefits directly
6 related to agriculture, including communities in
7 rural areas (as defined in section 343(a) of the
8 Consolidated Farm and Rural Development Act
9 (7 U.S.C. 1991(a))), that account for at least
10 20 percent of the total benefits of the under-
11 taking.

12 “(D) CONSOLIDATED PLANNING.—1 or
13 more subwatersheds, when the subwatersheds
14 are components of a larger watershed, may be
15 planned together at the discretion of the local
16 organization sponsoring the applicable under-
17 taking.”.

18 (c) ASSISTANCE TO LOCAL ORGANIZATIONS.—Sec-
19 tion 3 of the Watershed Protection and Flood Prevention
20 Act (16 U.S.C. 1003) is amended—

21 (1) by redesignating subsection (b) as sub-
22 section (f);

23 (2) in subsection (a)(6), in the first sentence,
24 by striking “occupiers, individually” and inserting

1 the following: “occupiers in accordance with sub-
2 section (b).

3 “(b) AGREEMENTS WITH LANDOWNERS, OPERA-
4 TORS, AND OCCUPIERS.—

5 “(1) IN GENERAL.—The Secretary may enter
6 into agreements under subsection (a)(6) with land-
7 owners, operators, and occupiers, individually”;

8 (3) in subsection (b) (as so designated)—

9 (A) by striking “supplemented. Applica-
10 tions” and inserting the following: “supple-
11 mented.

12 “(2) APPLICATIONS.—Applications”;

13 (B) in paragraph (2) (as so designated)—

14 (i) in the first sentence, by striking
15 “such conservation plans” and inserting
16 “conservation plans described in paragraph
17 (1)”; and

18 (ii) by striking “such district. In re-
19 turn” and all that follows through “inter-
20 est. The portion” and inserting the fol-
21 lowing: “that district.

22 “(3) COST SHARING.—

23 “(A) IN GENERAL.—The Secretary may
24 agree to share the costs of carrying out a work
25 of improvement, or specific practices and meas-

1 ures described in such an agreement, if the Sec-
2 retary determines that cost sharing is appro-
3 priate and in the public interest.

4 “(B) PORTION OF COSTS.—The portion”;
5 and

6 (iii) in subparagraph (B) (as so des-
7 ignated)—

8 (I) by striking “programs. The
9 Secretary” and inserting the fol-
10 lowing: “programs.

11 “(4) TERMINATION; MODIFICATIONS.—The Sec-
12 retary”;

13 (C) in paragraph (4) (as so designated)—

14 (i) in the first sentence, by striking
15 “hereunder, as he” and inserting “under
16 this subsection, as the Secretary”; and

17 (ii) by striking “herein. Notwith-
18 standing” and inserting the following:
19 “under this subsection.

20 “(5) PRESERVATION OR SURRENDER OF HIS-
21 TORY.—Notwithstanding”; and

22 (D) in paragraph (5) (as so designated)—

23 (i) by striking “he” and inserting “the
24 Secretary”;

1 (ii) by striking “paragraph” and in-
2 serting “subsection”;

3 (iii) by striking “hereunder for (1)
4 preservation” and inserting the following:
5 “under this paragraph for—
6 “(A) preservation”; and

7 (iv) in subparagraph (A) (as so des-
8 ignated), by striking “crop; or (2) sur-
9 render” and inserting the following: “crop;
10 or

11 “(B) surrender”; and

12 (4) by inserting after subsection (b) (as so des-
13 ignated) the following:

14 “(c) DELEGATION OF AUTHORITIES.—

15 “(1) FINAL AUTHORITY.—The Secretary shall
16 provide a State Conservationist final authority to ap-
17 prove watershed plans for works of improvement
18 within the State.

19 “(2) APPROVAL OF OUTSOURCING PRELIMINARY
20 ACTIVITIES.—The Secretary and a State Conserva-
21 tionist shall allow a local organization sponsoring a
22 work of improvement to use funds made available
23 under this Act to pay a third party approved by the
24 State Conservationist to conduct preliminary inves-

1 tigations and pre-planning activities relating to the
2 work of improvement.

3 “(3) ADDITIONAL AUTHORITIES.—The Sec-
4 retary may provide additional authority to a State
5 Conservationist not otherwise provided in this Act
6 that the Secretary determines would support a
7 streamlined process for the planning, design, and
8 construction phases of a project.

9 “(d) DEADLINE FOR APPROVAL OR DISAPPROVAL.—

10 “(1) IN GENERAL.—Subject to paragraph (2),
11 not later than 45 days after the date on which a
12 local organization submits to the Secretary a com-
13 plete application to address a resource concern, the
14 Secretary shall approve or disapprove the applica-
15 tion.

16 “(2) EXTENSIONS.—The Secretary may extend
17 the deadline described in paragraph (1) by 45 days,
18 if necessary.

19 “(e) APPROVED WATERSHED PLAN REQUIRED.—

20 “(1) IN GENERAL.—Subject to paragraph (2),
21 the Secretary may not provide funds under this Act
22 for the costs of designing or constructing a work of
23 improvement without an approved watershed plan.

24 “(2) EXCEPTIONS.—Paragraph (1) shall not
25 apply if—

1 “(A) the Secretary determines that the cir-
2 cumstances are so exigent that not providing
3 funds is against the public interest; or

4 “(B) the Secretary has waived the require-
5 ment for a watershed plan under subsection
6 (f).”.

7 (d) COST SHARE ASSISTANCE.—Section 3A of the
8 Watershed Protection and Flood Prevention Act (16
9 U.S.C. 1003a) is amended—

10 (1) in subsection (a), by inserting “, as deter-
11 mined by the Secretary,” after “assistance”; and

12 (2) by adding at the end the following:

13 “(c) TREATMENT OF OTHER FEDERAL FUNDS FOR
14 WORKS OF IMPROVEMENT.—Any funds provided for a
15 work of improvement through any Federal department or
16 agency other than the Department of Agriculture shall be
17 considered to be part of the non-Federal share of the cost
18 of the work of improvement provided by the sponsor of
19 the work of improvement.”.

20 (e) CONDITIONS FOR FEDERAL ASSISTANCE.—Sec-
21 tion 4(2) of the Watershed Protection and Flood Preven-
22 tion Act (16 U.S.C. 1004(2)) is amended by inserting
23 “management,” after “conservation,”.

1 (f) NOTIFICATION REQUIREMENT.—The Watershed
2 Protection and Flood Prevention Act is amended by in-
3 serting after section 4 (16 U.S.C. 1004) the following:

4 **“SEC. 4A. NOTIFICATION REQUIREMENT.**

5 “(a) IN GENERAL.—No amounts shall be provided
6 under this Act for any plan for a work of improvement
7 involving an estimated Federal contribution to construc-
8 tion costs in excess of \$50,000,000, or that includes any
9 structure that provides more than 2,500 acre-feet of total
10 capacity, unless the plan has been approved by resolutions
11 adopted by the appropriate committees of Congress de-
12 scribed in subsection (b).

13 “(b) COMMITTEES DESCRIBED.—The appropriate
14 committees of Congress referred to in subsection (a) are—

15 “(1) in the case of a plan involving no single
16 structure providing more than 4,000 acre-feet of
17 total capacity, the Committee on Agriculture, Nutri-
18 tion, and Forestry of the Senate and the Committee
19 on Agriculture of the House of Representatives; and

20 “(2) in the case of any plan involving any single
21 structure providing more than 4,000 acre-feet of
22 total capacity, the Committee on Environment and
23 Public Works of the Senate and the Committee on
24 Transportation and Infrastructure of the House of
25 Representatives.”.

1 (g) CONSTRUCTION STANDARDS.—The Watershed
2 Protection and Flood Prevention Act (16 U.S.C. 1001 et
3 seq.) is amended by inserting after section 4A (as added
4 by subsection (f)) the following:

5 **“SEC. 4B. CONSTRUCTION STANDARDS.**

6 “Subject to the requirements of this Act, the Sec-
7 retary shall—

8 “(1) review and update as necessary the engi-
9 neering standards and requirements to be used for
10 works of improvement under this Act; and

11 “(2) in collaboration with each State Conserva-
12 tionist, each State technical committee established
13 under section 1261(a) of the Food Security Act of
14 1985 (16 U.S.C. 3861(a)), and local organizations
15 undertaking works of improvement under this Act,
16 review and update as necessary the acceptable
17 variances from national engineering standards that
18 are appropriate for the geomorphology and purpose
19 for which works of improvement are established
20 within each State.”.

21 (h) CERTAIN AUTHORITIES.—Section 7 of the Water-
22 shed Protection and Flood Prevention Act (68 Stat. 668,
23 chapter 656; 74 Stat. 131; 76 Stat. 610) is amended, in
24 the last proviso, by inserting “management,” after “con-
25 servation,”.

1 (i) DATA.—Section 13 of the Watershed Protection
2 and Flood Prevention Act (16 U.S.C. 1010) is amended—

3 (1) in the matter preceding paragraph (1), by
4 striking “collect and maintain” and inserting “col-
5 lect, maintain, and publish on the website of the De-
6 partment of Agriculture”; and

7 (2) in paragraph (1), by striking “control and
8 conservation” and inserting “control, conservation,
9 and drought resilience”.

10 (j) FUNDING.—Section 14(h)(2)(E) of the Watershed
11 Protection and Flood Prevention Act (16 U.S.C.
12 1012(h)(2)(E)) is amended by striking “2023” and insert-
13 ing “2031”.

14 (k) CONFORMING AMENDMENT.—Section 11 of the
15 Watershed Protection and Flood Prevention Act (16
16 U.S.C. 1001 note; 68 Stat. 668; 70 Stat. 1090) is re-
17 pealed.

18 **SEC. 2802. EMERGENCY CONSERVATION PROGRAMS.**

19 (a) EMERGENCY CONSERVATION PROGRAM.—Section
20 401 of the Agricultural Credit Act of 1978 (16 U.S.C.
21 2201) is amended—

22 (1) in subsection (b)—

23 (A) in the subsection heading, by inserting
24 “AND OTHER EMERGENCY CONSERVATION
25 MEASURES” after “FENCING”;

1 (B) in paragraph (1)—

2 (i) by inserting “or other emergency
3 measures to replace or restore farmland or
4 conservation structures in response to a
5 natural disaster, as determined by the Sec-
6 retary,” after “replacement of fencing,”;
7 and

8 (ii) by striking “option of receiving”
9 and all that follows through the period at
10 the end and inserting the following: “op-
11 tion of receiving, before the agricultural
12 producer carries out the repair, replace-
13 ment, or restoration—

14 “(A) with respect to a payment to the agri-
15 cultural producer for a replacement, 75 percent
16 of the cost of the replacement, as determined by
17 the Secretary based on the fair market value of
18 the cost of the replacement using the estimated
19 cost of the applicable practice published in the
20 Field Office Technical Guide of each State by
21 the Natural Resources Conservation Service;
22 and

23 “(B) with respect to a payment to the ag-
24 ricultural producer for a repair or restoration,
25 50 percent of the cost of the repair or restora-

1 tion, as determined by the Secretary based on
2 the fair market value of the cost of the repair
3 or restoration using the estimated cost of the
4 applicable practice published in the Field Office
5 Technical Guide of each State by the Natural
6 Resources Conservation Service.”;

7 (C) in paragraph (2), by striking “60-day”
8 and inserting “180-day”; and

9 (D) by adding at the end the following

10 “(3) NEW OR EMERGING TECHNOLOGIES.—Re-
11 pair or replacement of fencing under this section
12 may include updating of fencing to new or emerging
13 technology if such updating does not increase the
14 cost of the repair or replacement.”; and

15 (2) by adding at the end the following:

16 “(c) WILDFIRE DETERMINATION.—A wildfire that
17 causes damage eligible for a payment under subsection (a)
18 includes—

19 “(1) as determined by the Secretary, a wildfire
20 that is not caused naturally if the damage is caused
21 by the spread of the wildfire due to natural causes;
22 and

23 “(2) as determined by the Secretary, a wildfire
24 that is caused by the Federal Government.”.

1 (b) ADDITIONAL REQUIREMENTS FOR THE EMER-
2 GENCY CONSERVATION PROGRAM.—Title IV of the Agri-
3 cultural Credit Act of 1978 is amended by inserting after
4 section 402B (16 U.S.C. 2202b) the following:

5 **“SEC. 402C. ADDITIONAL REQUIREMENTS FOR THE EMER-**
6 **GENCY CONSERVATION PROGRAM.**

7 “(a) ELIGIBILITY OF FEDERAL, STATE, AND LOCAL
8 LAND USERS.—

9 “(1) IN GENERAL.—An agricultural producer
10 eligible to receive payments under sections 401 and
11 402 includes a person that—

12 “(A) holds a permit or lease from the Fed-
13 eral Government to conduct agricultural pro-
14 duction or grazing on Federal land; or

15 “(B) holds a permit or leases land from a
16 State or unit of local government to conduct ag-
17 ricultural production or grazing on that land.

18 “(2) EFFECT.—Nothing in this subsection au-
19 thorizes the Secretary to make a payment under sec-
20 tion 401 or 402 to the Federal Government, a State,
21 or a unit of local government.

22 “(b) PERMANENT AND TEMPORARY IMPROVE-
23 MENTS.—Emergency measures eligible for payments
24 under sections 401 and 402 include—

1 “(1) new permanent or temporary measures, in-
2 cluding permanent water wells and permanent or
3 temporary surface or aboveground pipelines and wa-
4 tering facilities; and

5 “(2) replacement or restoration of existing
6 emergency measures with permanent or temporary
7 measures, including permanent water wells and per-
8 manent or temporary surface or aboveground pipe-
9 lines and watering facilities.

10 “(c) STREAMLINING APPLICATION PROCESS.—

11 “(1) WAIVER OF PUBLIC COMMENT.—During
12 an eligible natural disaster or drought, as deter-
13 mined by the Secretary in accordance with sections
14 401(a) and 402, the 30-day public comment period
15 required under the National Environmental Policy
16 Act of 1969 (42 U.S.C. 4321 et seq.) shall be
17 waived with respect to an application to carry out
18 emergency measures under section 401 or 402 on
19 land administered by the Secretary of the Interior,
20 acting through the Director of the Bureau of Land
21 Management (referred to in this subsection as the
22 ‘Secretary of the Interior’).

23 “(2) ACCEPTANCE OF ENVIRONMENTAL RE-
24 VIEWS.—With respect to an application to carry out
25 emergency measures under section 401 or 402 on

1 land administered by the Secretary of the Interior,
2 the Secretary of the Interior may accept—

3 “(A) during an eligible natural disaster, as
4 determined by the Secretary, an archeological
5 review conducted by the Department of Agri-
6 culture or a qualified contractor that has been
7 approved by the Secretary of the Interior, for
8 purposes of such an archeological review re-
9 quired to be conducted;

10 “(B) an environmental review under the
11 National Environmental Policy Act of 1969 (42
12 U.S.C. 4321 et seq.) conducted by the Depart-
13 ment of Agriculture or a qualified contractor
14 that has been approved by the Secretary of the
15 Interior, for purposes of such an environmental
16 review required to be conducted; and

17 “(C) a review under the Endangered Spe-
18 cies Act of 1973 (16 U.S.C. 1531 et seq.) con-
19 ducted by the Department of Agriculture or a
20 qualified contractor that has been approved by
21 the Secretary of the Interior, for purposes of
22 such a review required to be conducted.”.

23 (c) EMERGENCY WATERSHED PROGRAM.—Section
24 403 of the Agricultural Credit Act of 1978 (16 U.S.C.
25 2203) is amended—

1 (1) in subsection (a)—

2 (A) by striking the subsection designation
3 and heading and all that follows through “The
4 Secretary” and inserting the following:

5 “(a) AUTHORIZATIONS.—

6 “(1) IN GENERAL.—The Secretary”; and

7 (B) by adding at the end the following:

8 “(2) ELIGIBLE PURPOSES OF FLOODPLAIN
9 EASEMENTS.—A floodplain easement acquired by the
10 Secretary under this section may be used—

11 “(A) to restore, protect, maintain, and en-
12 hance the hydrologic and other functions and
13 values of floodplains, including wetlands and as-
14 sociated land, riparian areas, and stream chan-
15 nels;

16 “(B) to conserve natural values, including
17 fish and wildlife habitat, water quality, flood
18 water retention, and groundwater recharge; and

19 “(C) to safeguard lives and property from
20 floods, drought, and the products of erosion.

21 “(3) EASEMENT RESTORATION.—The Secretary
22 may restore the hydrologic and other functions and
23 values of wetlands on floodplain easements acquired
24 by the Secretary under this section.

1 “(4) LEVEL OF RESTORATION.—In carrying out
2 this section, this Secretary may undertake measures
3 that increase the level of protection above that which
4 would be necessary to address the immediate impair-
5 ment of the watershed if the Secretary determines
6 that such restoration is in the best interest of—

7 “(A) the long-term health of the water-
8 shed; and

9 “(B) the protection of the watershed from
10 repetitive impairments.

11 “(5) EASEMENT MANAGEMENT.—

12 “(A) IN GENERAL.—The Secretary shall
13 acquire the rights and interests necessary to re-
14 store, protect, manage, maintain, enhance, and
15 monitor each floodplain easement acquired
16 under this section.

17 “(B) ALLOWABLE USES.—The Secretary
18 may authorize, in writing and subject to such
19 terms and conditions as the Secretary may pre-
20 scribe in the sole discretion of the Secretary,
21 the use of the area covered by a floodplain ease-
22 ment under this section by the landowner for
23 compatible uses, if the Secretary determines
24 that the use is consistent with the long-term
25 protection and enhancement of the floodplain,

1 riparian areas, wetlands, and associated land
2 and other natural values of the easement
3 area.”; and

4 (2) in subsection (b), by striking the subsection
5 designation and heading and all that follows through
6 the “The Secretary” in the matter preceding sub-
7 paragraph (A) of paragraph (1) and inserting the
8 following:

9 “(b) MODIFICATION AND TERMINATION OF FLOOD-
10 PLAIN EASEMENTS.—

11 “(1) IN GENERAL.—The Secretary”.

12 (d) EMERGENCY FOREST RESTORATION PRO-
13 GRAM.—Section 407 of the Agricultural Credit Act of
14 1978 (16 U.S.C. 2206) is amended—

15 (1) in subsection (a)—

16 (A) by redesignating paragraphs (1)
17 through (3) as paragraphs (3) through (5), re-
18 spectively;

19 (B) by inserting before paragraph (3) (as
20 so redesignated) the following:

21 “(1) ELIGIBLE ENTITY.—The term ‘eligible en-
22 tity’ means—

23 “(A) with respect to nonindustrial private
24 forest land or industrial private forest land—

1 “(i) an owner of the nonindustrial pri-
2 vate forest land or industrial private forest
3 land; or

4 “(ii) a person that receives concur-
5 rence from the landowner to carry out
6 emergency measures in lieu of the owner;

7 “(B) with respect to Federal forest land, a
8 person that holds a permit or lease from the
9 Federal Government to conduct livestock graz-
10 ing on the Federal forest land; and

11 “(C) with respect to forest land owned by
12 a State or a unit of local government, a person
13 that holds a permit or leases land from the
14 State or unit of local government to conduct
15 livestock grazing on that forest land.

16 “(2) ELIGIBLE LAND.—The term ‘eligible land’
17 means—

18 “(A) nonindustrial private forest land;

19 “(B) Federal forest land on which livestock
20 grazing is authorized through a permit or lease;
21 and

22 “(C) forest land owned by a State or unit
23 of local government on which livestock grazing
24 is authorized through a permit or lease.”;

1 (C) in paragraph (3) (as so redesign-
2 nated)—

3 (i) in subparagraph (A)—

4 (I) in the matter preceding clause
5 (i), by striking “nonindustrial private
6 forest land” and inserting “eligible
7 land”; and

8 (II) by redesignating clauses (i)
9 and (ii) as subclauses (I) and (II), re-
10 spectively, and indenting appro-
11 priately;

12 (ii) by redesignating subparagraphs
13 (A) and (B) as clauses (i) and (ii), respec-
14 tively, and indenting appropriately;

15 (iii) in the matter preceding clause (i)
16 (as so redesignated), by striking “The
17 term” and inserting the following:

18 “(A) IN GENERAL.—The term”; and

19 (iv) by adding at the end the fol-
20 lowing:

21 “(B) INCLUSIONS.—The term ‘emergency
22 measures’ includes—

23 “(i) if the natural disaster is a
24 drought that has diminished the existing
25 natural water supply for grazing livestock,

1 new permanent or temporary measures de-
2 scribed in subparagraph (A), including per-
3 manent water wells and permanent or tem-
4 porary surface or aboveground pipelines
5 and watering facilities; and

6 “(ii) if the natural disaster affected or
7 destroyed the existing structures, replace-
8 ment or restoration of existing emergency
9 measures with permanent or temporary
10 measures described in subparagraph (A),
11 including permanent water wells and per-
12 manent or temporary surface or above-
13 ground pipelines and watering facilities.”;
14 and

15 (D) in paragraph (4) (as so redesignated),
16 by striking “wildfires,” and inserting “wildfires
17 (including, as determined by the Secretary, a
18 wildfire that is not caused naturally if the dam-
19 age is caused by the spread of the wildfire due
20 to natural causes and, as determined by the
21 Secretary, a wildfire that is caused by the Fed-
22 eral Government),”;
23 (2) in subsection (b)—

1 (A) by striking “an owner of nonindustrial
2 private forest land who” and inserting “an eli-
3 gible entity that”; and

4 (B) by striking “restore the land” and in-
5 serting “restore eligible land”;

6 (3) in subsection (c)—

7 (A) by striking “owner must” and insert-
8 ing “eligible entity shall”; and

9 (B) by striking “nonindustrial private for-
10 est land” and inserting “eligible land”;

11 (4) in subsection (d), by striking “an owner of
12 nonindustrial private forest land” and inserting “an
13 eligible entity”;

14 (5) by redesignating subsection (e) as sub-
15 section (h); and

16 (6) by inserting after subsection (d) the fol-
17 lowing:

18 “(e) ADVANCE PAYMENTS.—

19 “(1) IN GENERAL.—The Secretary shall give an
20 eligible entity the option of receiving, before the eli-
21 gible entity carries out emergency measures under
22 this section, not more than 75 percent of the cost of
23 the emergency measures, as determined by the Sec-
24 retary based on the fair market value of the cost of
25 the emergency measures using the estimated cost of

1 the applicable practice published in the Field Office
2 Technical Guide of each State by the Natural Re-
3 sources Conservation Service.

4 “(2) RETURN OF FUNDS.—If the funds pro-
5 vided under paragraph (1) are not expended by the
6 end of the 2-year period beginning on the date on
7 which the eligible entity receives those funds, the
8 funds shall be returned within a reasonable time-
9 frame, as determined by the Secretary.

10 “(f) STREAMLINING APPLICATION PROCESS.—

11 “(1) WAIVER OF PUBLIC COMMENT.—During
12 an eligible natural disaster, as determined by the
13 Secretary, the 30-day public comment period re-
14 quired under the National Environmental Policy Act
15 of 1969 (42 U.S.C. 4321 et seq.) shall be waived
16 with respect to an application to carry out emer-
17 gency measures under this section on land adminis-
18 tered by the Secretary of the Interior, acting
19 through the Director of the Bureau of Land Man-
20 agement (referred to in this subsection as the ‘Sec-
21 retary of the Interior’).

22 “(2) ACCEPTANCE OF ENVIRONMENTAL RE-
23 VIEWS.—With respect to an application to carry out
24 emergency measures under this section on land ad-

1 ministered by the Secretary of the Interior, the Sec-
2 retary of the Interior may accept—

3 “(A) during a drought emergency, as de-
4 termined by the Secretary, an archeological re-
5 view conducted by the Department of Agri-
6 culture or a qualified contractor that has been
7 approved by the Secretary of the Interior, for
8 purposes of such an archeological review re-
9 quired to be conducted;

10 “(B) an environmental review under the
11 National Environmental Policy Act of 1969 (42
12 U.S.C. 4321 et seq.) conducted by the Depart-
13 ment of Agriculture or a qualified contractor
14 that has been approved by the Secretary of the
15 Interior, for purposes of such an environmental
16 review required to be conducted; and

17 “(C) a review under the Endangered Spe-
18 cies Act of 1973 (16 U.S.C. 1531 et seq.) con-
19 ducted by the Department of Agriculture or a
20 qualified contractor that has been approved by
21 the Secretary of the Interior, for purposes of
22 such a review required to be conducted.

23 “(g) EFFECT.—Nothing in this section authorizes the
24 Secretary to make a payment under this section to the

1 Federal Government, a State, or a unit of local govern-
2 ment.”.

3 **SEC. 2803. FERAL SWINE ERADICATION AND CONTROL PRO-**
4 **GRAM.**

5 (a) IN GENERAL.—Chapter 5 of subtitle D of title
6 XII of the Food Security Act of 1985 is amended by in-
7 serting after section 1240M (16 U.S.C. 3839bb) the fol-
8 lowing:

9 **“SEC. 1240N. FERAL SWINE ERADICATION AND CONTROL**
10 **PROGRAM.**

11 “(a) IN GENERAL.—The Secretary shall establish a
12 feral swine eradication and control program (referred to
13 in this section as the ‘program’) to respond to the threat
14 feral swine pose to agriculture, native ecosystems, and
15 human and animal health.

16 “(b) DUTIES OF THE SECRETARY.—In carrying out
17 the program, the Secretary shall—

18 “(1) study and assess the nature and extent of
19 damage caused by feral swine to the areas described
20 in subsection (e);

21 “(2) develop methods to eradicate or control
22 feral swine in those areas;

23 “(3) develop methods to restore damage caused
24 by feral swine; and

1 “(4) provide financial assistance to agricultural
2 producers in those areas.

3 “(c) ASSISTANCE.—The Secretary may provide finan-
4 cial assistance to agricultural producers under the pro-
5 gram to implement methods—

6 “(1) to eradicate or control feral swine in the
7 areas described in subsection (e); and

8 “(2) to restore damage caused by feral swine.

9 “(d) COORDINATION.—The Secretary shall ensure
10 that the Natural Resources Conservation Service and the
11 Animal and Plant Health Inspection Service coordinate for
12 purposes of this section through State technical commit-
13 tees established under section 1261(a).

14 “(e) AREAS.—The Secretary shall carry out the pro-
15 gram in areas of States in which feral swine have been
16 identified as a threat to agriculture, native ecosystems, or
17 human or animal health, as determined by the Secretary.

18 “(f) COST SHARING.—

19 “(1) FEDERAL SHARE.—The Federal share of
20 the costs of activities under the program may not
21 exceed 75 percent of the total costs of such activi-
22 ties.

23 “(2) IN-KIND CONTRIBUTIONS.—The non-Fed-
24 eral share of the costs of activities under the pro-

1 gram may be provided in the form of in-kind con-
2 tributions of materials or services.

3 “(g) FUNDING.—

4 “(1) MANDATORY FUNDING.—Of the funds
5 made available under section 1241(a)(3)(A), the
6 Secretary shall use to carry out this section
7 \$150,000,000 for the period of fiscal years 2027
8 through 2031.

9 “(2) DISTRIBUTION OF FUNDS.—Of the funds
10 made available under paragraph (1)—

11 “(A) 40 percent shall be allocated to the
12 Natural Resources Conservation Service to
13 carry out the program, including the provision
14 of financial assistance to producers for on-farm
15 trapping and technology related to capturing
16 and confining feral swine; and

17 “(B) 60 percent shall be allocated to the
18 Animal and Plant Health Inspection Service to
19 carry out the program, including the use of es-
20 tablished, and testing of innovative, population
21 reduction methods.

22 “(3) LIMITATION ON ADMINISTRATIVE EX-
23 PENSES.—Not more than 10 percent of funds made
24 available under this section may be used for admin-
25 istrative expenses of the program.”.

1 (b) REPEAL.—

2 (1) IN GENERAL.—Section 2408 of the Agri-
3 culture Improvement Act of 2018 (7 U.S.C. 8351
4 note; Public Law 115–334) is repealed.

5 (2) CLERICAL AMENDMENT.—The table of con-
6 tents for the Agriculture Improvement Act of 2018
7 (Public Law 115–334; 132 Stat. 4491) is amended
8 by striking the item relating to section 2408.

9 (c) TERMINATION OF PROGRAM.—Effective on the
10 date of enactment of this Act, the feral swine eradication
11 and control pilot program under section 2408 of the Agri-
12 culture Improvement Act of 2018 (7 U.S.C. 8351 note;
13 Public Law 115–334) (as in effect on the day before the
14 date of enactment of this Act) shall cease to be effective.

15 (d) TRANSITIONAL PROVISIONS.—

16 (1) EFFECT ON EXISTING FINANCIAL ASSIST-
17 ANCE.—The cessation of effectiveness under sub-
18 section (c) shall not affect the validity or terms of
19 any financial assistance made by the Secretary
20 under section 2408 of the Agriculture Improvement
21 Act of 2018 (7 U.S.C. 8351 note; Public Law 115–
22 334) before the date of enactment of this Act, or
23 any payments, modifications, or technical assistance
24 required to be made in connection with the financial
25 assistance.

1 (2) EXTENSION PERMITTED.—Notwithstanding
2 subsection (c), the Secretary may extend for 1 year
3 financial assistance described in paragraph (1) if
4 that financial assistance expires on or before Decem-
5 ber 31, 2026, under the terms and payment rate of
6 the existing financial assistance and in accordance
7 with section 2408 of the Agriculture Improvement
8 Act of 2018 (7 U.S.C. 8351 note; Public Law 115–
9 334) (as in effect on the day before the date of en-
10 actment of this Act).

11 (3) RENEWAL NOT PERMITTED.—

12 (A) IN GENERAL.—Notwithstanding para-
13 graph (1), and subject to subparagraph (B), the
14 Secretary may not renew financial assistance
15 described in that paragraph.

16 (B) EXCEPTION.—The Secretary may
17 renew financial assistance described in para-
18 graph (1)—

19 (i) if that financial assistance expires
20 on or after December 31, 2026;

21 (ii) under the terms of the feral swine
22 eradication and control program under sec-
23 tion 1240N of the Food Security Act of
24 1985 (as added by subsection (a)); and

1 (iii) subject to the limitation on fund-
2 ing under subsection (g) of that section.

3 (e) CONTRACT ADMINISTRATION.—Subject to sub-
4 section (d)(3), the Secretary shall administer financial as-
5 sistance described in subsection (d)(1) until the expiration
6 of the financial assistance in accordance with the regula-
7 tions to carry out the feral swine eradication and control
8 pilot program under section 2408 of the Agriculture Im-
9 provement Act of 2018 (7 U.S.C. 8351 note; Public Law
10 115–334) (as in effect on the day before the date of enact-
11 ment of this Act) that are in effect on the day before that
12 date of enactment.

13 (f) FUNDING OF EXISTING FINANCIAL ASSIST-
14 ANCE.—Notwithstanding subsections (b) and (c), any
15 funds made available from the Commodity Credit Corpora-
16 tion under section 2408(g) of the Agriculture Improve-
17 ment Act of 2018 (7 U.S.C. 8351 note; Public Law 115–
18 334) (as in effect on the day before the date of enactment
19 of this Act) for fiscal years 2019 through 2026 shall be
20 available to carry out—

21 (1) financial assistance described in subsection
22 (d)(1) for fiscal year 2027;

23 (2) financial assistance extended under sub-
24 section (d)(2); and

1 (3) financial assistance under 1240N of the
2 Food Security Act of 1985 (as added by subsection
3 (a)).

4 **SEC. 2804. CONSERVATION OF PRIVATE GRAZING LAND.**

5 Section 1240M(e) of the Food Security Act of 1985
6 (16 U.S.C. 3839bb(e)) is amended by striking “2023” and
7 inserting “2031”.

8 **SEC. 2805. STATE CONSERVATION ASSISTANCE.**

9 Chapter 5 of subtitle D of title XII of the Food Secu-
10 rity Act of 1985 is amended by inserting after section
11 1240O (16 U.S.C. 3839bb–2) the following:

12 **“SEC. 1240P. STATE CONSERVATION ASSISTANCE.**

13 “(a) DEFINITIONS.—In this section:

14 “(1) AGRICULTURAL LAND.—The term ‘agricul-
15 tural land’ means—

16 “(A) cropland;

17 “(B) grassland;

18 “(C) rangeland;

19 “(D) pasture land;

20 “(E) nonindustrial private forest land; and

21 “(F) other land in agricultural areas (in-
22 cluding wetlands, marshes, and agricultural
23 land used or capable of being used for the pro-
24 duction of livestock), as determined by the Sec-
25 retary.

1 “(2) CONSERVATION ASSISTANCE PROGRAM.—

2 The term ‘conservation assistance program’ means a
3 program implemented by an Indian Tribe or State
4 to improve soil health or wildlife habitat or address
5 other local resource concerns on agricultural land
6 that—

7 “(A) is broadly consistent with the con-
8 servation principles of the Natural Resources
9 Conservation Service, as determined by the Sec-
10 retary, including the use of perennial grasses;
11 and

12 “(B) may include—

13 “(i) technical assistance;

14 “(ii) financial assistance;

15 “(iii) on-farm research and dem-
16 onstration;

17 “(iv) education, outreach, and train-
18 ing;

19 “(v) monitoring and evaluation; or

20 “(vi) such other components as the
21 Secretary determines to be appropriate.

22 “(3) ELIGIBLE INDIAN TRIBE.—The term ‘eligi-
23 ble Indian Tribe’ means an Indian Tribe that is—

1 “(A) implementing a new or existing con-
2 servation assistance program for the area over
3 which the Indian Tribe has jurisdiction; and

4 “(B) meeting or exceeding performance
5 measures established by the Indian Tribe for
6 the program.

7 “(4) ELIGIBLE STATE.—The term ‘eligible
8 State’ means a State that is—

9 “(A) implementing a new or existing con-
10 servation assistance program for the State; and

11 “(B) meeting or exceeding performance
12 measures established by the State for the pro-
13 gram.

14 “(b) AVAILABILITY AND PURPOSE OF GRANTS.—For
15 fiscal years 2027 through 2031, the Secretary shall make
16 grants to eligible States and eligible Indian Tribes for the
17 purpose of improving soil health or wildlife habitat or ad-
18 dressing other local resource concerns on agricultural land
19 through the implementation of State and Tribal conserva-
20 tion assistance programs.

21 “(c) APPLICATIONS.—

22 “(1) IN GENERAL.—To receive a grant under
23 this section, an eligible State or eligible Indian Tribe
24 shall submit to the Secretary an application at such
25 time, in such a manner, and containing such infor-

1 mation as the Secretary shall require, which shall in-
2 clude—

3 “(A) a description of performance meas-
4 ures to be used to evaluate the State or Tribal
5 conservation assistance program and the ex-
6 pected results of any activities carried out using
7 grant funds received under this section; and

8 “(B) an assurance that grant funds re-
9 ceived under this section will supplement, and
10 not supplant, the expenditure of State or Tribal
11 funds.

12 “(2) TRIBAL OPTION.—An Indian Tribe shall
13 have the option, at the sole discretion of the Indian
14 Tribe, to be incorporated into the application sub-
15 mitted by an eligible State under paragraph (1).

16 “(d) GRANTS.—

17 “(1) AMOUNT.—The amount of a grant to an
18 eligible State or eligible Indian Tribe under this sec-
19 tion for a fiscal year shall not exceed the lesser of—

20 “(A) \$5,000,000; and

21 “(B) as applicable—

22 “(i) 50 percent of the cost of imple-
23 menting the State conservation assistance
24 program in the fiscal year; or

1 “(ii) 75 percent of the cost of imple-
2 menting the Tribal conservation assistance
3 program in the fiscal year.

4 “(2) TERM.—A grant under this section shall
5 be for a term of not longer than 5 years at the dis-
6 cretion of the eligible State or eligible Indian Tribe,
7 and may be renewed in accordance with paragraph
8 (3).

9 “(3) RENEWAL.—If the Secretary determines
10 that a grant under this section has met or exceeded
11 the objectives of the State or Tribal conservation as-
12 sistance program, the Secretary may renew the
13 grant through an expedited noncompetitive process.

14 “(e) AUDITS AND REVIEWS.—An eligible State or eli-
15 gible Indian Tribe receiving a grant under this section
16 shall submit to the Secretary—

17 “(1) for each year for which the State or Indian
18 Tribe receives such a grant, the results of an audit
19 of the expenditures of the grant funds; and

20 “(2) at such intervals as the Secretary shall es-
21 tablish, a review and evaluation of the State or Trib-
22 al conservation assistance program.

23 “(f) EFFECT OF NONCOMPLIANCE.—If the Secretary,
24 after reasonable notice to an eligible State or eligible In-
25 dian Tribe receiving a grant under this section, finds that

1 the State or Indian Tribe has failed to comply with 1 or
2 more terms of the grant, the Secretary may disqualify, for
3 1 or more years, the State or Indian Tribe from receipt
4 of future grants under this section.

5 “(g) ADMINISTRATION.—

6 “(1) DEPARTMENT.—The Secretary shall not
7 use more than 3 percent of the funds made available
8 to carry out this section for a fiscal year for admin-
9 istrative expenses.

10 “(2) STATES AND INDIAN TRIBES.—An eligible
11 State or eligible Indian Tribe receiving a grant
12 under this section shall not use more than 7 percent
13 of the grant funds for a fiscal year for administra-
14 tive expenses.

15 “(h) FUNDING.—Of the funds of the Commodity
16 Credit Corporation, the Secretary shall use to make grants
17 under this section \$50,000,000 for each of fiscal years
18 2027 through 2031.”.

19 **TITLE III—TRADE**

20 **Subtitle A—Food for Peace Act**

21 **SEC. 3101. UNITED STATES POLICY.**

22 Section 2(1) of the Food for Peace Act (7 U.S.C.
23 1691(1)) is amended by striking “hunger and malnutri-
24 tion” and inserting “hunger, malnutrition, child wast-
25 ing,”.

1 **SEC. 3102. FOOD AID QUALITY ASSURANCE.**

2 Section 202 of the Food for Peace Act (7 U.S.C.
3 1722) is amended—

4 (1) in subsection (a), by striking “of law” and
5 inserting “of this Act”;

6 (2) in subsection (b)(1)—

7 (A) by striking “agricultural commodities
8 for nonemergency assistance” and inserting
9 “nonemergency assistance, including in the
10 form of agricultural commodities,”; and

11 (B) by striking “the commodities” and in-
12 serting “that assistance”;

13 (3) in subsection (d)—

14 (A) in the matter preceding paragraph (1),
15 by striking “subsection (b) an” and inserting
16 “subsection (b), an”;

17 (B) in paragraph (1), by striking “or” at
18 the end;

19 (C) in paragraph (2), by striking the pe-
20 riod at the end and inserting “; or”; and

21 (D) by adding at the end the following:

22 “(3) a nongovernmental organization, as deter-
23 mined by the Administrator.”;

24 (4) in subsection (e), by adding at the end the
25 following:

1 “(5) LIMITATION ON DIVERSION OF FUNDS.—
2 Of the funds made available to the Administrator for
3 each fiscal year under this title, not more than 50
4 percent may be made available for expenses other
5 than—

6 “(A) the procurement of United States-
7 grown agricultural commodities; and

8 “(B) ocean transportation of those com-
9 modities.”;

10 (5) in subsection (f)—

11 (A) in the subsection heading, by striking
12 “OF COMMODITIES”; and

13 (B) in the matter preceding paragraph
14 (1)—

15 (i) by striking “agricultural commod-
16 ities made available under this title are”
17 and inserting “assistance made available
18 under this title is”; and

19 (ii) by striking “such commodities
20 are” and inserting “that assistance is”;
21 and

22 (6) in subsection (h)(3), by striking “2023”
23 and inserting “2031”.

1 **SEC. 3103. REPEAL OF MINIMUM LEVELS OF ASSISTANCE.**

2 (a) IN GENERAL.—Section 204 of the Food for Peace
3 Act (7 U.S.C. 1724) is repealed.

4 (b) CONFORMING AMENDMENT.—Section 302(c)(1)
5 of the Bill Emerson Humanitarian Trust Act (7 U.S.C.
6 1736f–1(c)(1)) is amended by striking subparagraph (D).

7 **SEC. 3104. FOOD AID CONSULTATIVE GROUP.**

8 Section 205(f) of the Food for Peace Act (7 U.S.C.
9 1725(f)) is amended by striking “2023” and inserting
10 “2031”.

11 **SEC. 3105. PROGRAM OVERSIGHT, MONITORING, AND EVAL-**
12 **UATION.**

13 Section 207(f)(4) of the Food for Peace Act (7
14 U.S.C. 1726a(f)(4)) is amended by striking “2023” each
15 place it appears and inserting “2031”.

16 **SEC. 3106. INTERNATIONAL FOOD RELIEF PARTNERSHIP.**

17 Section 208 of the Food for Peace Act (7 U.S.C.
18 1726b) is amended by striking subsection (f) and inserting
19 the following:

20 “(f) AVAILABILITY OF APPROPRIATIONS.—In addi-
21 tion to amounts otherwise made available to carry out this
22 section, of the funds made available to the Administrator
23 for each fiscal year under this title, not less than
24 \$15,000,000 shall be made available in each of fiscal years
25 2027 through 2031 to carry out this section, to remain
26 available until expended.”.

1 **SEC. 3107. USE OF COMMODITY CREDIT CORPORATION.**

2 Section 406 of the Food for Peace Act (7 U.S.C.
3 1736) is amended by striking subsection (b) and inserting
4 the following:

5 “(b) INCLUDED EXPENSES.—With respect to com-
6 modities made available under titles II and III, the Com-
7 modity Credit Corporation may pay all associated and in-
8 cidental costs of those commodities.”.

9 **SEC. 3108. TECHNICAL CORRECTIONS AND ADMINISTRA-**
10 **TIVE PROVISIONS.**

11 (a) TECHNICAL CORRECTIONS.—

12 (1) FOOD FOR PEACE ACT TECHNICAL CORREC-
13 TIONS.—

14 (A) Section 404(c)(2)(C) of the Food for
15 Peace Act (7 U.S.C. 1734(c)(2)(C)) is amended
16 by striking “need for a 1 year” and inserting
17 “need for a 1-year”.

18 (B) Section 414(b) of the Food for Peace
19 Act (7 U.S.C. 1736g–1(b)) is amended by strik-
20 ing “section 481(i)(2) of the Foreign Assistance
21 Act of 1961)” and inserting “section 481(e) of
22 the Foreign Assistance Act of 1961 (22 U.S.C.
23 2291(e)))”.

24 (C) Section 501(b)(2)(A)(viii) of the Food
25 for Peace Act (7 U.S.C. 1737(b)(2)(A)(viii)) is
26 amended by adding a semicolon at the end.

1 (2) CORRECTING IMPROPER AMENDMENT.—

2 (A) IN GENERAL.—Section 216 of the Fed-
3 eral Agriculture Improvement and Reform Act
4 of 1996 (Public Law 104–127; 110 Stat. 957)
5 is amended—

6 (i) in paragraph (2), in the matter
7 preceding subparagraph (A), by striking
8 “(c)” and inserting “(b)”;

9 (ii) in paragraph (3), in the matter
10 preceding subparagraph (A), by striking
11 “(d)” and inserting “(c)”;

12 (iii) in paragraph (4), in the matter
13 preceding subparagraph (A), by striking
14 “(g)(2)” and inserting “(f)(2)”;

15 (iv) in paragraph (5), by striking
16 “(h)” and inserting “(g)”.

17 (B) EFFECTIVE DATE.—The amendments
18 made by subparagraph (A) shall take effect as
19 if enacted in the Federal Agriculture Improve-
20 ment and Reform Act of 1996 (Public Law
21 104–127; 110 Stat. 888).

22 (b) ADMINISTRATIVE PROVISIONS.—Section 407 of
23 the Food for Peace Act (7 U.S.C. 1736a) is amended—

24 (1) in subsection (c)—

1 (A) in paragraph (1), by indenting sub-
2 paragraph (B) appropriately; and

3 (B) in paragraph (4)(A), by striking
4 “2023” each place it appears and inserting
5 “2031”; and

6 (2) in subsection (f)—

7 (A) in paragraph (2)—

8 (i) by striking subparagraph (H) and
9 inserting the following:

10 “(H) A statement of the amount of funds
11 provided to each eligible organization that re-
12 ceived assistance under this Act and the man-
13 ner in which those funds were used, including
14 whether such use was for commodity transpor-
15 tation or administrative costs.”;

16 (ii) in subparagraph (I)—

17 (I) by striking “section 202(e),
18 406(b)(6), and 407(c)(1)(B)” and in-
19 serting “subsection (c)(1)(B) or sec-
20 tion 202(e)”; and

21 (II) by striking “such section”
22 and inserting “such provision”;

23 (iii) by redesignating subparagraphs
24 (E) through (I) as subparagraphs (F)
25 through (J), respectively; and

1 (iv) by inserting after subparagraph
2 (D) the following:

3 “(E) An assessment of activities specifi-
4 cally targeting women and girls and the impact
5 of those activities in addressing the unique
6 needs of women and girls.”; and

7 (B) by striking paragraph (3).

8 **SEC. 3109. EXPIRATION DATE.**

9 Section 408 of the Food for Peace Act (7 U.S.C.
10 1736b) is amended by striking “2023” and inserting
11 “2031”.

12 **SEC. 3110. MINIMUM LEVEL OF NONEMERGENCY FOOD AS-**
13 **SISTANCE.**

14 Section 412(e)(1) of the Food for Peace Act (7
15 U.S.C. 1736f(e)(1)) is amended by striking “2019
16 through 2023” and inserting “2027 through 2031”.

17 **SEC. 3111. MICRONUTRIENT FORTIFICATION PROGRAMS.**

18 Section 415(c) of the Food for Peace Act (7 U.S.C.
19 1736g–2(c)) is amended by striking “2023” and inserting
20 “2031”.

21 **SEC. 3112. JOHN OGWONSKI AND DOUG BEREUTER FARM-**
22 **ER-TO-FARMER PROGRAM.**

23 Section 501 of the Food for Peace Act (7 U.S.C.
24 1737) is amended by striking “2023” each place it ap-
25 pears and inserting “2031”.

1 **Subtitle B—Agricultural Trade Act**
2 **of 1978**

3 **SEC. 3201. PRESERVING FOREIGN MARKETS FOR GOODS**
4 **USING COMMON NAMES.**

5 (a) DEFINITIONS.—Section 102 of the Agricultural
6 Trade Act of 1978 (7 U.S.C. 5602) is amended—

7 (1) in the matter preceding paragraph (1), by
8 striking “As used in this Act—” and inserting “In
9 this Act:”;

10 (2) by redesignating paragraphs (2) through
11 (8) as paragraphs (3), (5), (6), (7), (8), (9), and
12 (4), respectively, and moving the paragraphs so as
13 to appear in numerical order;

14 (3) by inserting after paragraph (1) the fol-
15 lowing:

16 “(2) COMMON NAME.—

17 “(A) IN GENERAL.—The term ‘common
18 name’ means a name that, as determined by the
19 Secretary—

20 “(i) is ordinarily or customarily used
21 for an agricultural commodity or food
22 product;

23 “(ii) is typically placed on the pack-
24 aging and product label of the agricultural
25 commodity or food product;

1 “(iii) with respect to wine—

2 “(I) is—

3 “(aa) ordinarily or custom-
4 arily used for a wine grape vari-
5 etal name; or

6 “(bb) a traditional term or
7 expression that is typically placed
8 on the packaging and label of the
9 wine; and

10 “(II) does not mean any appella-
11 tion of origin for wine listed in sub-
12 part C of part 9 of title 27, Code of
13 Federal Regulations (or successor reg-
14 ulations); and

15 “(iv) the use of which is consistent
16 with standards of the Codex Alimentarius
17 Commission.

18 “(B) EXAMPLES.—The following names
19 shall be considered common names under sub-
20 paragraph (A):

21 “(i) With respect to food products:
22 american, asiago, basmati, black forest
23 ham, blue, blue vein, bologna, bologne,
24 bratwurst, brie, burrata, camembert,
25 capicola, capocollo, cheddar, chevre,

1 chorizo, colby, cottage cheese, coulommiers,
2 cream cheese, danbo, edam, emmental,
3 feta, fontina, gorgonzola, gouda, grana,
4 gruyere, havarti, kielbasa, limburger and
5 limburg, mascarpone, monterey jack,
6 mortadella, munster and muenster, neuf-
7 chatel, parmesan, pancetta, pecorino, pep-
8 per jack, prosciutto, provolone, ricotta, ro-
9 mano, saint-paulin, salame, salami, samso,
10 swiss, tilsiter, and tomme.

11 “(ii) With respect to wine:

12 “(I) The list of grape varietal
13 terms in section 4.91 of title 27, Code
14 of Federal Regulations (or a successor
15 regulation).

16 “(II) The grape varietal designa-
17 tions administratively approved by the
18 Alcohol and Tobacco Tax and Trade
19 Bureau.

20 “(III) The following nonvarietal
21 descriptors: chateau, classic, clos,
22 cream, crusted and crusting, noble,
23 ruby, sur lie, tawny, vintage, and vin-
24 tage character.

1 “(iii) With respect to beer: bitter, pale
2 ale, india pale ale, mild, porter, stout,
3 barleywine, dubbel, quadruple, witbier,
4 saison, biere de garde, oud red, altbier,
5 weisse, gose, hefeweizen, dunkel, helles,
6 rauchbier, pilsener, maerzen, schwarzbier,
7 doppelbock, bock, kellerbier, munchener
8 and munich style, oktoberfest, dortmunder,
9 kolsch and koelsch, cream, grodziskie,
10 lager.

11 “(C) CONSIDERATIONS.—In making a de-
12 termination under subparagraph (A), the Sec-
13 retary may take into account—

14 “(i) competent sources, such as dic-
15 tionaries, newspapers, professional journals
16 and literature, and information posted on
17 websites that are determined by the Sec-
18 retary to be reliable in reporting market
19 information;

20 “(ii) the use of the common name in
21 a domestic, regional, or international prod-
22 uct standard, including a standard promul-
23 gated by the Codex Alimentarius Commis-
24 sion, for the agricultural commodity or
25 food product; and

1 “(iii) the ordinary and customary use
2 of the common name in the production or
3 marketing of the agricultural commodity or
4 food product in the United States or in
5 other countries.

6 “(D) RULE OF CONSTRUCTION.—The enu-
7 meration of certain names under subparagraph
8 (B) shall not limit or restrict the ability of the
9 Secretary to determine, consistent with sub-
10 paragraph (A), that any other name is a com-
11 mon name under subparagraph (A).”; and
12 (4) in paragraph (7) (as so redesignated), in
13 subparagraph (A)—

14 (A) in clause (iv)(II), by inserting a closing
15 parenthesis before the semicolon at the end;

16 (B) in clause (v), by striking “or” at the
17 end;

18 (C) in clause (vi), by striking the period at
19 the end and inserting “; or”; and

20 (D) by adding at the end the following:

21 “(vii) prohibits or disallows the use of
22 the common name of an agricultural com-
23 modity or food product of the United
24 States.”.

1 (b) NEGOTIATIONS TO DEFEND USE OF COMMON
2 NAMES.—Title III of the Agricultural Trade Act of 1978
3 (7 U.S.C. 5652 et seq.) is amended by adding at the end
4 the following:

5 **“SEC. 303. NEGOTIATIONS TO DEFEND THE USE OF COM-**
6 **MON NAMES.**

7 “(a) IN GENERAL.—The Secretary shall advise and
8 support the efforts of the United States Trade Represent-
9 ative to secure the right of United States agricultural pro-
10 ducers, processors, and exporters to use common names
11 for agricultural commodities or food products in foreign
12 markets through the negotiation by the United States
13 Trade Representative of bilateral, plurilateral, or multilat-
14 eral agreements, memoranda of understanding, or ex-
15 changes of letters that assure the current and future use
16 of each common name identified by the Secretary in con-
17 nection with United States agricultural commodities or
18 food products.

19 “(b) BRIEFING.—Not less frequently than annually,
20 the Secretary and the United States Trade Representative
21 shall brief the Committees on Finance and Agriculture,
22 Nutrition, and Forestry of the Senate, and the Commit-
23 tees on Ways and Means and Agriculture of the House
24 of Representatives, regarding efforts and successes in car-

1 rying out subsection (a) during the period covered by the
2 brief.”.

3 **SEC. 3202. TECHNICAL ASSISTANCE TO IMPROVE INFRA-**
4 **STRUCTURE IN FOREIGN MARKETS FOR**
5 **UNITED STATES AGRICULTURAL COMMOD-**
6 **ITIES.**

7 Section 203(c) of the Agricultural Trade Act of 1978
8 (7 U.S.C. 5623(c)) is amended by adding at the end the
9 following:

10 “(4) TECHNICAL ASSISTANCE TO IMPROVE IN-
11 FRASTRUCTURE IN FOREIGN MARKETS FOR UNITED
12 STATES AGRICULTURAL COMMODITIES.—

13 “(A) IN GENERAL.—As part of the pro-
14 gram established under this subsection, the Sec-
15 retary shall enter into contracts or other agree-
16 ments with eligible trade organizations to pro-
17 vide needs assessments, training, and other
18 technical assistance to enhance the capabilities
19 of infrastructure in new and developing foreign
20 markets, including infrastructure relating to
21 cold chain capacity, port improvements, and
22 other developments, to ensure that United
23 States agricultural commodities are not dam-
24 aged or lost due to deficiencies of that infra-
25 structure.

201

1 “(B) FUNDS.—

2 “(i) AUTHORIZATION OF APPROPRIA-
3 TIONS.—

4 “(I) IN GENERAL.—There is au-
5 thorized to be appropriated to carry
6 out this paragraph \$1,000,000 for
7 each of fiscal years 2027 through
8 2031.

9 “(II) RULE OF CONSTRUC-
10 TION.—Subject to subclause (III),
11 amounts authorized to be appro-
12 priated under this subparagraph may
13 be used only for the purposes de-
14 scribed in subparagraph (A).

15 “(III) AVAILABILITY.—Amounts
16 authorized to be appropriated under
17 this subparagraph that are not obli-
18 gated by the end of the applicable fis-
19 cal year shall be made available to
20 carry out the program established
21 under this subsection in the subse-
22 quent fiscal year.

23 “(ii) LIMITATION FROM OTHER
24 FUNDS.—Beginning in fiscal year 2027, in
25 addition to the amounts made available

1 under clause (i), of the amounts made
2 available to carry out the program estab-
3 lished under this subsection, not more than
4 \$1,500,000 may be made available in a fis-
5 cal year for the purposes described in sub-
6 paragraph (A).”.

7 **SEC. 3203. REPORT ON COMPETITIVENESS OF UNITED**
8 **STATES EXPORTS OF SPECIALTY CROPS.**

9 Section 203(e) of the Agricultural Trade Act of 1978
10 (7 U.S.C. 5623(e)) is amended by striking paragraph (7)
11 and inserting the following:

12 “(7) ANNUAL REPORT.—

13 “(A) IN GENERAL.—Each year, the Sec-
14 retary, in consultation with the United States
15 Trade Representative, shall submit to the ap-
16 propriate committees of Congress a report de-
17 tailing the competitiveness of United States ex-
18 ports of specialty crops.

19 “(B) ELEMENTS.—Each report required
20 under subparagraph (A) shall—

21 “(i) identify and analyze acts, policies,
22 or practices of foreign countries that con-
23 stitute significant barriers to, or distor-
24 tions of, United States exports of specialty
25 crops, including the imposition of—

1 “(I) tariffs (including retaliatory
2 tariffs) and quotas (including tariff-
3 rate quotas); and

4 “(II) nontariff barriers, including
5 technical barriers to trade, sanitary
6 and phytosanitary measures, import
7 licensing procedures, and subsidies;

8 “(ii) in conjunction with the United
9 States International Trade Commission,
10 make an estimate—

11 “(I) of the impacts on the com-
12 petitiveness of United States exports
13 of specialty crops of any act, policy, or
14 practice identified under clause (i);
15 and

16 “(II) if feasible, of the value of
17 additional specialty crops that would,
18 during the year preceding submission
19 of the report, have been exported from
20 the United States to each foreign
21 country an act, policy, or practice of
22 which is identified under clause (i) if
23 each that act, policy, or practice of
24 that country did not exist;

1 “(iii) assess the extent to which each
2 act, policy, or practice identified under
3 clause (i) is subject to international agree-
4 ments to which the United States is a
5 party;

6 “(iv) include information, provided by
7 the United States Trade Representative,
8 with respect to any action taken by the ex-
9 ecutive branch during the year preceding
10 submission of the report to eliminate any
11 act, policy, or practice identified under
12 clause (i), including—

13 “(I) any action under section
14 301; and

15 “(II) action under a trade agree-
16 ment, including at the World Trade
17 Organization (such as engagement
18 through committees, negotiations,
19 consultations, and dispute settlement
20 actions); and

21 “(v) a description of—

22 “(I) any funds provided under
23 subsection (f)(3)(A)(iv) that were not
24 obligated in the fiscal year preceding
25 submission of the report; and

1 “(II) the reason those funds were
2 not obligated.

3 “(C) COMMENT PERIOD.—In preparing the
4 report required under subparagraph (A), the
5 Secretary, in coordination with the United
6 States Trade Representative, shall seek and
7 consider comments from the public and the Ag-
8 ricultural Technical Advisory Committee for
9 Trade in Fruits and Vegetables.

10 “(D) FORM OF REPORT.—The report re-
11 quired under subparagraph (A) shall be made
12 available to the public in machine-readable for-
13 mat.

14 “(E) CONGRESSIONAL BRIEFING.—Not
15 later than 30 days after a report is made pub-
16 licly available under subparagraph (D), the Sec-
17 retary shall provide a briefing on any classified
18 information not included in the public report
19 to—

20 “(i) the Committee on Agriculture,
21 Nutrition, and Forestry of the Senate;

22 “(ii) the Committee on Agriculture of
23 the House of Representatives;

24 “(iii) the Committee on Finance of
25 the Senate; and

1 “(iv) the Committee on Ways and
2 Means of the House of Representatives.”.

3 **SEC. 3204. AGRICULTURAL TRADE PROMOTION AND FA-**
4 **CILITATION.**

5 (a) IN GENERAL.—Section 203(f) of the Agricultural
6 Trade Act of 1978 (7 U.S.C. 5623(f)) is amended—

7 (1) in paragraph (2)—

8 (A) by striking “For each” and inserting
9 the following:

10 “(A) FISCAL YEARS 2019 THROUGH 2026.—
11 For each”;

12 (B) in subparagraph (A) (as so des-
13 ignated), by striking “2023” and inserting
14 “2026”; and

15 (C) by adding at the end the following:

16 “(B) FISCAL YEAR 2027.—For fiscal year
17 2027, of the funds of, or an equal value of com-
18 modities owned by, the Commodity Credit Cor-
19 poration, the Secretary shall use to carry out
20 this section \$515,000,000, to remain available
21 until expended.

22 “(C) FISCAL YEAR 2028 AND EACH FISCAL
23 YEAR THEREAFTER.—For fiscal year 2028 and
24 each fiscal year thereafter, of the funds of, or
25 an equal value of commodities owned by, the

1 Commodity Credit Corporation, the Secretary
2 shall use to carry out this section
3 \$533,000,000, to remain available until ex-
4 pended.”; and

5 (2) in paragraph (3)(A)—

6 (A) in the matter preceding clause (i), by
7 striking “2023” and inserting “2031”;

8 (B) in clause (i), by striking “not less
9 than” and all that follows through the period at
10 the end and inserting the following: “not less
11 than—

12 “(I) \$200,000,000 for each of
13 fiscal years 2019 through 2026;

14 “(II) \$421,000,000 for fiscal
15 year 2027; and

16 “(III) \$437,000,000 for each of
17 fiscal years 2028 through 2031.”; and

18 (C) in clause (ii), by striking “not less
19 than” and all that follows through the period at
20 the end and inserting the following: “not less
21 than—

22 “(I) \$34,500,000 for fiscal year
23 2026;

24 “(II) \$73,500,000 for fiscal year
25 2027; and

1 “(III) \$75,500,000 for each of
2 fiscal years 2028 through 2031.”.

3 (b) REPEALS.—

4 (1) IN GENERAL.—The following provisions of
5 law are repealed:

6 (A) Section 718 of title VII of the Agri-
7 culture, Rural Development, Food and Drug
8 Administration, and Related Agencies Appro-
9 priations Act, 1999 (Public Law 105–277; 112
10 Stat. 2681-27).

11 (B) Section 10602 of Public Law 119–21
12 (7 U.S.C. 5623a).

13 (2) CONFORMING AMENDMENT.—The table of
14 contents in section 1 of Public Law 119-21 (139
15 Stat. 73) is amended by striking the item relating
16 to section 10602.

17 **SEC. 3205. INTERAGENCY SEASONAL AND PERISHABLE**
18 **FRUITS AND VEGETABLE WORKING GROUP.**

19 Subtitle B of title IV of the Agricultural Trade Act
20 of 1978 (7 U.S.C. 5671 et seq.) is amended by adding
21 at the end the following:

22 **“SEC. 418. INTERAGENCY SEASONAL AND PERISHABLE**
23 **FRUITS AND VEGETABLES WORKING GROUP.**

24 “(a) IN GENERAL.—The Secretary, the United
25 States Trade Representative, the Secretary of Commerce,

1 and the heads of other Federal agencies or entities as de-
2 termined to be appropriate by the Secretary, shall jointly
3 establish an interagency working group (referred to in this
4 section as the ‘working group’) composed of representa-
5 tives from each such agency to monitor and assess, on an
6 ongoing basis, trade data and related information on sea-
7 sonal and perishable fruits and vegetables.

8 “(b) CONSULTATION.—The working group shall con-
9 sult with the Agricultural Trade Advisory Committee on
10 Fruits and Vegetables, relevant seasonal or perishable ag-
11 ricultural producers, and other relevant trade associations
12 to identify threats that imports pose to domestic producers
13 of seasonal and perishable fruits and vegetables.

14 “(c) TRADE ACTIONS AND INVESTIGATIONS.—The
15 working group shall coordinate, as appropriate, regarding
16 potential additional trade actions and investigations with
17 respect to any seasonal or perishable fruits and vegetables,
18 as determined to be advisable by the working group.

19 “(d) RECOMMENDATIONS TO THE SECRETARY.—The
20 working group shall recommend programs or assistance
21 that the Secretary may provide to producers of seasonal
22 and perishable fruits and vegetables to promote domestic
23 competitiveness or address market impacts.”.

1 **Subtitle C—Other Agricultural**
2 **Trade Laws**

3 **SEC. 3301. FOOD FOR PROGRESS ACT OF 1985.**

4 The Food for Progress Act of 1985 (7 U.S.C. 1736o)
5 is amended—

6 (1) in subsection (f)—

7 (A) in paragraph (5), by striking “of eligi-
8 ble” and inserting “of”; and

9 (B) by adding at the end the following:

10 “(6) PROHIBITION ON SINGLE COMMODITY OR
11 SINGLE COUNTRY.—

12 “(A) COMMODITY.—In making sales of eli-
13 gible commodities under this section, the Sec-
14 retary shall purchase more than 1 eligible com-
15 modity type in each fiscal year.

16 “(B) COUNTRY.—In entering into agree-
17 ments under this section, the Secretary shall
18 designate more than 1 country recipient in each
19 fiscal year.”;

20 (2) in subsection (g), by striking “2023” and
21 inserting “2031”;

22 (3) in subsection (k), by striking “2023” and
23 inserting “2031”;

24 (4) in subsection (l)(1)—

1 (A) by striking “2023” and inserting
2 “2031”; and

3 (B) by striking “(or, in the case of fiscal
4 year 1999, \$12,000,000)”; and
5 (5) in subsection (p)—

6 (A) in paragraph (1), by striking “2023”
7 and inserting “2031”;

8 (B) in paragraph (2), by striking “2024”
9 and inserting “2032”; and

10 (C) in paragraph (3), by striking “2019
11 through 2023” and inserting “2027 through
12 2031”.

13 **SEC. 3302. BILL EMERSON HUMANITARIAN TRUST ACT.**

14 Section 302 of the Bill Emerson Humanitarian Trust
15 Act (7 U.S.C. 1736f–1) is amended—

16 (1) in subsection (b)(2)(B)(i), by striking
17 “2023” each place it appears and inserting “2031”;

18 (2) in subsection (c)(1)(C), by striking “of
19 that” and inserting “of the Food for Peace”;

20 (3) in subsection (d)(2)—

21 (A) in subparagraph (B), by adding “and”
22 after the semicolon at the end; and

23 (B) in subparagraph (C), by striking “;
24 and” at the end and inserting a period; and

25 (4) in subsection (h)—

1 (A) in paragraph (1), by striking “2023”
2 and inserting “2031”; and
3 (B) in paragraph (2), by striking “2026”
4 and inserting “2031”.

5 **SEC. 3303. MCGOVERN-DOLE INTERNATIONAL FOOD FOR**
6 **EDUCATION AND CHILD NUTRITION PRO-**
7 **GRAM.**

8 Section 3107 of the Farm Security and Rural Invest-
9 ment Act of 2002 (7 U.S.C. 1736o–1) is amended—

10 (1) in subsection (c)(2)(B)(ii), in the matter
11 preceding subclause (I), by inserting “or lower-mid-
12 dle” before “income”;

13 (2) in subsection (h)(2), by striking “Com-
14 mittee on International Relations” and inserting
15 “Committee on Foreign Affairs”; and

16 (3) in subsection (l)—

17 (A) in paragraph (2), by striking “2023”
18 and inserting “2031”; and

19 (B) in paragraph (4), by striking “not
20 more than 10 percent” and inserting “not less
21 than 8 percent, but not more than 15 percent,”.

22 **SEC. 3304. INTERNATIONAL AGRICULTURAL EDUCATION**
23 **FELLOWSHIP PROGRAM.**

24 Section 3307 of the Agriculture Improvement Act of
25 2018 (7 U.S.C. 3295) is amended—

1 (1) in subsection (g)(1), by striking “2019
2 through 2023” and inserting “2027 through 2031”;

3 (2) by redesignating subsection (g) as sub-
4 section (h); and

5 (3) by inserting after subsection (f) the fol-
6 lowing:

7 “(g) PROGRAM CONTINUITY.—To assist eligible
8 countries in the long-term development of enduring,
9 school-based agricultural education and youth extension
10 programs, the Secretary shall, to the maximum extent
11 practicable—

12 “(1) implement the fellowship program in each
13 participating host country for not fewer than 3 con-
14 secutive years; and

15 “(2) ensure that contracts awarded to outside
16 organizations are multiyear contracts.”.

17 **SEC. 3305. INTERNATIONAL AGRICULTURE CULTURAL IM-**
18 **MERSION AND EXCHANGE PROGRAM.**

19 Subtitle C of title III of the Agriculture Improvement
20 Act of 2018 (Public Law 115–334; 132 Stat. 4617) is
21 amended by adding at the end the following:

22 **“SEC. 3313. INTERNATIONAL AGRICULTURE CULTURAL IM-**
23 **MERSION AND EXCHANGE PROGRAM.**

24 “(a) DEFINITIONS.—In this section:

1 “(1) ELIGIBLE CANDIDATE.—The term ‘eligible
2 candidate’ means an individual that—

3 “(A) is between the ages of 19 and 30
4 years;

5 “(B) has demonstrated experience in agri-
6 cultural sciences, food systems, and food and
7 nutrition education;

8 “(C) is prepared to live in 1 or more host
9 countries for at least 2 months or up to 6
10 months; and

11 “(D) is a resident of the United States.

12 “(2) ELIGIBLE COUNTRY.—The term ‘eligible
13 country’ means a country that has agricultural trade
14 relations with the United States, as recognized by
15 the Foreign Agriculture Service.

16 “(3) PROGRAM.—The term ‘Program’ means
17 the International Agriculture Cultural Immersion
18 and Exchange Program established under subsection
19 (b).

20 “(b) ESTABLISHMENT.—The Secretary shall estab-
21 lish an international cultural immersion and exchange pro-
22 gram, to be known as the ‘International Agriculture Cul-
23 tural Immersion and Exchange Program’, under which the
24 Secretary shall—

1 “(1) provide eligible candidates with inter-
2 national cultural exchange and immersion experi-
3 ences focused on agricultural sciences, food systems,
4 and food and nutrition education through placement
5 with host families in eligible countries; and

6 “(2) place in the United States with host fami-
7 lies individuals that meet the requirement of sub-
8 section (a)(1)(A) and are residents of eligible coun-
9 tries to experience United States agriculture, trade
10 relations, and culture.

11 “(c) PURPOSES.—The purposes of the Program
12 are—

13 “(1) to develop globally minded citizens of the
14 United States; and

15 “(2) to strengthen and enhance trade between
16 eligible countries and the United States in agricul-
17 tural, food, nutrition, and environmental industries.

18 “(d) COOPERATIVE AGREEMENT.—

19 “(1) IN GENERAL.—To administer the Pro-
20 gram, the Secretary shall enter into a cooperative
21 agreement with a nonprofit organization that has ex-
22 perience in implementing international cultural ex-
23 change programs focused on agricultural sciences,
24 food and nutrition education, and cultural under-
25 standing through placement with host families.

1 “(2) PRIORITY.—In carrying out paragraph (1),
2 the Secretary shall give priority to a nonprofit orga-
3 nization with which the Secretary has a memo-
4 randum of understanding dated not earlier than
5 January 1, 2019.

6 “(3) MATCHING FUNDS.—As a condition of en-
7 tering into a cooperative agreement under this sub-
8 section, a nonprofit organization shall provide equal
9 matching funds from non-Federal sources.

10 “(e) AUTHORIZATION OF APPROPRIATIONS.—There
11 is authorized to be appropriated \$10,000,000 for each of
12 fiscal years 2027 through 2031 to carry out this section.”.

13 **SEC. 3306. INTERNATIONAL FOOD SECURITY TECHNICAL**
14 **ASSISTANCE.**

15 Section 1543B(f) of the Food, Agriculture, Conserva-
16 tion, and Trade Act of 1990 (7 U.S.C. 1736dd(f)) is
17 amended by striking “2019 through 2023” and inserting
18 “2027 through 2031”.

19 **SEC. 3307. GLOBAL CROP DIVERSITY TRUST.**

20 Section 3202 of the Food, Conservation, and Energy
21 Act of 2008 (22 U.S.C. 2220a note; Public Law 110–246)
22 is amended—

23 (1) in subsection (b)—

24 (A) by striking paragraph (1) and insert-
25 ing the following:

1 “(1) IN GENERAL.—For the period of fiscal
2 years 2027 through 2031, the aggregate contribu-
3 tions of funds of the Federal Government provided
4 to the Trust under this section shall not exceed 33
5 percent of the total amount of funds contributed to
6 the Trust from all sources and for all purposes.”;
7 and

8 (B) in paragraph (2)—

9 (i) by inserting “under this section”
10 after “Trust”; and

11 (ii) by striking “2023” and inserting
12 “2031”; and

13 (2) in subsection (c), by striking “2014 through
14 2023” and inserting “2027 through 2031”.

15 **SEC. 3308. LOCAL AND REGIONAL FOOD AID PROCURE-**
16 **MENT PROJECTS.**

17 Section 3206(e)(1) of the Food, Conservation, and
18 Energy Act of 2008 (7 U.S.C. 1726c(e)(1)) is amended
19 by striking “2019 through 2023” and inserting “2027
20 through 2031”.

Subtitle D—Reports

2 SEC. 3401. REPORT ON THE DOMESTIC COMPETITIVENESS 3 OF UNITED STATES-GROWN AGRICULTURAL 4 COMMODITIES.

5 (a) IN GENERAL.—The Secretary, in coordination
6 with the United States Trade Representative and the
7 United States International Trade Commission, shall sub-
8 mit to the appropriate committees of Congress a report
9 analyzing the competitiveness of agricultural commodities
10 produced in the United States in the domestic market.

11 (b) ELEMENTS.—The report required under sub-
12 section (a) shall—

13 (1) identify agricultural commodities produced
14 in the United States that experience injury from
15 competition with increased imports of foreign-pro-
16 duced agricultural commodities, including an anal-
17 ysis of domestic market share trends;

18 (2) identify and analyze acts, policies, or prac-
19 tices of foreign countries that unfairly enhance the
20 competitiveness of imported agricultural commodities
21 against domestically produced agricultural commod-
22 ities, including—

23 (A) the subsidization of exports from the
24 producing country; and

1 (B) the lack or circumvention of labor and
2 environmental laws or protections in the pro-
3 ducing country;

4 (3) if feasible, make an estimate of—

5 (A) the injury to domestic producers and
6 United States industry, including the extent to
7 which United States production—

8 (i) is displaced;

9 (ii) declines in profitability; or

10 (iii) experiences impacts to its long-
11 term viability; and

12 (B) the value of commodities identified
13 under paragraph (1) that would, during the
14 year preceding submission of the report, have
15 been sold in the United States if each act, pol-
16 icy, or practice of foreign countries identified
17 under paragraph (2) did not exist;

18 (4) assess the extent to which each act, policy,
19 or practice identified under paragraph (2) is subject
20 to 1 or more international agreements to which the
21 United States is a party;

22 (5) include information, provided by the United
23 States Trade Representative, with respect to any ac-
24 tion taken by the executive branch during the year
25 preceding submission of the report to enhance the

1 domestic competitiveness of agricultural commodities
2 identified in paragraph (1) and counter any act, pol-
3 icy, or practice identified under paragraph (2), in-
4 cluding—

5 (A) any action under section 201 or 301 of
6 the Agricultural Trade Act of 1978 (7 U.S.C.
7 5621, 5652); and

8 (B) action under a trade agreement, in-
9 cluding at the World Trade Organization (such
10 as engagement through committees, negotia-
11 tions, consultations, and dispute settlement ac-
12 tions); and

13 (6) include recommendations for administrative,
14 regulatory, or legislative actions to promote the com-
15 petitiveness of United States-produced agricultural
16 commodities in the domestic market against imports
17 of foreign-produced agricultural commodities.

18 (c) FORM OF REPORT.—The report required under
19 subsection (a) shall be made available to the public in ma-
20 chine-readable format.

21 (d) CONGRESSIONAL BRIEFING.—Not later than 30
22 days after a report is made publicly available under sub-
23 section (c), the Secretary shall provide a briefing on any
24 classified information not included in the public report
25 to—

1 (1) the Committee on Agriculture, Nutrition,
2 and Forestry of the Senate;

3 (2) the Committee on Agriculture of the House
4 of Representatives;

5 (3) the Committee on Finance of the Senate;
6 and

7 (4) the Committee on Ways and Means of the
8 House of Representatives.

9 **SEC. 3402. REPORT ON INTERNATIONAL SHRIMP TRADE.**

10 (a) IN GENERAL.—Not later than 180 days after the
11 date of enactment of this Act, the Comptroller General
12 of the United States shall submit to the Committee on
13 Agriculture, Nutrition, and Forestry, the Committee on
14 Health, Education, Labor, and Pensions, and the Com-
15 mittee on Finance of the Senate and the Committee on
16 Agriculture, the Committee on Energy and Commerce,
17 and the Committee on Ways and Means of the House of
18 Representatives a report that examines policy options
19 available to the Secretary to boost the competitiveness of
20 domestic shrimp in global and domestic markets.

21 (b) CONTENTS.—The report required under sub-
22 section (a) shall—

23 (1) include an analysis of—

24 (A) the authority of the Secretary with re-
25 gard to shrimp and other seafood products;

1 (B) access to financial support programs
2 by domestic shrimp and other seafood pro-
3 ducers; and

4 (C) ways to facilitate interagency coordina-
5 tion under existing authorities around common
6 goals for shrimp and other seafood commodities
7 with respect to tariffs, market access policies,
8 and other nontariff barriers; and

9 (2) identify trade or other legal barriers to
10 United States shrimp and seafood production that
11 are maintained by trading partners and may signifi-
12 cantly impede United States production or exports.

13 **TITLE IV—NUTRITION**

14 **Subtitle A—Supplemental**

15 **Nutrition Assistance Program**

16 **SEC. 4101. FOOD DISTRIBUTION PROGRAM ON INDIAN RES-**
17 **ERVATIONS.**

18 (a) TRADITIONAL AND LOCALLY- AND REGIONALLY-
19 GROWN FOOD FUND.—Section 4(b)(6)(E) of the Food
20 and Nutrition Act of 2008 (7 U.S.C. 2013(b)(6)(E)) is
21 amended by striking “2023” and inserting “2031”.

22 (b) INCREASING TRIBAL INPUT ON NUTRITION.—

23 (1) IN GENERAL.—Section 4(b) of the Food
24 and Nutrition Act of 2008 (7 U.S.C. 2013(b)) is
25 amended—

1 (A) by striking “tribal organization” each
2 place it appears and inserting “Tribal organiza-
3 tion”;

4 (B) by redesignating paragraph (7) as
5 paragraph (9); and

6 (C) by inserting after paragraph (6) the
7 following:

8 “(7) TRIBAL INCLUSION IN CONTRACTING
9 PROCESS.—Prior to conducting evaluation of con-
10 tracts under the food distribution program on Indian
11 reservations under this subsection, the Secretary
12 shall—

13 “(A) consult with Indian Tribes and Tribal
14 organizations and ensure their feedback is inte-
15 grated into the evaluation; and

16 “(B) consider feedback from Indian Tribes
17 and Tribal organizations throughout the evalua-
18 tion process.

19 “(8) SUPPLY CHAIN DISRUPTIONS.—

20 “(A) DEFINITION OF SUPPLY CHAIN DIS-
21 RUPTION.—

22 “(i) IN GENERAL.—In this paragraph,
23 the term ‘supply chain disruption’ means a
24 shortage of foods that impedes the dis-

1 tribution of commodities, as determined by
2 the Secretary.

3 “(ii) INCLUSION.—The term ‘supply
4 chain disruption’ includes a supplemental
5 food shortage due to a multifoed ware-
6 house issue that affects contracting, pro-
7 duction, manufacture, sourcing, procure-
8 ment, transportation, or storage of food
9 and impedes the function of the food dis-
10 tribution program on Indian reservations
11 under this subsection, as determined by
12 the Secretary.

13 “(B) EMERGENCY ASSISTANCE.—If the
14 Secretary determines that there is a supply
15 chain disruption, the Secretary—

16 “(i) shall, not later than 45 days after
17 the date on which the Secretary makes
18 that determination, designate an emer-
19 gency warehouse contractor to provide the
20 required food capacity in a timely manner;
21 and

22 “(ii) may provide direct payments or
23 reimbursements to an Indian Tribe or
24 Tribal organization administering the food
25 distribution program on Indian reserva-

1 tions under this subsection to purchase
2 food in accordance with subparagraph (D).

“(C) PAYMENTS.—The total amount of payments provided under subparagraph (B)(ii) to an Indian Tribe or Tribal organization shall not exceed the amount of funding that the Secretary would otherwise expend for that Indian Tribe or Tribal organization during the same time period under the food distribution program on Indian reservations under this subsection.

11 “(D) PROCUREMENT OF AGRICULTURAL
12 COMMODITIES.—

“(i) IN GENERAL.—Any agricultural commodities purchased by an Indian Tribe or Tribal organization using payments under subparagraph (B)(ii) shall satisfy the conditions described in clause (ii), unless waived by the Secretary.

“ (ii) CONDITIONS DESCRIBED.—The conditions referred to in clause (i) for agricultural commodities are the following:

22 “(I) The agricultural commod-
23 ities are domestically produced.

24 “(II) The agricultural commod-
25 ities supplant, not supplement, the

1 type of agricultural commodities in ex-
2 isting food packages for that Indian
3 Tribe or Tribal organization.

4 “(III) The agricultural commod-
5 ities are of similar or higher nutri-
6 tional value as the type of agricultural
7 commodities that would be supplanted
8 in the existing food package for that
9 Indian Tribe or Tribal organization.

10 “(IV) The agricultural commod-
11 ities meet any other criteria deter-
12 mined by the Secretary.

13 “(E) NOTIFICATION; PUBLICATION.—If the
14 Secretary designates an emergency warehouse
15 contractor under subparagraph (B)(i), the Sec-
16 retary shall—

17 “(i) notify each affected Tribal orga-
18 nization or State agency of the designa-
19 tion, including an explanation of the deter-
20 mination of the Secretary of a supply chain
21 disruption; and

22 “(ii) make that designation, and ex-
23 planation of the determination, publicly
24 available on the website of the Department
25 of Agriculture.”.

1 (2) COMMODITY SUPPLEMENTAL FOOD PRO-
2 GRAM.—Section 5 of the Agriculture and Consumer
3 Protection Act of 1973 (7 U.S.C. 612c note; Public
4 Law 93–86) is amended by adding at the end the
5 following:

6 “(n) CONSULTATION WITH INDIAN TRIBES.—

7 “(1) IN GENERAL.—The Secretary shall imple-
8 ment the commodity supplemental food program in
9 a manner that is responsive to the needs of the
10 members of Indian Tribes and Tribal organizations
11 by conducting annual consultations with Indian
12 Tribes and Tribal organizations.

13 “(2) AMENDMENTS TO STATE PLANS.—

14 “(A) IN GENERAL.—With respect to sub-
15 mitting any amendment to a State plan pursu-
16 ant to section 247.6 of title 7, Code of Federal
17 Regulations (or a successor regulation), a State
18 agency is encouraged—

19 “(i) prior to that submission, to con-
20 sult in good faith with applicable Indian
21 Tribes or Tribal organizations on the con-
22 tent of the amendment; and

23 “(ii) to include in the submission doc-
24 umentation evidencing that consultation.

1 “(B) TECHNICAL ASSISTANCE.—The Sec-
2 retary shall provide technical assistance to
3 State agencies, including by entering into coop-
4 erative agreements, on how to properly conduct
5 consultations pursuant to subparagraph (A), in-
6 cluding relating to—

7 “(i) providing proper notice as to
8 when a consultation will take place;

9 “(ii) ensuring consultations are with
10 Tribal officials; and

11 “(iii) releasing a collaborative agenda
12 in advance of the consultation.

13 “(o) SUPPLY CHAIN DISRUPTIONS.—

14 “(1) DEFINITION OF SUPPLY CHAIN DISRUP-
15 TION.—

16 “(A) IN GENERAL.—In this paragraph, the
17 term ‘supply chain disruption’ means a shortage
18 of foods that impedes the distribution of com-
19 modities, as determined by the Secretary.

20 “(B) INCLUSION.—The term ‘supply chain
21 disruption’ includes a supplemental food short-
22 age due to a multifood warehouse issue that af-
23 fects contracting, production, manufacture,
24 sourcing, procurement, transportation, or stor-
25 age of food and impedes the function of the

1 commodity supplemental food program, as de-
2 termined by the Secretary.

3 “(2) EMERGENCY WAREHOUSE CONTRACTOR.—

4 If the Secretary determines that there is a supply
5 chain disruption, the Secretary shall, not later than
6 45 days after the date on which the Secretary makes
7 that determination, designate an emergency ware-
8 house contractor to provide the required food capac-
9 ity in a timely manner.

10 “(3) NOTIFICATION; PUBLICATION.—If the Sec-
11 retary designates an emergency warehouse con-
12 tractor under paragraph (2), the Secretary shall—

13 “(A) notify each affected Tribal organiza-
14 tion or State agency of the designation, includ-
15 ing an explanation of the determination of the
16 Secretary of a supply chain disruption; and

17 “(B) make that designation, and expla-
18 nation of the determination, publicly available
19 on the website of the Department of Agri-
20 culture.”.

21 **SEC. 4102. PROHIBITED FEES.**

22 Section 7(h)(13)(B) of the Food and Nutrition Act
23 of 2008 (7 U.S.C. 2016(h)(13)(B)) is amended by striking
24 “Effective through fiscal year 2023, neither” and insert-
25 ing “Neither”.

1 **SEC. 4103. PERMANENT AUTHORITY FOR ONLINE PUR-**
2 **CHASING.**

3 Section 7 of the Food and Nutrition Act of 2008 (7
4 U.S.C. 2016) is amended by adding at the end the fol-
5 lowing:

6 “(1) ONLINE PURCHASING PROGRAM.—

7 “(1) PERMANENT AUTHORITY.—Not later than
8 120 days after the date of enactment of this sub-
9 section, the Secretary shall begin transitioning the
10 supplemental nutrition assistance program online
11 purchasing initiative from pilot or demonstration
12 status to permanent nationwide program operation,
13 with the completion of the regulations required
14 under paragraph (2) marking the end of the transi-
15 tion.

16 “(2) REGULATIONS.—Not later than 2 years
17 after the date of enactment of this subsection, the
18 Secretary shall issue such regulations and guidance
19 as may be necessary to carry out paragraph (1), in-
20 cluding provisions relating to program integrity, con-
21 sumer protections, and equitable access in rural
22 areas.

23 “(3) STAKEHOLDER CONSULTATION.—

24 “(A) IN GENERAL.—In carrying out this
25 subsection, the Secretary shall establish a for-
26 mal process for consultation with State agen-

1 cies, authorized retailers, electronic benefit
2 transfer processors, consumer advocates, and
3 other relevant stakeholders to incorporate les-
4 sons learned from online purchasing operations
5 during the period of 2014 through 2025.

6 “(B) REPORT.—Not later than 120 days
7 after the date of enactment of this subsection,
8 the Secretary shall submit to the Committee on
9 Agriculture, Nutrition, and Forestry of the Sen-
10 ate and the Committee on Agriculture of the
11 House of Representatives a report describing
12 the consultation process under subparagraph
13 (A) and recommendations received from stake-
14 holders under that process.”.

15 **SEC. 4104. APPROVAL OF RETAIL FOOD STORES AND**
16 **WHOLESALE FOOD CONCERNS.**

17 (a) DEFINITION OF RETAIL FOOD STORE.—Section
18 3(o)(1) of the Food and Nutrition Act of 2008 (7 U.S.C.
19 2012(o)(1)) is amended, in the matter preceding subpara-
20 graph (A), by striking “sells food” and inserting “owns
21 food inventory and sells that food”.

22 (b) ADDITIONAL REQUIREMENTS FOR PARTICIPA-
23 TION OF RETAIL FOOD STORES.—Section 9 of the Food
24 and Nutrition Act of 2008 (7 U.S.C. 2018) is amended—
25 (1) in subsection (a)—

1 (A) in paragraph (2), by striking “(2) The
2 Secretary” and inserting the following:

3 “(2) REGULATIONS.—The Secretary”; and

4 (2) in subsection (c), in the third sentence, by
5 inserting “(42 U.S.C. 1786)” after “Act of 1966”;
6 and

7 (3) by striking subsection (f) and inserting the
8 following:

9 “(f) ADDITIONAL REQUIREMENTS FOR PARTICIPA-
10 TION.—

11 “(1) HOUSE-TO-HOUSE TRADE ROUTES, ON-
12 LINE-ONLY ENTITIES.—

13 “(A) IN GENERAL.—The Secretary shall
14 limit participation in the supplemental nutrition
15 assistance program of house-to-house trade
16 routes and entities that operate solely online
17 (referred to in this paragraph as ‘online-only
18 entities’) to include only such routes and online-
19 only entities that support the purposes of the
20 supplemental nutrition assistance program.

21 “(B) TERMS AND CONDITIONS.—The Sec-
22 retary shall establish terms and conditions for
23 participation of house-to-house trade routes and
24 online-only entities in the supplemental nutri-

1 tion assistance program, which shall include, at
2 a minimum—

3 “(i) a requirement to be fully oper-
4 ational with respect to sales to the public
5 for not less than 1 year before receiving
6 authorization under this section, including,
7 for online-only entities, operation in e-com-
8 merce for not less than that 1-year period;

9 “(ii) a requirement to provide to the
10 Secretary, on request—

11 “(I) documentation to establish
12 inventory ownership, such as business
13 records; and

14 “(II) evidence of sufficient and
15 consistent minimum inventory levels,
16 such as business records, inventory
17 storage facility visit reports, and other
18 means, including, for online-only enti-
19 ties, documentation matching owned
20 inventory with online offerings, as the
21 Secretary determines to be sufficient
22 to qualify continuously as a retail food
23 store; and

24 “(iii) a requirement to demonstrate
25 sales consistent with inventory, as deter-

1 mined by the Secretary, for not less than
2 1 year before receiving authorization under
3 this section and periodically thereafter, as
4 the Secretary determines to be appropriate.

5 “(2) ENTITIES WITHOUT INVENTORY.—An enti-
6 ty (including a product aggregator) that does not
7 qualify as a retail food store described in section
8 3(o)(1) because the entity does not own food inven-
9 tory may not participate in the supplemental nutri-
10 tion assistance program.

11 “(3) THIRD-PARTY ENTITIES AND INVEN-
12 TORY.—

13 “(A) RETAILERS.—An entity that is not
14 an approved retail food store may not offer food
15 for sale in exchange for benefits through an ap-
16 proved retail food store.

17 “(B) INVENTORY.—An approved retail
18 food store may not offer inventory for sale in
19 exchange for benefits if that inventory is owned
20 by an entity that is not an approved retail food
21 store.”.

22 **SEC. 4105. ADMINISTRATIVE PROCESSES FOR RETAILERS.**

23 Section 9(d) of the Food and Nutrition Act of 2008
24 (7 U.S.C. 2018(d)) is amended, in the second sentence,

1 by inserting “, on 2 consecutive occasions within a 3-year
2 period,” after “does not meet”.

3 **SEC. 4106. ANIMAL PROTEIN AS ELIGIBLE INCENTIVE**
4 **FOOD.**

5 Section 9(j)(1)(B) of the Food and Nutrition Act of
6 2008 (7 U.S.C. 2018(j)(1)(B)) is amended by inserting
7 “animal protein,” after “whole grain,”.

8 **SEC. 4107. STAFFING FLEXIBILITY.**

9 Section 11 of the Food and Nutrition Act of 2008
10 (7 U.S.C. 2020) is amended by adding at the end the fol-
11 lowing:

12 “(y) STAFFING FLEXIBILITY.—

13 “(1) HIRING CONTRACTORS.—

14 “(A) IN GENERAL.—Notwithstanding sub-
15 section (e)(6)(B), a State agency may, subject
16 to subparagraph (B), hire 1 or more contrac-
17 tors, by contract, to undertake the certification
18 described in subsection (e)(6)(A) or carry out
19 any other function of the State agency under
20 the supplemental nutrition assistance program,
21 subject to subparagraph (C).

22 “(B) CIRCUMSTANCES FOR HIRING.—

23 “(i) IN GENERAL.—A State agency
24 may hire 1 or more contractors under sub-
25 paragraph (A) if the State agency—

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1 “(I) experiences an increase in
2 applications to the supplemental nu-
3 trition assistance program; or

4 “(II) cannot timely process appli-
5 cations to the supplemental nutrition
6 assistance program, including due
7 to—

8 “(aa) a pandemic or other
9 health emergency;

10 “(bb) a seasonal workforce
11 cycle;

12 “(cc) a temporary staffing
13 shortage; and

14 “(dd) weather or other nat-
15 ural disaster.

16 “(ii) TEMPORARY STAFFING SHORT-
17 AGE.—In the case of a State agency hiring
18 1 or more contractors under subparagraph
19 (A) due to a temporary staffing shortage
20 under clause (i)(II)(cc), the authority of a
21 State agency to conduct that hiring—

22 “(I) shall expire when there is
23 adequate staffing for the State agency
24 to timely process applications; and

1 “(II) shall not impact any collec-
2 tive bargaining agreement or memo-
3 randum of understanding in effect be-
4 tween the State and employees of the
5 State or a local government of the
6 State.

7 “(C) REQUIREMENTS.—

8 “(i) IN GENERAL.—A contract entered
9 into by a State agency under subparagraph
10 (A) shall not provide incentives for the
11 State agency or contractor to delay eligi-
12 bility determinations or deny eligibility for
13 individuals otherwise eligible for benefits
14 under the supplemental nutrition assist-
15 ance program.

16 “(ii) NO FINANCIAL INTEREST.—A
17 State agency may not hire a contractor
18 under subparagraph (A) if the contractor
19 has a direct or indirect financial interest in
20 any approved retail store, wholesale food
21 concern, or employment and training pro-
22 gram.

23 “(iii) EXCLUDED ACTIVITIES.—A con-
24 tractor hired under subparagraph (A) may
25 not—

1 “(I) determine eligibility;
2 “(II) initiate enforcement ac-
3 tions;
4 “(III) conduct quality control;
5 “(IV) conduct administrative
6 hearings; or
7 “(V) screen for or make a refer-
8 ral to an employment and training
9 program.

10 “(D) ADMINISTRATION.—A State agency
11 that hires 1 or more contractors under subpara-
12 graph (A) shall ensure that—

13 “(i) the contracts are for a reasonable
14 cost and in accordance with the standard
15 contracting rules of the State agency;

16 “(ii) hiring is consistent with the
17 merit principles described in section
18 900.603 of title 5, Code of Federal Regula-
19 tions (or a successor regulation); and

20 “(iii) the contractors do not supplant
21 existing merit-based personnel in the State.

22 “(2) PROGRAM DESIGN.—The hiring of 1 or
23 more contractors by a State agency under paragraph
24 (1) shall not—

1 “(A) be considered to be a major change in
2 the operations of the State agency for purposes
3 of subsection (a)(4); or

4 “(B) be subject to any requirement speci-
5 fied in that section.

6 “(3) STATE AGENCY NOTIFICATION.—

7 “(A) IN GENERAL.—A State agency that
8 hires 1 or more contractors under paragraph
9 (1) shall notify the Secretary of such hiring, in-
10 cluding providing information or data indicating
11 the applicable circumstance under subpara-
12 graph (B) of that paragraph for carrying out
13 that hiring.

14 “(B) PUBLICATION.—Not later than 10
15 days after the date of receipt of a notification
16 under subparagraph (A), the Secretary shall
17 make publicly available on the website of the
18 Department of Agriculture the notification and
19 the accompanying information or data.

20 “(4) ANNUAL REPORT.—The Secretary shall
21 submit to the Committee on Agriculture, Nutrition,
22 and Forestry of the Senate and the Committee on
23 Agriculture of the House of Representatives an an-
24 nual report that describes—

1 “(A) the measures taken by State agencies
2 to address increases in applications to the sup-
3 plemental nutrition assistance program;

4 “(B) reasons for the inability of State
5 agencies to timely process those applications, as
6 applicable;

7 “(C) the information or data submitted
8 with each notification under paragraph (3)(A);
9 and

10 “(D) any recommended changes to the au-
11 thority of the Secretary to assist State agencies
12 in preparing for any future increase in applica-
13 tions to the supplemental nutrition assistance
14 program or inability to timely process those ap-
15 plications.”.

16 **SEC. 4108. QUALITY CONTROL IMPROVEMENTS.**

17 Section 16(c) of the Food and Nutrition Act of 2008
18 (7 U.S.C. 2025 (c)) is amended—

19 (1) by redesignating paragraph (9) as para-
20 graph (11); and

21 (2) by inserting after paragraph (8) the fol-
22 lowing:

23 “(9) REPORT ON ALL IDENTIFIED PAYMENT
24 ERRORS.—

1 “(A) IN GENERAL.—The Secretary shall
2 include all identified payment errors, including
3 small errors under paragraph (1)(A)(ii), regard-
4 less of dollar amount, in a supplemental section
5 of the annual payment error rate measurement
6 report for the supplemental nutrition assistance
7 program.

8 “(B) RULE OF CONSTRUCTION.—The in-
9 formation reported under subparagraph (A)
10 shall not alter, modify, or affect the calculation
11 of the tolerance level for excluding small errors
12 under paragraph (1)(A)(ii).

13 “(10) REPORT ON UNKNOWN AND TECH-
14 NICALLY IMPROPER PAYMENTS.—

15 “(A) IN GENERAL.—The Secretary shall
16 include all unknown and improper payments, as
17 identified under the Payment Integrity Infor-
18 mation Act of 2019 (31 U.S.C. 3351 et seq.),
19 regardless of dollar amount, in a supplemental
20 section of the annual payment error rate meas-
21 urement report for the supplemental nutrition
22 assistance program.

23 “(B) RULE OF CONSTRUCTION.—The in-
24 formation reported under subparagraph (A)
25 shall not alter, modify, or affect the calculation

1 of the tolerance level for excluding small errors
2 under paragraph (1)(A)(ii).”.

3 **SEC. 4109. AUTHORIZATION OF APPROPRIATIONS.**

4 Section 18(a)(1) of the Food and Nutrition Act of
5 2008 (7 U.S.C. 2027(a)(1)) is amended, in the first sen-
6 tence, by striking “2023” and inserting “2031”.

7 **SEC. 4110. RETAIL FOOD STORE AND RECIPIENT TRAF-**
8 **FICKING.**

9 Section 29(c)(1) of the Food and Nutrition Act of
10 2008 (7 U.S.C. 2036b(c)(1)) is amended by striking
11 “2023” and inserting “2031”.

12 **SEC. 4111. THE EMERGENCY FOOD ASSISTANCE PROGRAM.**

13 (a) EMERGENCY FOOD PROGRAM INFRASTRUCTURE
14 GRANTS.—Section 209(d) of the Emergency Food Assist-
15 ance Act of 1983 (7 U.S.C. 7511a(d)) is amended by
16 striking “2023” and inserting “2031”.

17 (b) AVAILABILITY OF COMMODITIES.—Section 27(a)
18 of the Food and Nutrition Act of 2008 (7 U.S.C. 2036(a))
19 is amended—

20 (1) in paragraph (1), by striking “2023” and
21 inserting “2031”; and

22 (2) in paragraph (2)(C), by striking “2023”
23 and inserting “2031”.

1 **SEC. 4112. DAIRY NUTRITION INCENTIVE PROGRAM.**

2 Section 4208 of the Agriculture Improvement Act of
3 2018 (7 U.S.C. 2026a) is amended—

4 (1) in the section heading, by striking
5 “**HEALTHY FLUID MILK**” and inserting “**DAIRY**
6 **NUTRITION**”;

7 (2) by striking “healthy fluid milk” each place
8 it appears and inserting “dairy nutrition”;

9 (3) by striking subsection (a) and inserting the
10 following:

11 “(a) **DEFINITIONS.**—In this section:

12 “(1) **COVERED DAIRY PRODUCT.**—The term
13 ‘covered dairy product’ means—

14 “(A) cheese (including nonstandardized
15 cheese) that—

16 “(i) is made from pasteurized cow’s
17 milk;

18 “(ii) is a good source of protein, as
19 determined by the Secretary; and

20 “(iii) is sold as a block, chunk, shred,
21 slice, stick, or string, or in snack-size form;
22 and

23 “(B) yogurt or other cultured dairy prod-
24 uct that—

25 “(i) is made from pasteurized cow’s
26 milk;

1 “(ii) is a good source of protein, as
2 determined by the Secretary; and

3 “(iii) contains limited amounts of
4 added sugars, as determined by the Sec-
5 retary.

6 “(2) FLUID MILK.—The term ‘fluid milk’
7 means all varieties of pasteurized cow’s milk that—

8 “(A) is packaged in liquid form; and

9 “(B) contains vitamins A and D at levels
10 consistent with the Food and Drug Administra-
11 tion, State, and local standards for fluid milk.”;

12 (4) in subsection (b)—

13 (A) by striking “of Agriculture”; and

14 (B) by inserting “and covered dairy prod-
15 ucts” after “of fluid milk” each place it ap-
16 pears;

17 (5) in subsection (c)(3)—

18 (A) by inserting “and covered dairy prod-
19 ucts” after “purchase of fluid milk”; and

20 (B) by inserting “established under the
21 Food and Nutrition Act of 2008 (7 U.S.C.
22 2011 et seq.)” before the period at the end;

23 (6) in subparagraphs (A) and (B) of subsection
24 (d)(2), by striking “, and” each place it appears and
25 inserting “; and”; and

1 (7) in subsection (e)(1)—

2 (A) by striking “\$20,000,000” and insert-
3 ing “\$80,000,000”; and

4 (B) by inserting “dairy nutrition incen-
5 tive” before “projects”.

6 **Subtitle B—Commodity**
7 **Distribution Programs**

8 **SEC. 4201. DELIVERING FOR RURAL SENIORS.**

9 The Agriculture and Consumer Protection Act of
10 1973 is amended by inserting after section 5 (7 U.S.C.
11 612c note; Public Law 93–86) the following:

12 **“SEC. 5A. COMMODITY SUPPLEMENTAL FOOD PROGRAM**
13 **HOME DELIVERY PILOT PROGRAM.**

14 “(a) DEFINITIONS.—In this section:

15 “(1) COMMODITY SUPPLEMENTAL FOOD PRO-
16 GRAM.—The term ‘commodity supplemental food
17 program’ means the program established under sec-
18 tion 4.

19 “(2) ELIGIBLE ENTITY.—The term ‘eligible en-
20 tity’ means—

21 “(A) a local agency; and

22 “(B) a subdistributing agency.

23 “(3) LOCAL AGENCY.—The term ‘local agency’
24 has the meaning given the term in section 247.1 of

1 title 7, Code of Federal Regulations (or a successor
2 regulation).

3 “(4) PILOT PROGRAM.—The term ‘pilot pro-
4 gram’ means the home delivery pilot program estab-
5 lished under subsection (b).

6 “(5) RURAL AREA.—The term ‘rural area’ has
7 the meaning given the term in section 343(a) of the
8 Consolidated Farm and Rural Development Act (7
9 U.S.C. 1991(a)).

10 “(6) STATE AGENCY.—The term ‘State agency’
11 has the meaning given the term in section 247.1 of
12 title 7, Code of Federal Regulations (or a successor
13 regulation).

14 “(7) SUBDISTRIBUTING AGENCY.—The term
15 ‘subdistributing agency’ has the meaning given the
16 term in section 247.1 of title 7, Code of Federal
17 Regulations (or a successor regulation).

18 “(b) HOME DELIVERY PILOT PROGRAM.—The Sec-
19 retary shall establish a home delivery pilot program under
20 which the Secretary shall award grants, on a competitive
21 basis, to State agencies to carry out the activities de-
22 scribed in subsection (e)(1).

23 “(c) APPLICATIONS.—A State agency seeking a grant
24 under the pilot program shall submit to the Secretary an

1 application at such time, in such manner, and containing
2 such information as the Secretary may require.

3 “(d) MAXIMUM GRANT AWARD.—The amount of a
4 grant awarded to a State agency under the pilot program
5 may not exceed the lesser of—

6 “(1) \$4,000,000; and

7 “(2) the product obtained by multiplying—

8 “(A) the commodity supplemental food
9 program caseload number for the applicable
10 State at the time that the application for the
11 grant is submitted under subsection (c); and

12 “(B) \$60.

13 “(e) USE OF GRANT FUNDS.—

14 “(1) IN GENERAL.—A State agency awarded a
15 grant under the pilot program shall distribute the
16 grant funds to eligible entities to operate projects
17 that facilitate home delivery of commodities to par-
18 ticipants in the commodity supplemental food pro-
19 gram, including for costs relating to—

20 “(A) the transportation and distribution of
21 those commodities for home delivery, including
22 transportation and distribution services pro-
23 vided by a third party;

24 “(B) staffing required to operate home de-
25 livery services; and

1 “(C) outreach to participants or potential
2 participants in the commodity supplemental
3 food program with respect to home delivery.

4 “(2) PRIORITY.—In distributing grant funds
5 under paragraph (1), a State agency shall give pri-
6 ority to eligible entities that serve participants in the
7 commodity supplemental food program who reside in
8 rural areas.

9 “(f) REPORT TO THE SECRETARY.—Not later than
10 180 days after the end of the fiscal year in which a State
11 agency is awarded a grant under the pilot program, and
12 each fiscal year thereafter until all grant funds are ex-
13 pended, the State agency shall submit to the Secretary a
14 report that includes—

15 “(1) a summary of the activities carried out
16 using the grant funds, including—

17 “(A) the quantity of commodities delivered;

18 “(B) the number of participants in the
19 commodity supplemental food program served;
20 and

21 “(C) the total number of deliveries;

22 “(2) an assessment of the effectiveness of those
23 activities, including—

24 “(A) a calculation of the average cost per
25 delivery; and

1 “(B) an evaluation of any services provided
2 by a third party; and

3 “(3) best practices regarding use of home deliv-
4 ery to improve the effectiveness of the commodity
5 supplemental food program.

6 “(g) AUTHORIZATION OF APPROPRIATIONS.—There
7 is authorized to be appropriated to carry out this section
8 \$10,000,000 for each of fiscal years 2027 through 2031,
9 to remain available until expended.”.

10 **SEC. 4202. COMMODITY DISTRIBUTION PROGRAM.**

11 Section 4(a) of the Agriculture and Consumer Protec-
12 tion Act of 1973 (7 U.S.C. 612c note; Public Law 93–
13 86) is amended, in the first sentence, by striking “2023”
14 and inserting “2031”.

15 **SEC. 4203. COMMODITY SUPPLEMENTAL FOOD PROGRAM.**

16 Section 5 of the Agriculture and Consumer Protec-
17 tion Act of 1973 (7 U.S.C. 612c note; Public Law 93–
18 86) is amended—

19 (1) in subsection (a), in each of paragraphs (1)
20 and (2)(B), by striking “2023” each place it appears
21 and inserting “2031”; and

22 (2) in subsection (d)(2), in the first sentence,
23 by striking “2023” and inserting “2031”.

1 **SEC. 4204. DISTRIBUTION OF SURPLUS COMMODITIES TO**
2 **SPECIAL NUTRITION PROJECTS.**

3 Section 1114(a)(2)(A) of the Agriculture and Food
4 Act of 1981 (7 U.S.C. 1431e(a)(2)(A)) is amended, in the
5 first sentence, by striking “2023” and inserting “2031”.

6 **Subtitle C—Miscellaneous**

7 **SEC. 4301. SENIORS FARMERS’ MARKET NUTRITION PRO-**
8 **GRAM.**

9 Section 4402 of the Farm Security and Rural Invest-
10 ment Act of 2002 (7 U.S.C. 3007) is amended—

11 (1) in subsection (a), by striking “2023” and
12 inserting “2031”; and

13 (2) in subsection (b)(1), by striking “and
14 herbs” and inserting “herbs, and tree nuts (includ-
15 ing shelled tree nuts)”.

16 **SEC. 4302. PURCHASE OF FRESH FRUITS AND VEGETABLES**
17 **FOR DISTRIBUTION TO SCHOOLS AND SERV-**
18 **ICE INSTITUTIONS.**

19 Section 10603(b) of the Farm Security and Rural In-
20 vestment Act of 2002 (7 U.S.C. 612c–4(b)) is amended
21 by striking “2023” and inserting “2031”.

22 **SEC. 4303. GUS SCHUMACHER NUTRITION INCENTIVE PRO-**
23 **GRAM REAUTHORIZATION.**

24 Section 4405 of the Food, Conservation, and Energy
25 Act of 2008 (7 U.S.C. 7517) is amended—

26 (1) in subsection (b)—

1 (A) in paragraph (1), by striking subpara-
2 graph (C) and inserting the following:

3 “(C) FEDERAL SHARE.—

4 “(i) IN GENERAL.—Except as pro-
5 vided in clause (ii) and subparagraph
6 (D)(iii), the Federal share of the cost of
7 carrying out an activity under this sub-
8 section shall not exceed 50 percent of the
9 total cost of the activity.

10 “(ii) WAIVER FOR PERSISTENT POV-
11 ERTY COUNTIES.—The Secretary may
12 waive the application of clause (i) in the
13 case of an activity carried out in a county
14 that, during the preceding 30-year period,
15 has had a population not less than 20 per-
16 cent of which are living in poverty (as
17 measured by the most recent decennial
18 census).”; and

19 (B) in paragraph (2)(B)—

20 (i) by redesignating clauses (ix) and
21 (x) as clauses (x) and (xi); and

22 (ii) by inserting after clause (viii) the
23 following:

1 “(ix) increase year-round availability
2 of incentives by offering all forms of fruits
3 or vegetables;”;

4 (2) in subsection (c)—

5 (A) in paragraph (1)(A), by striking
6 “fruits and vegetables” and inserting “fruits,
7 vegetables, and legumes”;

8 (B) by striking “fresh fruits and vegeta-
9 bles” and inserting “all forms of fruits, vegeta-
10 bles, and legumes” each place it appears; and

11 (C) by adding at the end the following:

12 “(6) RECOMMENDATIONS AND REPORT ON
13 TRANSITION TO HEALTH AND HUMAN SERVICES.—

14 “(A) RECOMMENDATIONS.—

15 “(i) IN GENERAL.—Not later than 2
16 years after the date of enactment of the
17 Agricultural Act of 2026, the Secretary, in
18 consultation with the Secretary of Health
19 and Human Services, shall provide to Con-
20 gress recommendations regarding methods
21 to transition the produce prescription pro-
22 gram established under this subsection to
23 the Department of Health and Human
24 Services to be administered by the Sec-
25 retary of Health and Human Services.

1 “(ii) CONSIDERATION.—In developing
2 recommendations under clause (i), the Sec-
3 retary and the Secretary of Health and
4 Human Services shall consider the policy
5 option described in the report of the Comp-
6 troller General of the United States de-
7 scribed in subparagraph (B).

8 “(B) REPORT.—Not later than 18 months
9 after the date of enactment of the Agricultural
10 Act of 2026, the Comptroller General of the
11 United States shall finalize and submit to the
12 Committee on Agriculture, Nutrition, and For-
13 estry of the Senate and the Committees on Ag-
14 riculture and Energy and Commerce of the
15 House of Representatives a report that exam-
16 ines policy options relating to the transition of
17 the produce prescription program established
18 under this subsection to the Department of
19 Health and Human Services to be administered
20 by the Secretary of Health and Human Serv-
21 ices.”; and

22 (3) in subsection (f)—

23 (A) in paragraph (1), by striking “2023”
24 and inserting “2031”;

25 (B) in paragraph (2)—

1 (i) by redesignating subparagraphs
2 (D) through (G) as subparagraphs (E)
3 through (H), respectively; and
4 (ii) by redesignating the second sub-
5 paragraph (C) (relating to fiscal year
6 2019) as subparagraph (D); and
7 (C) in paragraph (3), by striking “2023”
8 each place it appears and inserting “2031”.

9 **SEC. 4304. BUY AMERICAN REQUIREMENTS.**

10 (a) IN GENERAL.—Section 12(n)(2) of the Richard
11 B. Russell National School Lunch Act (42 U.S.C.
12 1760(n)(2)) is amended by striking subparagraph (A) and
13 inserting the following:

14 “(A) REQUIREMENTS.—

15 “(i) PURCHASE EXPENDITURES BY
16 CATEGORY.—Subject to clause (ii) and
17 subparagraph (B), the Secretary shall re-
18 quire that, of the total quantity of com-
19 modities and products purchased by a
20 school food authority in each food purchase
21 category designated by the Agricultural
22 Marketing Service for each school year, not
23 less than 95 percent are domestic commod-
24 ities and products.

1 “(ii) DOMESTICALLY UNAVAILABLE
2 COMMODITIES AND PRODUCTS.—Domesti-
3 cally unavailable products and commodities
4 included on a list developed under clause
5 (iii) with respect to a school year and pur-
6 chased by a school food authority during
7 that school year shall not be used to cal-
8 culate whether the school food authority
9 meets the requirement described in clause
10 (i).

11 “(iii) UPDATED LIST.—Not later than
12 6 months after the date of enactment of
13 the Agricultural Act of 2026, and every 2
14 years thereafter, the Secretary shall de-
15 velop, and make available to school food
16 authorities, a list of domestically unavail-
17 able products and commodities.”.

18 (b) APPLICATION.—The amendment made by sub-
19 section (a) shall apply to school food authorities (within
20 the meaning of the Richard B. Russell National School
21 Lunch Act (42 U.S.C. 1751 et seq.)) beginning on the
22 first day of the first school year (as defined in section
23 12(d) of that Act (42 U.S.C. 1760(d))) that begins after
24 the date of enactment of this Act.

1 **SEC. 4305. DIETARY GUIDELINES.**

2 (a) IN GENERAL.—Section 301(a) of the National
3 Nutrition Monitoring and Related Research Act of 1990
4 (7 U.S.C. 5341(a)) is amended—

5 (1) in paragraph (1)—

6 (A) in the first sentence, by striking “At
7 least every five years” and inserting “Beginning
8 with the 2030 report and at least every 10
9 years thereafter,”; and

10 (B) by adding at the end the following:
11 “Rulemaking requirements under section 553 of
12 title 5, United States Code, shall apply to the
13 development of each report under this para-
14 graph.”;

15 (2) in paragraph (2), by striking “shall” and all
16 that follows through the period at the end and in-
17 serting the following: “shall—

18 “(A) be based on significant scientific
19 agreement that is determined by evidence-based
20 review (as defined in paragraph (8)(A));

21 “(B) be current at the time that the report
22 is prepared;

23 “(C) be derived from questions generated
24 under paragraph (5)(E);

25 “(D) address high-priority areas of concern
26 to advance health outcomes;

1 “(E) be designed to achieve nutritional
2 adequacy and promote health, as specified by
3 the Food and Nutrition Board of the National
4 Academies of Sciences, Engineering, and Medi-
5 cine, from the consumption of food, including
6 nutrients and bioactive food components occur-
7 ring naturally and in fortified foods;

8 “(F) include nutritional and dietary infor-
9 mation relevant to individuals with nutrition-re-
10 lated common chronic diseases, as defined by
11 the Centers for Disease Control and Prevention;
12 and

13 “(G) include recommendations that are af-
14 fordable, available, and accessible for the gen-
15 eral population.”;

16 (3) by redesignating paragraph (3) as para-
17 graph (7);

18 (4) by inserting after paragraph (2) the fol-
19 lowing:

20 “(3) FREQUENCY.—The Secretaries may pub-
21 lish the report required under paragraph (1) more
22 frequently than required under that paragraph if the
23 Secretaries determine that more frequent publication
24 is necessary to promote health, based on the updated
25 dietary reference intake values specified by—

1 “(A) the Food and Nutrition Board of the
2 National Academies of Sciences, Engineering,
3 and Medicine; and

4 “(B) other relevant scientific advancements
5 based on continuous monitoring of the totality
6 of publicly available scientific evidence.

7 “(4) NOTIFICATION OF UPDATE.—

8 “(A) IN GENERAL.—Not later than 90
9 days before the Secretaries plan to update a re-
10 port under paragraph (1), the Secretaries shall
11 submit notification of that plan, in writing, to
12 the Committees on Agriculture, Nutrition, and
13 Forestry and Health, Education, Labor, and
14 Pensions of the Senate and the Committees on
15 Agriculture and Energy and Commerce of the
16 House of Representatives.

17 “(B) JUSTIFICATION.—The notification
18 under subparagraph (A) shall include a jus-
19 tification for updating the report.

20 “(5) INDEPENDENT ADVISORY BOARD.—

21 “(A) IN GENERAL.—Not later than 90
22 days after the Secretaries submit a notification
23 under paragraph (4)(A), the Secretaries shall
24 establish an Independent Advisory Board (re-
25 ferred to in this paragraph as the ‘Board’).

1 “(B) MEMBERS.—The Board shall com-
2 prise at least 4 but not more than 8 members,
3 of which—

“(i) 4 shall be appointed by the Secre-
taries, 2 of whom shall not be Federal em-
ployees; and

7 “(ii) 1 may be appointed by each of
8 the highest-ranking Members of Congress
9 on each Committee described in paragraph
10 (4)(A) of the opposite political party of the
11 President of the United States at the time
12 of the appointment.

13 “(C) EXPERTISE.—Each member ap-
14 pointed to the Board shall have expertise in nu-
15 trition science or food science, including aca-
16 demic and applied experience.

17 “(D) MEETINGS.—

18 “(i) IN GENERAL.—The first meeting
19 of the Board—

20 “(I) may only take place on or
21 after the date on which there are 4
22 members appointed to the Board
23 under subparagraph (B); and

24 “(II) shall take place on or after
25 the date that is 90 days after the Sec-

1 retaries submit a notification under
2 paragraph (4)(A).

3 “(ii) QUORUM.—A majority of the
4 members shall constitute a quorum for the
5 transaction of the business of the Board.

6 “(E) DUTIES.—Not later than 1 year after
7 the establishment of the Board, the Board shall
8 submit to the Secretaries and the Committees
9 described in paragraph (4)(A) a list of scientific
10 questions for purposes of being used in the de-
11 velopment of a report under paragraph (1), as
12 described in paragraph (2)(C).

13 “(F) TERMINATION.—The authority of the
14 Board shall terminate, and the Board shall dis-
15 band, immediately after carrying out subpara-
16 graph (E).

17 “(6) EXCLUSION.—The information and guide-
18 lines contained in each report required under para-
19 graph (1) shall not be based on or include topics
20 that are not relevant to dietary guidance, as deter-
21 mined by the Secretaries, in consultation with the
22 Independent Advisory Board established under para-
23 graph (5), including taxation, social welfare policies,
24 purchases under Federal feeding programs, food and
25 agricultural production practices, food labeling, so-

1 socioeconomic status, race, religion, ethnicity, culture,
2 or regulations relating to nutrition.”; and

3 (5) by adding at the end the following:

4 “(8) EVIDENCE-BASED REVIEW.—

5 “(A) DEFINITION OF EVIDENCE-BASED
6 REVIEW.—In this paragraph, the term ‘evi-
7 dence-based review’ means a process under
8 which—

9 “(i) the totality of the scientific evi-
10 dence relevant to a question of interest is
11 collected, analyzed, and evaluated;

12 “(ii) scientific studies, conclusions,
13 and recommendations are rated, adhering
14 strictly to standardized, generally accepted
15 evidence-based review methods; and

16 “(iii) external peer review is con-
17 ducted by nongovernment experts with rec-
18 ognized expertise in quality-of-evidence
19 evaluation.

20 “(B) STRENGTH OF EVIDENCE.—Each
21 guideline contained in a report published under
22 paragraph (1) shall be assigned a rating by the
23 Secretaries for the strength of evidence used,
24 including the extent to which the guideline will
25 improve the Healthy Eating Index.

1 “(9) TRANSPARENCY.—

2 “(A) DISCLOSURE.—Any individual ap-
3 pointed to the Dietary Guidelines Advisory
4 Committee or an Independent Advisory Board
5 established under paragraph (5) shall—

6 “(i) be appointed as a special govern-
7 ment employee;

8 “(ii) comply with the financial disclo-
9 sure requirements applicable to a special
10 government employee under subpart I of
11 part 2634 of title 5, Code of Federal Regu-
12 lations (or successor regulations), including
13 the requirement to file the Office of Gov-
14 ernment Ethics Form 450 (or successor
15 form); and

16 “(iii) prior to the appointment, submit
17 to the Secretaries a report regarding, for
18 the 10-year period preceding the report,
19 any research funding or professional affili-
20 ation relating to a report under paragraph
21 (1).

22 “(B) PUBLICATION.—Notwithstanding any
23 other provision of law, not later than 30 days
24 after the date on which a Dietary Guidelines
25 Advisory Committee is established or an Inde-

1 pendent Advisory Board is established under
2 paragraph (5), the Secretaries shall make pub-
3 licly available—

4 “(i) a summary of the financial disclo-
5 sures reported by the members of the
6 Committee or Board, as applicable;

7 “(ii) the research funding and profes-
8 sional affiliations reported by those mem-
9 bers under subparagraph (A)(iii), cat-
10 egorized by the name of the member; and

11 “(iii) a detailed plan for managing
12 any disclosed conflicts of interest, includ-
13 ing financial or ethical conflicts of interest,
14 preferences, values, and beliefs.”.

15 (b) CONTROLLING REPORT.—The 2025 Dietary
16 Guidelines for Americans published by the Secretaries
17 under subsection (a)(1) of section 301 of the National Nu-
18 trition Monitoring and Related Research Act of 1990 (7
19 U.S.C. 5341) shall be controlling and considered to be the
20 most recent Dietary Guidelines for Americans until the
21 publication of the first report under that subsection after
22 the date of enactment of this Act.

1 **SEC. 4306. STRENGTHENING LOCAL FOOD SECURITY PRO-**
2 **GRAM.**

3 Subtitle A of the Agricultural Marketing Act of 1946
4 (7 U.S.C. 1621 et seq.) is amended by adding at the end
5 the following:

6 **“SEC. 210B. STRENGTHENING LOCAL FOOD SECURITY PRO-**
7 **GRAM.**

8 “(a) DEFINITIONS.—In this section:

9 “(1) BEGINNING FARMER OR RANCHER.—The
10 term ‘beginning farmer or rancher’ has the meaning
11 given the term in section 2501(a) of the Food, Agri-
12 culture, Conservation, and Trade Act of 1990 (7
13 U.S.C. 2279(a)).

14 “(2) COVERED LOCAL PRODUCER.—The term
15 ‘covered local producer’ means, with respect to an el-
16 igible entity participating in the program, a fisher-
17 man, farmer, producer, rancher, processor, or coop-
18 erative processor that is—

19 “(A) within the geographic boundaries of
20 the State of the eligible entity; or

21 “(B) not more than 400 miles from the de-
22 livery destination of the food.

23 “(3) ELIGIBLE ENTITY.—The term ‘eligible en-
24 tity’ means a State agency, commission, or depart-
25 ment that is responsible for agriculture, procure-

1 ment, food distribution, emergency response, or
2 other similar activities within the State.

3 “(4) MEDIUM-SIZE PRODUCER.—The term ‘me-
4 dium-size producer’ means an individual whose an-
5 nual gross cash farm income is equal to or exceeds
6 \$350,000 but less than \$999,999.

7 “(5) PROGRAM.—The term ‘program’ means
8 the program established under subsection (b).

9 “(6) SMALL-SIZE PRODUCER.—The term ‘small-
10 size producer’ means an individual whose annual
11 gross cash farm income is less than \$350,000.

12 “(7) STATE.—The term ‘State’ includes—

13 “(A) each territory or possession of the
14 United States; and

15 “(B) each Federally recognized Indian
16 Tribe.

17 “(8) UNPROCESSED OR MINIMALLY PROCESSED
18 FOODS.—The term ‘unprocessed or minimally proc-
19 essed foods’ means agricultural products that retain
20 their inherent character, including—

21 “(A) fruits and vegetables (including 100-
22 percent juices);

23 “(B) grain products, such as pastas and
24 rice;

25 “(C) milk and dairy products and eggs;

1 “(D) meat (including whole carcasses,
2 pieces thereof, or ground meat) , poultry, and
3 seafood;

4 “(E) protein sources that are meat alter-
5 natives (such as beans or legumes) and fluid
6 milk and other dairy foods (such as cheese and
7 yogurt); and

8 “(F) foods in a wide variety of minimal
9 processing states (such as whole, cut, or pu-
10 reed) or forms (such as fresh, frozen, canned,
11 or dried).

12 “(9) VETERAN FARMER OR RANCHER.—The
13 term ‘veteran farmer or rancher’ has the meaning
14 given the term in section 2501(a) of the Food, Agri-
15 culture, Conservation, and Trade Act of 1990 (7
16 U.S.C. 2279(a)).

17 “(b) ESTABLISHMENT.—The Secretary shall estab-
18 lish a program under which the Secretary shall enter into
19 cooperative agreements, on a noncompetitive basis, with
20 eligible entities—

21 “(1) to support covered local producers by
22 building and expanding economic opportunities for
23 those covered local producers;

24 “(2) to establish and broaden partnerships with
25 covered local producers and the food distribution

1 community to ensure distribution of fresh (including
2 fresh frozen) and nutritious foods; and

3 “(3) to strengthen the local and regional food
4 security and systems within the State of the eligible
5 entity.

6 “(c) USE OF FUNDS.—An eligible entity that enters
7 into a cooperative agreement under the program shall use
8 funds received under that cooperative agreement—

9 “(1) to purchase unprocessed or minimally
10 processed foods from covered local producers;

11 “(2) to ensure that at least 51 percent of the
12 total annual value of purchased unprocessed or mini-
13 mally processed foods by the eligible entity com-
14 prises purchases from small-size producers, medium-
15 size producers, beginning farmers or ranchers, or
16 veteran farmers or ranchers;

17 “(3) to provide technical assistance to covered
18 local producers, including—

19 “(A) in obtaining food safety training and
20 certifications; and

21 “(B) to support efforts to grow the local
22 agricultural value chain;

23 “(4) to distribute unprocessed or minimally
24 processed foods from covered local producers to or-
25 ganizations, including nonprofit organizations, that

1 have experience in food distribution to improve ac-
2 cess to healthy and nutritious food; and

3 “(5) to build and expand economic opportunity
4 for covered local producers.

5 “(d) LIMITATION ON USE OF FUNDS.—Of the
6 amount made available to an eligible entity through a co-
7 operative agreement under the program, an eligible entity
8 may use not more than 25 percent for administrative ex-
9 penses, of which not less than 35 percent shall be used
10 to provide the technical assistance described in subsection
11 (d)(3).

12 “(e) TECHNICAL ASSISTANCE TO ELIGIBLE ENTI-
13 TIES.—The Secretary shall provide to eligible entities en-
14 tering into a cooperative agreement under the program
15 guidance, technical assistance, instruction, and monitoring
16 throughout the duration of the cooperative agreement.

17 “(f) AMOUNT OF ALLOCATION.—Of the amounts
18 made available to carry out this section for each fiscal
19 year, the Secretary shall—

20 “(1) first allocate 10 percent to Tribal govern-
21 ments, to be allocated using a funding formula de-
22 termined by the Secretary;

23 “(2) of the amounts remaining after making
24 the allocation under paragraph (1), allocate 1 per-

1 cent to each State (other than Tribal governments);
2 and

3 “(3) after making the allocations under para-
4 graphs (1) and (2), allocate the remaining amounts
5 to each eligible entity (other than Tribal govern-
6 ments) by applying the formula described in section
7 214 of the Emergency Food Assistance Act of 1983
8 (7 U.S.C. 7515).

9 “(g) FUNDING.—There is authorized to be appro-
10 priated to carry out this section \$200,000,000 for each
11 of fiscal years 2027 through 2031.”.

12 **SEC. 4307. HEALTHY FOOD FINANCING INITIATIVE.**

13 Section 243(d) of the Department of Agriculture Re-
14 organization Act of 1994 (7 U.S.C. 6953(d)) is amended
15 by striking “\$125,000,000” and inserting
16 “\$135,000,000”.

17 **SEC. 4308. TECHNICAL CORRECTIONS.**

18 Section 12(d) of the Richard B. Russell National
19 School Lunch Act (42 U.S.C. 1760(d)) is amended—

20 (1) by striking the subsection designation and
21 all that follows through “Act—” in the matter pre-
22 ceding paragraph (1) and inserting the following:

23 “(d) DEFINITIONS.—In this Act:”;

24 (2) by striking paragraph (2) and inserting the
25 following:

1 “(2) COMMODITY ONLY SCHOOL.—The term
2 ‘commodity only school’ means a school that—

3 “(A) does not participate in the school
4 lunch program under this Act; but

5 “(B) receives commodities made available
6 by the Secretary for use by the school in a non-
7 profit lunch program.”;

8 (3) in paragraph (3), by striking “U.S.C” and
9 inserting “U.S.C.”;

10 (4) in paragraph (5)—

11 (A) by striking the paragraph designation
12 and all that follows through “not limited to,” in
13 the first sentence and inserting the following:

14 “(5) SCHOOL.—

15 “(A) IN GENERAL.—The term ‘school’
16 means—

17 “(i) any public or nonprofit private
18 school of high school grade or under; and

19 “(ii) any public or licensed nonprofit
20 private residential child care institution
21 (including”;

22 (B) in clause (ii) of subparagraph (A) (as
23 so designated), by striking “For purposes of
24 this paragraph” and inserting the following:

1 “(B) ASSOCIATED DEFINITION.—For pur-
2 poses of schools and institutions under subpara-
3 graph (A)”;
4 (5) in paragraph (6), by striking “School” and
5 inserting “school”; and
6 (6) in each of paragraphs (6) through (9)—
7 (A) by inserting “The term” after the
8 paragraph designation; and
9 (B) by inserting a paragraph heading, the
10 text of which comprises the term defined in the
11 paragraph.

12 **TITLE V—CREDIT**

13 **Subtitle A—Farm Credit System**

14 **SEC. 5101. EXTENSION OF CREDIT TO BUSINESSES PRO-** 15 **VIDING SERVICES TO PRODUCERS OR HAR-** 16 **VESTERS OF AQUATIC PRODUCTS.**

17 (a) FARM CREDIT BANKS.—

18 (1) ELIGIBILITY FOR CREDIT AND FINANCIAL
19 SERVICES.—Section 1.9 of the Farm Credit Act of
20 1971 (12 U.S.C. 2017) is amended—

21 (A) in paragraph (2), by striking “or” at
22 the end;

23 (B) by redesignating paragraph (3) as
24 paragraph (4); and

1 (C) by inserting after paragraph (2) the
2 following:

3 “(3) persons furnishing to producers or har-
4 vesters of aquatic products services directly related
5 to their aquatic operating needs; or”.

6 (2) PURPOSES FOR EXTENSIONS OF CREDIT.—
7 Section 1.11(c)(1) of the Farm Credit Act of 1971
8 (12 U.S.C. 2019(c)(1)) is amended by inserting
9 “and to persons furnishing services directly related
10 to the aquatic operating needs of producers or har-
11 vesters of aquatic products” after “needs”.

12 (b) PRODUCTION CREDIT ASSOCIATIONS.—Section
13 2.4(a) of the Farm Credit Act of 1971 (12 U.S.C.
14 2075(a)) is amended—

15 (1) in paragraph (2), by striking “and” at the
16 end;

17 (2) in paragraph (3), by striking the period at
18 the end and inserting “; and”; and

19 (3) by adding at the end the following:

20 “(4) persons furnishing to producers or har-
21 vesters of aquatic products services directly related
22 to their aquatic operating needs.”.

23 **SEC. 5102. EXPORT FINANCE AUTHORITY.**

24 Section 3.7(b)(2)(A)(i) of the Farm Credit Act of
25 1971 (12 U.S.C. 2128(b)(2)(A)(i)) is amended, in the un-

1 designated matter following subclause (II), by striking “50
2 percent of the bank’s capital” each place it appears and
3 inserting “15 percent of the total assets of the bank”.

4 **SEC. 5103. SUPPORT FOR RURAL WATER SYSTEMS.**

5 Section 3.7(f) of the Farm Credit Act of 1971 (12
6 U.S.C. 2128(f)) is amended—

7 (1) by redesignating paragraphs (1) and (2) as
8 subparagraphs (A) and (B), respectively, and indent-
9 ing appropriately;

10 (2) in the matter preceding subparagraph (A)
11 (as so redesignated), by striking “(f) The banks”
12 and inserting the following:

13 “(f) WATER, WASTE DISPOSAL, AND OTHER FACILI-
14 TIES IN RURAL AREAS.—

15 “(2) WATER AND WASTE DISPOSAL FACILI-
16 TIES.—The banks”;

17 (3) in the undesignated matter following para-
18 graph (2)(B) (as so redesignated), by striking “For
19 purposes” and inserting the following:

20 “(1) DEFINITION OF RURAL AREA.—

21 “(A) IN GENERAL.—Subject to subpara-
22 graph (B), for purposes”;

23 (4) in paragraph (1) (as so designated), by add-
24 ing at the end the following:

1 “(B) GUARANTEES.—In the case of a loan,
2 commitment, or assistance described in para-
3 graph (2) that is guaranteed, the term ‘rural
4 area’ means an area described in section
5 343(a)(13)(A) of the Consolidated Farm and
6 Rural Development Act (7 U.S.C.
7 1991(a)(13)(A)).”;

8 (5) by moving paragraphs (1) and (2) (as so
9 designated) so as to appear in numerical order; and
10 (6) by adding at the end the following:

11 “(3) OTHER FACILITIES.—Notwithstanding
12 paragraph (2), a bank for cooperatives may make
13 and participate in loans and commitments and pro-
14 vide technical and other financial assistance to co-
15 operatives and any other public or private entity (ex-
16 cept the Federal Government) for the purpose of in-
17 stalling, maintaining, expanding, improving, or oper-
18 ating facilities in a rural area for—

19 “(A) the processing or disposal of waste
20 from any source; or

21 “(B) producing electricity from any source
22 for use or sale by the borrower.”.

1 **SEC. 5104. FINANCING FOR ESSENTIAL RURAL COMMUNITY**
2 **FACILITIES.**

3 Title IV of the Farm Credit Act of 1971 (12 U.S.C.
4 2153 et seq.) is amended by adding at the end the fol-
5 lowing:

6 **“PART H—SUPPORT FOR RURAL AND TRIBAL**
7 **ESSENTIAL COMMUNITY FACILITIES PROJECTS**
8 **“SEC. 4.40. ESSENTIAL COMMUNITY FACILITIES.**

9 “(a) DEFINITIONS.—In this section:

10 “(1) ADMINISTRATION.—The term ‘Administra-
11 tion’ means the Farm Credit Administration.

12 “(2) ESSENTIAL COMMUNITY FACILITY.—

13 “(A) IN GENERAL.—The term ‘essential
14 community facility’ has the same meaning as in
15 section 306(a) of the Consolidated Farm and
16 Rural Development Act (7 U.S.C. 1926(a)).

17 “(B) INCLUSIONS.—

18 “(i) IN GENERAL.—The term ‘essen-
19 tial community facility’ includes a commu-
20 nity center, a library, a firehouse, a
21 healthcare facility, a senior living facility, a
22 childcare facility, an education facility, and
23 a transportation facility.

24 “(ii) SERVICES.—The term ‘essential
25 community facility’ includes any services
26 provided at the applicable facility to rural

1 residents, rural businesses, or members of
2 an Indian Tribe, including healthcare serv-
3 ices, senior living services, childcare serv-
4 ices, education services, and transportation
5 services.

6 “(3) INDIAN TRIBE.—The term ‘Indian Tribe’
7 has the meaning given the term in section 4 of the
8 Indian Self-Determination and Education Assistance
9 Act (25 U.S.C. 5304).

10 “(4) RURAL AREA.—The term ‘rural area’
11 means each of the following:

12 “(A) A rural city, town, or equivalent ju-
13 risdiction, as determined by the Administration.

14 “(B) A rural area (as defined in section
15 343(a)(13)(A) of the Consolidated Farm and
16 Rural Development Act (7 U.S.C.
17 1991(a)(13)(A))).

18 “(5) TRIBAL AREA.—The term ‘Tribal area’
19 means an area under the jurisdiction of an Indian
20 Tribe.

21 “(b) FINANCING AND TECHNICAL ASSISTANCE.—In
22 order to make available private capital to develop, build,
23 maintain, improve, or provide other support for essential
24 community facilities in rural areas or Tribal areas, Farm
25 Credit System institutions chartered and operating under

1 title I, II, or III may provide financing and technical as-
2 sistance for essential community facilities.

3 “(c) LIMITATIONS.—

4 “(1) ELIGIBILITY.—Only an entity eligible for
5 financing under section 306(a) of the Consolidated
6 Farm and Rural Development Act (7 U.S.C.
7 1926(a)) may receive financing or any other assist-
8 ance under this section.

9 “(2) AMOUNT OF FINANCING.—A Farm Credit
10 System institution shall not provide financing under
11 this section in an amount that exceeds 15 percent of
12 the total assets of the Farm Credit System institu-
13 tion.

14 “(3) OFFER REQUIREMENT.—A Farm Credit
15 System institution shall not provide financing under
16 this section unless the Farm Credit System institu-
17 tion has—

18 “(A) offered in writing, under reasonable
19 terms and conditions acceptable to the applica-
20 ble sponsor, owner, or operator of the essential
21 community facility involved, an interest in the
22 financing to at least 1 nongovernmental lending
23 institution that is not chartered and operating
24 under this Act; and

1 “(B) reported that offer, including the
2 terms and conditions of the offer, to the Admin-
3 istration.

4 “(d) REPORT TO CONGRESS.—

5 “(1) IN GENERAL.—Not later than 1 year after
6 the date of enactment of this section, and annually
7 thereafter, the Administration shall submit to Con-
8 gress a report on the activities undertaken pursuant
9 to this section by Farm Credit System institutions
10 during the period covered by the report, including
11 activities undertaken through partnerships between
12 Farm Credit System institutions and other non-
13 governmental lending institutions.

14 “(2) PUBLICATION.—A copy of each report sub-
15 mitted to Congress under paragraph (1) shall be
16 published on the website of the Administration.”.

17 **SEC. 5105. LIMITATION ON RURAL BUSINESS INVESTMENT**
18 **COMPANIES.**

19 Section 384J(c) of the Consolidated Farm and Rural
20 Development Act (7 U.S.C. 2009cc–9(c)) is amended by
21 striking “50” and inserting “75”.

22 **SEC. 5106. LOAN GUARANTEES.**

23 Section 8.0(7)(B) of the Farm Credit Act of 1971
24 (12 U.S.C. 2279aa(7)(B)) is amended, in the matter pre-
25 ceding clause (i), by inserting “or section 9007(c)(1) of

1 the Farm Security and Rural Investment Act of 2002 (7
2 U.S.C. 8107(c)(1))” before “, except”.

3 **SEC. 5107. STANDARDS FOR QUALIFIED LOANS.**

4 Section 8.8 of the Farm Credit Act of 1971 (12
5 U.S.C. 2279aa–8) is amended—

6 (1) in subsection (a)(3), by striking “mortgage
7 investors” and inserting “investors in those types of
8 loans”; and

9 (2) by striking subsection (c) and inserting the
10 following:

11 “(c) QUALIFIED LOAN LIMITATION FOR SINGLE
12 BORROWERS.—

13 “(1) IN GENERAL.—The Corporation shall not
14 treat a loan secured by agricultural real estate as a
15 qualified loan whenever the cumulative principal
16 amount of all loans to any single borrower or to any
17 group of related borrowers exceeds 10 percent of the
18 tier 1 capital of the Corporation (as defined by the
19 Farm Credit Administration).

20 “(2) REGULATOR DETERMINATION.—The Farm
21 Credit Administration may promulgate regulations
22 establishing a single-borrower concentration limit
23 lower than the percentage specified in paragraph (1)
24 if the Farm Credit Administration determines that

1 a lower limit is necessary for the safe and sound op-
2 eration of the Corporation.”.

3 **Subtitle B—Farm Ownership and**
4 **Operating Loans**

5 **SEC. 5201. LIMITATIONS ON LOAN AMOUNTS.**

6 (a) LIMITATIONS ON AMOUNT OF FARM OWNERSHIP
7 LOANS.—Section 305(a)(2) of the Consolidated Farm and
8 Rural Development Act (7 U.S.C. 1925(a)(2)) is amended
9 by striking “\$600,000, or, in the case of a loan guaranteed
10 by the Secretary, \$1,750,000 (increased, beginning with
11 fiscal year 2019” and inserting “\$850,000, or, in the case
12 of a loan guaranteed by the Secretary, \$3,500,000 (in-
13 creased, beginning with fiscal year 2027”.

14 (b) LIMITATIONS ON AMOUNT OF OPERATING
15 LOANS.—Section 313(a)(1) of the Consolidated Farm and
16 Rural Development Act (7 U.S.C. 1943(a)(1)) is amended
17 by striking “\$400,000, or, in the case of a loan guaranteed
18 by the Secretary, \$1,750,000 (increased, beginning with
19 fiscal year 2019” and inserting “\$750,000, or, in the case
20 of a loan guaranteed by the Secretary, \$3,000,000 (in-
21 creased, beginning with fiscal year 2027”.

22 **SEC. 5202. INFLATION PERCENTAGE.**

23 Section 305(c) of the Consolidated Farm and Rural
24 Development Act (7 U.S.C. 1925(c)) is amended—

1 (1) in paragraph (1), by striking “of the Prices
2 Paid By Farmers Index (as compiled by the Na-
3 tional Agricultural Statistics Service of the Depart-
4 ment of Agriculture) for the 12-month period ending
5 on July 31 of the immediately preceding fiscal year”
6 and inserting “of the per acre average United States
7 farm real estate value, the per acre average United
8 States cropland value, and the per acre average
9 United States pasture value for the preceding year
10 (as published in the applicable Agricultural Land
11 Values report of the National Agricultural Statistics
12 Service of the Department of Agriculture), weighted
13 equally, to the extent practicable”; and

14 (2) in paragraph (2), by striking “of such index
15 (as so defined) for the 12-month period that imme-
16 diately precedes the 12-month period described in
17 paragraph (1)” and inserting “of the per acre aver-
18 age United States farm real estate value, the per
19 acre average United States cropland value, and the
20 per acre average United States pasture value for the
21 preceding year (as so published), weighted equally,
22 to the extent practicable”.

1 **SEC. 5203. PRECISION AGRICULTURE UNDER THE CON-**
2 **SERVATION LOAN AND LOAN GUARANTEE**
3 **PROGRAM.**

4 Section 304 of the Consolidated Farm and Rural De-
5 velopment Act (7 U.S.C. 1924) is amended—

6 (1) in subsection (b)—

7 (A) by redesignating paragraphs (1)
8 through (3) as paragraphs (4), (5), and (1), re-
9 spectively, and moving the paragraphs so as to
10 appear in numerical order; and

11 (B) by inserting after paragraph (1) (as so
12 redesignated) the following:

13 “(2) **PRECISION AGRICULTURE.**—The term
14 ‘precision agriculture’ means managing, tracking, or
15 reducing crop or livestock production inputs, includ-
16 ing seed, feed, fertilizer, chemicals, water, and time,
17 at a heightened level of spatial and temporal granu-
18 larity to improve efficiencies, reduce waste, and
19 maintain or improve environmental quality.

20 “(3) **PRECISION AGRICULTURE TECHNOLOGY.**—
21 The term ‘precision agriculture technology’ means
22 any technology (including equipment that is nec-
23 essary for the deployment of that technology) that
24 directly contributes to a reduction in, or improved
25 efficiency of, inputs used in crop or livestock produc-
26 tion, including—

1 “(A) Global Positioning System-based or
2 geospatial mapping;

3 “(B) satellite or aerial imagery;

4 “(C) yield monitors;

5 “(D) soil mapping;

6 “(E) sensors for gathering data on crop,
7 soil, or livestock conditions;

8 “(F) Internet of Things and telematics
9 technologies;

10 “(G) data management software and ad-
11 vanced analytics;

12 “(H) network connectivity products and
13 solutions;

14 “(I) Global Positioning System guidance or
15 auto-steer systems;

16 “(J) variable rate technology for applying
17 inputs, such as section control; and

18 “(K) any other technology, as determined
19 by the Secretary, that leads to a reduction in,
20 or improves efficiency of, crop and livestock
21 production inputs, which may include seed,
22 feed, fertilizer, chemicals, water, and time.”;

23 (2) in subsection (d)—

24 (A) in paragraph (2), by striking “and” at
25 the end;

1 (B) in paragraph (3), by striking “1985.”
2 and inserting “1985 (16 U.S.C. 3812); and”;
3 and

4 (C) by adding at the end the following:

5 “(4) producers who use the loans to adopt pre-
6 cision agriculture practices or acquire precision agri-
7 culture technologies, including adoption or acquisi-
8 tion for the purpose of participating in the environ-
9 mental quality incentives program under subchapter
10 A of chapter 4 of subtitle D of title XII of the Food
11 Security Act of 1985 (16 U.S.C. 3839aa et seq.).”;
12 and

13 (3) in subsection (h), by striking “2023” and
14 inserting “2031”.

15 **SEC. 5204. DOWN PAYMENT LOAN PROGRAM.**

16 Section 310E(b)(1) of the Consolidated Farm and
17 Rural Development Act (7 U.S.C. 1935(b)(1)) is amend-
18 ed—

19 (1) in the matter preceding subparagraph (A),
20 by striking “exceed 45 percent of the least” and in-
21 serting “exceed, subject to section 305(a), 45 per-
22 cent of the lesser”;

23 (2) in subparagraph (A), by adding “or” after
24 the semicolon;

1 (3) in subparagraph (B), by striking “; or” and
2 inserting a period; and
3 (4) by striking subparagraph (C).

4 **SEC. 5205. PERSONS ELIGIBLE FOR LOANS.**

5 (a) OWNERSHIP LOANS.—Section 302(a) of the Con-
6 solidated Farm and Rural Development Act (7 U.S.C.
7 1922(a)) is amended—

8 (1) in paragraph (1), in the second sentence, by
9 striking “a majority” each place it appears and in-
10 serting “at least a 50 percent”;

11 (2) in paragraph (2), by striking subparagraphs
12 (A) and (B) and inserting the following:

13 “(A) ELIGIBILITY OF QUALIFIED OPERA-
14 TORS.—A qualified operator (as defined by the
15 Secretary) shall be considered to meet the oper-
16 ator requirement of paragraph (1).

17 “(B) ELIGIBILITY OF CERTAIN OPER-
18 ATING-ONLY ENTITIES.—An applicant that is or
19 will become only the operator of farm real es-
20 tate acquired, improved, or supported with
21 funds under this subtitle shall be considered to
22 meet the owner-operator requirements of para-
23 graph (1) if 1 or more of the individuals who
24 are owners of the farm real estate collectively
25 own at least 50 percent (or such other percent-

1 age as the Secretary determines to be appro-
2 priate) of the applicant.

3 “(C) ELIGIBILITY OF CERTAIN EMBEDDED
4 ENTITIES.—An entity that is an owner-operator
5 described in paragraph (1), or an operator de-
6 scribed in subparagraph (B), that is owned, in
7 whole or in part, by 1 or more other entities
8 shall be considered to meet the direct ownership
9 requirement imposed under paragraph (1) if at
10 least 75 percent of the total ownership interests
11 of the embedded entity, or of the other entities,
12 is owned, directly or indirectly, by qualified op-
13 erators of the farm acquired, improved, or sup-
14 ported with funds under this subtitle.”.

15 (b) OPERATING LOANS.—Section 311(a) of the Con-
16 solidated Farm and Rural Development Act (7 U.S.C.
17 1941(a)) is amended—

18 (1) in paragraph (1), by striking “a majority”
19 each place it appears and inserting “at least a 50
20 percent”; and

21 (2) in paragraph (2)—

22 (A) by striking “ownership interests” and
23 all that follows through the period at the end
24 and inserting “total ownership interests of that
25 entity, or of the other entities, is owned, di-

1 rectly or indirectly, by qualified operators of the
2 farm improved or supported with funds under
3 this subtitle.”; and

4 (B) by striking the paragraph designation
5 and heading and all that follows through “An
6 entity” and inserting the following:

7 “(2) SPECIAL RULES.—

8 “(A) ELIGIBILITY OF QUALIFIED OPERA-
9 TORS.—A qualified operator (as defined by the
10 Secretary) shall be considered to meet the oper-
11 ator requirement of paragraph (1).

12 “(B) ELIGIBILITY OF CERTAIN OPER-
13 ATING-ONLY ENTITIES.—An entity”.

14 (c) EMERGENCY LOANS.—Section 321 of the Consoli-
15 dated Farm and Rural Development Act (7 U.S.C. 1961)
16 is amended—

17 (1) in subsection (a)—

18 (A) in the first sentence, in the matter pre-
19 ceding the proviso—

20 (i) by striking “(A)” and inserting
21 “(i)”;

22 (ii) by striking “(B)” and inserting
23 “(ii)”;

24 (iii) by striking “(1)” and inserting
25 “(A)”;

1 (iv) by striking “(2)” and inserting
2 “(B)”; and

3 (v) by striking “a majority” each
4 place it appears and inserting “at least a
5 50 percent”;

6 (B) in the second sentence, by striking
7 “this subsection” and inserting “this para-
8 graph”;

9 (C) by striking the fifth sentence; and

10 (D) by adding at the end the following:

11 “(2) SPECIAL RULES.—

12 “(A) ELIGIBILITY OF QUALIFIED OPERA-
13 TORS.—A qualified operator (as defined by the
14 Secretary) shall be considered to meet the oper-
15 ator requirement of paragraph (1).

16 “(B) ELIGIBILITY OF CERTAIN OPER-
17 ATING-ONLY ENTITIES.—An applicant that is or
18 will become only the operator of farm real es-
19 tate acquired, improved, or supported with
20 funds under this subtitle shall be considered to
21 meet the owner-operator requirements of para-
22 graph (1) if 1 or more of the individuals who
23 are owners of the farm real estate collectively
24 own at least 50 percent (or such other percent-

1 age as the Secretary determines to be appro-
2 priate) of the applicant.

3 “(C) ELIGIBILITY OF CERTAIN EMBEDDED
4 ENTITIES.—An entity that is an owner-operator
5 described in paragraph (1), or an operator de-
6 scribed in subparagraph (B), that is owned, in
7 whole or in part, by 1 or more other entities
8 shall be considered to meet the direct ownership
9 requirement imposed under paragraph (1) if at
10 least 75 percent of the total ownership interests
11 of the embedded entity, or of the other entities,
12 is owned, directly or indirectly, by qualified op-
13 erators of the farm acquired, improved, or sup-
14 ported with funds under this subtitle.”; and

15 (2) by striking the section designation and all
16 that follows through “shall make and insure” in sub-
17 section (a) and inserting the following:

18 **“SEC. 321. ELIGIBILITY FOR LOANS.**

19 “(a) IN GENERAL.—

20 “(1) ELIGIBILITY REQUIREMENTS.—The Sec-
21 retary shall make and insure”.

22 **SEC. 5206. REFINANCING OF BRIDGE LOANS.**

23 Section 303(a)(1)(E)(ii) of the Consolidated Farm
24 and Rural Development Act (7 U.S.C. 1923(a)(1)(E)(ii))

1 is amended by striking “was approved” and inserting
2 “was approved or the temporary bridge loan was closed”.

3 **SEC. 5207. SUPPORT FOR RESOLVING OWNERSHIP AND**
4 **SUCCESSION ISSUES RELATING TO FARM-**
5 **LAND.**

6 (a) REAUTHORIZATION OF THE HEIRS PROPERTY
7 INTERMEDIARY RELENDING PROGRAM.—Section 310I(g)
8 of the Consolidated Farm and Rural Development Act (7
9 U.S.C. 1936c(g)) is amended by striking “2023” and in-
10 serting “2031”.

11 (b) ANNUAL REPORT ON OPERATIONS AND OUT-
12 COMES UNDER THE RELENDING PROGRAM TO RESOLVE
13 OWNERSHIP AND SUCCESSION ON FARMLAND.—Section
14 310I(f) of the Consolidated Farm and Rural Development
15 Act (7 U.S.C. 1936c(f)) is amended by striking “Not later
16 than 1 year after the date of enactment of this section,
17 the Secretary shall” and inserting “The Secretary shall
18 annually”.

19 (c) COOPERATIVE AGREEMENTS FOR HEIRS PROP-
20 ERTY RESOLUTION THROUGH DIRECT PUBLIC INTEREST
21 LEGAL SERVICES.—Section 310I of the Consolidated
22 Farm and Rural Development Act (7 U.S.C. 1936c) is
23 amended—

24 (1) by redesignating subsections (f) and (g) as
25 subsections (g) and (h), respectively; and

1 (2) by inserting after subsection (e) the fol-
2 lowing:

3 “(f) COOPERATIVE AGREEMENTS FOR HEIRS PROP-
4 ERTY RESOLUTION THROUGH DIRECT PUBLIC INTEREST
5 LEGAL SERVICES.—

6 “(1) IN GENERAL.—The Secretary shall enter
7 into cooperative agreements with eligible entities to
8 provide legal or accounting services to underserved
9 heirs, at no cost to the underserved heirs, to assist
10 in resolving undivided ownership interests on farm-
11 land or forest land, or land transitioning to farmland
12 or forest land, that has multiple owners. Such a co-
13 operative agreement must be for any of the following
14 purposes:

15 “(A) To assist with transitioning land to
16 agricultural production.

17 “(B) To maintain land in agricultural pro-
18 duction.

19 “(C) To increase access to programs ad-
20 ministered by the Secretary through the resolu-
21 tion of real property claims in order to allow
22 real property owners to meet land ownership
23 eligibility requirements for participation in a
24 program administered by the Secretary.

1 “(2) ADMINISTRATION OF COOPERATIVE
2 AGREEMENTS.—

3 “(A) DURATION.—

4 “(i) IN GENERAL.—A cooperative
5 agreement under paragraph (1) shall be in
6 effect for not more than 4 years, subject to
7 clause (ii).

8 “(ii) SPECIAL RULE.—The Secretary
9 may extend a cooperative agreement or re-
10 enter into a cooperative agreement with
11 the same or a different eligible entity to
12 provide continued services for heirs if—

13 “(I) property ownership is not re-
14 solved within the initial term of the
15 original cooperative agreement; and

16 “(II) the entity certifies that the
17 entity understands that the coopera-
18 tive agreement is not guaranteed to be
19 funded for more than 4 years after
20 the commencement of the original co-
21 operative agreement.

22 “(B) MANAGEMENT OF PERFORMANCE.—

23 “(i) ANNUAL REPORTS.—An eligible
24 entity must provide annual reports to the
25 Secretary summarizing the progress made

1 during each fiscal year towards achieving
2 the goals of the cooperative agreement for
3 the heirs for whom services are provided
4 under the cooperative agreement.

5 “(ii) INFORMATION AND DATA.—The
6 Secretary may require an eligible entity to
7 provide the Secretary with such informa-
8 tion or data as the Secretary deems nec-
9 essary to determine that the eligible entity
10 is making acceptable progress. The data
11 may not include personally identifiable in-
12 formation.

13 “(iii) EFFECT OF FAILURE TO DEM-
14 ONSTRATE SUCCESS.—If an eligible entity
15 providing services under such a cooperative
16 agreement does not demonstrate success,
17 as determined by the Secretary, in resolv-
18 ing or reasonably attempting to resolve the
19 property claims of an heir, the Secretary
20 may terminate the agreement.

21 “(C) IMPLEMENTATION.—The Secretary
22 may utilize requests for public input or the for-
23 mal rulemaking process to effectuate this sub-
24 section. At a minimum, the Secretary shall
25 make publicly available the criteria for selecting

1 an eligible entity to enter into an agreement to
2 provide services, the administrative and per-
3 formance requirements for cooperative agree-
4 ments under this subsection, as well as codify
5 within its internal policy its implementation
6 process.

7 “(D) HEIRS PROPERTY NOT IN FARM-
8 ING.—On a limited basis, and when determined
9 by the Secretary to meet the purposes of a pro-
10 gram administered by the Secretary and to ex-
11 pand access to such a program, the Secretary
12 may allow an eligible entity to provide services
13 at no cost to an heir who is not an underserved
14 heir if—

15 “(i) the land with respect to which the
16 services are to be provided is not farmland
17 or in agricultural production, but could be
18 viably productive for agricultural, con-
19 servation, or forestry purposes;

20 “(ii) the heir satisfies all other re-
21 quirements of the definition of ‘under-
22 served heir’;

23 “(iii) the heir can provide proof to
24 substantiate that the heir is in control of
25 the real property; and

“(iv) the heir certifies to the Secretary that the heir intends to apply for, and make a good faith effort to enroll the land in, a program administered by the Secretary once property claims to the land are resolved through services provided under a cooperative agreement entered into under this subsection.

9 “(3) DEFINITIONS.—In this subsection:

10 “(A) ELIGIBLE ENTITY.—The term ‘eligi-
11 ble entity’ means a nonprofit organization
12 that—

13 “(i) provides legal or accounting serv-
14 ices to an underserved heir at no cost to
15 the underserved heir to resolve property
16 ownership issues; and

“(ii) has demonstrated experience in resolving issues related to ownership and succession on farmland or forest land that has multiple owners.

21 “(B) LIMITED RESOURCE HEIR.—An heir
22 shall be considered a limited resource heir for
23 purposes of this subsection if—

24 “(i) the total household income of the
25 heir is at or below the national poverty

1 level for a family of 4, or less than 50 per-
2 cent of the county median household in-
3 come for the 2 immediately preceding cal-
4 endar years, as determined annually using
5 data of the Department of Commerce; or

6 “(ii) the property of the heir for which
7 legal services are provided pursuant to a
8 cooperative agreement entered into under
9 this subsection is in a persistent poverty
10 community, as determined annually on the
11 basis of data from the Department of
12 Commerce, or a socially vulnerable area, as
13 designated by the Centers for Disease Con-
14 trol and Prevention.

15 “(C) UNDERSERVED HEIR.—The term ‘un-
16 derserved heir’ means an heir with an undivided
17 ownership interest in farmland or forest land
18 that has multiple owners, who is—

19 “(i) a limited resource heir;

20 “(ii) a member of a socially disadvan-
21 taged group (as defined in section 2501(a)
22 of the Food, Agriculture, Conservation,
23 and Trade Act of 1990 (7 U.S.C.
24 2279(a))); or

1 “(iii) a veteran (as defined in section
2 101(2) of title 38, United States Code).

3 “(4) ANNUAL REPORTS TO CONGRESS.—Within
4 1 year after the date of the enactment of this para-
5 graph, and annually thereafter, the Secretary shall
6 prepare, make public, and submit to the Committee
7 on Agriculture of the House of Representatives and
8 the Committee on Agriculture, Nutrition, and For-
9 estry of the Senate a written report on the activities
10 carried out under this subsection in the year covered
11 by the report.

12 “(5) LIMITATIONS ON AUTHORIZATION OF AP-
13 PROPRIATIONS.—To carry out this subsection, there
14 is authorized to be appropriated to the Secretary
15 \$60,000,000 for each of fiscal years 2027 through
16 2031.”.

17 **SEC. 5208. LIMITATION ON MICROLOAN AMOUNTS.**

18 Section 313(c)(2) of the Consolidated Farm and
19 Rural Development Act (7 U.S.C. 1943(c)(2)) is amended
20 by striking “\$50,000” and inserting “\$100,000”.

21 **SEC. 5209. COOPERATIVE LENDING PILOT PROJECTS.**

22 Section 313(c)(4)(A) of the Consolidated Farm and
23 Rural Development Act (7 U.S.C. 1943(c)(4)(A)) is
24 amended, in the matter preceding clause (i), by striking
25 “2023” and inserting “2031”.

1 **SEC. 5210. REFINANCING OF GUARANTEED LOANS INTO DI-**
2 **RECT LOANS.**

3 Section 303 of the Consolidated Farm and Rural De-
4 velopment Act (7 U.S.C. 1923) is amended by adding at
5 the end the following:

6 “(d) REFINANCING OF GUARANTEED LOANS INTO
7 DIRECT LOANS.—

8 “(1) IN GENERAL.—Not later than 1 year after
9 the date of enactment of this subsection, the Sec-
10 retary shall promulgate regulations allowing certain
11 loans guaranteed by the Farm Service Agency to be
12 refinanced into direct loans issued by the Farm
13 Service Agency, in accordance with this subsection.

14 “(2) REQUIREMENTS.—

15 “(A) IN GENERAL.—The regulations pro-
16 mulgated under paragraph (1) shall provide
17 that a guaranteed loan described in that para-
18 graph may be refinanced into a direct loan de-
19 scribed in that paragraph only if the Secretary,
20 in consultation with the lender holding the
21 guaranteed loan, determines that—

22 “(i) the guaranteed loan is distressed
23 due to its status as a non-performing loan
24 that does not have a positive cashflow;

“(ii) the borrower on the guaranteed
loan has attempted to work with the lender
and has been unsuccessful;

4 “(iii) the borrower on the guaranteed
5 loan is in default and the lender has noti-
6 fied the borrower of a pending liquidation
7 or foreclosure action;

8 “(iv) a reasonable chance for the suc-
9 cess of the operation financed by the guar-
10 anteed loan exists; and

“(v) all other criteria established by the Secretary for purposes of this section to protect taxpayer funds and the loan programs of the Farm Service Agency have been satisfied.

16 “(B) REASONABLE CHANCE OF SUC-
17 CESS.—For purposes of subparagraph (A)(iv),
18 the Secretary may determine that a reasonable
19 chance for the success of an operation exists if
20 the Secretary determines that—

21 “(i) all relevant problems with the op-
22 eration financed by the guaranteed loan—

23 “(I) have been identified; and

24 “(II) can be corrected; and

1 “(ii) on correction of those problems,
2 the operation can achieve, or be returned
3 to, a sound financial basis.

4 “(3) LOAN PROGRAMS.—In making direct loans
5 pursuant to the regulations promulgated under para-
6 graph (1), the Secretary may refinance a loan guar-
7 anteed under 1 program of the Farm Service Agency
8 into a direct loan issued under another program of
9 the Farm Service Agency, as the Secretary deter-
10 mines to be appropriate and in accordance with the
11 laws applicable to the program under which the new
12 direct loan is issued.

13 “(4) MAXIMUM AMOUNT OF DIRECT REFI-
14 NANCING LOANS.—A direct loan issued by the Farm
15 Service Agency pursuant to the regulations promul-
16 gated under paragraph (1) shall be subject to any
17 otherwise applicable limitation on the maximum
18 amount of a direct loan issued by the Farm Service
19 Agency, including, if applicable, the limitations de-
20 scribed in sections 305 and 313.”.

21 **SEC. 5211. PILOT PROJECTS FOR PREAPPROVAL OF DIRECT**
22 **FARM OWNERSHIP LOANS.**

23 Subtitle D of the Consolidated Farm and Rural De-
24 velopment Act is amended by inserting after section 333D
25 (7 U.S.C. 1983d) the following:

1 **“SEC. 333E. PILOT PROJECTS.**

2 “The Secretary shall conduct pilot projects that use
3 financial benchmarking and streamlined loan assessment
4 requirements under section 360(b) to provide farmers and
5 ranchers with a preapproval or prequalification mecha-
6 nism for direct farm ownership loans under subtitle A.”.

7 **SEC. 5212. DEFINITION OF QUALIFIED BEGINNING FARMER**
8 **OR RANCHER.**

9 Section 343(a)(11) of the Consolidated Farm and
10 Rural Development Act (7 U.S.C. 1991(a)(11)) is amend-
11 ed—

- 12 (1) by striking subparagraph (C); and
13 (2) by redesignating subparagraphs (D)
14 through (G) as subparagraphs (C) through (F), re-
15 spectively.

16 **SEC. 5213. USE OF ADDITIONAL FUNDS FOR DIRECT OPER-**
17 **ATING MICROLOANS UNDER CERTAIN CONDI-**
18 **TIONS.**

19 Section 346(b)(5)(C) of the Consolidated Farm and
20 Rural Development Act (7 U.S.C. 1994(b)(5)(C)) is
21 amended by striking “2023” and inserting “2031”.

22 **SEC. 5214. STATE AGRICULTURAL MEDIATION PROGRAMS.**

23 (a) MATCHING GRANTS TO STATES.—Section 502 of
24 the Agricultural Credit Act of 1987 (7 U.S.C. 5102) is
25 amended—

1 (1) in subsection (b)(2), by striking “\$500,000”
2 and inserting “\$700,000”; and

3 (2) by adding at the end the following:

4 “(e) CARRYOVER OF FINANCIAL ASSISTANCE.—The
5 Secretary shall permit a State that receives financial as-
6 sistance under subsection (a) for a fiscal year to carry over
7 not more than 25 percent of the financial assistance that
8 is not expended by the end of the fiscal year for use during
9 the next fiscal year without deducting the amount from
10 any assistance provided under this Act in subsequent fiscal
11 years.”.

12 (b) AUTHORIZATION OF APPROPRIATIONS.—Section
13 506 of the Agricultural Credit Act of 1987 Act (7 U.S.C.
14 5106) is amended by inserting “and \$10,000,000 for each
15 of fiscal years 2027 through 2031” before the period at
16 the end.

17 **SEC. 5215. PROMPT APPROVAL OF LOANS AND LOAN GUAR-**
18 **ANTEES.**

19 (a) IN GENERAL.—Section 333A of the of the Con-
20 solidated Farm and Rural Development Act (7 U.S.C.
21 1983a) is amended—

22 (1) in subsection (g)—

23 (A) by striking paragraph (1) and insert-
24 ing the following:

1 “(1) REAL ESTATE AND OPERATING GUARAN-
2 TEED LOANS.—

3 “(A) IN GENERAL.—The Secretary shall
4 provide to lenders a short, simplified application
5 form for real estate and operating guaranteed
6 loans of not more than \$1,000,000 under this
7 title.

8 “(B) NOTICE.—Not later than 5 business
9 days after receipt of an application to guar-
10 antee a real estate or operating loan described
11 in subparagraph (A) originated by a Preferred
12 Certified Lender or Certified Lender, the Sec-
13 retary shall notify the lender as to whether the
14 application is approved or disapproved.

15 “(C) MAXIMUM GUARANTEE.—The per-
16 centage of the principal amount of a loan that
17 may be guaranteed pursuant to this paragraph
18 shall not exceed—

19 “(i) 90 percent, in the case of a loan
20 of not more than \$125,000;

21 “(ii) 75 percent, in the case of a loan
22 of more than \$125,000 and not more than
23 \$500,000; or

1 “(iii) 50 percent, in the case of a loan
2 of more than \$500,000 and not more than
3 \$1,000,000.”;

4 (B) by redesignating paragraphs (2) and
5 (3) as paragraphs (3) and (4), respectively; and

6 (C) by inserting after paragraph (1) the
7 following:

8 “(2) BUSINESS AND INDUSTRY GUARANTEED
9 LOANS TO ASSIST RURAL ENTITIES.—

10 “(A) IN GENERAL.—The Secretary shall
11 develop an application process that accelerates,
12 to the maximum extent practicable, the proc-
13 essing of applications for business and industry
14 guaranteed loans of not more than \$400,000 to
15 assist rural entities, as described in section
16 310B(a)(2)(A).

17 “(B) EXCEPTION.—The accelerated appli-
18 cation process developed under subparagraph
19 (A) shall apply to a loan of more than
20 \$400,000, but not more than \$600,000, if the
21 Secretary determines that there is not a signifi-
22 cant increased risk of a default on the loan.”;
23 and
24 (2) by striking subsection (h).

1 (b) AUTHORITY TO INCLUDE CERTAIN CERTIFIED
2 LENDERS AS PREFERRED CERTIFIED LENDERS.—Sec-
3 tion 339(d)(1) of the Consolidated Farm and Rural Devel-
4 opment Act (7 U.S.C. 1989(d)) is amended—

5 (1) by redesignating subparagraphs (A) through
6 (C) as clauses (i) through (iii), respectively, and in-
7 denting appropriately;

8 (2) by striking the paragraph designation and
9 heading and all that follows through “the Secretary”
10 in the matter preceding clause (i) (as so redesign-
11 ated) and inserting the following:

12 “(1) ESTABLISHMENT.—

13 “(A) IN GENERAL.—The Secretary”; and

14 (3) by striking the undesignated matter fol-
15 lowing subparagraph (A)(iii) (as so redesignated)
16 and inserting the following:

17 “(B) CERTIFICATION.—The Secretary
18 shall certify as a Preferred Certified Lender—

19 “(i) any lending institution that meets
20 such criteria as the Secretary may pre-
21 scribe by regulation; and

22 “(ii) any lending institution certified
23 under subsection (c), if the Secretary de-
24 termines that including the lending institu-
25 tion in the program under this subsection

1 is feasible as a result of the lending insti-
2 tution meeting alternative eligibility cri-
3 teria established by the Secretary.”.

4 **SEC. 5216. FARM OPERATING LOANS FOR COMMERCIAL**
5 **FISHING.**

6 (a) DEFINITIONS.—Section 343(a) of the Consoli-
7 dated Farm and Rural Development Act (7 U.S.C.
8 1991(a)) is amended by adding at the end the following:

9 “(14) COMMERCIAL FISHING.—The term ‘com-
10 mercial fishing’ means fishing (as defined in section
11 3 of the Magnuson-Stevens Fishery Conservation
12 and Management Act (16 U.S.C. 1802)) in which
13 the fish harvested, either in whole or in part—

14 “(A) are intended to enter commerce; or

15 “(B) enter commerce through sale, barter,
16 or trade.

17 “(15) COMMERCIAL FISHING VESSEL.—The
18 term ‘commercial fishing vessel’ has the meaning
19 given the term ‘fishing vessel’ in section 2101 of
20 title 46, United States Code.

21 “(16) FISH.—The term ‘fish’ has the meaning
22 given the term in section 2101 of title 46, United
23 States Code.”.

1 (b) ELIGIBILITY FOR LOANS.—Section 311(a) of the
2 Consolidated Farm and Rural Development Act (7 U.S.C.
3 1941(a)) is amended by adding at the end the following:

4 “(3) ELIGIBILITY OF WILD-CAUGHT FISH AND
5 SHELLFISH.—Notwithstanding any other provision
6 of this Act, for purposes of direct and guaranteed
7 farm loans under this subtitle—

8 “(A) the terms ‘farmer’ and ‘rancher’ shall
9 include an individual or entity engaged in com-
10 mercial fishing; and

11 “(B) the terms ‘farm’ and ‘ranch’ shall in-
12 clude a commercial fishing vessel.”.

13 (c) PURPOSES OF LOANS.—Section 312 of the Con-
14 solidated Farm and Rural Development Act (7 U.S.C.
15 1942) is amended by adding at the end the following:

16 “(f) COMMERCIAL FISHERY PARTICIPANTS.—An in-
17 dividual or entity engaged in commercial fishing may only
18 use a direct or guaranteed loan under this subtitle for the
19 costs associated with acquiring, operating, or maintaining
20 a commercial fishing vessel.”.

21 (d) IMPLEMENTATION AND COORDINATION.—

22 (1) DEFINITION OF COMMERCIAL FISHING.—In
23 this subsection, the term “commercial fishing” has
24 the meaning given the term in section 343(a) of the

1 Consolidated Farm and Rural Development Act (7
2 U.S.C. 1991(a)).

3 (2) REQUIREMENT.—Not later than 1 year
4 after the date of enactment of this Act, the Sec-
5 retary shall take such actions as are necessary to en-
6 sure the successful and effective integration of indi-
7 viduals and entities in the commercial fishing indus-
8 try into each program of the Department for which
9 those individuals and entities are eligible pursuant to
10 the amendments made by this section.

11 (3) TECHNICAL ASSISTANCE AND GUIDANCE.—
12 In carrying out paragraph (1), the Secretary shall—

13 (A) provide outreach and technical assist-
14 ance to participants in the commercial fishing
15 industry, including through cooperative agree-
16 ments and public-private and other partner-
17 ships, to promote awareness of and access to
18 relevant programs;

19 (B) provide guidance and training to rel-
20 evant agency personnel of the Department, in-
21 cluding through cooperative agreements and
22 public-private and other partnerships, to ensure
23 program services are effectively delivered to the
24 commercial fishing industry; and

1 (C) coordinate, as appropriate, with the
2 National Oceanic and Atmospheric Administra-
3 tion and other relevant Federal and State agen-
4 cies to implement the amendments made by this
5 section.

6 **Subtitle C—Administrative** 7 **Provisions**

8 **SEC. 5301. BEGINNING FARMER AND RANCHER INDIVIDUAL** 9 **DEVELOPMENT ACCOUNTS PILOT PROGRAM.**

10 Section 333B(h) of the Consolidated Farm and Rural
11 Development Act (7 U.S.C. 1983b(h)) is amended by
12 striking “2023” and inserting “2031”.

13 **SEC. 5302. LOAN AUTHORIZATION LEVELS.**

14 Section 346(b)(1) of the Consolidated Farm and
15 Rural Development Act (7 U.S.C. 1994(b)(1)) is amend-
16 ed, in the matter preceding subparagraph (A), by striking
17 “2023” and inserting “2031”.

18 **SEC. 5303. LOAN FUND SET-ASIDES.**

19 Section 346(b)(2) of the Consolidated Farm and
20 Rural Development Act (7 U.S.C. 1994(b)(2)) is amend-
21 ed—

22 (1) in subparagraph (A)—

23 (A) in clause (i)(II), by inserting “, to the
24 extent practicable” after “April 1 of the fiscal
25 year”;

1 (B) in clause (ii)(III), by striking “2023”
2 and inserting “2031”; and

3 (C) in clause (iii), by inserting “, to the ex-
4 tent practicable” after “September 1 of the fis-
5 cal year”; and

6 (2) in subparagraph (B)(iii), by inserting “, to
7 the extent practicable” after “April 1 of the fiscal
8 year”.

9 **SEC. 5304. TEMPORARY PROHIBITION OF LOANS TO BOR-**
10 **ROWERS THAT HAVE RECEIVED DEBT FOR-**
11 **GIVENESS.**

12 Section 373(b) of the Consolidated Farm and Rural
13 Development Act (7 U.S.C. 2008h(b)) is amended—

14 (1) by striking paragraph (1) and inserting the
15 following:

16 “(1) PROHIBITION.—Except as provided in
17 paragraph (2), the Secretary may not make or guar-
18 antee a loan under this title to a borrower for a pe-
19 riod of 7 years after the borrower has received debt
20 forgiveness on a loan made or guaranteed under this
21 title.”; and

22 (2) in paragraph (2)(A)(ii), by striking “chap-
23 ters” and inserting “chapter”.

1 **SEC. 5305. TECHNICAL CORRECTIONS.**

2 (a) ELIMINATION OF OBSOLETE REFERENCES TO
3 COUNTY COMMITTEES.—

4 (1) Section 333A(a)(2)(B)(vi) of the Consoli-
5 dated Farm and Rural Development Act (7 U.S.C.
6 1983a(a)(2)(B)(vi)) is amended by striking “by the
7 county committee” and inserting “of the applica-
8 tion”.

9 (2) Section 336 of the Consolidated Farm and
10 Rural Development Act (7 U.S.C. 1986) is amend-
11 ed—

12 (A) in subsection (b), by striking the sec-
13 ond sentence;

14 (B) by striking subsection (c); and

15 (C) by redesignating subsection (d) as sub-
16 section (c).

17 (3) Section 339 of the Consolidated Farm and
18 Rural Development Act (7 U.S.C. 1989) is amend-
19 ed—

20 (A) in subsection (c)(4)(A), by striking
21 “county committee certification that the bor-
22 rower of the loan meets” and inserting “the
23 borrower meeting”; and

24 (B) in subsection (d)(4)(A), by striking
25 “county committee certification that the bor-

1 rower meets” and inserting “the borrower meet-
2 ing”.

3 (4) Section 359(c)(1) of the Consolidated Farm
4 and Rural Development Act (7 U.S.C. 2006a(c)(1))
5 is amended by striking “(as determined by the ap-
6 propriate county committee during the determina-
7 tion of eligibility for the loan)”.

8 (b) REVISION OF LOAN ASSESSMENT REQUIRE-
9 MENTS.—Section 360(d)(1) of the Consolidated Farm and
10 Rural Development Act (7 U.S.C. 2006b(d)(1)) is amend-
11 ed by striking “annual review of direct loans, and periodic
12 review (as determined necessary by the Secretary) of guar-
13 anteed loans,” and inserting “periodic review (as deter-
14 mined by the Secretary) of direct loans and guaranteed
15 loans”.

16 (c) UPDATING OF OUTDATED REFERENCES TO THE
17 FARMERS HOME ADMINISTRATION AND THE RURAL DE-
18 VELOPMENT ADMINISTRATION.—

19 (1) Section 309(e) of the Consolidated Farm
20 and Rural Development Act (7 U.S.C. 1929(e)) is
21 amended by striking “Farmers Home Administra-
22 tion and the Rural Development Administration”
23 and inserting “Farm Service Agency and Rural De-
24 velopment”.

1 (2) Section 331(b) of the Consolidated Farm
2 and Rural Development Act (7 U.S.C. 1981(b)) is
3 amended—

4 (A) in paragraph (4)—

5 (i) by striking “Consolidated Farm
6 Service Agency” and inserting “Farm
7 Service Agency”; and

8 (ii) by striking “Rural Development
9 Administration” and inserting “Rural De-
10 velopment”;

11 (B) in each of paragraphs (5) and (7), by
12 striking “Farmers Home Administration” each
13 place it appears and inserting “Farm Service
14 Agency and Rural Development”; and

15 (C) in paragraph (8), by striking “Rural
16 Development Administration or by the Farmers
17 Home Administration” and inserting “Farm
18 Service Agency or by Rural Development”.

19 (3) Section 331A(a) of the Consolidated Farm
20 and Rural Development Act (7 U.S.C. 1981a(a)) is
21 amended, in the first sentence, by striking “Farmers
22 Home Administration or by the Rural Development
23 Administration” and inserting “Farm Service Agen-
24 cy or by Rural Development”.

1 (4) Section 333A of the Consolidated Farm and
2 Rural Development Act (7 U.S.C. 1983a) is amend-
3 ed—

4 (A) in subsection (a)(2)(B), by striking
5 “Farmers Home Administration” each place it
6 appears and inserting “Farm Service Agency”;
7 and

8 (B) in subsection (e)(1), by striking
9 “Farmers Home Administration” each place it
10 appears and inserting “Farm Service Agency”.

11 (5) Section 335 of the Consolidated Farm and
12 Rural Development Act (7 U.S.C. 1985) is amend-
13 ed—

14 (A) in subsection (a), by striking “Farmers
15 Home Administration or the Rural Develop-
16 ment Administration” and inserting “Farm
17 Service Agency or Rural Development”;

18 (B) in subsection (d), in the second sen-
19 tence, by striking “Farmers Home Administra-
20 tion” and inserting “Farm Service Agency”;
21 and

22 (C) in subsection (f)(1)—

23 (i) by striking “Agricultural Stabiliza-
24 tion and Conservation Service payments”

1 and inserting “Farm Service Agency farm
2 program”;

3 (ii) by striking “Farmers Home Ad-
4 ministration liens” and inserting “liens for
5 a farmer program loan”; and

6 (iii) by striking “Farmers Home Ad-
7 ministration farmer” and inserting “Farm
8 Service Agency farmer”.

9 (6) Section 338(a) of the Consolidated Farm
10 and Rural Development Act (7 U.S.C. 1988(a)) is
11 amended by striking “Farmers Home Administra-
12 tion or the Rural Development Administration” and
13 inserting “Farm Service Agency or Rural Develop-
14 ment”.

15 (7) Section 347 of the Consolidated Farm and
16 Rural Development Act (7 U.S.C. 1995) is amended,
17 in the first sentence by striking “Farmers Home Ad-
18 ministration” and inserting “Farm Service Agency
19 or Rural Development”.

20 (8) Section 349(e)(1)(B) of the Consolidated
21 Farm and Rural Development Act (7 U.S.C.
22 1997(e)(1)(B)) is amended by striking “Farmers
23 Home Administration” and inserting “Farm Service
24 Agency”.

1 (9) Section 353A of the Consolidated Farm and
2 Rural Development Act (7 U.S.C. 2001a) is amend-
3 ed by striking “the Farmers Home Administration”
4 and inserting “Rural Development”.

5 (10) Section 356 of the Consolidated Farm and
6 Rural Development Act (7 U.S.C. 2004) is amended,
7 in the first sentence—

8 (A) by striking “Farmers Home Adminis-
9 tration may” and inserting “Farm Service
10 Agency and Rural Development may”; and

11 (B) by striking “the inventory of the
12 Farmers Home Administration” and inserting
13 “inventory”.

14 (11) Section 361 of the Consolidated Farm and
15 Rural Development Act (7 U.S.C. 2006c) is amend-
16 ed, in the matter preceding paragraph (1), by strik-
17 ing “Farmers Home Administration” and inserting
18 “Farm Service Agency”.

19 (12) Section 370(a) of the Consolidated Farm
20 and Rural Development Act (7 U.S.C. 2008e(a)) is
21 amended by striking “the Rural Development Ad-
22 ministration, the Farmers Home Administration, the
23 Rural Electrification Administration” and inserting
24 “Rural Development, the Farm Service Agency, the
25 Rural Utilities Service”.

1 (d) EXTENSION OF PERIOD FOR SALES OF REAL
2 PROPERTY.—Section 335(c)(1) of the Consolidated Farm
3 and Rural Development Act (7 U.S.C. 1985(c)(1)) is
4 amended—

5 (1) in subparagraph (A), by striking “15” and
6 inserting “60”;

7 (2) in subparagraph (B)(i)—

8 (A) by striking “135” and inserting
9 “180”; and

10 (B) by inserting “suitable for farming or
11 ranching, as determined by the Secretary” be-
12 fore the comma; and

13 (3) in subparagraph (C), by striking “not later
14 than 135 days after acquiring the real property, the
15 Secretary shall, not later than 30 days after the
16 135-day period,” and inserting “or if the Secretary
17 determines that the property is not suitable for
18 farming or ranching, not later than 60 days after
19 the 180-day period described in subparagraph
20 (B)(i), the Secretary shall”.

21 (e) CORRECTION OF INFEASIBLE INVENTORY PROP-
22 erty DISPOSITION FRAMEWORK.—

23 (1) Section 331(b)(1) of the Consolidated Farm
24 and Rural Development Act (7 U.S.C. 1981(b)(1))

1 is amended by striking “, and until January” and
2 all that follows through “(f)”.

3 (2) Section 335(f) of the Consolidated Farm
4 and Rural Development Act (7 U.S.C. 1985(f)) is
5 amended—

6 (A) by striking paragraphs (3) through
7 (5);

8 (B) by redesignating paragraph (6) as
9 paragraph (3); and

10 (C) by striking paragraph (7) and insert-
11 ing the following:

12 “(4) The Secretary shall issue regulations con-
13 sistent with this section that ensure the release of
14 funds to each borrower.”.

15 (f) REPLACEMENT OF REFERENCES TO DISTRICT
16 OFFICE WITH REFERENCES TO DISTRICT DIRECTOR.—
17 Section 333A(a)(2)(B) of the Consolidated Farm and
18 Rural Development Act (7 U.S.C. 1983a(a)(2)(B)) is
19 amended by striking “district office” each place it appears
20 and inserting “District Director”.

21 (g) CORRECTION OF OBSOLETE REFERENCE TO
22 FORMER TRUST TERRITORIES.—Section 343(a)(6) of the
23 Consolidated Farm and Rural Development Act (7 U.S.C.
24 1991(a)(6)) is amended by striking “the Trust Territory
25 of the Pacific Islands” and inserting “the Federated

1 States of Micronesia, the Republic of Palau, and the Re-
2 public of the Marshall Islands”.

3 (h) REVISION OF FARMER PROGRAM LOAN DEFINI-
4 TION.—Section 343(a)(10) of the Consolidated Farm and
5 Rural Development Act (7 U.S.C. 1991(a)(10)) is amend-
6 ed by striking “304,” and inserting “304 before June 18,
7 2008, conservation loan (CL) under section 304 on or
8 after June 18, 2008,”.

9 (i) UPDATING OF PROVISIONS TO REFLECT
10 REPURPOSING OF CONSERVATION LOAN PROVISIONS.—

11 (1) Section 303(a) of the Consolidated Farm
12 and Rural Development Act (7 U.S.C. 1923(a)) is
13 amended in each of paragraphs (1)(D) and (2)(D)
14 by striking “described in section 304”.

15 (2) Section 310D of the Consolidated Farm and
16 Rural Development Act (7 U.S.C. 1934) is amended,
17 in the first sentence, by striking “, or paragraphs
18 (1) through (5) of section 304(a),” and inserting “or
19 304(a)”.

20 (j) UPDATING OF NOTICE PROVISION REQUIREMENT
21 AND LIFETIME DEBT FORGIVENESS LIMIT.—Section
22 353(i)(1) of the Consolidated Farm and Rural Develop-
23 ment Act (7 U.S.C. 2001(i)(1)) is amended by striking
24 “registered or certified mail” and inserting “any method
25 that provides documentation of delivery”.

1 (k) CLARIFICATION OF INTEREST RATE REQUIRE-
2 MENTS.—

3 (1) Section 307(a)(3)(B) of the Consolidated
4 Farm and Rural Development Act (7 U.S.C.
5 1927(a)(3)(B)) is amended by striking “not be—” in
6 the matter preceding clause (i) and all that follows
7 through the period at the end of clause (ii) and in-
8 serting “be equal to the interest rate for direct farm
9 ownership loans under this subtitle, not to exceed 5
10 percent per year.”.

11 (2) Section 316(a)(2) of the Consolidated Farm
12 and Rural Development Act (7 U.S.C. 1946(a)(2))
13 is amended by striking “not be—” in the matter
14 preceding subparagraph (A) and all that follows
15 through the period at the end of subparagraph (B)
16 and inserting “be equal to the interest rate for di-
17 rect farm operating loans under this subtitle, not to
18 exceed 5 percent per year.”.

19 (l) CORRECTION OF HEADING.—Section 309(h)(6) of
20 the Consolidated Farm and Rural Development Act (7
21 U.S.C. 1929(h)(6)) is amended, in the paragraph heading,
22 by striking “BEGINNING FARMER LOANS” and inserting
23 “DOWN PAYMENT LOAN PROGRAM PARTICIPANTS”.

24 (m) ELIMINATION OF SUPERFLUOUS RESTRIC-
25 TIONS.—Section 312 of the Consolidated Farm and Rural

1 Development Act (7 U.S.C. 1942) (as amended by section
2 5216(c)) is amended—

3 (1) by striking subsection (d); and

4 (2) by redesignating subsections (e) and (f) as
5 subsections (d) and (e), respectively.

6 (n) **ELIMINATION OF CONFUSING REFERENCES TO**
7 **LOAN GUARANTEES.**—Section 319 of the Consolidated
8 Farm and Rural Development Act (7 U.S.C. 1949) is
9 amended—

10 (1) in the section heading, by striking “**OR**
11 **GUARANTEES**”; and

12 (2) by striking “or with respect to whom there
13 is an outstanding guarantee under this subtitle”.

14 (o) **ELIMINATION OF OBSOLETE REPORTING RE-**
15 **QUIREMENTS.**—Section 346 of the Consolidated Farm and
16 Rural Development Act (7 U.S.C. 1994) is amended by
17 striking subsections (c) and (d).

18 (p) **CORRECTION OF OBSOLETE APPEALS PROVI-**
19 **SIONS.**—

20 (1) Section 352(c)(3) of the Consolidated Farm
21 and Rural Development Act (7 U.S.C. 2000(c)(3)) is
22 amended, in the second sentence, by striking “sec-
23 tion 333B” and inserting “subtitle H of title II of
24 the Federal Crop Insurance Reform and Department

1 of Agriculture Reorganization Act of 1994 (7 U.S.C.
2 6991 et seq.)”.

3 (2) Section 353 of the Consolidated Farm and
4 Rural Development Act (7 U.S.C. 2001) is amend-
5 ed—

6 (A) in subsection (h), by striking “under
7 section 333B”; and

8 (B) in subsection (j)—

9 (i) in the first sentence, by striking
10 “filed with the appeals division under sec-
11 tion 333B” and inserting “to the National
12 Appeals Division”; and

13 (ii) in the second sentence—

14 (I) by striking “appeals division
15 shall” and inserting “Secretary shall”;
16 and

17 (II) by striking “county super-
18 visor” and inserting “Secretary”.

19 (q) ELIMINATION OF UNNECESSARY CONSTRAINT ON
20 PILOT PROJECTS.—Section 333D(a) of the Consolidated
21 Farm and Rural Development Act (7 U.S.C. 1983d(a))
22 is amended by striking “that are consistent with subtitle
23 A through this subtitle”.

24 (r) CORRECTION OF HEADING.—Section 8.8(a)(3) of
25 the Farm Credit Act of 1971 (12 U.S.C. 2279aa–8(a)(3))

1 is amended, in the paragraph heading, by striking “MORT-
2 GAGE LOANS” and inserting “LOAN QUALITY”.

3 **TITLE VI—RURAL**
4 **DEVELOPMENT**
5 **Subtitle A—Rural Electrification**
6 **Act of 1936**

7 **PART I—RURAL BROADBAND ACCESS**

8 **SEC. 6101. STREAMLINING BROADBAND AUTHORITIES.**

9 (a) IN GENERAL.—Section 601 of the Rural Elec-
10 trification Act of 1936 (7 U.S.C. 950bb) is amended—

11 (1) by striking the section heading and insert-
12 ing “**RECONNECT PROGRAM**”;

13 (2) in subsection (b)—

14 (A) by redesignating paragraph (3) as
15 paragraph (4); and

16 (B) by inserting after paragraph (2) the
17 following:

18 “(3) **RECONNECT PROGRAM**.—The term ‘Re-
19 Connect Program’ means the program established
20 under this section.”;

21 (3) in subsection (c)—

22 (A) in paragraph (2)(A)—

23 (i) in clause (i)—

1 (I) in subclause (I), by striking
2 “10-Mbps” and inserting “25-Mbps”;
3 and

4 (II) in subclause (II), by striking
5 “1-Mbps” and inserting “3-Mbps”;

6 (ii) in clause (iii), by striking “and”
7 at the end; and

8 (iii) by striking clause (iv) and insert-
9 ing the following:

10 “(iv) give priority to applications from
11 applicants that have demonstrated the
12 technical and financial experience required
13 to construct and operate broadband net-
14 works; and

15 “(v) give priority to applications from
16 applicants that ensure that the network
17 built under the project can easily scale
18 speeds over time, as determined by the
19 Secretary—

20 “(I) to meet the evolving
21 connectivity needs of households and
22 businesses; and

23 “(II) to support the deployment
24 of 5G wireless technology, successor

1 wireless technologies, and other ad-
2 vanced services.”; and

3 (B) by adding at the end the following:

4 “(5) APPLICATIONS.—The Secretary shall es-
5 tablish an application process for grants, loans, and
6 loan guarantees under this section that—

7 “(A) reduces the amount of data required
8 to apply by limiting the required data to only—

9 “(i) the entity applying, excluding any
10 parent or affiliate entity that is not a party
11 to the application, to the greatest extent
12 practicable; and

13 “(ii) the geographic area affected by
14 the application, if a parent or affiliate is
15 not a party to the application;

16 “(B) simplifies the data interfaces for sub-
17 mission to the greatest extent practicable; and

18 “(C) allows all applicants, regardless of
19 whether an applicant is publicly traded, to rely
20 on a bond rating of at least investment grade
21 (when bond ratings are available) in place of fi-
22 nancial documentation.”;

23 (4) in subsection (d)—

24 (A) in paragraph (1)—

1 (i) in subparagraph (B), by striking
2 “subsection (j)” and inserting “subsection
3 (l)”; and

4 (ii) by adding at the end the fol-
5 lowing:

6 “(C) REQUIREMENTS.—The Secretary—

7 “(i) shall not restrict the eligibility of
8 an entity for a grant, loan, or loan guar-
9 antee under this section based on the legal
10 structure of the entity;

11 “(ii) in determining the financial abil-
12 ity of an entity to carry out a project using
13 a grant, loan, or loan guarantee under this
14 section, shall allow the entity to dem-
15 onstrate that financial ability by methods
16 that—

17 “(I) the Secretary determines to
18 be the least burdensome; and

19 “(II) subject to clause (iv), in the
20 case of a project using a grant, are
21 not limited to providing the Federal
22 Government an exclusive first lien on
23 all grant-funded assets during the
24 service obligation of the grant;

1 “(iii) subject to clause (iv), in deter-
2 mining the required collateral to secure
3 grant funds or to secure performance dur-
4 ing the service obligation of a grant, shall
5 allow an awardee to offer alternative secu-
6 rity, such as a letter of credit or perform-
7 ance bond, in lieu of providing the Federal
8 Government an exclusive first lien on all
9 grant-funded assets; and

10 “(iv) if the Secretary reasonably de-
11 termines that alternative methods or alter-
12 native security established under clause
13 (ii)(II) or (iii) are insufficient to secure
14 performance with respect to a project
15 under this section—

16 “(I) may require an entity to
17 provide the Federal Government an
18 exclusive first lien on all grant-funded
19 assets during the service obligation of
20 the grant; and

21 “(II) may release that lien after
22 the Secretary determines that the en-
23 tity is performing to the satisfaction
24 of the Secretary.”; and

25 (B) in paragraph (2)—

1 (i) in subparagraph (A)(i), by striking
2 “50” and inserting “90”; and

3 (ii) by adding at the end the fol-
4 lowing:

5 “(D) OBLIGATIONS TO PROVIDE
6 BROADBAND SERVICE IN THE SAME SERVICE
7 TERRITORY.—

8 “(i) DEFINITION OF BROADBAND IN-
9 FRASTRUCTURE.—In this subparagraph,
10 the term ‘broadband infrastructure’ means
11 any cables, fiber optics, wiring, or other
12 permanent infrastructure that is integral
13 to the structure, including fixed wireless
14 infrastructure, that—

15 “(I) is capable of providing ac-
16 cess to internet connections in indi-
17 vidual locations; and

18 “(II) offers an advanced tele-
19 communications capability (as defined
20 in section 706(d) of the Telecommuni-
21 cations Act of 1996 (47 U.S.C.
22 1302(d))).

23 “(ii) OTHER PROVIDERS.—The Sec-
24 retary shall consider a proposed service
25 territory with respect to which an eligible

entity submits an application for grant funding to carry out a project under this section to be served by broadband service if a broadband service provider other than that eligible entity is subject to an obligation by a Federal, State, or local government entity to build broadband infrastructure and offer broadband service in that service territory, subject to conditions—

“(I) under a Federal, State, or local funding award program; or

“(II) otherwise required by the Federal, State, or local government entity.

“(iii) **OTHER FUNDING.**—Subject to clause (iv), the Secretary shall not be required to consider a proposed service territory with respect to which an eligible entity submits an application for grant funding to carry out a project under this section to be served by broadband service if that eligible entity has accepted an obligation under a Federal, State, or local funding award program to build broadband infrastructure and offer broadband service in

1 that service territory, if the proposed
2 project under this section—

3 “(I) would not be duplicative of
4 the obligation under the other award
5 program; and

6 “(II) would build broadband in-
7 frastructure that results in faster
8 speeds or expedited milestones of de-
9 ployment of broadband infrastructure
10 in that service territory, as compared
11 to the obligation under the other
12 award program.

13 “(iv) OTHER OBLIGATIONS FOR
14 LOWER TRANSMISSION CAPACITY.—The
15 Secretary shall consider a proposed service
16 territory with respect to which an eligible
17 entity submits an application to carry out
18 a project under this section to be unserved
19 by broadband service if an obligation under
20 another award program described in clause
21 (iii) would not provide broadband service of
22 at least—

23 “(I) a 25-Mbps downstream
24 transmission capacity; and

1 “(II) a 3-Mbps upstream trans-
2 mission capacity.

3 “(E) REQUIREMENTS FOR FUNDING.—

4 “(i) SEPARATE OWNERSHIP OR OPER-
5 ATION OF NETWORK.—A grant, loan, or
6 loan guarantee under this section may be
7 used to construct networks that will be
8 owned and operated by another entity
9 other than the eligible entity receiving the
10 grant, loan, or loan guarantee, subject to
11 the condition that the eligible entity, the
12 other entity, or both, as the Secretary de-
13 termines to be necessary, shall provide ade-
14 quate security for the grant, loan, or loan
15 guarantee.

16 “(ii) REPORTING AND AUDITING.—
17 The Secretary shall—

18 “(I) simplify, to the maximum
19 extent practicable, ongoing reporting
20 and auditing requirements for recipi-
21 ents of a grant, loan, or loan guar-
22 antee under this section; and

23 “(II) allow a recipient described
24 in subclause (I) whose financial infor-
25 mation is consolidated with the finan-

1 cial information of a parent entity to
2 rely on that consolidated financial in-
3 formation in complying with the re-
4 quirements described in that sub-
5 clause if the parent entity is providing
6 an adequate guarantee on behalf of a
7 subsidiary of the parent entity with
8 respect to the grant, loan, or loan
9 guarantee.

10 “(iii) PROCUREMENT AND CON-
11 TRACTING.—The Secretary—

12 “(I) shall simplify, to the max-
13 imum extent practicable, requirements
14 for recipients of a grant, loan, or loan
15 guarantee under this section relating
16 to the procurement of materials and
17 retention of contractors; and

18 “(II) shall not unreasonably re-
19 strict the ability of a recipient de-
20 scribed in subclause (I) to obtain
21 goods and services from affiliated en-
22 tities.”;

23 (5) in subsection (e)(1)—

24 (A) in subparagraph (A), by striking “25-
25 Mbps” and inserting “100-Mbps”; and

1 (B) in subparagraph (B), by striking “3-
2 Mbps” and inserting “20-Mbps”;

3 (6) by redesignating subsection (k) as sub-
4 section (m);

5 (7) by striking subsection (j) and inserting the
6 following:

7 “(j) REGULATIONS.—Not later than 180 days after
8 the date of enactment of the Agricultural Act of 2026,
9 the Secretary shall issue regulations to carry out this sec-
10 tion in accordance with section 553 of title 5, United
11 States Code.

12 “(k) ANNUAL REPORTS.—Not later than 120 days
13 after the date of enactment of the Agricultural Act of
14 2026, and not less frequently than annually thereafter, the
15 Secretary shall—

16 “(1) publish a report describing—

17 “(A) the distribution of amounts made
18 available under the ReConnect Program for the
19 preceding year;

20 “(B) the number of locations at which
21 broadband service was made available using
22 amounts under the ReConnect Program for the
23 preceding year;

1 “(C) the number of locations described in
2 subparagraph (B) at which broadband service
3 was used; and

4 “(D) the highest level of broadband service
5 made available at each location described in
6 subparagraph (B); and

7 “(2) submit the report described in paragraph
8 (1) to—

9 “(A) the Committee on Agriculture, Nutri-
10 tion, and Forestry of the Senate;

11 “(B) the Committee on Commerce,
12 Science, and Transportation of the Senate;

13 “(C) the Committee on Agriculture of the
14 House of Representatives; and

15 “(D) the Committee on Energy and Com-
16 merce of the House of Representatives.

17 “(l) AUTHORIZATION OF APPROPRIATIONS.—There is
18 authorized to be appropriated to the Secretary to carry
19 out this section \$100,000,000 for each of fiscal years 2027
20 through 2031, to remain available until expended.”; and

21 (8) in subsection (m) (as so redesignated), by
22 striking “2023” and inserting “2031”.

23 (b) SUNSET.—Beginning on the date that is 120 days
24 after the date of enactment of this Act, section 779 of
25 division A of the Consolidated Appropriations Act, 2018

1 (Public Law 115–141; 132 Stat. 399), shall have no force
2 or effect.

3 (c) TRANSFER OF AMOUNTS.—The unobligated bal-
4 ance, as of the date that is 120 days after the date of
5 enactment of this Act, of any amounts made available to
6 carry out the pilot program described in section 779 of
7 division A of the Consolidated Appropriations Act, 2018
8 (Public Law 115–141; 132 Stat. 399)—

9 (1) is transferred to, and merged with, amounts
10 made available to carry out section 601 of the Rural
11 Electrification Act of 1936 (7 U.S.C. 950bb); and

12 (2) shall remain available, until expended, and
13 without further appropriation, to carry out the Re-
14 Connect Program established under that section.

15 (d) EFFECT.—Title VI of the Rural Electrification
16 Act of 1936 (7 U.S.C. 950bb et seq.) is amended by add-
17 ing at the end the following:

18 **“SEC. 608. EFFECT.**

19 “Nothing in this title authorizes the Secretary to reg-
20 ulate rates charged for broadband service.”.

21 (e) PUBLIC NOTICE, ASSESSMENTS, AND REPORTING
22 REQUIREMENTS.—Section 701 of the Rural Electrifica-
23 tion Act of 1936 (7 U.S.C. 950cc) is amended—

1 (1) in the section heading, by striking “**AND**
2 **REPORTING**” and inserting “**REPORTING, AND**
3 **COORDINATION**”;

4 (2) in subsection (a)—

5 (A) in paragraph (1)(A), by inserting “,
6 including a complete shapefile map” after “ap-
7 plicant”; and

8 (B) in paragraph (2)(D), by striking “(c)”
9 and inserting “(d)”;

10 (3) by redesignating subsections (b) through (e)
11 as subsections (c) through (f), respectively;

12 (4) by inserting after subsection (a) the fol-
13 lowing:

14 “(b) CHALLENGE PROCESS.—

15 “(1) IN GENERAL.—The Secretary shall estab-
16 lish a transparent, evidence-based, and expeditious
17 process for challenging, with respect to any area for
18 which assistance is sought under an application de-
19 scribed in subsection (a)(1), whether that area has
20 access to broadband service.

21 “(2) NOTICE.—If the Secretary denies an appli-
22 cation described in subsection (a)(1), the Secretary
23 shall provide to the applicant a written notice of the
24 denial, including a detailed description of the rea-
25 sons for the denial.”; and

1 (5) by adding at the end the following:

2 “(g) PUBLIC NOTICE OF ELIGIBLE FUNDING
3 AREAS.—Prior to making available to the public the data-
4 base under subsection (a), the Secretary shall make avail-
5 able to the public a fully searchable database on the
6 website of the Rural Utilities Service that contains infor-
7 mation on areas eligible for assistance, as identified by the
8 Secretary in accordance with subsection (i).

9 “(h) INTERAGENCY COORDINATION.—The Secretary
10 shall coordinate with the heads of other relevant Federal
11 departments and agencies, including the Federal Commu-
12 nications Commission, the National Telecommunications
13 and Information Administration, and the Department of
14 the Treasury, in the deployment of broadband service
15 using Federal funding to prevent overbuilding.

16 “(i) FCC MAPS.—

17 “(1) USE OF FCC MAPS.—The Secretary shall
18 identify areas eligible for assistance under
19 broadband programs administered by the Secretary
20 using the maps created by the Federal Communica-
21 tions Commission under section 802(c)(1) of the
22 Communications Act of 1934 (47 U.S.C. 642(c)(1)).

23 “(2) DATA SHARING.—The Secretary shall en-
24 sure that any broadband service data collected is
25 made available to the Chair of the Federal Commu-

1 nications Commission and the Administrator of the
2 National Telecommunications and Information Ad-
3 ministration for inclusion in any broadband maps or
4 data sets maintained by the Federal Communica-
5 tions Commission or the National Telecommuni-
6 cations and Information Administration.”.

7 (f) CONSULTATION.—Section 6212 of the Agriculture
8 Improvement Act of 2018 (7 U.S.C. 950bb–6) is amend-
9 ed—

10 (1) in subsection (a), in the first sentence, by
11 inserting “and State broadband offices” after “As-
12 sistant Secretary”; and

13 (2) in subsection (b)(1)—

14 (A) by striking “The Secretary” and in-
15 serting the following:

16 “(A) IN GENERAL.—The Secretary”; and

17 (B) by adding at the end the following:

18 “(B) RECONNECT PROGRAM.—On award-
19 ing a grant, loan, or loan guarantee under the
20 ReConnect Program established under section
21 601 of the Rural Electrification Act of 1936 (7
22 U.S.C. 950bb), the Secretary shall notify the
23 Commission of that award.”.

1 **SEC. 6102. EXPANSION OF MIDDLE MILE INFRASTRUCTURE**
2 **INTO RURAL AREAS.**

3 Section 602(g) of the Rural Electrification Act of
4 1936 (7 U.S.C. 950bb–1(g)) is amended by striking
5 “2018 through 2023” and inserting “2027 through
6 2031”.

7 **SEC. 6103. COMMUNITY CONNECT GRANT PROGRAM.**

8 Section 604 of the Rural Electrification Act of 1936
9 (7 U.S.C. 950bb–3) is amended—

10 (1) in subsection (a)—

11 (A) in paragraph (1), by striking “less
12 than the” and all that follows through the pe-
13 riod at the end and inserting the following:
14 “less than—

15 “(A) a 100-Mbps downstream transmission
16 capacity; and

17 “(B) a 20-Mbps upstream transmission ca-
18 pacity.”; and

19 (B) by striking paragraph (2) and insert-
20 ing the following:

21 “(2) ELIGIBLE SERVICE AREA.—

22 “(A) IN GENERAL.—The term ‘eligible
23 service area’ means a rural area in which
24 broadband service capacity is less than—

25 “(i) a 25-Mbps downstream trans-
26 mission capacity; and

1 “(ii) a 3-Mbps upstream transmission
2 capacity.

3 “(B) ADJUSTMENTS.—At least once every
4 2 years, the Secretary shall review, and may ad-
5 just through notice published in the Federal
6 Register, the levels of broadband service de-
7 scribed in clauses (i) and (ii) of subparagraph
8 (A) to ensure that high quality, cost-effective
9 broadband service is provided to rural areas
10 over time.”;

11 (2) in subsection (d)(2)(A), by striking “area;
12 or” and inserting “area (including any eligible
13 broadband service that will be provided in the future
14 in the eligible service area pursuant to enforceable
15 commitments for network deployment applicable
16 under another broadband funding program); or”;
17 and

18 (3) in subsection (g), by striking “2023” and
19 inserting “2031”.

20 **SEC. 6104. LAST MILE BROADBAND DEPLOYMENT.**

21 (a) AMENDMENT.—Title VI of the Rural Electrifica-
22 tion Act of 1936 is amended by inserting after section 606
23 (7 U.S.C. 950bb–5) the following:

24 **“SEC. 607. LAST ACRE PROGRAM.**

25 “(a) PURPOSES.—The purposes of this section are—

1 “(1) to advance precision agriculture
2 connectivity nationwide; and

3 “(2) to augment last mile broadband deploy-
4 ment for agricultural producers by expanding high-
5 speed internet access across the last acre.

6 “(b) DEFINITIONS.—In this section:

7 “(1) BROADBAND INTERNET ACCESS SERV-
8 ICE.—The term ‘broadband internet access service’
9 has the meaning given the term in section 8.1(b) of
10 title 47, Code of Federal Regulations (or any suc-
11 cessor regulation).

12 “(2) BROADBAND MAPS.—The term ‘broadband
13 maps’ means any map created under—

14 “(A) section 802(c)(1) of the Communica-
15 tions Act of 1934 (47 U.S.C. 642(c)(1)); or

16 “(B) section 60105 of the Infrastructure
17 Investment and Jobs Act (47 U.S.C. 1704).

18 “(3) COMMISSION.—The term ‘Commission’
19 means the Federal Communications Commission.

20 “(4) CONFIGURATION MANAGEMENT PLAN.—
21 The term ‘configuration management plan’, with re-
22 spect to a covered provider, means a comprehensive
23 description of the roles, responsibilities, policies, and
24 procedures intended to improve the integrity of the
25 systems and networks of the covered provider.

1 “(5) COVERED PRODUCER.—

2 “(A) IN GENERAL.—The term ‘covered
3 producer’ means a person or entity that is de-
4 scribed as eligible under section 311(a)(1) of
5 the Consolidated Farm and Rural Development
6 Act (7 U.S.C. 1941(a)(1)).

7 “(B) INCLUSION.—The term ‘covered pro-
8 ducer’ includes agricultural research centers of
9 the Agricultural Research Service.

10 “(6) COVERED PROVIDER.—The term ‘covered
11 provider’ means—

12 “(A) with respect to the provision of quali-
13 fied connectivity to eligible land, a provider of
14 broadband internet access service; or

15 “(B) with respect to the provision of wire-
16 less solutions using or extending the range of
17 network connectivity, a provider of wireless
18 equipment or communications services, in asso-
19 ciation with an entity described in subpara-
20 graph (A).

21 “(7) ELIGIBLE LAND.—The term ‘eligible land’
22 means cropland, grassland, rangeland, pastureland,
23 farm sites, and other agricultural land used for the
24 active production of agricultural commodities or live-
25 stock.

1 “(8) FARM SITE.—The term ‘farm site’ means
2 a portion of land contiguous to land actively devoted
3 to agricultural production and that includes im-
4 provements that are agricultural or horticultural in
5 nature.

6 “(9) LIMITED RESOURCE FARMER OR RANCH-
7 ER.—

8 “(A) IN GENERAL.—Subject to subpara-
9 graphs (B) and (C), the term ‘limited resource
10 farmer or rancher’ means a covered producer—

11 “(i) with direct or indirect gross farm
12 sales in each of the previous 2 years of not
13 more than \$100,000, as adjusted for
14 changes in inflation since 2002 using the
15 Prices Paid by Farmer Index compiled by
16 the National Agricultural Statistics Serv-
17 ice; and

18 “(ii) that has a total household in-
19 come that is—

20 “(I) at or below the national pov-
21 erty level for a family of 4; or

22 “(II) less than 50 percent of the
23 county median household income in
24 each of the previous 2 years.

1 “(B) DOCUMENTATION.—For purposes of
2 determining if a covered producer is a limited
3 resource farmer or rancher, the Secretary may
4 require the submission of sufficient documenta-
5 tion to verify the status of the covered pro-
6 ducer.

7 “(C) EXCLUSION.—For purposes of this
8 paragraph, the term ‘covered producer’ does not
9 include the agricultural research centers de-
10 scribed in paragraph (5)(B).

11 “(10) PRECISION AGRICULTURE.—The term
12 ‘precision agriculture’ means managing, tracking, or
13 reducing crop or livestock production inputs, includ-
14 ing seed, feed, fertilizer, chemicals, water, and time,
15 at a heightened level of spatial and temporal granu-
16 larity to improve efficiencies, reduce waste, and
17 maintain or improve environmental quality.

18 “(11) QUALIFYING CONNECTIVITY.—

19 “(A) IN GENERAL.—The term ‘qualifying
20 connectivity’ means the service offered by a cov-
21 ered provider as a result of assistance under
22 subsection (c) that—

23 “(i) is capable of a speed of not less
24 than—

1 “(I) a 100-Mbps downstream
2 transmission capacity; and

3 “(II) a 20-Mbps upstream trans-
4 mission capacity; and

5 “(ii) carries out not less than 1 of the
6 activities described in subparagraph (B).

7 “(B) ACTIVITIES DESCRIBED.—The activi-
8 ties referred to in subparagraph (A)(ii) are—

9 “(i) providing broadband internet ac-
10 cess service by any technology to struc-
11 tures and devices on eligible land, includ-
12 ing tractors, combines, irrigation systems,
13 drones, under-soil sensors, livestock facili-
14 ties, and farm offices;

15 “(ii) providing multipoint wireless net-
16 work connectivity that facilitates data
17 transmission between structures and de-
18 vices on eligible land, including structures
19 and devices described in clause (i); and

20 “(iii) supporting—

21 “(I) the construction of wireless
22 infrastructure, including poles, towers,
23 base stations, or other structures, re-
24 gardless of whether the structure has
25 an existing antenna facility, that is

1 used or will be used for the provision
2 of wireless service; or

3 “(II) the retrofitting of existing
4 towers or vertical structures, such as
5 water towers, grain elevators, or cen-
6 ter pivots, to accommodate wireless
7 infrastructure.

8 “(12) REMOTE AREA.—The term ‘remote area’
9 means the frontier and remote ZIP Code areas pub-
10 lished by the Economic Research Service.

11 “(13) UNDERSERVED.—The term ‘underserved’
12 means, with respect to eligible land, that the eligible
13 land lacks access to broadband internet access serv-
14 ice that is capable of a speed of not less than—

15 “(A) a 100-Mbps downstream transmission
16 capacity; and

17 “(B) a 20-Mbps upstream transmission ca-
18 pacity.

19 “(14) UNSERVED.—The term ‘unserved’ means,
20 with respect to eligible land, eligible land that lacks
21 access to broadband internet access service that is
22 capable of a speed of not less than—

23 “(A) a 25-Mbps downstream transmission
24 capacity; and

1 “(B) a 3-Mbps upstream transmission ca-
2 pacity.

3 “(c) ESTABLISHMENT.—

4 “(1) IN GENERAL.—Not later than 1 year after
5 the date of enactment of this section, the Secretary
6 shall establish a program, to be known as the ‘Last
7 Acre Program’, to make grants and loans to covered
8 providers on a competitive basis to provide quali-
9 fying connectivity to unserved and underserved eligi-
10 ble land.

11 “(2) LIMITATION.—Of the amounts made avail-
12 able under subsection (k) for a fiscal year for assist-
13 ance under paragraph (1), the Secretary may award
14 not more than 10 percent to agricultural research
15 centers described in subsection (b)(5)(B).

16 “(d) USE OF FUNDS.—

17 “(1) CYBERSECURITY.—The Secretary may
18 allow a covered provider to use a portion of the as-
19 sistance provided to the covered provider under sub-
20 section (c), as necessary, to address the cybersecu-
21 rity requirements under subsection (g).

22 “(2) PROHIBITION.—The Secretary shall not
23 award any assistance under subsection (c) for
24 broadband internet access service—

1 “(A) to an inhabitable residence that is
2 identified as serviceable or as to be served due
3 to an enforceable commitment to deploy on the
4 broadband maps; or

5 “(B) on a commercial basis to surrounding
6 areas outside the eligible land.

7 “(3) FEDERAL SHARE.—

8 “(A) IN GENERAL.—Except as provided in
9 subparagraph (B), the Federal share of a
10 project carried out using assistance under sub-
11 section (c) shall be not more than 80 percent of
12 the total cost of the project.

13 “(B) LIMITED RESOURCE FARMERS OR
14 RANCHERS.—The Secretary may increase the
15 Federal share of the costs described in subpara-
16 graph (A) to 90 percent if the covered producer
17 of the applicable eligible land is a limited re-
18 source farmer or rancher.

19 “(e) BID APPLICATIONS.—

20 “(1) IN GENERAL.—To apply for assistance
21 under subsection (c), a covered provider shall submit
22 to the Secretary an application in such manner and
23 containing such information as the Secretary may
24 require, including—

1 “(A) the measures by which the covered
2 producer has engaged with the covered provider
3 to identify the appropriate qualifying
4 connectivity plan to serve the eligible land of
5 the covered producer;

6 “(B) a description of how the assistance
7 provided under subsection (c) would be used to
8 establish qualifying connectivity on the
9 unserved or underserved eligible land of a cov-
10 ered producer, including the entire acreage in
11 need of qualifying connectivity;

12 “(C) the amount of the Federal share for
13 the project and the amount of the non-Federal
14 share for the project;

15 “(D) whether the covered provider is capa-
16 ble of carrying out the specific funded activities
17 in compliance with all Federal, State, and local
18 laws;

19 “(E) whether the covered provider has the
20 financial and managerial capacity to meet the
21 specific commitments contained in the applica-
22 tion, including buildout obligations;

23 “(F) whether the covered provider has the
24 technical and operational capability to construct
25 and operate broadband networks;

1 “(G) whether the eligible land of the cov-
2 ered producer—

3 “(i) is unserved or underserved; and

4 “(ii) is not subject to an enforceable
5 commitment to deploy broadband by the
6 applicant or another covered provider, as
7 determined according to the broadband
8 maps; and

9 “(H) any additional information that the
10 Secretary determines necessary to ensure the
11 effective function of the program under this
12 section.

13 “(2) REGISTRATION OF COVERED PRO-
14 VIDERS.—

15 “(A) IN GENERAL.—Not later than the
16 date on which the Secretary establishes the pro-
17 gram under this section pursuant to subsection
18 (c), the Secretary shall create an online portal
19 within which covered providers may register vol-
20 untarily with the Secretary for purposes of the
21 program under this section.

22 “(B) REGISTRATION REQUIREMENTS.—To
23 register with the Secretary under subparagraph
24 (A), the Secretary shall require a covered pro-
25 vider to submit the minimum amount of infor-

1 mation necessary for the covered provider to
2 demonstrate to the Secretary that the covered
3 provider—

4 “(i) is capable of carrying out activi-
5 ties for which assistance is provided under
6 subsection (c) in compliance with all appli-
7 cable Federal, State, and local laws;

8 “(ii) has the financial and managerial
9 capacity to meet commitments necessary to
10 carry out the projects for which assistance
11 is received under subsection (c); and

12 “(iii) has the technical and oper-
13 ational capability—

14 “(I) to construct and operate
15 broadband networks; and

16 “(II) to meet the requirement de-
17 scribed in paragraph (1) of subsection
18 (g) and provide the cybersecurity cer-
19 tification required under paragraph
20 (2) of that subsection.

21 “(C) PROHIBITIONS.—In registering cov-
22 ered providers under subparagraph (A), the
23 Secretary shall not—

24 “(i) require a covered provider to pro-
25 vide any proprietary business information

1 for purposes of registering under that sub-
2 paragraph; or

3 “(ii) require a covered provider to
4 participate in the program under this sec-
5 tion.

6 “(D) PUBLIC AVAILABILITY.—The Sec-
7 retary may make a list of covered providers reg-
8 istered under subparagraph (A) publicly avail-
9 able.

10 “(3) BIDDING.—

11 “(A) IN GENERAL.—After the Secretary
12 receives a complete initial bid application under
13 paragraph (1), the Secretary shall allow covered
14 providers registered under paragraph (2)(A)
15 that operate contiguous to, near, or partially on
16 the eligible land that is the subject of the initial
17 bid application to submit competing bid applica-
18 tions for the proposed service area.

19 “(B) NOTIFICATION TO COVERED PRO-
20 VIDERS.—Not less frequently than once every
21 30 days, the Secretary shall—

22 “(i) post on an internet website of the
23 Secretary that is accessible to covered pro-
24 viders the necessary identifying informa-

1 tion of eligible land contained in a com-
2 plete initial bid application; and

3 “(ii) not later than 24 hours after the
4 time at which the information described in
5 clause (i) is posted, send notice of that
6 post to covered providers registered under
7 paragraph (2)(A) by electronic mail.

8 “(C) CHALLENGES.—

9 “(i) IN GENERAL.—Not later than 45
10 business days after the date on which the
11 Secretary posts the information described
12 in subparagraph (B)(i), a covered provider
13 may submit to the Secretary notice of a
14 challenge of any posted eligible land at
15 which—

16 “(I) the qualifying connectivity of
17 the covered provider is available to the
18 entire portion of land in the initial bid
19 application without assistance under
20 subsection (c);

21 “(II) the covered provider could
22 initiate qualifying connectivity
23 through a routine installation within
24 10 business days of a request with no
25 extraordinary monetary charges or

1 delays attributable to the extension of
2 the network of the covered provider;
3 or

4 “(III) the covered provider has
5 an enforceable commitment to deploy
6 broadband to the eligible land.

7 “(ii) ADJUDICATION OF CHAL-
8 LENGES.—

9 “(I) PROCESS.—The Secretary
10 shall establish a transparent, evi-
11 dence-based, and expeditious process
12 for adjudicating a challenge submitted
13 under clause (i) with respect to a loca-
14 tion within 90 business days of the
15 date on which the Secretary posts the
16 information described in subpara-
17 graph (B)(i).

18 “(II) REQUIREMENT.—The proc-
19 ess established by the Secretary under
20 subclause (I) shall include making
21 publicly available on the website of the
22 Secretary a written notice describing
23 the outcome and reason for the deci-
24 sion of the Secretary with respect to

1 each challenge submitted under clause
2 (i).

3 “(III) LIMITATION.—The Sec-
4 retary may not award any assistance
5 under subsection (c) for a particular
6 application until all challenges with
7 respect to the eligible land described
8 in that application have been fully ad-
9 judicated.

10 “(iii) NEW SOLICITATION.—If, after
11 adjudicating a challenge under clause (i),
12 the Secretary determines that the land
13 subject to the challenge is eligible land that
14 is unserved or underserved, the Secretary
15 shall transmit to each covered provider
16 registered under paragraph (2)(A) a bid
17 notification for the provision of qualifying
18 connectivity to the eligible land.

19 “(D) COMPETING BID APPLICATIONS.—A
20 covered provider registered under paragraph
21 (2)(A) that receives a notification under sub-
22 paragraph (B)(ii) or a notification under sub-
23 paragraph (C)(iii) and wishes to submit a com-
24 peting bid application for provision of qualifying
25 connectivity to the eligible land described in

1 that notification shall, not later than 120 days
2 after the date on which the covered provider
3 registered under paragraph (2)(A) receives the
4 notification, submit to the Secretary a com-
5 peting bid application to provide that qualifying
6 connectivity in accordance with paragraph (1).

7 “(E) EVALUATION.—Not later than 30
8 business days after the date on which the 120-
9 day period described in subparagraph (D) ends,
10 the Secretary shall evaluate the bid applications
11 received and select the applicant that—

12 “(i) presents the lowest cost to the
13 Secretary for the provision of qualifying
14 connectivity to the eligible land that is
15 unserved or underserved; and

16 “(ii) best demonstrates to the covered
17 producer the ability to provide downstream
18 and upstream transmission capacity that
19 can reliably support the specific
20 connectivity needs of all on-farm applica-
21 tions described in the bid application, in-
22 cluding mobility, if mobility was included
23 in the bid application.

24 “(F) ENHANCED SPEEDS.—

1 “(i) FINDING.—Congress finds that
2 there are unique connectivity needs to sup-
3 port the adoption of precision agriculture.

4 “(ii) PRIORITIZATION.—In selecting
5 bid applicants under subparagraph (E),
6 the Secretary may give priority to a cov-
7 ered provider that offers enhanced service
8 speeds that are greater than those de-
9 scribed in subsection (b)(11)(A)(i), if the
10 applicant demonstrates that the proposal
11 to serve the eligible land of a covered pro-
12 ducer that is unserved or underserved re-
13 quires such enhanced service speeds.

14 “(G) TREATMENT OF PROPRIETARY IN-
15 FORMATION.—

16 “(i) IN GENERAL.—The prohibition
17 under paragraph (2)(C)(i) shall not apply
18 to a covered provider in the submission of
19 a bid application under this subsection, in-
20 cluding a competing bid application under
21 subparagraph (D) or a challenge under
22 subparagraph (C), if the proprietary infor-
23 mation is necessary for the Secretary—

24 “(I) to determine the eligibility of
25 a covered provider; or

1 “(II) to evaluate an initial bid
2 application, competing bid application,
3 or challenge.

4 “(ii) DISCLOSURE IN NOTIFICA-
5 TION.—

6 “(I) IN GENERAL.—In the notifi-
7 cation required under subparagraph
8 (B), the Secretary—

9 “(aa) shall only disclose the
10 necessary and appropriate infor-
11 mation contained within an ini-
12 tial bid application for the pur-
13 poses of facilitating competing
14 bid applications; and

15 “(bb) shall not divulge pro-
16 prietary information of the appli-
17 cable covered provider and cov-
18 ered producer in the application.

19 “(II) REQUIREMENT.—In a bid
20 application under this subsection, in-
21 cluding a competing bid application
22 under subparagraph (D) or a chal-
23 lenge under subparagraph (C), an ap-
24 plicant shall clearly mark any propri-

1 etary information with the term ‘con-
2 fidential proprietary information’.

3 “(iii) TREATMENT.—If a covered pro-
4 vider provides in a bid application under
5 this subsection, including a competing bid
6 application under subparagraph (D) or a
7 challenge under subparagraph (C), propri-
8 etary information that constitutes a trade
9 secret, proprietary commercial or financial
10 information, confidential business informa-
11 tion, or data affecting national security,
12 the Secretary shall treat the information in
13 confidence to the greatest extent permitted
14 by law.

15 “(iv) PRIVACY.—Nothing in this sec-
16 tion affects the applicability to this section
17 of section 1619 of the Food, Conservation,
18 and Energy Act of 2008 (7 U.S.C. 8791).

19 “(4) TIMELINE.—

20 “(A) IN GENERAL.—For each project for
21 which assistance under subsection (c) is pro-
22 vided, the Secretary shall establish service
23 buildout milestones and periodic certifications
24 by recipients of the assistance for purposes of
25 project compliance and implementation.

1 “(B) REQUIREMENT.—The milestones re-
2 quired under subparagraph (A) shall establish a
3 maximum buildout timeframe of not more than
4 4 years from the date on which the assistance
5 is provided.

6 “(C) PENALTIES.—The Secretary shall es-
7 tablish and enforce standardized penalties,
8 fines, and sanctions for noncompliance with a
9 milestone or certification established under sub-
10 paragraph (A).

11 “(f) PRIORITY.—In providing assistance under sub-
12 section (c), the Secretary shall give priority to applications
13 to carry out projects in the following order:

14 “(1) Unserved eligible land in remote areas.

15 “(2) Other unserved eligible land.

16 “(3) Underserved eligible land in remote areas.

17 “(4) Other underserved eligible land.

18 “(g) CYBERSECURITY.—As a condition on receipt of
19 assistance under subsection (c), a covered provider shall—

20 “(1) ensure that any structure, device, or sys-
21 tem provided or constructed using the assistance in-
22 corporates a layered defense strategy as a means of
23 defensible security architecture; and

1 “(2) certify to the Secretary that the covered
2 provider maintains a regularly updated configuration
3 management plan.

4 “(h) PROHIBITION.—In selecting recipients of assist-
5 ance under subsection (c), the Secretary shall not advan-
6 tage or disadvantage the selection of a recipient under this
7 section based on consideration of the existence, or lack
8 thereof, of any State law.

9 “(i) REPORT TO CONGRESS.—The Secretary shall, on
10 an annual basis—

11 “(1) submit to the Committee on Agriculture,
12 Nutrition, and Forestry of the Senate and the Com-
13 mittee on Agriculture of the House of Representa-
14 tives a report that describes the outcome of the bids
15 that occurred during the previous fiscal year, includ-
16 ing the number of parcels of eligible land for which
17 initial bid applications were submitted during the
18 previous fiscal year, the number of challenges filed
19 under subsection (e)(3)(C) during the previous fiscal
20 year, the outcomes of those challenges, the number
21 of competing bid applications received under this
22 section, and the respective amounts awarded for eli-
23 gible land; and

1 “(2) make the report required under paragraph
2 (1) publicly available on the website of the Sec-
3 retary.

4 “(j) PROVISION OF DATA TO FCC.—The Secretary
5 shall, on an annual basis, make the necessary data avail-
6 able to the Commission for inclusion on the broadband
7 maps.

8 “(k) AUTHORIZATION OF APPROPRIATIONS.—There
9 is authorized to be appropriated to carry out this section
10 \$25,000,000 for each of fiscal years 2027 through 2031.”.

11 (b) NATIONAL AGRICULTURAL STATISTICS SERVICE
12 DATA COLLECTION ON BROADBAND ADOPTION.—To pro-
13 vide for the collection and analysis by the National Agri-
14 cultural Statistics Service of more comprehensive
15 broadband usage data, the Secretary shall update the com-
16 puter usage and ownership survey and the census of agri-
17 culture conducted under section 2 of the Census of Agri-
18 culture Act of 1997 (7 U.S.C. 2204g) to contain questions
19 relating to—

20 (1) whether the respondent subscribes to a
21 broadband internet access service for a farm site (as
22 defined in section 607(b) of the Rural Electrification
23 Act of 1936); and

1 (2) if the respondent subscribes to the
2 broadband internet access service described in para-
3 graph (1)—

4 (A) the download and upload speeds of the
5 broadband internet access service to which the
6 respondent is subscribed; and

7 (B) the purposes for which the internet ac-
8 cess is used, including the use of precision agri-
9 culture (as defined in section 607(b) of the
10 Rural Electrification Act of 1936).

11 **PART II—ADDITIONAL AMENDMENTS**

12 **SEC. 6111. GUARANTEES FOR BONDS AND NOTES ISSUED**
13 **FOR UTILITY INFRASTRUCTURE PURPOSES.**

14 Section 313A(f) of the Rural Electrification Act of
15 1936 (7 U.S.C. 940c–1(f)) is amended by striking “2023”
16 and inserting “2031”.

17 **SEC. 6112. RURAL DEVELOPMENT LOANS AND GRANTS.**

18 Section 313B of the Rural Electrification Act of 1936
19 (7 U.S.C. 940c–2) is amended—

20 (1) in subsection (b), by striking the subsection
21 designation and heading and all that follows through
22 “In the case” and inserting the following:

23 “(b) ZERO INTEREST LOANS.—

24 “(1) COLLATERAL.—

1 “(A) ACCEPTABLE FORMS.—The Secretary
2 may, at the sole discretion of the Secretary, ac-
3 cept as collateral for a zero interest loan under
4 this section any of the following:

5 “(i) An irrevocable letter of credit.

6 “(ii) A performance bond.

7 “(iii) A revenue pledge.

8 “(iv) A senior preferred security inter-
9 est.

10 “(v) The assignment of a mortgage.

11 “(vi) Such other forms of security as
12 the Secretary determines are reasonably
13 adequate and acceptable.

14 “(B) CONSIDERATION OF PAST PERFORM-
15 ANCE.—In determining an adequate and accept-
16 able form of collateral for a zero interest loan
17 under this section, the Secretary shall consider
18 the past financial and project performance of—

19 “(i) a borrower of a loan or a recipi-
20 ent of a grant under this section; and

21 “(ii) any recipients of the funds pro-
22 vided by a borrower or recipient described
23 in clause (i).

24 “(C) CONSIDERATION OF ADMINISTRATIVE
25 COSTS.—In determining an adequate and ac-

1 ceptable form of collateral for a zero interest
2 loan under this section, the Secretary shall
3 make every practicable effort to accept a form
4 of collateral that minimizes the administrative
5 costs of securing collateral, for the purpose of
6 maximizing the benefits of the program under
7 this section for the ultimate recipients of the
8 funds provided through zero interest loans.

9 “(D) NO EFFECT OF THE ACCEPTANCE OF
10 COLLATERAL ON SUBSIDIES.—The Secretary
11 shall ensure that accepting collateral for zero
12 interest loans under this section has no impact
13 on the subsidy rate of—

14 “(i) loans guaranteed by the Secretary
15 under this title; or

16 “(ii) direct loans issued by the Sec-
17 retary under this title.

18 “(2) REPAYMENTS.—In the case”; and
19 (2) in subsection (e)—

20 (A) in paragraph (1), by striking “2023”
21 and inserting “2031”; and

22 (B) in paragraph (2), by striking “2024”
23 and inserting “2031”.

1 **SEC. 6113. EXPANSION OF 911 ACCESS.**

2 Section 315(d) of the Rural Electrification Act of
3 1936 (7 U.S.C. 940e(d)) is amended by striking “2023”
4 and inserting “2031”.

5 **Subtitle B—Consolidated Farm and**
6 **Rural Development Act**

7 **SEC. 6201. WATER, WASTE DISPOSAL, AND WASTEWATER**
8 **FACILITY GRANTS.**

9 Section 306(a)(2) of the Consolidated Farm and
10 Rural Development Act (7 U.S.C. 1926(a)(2)) is amend-
11 ed—

12 (1) in subparagraph (A)(ii)—

13 (A) by striking “per centum” and inserting
14 “percent”; and

15 (B) by striking “area.” and inserting
16 “area, except that in the case of demonstrated
17 need, as determined by the Secretary, the
18 amount of a grant made under the authority of
19 this subparagraph for necessary expenses of de-
20 veloping a complete application to carry out an
21 eligible project under this subparagraph may
22 exceed 75 percent, but shall not exceed 100 per-
23 cent, of those expenses to be incurred.”; and

24 (2) in subparagraph (B)—

1 (A) in clause (iii), by striking “\$200,000”
2 each place it appears and inserting “\$500,000”;
3 and

4 (B) in clause (vii), by striking
5 “\$15,000,000 for each of fiscal years 2019
6 through 2023” and inserting “\$30,000,000 for
7 each of fiscal years 2027 through 2031”.

8 **SEC. 6202. SEARCH GRANTS.**

9 Section 306(a)(2)(C)(ii) of the Consolidated Farm
10 and Rural Development Act (7 U.S.C. 1926(a)(2)(C)(ii))
11 is amended by adding at the end the following:

12 “(III) IN-KIND CONTRIBUTION.—
13 In the case of demonstrated need, as
14 determined by the Secretary, the non-
15 Federal share of the cost of a project
16 funded under this subparagraph may
17 be provided in the form of in-kind
18 contributions.”.

19 **SEC. 6203. RURAL WATER, WASTEWATER, AND WASTE DIS-**
20 **POSAL FACILITY DIRECT LOANS.**

21 Section 306(a)(13) of the Consolidated Farm and
22 Rural Development Act (7 U.S.C. 1926(a)(13)) is amend-
23 ed—

24 (1) by striking “(13) In the making of” and in-
25 serting the following:

1 “(13) PRIORITIES FOR WASTE DISPOSAL AND
2 WATER FACILITIES LOANS AND GRANTS.—

3 “(A) LOW POPULATION COMMUNITIES.—

4 “(i) IN GENERAL.—In making”;

5 (2) in subparagraph (A) (as so designated)—

6 (A) in clause (i) (as so designated), in the
7 second sentence, by striking “The Secretary”
8 and inserting the following:

9 “(ii) TECHNICAL ASSISTANCE.—The
10 Secretary”; and

11 (B) in clause (ii) (as so designated)—

12 (i) by striking “Soil Conservation
13 Service” and inserting “Natural Resources
14 Conservation Service”;

15 (ii) by striking “paragraph” and in-
16 serting “subparagraph”; and

17 (iii) by striking “he” and inserting
18 “the Secretary”; and

19 (3) by adding at the end the following:

20 “(B) LOW-INCOME COMMUNITIES.—In
21 making direct loans under paragraph (1) and
22 grants under paragraph (2) for community
23 waste disposal and water facilities, the Sec-
24 retary shall accord highest priority to the appli-
25 cation of an association described in paragraph

1 (1) to carry out a project in a low-income rural
2 community with a population of less than
3 10,000.”.

4 **SEC. 6204. RURAL WATER AND WASTEWATER TECHNICAL**
5 **ASSISTANCE AND TRAINING PROGRAMS.**

6 Section 306(a)(14)(C) of the Consolidated Farm and
7 Rural Development Act (7 U.S.C. 1926(a)(14)(C)) is
8 amended by striking “Not less than 3 percent and not
9 more than 5 percent” and inserting “Not less than 3 per-
10 cent and not more than 10 percent”.

11 **SEC. 6205. RURAL WATER AND WASTEWATER CIRCUIT**
12 **RIDER PROGRAM.**

13 Section 306(a)(22) of the Consolidated Farm and
14 Rural Development Act (7 U.S.C. 1926(a)(22)) is amend-
15 ed—

16 (1) in subparagraph (B), by striking
17 “\$25,000,000 for each of fiscal years 2019 through
18 2023” and inserting “\$30,000,000 for each of fiscal
19 years 2027 through 2031”; and

20 (2) by adding at the end the following:

21 “(C) CONTINUITY OF ESSENTIAL CIRCUIT
22 RIDER ACTIVITIES.—Activities carried out
23 under this paragraph that are necessary to pre-
24 vent imminent harm to life or property shall be
25 treated as excepted activities and may continue

1 during a lapse in appropriations, using unobli-
2 gated balances previously appropriated under
3 the heading ‘Rural Water and Waste Disposal
4 Program Account’.”.

5 **SEC. 6206. RURAL WATER AND WASTEWATER CYBERSECU-**
6 **RITY CIRCUIT RIDER PROGRAM.**

7 Section 306(a) of the Consolidated Farm and Rural
8 Development Act (7 U.S.C. 1926(a)) is amended by in-
9 serting after paragraph (22) the following:

10 “(23) RURAL WATER AND WASTEWATER CY-
11 BERSECURITY CIRCUIT RIDER PROGRAM.—

12 “(A) IN GENERAL.—The Secretary shall
13 establish a cybersecurity circuit rider program,
14 which shall be structured similar to the general
15 authorities under paragraph (22), to provide
16 technical assistance to associations described in
17 paragraph (1) that operate rural water or
18 wastewater systems—

19 “(i) to provide rapid assessments of
20 the current ability or inability of those as-
21 sociations—

22 “(I) to respond to cybersecurity
23 threats; and

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1 “(II) to protect the
2 cyberinfrastructure of those associa-
3 tions and public health;

4 “(ii) to develop reasonable protocols to
5 enhance cybersecurity protection;

6 “(iii) to provide assistance to address
7 inadequate cyber protection plans; and

8 “(iv) to document the state of cyber
9 protection with respect to the water sup-
10 plies of those associations.

11 “(B) REPORT REQUIREMENT.—An entity
12 or entities delivering the circuit rider program
13 that receive funding under this paragraph shall
14 submit to the Secretary an annual report docu-
15 menting—

16 “(i) the utilities and communities
17 served by the entity or entities under this
18 paragraph; and

19 “(ii) the activities performed by the
20 entity or entities under this paragraph.

21 “(C) REQUIREMENTS FOR CIRCUIT RID-
22 ERS.—To provide technical assistance under
23 subparagraph (A), an entity shall possess the
24 necessary experience and certification to effec-

1 tively carry out the activities described in that
2 subparagraph, as determined by the Secretary.

3 “(D) AUTHORIZATION OF APPROPRIA-
4 TIONS.—In addition to amounts otherwise avail-
5 able, there is authorized to be appropriated to
6 carry out this paragraph \$10,000,000 for each
7 of fiscal years 2027 through 2031.

8 “(E) CONTINUITY OF ESSENTIAL CYBER-
9 SECURITY CIRCUIT RIDER ACTIVITIES.—Activi-
10 ties carried out under this paragraph that are
11 necessary to prevent imminent harm to life or
12 property shall be treated as excepted activities
13 and may continue during a lapse in appropria-
14 tions, using unobligated balances previously ap-
15 propriated under the heading ‘Rural Water and
16 Waste Disposal Program Account’.”.

17 **SEC. 6207. TRIBAL COLLEGE AND UNIVERSITY ESSENTIAL**
18 **COMMUNITY FACILITIES.**

19 Section 306(a)(25)(C) of the Consolidated Farm and
20 Rural Development Act (7 U.S.C. 1926(a)(25)(C)) is
21 amended by striking “2023” and inserting “2031”.

1 **SEC. 6208. ESSENTIAL COMMUNITY FACILITIES TECHNICAL**
2 **ASSISTANCE AND TRAINING.**

3 Section 306(a)(26) of the Consolidated Farm and
4 Rural Development Act (7 U.S.C. 1926(a)(26)) is amend-
5 ed by adding at the end the following:

6 “(D) NATIONAL OR MULTI-STATE
7 AWARDS.—Of the amounts available to carry
8 out this paragraph for a fiscal year, the Sec-
9 retary shall use not less than 2 percent to
10 award grants under this paragraph to 1 or
11 more of the entities described in subparagraph
12 (A) for the purpose of providing on-site tech-
13 nical assistance and training on a national or
14 multi-State regional basis.”.

15 **SEC. 6209. EMERGENCY PREPAREDNESS AND RESPONSE**
16 **TECHNICAL ASSISTANCE PROGRAM.**

17 Section 306(a) of the Consolidated Farm and Rural
18 Development Act (7 U.S.C. 1926(a)) is amended by add-
19 ing at the end the following:

20 “(27) RURAL WATER AND WASTEWATER EMER-
21 GENCY PREPAREDNESS AND RESPONSE TECHNICAL
22 ASSISTANCE PROGRAM.—

23 “(A) IN GENERAL.—The Secretary shall
24 establish an emergency preparedness and re-
25 sponse technical assistance program to provide
26 grants to eligible entities to assist associations

1 described in paragraph (1) that operate rural
2 water or wastewater systems in preparing for
3 and responding to natural or man-made disas-
4 ters, as determined by the Secretary.

5 “(B) ELIGIBLE ENTITIES.—An entity eligi-
6 ble to receive a grant under subparagraph (A)
7 is a nonprofit organization that—

8 “(i) has demonstrated experience pro-
9 viding emergency technical assistance for
10 disaster preparation, recovery, and re-
11 sponse activities to water and wastewater
12 utilities nationwide; and

13 “(ii) has the capacity to deploy per-
14 sonnel that possess—

15 “(I) an active water or waste-
16 water system operators’ license; or

17 “(II) documented knowledge of
18 water and wastewater utilities nec-
19 essary to carry out activities described
20 in subparagraph (C).

21 “(C) ELIGIBLE ACTIVITIES.—An eligible
22 entity that receives a grant under subparagraph
23 (A) shall use the grant—

1 “(i) to provide on-site personnel and
2 equipment to assist with water and waste-
3 water systems in the event of a disaster;

4 “(ii) to coordinate with statewide
5 emergency response networks to assist with
6 water and wastewater systems;

7 “(iii) to facilitate the development of
8 disaster action plans between associations
9 described in subparagraph (A), units of
10 local government, the Federal Emergency
11 Management Agency, and State emergency
12 management agencies;

13 “(iv) to improve resiliency and mitiga-
14 tion planning with respect to water or
15 wastewater systems;

16 “(v) to provide geographic information
17 system mapping of water and wastewater
18 systems;

19 “(vi) to prepare or update predisaster
20 risk and resiliency assessments, emergency
21 response plans, communication protocols,
22 or hazard recognition and evaluation skills
23 with respect to water and wastewater sys-
24 tems;

1 “(vii) to conduct preliminary damage
2 assessments of critical infrastructure in the
3 event of a disaster;

4 “(viii) to provide emergency services
5 with respect to water and wastewater sys-
6 tems to restore service in the event of a
7 disaster, including—

8 “(I) pump and motor evaluation
9 and repair;

10 “(II) water disinfection and
11 flushing;

12 “(III) leak detection;

13 “(IV) line repair;

14 “(V) water main and valve loca-
15 tion;

16 “(VI) emergency power genera-
17 tion;

18 “(VII) bypass pumping;

19 “(VIII) water treatment;

20 “(IX) maintaining safety meas-
21 ures; and

22 “(X) other appropriate activities;

23 “(ix) to address outstanding defi-
24 ciencies focused on resolving health-based
25 regulatory, operational, financial, and man-

1 agerial deficiencies that impact the sus-
2 tainability of water and wastewater sys-
3 tems;

4 “(x) to assist with application and re-
5 porting requirements for Federal and State
6 agencies, including the Federal Emergency
7 Management Agency and insurance recov-
8 ery claims, with respect to water and
9 wastewater systems; and

10 “(xi) to provide for disaster prepara-
11 tion, support, and response activities tar-
12 geted to disadvantaged communities, as de-
13 termined by the Secretary, that lack the fi-
14 nancial resources and human capital nec-
15 essary to adequately address significant
16 health, safety, or sanitary concerns with
17 respect to the water and wastewater sys-
18 tems of those communities.

19 “(D) USE OF FUNDS.—

20 “(i) IN GENERAL.—An eligible entity
21 that receives a grant under subparagraph
22 (A) may use the grant for salaries, sup-
23 plies, and expenses relating to the activities
24 described in subparagraph (C).

1 “(ii) LIMITATION.—Not more than 25
2 percent of the amount of a grant under
3 subparagraph (A) may be used to purchase
4 or reimburse the rental costs of appro-
5 priate emergency equipment, as determined
6 by the Secretary.

7 “(E) CONTINUITY OF ESSENTIAL ACTIVI-
8 TIES.—Activities carried out under this para-
9 graph that are necessary to prevent imminent
10 harm to life or property shall be treated as ex-
11 cepted activities and may continue during a
12 lapse in appropriations, using unobligated bal-
13 ances previously appropriated under the head-
14 ing ‘Rural Water and Waste Disposal Program
15 Account’.

16 “(F) RESTRICTION.—An eligible entity
17 that receives a grant under subparagraph (A)
18 may not use the grant funds to pay for eligible
19 activities for which the eligible entity receives
20 other Federal funds.

21 “(G) AUTHORIZATION OF APPROPRIA-
22 TIONS.—In addition to amounts otherwise avail-
23 able, there is authorized to be appropriated to
24 carry out this paragraph \$20,000,000 for each
25 of fiscal years 2027 through 2031.”.

1 **SEC. 6210. ASSISTANCE TO PROVIDE WATER AND WASTE-**
2 **WATER SERVICES IN FINANCIALLY DIS-**
3 **TRESSED RURAL AREAS.**

4 Section 306(a) of the Consolidated Farm and Rural
5 Development Act (7 U.S.C. 1926(a)) (as amended by sec-
6 tion 6209) is amended by adding at the end the following:

7 “(28) ASSISTANCE TO PROVIDE WATER AND
8 WASTEWATER SERVICES IN FINANCIALLY DIS-
9 TRESSED RURAL AREAS.—

10 “(A) DEFINITIONS.—In this paragraph:

11 “(i) DISTRESSED WATER SYSTEM.—

12 The term ‘distressed water system’ means
13 an association described in paragraph (1)
14 that—

15 “(I) is unable to provide water
16 and wastewater services to the resi-
17 dents of an eligible area because the
18 association—

19 “(aa) lacks the capacity—

20 “(AA) to operate, main-
21 tain, or manage water and
22 wastewater facilities or serv-
23 ices; or

24 “(BB) to provide for
25 the continued availability
26 and use of those facilities or

1 services at reasonable user
2 rates and charges; or

3 “(bb) lacks the financial,
4 technical, or managerial capa-
5 bility to consistently comply with
6 pertinent Federal and State laws
7 and requirements; and

8 “(II) voluntarily agrees to the
9 provision of water or wastewater serv-
10 ices in the eligible area described in
11 subclause (I) by an eligible association
12 the service area of which is contiguous
13 to, or in the locality of, the eligible
14 area.

15 “(ii) ELIGIBLE AREA.—The term ‘eli-
16 gible area’ means a rural area that is a
17 low-income community or an economically
18 distressed area, as determined by the Sec-
19 retary.

20 “(iii) ELIGIBLE ASSOCIATION.—The
21 term ‘eligible association’ means an asso-
22 ciation described in paragraph (1) that—

23 “(I) currently receives, or is eligi-
24 ble for, assistance under a rural water
25 or wastewater program; and

1 “(II) is experienced in, and cur-
2 rently, providing functioning water
3 and wastewater services to the resi-
4 dents of a rural area.

5 “(iv) RURAL WATER OR WASTEWATER
6 PROGRAM.—The term ‘rural water or
7 wastewater program’ means a water or
8 wastewater program under this subsection.

9 “(B) ASSISTANCE.—

10 “(i) FINANCIAL ASSISTANCE.— The
11 Secretary may provide financial assistance
12 under a rural water or wastewater pro-
13 gram to an eligible association for con-
14 struction costs relating to providing water
15 and wastewater services to the residents in
16 the service area of a distressed water sys-
17 tem that is contiguous to, or in the locality
18 of, the service area of the eligible associa-
19 tion.

20 “(ii) TECHNICAL ASSISTANCE
21 GRANTS.—The Secretary may provide
22 grants to qualified nonprofit technical as-
23 sistance organizations with demonstrated
24 experience in working with rural commu-
25 nities on regionalization, consolidation, and

1 independent assessment, planning, and im-
2 plementation projects to provide technical
3 assistance to—

4 “(I) an eligible association for
5 the purpose of providing water and
6 wastewater services to the residents in
7 the service area of a distressed water
8 system that is contiguous to, or in the
9 locality of, the service area of the eli-
10 gible association; and

11 “(II) a distressed water system
12 in deciding whether to voluntarily
13 agree to allow an eligible association
14 to provide the services described in
15 subclause (I).

16 “(C) CONSOLIDATION AND REGIONALIZA-
17 TION.—

18 “(i) IN GENERAL.—For purposes of
19 providing water and wastewater services
20 using assistance provided under subpara-
21 graph (B), an eligible association and a
22 distressed water system may—

23 “(I) consolidate governance,
24 management, and financial functions;
25 or

1 “(II) enter into a regional part-
2 nership.

3 “(ii) EFFECT ON POPULATION LIM-
4 TATION.—If an eligible association and a
5 distressed water system consolidate or
6 enter into a regional partnership pursuant
7 to clause (i), the Secretary shall only con-
8 sider the population of the service area of
9 the distressed water system for purposes of
10 eligibility for assistance under subpara-
11 graph (B).

12 “(iii) USE OF SYSTEMS.—Notwith-
13 standing any other provision of law, an eli-
14 gible association may use assistance pro-
15 vided under subparagraph (B) to provide
16 water or wastewater services to the service
17 area of a distressed water system using—

18 “(I) the system of the eligible as-
19 sociation;

20 “(II) a system located in the
21 service area of the distressed water
22 system; or

23 “(III) a combination of both sys-
24 tems.

1 “(D) LIMITATION.—An eligible association
2 that receives financial assistance under sub-
3 paragraph (B)(i) shall only use that assistance
4 for the benefit of the residents in the service
5 area of the distressed water system.”.

6 **SEC. 6211. COMMUNITY FACILITIES DIRECT AND GUARAN-**
7 **TEED LOANS FOR HEALTH CARE SERVICES.**

8 Section 306(a) of the Consolidated Farm and Rural
9 Development Act (7 U.S.C. 1926(a)) (as amended by sec-
10 tion 6210) is amended by adding at the end the following:

11 “(29) HEALTH CARE SERVICES.—Notwith-
12 standing subparagraphs (A) and (C) of section
13 343(a)(13), and regardless of whether the facility is
14 in a rural area, the Secretary may make a commu-
15 nity facility direct or guaranteed loan under para-
16 graph (1) for a project to provide health care serv-
17 ices if not less than 50 percent of the encounters
18 with individuals to whom the health care services are
19 provided are encounters with individuals who inhabit
20 an area with a frontier and remote area code of level
21 3 or level 4, as defined by the most recent Frontier
22 and Remote Area Codes as updated by the Economic
23 Research Service.”.

1 **SEC. 6212. EMERGENCY AND IMMINENT COMMUNITY**
2 **WATER ASSISTANCE GRANT PROGRAM.**

3 Section 306A of the Consolidated Farm and Rural
4 Development Act (7 U.S.C. 1926a) is amended—

5 (1) in subsection (d)(1)—

6 (A) by redesignating subparagraphs (C)
7 and (D) as subparagraphs (D) and (E), respec-
8 tively; and

9 (B) by inserting after subparagraph (B)
10 the following:

11 “(C) for associated uses related to water
12 resources infrastructure, including facilities for
13 potable water, wastewater, storm drainage, or
14 solid waste;” and

15 (2) in subsection (i)(2), by striking “2023” and
16 inserting “2031”.

17 **SEC. 6213. ADDITIONAL ASSISTANCE FOR RURAL WATER**
18 **SYSTEMS.**

19 Subtitle A of the Consolidated Farm and Rural De-
20 velopment Act is amended by inserting after section 306A
21 (7 U.S.C. 1926a) the following:

22 **“SEC. 306B. ADDITIONAL ASSISTANCE FOR RURAL WATER**
23 **SYSTEMS.**

24 “(a) DEFINITION OF ELIGIBLE ENTITY.—In this sec-
25 tion, the term ‘eligible entity’ means a rural water, waste-
26 water, or waste disposal facility with respect to which as-

1 sistance may be provided under a water, wastewater, or
2 waste disposal program under section 306(a), 306A,
3 306C, or 306D.

4 “(b) ADDITIONAL ASSISTANCE.—

5 “(1) GRANTS AND LOANS.—The Secretary may
6 provide to an eligible entity—

7 “(A) a grant in an amount that is not
8 more than 75 percent of the cost of the project
9 carried out by the eligible entity;

10 “(B) a zero percent interest loan; or

11 “(C) a 1 percent interest loan for not more
12 than 100 percent of the cost of the project car-
13 ried out by the eligible entity.

14 “(2) EXISTING LOANS.—The Secretary may—

15 “(A) forgive principal or interest or modify
16 any term or condition of an outstanding loan
17 made to an eligible entity; or

18 “(B) refinance part or all of any other loan
19 (if the purpose of the loan is an eligible purpose
20 under section 306(a)(1) or 306C) made to an
21 eligible entity.

22 “(3) LIMITATION.—The Secretary may not pro-
23 vide forgiveness under paragraph (2)(A) with respect
24 to a loan made under paragraph (1).

1 “(c) ELIGIBLE PURPOSES.—The Secretary may pro-
2 vide assistance to an eligible entity under subsection (b)
3 as the Secretary determines is necessary—

4 “(1) to ensure that the eligible entity has the
5 necessary resources to improve or construct public
6 utilities or to otherwise maintain or enhance public
7 health, safety, affordability, or order; or

8 “(2) to address financial hardships of the eligi-
9 ble entity, if the eligible entity is located in a dis-
10 advantaged or economically distressed area, as deter-
11 mined under subsection (d).

12 “(d) DETERMINATION.—To determine whether an el-
13 igible entity may receive assistance pursuant to subsection
14 (c)(2), the Secretary shall establish—

15 “(1) a residential indicator of affordable water
16 services in each State or local or geographic area,
17 calculated using the average cost per household as a
18 percentage of median household income; or

19 “(2) factors relating to disadvantaged or eco-
20 nomically distressed areas.”.

21 **SEC. 6214. WATER SYSTEMS FOR RURAL AND NATIVE VIL-**
22 **LAGES IN ALASKA.**

23 Section 306D of the Consolidated Farm and Rural
24 Development Act (7 U.S.C. 1926d) is amended—

1 (1) in subsection (a), by striking “construction
2 of water and wastewater systems” and inserting
3 “construction of water systems and wastewater sys-
4 tems, including community-based systems,”;

5 (2) in subsection (c), by inserting “and the
6 Alaska Native Tribal Health Consortium” after
7 “State of Alaska”; and

8 (3) in subsection (d)(1), by striking “2023”
9 and inserting “2031”.

10 **SEC. 6215. RURAL DECENTRALIZED WATER SYSTEMS.**

11 Section 306E of the Consolidated Farm and Rural
12 Development Act (7 U.S.C. 1926e) is amended—

13 (1) by striking the section designation and
14 heading and all that follows through the period at
15 the end of subsection (b)(1) and inserting the fol-
16 lowing:

17 **“SEC. 306E. DECENTRALIZED WATER AND WASTEWATER**
18 **SYSTEM PROGRAM.**

19 “(a) GRANTS TO NONPROFIT ORGANIZATIONS.—The
20 Secretary may provide grants to private nonprofit organi-
21 zations and federally recognized Indian Tribes for the pur-
22 pose of providing subgrants and loans in accordance with
23 subsection (b) to individuals for the construction, refur-
24 bishing, and servicing of individual household water well
25 systems and individually owned household decentralized

1 wastewater systems in rural areas that are or will be
2 owned by the individuals.

3 “(b) LOANS AND SUBGRANTS TO INDIVIDUALS.—

4 “(1) IN GENERAL.—A nonprofit organization or
5 federally recognized Indian Tribe shall use grant
6 amounts received under subsection (a) to provide—

7 “(A) subgrants for use in accordance with
8 this section to individuals residing in the service
9 area of the nonprofit organization who are
10 members of a household with a combined in-
11 come (for the most recent 12-month period for
12 which the information is available) that is less
13 than 80 percent of the median nonmetropolitan
14 household income for the area, according to the
15 most recent decennial census; and

16 “(B) loans for use in accordance with this
17 section to individuals residing in the service
18 area of the nonprofit organization who are
19 members of a household with a combined in-
20 come (for the most recent 12-month period for
21 which the information is available) that is not
22 more than 100 percent, of the median non-
23 metropolitan household income for the area, ac-
24 cording to the most recent decennial census.”;
25 (2) in subsection (b)—

1 (A) in paragraph (2)(B), by striking
2 “\$15,000” and inserting “\$25,000”; and

3 (B) by adding at the end the following:

4 “(5) FUNDING TO COVER COST OF PERFORM-
5 ANCE WARRANTIES.—A subgrant provided to an in-
6 dividual under this subsection for an individually
7 owned household decentralized wastewater system
8 may include sufficient additional funding to cover
9 the cost of a performance warranty with a duration
10 of at least 5 years.

11 “(6) TECHNICAL ASSISTANCE AND SUPPORT.—
12 A nonprofit organization or federally recognized In-
13 dian Tribe that receives a grant under this section
14 may use an amount equal to not more than 10 per-
15 cent of the grant to provide technical assistance and
16 support to individuals eligible for a subgrant or loan
17 under this section relating to the installation and
18 maintenance of household decentralized water and
19 wastewater systems.”; and

20 (3) in subsection (d), by striking “2023” and
21 inserting “2031”.

1 **SEC. 6216. HEALTHY DRINKING WATER AFFORDABILITY AS-**
2 **SISTANCE PROGRAM.**

3 Subtitle A of the Consolidated Farm and Rural De-
4 velopment Act is amended by inserting after section 306E
5 (7 U.S.C. 1926e) the following:

6 **“SEC. 306F. HEALTHY DRINKING WATER AFFORDABILITY**
7 **ASSISTANCE PROGRAM.**

8 “(a) DEFINITIONS.—In this section:

9 “(1) APPROVED INSTALLATION.—The term ‘ap-
10 proved installation’ means the installation of an eli-
11 gible drinking water quality improvement product or
12 a certified filter component by a qualified third-party
13 installer that—

14 “(A) complies with all local and State reg-
15 ulations; and

16 “(B) follows the installation instructions of
17 the manufacturer.

18 “(2) APPROVED MAINTENANCE.—The term ‘ap-
19 proved maintenance’ means required maintenance—

20 “(A) performed on an eligible drinking
21 water quality improvement product that in-
22 cludes maintenance and replacement of the cer-
23 tified filter component;

24 “(B) performed by a qualified third-party
25 installer;

1 “(C) that complies with all local and State
2 regulations; and

3 “(D) that follows the maintenance instruc-
4 tions of the manufacturer.

5 “(3) CERTIFIED FILTER COMPONENT.—The
6 term ‘certified filter component’ means a replaceable
7 or replacement filter component—

8 “(A) for which approved maintenance can
9 be performed; and

10 “(B) that is certified by a third-party cer-
11 tifier as compliant with—

12 “(i) NSF P231;

13 “(ii) NSF/ANSI Standard 42, 44, 53,
14 55, 58, or 401; or

15 “(iii) another successor or relevant
16 consensus-based standard for drinking
17 water treatment units or systems that ad-
18 dresses health contaminant reduction, as
19 determined by the Secretary.

20 “(4) ELIGIBLE DRINKING WATER QUALITY IM-
21 PROVEMENT PRODUCT.—The term ‘eligible drinking
22 water quality improvement product’ means a point-
23 of-use or point-of-entry system—

24 “(A) incorporating a certified filter compo-
25 nent; and

1 “(B) that is certified by a third-party cer-
2 tifier to meet standards described in paragraph
3 (3)(B)—

4 “(i) for material safety and perform-
5 ance; and

6 “(ii) to improve drinking water qual-
7 ity.

8 “(5) ELIGIBLE END USER.—The term ‘eligible
9 end user’ means a person or entity located in a rural
10 area (as defined in section 343(a)(13)(B)) that is—

11 “(A)(i) a homeowner;

12 “(ii) an individual lessee or renter of a
13 home, apartment, or other dwelling;

14 “(iii) a property owner of a multi-unit resi-
15 dential building with 25 or fewer owned, leased,
16 or rented dwelling units;

17 “(iv) a licensed child-care facility; or

18 “(v) an owned, leased, or rented facility;

19 and

20 “(B) supported by a finding of need
21 through—

22 “(i) a qualified water quality test
23 demonstrating the presence of 1 or more
24 health contaminants; or

1 “(ii) other documentation determined
2 to be satisfactory by the Secretary dem-
3 onstrating the presence of 1 or more
4 health contaminants.

5 “(6) ELIGIBLE GRANT RECIPIENT.—The term
6 ‘eligible grant recipient’ means—

7 “(A) an eligible end user; or

8 “(B) a nonprofit organization that uses a
9 grant provided under this section for the pur-
10 poses described in subsection (c)(2).

11 “(7) HEALTH CONTAMINANT.—The term
12 ‘health contaminant’ means—

13 “(A) a health contaminant found in drink-
14 ing water, including lead, arsenic, nitrate, ni-
15 trite, perfluoroalkyl and polyfluoroalkyl sub-
16 stances, hexavalent chromium (chrome-6), and
17 volatile organic compounds; and

18 “(B) any other contaminant—

19 “(i) that can be reduced by an eligible
20 drinking water quality improvement prod-
21 uct or a certified filter component; and

22 “(ii)(I) with respect to which the Ad-
23 ministrator of the Environmental Protec-
24 tion Agency has established—

1 “(aa) a primary drinking water
2 regulation (as defined in section 1401
3 of the Safe Drinking Water Act (42
4 U.S.C. 300f);

5 “(bb) a maximum contaminant
6 level goal established in accordance
7 with section 1412(b) of that Act (42
8 U.S.C. 300g–1(b)); or

9 “(cc) a health advisory issued
10 pursuant to section 1412(b)(1)(F) of
11 that Act (42 U.S.C. 300g–
12 1(b)(1)(F)); or

13 “(II) that is regulated by a State
14 agency.

15 “(8) IMPROVE DRINKING WATER QUALITY.—
16 The term ‘improve drinking water quality’ means to
17 improve the quality of the water supplied between its
18 source and human consumption by reducing or re-
19 moving 1 or more health contaminants.

20 “(9) QUALIFIED THIRD-PARTY INSTALLER.—
21 The term ‘qualified third-party installer’ means a
22 person who—

23 “(A) is—

24 “(i) a professionally qualified, cer-
25 tified, or licensed water treatment product

1 installation professional, including such a
2 professional credentialed through a manu-
3 facturer or third party;

4 “(ii) a licensed plumber or individual
5 who holds a license or certification related
6 to water treatment technologies issued by a
7 State or local government; or

8 “(iii) a company or plumbing con-
9 tractor employing individuals described in
10 clause (i) or (ii); and

11 “(B) regularly completes, or requires appli-
12 cable employees to complete, continuing edu-
13 cation on water treatment technology and other
14 subjects that enhance the services provided
15 under this section.

16 “(10) QUALIFIED WATER QUALITY TEST.—The
17 term ‘qualified water quality test’ means a baseline
18 analysis of the bacterial and chemical characteristics
19 of concern from a drinking water sample collected at
20 the point of consumption and tested by a laboratory
21 certified to conduct water quality testing—

22 “(A) that is provided to—

23 “(i) the Secretary; and

24 “(ii) as applicable—

1 “(I) a person seeking a grant
2 under this section;

3 “(II) an eligible end user receiv-
4 ing a grant under this section; or

5 “(III) an eligible grant recipient
6 receiving a grant under this section
7 and any eligible end users served by
8 the eligible grant recipient; and

9 “(B) that includes information that pro-
10 vides—

11 “(i) guidance on test interpretation,
12 including whether the bacteria or chemical
13 characteristic of concern meets or exceeds
14 a prescribed health-based contaminant
15 level; and

16 “(ii) sources and citations that eligible
17 grant recipients, independent third-party
18 organizations and institutions, and govern-
19 ment agencies may review and consult—

20 “(I) to determine available eligi-
21 ble drinking water quality improve-
22 ment products for addressing detected
23 contaminants; and

1 “(II) to evaluate efficacy across
2 eligible drinking water quality im-
3 provement products.

4 “(11) THIRD-PARTY CERTIFIER.—The term
5 ‘third-party certifier’ means an independent certifi-
6 cation body accredited to ISO Standard 17065,
7 ‘Conformity assessment — Requirements for bodies
8 certifying products, processes and services’, by an
9 entity domiciled in the United States that is a signa-
10 tory to the International Accreditation Forum Multi-
11 lateral Recognition Arrangement, such as the Water
12 Quality Association, NSF International, the Inter-
13 national Association of Plumbing and Mechanical
14 Officials, and the International Code Council Eval-
15 uation Service.

16 “(b) ESTABLISHMENT OF PROGRAM.—Not later than
17 180 days after the date of enactment of this section, the
18 Secretary shall promulgate regulations to establish, and
19 shall carry out, a clean drinking water program, to be
20 known as the ‘Healthy Drinking Water Affordability As-
21 sistance Program’ or the ‘Healthy H2O Program’, to pro-
22 vide grants to eligible grant recipients to improve drinking
23 water quality of eligible end users.

24 “(c) ELIGIBLE USES OF GRANTS.—

1 “(1) IN GENERAL.—A grant under this section
2 shall be used, as directed by the Secretary, for—

3 “(A) the purchase of an eligible drinking
4 water quality improvement product or a re-
5 placement certified filter component;

6 “(B) the approved installation by a quali-
7 fied third-party installer of an eligible drinking
8 water quality improvement product;

9 “(C) the purchase and approved installa-
10 tion by a qualified third-party installer of a re-
11 placement certified filter component;

12 “(D) the approved maintenance of an eligi-
13 ble drinking water quality improvement prod-
14 uct; or

15 “(E) qualified water quality tests to sup-
16 port products and services described in sub-
17 paragraphs (A) through (D).

18 “(2) NONPROFIT ORGANIZATIONS.—A nonprofit
19 organization that receives a grant under this section
20 shall use the grant, in a manner consistent with the
21 uses described in paragraph (1) and as directed by
22 the Secretary—

23 “(A) to offer qualified water quality tests
24 for eligible end users on a voluntary basis;

1 “(B) to facilitate the analysis of qualified
2 water quality test results for eligible end users;

3 “(C) to assist an eligible end user in deter-
4 mining the response options available and sup-
5 porting the selection by the eligible end user of
6 a response that best fits the needs of the eligi-
7 ble end user, informed by—

8 “(i) a qualified water quality test; and

9 “(ii) an understanding of the relevant
10 plumbing systems and environmental fac-
11 tors that will impact point-of-use or point-
12 of-entry water safety; and

13 “(D) to coordinate or facilitate the ap-
14 proved installation by a qualified third-party in-
15 staller of the eligible drinking water quality im-
16 provement product selected by an eligible end
17 user.

18 “(d) GRANT LIMITATIONS.—

19 “(1) AMOUNT.—The amount of a grant under
20 this section shall not exceed the reasonable costs, as
21 determined by the Secretary, of the purposes de-
22 scribed in subsection (c) for which the grant is pro-
23 vided.

24 “(2) INCOME.—No grant provided under this
25 section shall be used to assist an eligible end user

1 who is a member of a household the members of
2 which have a combined income, or an eligible end
3 user with business income, for the most recent 12-
4 month period for which the information is available,
5 that is more than 80 percent of the median non-
6 metropolitan household income for the State or terri-
7 tory in which the eligible end user resides, according
8 to the most recent decennial census of the United
9 States.

10 “(e) GRANT ADMINISTRATOR.—The Secretary shall
11 appoint an officer or employee of the Department of Agri-
12 culture to administer and manage grants provided under
13 this section.

14 “(f) GRANT ALLOCATION.—In providing grants
15 under this section to eligible grant recipients, the Sec-
16 retary shall allocate funds and make grants available in
17 a manner that—

18 “(1) responds to a range of water quality chal-
19 lenges;

20 “(2) prioritizes funding to eligible end-users the
21 sources of drinking water of which are private wells;

22 “(3) improves local and regional capacity to re-
23 spond to contamination; and

24 “(4) ensures reasonable access to funds for—

1 “(A) eligible end users seeking a grant
2 under this section; and

3 “(B) nonprofit organizations seeking a
4 grant under this section.

5 “(g) REPORTS.—Not later than 1 year after the date
6 of enactment of this section, and not less frequently than
7 annually thereafter, the Secretary shall submit to Con-
8 gress, and make publicly available, a report—

9 “(1) identifying ongoing barriers to universal
10 safe drinking water prior to and after filtration or
11 other treatment;

12 “(2) analyzing conditions impacting eligible
13 grant recipients, including—

14 “(A) sources of contamination or degrada-
15 tion of water resources, especially groundwater
16 resources or upstream resources that recharge
17 stores of drinking water;

18 “(B) trends in bioaccumulation and at-
19 tenuation of contaminants and nutrients; and

20 “(C) impacts of infrastructure materials,
21 crop and land management practices, waste
22 management, and other factors that impact
23 drinking water quantity and quality;

24 “(3) providing a comprehensive analysis of—

1 “(A) technologies available to and pur-
2 chased by eligible grant recipients; and

3 “(B) the emerging safe drinking water
4 needs of rural and other homeowners, renters,
5 residential multi-unit property owners, licensed
6 child-care facilities, and other groups, as deter-
7 mined by the Secretary;

8 “(4) that includes information describing—

9 “(A) the types of treatment systems and
10 filter components used under the program es-
11 tablished under this section;

12 “(B) the number of qualified water quality
13 tests conducted under the program established
14 under this section;

15 “(C) emerging and changing trends relat-
16 ing to steps taken to ensure safe drinking water
17 in communities and households; and

18 “(D) trends relating to the availability and
19 use of eligible drinking water quality improve-
20 ment products, including—

21 “(i) affordability at purchase and
22 through the lifecycle of the products;

23 “(ii) consistency of operation as in-
24 tended by the manufacturer and installer,
25 including effectiveness across systems and

1 technologies at achieving stated health pro-
2 tectations; and

3 “(iii) lifecycle product performance,
4 energy use, and environmental impact;

5 “(5) providing recommendations regarding the
6 best methods to increase access to—

7 “(A) grants under this section; and

8 “(B) the products and services described in
9 subsection (c);

10 “(6) that incorporates input from relevant—

11 “(A) nongovernmental organizations; and

12 “(B) certification institutions that oversee
13 the criteria for products and training of instal-
14 lation and maintenance professionals; and

15 “(7) the purposes of which are—

16 “(A) to improve data on health contami-
17 nants in drinking water;

18 “(B) to provide educational resources on
19 water testing and water quality improvement
20 products and services to eligible grant recipients
21 with drinking water contamination issues;

22 “(C) to collect information that improves
23 understanding of water testing and water qual-
24 ity improvement products and services, includ-

1 ing their associated health and economic bene-
2 fits; and

3 “(D) to increase public awareness of water
4 quality issues and treatment options.

5 “(h) AUTHORIZATION OF APPROPRIATIONS.—There
6 is authorized to be appropriated to the Secretary to carry
7 out this section \$10,000,000 for each of fiscal years 2027
8 through 2031.”.

9 **SEC. 6217. SOLID WASTE MANAGEMENT GRANTS.**

10 Section 310B(b) of the Consolidated Farm and Rural
11 Development Act (7 U.S.C. 1932(b)) is amended—

12 (1) in paragraph (1), by striking “governments
13 and related agencies” and inserting “governments,
14 related agencies, and Indian tribes”; and

15 (2) in paragraph (2), by striking “\$10,000,000
16 for each of fiscal years 2014 through 2023” and in-
17 serting “\$20,000,000 for each of fiscal years 2027
18 through 2031”.

19 **SEC. 6218. RURAL BUSINESS DEVELOPMENT GRANTS.**

20 Section 310B(c) of the Consolidated Farm and Rural
21 Development Act (7 U.S.C. 1932(c)) is amended—

22 (1) in paragraph (3)(A)—

23 (A) in clause (iv), by striking “and” at the
24 end;

1 (B) in clause (v), by striking “or” at the
2 end and inserting “and”; and

3 (C) by adding at the end the following:

4 “(vi) support outdoor recreation; or”;

5 (2) in paragraph (4)(A), by striking “2023”
6 and inserting “2031”;

7 (3) by redesignating paragraph (4) as para-
8 graph (5); and

9 (4) by inserting after paragraph (3) the fol-
10 lowing:

11 “(4) MULTIYEAR GRANTS.—The Secretary may
12 award grants under this subsection for a period of
13 more than 1 year, but not more than 5 years.”.

14 **SEC. 6219. RURAL COOPERATIVE DEVELOPMENT GRANTS.**

15 Section 310B(e) of the Consolidated Farm and Rural
16 Development Act (7 U.S.C. 1932(e)) is amended—

17 (1) in paragraph (1)—

18 (A) by redesignating subparagraphs (A)
19 and (B) as subparagraphs (B) and (C), respec-
20 tively; and

21 (B) by inserting before subparagraph (B)
22 (as so redesignated) the following:

23 “(A) COOPERATIVE DEVELOPMENT.—The
24 term ‘cooperative development’ means activities,
25 including outreach, education, training, and

1 technical assistance, to support the startup, ex-
2 pansion, or ongoing sustainability of new and
3 existing cooperatives.”;

4 (2) in paragraph (5)(F), by striking “contribu-
5 tions,” and inserting “contributions by awarding ap-
6 plications that meet the criterion described in this
7 subparagraph the maximum points for this subpara-
8 graph in the scoring criteria,”;

9 (3) in paragraph (6)(B), by striking “If the
10 Secretary determines it to be in the best interest of
11 the program, the” and inserting “The”;

12 (4) in paragraph (12)—

13 (A) by striking “Not later” and inserting
14 the following:

15 “(A) IN GENERAL.—Not later”; and

16 (B) by adding at the end the following:

17 “(B) REPORT.—Not later than 180 days
18 after the date of enactment of the Agricultural
19 Act of 2026, and annually thereafter, the inter-
20 agency working group established under sub-
21 paragraph (A) shall make publicly available and
22 submit to the Committee on Agriculture, Nutri-
23 tion, and Forestry of the Senate and the Com-
24 mittee on Agriculture of the House of Rep-
25 resentatives a report describing—

1 “(i) research and analysis based on
2 data from the latest available Economic
3 Census conducted by the Bureau of the
4 Census on the effects of all types of co-
5 operatives on the national economy; and

6 “(ii) the activities carried out by the
7 interagency working group in the prior fis-
8 cal year.”; and

9 (5) in paragraph (13), by striking “2023” and
10 inserting “2031”.

11 **SEC. 6220. LOCALLY OR REGIONALLY PRODUCED AGRICUL-**
12 **TURAL PRODUCTS.**

13 Section 310B(g)(9)(B)(iv)(I) of the Consolidated
14 Farm and Rural Development Act (7 U.S.C.
15 1932(g)(9)(B)(iv)(I)) is amended by striking “2023” and
16 inserting “2031”.

17 **SEC. 6221. APPROPRIATE TECHNOLOGY TRANSFER FOR**
18 **RURAL AREAS PROGRAM.**

19 Section 310B(i) of the Consolidated Farm and Rural
20 Development Act (7 U.S.C. 1932(i)) is amended—

21 (1) in paragraph (2)—

22 (A) by redesignating subparagraphs (A)
23 through (D) as clauses (i) through (iv), respec-
24 tively, and indenting appropriately;

1 (B) in the matter preceding clause (i) (as
2 so redesignated), by striking “program to as-
3 sist” and inserting the following: “program—

4 “(A) to assist”;

5 (C) in subparagraph (A)(iv) (as so des-
6 ignated), by striking the period at the end and
7 inserting “; and”; and

8 (D) by adding at the end the following:

9 “(B) to provide training opportunities and
10 resources for veterans (as defined in section
11 101 of title 38, United States Code) who are
12 actively, or are seeking to become, agricultural
13 producers, which shall be known as the ‘Armed
14 to Farm Initiative’.”; and

15 (2) in paragraph (4), by striking “2008
16 through 2023.” and inserting the following: “2027
17 through 2031, of which—

18 “(A) \$3,500,000 shall be made available
19 for each fiscal year for activities described in
20 paragraph (2)(A); and

21 “(B) \$1,500,000 shall be made available
22 for each fiscal year for activities described in
23 paragraph (2)(B).”.

1 **SEC. 6222. RURAL ECONOMIC AREA PARTNERSHIP ZONES.**

2 Section 310B(j) of the Consolidated Farm and Rural
3 Development Act (7 U.S.C. 1932(j)) is amended by strik-
4 ing “2023” and inserting “2031”.

5 **SEC. 6223. INTERMEDIARY RELENDING PROGRAM.**

6 Section 310H(i) of the Consolidated Farm and Rural
7 Development Act (7 U.S.C. 1936b(i)) is amended by strik-
8 ing “2023” and inserting “2031”.

9 **SEC. 6224. LENDER FEES IN GUARANTEED LOAN PRO-**
10 **GRAMS; RURAL WATER REFINANCING IM-**
11 **PROVEMENTS.**

12 (a) IN GENERAL.—Section 333 of the Consolidated
13 Farm and Rural Development Act (7 U.S.C. 1983) is
14 amended—

15 (1) in the matter preceding paragraph (1), by
16 striking “In connection” and inserting the following:
17 “(a) IN GENERAL.—In connection”;

18 (2) in subsection (a) (as so designated)—

19 (A) in paragraph (5), by adding “and” at
20 the end;

21 (B) in paragraph (6)(E), by striking “a
22 new direct loan; and” and inserting “a new di-
23 rect loan, except direct loans made under this
24 title to communities with a population of 3,300
25 or fewer shall be exempt from any additional
26 refinancing review, credit elsewhere determina-

1 tion, or private lender comparison require-
2 ments.”; and

3 (C) by striking paragraph (7); and
4 (3) by adding at the end the following:

5 “(b) FEES.—

6 “(1) INITIAL GUARANTEE FEE.—The Secretary
7 may assess an initial guarantee fee for any insured
8 or guaranteed loan issued or modified under section
9 306(a) in an amount that does not exceed 3 percent
10 of the guaranteed principal portion of the loan.

11 “(2) PERIODIC RETENTION FEE.—The Sec-
12 retary may assess a periodic retention fee for any in-
13 sured or guaranteed loan or modified under section
14 306(a) in an amount that does not exceed 0.75 per-
15 cent of the outstanding principal of the guaranteed
16 loan.

17 “(3) DISCLOSURE.—In altering any fee charged
18 for any insured or guaranteed loan issued or modi-
19 fied under section 306(a), the Secretary, not less
20 than 30 days in advance of any fee change, shall
21 provide a public disclosure of the financial data, eco-
22 nomic and behavioral assumptions, calculations, and
23 other factors used to determine the new fee rates.”.

24 (b) CONFORMING AMENDMENT.—Section 310B(g) of
25 the Consolidated Farm and Rural Development Act (7

1 U.S.C. 1932(g)) is amended by striking paragraph (5) and
2 inserting the following:

3 “(5) FEES.—

4 “(A) INITIAL GUARANTEE FEE.—The Sec-
5 retary may assess an initial guarantee fee for
6 any guaranteed business and industry loan in
7 an amount that does not exceed 3 percent of
8 the guaranteed principal portion of the loan.

9 “(B) PERIODIC RETENTION FEE.—The
10 Secretary may assess a periodic retention fee
11 for any guaranteed business and industry loan
12 in an amount that does not exceed 0.75 percent
13 of the outstanding principal of the guaranteed
14 loan.

15 “(C) DISCLOSURE.—In altering any fee
16 charged for any guaranteed business and indus-
17 try loan, the Secretary, not less than 30 days
18 in advance of any fee change, shall provide a
19 public disclosure of the financial data, economic
20 and behavioral assumptions, calculations, and
21 other factors used to determine the new fee
22 rates.”.

23 **SEC. 6225. DEFINITION OF RURAL AND RURAL AREA.**

24 Section 343(a)(13)(B) of the Consolidated Farm and
25 Rural Development Act (7 U.S.C. 1991(a)(13)(B)) is

1 amended by striking “For the purpose of water and waste
2 disposal grants and direct loans provided under para-
3 graphs (1) and (2) of section 306(a),” and inserting the
4 following:

5 “(i) DIRECT LOANS.—For the purpose
6 of water and waste disposal direct loans
7 provided under section 306(a)(1), the
8 terms ‘rural’ and ‘rural area’ mean a city,
9 town, or unincorporated area that has a
10 population of no more than 25,000 inhab-
11 itants.

12 “(ii) GRANTS.—For the purpose of
13 water and waste disposal grants provided
14 under section 306(a)(2),”.

15 **SEC. 6226. STREAMLINING REVIEW.**

16 Section 363 of the Consolidated Farm and Rural De-
17 velopment Act (7 U.S.C. 2006e) is amended to read as
18 follows:

19 **“SEC. 363. PROHIBITION ON USE OF LOAN OR GRANT FOR**
20 **CERTAIN PURPOSES.**

21 “(a) IN GENERAL.—The Secretary shall not approve
22 any loan or grant under this title to drain, dredge, fill,
23 or level, or otherwise manipulate a wetland (as defined in
24 section 1201(a) of the Food Security Act of 1985 (16
25 U.S.C. 3801(a))), or to engage in any activity that results

1 in impairing or reducing the flow, circulation, or reach of
2 water, except in the case of activity related to the mainte-
3 nance of previously converted wetlands, or in the case of
4 such activity that commenced before November 28, 1990.

5 “(b) EXCLUSIONS.—

6 “(1) UTILITIES LINES.—This section shall not
7 apply to a loan made or guaranteed under this title
8 for a utility line.

9 “(2) PERMITTED ACTIVITIES AND PROJECTS.—

10 This section shall not apply to a rural development
11 loan made or guaranteed under section 306 or 306C
12 for an activity or project for which the applicant or
13 borrower has obtained or is required to obtain a per-
14 mit, or is already covered by a general permit, from
15 the Secretary of the Army, acting through the Chief
16 of Engineers, under section 10 of the Act of March
17 3, 1899 (33 U.S.C. 403; 30 Stat. 1151, chapter
18 425), or section 404 of the Federal Water Pollution
19 Control Act (33 U.S.C. 1344).”.

20 **SEC. 6227. RURAL BUSINESS-COOPERATIVE SERVICE PRO-**
21 **GRAMS TECHNICAL ASSISTANCE AND TRAIN-**
22 **ING.**

23 Section 368(d)(1) of the Consolidated Farm and
24 Rural Development Act (7 U.S.C. 2008c(d)(1)) is amend-
25 ed by striking “2023” and inserting “2031”.

1 **SEC. 6228. NATIONAL RURAL DEVELOPMENT PARTNER-**
2 **SHIP.**

3 Section 378 of the Consolidated Farm and Rural De-
4 velopment Act (7 U.S.C. 2008m) is amended—

5 (1) in subsection (g)(1), by striking “2023”
6 and inserting “2031”; and

7 (2) in subsection (h), by striking “2023” and
8 inserting “2031”.

9 **SEC. 6229. GRANTS FOR NOAA WEATHER RADIO TRANSMIT-**
10 **TERS.**

11 Section 379B(d) of the Consolidated Farm and Rural
12 Development Act (7 U.S.C. 2008p(d)) is amended by
13 striking “2023” and inserting “2031”.

14 **SEC. 6230. RURAL MICROENTREPRENEUR ASSISTANCE**
15 **PROGRAM.**

16 Section 379E of the Consolidated Farm and Rural
17 Development Act (7 U.S.C. 2008s) is amended—

18 (1) in subsection (a)(4), by striking “\$50,000”
19 and inserting “\$75,000”;

20 (2) in subsection (b)(3), by adding at the end
21 the following:

22 “(E) USE OF LOANS.—A loan made by the
23 Secretary to a microenterprise development or-
24 ganization under this paragraph may—

25 “(i) be used for 100 percent of a loan
26 to a rural microenterprise; and

1 “(ii) provide up to 50 percent of the
2 cost of demolition and construction and re-
3 lated costs of real estate, excluding the ac-
4 quisition of real estate.”; and
5 (3) in subsection (d), by striking “2023” and
6 inserting “2031”.

7 **SEC. 6231. HEALTH CARE SERVICES.**

8 Section 379G(e) of the Consolidated Farm and Rural
9 Development Act (7 U.S.C. 2008u(e)) is amended by
10 striking “2023” and inserting “2031”.

11 **SEC. 6232. STRATEGIC COMMUNITY INVESTMENT PLANS.**

12 Section 379H(d) of the Consolidated Farm and Rural
13 Development Act (7 U.S.C. 2008v(d)) is amended—

14 (1) in paragraph (1)—

15 (A) by striking “The Secretary” and in-
16 serting the following:

17 “(A) ASSISTANCE.—The Secretary”; and

18 (B) by adding at the end the following:

19 “(B) THIRD-PARTY PROVIDERS.—

20 “(i) IN GENERAL.—The Secretary
21 may award grants on a competitive basis
22 to eligible entities described in clause (ii)
23 to provide technical assistance to rural
24 communities in—

1 “(I) developing strategic commu-
2 nity investment plans; and

3 “(II) completing applications for
4 funding under covered programs for
5 projects that support the implementa-
6 tion of strategic community invest-
7 ment plans.

8 “(ii) ELIGIBLE ENTITIES.—An entity
9 eligible to receive a grant under clause (i)
10 shall be—

11 “(I) a qualified nonprofit multi-
12 State regional technical assistance or-
13 ganization with demonstrated experi-
14 ence in working with rural commu-
15 nities on regionalization and invest-
16 ment assessment, planning, and im-
17 plementation projects; or

18 “(II) a qualified private nonprofit
19 intermediary organization that has
20 demonstrated experience and capacity
21 to provide technical assistance and
22 training on community economic de-
23 velopment and planning in rural
24 areas.

1 “(iii) GRANT TERM.—The term of a
2 grant awarded under clause (i) shall be not
3 less than 2 years and not more than 5
4 years.

5 “(iv) PRIORITIES.—In awarding
6 grants under clause (i), the Secretary may
7 give priority to an eligible entity that
8 serves—

9 “(I) a rural community with a
10 high poverty level;

11 “(II) a persistent poverty county,
12 as determined by the Secretary;

13 “(III) an Indian Tribe with dem-
14 onstrated support from the Tribal
15 council or duly elected Tribal execu-
16 tive of the appropriate Tribal govern-
17 ment;

18 “(IV) a rural community with a
19 significant loss in population; or

20 “(V) a rural community with sig-
21 nificant workforce changes or changes
22 in major employers.”;

23 (2) in paragraph (2)(B), by inserting “, agricul-
24 tural producers and related entities, and local busi-
25 nesses” before the semicolon; and

1 (3) in paragraph (4), by striking “2023,” and
2 inserting “2023 and \$10,000,000 for each of fiscal
3 years 2027 through 2031,”.

4 **SEC. 6233. RURAL INNOVATION STRONGER ECONOMY**
5 **GRANT PROGRAM.**

6 Section 379I of the Consolidated Farm and Rural
7 Development Act (7 U.S.C. 2008w) is amended—

8 (1) in subsection (a)—

9 (A) in paragraph (1)(A)—

10 (i) in clause (iii)—

11 (I) by striking subclause (I) and
12 inserting the following:

13 “(I) an institution of higher edu-
14 cation (as defined in section 101, and
15 subparagraphs (A) and (B) of section
16 102(a)(1), of the Higher Education
17 Act of 1965 (20 U.S.C. 1001,
18 1002(a)(1)));”;

19 (II) by redesignating subclauses
20 (II) and (III) as subclauses (III) and
21 (IV), respectively;

22 (III) by inserting after subclause
23 (I) the following:

24 “(II) an area career and tech-
25 nical education school (as defined in

1 section 3 of the Carl D. Perkins Ca-
2 reer and Technical Education Act of
3 2006 (20 U.S.C. 2302));” and

4 (IV) in subclause (IV) (as so re-
5 designated), by striking “and”;

6 (ii) in clause (iv)—

7 (I) by striking subclause (IV)
8 and inserting the following:

9 “(IV) an institution of higher
10 education (as defined in section 101,
11 and subparagraphs (A) and (B) of
12 section 102(a)(1), of the Higher Edu-
13 cation Act of 1965 (20 U.S.C. 1001,
14 1002(a)(1)));”;

15 (II) by redesignating subclause
16 (V) as subclause (VI); and

17 (III) by inserting after subclause
18 (IV) the following:

19 “(V) an area career and technical
20 education school (as defined in section
21 3 of the Carl D. Perkins Career and
22 Technical Education Act of 2006 (20
23 U.S.C. 2302)); or” and

24 (iii) by adding at the end the fol-
25 lowing:

1 “(v) in the case of a career pathway
2 program, includes 1 or more members of
3 the local workforce development board es-
4 tablished under section 107 of the Work-
5 force Innovation and Opportunity Act (29
6 U.S.C. 3122) and serving the region to en-
7 sure the program is integrated with the ac-
8 tivities carried out by the local workforce
9 development board; and”;

10 (B) by redesignating paragraphs (1), (2),
11 (3), (4), and (5) as paragraphs (2), (4), (3),
12 (6), and (7), respectively, and moving the para-
13 graphs so as to appear in numerical order;

14 (C) by inserting before paragraph (2) (as
15 so redesignated) the following:

16 “(1) CAREER PATHWAY.—The term ‘career
17 pathway’ has the meaning given the term in section
18 3 of the Workforce Innovation and Opportunity Act
19 (29 U.S.C. 3102).”; and

20 (D) by inserting after paragraph (4) (as so
21 redesignated) the following:

22 “(5) INDUSTRY OR SECTOR PARTNERSHIP.—
23 The term ‘industry or sector partnership’ has the
24 meaning given the term in section 3 of the Work-

1 force Innovation and Opportunity Act (29 U.S.C.
2 3102).”;

3 (2) in subsection (b)—

4 (A) in paragraph (1)—

5 (i) in the matter preceding subpara-
6 graph (A), by inserting “or carry out ca-
7 reer pathway training programs or indus-
8 try or sector partnerships aligned with in-
9 dustry sectors in rural communities” be-
10 fore “, including”;

11 (ii) in subparagraph (A), by striking
12 “and” after the semicolon;

13 (iii) in subparagraph (B), by striking
14 the period and inserting a semicolon; and

15 (iv) by adding at the end the fol-
16 lowing:

17 “(C) address workforce challenges, includ-
18 ing worker displacement, faced by specific in-
19 dustry sectors in rural communities; and

20 “(D) promote targeted skills development
21 and training initiatives to stimulate innovation
22 and enhance economic development in rural re-
23 gions.”;

24 (B) in paragraph (3)—

25 (i) in subparagraph (A)—

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1 (I) in clause (i), by inserting “,
2 career pathway programs, or industry
3 or sector partnerships” before the
4 semicolon; and

5 (II) in clause (ii)—

6 (aa) by inserting “, career
7 pathway programs, or industry or
8 sector partnerships” before “to
9 provide”; and

10 (bb) by inserting “leadership
11 development,” before “cus-
12 tomized training”;

13 (ii) in subparagraph (E), by striking
14 “and” after the semicolon;

15 (iii) in subparagraph (F), by striking
16 the period and inserting “; and”; and

17 (iv) by adding at the end the fol-
18 lowing:

19 “(G) the ability of the eligible entity to
20 carry out activities to address the issues of
21 worker displacement, an aging workforce, and
22 youth migration.”; and

23 (C) by striking paragraph (5) and insert-
24 ing the following:

1 “(5) GEOGRAPHIC DISTRIBUTION.—The Sec-
2 retary shall ensure regional diversity of recipients of
3 grants or participants in providing grants under
4 paragraph (1) for jobs accelerators, career pathway
5 programs, and related programming.”;

6 (3) in subsection (d)(1)—

7 (A) in subparagraph (B)(xi), by striking
8 the period and inserting “; and”; and

9 (B) by adding at the end the following:

10 “(C) to support career pathway programs
11 or industry or sector partnerships to be carried
12 out within industries in rural communities, in-
13 cluding—

14 “(i) telecommunications or broadband
15 services;

16 “(ii) water, waste water, or disposal
17 services;

18 “(iii) electric supply services;

19 “(iv) forestry and logging operations;

20 “(v) conservation practices and man-
21 agement;

22 “(vi) health care and child care;

23 “(vii) manufacturing;

24 “(viii) agribusiness related to produc-
25 tion, processing, and distribution;

1 “(ix) veterinarian services; and

2 “(x) any other sectors identified by
3 the local workforce development board
4 serving the region to be an in-demand in-
5 dustry sector or occupation (as defined in
6 section 3 of the Workforce Innovation and
7 Opportunity Act (29 U.S.C. 3102)).”;

8 (4) in subsection (e)—

9 (A) in paragraph (1), by striking “and”;

10 (B) in paragraph (2)(B)—

11 (i) in clause (xvii), by striking “or”;

12 (ii) by redesignating clause (xviii) as
13 clause (xix); and

14 (iii) by inserting after clause (xvii) the
15 following:

16 “(xviii) the number of individuals who
17 have completed skills development, recog-
18 nized postsecondary credentials, or gained
19 specialized education through career path-
20 ways programs or industry or sector part-
21 nerships; or”; and

22 (iv) in clause (xix) (as so redesign-
23 nated), by striking the period and inserting
24 “; and”; and

25 (C) by adding at the end the following:

1 “(3) in the case of a career pathway program
2 or industry or sector partnership, report to the Sec-
3 retary the employment and earnings outcomes for
4 individuals who participate in the program on the in-
5 dicators described in subclauses (I) through (III) of
6 section 116(b)(2)(A)(i) of the Workforce Innovation
7 and Opportunity Act (29 U.S.C. 3141(b)(2)(A)(i)).”;
8 and

9 (5) in subsection (f), by striking “2019 through
10 2023” and inserting “2027 through 2031”.

11 **SEC. 6234. RURAL DEVELOPMENT INNOVATION CENTER.**

12 Subtitle D of the Consolidated Farm and Rural De-
13 velopment Act (7 U.S.C. 1981 et seq.) is amended by add-
14 ing at the end the following:

15 **“SEC. 379J. RURAL DEVELOPMENT INNOVATION CENTER.**

16 “(a) ESTABLISHMENT.—There is established within
17 the rural development mission area a Rural Development
18 Innovation Center (referred to in this section as the ‘Inno-
19 vation Center’) to promote and facilitate innovation in the
20 administration and implementation of rural development
21 programs and initiatives.

22 “(b) FUNCTIONS.—The Innovation Center shall—

23 “(1) review all processes for rural development
24 mission area programs to identify inefficiencies,
25 redundancies, and barriers to access, including—

1 “(A) overly burdensome application proc-
2 esses that prohibit participation in rural devel-
3 opment programs;

4 “(B) high application costs; and

5 “(C) deficiencies in technical assistance for
6 programs;

7 “(2) establish and maintain an ongoing public
8 process for public and private stakeholders to pro-
9 vide perspectives on the challenges faced when ap-
10 plying for, utilizing, or participating in rural devel-
11 opment mission area programs;

12 “(3) identify and assess any innovative strate-
13 gies and collaborative models to enhance the effi-
14 ciency and effectiveness of rural development pro-
15 grams and initiatives;

16 “(4) foster and maintain partnerships with pub-
17 lic and private stakeholders to leverage expertise and
18 resources for the rural development mission area;

19 “(5) promote cross-agency collaborations and
20 identify best practices in rural economic develop-
21 ment;

22 “(6) identify and implement technological solu-
23 tions and software applications to improve the effec-
24 tiveness and efficiency of rural development mission

1 area programs, including enhancing data manage-
2 ment systems;

3 “(7) conduct research, analysis, and evaluation
4 to modernize, simplify, and improve rural develop-
5 ment mission area programs, and ensure that the
6 programs are accessible, transparent, and user-
7 friendly; and

8 “(8) disseminate information, guidance, and
9 training materials to rural development mission area
10 personnel and stakeholders on innovative rural devel-
11 opment practices and opportunities.

12 “(c) AUTHORIZATION OF APPROPRIATIONS.—There
13 is authorized to be appropriated to carry out this section
14 \$5,000,000 for fiscal year 2027 and each fiscal year there-
15 after.”.

16 **SEC. 6235. RURAL BUSINESS INVESTMENT PROGRAM.**

17 Section 384S of the Consolidated Farm and Rural
18 Development Act (7 U.S.C. 2009cc–18) is amended by
19 striking “2023” and inserting “2031”.

20 **Subtitle C—Miscellaneous**

21 **PART I—RURAL CARE ECONOMY**

22 **SEC. 6301. IMPROVING THE RURAL CARE ECONOMY;**
23 **PRIORITIZATIONS.**

24 (a) INVESTING IN THE RURAL CARE ECONOMY.—

25 (1) IMPROVING RURAL HEALTHCARE ACCESS.—

1 (A) PRIORITIZATIONS.—The Secretary
2 shall make the following prioritizations for fis-
3 cal years 2027 through 2031:

4 (i) DISTANCE LEARNING AND TELE-
5 MEDICINE.—In addition to the priorities
6 under section 2333(d) of the Food, Agri-
7 culture, Conservation, and Trade Act of
8 1990 (7 U.S.C. 950aaa–2(d)), in selecting
9 recipients of financial assistance under
10 chapter 1 of subtitle D of title XXIII of
11 that Act (7 U.S.C. 950aaa et seq.), the
12 Secretary shall give priority to telemedicine
13 projects that—

14 (I) provide substance use dis-
15 order prevention services, treatment
16 services, recovery services, or any
17 combination of those services; or

18 (II) provide mental or behavioral
19 health services.

20 (ii) COMMUNITY FACILITIES DIRECT
21 LOANS AND GRANTS.—

22 (I) IN GENERAL.—In selecting
23 recipients of direct loans or grants for
24 the development of essential commu-
25 nity facilities under section 306(a) of

1 the Consolidated Farm and Rural De-
2 velopment Act (7 U.S.C. 1926(a)), the
3 Secretary shall give priority to entities
4 eligible for those direct loans or
5 grants to develop—

6 (aa) healthcare facilities; or

7 (bb) mental or behavioral
8 health facilities, including cer-
9 tified community behavioral
10 health clinics described in section
11 223 of the Protecting Access to
12 Medicare Act of 2014 (42 U.S.C.
13 1396a note; Public Law 113–93).

14 (II) USE OF FUNDS.—In addition
15 to the eligible uses of direct loans or
16 grants for the development of essen-
17 tial community facilities under section
18 306(a) of the Consolidated Farm and
19 Rural Development Act (7 U.S.C.
20 1926(a)), an entity described in sub-
21 clause (I) that receives a direct loan
22 or grant for a purpose described in
23 that subclause may use the direct loan
24 or grant funds for—

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1 (aa) providing medical
2 equipment to increase medical
3 surge capacity;

4 (bb) increasing telehealth
5 capabilities, including underlying
6 health care information systems;
7 and

8 (cc) engaging in any other
9 efforts to support rural develop-
10 ment determined to be critical to
11 address the health care or mental
12 or behavioral health needs of
13 rural areas, as determined by the
14 Secretary.

15 (B) LIMITATION ON OTHER
16 REPRIORITIZATIONS.—For fiscal years 2027
17 through 2031, the Secretary shall not make any
18 reprioritizations within the Community Facili-
19 ties direct loan and grant programs or the Dis-
20 tance Learning and Telemedicine programs
21 under section 608 of the Rural Development
22 Act of 1972 (7 U.S.C. 2204b–2).

23 (2) IMPROVING CHILDCARE IN RURAL AMER-
24 ICA.—

1 (A) DEFINITION OF CHILDCARE PRO-
2 GRAM.—

3 (i) IN GENERAL.—In this paragraph,
4 the term “childcare program” means a
5 program that—

6 (I) provides quality care and
7 early education for young children
8 who—

9 (aa) are in kindergarten; or

10 (bb) have not yet entered
11 kindergarten; and

12 (II) is operated by—

13 (aa) an eligible childcare
14 provider described in section
15 658P(6)(A) of the Child Care
16 and Development Block Grant
17 Act of 1990 (42 U.S.C.
18 9858n(6)(A)); or

19 (bb) a childcare provider
20 that, on the date of enactment of
21 this Act—

22 (AA) is licensed, regu-
23 lated, or registered in the
24 State, territory, or Indian

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1 Tribe in which the provider
2 is located; and
3 (BB) meets applicable
4 State, Tribal, territorial, and
5 local health and safety re-
6 quirements.

7 (ii) INCLUSIONS.—In this paragraph,
8 the term “childcare program” includes—

9 (I) a school-based program de-
10 scribed in clause (i);

11 (II) a program described in
12 clause (i) that accommodates non-
13 traditional working hours;

14 (III) a facility used for a pro-
15 gram described in clause (i); and

16 (IV) a service provided under a
17 program described in clause (i).

18 (B) PRIORITIZATIONS.—The Secretary
19 shall make the following prioritizations for fis-
20 cal years 2027 through 2031:

21 (i) COMMUNITY FACILITIES DIRECT
22 LOANS AND GRANTS.—

23 (I) IN GENERAL.—In addition
24 the priorities described in paragraph
25 (1)(A)(ii), in selecting recipients of di-

1 rect loans or grants for the develop-
2 ment of essential community facilities
3 under section 306(a) of the Consoli-
4 dated Farm and Rural Development
5 Act (7 U.S.C. 1926(a)), the Secretary
6 shall give priority to entities eligible
7 for those direct loans or grants to de-
8 velop facilities used for a childcare
9 program, subject to the condition that
10 the childcare program that uses those
11 facilities shall employ staff that have
12 appropriate expertise and training in
13 childcare.

(II) USE OF FUNDS.—In addition to the eligible uses of direct loans or grants for the development of essential community facilities under section 306(a) of the Consolidated Farm and Rural Development Act (7 U.S.C. 1926(a)), an entity described in subclause (I) that receives a direct loan or grant for the purpose described in that subclause may use the direct loan or grant funds to support the staffing needs of the facility described in that

1 subclause, subject to the condition
2 that the eligible entity shall not use
3 more than 25 percent of the direct
4 loan or grant funds for staffing pur-
5 poses.

6 (ii) RURAL BUSINESS PROGRAMS.—In
7 selecting recipients of financial assistance
8 under the rural business development
9 grant program under section 310B(c) of
10 the Consolidated Farm and Rural Develop-
11 ment Act (7 U.S.C. 1932(c)), the rural co-
12 operative development grant program
13 under section 310B(e) of that Act (7
14 U.S.C. 1932(e)), and the rural microentre-
15 preneur assistance program under section
16 379E of that Act (7 U.S.C. 2008s), the
17 Secretary may give priority to entities eli-
18 gible for financial assistance under those
19 sections—

20 (I) to provide technical or finan-
21 cial assistance for the acquisition, con-
22 struction, renovation, or improvement
23 of facilities used for a childcare pro-
24 gram;

1 (II) to provide technical, finan-
2 cial, or managerial assistance to
3 childcare programs;

4 (III) to assist in securing private
5 sources of capital financing for
6 childcare programs or other low-in-
7 come community development; or

8 (IV) to address the needs of li-
9 censed childcare programs located in
10 the home of the childcare program
11 provider.

12 (C) EVALUATION.—Not later than 2 years
13 after the date of enactment of this Act, the Sec-
14 retary shall conduct a comprehensive quan-
15 titative and qualitative evaluation of the
16 projects carried out under this paragraph to im-
17 prove access to childcare programs in rural
18 areas, including a description of—

19 (i) the types of projects carried out
20 under this paragraph;

21 (ii) the communities in which those
22 projects are carried out;

23 (iii) the organizations and entities
24 participating in those projects;

1 (iv) the types of partnerships devel-
2 oped to carry out those projects; and

3 (v) the economic and social impacts of
4 investments in rural childcare programs.

5 (b) ACCESS TO CREDIT FOR CARE INDUSTRIES.—Of
6 the amount made available for business and industry guar-
7 anteed loans under section 310B(g) of the Consolidated
8 Farm and Rural Development Act (7 U.S.C. 1932(g)) for
9 each of fiscal years 2027 through 2031, the Secretary
10 shall make available not less than 10 percent for sup-
11 porting childcare programs (as defined in subsection
12 (a)(2)(A)) and healthcare.

13 (c) SUNSET.—Effective beginning on the date of en-
14 actment of this Act, paragraphs (1) and (2) of section
15 6101(a) of the Agriculture Improvement Act of 2018
16 (Public Law 115–334; 132 Stat. 4726) shall have no force
17 or effect.

18 **SEC. 6302. RURAL HOSPITAL REVITALIZATION.**

19 Subtitle A of the Consolidated Farm and Rural De-
20 velopment Act is amended by inserting after section 310
21 (7 U.S.C. 1930) the following:

22 **“SEC. 310A. RURAL HOSPITAL REVITALIZATION LOANS.**

23 “(a) IN GENERAL.—Under the community facilities
24 direct loan program established under section 306(a)(1)
25 (referred to in this section as the ‘community facilities di-

1 rect loan program'), the Secretary shall make temporary
2 zero-percent interest loans to eligible rural hospitals de-
3 scribed in subsection (b) for the construction of replace-
4 ment hospital facilities or the improvement or renovation
5 of existing hospital facilities in accordance with this sec-
6 tion.

7 “(b) ELIGIBLE HOSPITALS.—

8 “(1) IN GENERAL.—An eligible rural hospital
9 described in this subsection is a rural hospital—

10 “(A) the campus (as defined in section
11 413.65(a)(2) of title 42, Code of Federal Regu-
12 lations (or successor regulations)) of which is in
13 a county with a population of less than 20,000
14 inhabitants;

15 “(B)(i) the campus (as so defined) of
16 which is not less than 35 miles from the nearest
17 hospital;

18 “(ii) if the campus (as so defined) of which
19 is in an area with mountainous terrain or only
20 secondary roads, as determined by the Sec-
21 retary, such campus is not less than 15 miles
22 from the nearest hospital;

23 “(iii) that is a critical access hospital (as
24 defined in section 1861(mm)(1) of the Social
25 Security Act (42 U.S.C. 1395x(mm)(1))); or

1 “(iv) that is a rural emergency hospital (as
2 defined in section 1861(kkk)(2) of that Act (42
3 U.S.C. 1395x(kkk)(2)));

4 “(C) that has been continuously licensed as
5 a hospital in the community in which the hos-
6 pital is located for not less than 30 years;

7 “(D) that submits to the Secretary an ap-
8 plication at such time, in such manner, and
9 containing such information to determine eligi-
10 bility under this paragraph and priorities under
11 paragraph (2) and such other information as
12 the Secretary may require, including—

13 “(i) a statement demonstrating the
14 need for the loan, which shall describe—

15 “(I) the age and condition of ex-
16 isting facilities to be replaced, im-
17 proved, or renovated, including a cer-
18 tification that funds from a loan
19 under this section will not be used for
20 facilities that have been significantly
21 improved during the 10-year period
22 preceding the date of the application;
23 and

24 “(II) the manner in which the
25 use of the loan funds will address

1 issues relating to the quality and via-
2 bility of the facilities to preserve ac-
3 cess to healthcare;

4 “(ii) a demonstration that the hospital
5 has had a positive impact in the commu-
6 nity served by the hospital, which shall in-
7 clude—

8 “(I) a positive impact on access
9 to primary healthcare, emergency
10 services, and services required under
11 conditions of participation applicable
12 under title XVIII of the Social Secu-
13 rity Act (42 U.S.C. 1395 et seq.); and

14 “(II) a meaningful economic im-
15 pact; and

16 “(iii) a statement of the anticipated
17 health and economic impacts of the loan,
18 including—

19 “(I) an impact on sustaining the
20 provision of services that the hospital
21 currently provides;

22 “(II) an impact on offering
23 healthcare services that the hospital
24 does not currently offer, as appro-
25 priate;

1 “(III) an impact on the provision
2 of community-based services, includ-
3 ing such services that influence social
4 determinants of health;

5 “(IV) any other economic im-
6 pacts; and

7 “(V) impacts compared to the
8 impacts if the loan funds were not
9 made available; and

10 “(E) that, subject to paragraph (3), is fi-
11 nancially stable, as measured by having—

12 “(i) not less than 30 days cash on
13 hand; and

14 “(ii) a projected debt-service coverage
15 ratio of at least 1.2.

16 “(2) PRIORITIES.—In making loans under this
17 section, the Secretary shall give priority to an eligi-
18 ble rural hospital—

19 “(A) that serves an area in which there are
20 fewer than 6 inhabitants per square mile, tak-
21 ing into consideration—

22 “(i) the distance from the hospital to
23 a population center;

1 “(ii) the travel time from the hospital
2 to reach a population center or specific
3 health service; and

4 “(iii) seasonal variations in the need
5 for access to healthcare services;

6 “(B) that requires replacement, improve-
7 ment, or renovation that is not financially fea-
8 sible at the rates and terms offered under the
9 community facilities direct loan program;

10 “(C) for which not less than 50 percent of
11 its inpatient days or discharges and outpatient
12 visits during the most recent cost reporting pe-
13 riod for which data are available were attrib-
14 utable to—

15 “(i) individuals entitled to, or enrolled
16 for, benefits under part A or enrolled for
17 benefits under part B of title XVIII of the
18 Social Security Act, including individuals
19 enrolled in a Medicare Advantage plan
20 under part C of such title;

21 “(ii) individuals eligible for medical
22 assistance under a State plan under title
23 XIX of the Social Security Act (or a waiv-
24 er of such a plan); or

25 “(iii) self-pay individuals; or

1 “(D) that meets 2 or more of the criteria
2 described in subparagraphs (A) through (C).

3 “(3) WAIVER.—The Secretary may waive the
4 requirements described in paragraph (1)(E) in the
5 case of a hospital that demonstrates sufficient com-
6 munity impacts described in paragraph (1)(D)(ii).

7 “(4) ELIGIBILITY.—For purposes of making
8 loans under this section, the Secretary shall consider
9 an eligible rural hospital described in paragraph (1)
10 to be eligible for the community facilities direct loan
11 program.

12 “(c) LOAN INTEREST AND TERMS.—

13 “(1) INITIAL INTEREST-FREE LOAN.—Except
14 as otherwise provided in this subsection, a loan
15 made under this section shall, for the first 5 years
16 of the loan—

17 “(A) have a zero percent interest rate; and

18 “(B) require repayment of principal for a
19 period of 5 years, amortized—

20 “(i) in accordance with the expected
21 amortization schedule of a loan under the
22 community facilities direct loan program;
23 and

24 “(ii) over a period that is equal to the
25 lesser of—

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1 “(I) the expected life of the facil-
2 ity being constructed or renovated;
3 and

4 “(II) a maximum term of 40
5 years.

6 “(2) ASSESSMENT.—At the end of the 5-year
7 period of a loan described in paragraph (1), the Sec-
8 retary shall conduct an assessment of the financial
9 stability of the eligible rural hospital to determine
10 whether the hospital has the financial strength for
11 the loan to be refinanced at the prevailing rates of-
12 fered under the community facilities direct loan pro-
13 gram.

14 “(3) REFINANCING.—If the Secretary deter-
15 mines through an assessment under paragraph (2)
16 that an eligible rural hospital has sufficient financial
17 strength to repay a loan under the community facili-
18 ties direct loan program, subject to subsection
19 (d)(2), the Secretary shall refinance the loan under
20 this section into a loan under the community facili-
21 ties direct loan program—

22 “(A) at the prevailing interest rate applica-
23 ble to a loan under the community facilities di-
24 rect loan program;

1 “(B) without a requirement of the pay-
2 ment of any interest on the amount of principal
3 repaid during the period in which the interest
4 rate of the loan was zero percent;

5 “(C) based on the unpaid principal bal-
6 ance; and

7 “(D) amortized in accordance with the
8 community facilities direct loan program for the
9 remaining term of the loan.

10 “(d) RENEWALS.—

11 “(1) FAILURE UNDER ASSESSMENT.—

12 “(A) IN GENERAL.—If the Secretary deter-
13 mines through an assessment under subsection
14 (c)(2) that an eligible rural hospital does not
15 have sufficient financial strength to repay a
16 loan under the community facilities direct loan
17 program, the hospital may submit to the Sec-
18 retary an application for a 1-time renewal of
19 the zero-percent interest loan in accordance
20 with the terms described in subsection (c)(1)
21 for 1 additional term of not more than 5 years.

22 “(B) REQUIREMENTS.—To be eligible for
23 the renewal of a zero-percent interest loan
24 under subparagraph (A), an eligible rural hos-
25 pital shall demonstrate in the application sub-

1 mitted under that subparagraph that the hos-
2 pital—

3 “(i) has first applied for and accepted
4 any available Federal technical assistance
5 for rural hospitals to support operational
6 improvements and improve financial sta-
7 bility; and

8 “(ii) continues to meet all applicable
9 community facilities direct loan program
10 eligibility criteria.

11 “(C) REFINANCING.—At the end of the pe-
12 riod for which a zero-percent interest loan is re-
13 newed under subparagraph (A), the Secretary
14 shall refinance the loan into a loan under the
15 community facilities direct loan program in ac-
16 cordance with subsection (c)(3).

17 “(2) INTEREST RATE PROTECTION.—

18 “(A) IN GENERAL.—If the Secretary deter-
19 mines through an assessment under subsection
20 (c)(2) that an eligible rural hospital has suffi-
21 cient financial strength to repay a loan under
22 the community facilities direct loan program,
23 and the interest rate applicable to a loan under
24 the community facilities direct loan program is
25 more than 2.5 percent, the hospital may submit

1 to the Secretary an application for a 1-time re-
2 newal of the zero-percent interest loan in ac-
3 cordance with the terms described in subsection
4 (c)(1) for 1 additional term of 5 years.

5 “(B) REQUIREMENTS.—To be eligible for
6 the renewal of a zero-percent interest loan
7 under subparagraph (A), an eligible rural hos-
8 pital shall demonstrate in the application sub-
9 mitted under that subparagraph that the hos-
10 pital—

11 “(i) has had a positive impact on ac-
12 cess to primary healthcare, emergency
13 services, and services required under condi-
14 tions of participation applicable under title
15 XVIII of the Social Security Act (42
16 U.S.C. 1395 et seq.) in the community
17 served by the hospital; and

18 “(ii) has had positive impacts in the
19 community described in subsection
20 (b)(1)(D)(ii).

21 “(C) REFINANCING.—During the period of
22 a zero-percent interest loan that has been re-
23 newed under subparagraph (A), at any time
24 that the interest rate applicable to a loan under
25 the community facilities direct loan program is

1 2.5 percent or less, the eligible rural hospital
2 may elect to refinance the loan into a loan
3 under the community facilities direct loan pro-
4 gram in accordance with subsection (c)(3).

5 “(3) DISAPPROVAL.—If the Secretary dis-
6 approves an application to renew a zero-percent in-
7 terest loan under paragraph (1)(A) or (2)(A), the
8 Secretary shall resolve the applicable issues in ac-
9 cordance with the procedures that apply to the com-
10 munity facilities direct loan program.

11 “(e) TECHNICAL ASSISTANCE GRANTS.—

12 “(1) IN GENERAL.—A hospital that receives a
13 loan under this section shall be eligible for assistance
14 through an award under a covered program to sup-
15 port operational improvements and improve financial
16 stability during—

17 “(A) the 5-year period of a zero-percent in-
18 terest loan described in subsection (c)(1); and

19 “(B) any renewal of a zero-percent interest
20 loan for a lack of sufficient financial strength
21 under subsection (d)(1).

22 “(2) COVERED PROGRAM DEFINED.—In this
23 subsection, the term ‘covered program’ means—

1 “(A) the Targeted Technical Assistance for
2 Rural Hospitals Program of the Health Re-
3 sources and Services Administration; and

4 “(B) the Rural Hospital Technical Assist-
5 ance Program carried out by the rural develop-
6 ment mission area, in cooperation with the Na-
7 tional Rural Health Association.”.

8 **SEC. 6303. RURAL HEALTH CARE FACILITY ASSISTANCE.**

9 (a) IN GENERAL.—Section 342 of the Consolidated
10 Farm and Rural Development Act (7 U.S.C. 1990a) is
11 amended—

12 (1) by striking “a rural hospital” and inserting
13 “an eligible health care facility”;

14 (2) by striking “rural community” and insert-
15 ing “rural area”;

16 (3) by striking “hospital,” and inserting “eligi-
17 ble health care facility,”;

18 (4) by striking “Assistance” and inserting the
19 following:

20 “(a) REFINANCING OF CERTAIN RURAL HEALTH
21 CARE FACILITY DEBT.—

22 “(1) IN GENERAL.—Assistance”; and

23 (5) by adding at the end the following:

1 “(2) REQUIREMENTS.—To promote the long-
2 term sustainability and financial viability of an eligi-
3 ble health care facility, the Secretary shall—

4 “(A) provide assistance described in para-
5 graph (1) to an eligible health care facility for
6 the purpose of—

7 “(i) ensuring the facility has nec-
8 essary resources to maintain public health,
9 safety, or order;

10 “(ii) addressing financial hardships of
11 the facility, the patients of the facility, and
12 the area served by the facility; and

13 “(iii) identifying the financial stability
14 of the facility, including—

15 “(I) operational practices;

16 “(II) revenue enhancements;

17 “(III) policy revisions;

18 “(IV) partnerships, regionaliza-
19 tion, or consolidation of rural health
20 systems; and

21 “(V) contract services; and

22 “(B) require an applicant for assistance
23 described in paragraph (1)—

24 “(i) to receive financial planning as-
25 sistance; and

1 “(ii) to prepare a long-term financial
2 plan.

3 “(3) WAIVER.—In the case of an application
4 for refinancing pursuant to this subsection, the Sec-
5 retary may waive the requirement of section
6 302(a)(1)(D) if the eligible health care facility is in-
7 solvent.

8 “(b) RURAL HEALTH CARE FACILITY TECHNICAL
9 ASSISTANCE PROGRAM.—

10 “(1) IN GENERAL.—In lieu of any other author-
11 ity under which the Secretary may provide technical
12 assistance to any eligible health care facility, the
13 Secretary shall establish, and maintain, directly or
14 by grant, contract, or cooperative agreement, a
15 Rural Health Care Facility Technical Assistance
16 Program (referred to in this subsection as the ‘Pro-
17 gram’) to provide technical assistance and training,
18 tailored to the capacity and needs of each eligible
19 health care facility, to help eligible health care facili-
20 ties—

21 “(A) identify development needs for main-
22 taining essential health care services and sup-
23 port action plans for operational and quality
24 improvement projects to meet the development
25 needs;

1 “(B) better manage the financial and busi-
2 ness strategies of the eligible health care facili-
3 ties, including providing financial planning as-
4 sistance and preparing long-term financial
5 plans; and

6 “(C) identify, and apply for assistance
7 from, loan and grant programs of the Depart-
8 ment of Agriculture for which the eligible health
9 care facilities are eligible.

10 “(2) GOALS.—The goals of the Program shall
11 be—

12 “(A) to improve the long-term financial po-
13 sition and operational efficiency of eligible
14 health care facilities;

15 “(B) to prevent the closure of eligible
16 health care facilities;

17 “(C) to strengthen the delivery of health
18 care in rural areas;

19 “(D) to help eligible health care facilities
20 better access and compete for loans and grants
21 from programs administered by the Department
22 of Agriculture; and

23 “(E) to continue the activities of the Rural
24 Hospital Technical Assistance Program (as in

1 effect on the day before the date of enactment
2 of this subsection).

3 “(3) PROGRAM PARTICIPATION.—

4 “(A) IN GENERAL.—The Secretary shall
5 engage in outreach and engagement strategies
6 to encourage eligible health care facilities to
7 participate in the Program.

8 “(B) ELIGIBLE HEALTH CARE FACILITY
9 SELECTION.—In selecting eligible health care
10 facilities to participate in the Program, the Sec-
11 retary—

12 “(i) shall give priority to borrowers of
13 loans and recipients of grants from the
14 Rural Housing Service, the Rural Busi-
15 ness-Cooperative Service, and the Rural
16 Utilities Service; and

17 “(ii) may consider—

18 “(I) the age and physical state of
19 the eligible health care facility in-
20 volved;

21 “(II) the financial vulnerability of
22 the eligible health care facility and the
23 ability of the eligible health care facil-
24 ity to meet debt obligations;

1 “(III) the electronic health record
2 implementation needs of the eligible
3 health care facility;

4 “(IV) whether the eligible health
5 care facility is located in a health pro-
6 fessional shortage area or a medically
7 underserved area;

8 “(V) whether the eligible health
9 care facility serves a medically under-
10 served population; and

11 “(VI) such other criteria and pri-
12 orities as are determined by the Sec-
13 retary.

14 “(4) REPORTING REQUIREMENTS.—Not later
15 than 1 year after the date of enactment of this sub-
16 section, and annually thereafter, the Secretary shall
17 submit to the Committee on Agriculture of the
18 House of Representatives and the Committee on Ag-
19 riculture, Nutrition, and Forestry of the Senate a
20 written report describing the progress and results of
21 the Program, including—

22 “(A) a brief description of each project to
23 provide technical assistance to an eligible health
24 care facility under this subsection, including—

1 “(i) the name and location of the fa-
2 cility;

3 “(ii) a description of the assistance
4 provided;

5 “(iii) a description of the outcomes for
6 completed projects;

7 “(iv) the cost of the technical assist-
8 ance; and

9 “(v) any other information the Sec-
10 retary determines to be appropriate;

11 “(B) a summary of the technical assistance
12 projects completed;

13 “(C) a summary of the outcomes of the
14 technical assistance projects;

15 “(D) an assessment of the effectiveness of
16 the Program; and

17 “(E) recommendations for improving the
18 Program.

19 “(5) AUTHORIZATION OF APPROPRIATIONS.—
20 There is authorized to be appropriated to the Sec-
21 retary to carry out this subsection not more than
22 \$2,000,000 for each of fiscal years 2027 through
23 2031.

24 “(c) DEFINITIONS.—In this section:

1 “(1) RURAL AREA.—The term ‘rural area’ has
2 the meaning given the term in section
3 343(a)(13)(A).

4 “(2) DEVELOPMENT NEEDS.—The term ‘devel-
5 opment needs’ means—

6 “(A) constructing, expanding, renovating,
7 or otherwise modernizing health care facilities;

8 “(B) increasing telehealth capabilities;

9 “(C) acquiring or upgrading health care
10 information systems, such as electronic health
11 records;

12 “(D) providing financial planning assist-
13 ance and preparing a long-term financial plan;
14 and

15 “(E) such other needs as the Secretary de-
16 termines to be critical to maintaining health
17 care services in the community in which an eli-
18 gible health care facility is located.

19 “(3) ELIGIBLE HEALTH CARE FACILITY.—The
20 term ‘eligible health care facility’ means a facility
21 that is located in a rural area and is—

22 “(A) a hospital (as defined in section
23 1861(e) of the Social Security Act (42 U.S.C.
24 1395x(e)));

1 “(B) a psychiatric hospital (as defined in
2 section 1861(f) of that Act (42 U.S.C.
3 1395x(f)));

4 “(C) a home health agency (as defined in
5 section 1861(o) of that Act (42 U.S.C.
6 1395x(o)));

7 “(D) a rural health clinic (as defined in
8 section 1861(aa)(2) of that Act (42 U.S.C.
9 1395x(aa)(2)));

10 “(E) a critical access hospital (as defined
11 in section 1861(mm)(1) of that Act (42 U.S.C.
12 1395x(mm)(1)));

13 “(F) a religious nonmedical health care in-
14 stitution (as defined in section 1861(ss)(1) of
15 that Act (42 U.S.C. 1395x(ss)(1)));

16 “(G) a long-term care hospital (as defined
17 in section 1861(ccc) of that Act (42 U.S.C.
18 1395x(ccc)));

19 “(H) a rural emergency hospital (as de-
20 fined in section 1861(kkk)(2) of that Act (42
21 U.S.C. 1395x(kkk)(2)));

22 “(I) a sole community hospital (as defined
23 in section 1886(d)(5)(D)(iii) of that Act (42
24 U.S.C. 1395ww(d)(5)(D)(iii))); and

1 “(J) a community health center receiving
2 funding under section 330 of the Public Health
3 Service Act (42 U.S.C. 254b).

4 “(4) HEALTH PROFESSIONAL SHORTAGE
5 AREA.—The term ‘health professional shortage area’
6 has the meaning given the term in section
7 332(a)(1)(A) of the Public Health Service Act (42
8 U.S.C. 254e(a)(1)(A)).

9 “(5) MEDICALLY UNDERSERVED AREA.—The
10 term ‘medically underserved area’ has the meaning
11 given the term in section 330I(a) of the Public
12 Health Service Act (42 U.S.C. 254e–14(a)).

13 “(6) MEDICALLY UNDERSERVED POPU-
14 LATION.—The term ‘medically underserved popu-
15 lation’ has the meaning given the term in section
16 330(b)(3) of the Public Health Service Act (42
17 U.S.C. 254b(b)(3)).”.

18 (b) REGULATIONS.—The Secretary shall issue regula-
19 tions to carry out the amendments made by subsection (a).

20 (c) EFFECTIVE DATE.—Except for purposes of
21 issuing regulations under subsection (b), the amendments
22 made by subsection (a) shall take effect on the effective
23 date of those regulations.

1 **PART II—OTHER MISCELLANEOUS PROVISIONS**

2 **SEC. 6311. DISTANCE LEARNING AND TELEMEDICINE.**

3 (a) USE OF GRANTS FOR OPERATING EXPENSES.—

4 Section 2333 of the Food, Agriculture, Conservation, and

5 Trade Act of 1990 (7 U.S.C. 950aaa–2) is amended—

6 (1) in subsection (a), by inserting “and oper-
7 ation” after “construction”;

8 (2) in subsection (c)—

9 (A) in paragraph (1)(B), by adding “and”
10 at the end; and

11 (B) in paragraph (2)(A), by striking “or
12 extend” each place it appears and inserting
13 “extend, or operate”;

14 (3) in subsection (f)—

15 (A) in paragraph (3), by striking “or” at
16 the end;

17 (B) by redesignating paragraph (4) as
18 paragraph (5); and

19 (C) by inserting after paragraph (3) the
20 following:

21 “(4) operation of the programming, equipment,
22 or facilities referred to in paragraphs (1) and (2);
23 or”; and

24 (4) by striking subsection (g) and inserting the
25 following:

1 “(g) OPERATING EXPENSES.—Not more than 15
2 percent of the amount of financial assistance provided to
3 a recipient under this chapter may be used for operating
4 expenses and administrative expenses that are reasonable
5 and allocable to the project carried out by the recipient.”.

6 (b) WAIVER OF MATCHING REQUIREMENT.—Section
7 2334 of the Food, Agriculture, Conservation, and Trade
8 Act of 1990 (7 U.S.C. 950aaa–3) is amended by adding
9 at the end the following:

10 “(g) WAIVER OF MATCHING REQUIREMENT.—The
11 Secretary shall waive any requirement for a recipient of
12 financial assistance under this chapter to provide non-
13 Federal matching funds—

14 “(1) in a case of demonstrated need or if the
15 matching requirement would create a substantial
16 burden, as determined by the Secretary; or

17 “(2) if the recipient is a federally recognized In-
18 dian Tribe.”.

19 (c) AUTHORIZATION OF APPROPRIATIONS.—Section
20 2335A of the Food, Agriculture, Conservation, and Trade
21 Act of 1990 (7 U.S.C. 950aaa–5) is amended by striking
22 “2019 through 2023” and inserting “2027 through
23 2031”.

1 (d) CONFORMING AMENDMENT.—Section 1(b) of
2 Public Law 102–551 (7 U.S.C. 950aaa note) is amended
3 by striking “2023” and inserting “2031”.

4 **SEC. 6312. AGRICULTURE INNOVATION CENTER DEM-**
5 **ONSTRATION PROGRAM.**

6 Section 6402(g) of the Farm Security and Rural In-
7 vestment Act of 2002 (7 U.S.C. 1632b(g)) is amended by
8 striking “2023” and inserting “2031”.

9 **SEC. 6313. RURAL ENERGY SAVINGS PROGRAM.**

10 Section 6407 of the Farm Security and Rural Invest-
11 ment Act of 2002 (7 U.S.C. 8107a) is amended—

12 (1) in subsection (b)—

13 (A) in paragraph (1)—

14 (i) in subparagraph (B), by striking
15 “or” at the end;

16 (ii) by redesignating subparagraph
17 (C) as subparagraph (D); and

18 (iii) by inserting after subparagraph
19 (B) the following:

20 “(C) any Indian Tribe (as defined in sec-
21 tion 4 of the Indian Self-Determination and
22 Education Assistance Act (25 U.S.C. 5304));
23 and”; and

24 (2) by striking paragraph (2) and inserting the
25 following:

1 “(2) ENERGY EFFICIENCY MEASURES.—The
2 term ‘energy efficiency measures’ means, with re-
3 spect to any property service by an eligible entity—

4 “(A) a structural improvement or invest-
5 ment in a cost-effective, commercial technology
6 to increase energy efficiency (including any
7 cost-effective on- or off-grid renewable energy
8 or energy storage system); and

9 “(B) the replacement of a manufactured
10 housing unit or large appliance with a substan-
11 tially similar manufactured housing unit or
12 large appliance, respectively, if that replacement
13 is a cost-effective option with respect to energy
14 savings.”;

15 (3) by redesignating subsections (e) through (i)
16 as subsections (f) through (j), respectively;

17 (4) by inserting after subsection (d) the fol-
18 lowing:

19 “(e) ADDITIONAL GRANTS.—

20 “(1) IN GENERAL.—Except as provided in para-
21 graph (2), at the request of an eligible entity that
22 receives a loan under subsection (c), the Secretary
23 shall make a grant to the eligible entity in an
24 amount equal to not more than 5 percent of the loan

1 amount received under that subsection for costs in-
2 curred by the eligible entity in—

3 “(A) applying for the loan received under
4 that subsection;

5 “(B) making a loan to a qualified con-
6 sumer under subsection (d);

7 “(C) making repairs to the property of a
8 qualified consumer that facilitates the energy
9 efficiency measures for the property financed
10 through a loan made under that subsection;

11 “(D) entering into a contract under sub-
12 section (f); or

13 “(E) otherwise carrying out the duties of
14 the eligible entity under this section.

15 “(2) PERSISTENT POVERTY COUNTIES.—A
16 grant made to an eligible entity under paragraph (1)
17 for the purpose of making a loan to a qualified con-
18 sumer under subsection (d) that is located in a per-
19 sistent poverty county, as determined by the Sec-
20 retary, shall be made in an amount equal to not
21 more than 10 percent of the loan amount received
22 by the eligible entity under subsection (c).”; and

23 (5) in subsection (j) (as so redesignated), by
24 striking “2023” and inserting “2031”.

1 **SEC. 6314. INTERAGENCY TASK FORCE ON OUTDOOR**
2 **RECREATION COORDINATION.**

3 (a) IN GENERAL.—Not later than 90 days after the
4 date of enactment of this Act, the Secretary shall coordi-
5 nate an interagency task force (referred to in this section
6 as the “task force”)—

7 (1) to examine existing Federal programs sup-
8 porting hospitality, tourism, agri-tourism, and out-
9 door recreation in rural communities; and

10 (2) to better align Federal investments in out-
11 door recreation in or around Federal land.

12 (b) MEMBERSHIP.—The task force shall consist of—

13 (1) the Secretary, acting through the Chief of
14 the Forest Service;

15 (2) the Secretary of the Interior, acting
16 through—

17 (A) the Director of the National Park
18 Service;

19 (B) the Director of the United States Fish
20 and Wildlife Service; and

21 (C) the Director of the Bureau of Land
22 Management;

23 (3) the Administrator of the Small Business
24 Administration; and

1 (4) the Secretary of Commerce, acting through
2 the Assistant Secretary of Commerce for Economic
3 Development.

4 (c) REPORT.—Not later than 360 days after the date
5 of enactment of this Act, the task force shall submit to
6 the Committee on Agriculture of the House of Representa-
7 tives and the Committee on Agriculture, Nutrition, and
8 Forestry of the Senate a report that—

9 (1) examines, and identifies issues relating to,
10 the coordination of Federal programs supporting
11 hospitality, tourism, and outdoor recreation in rural
12 communities, particularly rural communities that are
13 in or around Federal land; and

14 (2) recommends changes to existing statutory
15 requirements, regulatory requirements, or both, to
16 improve interagency coordination and responsiveness
17 to support hospitality, tourism, and outdoor recre-
18 ation in rural communities, particularly rural com-
19 munities that are in or around Federal land.

20 **SEC. 6315. NEW, MOBILE, AND EXPANDED MEAT AND POUL-**
21 **TRY PROCESSING AND RENDERING GRANTS.**

22 (a) DEFINITIONS.—In this section:

23 (1) ELIGIBLE ENTITY.—The term “eligible enti-
24 ty” means—

1 (A) a public, private, or cooperative organi-
2 zation organized on a for-profit or nonprofit
3 basis, including a small establishment and very
4 small establishment;

5 (B) an Indian Tribe (as defined in section
6 4 of the Indian Self-Determination and Edu-
7 cation Assistance Act (25 U.S.C. 5304));

8 (C) a land-grant college or university (as
9 defined in section 1404 of the National Agricul-
10 tural Research, Extension, and Teaching Policy
11 Act of 1977 (7 U.S.C. 3103));

12 (D) a non-land-grant college of agriculture
13 (as defined in that section); and

14 (E) a State department of agriculture or
15 other applicable State office with authority over
16 meat and poultry processing and rendering.

17 (2) SMALL ESTABLISHMENT; VERY SMALL ES-
18 TABLISHMENT.—The terms “small establishment”
19 and “very small establishment” have the meanings
20 given the terms “small establishment” and “very
21 small establishment”, respectively, in the final rule
22 entitled “Pathogen Reduction; Hazard Analysis and
23 Critical Control Point (HACCP) Systems” (61 Fed.
24 Reg. 38806 (July 25, 1996)) (or successor regula-
25 tions).

1 (b) PURPOSES.—The purposes of this section are—

2 (1) to create more resilient local and regional
3 food systems;

4 (2) to expand, diversify, and increase resilience
5 in meat and poultry processing and rendering activi-
6 ties;

7 (3) to increase farmer and rancher access to
8 animal slaughter options;

9 (4) to improve compliance of processors with
10 livestock and poultry processing statutes (including
11 regulations), including the Federal Meat Inspection
12 Act (21 U.S.C. 601 et seq.) and the Poultry Prod-
13 ucts Inspection Act (21 U.S.C. 451 et seq.);

14 (5) to reduce barriers to entry for new meat
15 and poultry processors and renderers;

16 (6) to establish new, or update, expand, or oth-
17 erwise improve existing, meat and poultry processing
18 and rendering facilities; and

19 (7) to support the processing and slaughtering
20 of niche production methods such as halal, kosher,
21 and other specific cultural methods.

22 (c) GRANTS.—

23 (1) IN GENERAL.—The Secretary shall award
24 grants to eligible entities to use in accordance with
25 subsection (e).

1 (2) MAXIMUM AMOUNT.—The maximum
2 amount of a grant awarded under paragraph (1)
3 shall not exceed \$500,000.

4 (3) DURATION.—The term of a grant awarded
5 under paragraph (1) shall not exceed 3 years.

6 (4) PRIORITY.—In awarding grants under para-
7 graph (1), the Secretary shall give priority to small
8 establishments and very small establishments.

9 (d) APPLICANT REQUIREMENTS.—

10 (1) SMALL AND VERY SMALL ESTABLISH-
11 MENTS.—In awarding grants under this section to a
12 small establishment or very small establishment that
13 has been in operation for less than 2 years, the Sec-
14 retary shall ensure the establishment has the finan-
15 cial viability and managerial capacity necessary to
16 carry out the activities described in subsection (e).

17 (2) ELIGIBLE ENTITIES.—In awarding grants
18 under this section to any eligible entity, the Sec-
19 retary shall ensure the eligible entity demonstrates
20 experience in carrying out activities in support of the
21 purposes described in subsection (b), including ac-
22 tivities described in subsection (e).

23 (e) USE OF FUNDS.—An eligible entity receiving a
24 grant under this section shall use the grant to carry out

1 activities in support of the purposes described in sub-
2 section (b), including activities—

3 (1) to identify and analyze business opportuni-
4 ties, including feasibility studies required for credit
5 worthiness;

6 (2) to achieve compliance with applicable Fed-
7 eral, State, or local regulations;

8 (3) to conduct regional, community, and local
9 economic development planning and coordination
10 and leadership development;

11 (4) to incentivize new, innovative, or mobile en-
12 terprises for increasing or improving local and re-
13 gional meat or poultry processing and rendering;

14 (5) to implement humane handling infrastruc-
15 ture, including holding space for livestock and poul-
16 try prior to slaughter, shade structures, and struc-
17 tures and equipment for humane slaughter;

18 (6) to develop a feasibility study or business
19 plan for, or carry out any other activity associated
20 with, establishing or expanding a meat or poultry
21 slaughter, processing, or rendering facility;

22 (7) to purchase equipment that enables the fur-
23 ther use or value-added sale of coproducts or by-
24 products; and

1 (8) to purchase cold storage and related equip-
2 ment.

3 (f) FEDERAL SHARE.—The Federal share of the ac-
4 tivities carried out using a grant awarded under this sec-
5 tion shall not exceed—

6 (1) 90 percent in the case of a grant in the
7 amount of \$100,000 or less; or

8 (2) 75 percent in the case of a grant in an
9 amount greater than \$100,000.

10 (g) AUTHORIZATION OF APPROPRIATIONS.—There is
11 authorized to be appropriated to the Secretary to carry
12 out this section \$25,000,000 for each of fiscal years 2027
13 through 2031.

14 **SEC. 6316. ANNUAL EFFICIENCY REPORT.**

15 (a) IN GENERAL.—Not later than 180 days after the
16 date of enactment of this Act, and not later than April
17 1 of each fiscal year thereafter, the Secretary shall submit
18 to the Committee on Agriculture, Nutrition, and Forestry
19 of the Senate and the Committee on Agriculture of the
20 House of Representatives a report on Federal economic
21 development programs.

22 (b) CONTENTS.—The report submitted under sub-
23 section (a) shall include—

1 (1) a catalog and description of Department
2 statutory programs and authorities devoted to eco-
3 nomic development, including funding levels;

4 (2) an identification of each economic develop-
5 ment office, agency, sub-agency, panel, committee,
6 or other organization created by statute or regula-
7 tion;

8 (3) a comprehensive description of how each
9 program described in paragraph (1) is used by the
10 Department, any deficiencies in those programs, and
11 any overlap with other programs; and

12 (4) suggestions for reforming Department rural
13 development authorities, including—

14 (A) streamlining or sunseting any unnec-
15 essary or duplicative programs or authorities;

16 (B) consolidating overlapping authorities;
17 and

18 (C) establishing new authorities as needed.

1 **TITLE VII—RESEARCH, EXTEN-**
2 **SION, AND RELATED MAT-**
3 **TERS**

4 **Subtitle A—National Agricultural**
5 **Research, Extension, and Teach-**
6 **ing Policy Act of 1977**

7 **SEC. 7101. NATIONAL AGRICULTURAL RESEARCH, EXTEN-**
8 **SION, EDUCATION, AND ECONOMICS ADVI-**
9 **SORY BOARD.**

10 Section 1408 of the National Agricultural Research,
11 Extension, and Teaching Policy Act of 1977 (7 U.S.C.
12 3123) is amended—

13 (1) in subsection (b)(5), by striking “7 addi-
14 tional members” and inserting “3 additional mem-
15 bers”;

16 (2) in subsection (g)(1), by striking “\$500,000”
17 and inserting “\$750,000”; and

18 (3) in subsection (h), by striking “2023” and
19 inserting “2031”.

20 **SEC. 7102. SPECIALTY CROP COMMITTEE.**

21 (a) IN GENERAL.—Section 1408A of the National
22 Agricultural Research, Extension, and Teaching Policy
23 Act of 1977 (7 U.S.C. 3123a) is amended—

24 (1) in subsection (a)(2)—

25 (A) in subparagraph (B)—

1 (i) in the matter preceding clause (i),
2 by striking “11 members” and inserting
3 “12 members”; and

4 (ii) adding at the end the following:

5 “(iv) One of such members shall rep-
6 resent all minor production States as a
7 nonvoting member.”; and

8 (B) in subparagraph (D), by striking
9 “2023” and inserting “2031”;

10 (2) in subsection (b), by striking paragraph (2)
11 and inserting the following:

12 “(2) APPOINTMENT; SERVICE.—Members of the
13 specialty crops committee shall—

14 “(A) be appointed by the Secretary; and

15 “(B) serve at the discretion of the Sec-
16 retary.”; and

17 (3) in subsection (g)—

18 (A) by redesignating paragraph (5) and
19 (6) as paragraph (6) and (7), respectively; and

20 (B) by inserting after paragraph (4) the
21 following:

22 “(5) review grant applications under such sub-
23 section and submit a summary of comments, includ-
24 ing the relevancy of the applications to the annual
25 priorities established under paragraph (4), to the Di-

1 rector of the National Institute of Food and Agri-
2 culture for consideration prior to the awarding of
3 grants under such subsection;”.

4 (b) CONFORMING AMENDMENT.—Section 412(d) of
5 the Agricultural Research, Extension, and Education Re-
6 form Act of 1998 (7 U.S.C. 7632(d)) is amended—

7 (1) in paragraph (1), by striking “; and” and
8 inserting a semicolon;

9 (2) in paragraph (2), by striking the period at
10 the end and inserting “; and”; and

11 (3) by adding at the end the following:

12 “(3) for competitive grants under subsection
13 (k), the review and summary submitted to the Direc-
14 tor of the National Institute of Food and Agri-
15 culture under section 1408A(g)(5) of the National
16 Agricultural Research, Extension, and Teaching Pol-
17 icy Act of 1977 (7 U.S.C. 3123a(g)(5)).”.

18 (c) EFFECT.—The amendments made by subsection
19 (a)—

20 (1) shall take effect on October 1 of the first
21 fiscal year that begins after the date of enactment
22 of this Act; and

23 (2) shall not affect the terms of the members
24 of the citrus disease subcommittee established under
25 section 1408A(a)(2) of the National Agricultural Re-

1 search, Extension, and Teaching Policy Act of 1977
2 (7 U.S.C. 3123a(a)(2)) who are—

3 (A) appointed by the Secretary before the
4 effective date described in paragraph (1); and

5 (B) members of that subcommittee on that
6 effective date.

7 **SEC. 7103. VETERINARY MEDICINE LOAN REPAYMENT.**

8 Section 1415A of the National Agricultural Research,
9 Extension, and Teaching Policy Act of 1977 (7 U.S.C.
10 3151a) is amended—

11 (1) by amending subsection (b) to read as fol-
12 lows:

13 “(b) DETERMINATION OF VETERINARIAN SHORTAGE
14 SITUATIONS.—In determining ‘veterinarian shortage situ-
15 ations’, the Secretary—

16 “(1) may consider—

17 “(A) geographical areas that the Secretary
18 determines have a shortage of veterinarians;

19 “(B) areas of veterinary practice that the
20 Secretary determines have a shortage of veteri-
21 narians, such as food animal medicine, public
22 health, epidemiology, and food safety; and

23 “(C) areas described in subparagraphs (A)
24 and (B) identified by appropriate State agen-
25 cies; and

1 “(2) shall—

2 “(A) develop quantitative mechanisms for
3 predicting the emergence of new veterinarian
4 shortage situations in the short-term and long-
5 term; and

6 “(B) make available to State agencies de-
7 scribed in paragraph (1)(C) the quantitative
8 mechanisms developed under subparagraph
9 (A).”; and

10 (2) in subsection (c), by adding at the end the
11 following:

12 “(9) ELIGIBILITY.—The Secretary shall not
13 make a veterinarian ineligible for the program under
14 this section based on a veterinarian’s participation in
15 a comparable Federal, State, or local program.

16 “(10) APPLICATION PROCESS.—Not later than
17 1 year after the date of enactment of the Agricul-
18 tural Act of 2026, the Secretary shall establish
19 streamlined application procedures and guidelines
20 for entering into agreements with veterinarians
21 under this section.”.

22 **SEC. 7104. VETERINARY SERVICES GRANT PROGRAM.**

23 Section 1415B of the National Agricultural Research,
24 Extension, and Teaching Policy Act of 1977 (7 U.S.C.
25 3151b) is amended—

1 (1) in subsection (a)—

2 (A) in paragraph (1)(A)(i), by striking “,
3 as defined in” and all that follows through
4 “1991(a))”;

5 (B) by redesignating paragraph (2) as
6 paragraph (3); and

7 (C) by inserting after paragraph (1) the
8 following:

9 “(2) RURAL AREA.—The term ‘rural area’ has
10 the meaning given the term in section 343(a) of the
11 Consolidated Farm and Rural Development Act (7
12 U.S.C. 1991(a)).”;

13 (2) in subsection (b)(2)—

14 (A) by redesignating subparagraphs (B)
15 and (C) as subparagraphs (C) and (D), respec-
16 tively; and

17 (B) by inserting after subparagraph (A)
18 the following:

19 “(B) expand, retain, or attract additional
20 veterinary practices in rural areas;”;

21 (3) in subsection (c), by adding at the end the
22 following:

23 “(5) APPLICATION PROCESS.—Not later than 1
24 year after the date of enactment of the Agricultural

1 Act of 2026, the Secretary shall establish a stream-
2 lined application process.”; and

3 (4) in subsection (d)—

4 (A) in the subsection heading, by striking
5 “TO RELIEVE VETERINARIAN SHORTAGE SITU-
6 ATIONS AND SUPPORT VETERINARY SERV-
7 ICES”; and

8 (B) in paragraph (1)—

9 (i) in the matter preceding subpara-
10 graph (A), by striking “situations and sup-
11 port” and inserting “situations, to expand,
12 retain, or attract additional veterinary
13 practices in rural areas, and to support”;
14 and

15 (ii) by adding at the end the fol-
16 lowing:

17 “(G) To cover expenses associated with
18 starting a new veterinary practice or attracting
19 new veterinarians to existing practices, includ-
20 ing—

21 “(i) relocation expenses;

22 “(ii) the purchase of necessary start-
23 up equipment; and

24 “(iii) housing or living stipends for
25 veterinary students, veterinary interns,

1 externs, fellows, and residents, and veteri-
2 nary technician students.”.

3 **SEC. 7105. GRANTS AND FELLOWSHIPS FOR FOOD AND AG-**
4 **RICULTURE SCIENCES EDUCATION.**

5 Section 1417 of the National Agricultural Research,
6 Extension, and Teaching Policy Act of 1977 (7 U.S.C.
7 3152) is amended—

8 (1) in subsection (j)(3)—

9 (A) in subparagraph (F), by striking
10 “and” at the end;

11 (B) in subparagraph (G), by striking the
12 period at the end and inserting “; and”; and

13 (C) by adding at the end the following:

14 “(H) to conduct workforce training, edu-
15 cation, research, and outreach activities relating
16 to the food and agricultural sciences.”; and

17 (2) in subsection (m)—

18 (A) in paragraph (1), by striking “and” at
19 the end;

20 (B) in paragraph (2), by striking “2023.”
21 and inserting “2025; and”; and

22 (C) by adding at the end the following:

23 “(3) \$60,000,000 for each of fiscal years 2027
24 through 2031.”.

1 **SEC. 7106. AGRICULTURAL AND FOOD POLICY RESEARCH**
2 **CENTERS.**

3 Section 1419A(e) of the National Agricultural Re-
4 search, Extension, and Teaching Policy Act of 1977 (7
5 U.S.C. 3155(e)) is amended by striking “\$10,000,000 for
6 each of fiscal years 2014 through 2023” and inserting
7 “\$15,000,000 for each fiscal years 2027 through 2031”.

8 **SEC. 7107. EDUCATION GRANTS TO ALASKA NATIVE SERV-**
9 **ING INSTITUTIONS AND NATIVE HAWAIIAN**
10 **SERVING INSTITUTIONS.**

11 Section 1419B of the National Agricultural Research,
12 Extension, and Teaching Policy Act of 1977 (7 U.S.C.
13 3156) is amended—

14 (1) in subsection (a)(3), by striking
15 “\$10,000,000 in fiscal years 2001 through 2023”
16 and inserting “\$15,000,000 for each of fiscal years
17 2027 through 2031”; and

18 (2) in subsection (b)(3), by striking
19 “\$10,000,000 for each of fiscal years 2001 through
20 2023” and inserting “\$15,000,000 for each of fiscal
21 years 2027 through 2031”.

22 **SEC. 7108. NUTRITION EDUCATION PROGRAM.**

23 Section 1425(g) of the National Agricultural Re-
24 search, Extension, and Teaching Policy Act of 1977 (7
25 U.S.C. 3175(g)) is amended by striking “2023” and in-
26 serting “2031”.

1 **SEC. 7109. CONTINUING ANIMAL HEALTH AND DISEASE RE-**
2 **SEARCH PROGRAMS.**

3 Section 1433 of the National Agricultural Research,
4 Extension, and Teaching Policy Act of 1977 (7 U.S.C.
5 3195) is amended—

6 (1) in subsection (a), by adding at the end the
7 following:

8 “(4) CARRYOVER.—The balance of any annual
9 funds provided to an eligible institution for a fiscal
10 year under this subsection that remains unexpended
11 at the end of the fiscal year may be carried over for
12 use during the following fiscal year.”; and

13 (2) in subsection (c)(1), by striking “2023” and
14 inserting “2031”.

15 **SEC. 7110. EXTENSION AT 1890 LAND-GRANT COLLEGES, IN-**
16 **CLUDING TUSKEGEE UNIVERSITY.**

17 Section 1444(a)(2) of the National Agricultural Re-
18 search, Extension, and Teaching Policy Act of 1977 (7
19 U.S.C. 3221(a)(2)) is amended—

20 (1) by striking “2003” and inserting “2027”;
21 and

22 (2) by striking “20 percent” and inserting “40
23 percent”.

1 **SEC. 7111. AGRICULTURAL RESEARCH AT 1890 LAND-GRANT**
2 **COLLEGES, INCLUDING TUSKEGEE UNIVER-**
3 **SITY.**

4 (a) AUTHORIZATION OF APPROPRIATIONS.—Section
5 1445(a) of the National Agricultural Research, Extension,
6 and Teaching Policy Act of 1977 (7 U.S.C. 3222(a)) is
7 amended—

8 (1) in paragraph (2)—

9 (A) by striking “2003” and inserting
10 “2027”; and

11 (B) by striking “30 percent” and inserting
12 “40 percent”; and

13 (2) in paragraph (3), by inserting “graduate
14 student tuition and fees,” after “direction,”.

15 (b) PAYMENT OF ALLOTMENTS TO ELIGIBLE INSTI-
16 TUTIONS.—Section 1445(d) of the National Agricultural
17 Research, Extension, and Teaching Policy Act of 1977 (7
18 U.S.C. 3222(d)) is amended—

19 (1) in the second sentence, by striking “a re-
20 search director” and inserting “an agricultural re-
21 search director”; and

22 (2) in the third sentence—

23 (A) by striking “or other officer”; and

24 (B) by inserting “agricultural” before
25 “chief administrative officer”.

1 **SEC. 7112. SCHOLARSHIPS FOR STUDENTS AT 1890 INSTITU-**
2 **TIONS.**

3 Section 1446(b)(2) of the National Agricultural Re-
4 search, Extension, and Teaching Policy Act of 1977 (7
5 U.S.C. 3222a(b)(2)) is amended by striking “2023” and
6 inserting “2031”.

7 **SEC. 7113. GRANTS TO UPGRADE AGRICULTURAL AND**
8 **FOOD SCIENCES FACILITIES AT 1890 LAND-**
9 **GRANT COLLEGES, INCLUDING TUSKEGEE**
10 **UNIVERSITY.**

11 Section 1447(b) of the National Agricultural Re-
12 search, Extension, and Teaching Policy Act of 1977 (7
13 U.S.C. 3222b(b)) is amended by striking “2023” and in-
14 serting “2031”.

15 **SEC. 7114. GRANTS TO UPGRADE AGRICULTURE AND FOOD**
16 **SCIENCES FACILITIES AND EQUIPMENT AT**
17 **INSULAR AREA LAND-GRANT INSTITUTIONS.**

18 Section 1447B(d) of the National Agricultural Re-
19 search, Extension, and Teaching Policy Act of 1977 (7
20 U.S.C. 3222b–2(d)) is amended by striking “2023” and
21 inserting “2031”.

22 **SEC. 7115. NEW BEGINNING FOR TRIBAL STUDENTS.**

23 Section 1450(d) of the National Agricultural Re-
24 search, Extension, and Teaching Policy Act of 1977 (7
25 U.S.C. 3222e(d)) is amended by striking “2023” and in-
26 serting “2031”.

1 **SEC. 7116. HISPANIC-SERVING INSTITUTIONS.**

2 Section 1455(c) of the National Agricultural Re-
3 search, Extension, and Teaching Policy Act of 1977 (7
4 U.S.C. 3241(c)) is amended by striking “2023” and in-
5 serting “2031”.

6 **SEC. 7117. BINATIONAL AGRICULTURAL RESEARCH AND**
7 **DEVELOPMENT.**

8 Section 1458(e) of the National Agricultural Re-
9 search, Extension, and Teaching Policy Act of 1977 (7
10 U.S.C. 3291(e)) is amended—

11 (1) in paragraph (1), by striking “entered into”
12 and inserting “as entered into in 1977”;

13 (2) in paragraph (2)—

14 (A) in subparagraph (A), by striking
15 “and” at the end;

16 (B) in subparagraph (B), by striking the
17 period at the end and inserting “; and”; and

18 (C) by adding at the end the following:

19 “(C) support mid-stage research to ad-
20 vance cooperative agricultural research projects
21 of mutual interest to the United States and
22 Israel.”; and

23 (3) by adding at the end the following:

24 “(3) BARD FUND ACCELERATOR.—The BARD
25 Fund shall establish an accelerator program that
26 supports mid-stage research, as determined by the

1 technology readiness level, in priority areas estab-
2 lished by the BARD Fund, and—

3 “(A) fast-tracks cooperative research be-
4 tween scientists participating in BARD Fund
5 activities;

6 “(B) accelerates the successful develop-
7 ment of agricultural research through resources
8 and services developed or orchestrated by the
9 BARD Fund;

10 “(C) provides management guidance, tech-
11 nical assistance, and consulting to scientists
12 participating in activities described in para-
13 graph (2); or

14 “(D) advances cooperative agricultural re-
15 search projects of mutual interest to the United
16 States and Israel.

17 “(4) AUTHORIZATION OF APPROPRIATIONS.—
18 There are authorized to be appropriated to the
19 BARD Fund—

20 “(A) \$12,000,000 for each of fiscal years
21 2027 through 2031 to carry out activities under
22 paragraph (3); and

23 “(B) \$8,000,000 for each of fiscal years
24 2027 through 2031 to carry out any other ac-
25 tivities under this subsection.”.

1 **SEC. 7118. INTERNATIONAL AGRICULTURE PARTNERSHIPS**
2 **AND GRANTS PROGRAM.**

3 (a) IN GENERAL.—Section 1458A of the National
4 Agricultural Research, Extension, and Teaching Policy
5 Act of 1977 (7 U.S.C. 3292) is amended—

6 (1) by striking the section heading and insert-
7 ing “**INTERNATIONAL AGRICULTURE PARTNER-**
8 **SHIPS AND GRANTS PROGRAM**”;

9 (2) by redesignating subsection (d) as sub-
10 section (e);

11 (3) by inserting after subsection (c) the fol-
12 lowing:

13 “(d) COMPETITIVE GRANTS FOR INTERNATIONAL
14 AGRICULTURAL SCIENCE AND EDUCATION PROGRAMS.—

15 “(1) COMPETITIVE GRANTS AUTHORIZED.—The
16 Secretary may make competitive grants to colleges
17 and universities in order to strengthen United States
18 economic competitiveness and to promote inter-
19 national market development.

20 “(2) PURPOSE OF GRANTS.—Grants under this
21 subsection shall be directed to agricultural research,
22 extension, and teaching activities that will—

23 “(A) enhance the international content of
24 the curricula in colleges and universities so as
25 to ensure that United States students acquire

1 an understanding of the international dimen-
2 sions and trade implications of their studies;

3 “(B) ensure that United States scientists,
4 extension agents, and educators involved in ag-
5 ricultural research and development activities
6 outside of the United States have the oppor-
7 tunity to convey the implications of their activi-
8 ties and findings to their peers and students in
9 the United States and to the users of agricul-
10 tural research, extension, and teaching;

11 “(C) enhance the capabilities of colleges
12 and universities to do collaborative research
13 with other countries, in cooperation with other
14 Federal agencies, on issues relevant to United
15 States agricultural competitiveness;

16 “(D) enhance the capabilities of colleges
17 and universities to provide cooperative extension
18 education to promote the application of new
19 technology developed in foreign countries to
20 United States agriculture; and

21 “(E) enhance the capability of United
22 States colleges and universities, in cooperation
23 with other Federal agencies, to provide leader-
24 ship and educational programs that will assist
25 United States natural resources and food pro-

1 duction, processing, and distribution businesses
2 and industries to compete internationally, in-
3 cluding product market identification, inter-
4 national policies limiting or enhancing market
5 production, development of new or enhancement
6 of existing markets, and production effi-
7 ciencies.”; and

8 (4) in subsection (e) (as so redesignated), by
9 striking “\$10,000,000 for each of fiscal years 2019
10 through 2023” and inserting “\$20,000,000 for each
11 of fiscal years 2026 through 2031”.

12 (b) CONFORMING AMENDMENTS.—

13 (1) Section 1459A of the National Agricultural
14 Research, Extension, and Teaching Policy Act of
15 1977 (7 U.S.C. 3292b) is repealed.

16 (2) Section 251(f)(1)(D)(vii) of the Department
17 of Agriculture Reorganization Act of 1994 (7 U.S.C.
18 6971(f)(1)(D)(vii)) is amended by striking “section
19 1459A of the National Agricultural Research, Ex-
20 tension, and Teaching Policy Act of 1977 (7 U.S.C.
21 3292b)” and inserting “subsection (d) of section
22 1458A of the National Agricultural Research, Ex-
23 tension, and Teaching Policy Act of 1977 (7 U.S.C.
24 3292)”.

1 **SEC. 7119. RESEARCH EQUIPMENT GRANTS.**

2 Section 1462A(e) of the National Agricultural Re-
3 search, Extension, and Teaching Policy Act of 1977 (7
4 U.S.C. 3310a(e)) is amended by striking “2023” and in-
5 serting “2031”.

6 **SEC. 7120. UNIVERSITY RESEARCH.**

7 Section 1463 of the National Agricultural Research,
8 Extension, and Teaching Policy Act of 1977 (7 U.S.C.
9 3311) is amended by striking “2023” each place it ap-
10 pears in subsections (a) and (b) and inserting “2031”.

11 **SEC. 7121. COOPERATIVE EXTENSION SERVICE.**

12 Section 1464 of the National Agricultural Research,
13 Extension, and Teaching Policy Act of 1977 (7 U.S.C.
14 3312) is amended by striking “2023” and inserting
15 “2031”.

16 **SEC. 7122. SUPPLEMENTAL AND ALTERNATIVE CROPS.**

17 Section 1473D of the National Agricultural Re-
18 search, Extension, and Teaching Policy Act of 1977 (7
19 U.S.C. 3319d) is amended—

20 (1) in subsection (a), by striking “2023” and
21 inserting “2031”; and

22 (2) in subsection (e)(3), by striking “2023” and
23 inserting “2031”.

24 **SEC. 7123. NEW ERA RURAL TECHNOLOGY PROGRAM.**

25 Section 1473E(d) of the National Agricultural Re-
26 search, Extension, and Teaching Policy Act of 1977 (7

1 U.S.C. 3319e(d)) is amended by striking “2023” and in-
2 serting “2031”.

3 **SEC. 7124. CAPACITY BUILDING GRANTS FOR NLGCA INSTI-**
4 **TUTIONS.**

5 Section 1473F(b) of the National Agricultural Re-
6 search, Extension, and Teaching Policy Act of 1977 (7
7 U.S.C. 3319i(b)) is amended by striking “2023” and in-
8 serting “2031”.

9 **SEC. 7125. AGRICULTURE ADVANCED RESEARCH AND DE-**
10 **VELOPMENT AUTHORITY.**

11 Section 1473H of the National Agricultural Re-
12 search, Extension, and Teaching Policy Act of 1977 (7
13 U.S.C. 3319k) is amended—

14 (1) in the section heading, by striking
15 “**PILOT**”;

16 (2) in subsection (a)(6)(A), by striking “grow-
17 ing,” and inserting “growing (including water con-
18 servation technologies and innovation),”;

19 (3) in subsection (b)—

20 (A) by striking “pilot program” each place
21 it appears and inserting “program”;

22 (B) in paragraph (2)—

23 (i) in subparagraph (B)—

1 (I) by inserting “the long-term
2 and high-risk technological” before
3 “barriers”; and

4 (II) by striking “and resilience to
5 extreme weather;” and inserting “soil
6 and water conservation, and resilience
7 to extreme weather, drought, infec-
8 tious diseases, plant and animal
9 pathogens, and plant and animal
10 pests;”; and

11 (ii) in subparagraph (D), by inserting
12 “or economic cost” before the period at the
13 end; and

14 (C) in paragraph (9), by striking the para-
15 graph designation and heading and all that fol-
16 lows through “In carrying out” and inserting
17 the following:

18 “(9) PERSONNEL MATTERS.—

19 “(A) IN GENERAL.—The Director shall es-
20 tablish and maintain within the AGARDA a
21 staff with sufficient qualifications and expertise
22 to enable the AGARDA to carry out the respon-
23 sibilities of the AGARDA under this section in
24 conjunction with other operations of the De-
25 partment of Agriculture.

1 “(B) USE OF EXISTING PERSONNEL AU-
2 THORITIES.—In carrying out”;

3 (4) in subsection (c), by adding at the end the
4 following:

5 “(4) USE OF STRATEGIC PLAN.—The Secretary
6 shall use the strategic plan developed under para-
7 graph (1) and dated 2022 to inform the administra-
8 tion of the AGARDA under this section.”;

9 (5) in subsection (d)—

10 (A) by redesignating subparagraph (C) of
11 paragraph (2) as paragraph (5), indenting ap-
12 propriately, and moving the paragraph so as to
13 appear after paragraph (3);

14 (B) in paragraph (3), by striking “2019
15 through 2023” and inserting “2027 through
16 2031”;

17 (C) by inserting after paragraph (3) the
18 following:

19 “(4) OTHER FUNDING.—In addition to amounts
20 otherwise made available to carry out this section,
21 the Secretary may use to carry out this section other
22 unobligated funds available to the Secretary for any
23 other purpose.”; and

24 (D) in paragraph (5) (as redesignated by
25 subparagraph (A)), by striking “this para-

1 graph” and inserting “paragraph (2) or (4”;
2 and
3 (6) by striking subsection (e).

4 **SEC. 7126. AQUACULTURE ASSISTANCE PROGRAMS.**

5 (a) IN GENERAL.—Section 1477(a) of the National
6 Agricultural Research, Extension, and Teaching Policy
7 Act of 1977 (7 U.S.C. 3324(a)) is amended—

8 (1) in paragraph (1), by striking “and” at the
9 end;

10 (2) in paragraph (2), by striking “2023.” and
11 inserting “2025; and”; and

12 (3) by adding at the end the following:

13 “(3) \$15,000,000 for each of fiscal years 2027
14 through 2031.”.

15 (b) INDIRECT COSTS.—Section 1477 of the National
16 Agricultural Research, Extension, and Teaching Policy
17 Act of 1977 (7 U.S.C. 3324) is amended by adding at
18 the end the following:

19 “(c) INDIRECT COSTS.—Effective beginning on the
20 date of enactment of this subsection—

21 “(1) the limitation with respect to indirect costs
22 under section 1462 shall apply with respect to
23 awards made under this subtitle; and

1 “(2) the limitation with respect to indirect costs
2 under section 1473 shall not apply with respect to
3 those awards.”.

4 **SEC. 7127. RANGELAND RESEARCH PROGRAMS.**

5 Section 1483(a)(2) of the National Agricultural Re-
6 search, Extension, and Teaching Policy Act of 1977 (7
7 U.S.C. 3336(a)(2)) is amended by striking “2023” and
8 inserting “2031”.

9 **SEC. 7128. SPECIAL AUTHORIZATION FOR BIOSECURITY**
10 **PLANNING AND RESPONSE.**

11 Section 1484(a)(3) of the National Agricultural Re-
12 search, Extension, and Teaching Policy Act of 1977 (7
13 U.S.C. 3351(a)(3)) is amended by striking “2023” and
14 inserting “2031”.

15 **SEC. 7129. DISTANCE EDUCATION AND RESIDENT INSTRU-**
16 **CTION GRANTS PROGRAM FOR INSULAR AREA**
17 **INSTITUTIONS OF HIGHER EDUCATION.**

18 (a) DISTANCE EDUCATION GRANTS FOR INSULAR
19 AREAS.—Section 1490(f)(2) of the National Agricultural
20 Research, Extension, and Teaching Policy Act of 1977 (7
21 U.S.C. 3362(f)(2)) is amended by striking “2023” and in-
22 serting “2031”.

23 (b) RESIDENT INSTRUCTION GRANTS FOR INSULAR
24 AREAS.—Section 1491(c)(2) of the National Agricultural
25 Research, Extension, and Teaching Policy Act of 1977 (7

1 U.S.C. 3363(c)(2)) is amended by striking “2023” and
2 inserting “2031”.

3 **SEC. 7130. LIMITATION ON CERTAIN RESEARCH IN COUN-**
4 **TRIES OF CONCERN.**

5 (a) LIMITATION ON FOREIGN RESEARCH.—The Sec-
6 retary, acting through the Under Secretary for Research,
7 Education, and Economics, shall prohibit research, edu-
8 cation, or extension activities involving vertebrate animals
9 carried out or funded under the jurisdiction of the Re-
10 search, Education, and Economics mission area from
11 being conducted in, or performed in collaboration with, the
12 People’s Republic of China, the Russian Federation, or
13 any other foreign country of concern (as defined in section
14 10638 of the Research and Development, Competition,
15 and Innovation Act (42 U.S.C. 19237)).

16 (b) WAIVER AUTHORITY.—The Under Secretary for
17 Research, Education, and Economics (and no other Fed-
18 eral official) may waive the prohibition under subsection
19 (a) on a case-by-case basis if the Under Secretary deter-
20 mines that the research is necessary to protect national
21 security, animal and crop health, or public health, safety,
22 or welfare.

23 (c) CONGRESSIONAL NOTIFICATION.—Not later than
24 30 days before granting a waiver under subsection (b),
25 the Under Secretary for Research, Education, and Eco-

1 nomics shall submit to the Committee on Agriculture of
2 the House of Representatives and the Committee on Agri-
3 culture, Nutrition, and Forestry of the Senate a written
4 notification that includes—

5 (1) a detailed justification for the waiver, in-
6 cluding the specific national security, animal and
7 crop health, or public health, safety, or welfare need;

8 (2) a description of the research to be con-
9 ducted, including the location, collaborators, and
10 number and species of animals involved;

11 (3) the projected cost to taxpayers; and

12 (4) the expected duration of the waiver.

13 **Subtitle B—Food, Agriculture, Con-**
14 **servation, and Trade Act of 1990**

15 **SEC. 7201. BEST UTILIZATION OF BIOLOGICAL APPLICA-**
16 **TIONS.**

17 Section 1624 of the Food, Agriculture, Conservation,
18 and Trade Act of 1990 (7 U.S.C. 5814) is amended in
19 the first sentence by striking “2023” and inserting
20 “2031”.

21 **SEC. 7202. INTEGRATED MANAGEMENT SYSTEMS.**

22 Section 1627(d) of the Food, Agriculture, Conserva-
23 tion, and Trade Act of 1990 (7 U.S.C. 5821(d)) is amend-
24 ed by striking “2023” and inserting “2031”.

1 **SEC. 7203. SUSTAINABLE AGRICULTURE TECHNOLOGY DE-**
2 **VELOPMENT AND TRANSFER PROGRAM.**

3 Section 1628(f)(2) of the Food, Agriculture, Con-
4 servation, and Trade Act of 1990 (7 U.S.C. 5831(f)(2))
5 is amended by striking “2023” and inserting “2031”.

6 **SEC. 7204. NATIONAL TRAINING PROGRAM.**

7 Section 1629(i) of the Food, Agriculture, Conserva-
8 tion, and Trade Act of 1990 (7 U.S.C. 5832(i)) is amend-
9 ed by striking “2023” and inserting “2031”.

10 **SEC. 7205. NATIONAL GENETICS RESOURCES PROGRAM.**

11 Section 1635(b)(2) of the Food, Agriculture, Con-
12 servation, and Trade Act of 1990 (7 U.S.C. 5844(b)(2))
13 is amended by striking “2023” and inserting “2031”.

14 **SEC. 7206. NATIONAL AGRICULTURAL WEATHER INFORMA-**
15 **TION SYSTEM.**

16 Section 1641(c) of the Food, Agriculture, Conserva-
17 tion, and Trade Act of 1990 (7 U.S.C. 5855(c)) is amend-
18 ed by striking “2023” and inserting “2031”.

19 **SEC. 7207. AGRICULTURAL GENOME TO PHENOME INITIA-**
20 **TIVE.**

21 Section 1671(g) of the Food, Agriculture, Conserva-
22 tion, and Trade Act of 1990 (7 U.S.C. 5924(g)) is amend-
23 ed by striking “2023” and inserting “2031”.

1 **SEC. 7208. HIGH-PRIORITY RESEARCH AND EXTENSION INI-**
2 **TIATIVES.**

3 (a) IN GENERAL.—Section 1672(d) of the Food, Ag-
4 riculture, Conservation, and Trade Act of 1990 (7 U.S.C.
5 5925(d)) is amended—

6 (1) by striking paragraph (9) and inserting the
7 following:

8 “(9) COFFEE PLANT HEALTH INITIATIVE.—Re-
9 search and extension grants may be made under this
10 section for the purposes of—

11 “(A) developing and disseminating science-
12 based tools and treatments to combat plant
13 pests and noxious weeds (as those terms are de-
14 fined in section 403 of the Plant Protection Act
15 (7 U.S.C. 7702)) that impact coffee plants;

16 “(B) establishing an areawide integrated
17 pest management program in areas affected by,
18 or areas at risk of being affected by, plant pests
19 or noxious weeds (as so defined) that impact
20 coffee plants;

21 “(C) surveying and collecting data on cof-
22 fee plant production and health;

23 “(D) investigating coffee plant biology, im-
24 munology, ecology, genomics, and
25 bioinformatics; and

26 “(E) conducting research on—

1 “(i) factors that may contribute to or
2 be associated with coffee plant immune
3 systems;

4 “(ii) other serious threats to coffee
5 plants, including the sublethal effects of in-
6 secticides, herbicides, and fungicides on in-
7 sects and plants beneficial to coffee plant
8 growth; and

9 “(iii) the development of mitigating
10 and preventative measures to improve
11 habitat conservation and best management
12 practices in coffee-growing regions.”;

13 (2) by striking paragraph (11) and inserting
14 the following:

15 “(11) MACADAMIA TREE HEALTH INITIATIVE.—
16 Research and extension grants may be made under
17 this section for the purposes of—

18 “(A) developing and disseminating science-
19 based tools and treatments to combat plant
20 pests and noxious weeds (as those terms are de-
21 fined in section 403 of the Plant Protection Act
22 (7 U.S.C. 7702)) that impact macadamia trees;

23 “(B) establishing an areawide integrated
24 pest management program in areas affected by,

1 or areas at risk of being affected by, invasive
2 plant pests or noxious weeds (as so defined);

3 “(C) surveying and collecting data on mac-
4 adamia tree production and health;

5 “(D) investigating macadamia tree biology,
6 immunology, ecology, genomics, and
7 bioinformatics; and

8 “(E) conducting research on various fac-
9 tors that may contribute to or be associated
10 with macadamia tree immune systems, and
11 other serious threats to macadamia trees, in-
12 cluding—

13 “(i) the sublethal effects of insecti-
14 cides, herbicides, and fungicides on bene-
15 ficial insects and plants to macadamia tree
16 growth; and

17 “(ii) the development of mitigative
18 and preventative measures to improve
19 habitat conservation and best management
20 practices in macadamia tree growing re-
21 gions.”;

22 (3) in paragraph (14)—

23 (A) by redesignating subparagraphs (B)
24 through (F) as subparagraphs (C) through (G),
25 respectively; and

1 (B) by inserting after subparagraph (A)
2 the following:

3 “(B) to review the effectiveness of current
4 cattle fever tick eradication efforts in pre-
5 venting and reducing the spread of cattle fever
6 ticks;”; and

7 (4) in paragraph (17), by inserting “and harm-
8 ful algal blooms” after “macro-algae systems”; and

9 (5) by adding at the end the following:

10 “(21) PFAS AGRICULTURAL EFFECTS RE-
11 SEARCH INITIATIVE.—Research and extension grants
12 may be made under this section for the purposes of
13 carrying out research relating to—

14 “(A) the effects of perfluoroalkyl sub-
15 stances and polyfluoroalkyl substances (as those
16 terms are defined in section 7331(2)(B) of the
17 PFAS Act of 2019 (15 U.S.C. 8931(2)(B))) on
18 agricultural land used for the production of
19 crops and livestock, including cropland, grass-
20 land, rangeland, pasture land, cropped wood-
21 land, marshes, environmentally sensitive areas,
22 and other land related to agricultural produc-
23 tion, as determined by the Secretary; and

24 “(B) identifying ways to mitigate the im-
25 pacts of perfluoroalkyl substances and

1 polyfluoroalkyl substances (as so defined) on
2 agricultural land described in subparagraph
3 (A).

4 “(22) PEANUT AFLATOXIN RESEARCH INITIA-
5 TIVE.—Research and extension grants may be made
6 under this section for the purposes of—

7 “(A) pre- and post-harvest improvements
8 in the peanut production, handling, and proc-
9 essing sectors to improve efficiency and manage
10 aflatoxin;

11 “(B) advanced curing systems to minimize
12 moisture variation of individual peanut kernels;
13 and

14 “(C) other efforts that can lead to a reduc-
15 tion in the risk of losses due to mold and poten-
16 tial aflatoxin contamination in storage.

17 “(23) BIOCHAR RESEARCH INITIATIVE.—Re-
18 search and extension grants may be made under this
19 section for the purposes of—

20 “(A) assessing the soil carbon sequestra-
21 tion potential of various biochars and manage-
22 ment systems integrating biochar use;

23 “(B) understanding how to use biochar
24 productively to contribute to climate mitigation,
25 crop production, resilience to extreme weather

1 events, ecosystem and soil health, natural re-
2 source conservation, and farm profitability; and
3 “(C) delivering science-based, region-spe-
4 cific, cost-effective, and practical information to
5 farmers, ranchers, foresters, land reclamation
6 managers, urban land managers, and other land
7 and natural resource managers and businesses
8 on sustainable biochar production and applica-
9 tion.

10 “(24) SPOTTED WING DROSOPHILA INITIA-
11 TIVE.—Research and extension grants may be made
12 and cooperative agreements may be entered into
13 under this section to mitigate the negative effects of
14 spotted wing drosophila.

15 “(25) SPOTTED LANTERNFLY CONTROL INITIA-
16 TIVE.—Research and extension grants may be made
17 under this section for the purposes of developing and
18 disseminating research-based tools and treatments to
19 combat the Spotted Lanternfly (*Lycorma delicatula*).

20 “(26) WHEAT RESILIENCY INITIATIVE.—Re-
21 search and extension grants may be made under this
22 section for the purpose of building capacity to ad-
23 dress underfunded and emerging pest and disease
24 challenges to wheat production throughout the
25 United States.

1 “(27) INVASIVE SPECIES RESEARCH AND EX-
2 TENSION.—Research and extension grants may be
3 made under this section for the purpose of sup-
4 porting research projects at land-grant colleges and
5 universities (as defined in section 1404 of the Na-
6 tional Agricultural Research, Extension, and Teach-
7 ing Policy Act of 1977 (7 U.S.C. 3103)) to develop
8 and apply methods to manage and eradicate invasive
9 species of plants and animals, including through
10 methods of biocontrol.

11 “(28) AGRICULTURAL APPLICATION OF ARTIFI-
12 CIAL INTELLIGENCE RESEARCH AND EXTENSION.—

13 “(A) IN GENERAL.—Research and exten-
14 sion grants may be made under this section for
15 the purpose of developing and evaluating agri-
16 cultural uses of artificial intelligence.

17 “(B) EMPHASIS.—In awarding grants
18 under subparagraph (A), the Secretary may
19 place emphasis on uses of artificial intelligence
20 that improve specialty crop production.

21 “(29) AQUACULTURE RESEARCH AND EXTEN-
22 SION.—Research and extension grants may be made
23 under this section for the purpose of supporting re-
24 search projects at land-grant colleges and univer-
25 sities (as defined in section 1404 of the National Ag-

1 ricultural Research, Extension, and Teaching Policy
2 Act of 1977 (7 U.S.C. 3103)) to develop and apply
3 aquaculture methods, including through the propa-
4 gation and rearing of economically and ecologically
5 valuable aquatic and marine species.

6 “(30) WHITE OAK RESEARCH INITIATIVE.—

7 “(A) IN GENERAL.—Research grants may
8 be made under this section to land-grant col-
9 leges and universities (as defined in section
10 1404 of the National Agricultural Research,
11 Extension, and Teaching Policy Act of 1977 (7
12 U.S.C. 3103)) that have demonstrated scientific
13 expertise relating to white oak, geographic prox-
14 imity to concentrated areas of white oak, and
15 the ability to rapidly engage in technology
16 transfer to industry for the purpose of improv-
17 ing white oak species resiliency, health, and
18 preservation.

19 “(B) PRIORITIES.—In awarding grants
20 under subparagraph (A), the Secretary shall
21 prioritize research relating to—

22 “(i) white oak genes with resistance to
23 disease, pests, heat, and drought in cul-
24 tivated, new, and old growth white oak
25 timber stands;

1 “(ii) white oak trees that exhibit heri-
2 table vigor for the purpose of increasing
3 survival and growth;

4 “(iii) establishing a genetically diverse
5 white oak seed bank capable of responding
6 to stressors;

7 “(iv) providing a sustainable supply of
8 white oak seedlings and genetic resources;

9 “(v) improved methods for aligning
10 seed sources with the future climate at
11 planting sites;

12 “(vi) reforestation of white oak trees
13 through natural and artificial regeneration;

14 “(vii) improved methods for retaining
15 and increasing white oak trees in forests;

16 “(viii) improved methods for refor-
17 esting abandoned mine land sites; and

18 “(ix) economic and social aspects of
19 white oak forest management across land
20 ownerships.

21 “(31) SUNFLOWER BREEDING INITIATIVE.—Re-
22 search and extension grants may be made under this
23 section for the purpose of developing sunflower hy-
24 brids adapted for United States growing regions.

1 “(32) EQUINE HEALTH, SAFETY, AND DISEASE
2 MANAGEMENT.—Research grants may be made
3 under this section for the purposes of enhancing
4 equine health, safety, and disease management, in-
5 cluding research relating to—

6 “(A) health, safety, and regulatory consid-
7 erations for equines;

8 “(B) equine genomics to monitor equine
9 health and identify at-risk equines;

10 “(C) racetrack and surface safety proto-
11 cols;

12 “(D) reproductive health;

13 “(E) epidemiology, molecular diagnostics,
14 and bioinformatics related to equine diseases;
15 and

16 “(F) infectious diseases affecting equines.

17 “(33) GRAZING FOR WILDFIRE MITIGATION INI-
18 TIATIVE.—Research and extension grants may be
19 made under this section at land-grant institutions
20 for the purposes of—

21 “(A) supporting research and development
22 of ungulate grazing land management tech-
23 niques that—

24 “(i) promote wildfire mitigation, fuel
25 reduction, and post-fire recovery on public

1 land and private land, including research
2 and development relating to understanding
3 the economic benefits of, and increasing
4 social support for, such activities;

5 “(ii) are compatible with activities
6 that protect against adverse environmental
7 effects, including the spread of invasive
8 plant species and disease, soil erosion,
9 water quality degradation, and watershed
10 degradation, such as—

11 “(I) rotational grazing;

12 “(II) managed stocking rates;

13 “(III) riparian buffer zones;

14 “(IV) cover crops;

15 “(V) fencing, including virtual
16 fencing;

17 “(VI) manipulation of wild
18 ungulate populations through targeted
19 wildlife management; and

20 “(VII) water point management
21 techniques; and

22 “(iii) improve soil health; and

23 “(B) disseminating information to public
24 and private landowners, land managers, and
25 livestock owners, including through providing

1 educational materials and conducting outreach
2 programs, regarding—

3 “(i) ungulate grazing land manage-
4 ment techniques that promote wildfire
5 mitigation, fuel reduction, and post-fire re-
6 covery; and

7 “(ii) compatible activities described in
8 subparagraph (A).

9 “(34) EMERGING TICK–BORNE LIVESTOCK DIS-
10 EASES.—Research and extension grants may be
11 made under this section for the purposes of improv-
12 ing the prevention, diagnosis, and management of
13 emerging tick–borne diseases in livestock, including
14 anaplasmosis, babesiosis, and bovine theileriosis
15 caused by *Theileria orientalis* Ikeda transmitted by
16 the invasive Asian longhorned tick (*Haemaphysalis*
17 *longicornis*), through—

18 “(A) research to develop and evaluate vac-
19 cines, therapeutics, enhanced surveillance meth-
20 ods, and integrated tick management strategies;
21 and

22 “(B) extension and education activities to
23 support veterinarians, State departments of ag-
24 riculture, and livestock producers in the rec-

1 ognition, testing, and prevention of those dis-
2 eases.”.

3 (b) PULSE CROP HEALTH INITIATIVE.—Section
4 1672(e)(5) of the Food, Agriculture, Conservation, and
5 Trade Act of 1990 (7 U.S.C. 5925(e)(5)) is amended by
6 striking “2023” and inserting “2031”.

7 (c) TRAINING COORDINATION FOR FOOD AND AGRI-
8 CULTURE PROTECTION.—Section 1672(f)(5) of the Food,
9 Agriculture, Conservation, and Trade Act of 1990 (7
10 U.S.C. 5925(f)(5)) is amended by striking “2023” and in-
11 serting “2031”.

12 (d) POLLINATOR PROTECTION.—Section 1672(g) of
13 the Food, Agriculture, Conservation, and Trade Act of
14 1990 (7 U.S.C. 5925(g)) is amended in paragraphs
15 (1)(B), (2)(B), and (3) by striking “2023” each place it
16 appears and inserting “2031”.

17 (e) AUTHORIZATION OF APPROPRIATIONS.—Section
18 1672(h) of the Food, Agriculture, Conservation, and
19 Trade Act of 1990 (7 U.S.C. 5925(h)) is amended by
20 striking “2023” and inserting “2031”.

21 **SEC. 7209. ORGANIC AGRICULTURE RESEARCH AND EXTEN-**
22 **SION INITIATIVE.**

23 Section 1672B of the Food, Agriculture, Conserva-
24 tion, and Trade Act of 1990 (7 U.S.C. 5925b) is amend-
25 ed—

1 (1) in subsection (a), in the matter preceding
2 paragraph (1)—

3 (A) by striking “subsection (e)” and in-
4 serting “subsections (e) and (f)”; and

5 (B) by striking “2023” and inserting
6 “2031”;

7 (2) in subsection (b), by striking “(7 U.S.C.
8 450i)” and inserting “(7 U.S.C. 3157)”; and

9 (3) in subsection (f)(1)(C), by striking “and” at
10 the end.

11 **SEC. 7210. FARM BUSINESS MANAGEMENT.**

12 Section 1672D(d)(2) of the Food, Agriculture, Con-
13 servation, and Trade Act of 1990 (7 U.S.C. 5925f(d)(2))
14 is amended by striking “2023” and inserting “2031”.

15 **SEC. 7211. URBAN, INDOOR, AND OTHER EMERGING AGRI-**
16 **CULTURAL PRODUCTION RESEARCH, EDU-**
17 **CATION, AND EXTENSION INITIATIVE.**

18 (a) IN GENERAL.—Section 1672E of the Food, Agri-
19 culture, Conservation, and Trade Act of 1990 (7 U.S.C.
20 5925g) is amended—

21 (1) in subsection (a)—

22 (A) in paragraph (7), by striking “or” at
23 the end;

24 (B) in paragraph (8), by striking the pe-
25 riod at the end and inserting “; or”; and

1 (C) by adding at the end the following:

2 “(9) managing waste streams of production
3 practices to improve the environmental impact of
4 emerging practices.”; and

5 (2) in subsection (c)(2), by inserting “in rural,
6 suburban, and urban areas” before the period at the
7 end.

8 (b) DATA COLLECTION.—Section 7212(b) of the Ag-
9 riculture Improvement Act of 2018 (Public Law 115–334;
10 132 Stat. 4812) is amended—

11 (1) in paragraph (1), in the matter preceding
12 subparagraph (A)—

13 (A) by striking “the date of enactment of
14 this Act” and inserting “the date on which
15 amounts are appropriated under paragraph (2)
16 for the period of fiscal years 2027 through
17 2031”; and

18 (B) by striking “in the calendar year
19 2017”; and

20 (2) in paragraph (2), by striking “\$14,000,000
21 for the period of fiscal years 2019 through 2021”
22 and inserting “\$18,000,000 for the period of fiscal
23 years 2027 through 2031, to remain available until
24 expended”.

1 **SEC. 7212. CENTERS OF EXCELLENCE AT 1890 INSTITU-**
2 **TIONS.**

3 Section 1673 of the Food, Agriculture, Conservation,
4 and Trade Act of 1990 (7 U.S.C. 5926) is amended—

5 (1) in the section heading, by striking “**EXCEL-**
6 **LENCE.**” and inserting “**EXCELLENCE AT 1890 IN-**
7 **STITUTIONS.**”;

8 (2) by striking subsections (a) through (c);

9 (3) in subsection (d), by striking the subsection
10 designation and heading and all that follows through
11 “The Secretary shall recognize” in paragraph (1)
12 and inserting the following:

13 “(a) RECOGNITION.—The Secretary shall recognize
14 and make awards to”;

15 (4) in subsection (a) (as so designated)—

16 (A) by striking “3” and inserting “6”;

17 (B) by striking “paragraph (2)” and in-
18 serting “subsection (b)”;

19 (C) by redesignating paragraphs (2)
20 through (4) as subsections (b) through (d), re-
21 spectively, and indenting appropriately;

22 (5) in subsection (b) (as so redesignated)—

23 (A) by redesignating subparagraphs (A)
24 through (F) as paragraphs (1) through (6), re-
25 spectively, and indenting appropriately;

1 (B) by striking “paragraph (1)” each place
2 it appears and inserting “subsection (a)”; and
3 (C) by adding at the end the following:

4 “(7) CLIMATE RESILIENCY.—A center of excel-
5 lence established under subsection (a) may focus on
6 climate adaption and mitigation, soil health and car-
7 bon sequestration, nutrient and manure manage-
8 ment, advanced grazing management and crop-live-
9 stock integration, perennial production systems,
10 agroforestry, on-farm and food system energy effi-
11 ciency and renewable energy production, and food
12 waste reduction.

13 “(8) FORESTRY RESILIENCE AND CONSERVA-
14 TION.—A center of excellence established under sub-
15 section (a) may focus on fostering forest conserva-
16 tion, agroforestry, enhancing forest resilience, and
17 urban and community forestry programs to promote
18 biodiversity and environmental health.

19 “(9) FOOD SAFETY, BIOPROCESSING, AND
20 VALUE-ADDED AGRICULTURE.—A center of excel-
21 lence established under subsection (a) may focus on
22 food safety, bioprocessing, value-added agriculture
23 enterprise development, and innovative food and ag-
24 riculture product development.

1 “(10) FOOD AND AGRICULTURAL SCIENCES
2 AND THE SOCIAL SCIENCES.—A center of excellence
3 established under subsection (a) may focus on the
4 integration of the social sciences, including econom-
5 ics, psychology, rural sociology, and other social
6 sciences and data sciences, into the food and agricul-
7 tural sciences to develop comprehensive solutions to
8 issues impacting underserved farmers and commu-
9 nities.”;

10 (6) in subsection (c) (as so redesignated), by
11 striking “\$10,000,000 for each of fiscal years 2019
12 through 2023” and inserting “\$20,000,000 for each
13 of fiscal years 2027 through 2031”; and

14 (7) in subsection (d) (as so redesignated)—

15 (A) by redesignating subparagraphs (A)
16 and (B) as paragraphs (1) and (2), respectively,
17 and indenting appropriately; and

18 (B) in paragraph (1) (as so redesignated),
19 by striking “paragraph (1)” and inserting “sub-
20 section (a)”.

21 **SEC. 7213. ASSISTIVE TECHNOLOGY PROGRAM FOR FARM-**
22 **ERS WITH DISABILITIES.**

23 Section 1680(c)(1)(B) of the Food, Agriculture, Con-
24 servation, and Trade Act of 1990 (7 U.S.C.

1 5933(c)(1)(B)) is amended by striking “2023” and insert-
2 ing “2031”.

3 **SEC. 7214. NATIONAL RURAL INFORMATION CENTER**
4 **CLEARINGHOUSE.**

5 Section 2381(e) of the Food, Agriculture, Conserva-
6 tion, and Trade Act of 1990 (7 U.S.C. 3125b(e)) is
7 amended by striking “2023” and inserting “2031”.

8 **Subtitle C—Agricultural Research,**
9 **Extension, and Education Re-**
10 **form Act of 1998**

11 **SEC. 7301. NATIONAL FOOD SAFETY TRAINING, EDUCATION,**
12 **EXTENSION, OUTREACH, AND TECHNICAL AS-**
13 **SISTANCE PROGRAM.**

14 Section 405(j) of the Agricultural Research, Exten-
15 sion, and Education Reform Act of 1998 (7 U.S.C.
16 7625(j)) is amended by striking “2023” and inserting
17 “2031”.

18 **SEC. 7302. INTEGRATED RESEARCH, EDUCATION, AND EX-**
19 **TENSION COMPETITIVE GRANTS PROGRAM.**

20 Section 406(f) of the Agricultural Research, Exten-
21 sion, and Education Reform Act of 1998 (7 U.S.C.
22 7626(f)) is amended by striking “2023” and inserting
23 “2031”.

1 **SEC. 7303. SUPPORT FOR RESEARCH REGARDING DISEASES**
2 **OF WHEAT, TRITICALE, AND BARLEY CAUSED**
3 **BY FUSARIUM GRAMINEARUM OR BY**
4 **TILLETIA INDICA.**

5 Section 408(e)(3) of the Agricultural Research, Ex-
6 tension, and Education Reform Act of 1998 (7 U.S.C.
7 7628(e)(3)) is amended—

8 (1) in paragraph (2), by striking “and” at the
9 end;

10 (2) in paragraph (3), “2023.” and inserting
11 “2026; and”; and

12 (3) by adding at the end the following:

13 “(4) \$20,000,000 for each of fiscal years 2027
14 through 2031.”.

15 **SEC. 7304. GRANTS FOR YOUTH ORGANIZATIONS.**

16 Section 410(d)(2) of the Agricultural Research, Ex-
17 tension, and Education Reform Act of 1998 (7 U.S.C.
18 7630(d)(2)) is amended by striking “2023” and inserting
19 “2031”.

20 **SEC. 7305. SPECIALTY CROP RESEARCH INITIATIVE.**

21 (a) IN GENERAL.—Section 412 of the Agricultural
22 Research, Extension, and Education Reform Act of 1998
23 (7 U.S.C. 7632) is amended—

24 (1) in subsection (f)(3), by striking “subsection
25 (d) and (j)” and inserting “subsections (d), (j), and
26 (k)”;

1 (2) in subsection (g)—

2 (A) in paragraph (3), by adding at the end
3 the following:

4 “(C) WAIVER.—The Secretary may waive
5 the matching funds requirement under subpara-
6 graph (A).”; and

7 (B) in paragraph (4), by striking “the Ini-
8 tiative” and inserting “this section”;

9 (3) by redesignating subsections (j) and (k) as
10 subsections (k) and (l), respectively;

11 (4) by inserting after subsection (i) the fol-
12 lowing:

13 “(j) SPECIALTY CROP MECHANIZATION AND AUTO-
14 MATION RESEARCH AND DEVELOPMENT PROGRAM.—

15 “(1) ESTABLISHMENT AND PURPOSE.—The
16 Secretary shall establish a competitive research and
17 extension grant program to increase the competitive-
18 ness of specialty crops in the United States through
19 the advancement and acceleration of mechanization
20 and automation, under which the Secretary awards
21 competitive grants to eligible entities—

22 “(A) to create or improve cost-effective
23 mechanization, automation, and other innova-
24 tions and technologies—

1 “(i) to reduce the manual labor re-
2 quirements of a specialty crop grower;

3 “(ii) to improve specialty crop farm-
4 worker safety and health or working condi-
5 tions; or

6 “(iii) to increase the efficiency of spe-
7 cialty crop—

8 “(I) production;

9 “(II) resource management;

10 “(III) harvesting;

11 “(IV) processing;

12 “(V) postharvest technologies; or

13 “(VI) packaging;

14 “(B) to increase the adoption of specialty
15 crop mechanization, automation, and other in-
16 novations and technologies by—

17 “(i) emphasizing adoption drivers,
18 which may include connectivity, autonomy,
19 reliability, durability, in-field validation,
20 and cost-effectiveness; or

21 “(ii) investing in and developing
22 human capital to increase the capacity of
23 the specialty crop sector to work with new
24 technologies; or

1 “(C) to accelerate specialty crop mecha-
2 nization and automation through—

3 “(i) prototype development;

4 “(ii) in-field trial testing;

5 “(iii) ongoing industry engagement; or

6 “(iv) rapid commercialization.

7 “(2) PRIORITY.—In awarding grants under this
8 subsection, the Secretary shall give priority to pro-
9 posals for projects that—

10 “(A) address the training or retraining of
11 farmworkers to operate, repair, program, or
12 otherwise maintain mechanization and automa-
13 tion solutions involved in the project; and

14 “(B) include explicit mechanisms to com-
15 municate the results of the project to producers
16 and the public.

17 “(3) APPLICABILITY.—Subsections (a), (c)
18 through (g), (i), and (l) shall apply to the program
19 established under this subsection.”;

20 (5) in subsection (k) (as so redesignated)—

21 (A) by striking paragraph (5); and

22 (B) by redesignating paragraph (6) as
23 paragraph (5); and

24 (6) in subsection (l) (as so redesignated)—

1 (A) in paragraph (1), by striking subpara-
2 graphs (C) and (D) and inserting the following:

3 “(C) ALLOCATION.—

4 “(i) IN GENERAL.—Of the funds
5 made available under subparagraph (B) for
6 each of fiscal years 2027 through 2031,
7 the Secretary shall allocate \$30,000,000
8 for the specialty crop mechanization and
9 automation research and development pro-
10 gram established under subsection (j).

11 “(ii) REALLOCATION.—Any funds al-
12 located under clause (i) that remain unob-
13 ligated on the date that is 1 year after the
14 last day of the fiscal year in which those
15 funds are first made available shall be re-
16 allocated for the Initiative.”; and

17 (B) in paragraph (2)—

18 (i) in the paragraph heading, by strik-
19 ing “2023” and inserting “2031”; and

20 (ii) by striking “2023” and inserting
21 “2031”.

22 (b) TECHNICAL AND CONFORMING AMENDMENTS.—

23 (1) Section 1408A of the National Agricultural
24 Research, Extension, and Teaching Policy Act of

1 1977 (7 U.S.C. 3123a) (as amended by section
2 7102(a)) is amended—

3 (A) in subsection (a)(2)(A), by striking
4 “(j)(3)” and inserting “(k)(3)”;

5 (B) in subsection (c)(5), by striking “spe-
6 cialty crop research initiative” and inserting
7 “programs”; and

8 (C) in subsection (g), in the matter pre-
9 ceding paragraph (1), by striking “(j)” and in-
10 serting “(k)”.

11 (2) Section 251(f)(1)(D)(x) of the Department
12 of Agriculture Reorganization Act of 1994 (7 U.S.C.
13 6971(f)(1)(D)(x)) is amended by striking “specialty
14 crop research initiative under section 412 of the Ag-
15 ricultural Research, Extension, and Education Re-
16 form Act of 1998” and inserting “programs under
17 section 412 of the Agricultural Research, Extension,
18 and Education Reform Act of 1998 (7 U.S.C.
19 7632)”.

20 (3) Section 12605(c) of the Agriculture Im-
21 provement Act of 2018 (7 U.S.C. 7632 note; Public
22 Law 115–334) is amended—

23 (A) by striking “412(j)” and inserting
24 “412(k)”; and

1 (B) by striking “7632(j))” and inserting
2 “7632(k))”.

3 **SEC. 7306. FOOD ANIMAL RESIDUE AVOIDANCE DATABASE**
4 **PROGRAM.**

5 Section 604(e) of the Agricultural Research, Exten-
6 sion, and Education Reform Act of 1998 (7 U.S.C.
7 7642(e)) is amended by striking “\$2,500,000 for each of
8 fiscal years 2008 through 2023” and inserting
9 “\$5,000,000 for each of fiscal years 2027 through 2031”.

10 **SEC. 7307. FORESTRY PRODUCTS ADVANCED UTILIZATION**
11 **RESEARCH.**

12 Section 617(f)(1) of the Agricultural Research, Ex-
13 tension, and Education Reform Act of 1998 (7 U.S.C.
14 7655b(f)(1)) is amended by striking “2023” and inserting
15 “2031”.

16 **Subtitle D—Food, Conservation,**
17 **and Energy Act of 2008**

18 **PART I—AGRICULTURAL SECURITY**

19 **SEC. 7401. AGRICULTURAL BIOSECURITY COMMUNICATION**
20 **CENTER.**

21 Section 14112(c)(2) of the Food, Conservation, and
22 Energy Act of 2008 (7 U.S.C. 8912(c)(2)) is amended by
23 striking “2023” and inserting “2031”.

1 **SEC. 7402. ASSISTANCE TO BUILD LOCAL CAPACITY IN AG-**
2 **RICULTURAL BIOSECURITY PLANNING, PREP-**
3 **ARATION, AND RESPONSE.**

4 Section 14113 of the Food, Conservation, and En-
5 ergy Act of 2008 (7 U.S.C. 8913) is amended—

6 (1) in subsection (a)(2)(B), by striking “2023”
7 and inserting “2031”; and

8 (2) in subsection (b)(2)(B), by striking “2023”
9 and inserting “2031”.

10 **SEC. 7403. RESEARCH AND DEVELOPMENT OF AGRICUL-**
11 **TURAL COUNTERMEASURES.**

12 Section 14121(b)(2) of the Food, Conservation, and
13 Energy Act of 2008 (7 U.S.C. 8921(b)(2)) is amended by
14 striking “2023” and inserting “2031”.

15 **SEC. 7404. AGRICULTURAL BIOSECURITY GRANT PROGRAM.**

16 Section 14122(e)(2) of the Food, Conservation, and
17 Energy Act of 2008 (7 U.S.C. 8922(e)(2)) is amended by
18 striking “2023” and inserting “2031”.

19 **PART II—MISCELLANEOUS PROVISIONS**

20 **SEC. 7411. GRAZINGLANDS RESEARCH LABORATORY.**

21 Section 7502 of the Food, Conservation, and Energy
22 Act of 2008 (Public Law 110–246; 122 Stat. 2019; 128
23 Stat. 901; 132 Stat. 4817; 138 Stat. 1769; 139 Stat. 627)
24 is amended by striking “, for the period beginning on the
25 date of the enactment of this Act and ending on Sep-
26 tember 30, 2026”.

1 **SEC. 7412. FARM AND RANCH STRESS ASSISTANCE NET-**
2 **WORK.**

3 Section 7522 of the Food, Conservation, and Energy
4 Act of 2008 (7 U.S.C. 5936) is amended—

5 (1) in subsection (b)(1)(A), by inserting “, in-
6 cluding crisis lines” before the semicolon at the end;

7 (2) in subsection (d), by striking “\$10,000,000
8 for each of fiscal years 2019 through 2023” and in-
9 serting “\$15,000,000 for each of fiscal years 2027
10 through 2031”; and

11 (3) by striking subsection (e) and inserting the
12 following:

13 “(e) REFERRALS TO PROVIDERS.—As part of the ef-
14 forts of the recipient of a grant under subsection (a) to
15 connect individuals to behavioral health counseling and
16 wellness support and to ensure individuals have access to
17 a comprehensive scope of mental health and substance use
18 treatments and supports, when applicable, the grant re-
19 cipient may establish referral relationships with—

20 “(1) certified community behavioral health clin-
21 ics described in section 223 of the Protecting Access
22 to Medicare Act of 2014 (42 U.S.C. 1396a note;
23 Public Law 113–93);

24 “(2) health centers (as defined in section
25 330(a) of the Public Health Service Act (42 U.S.C.
26 254b(a)));

1 “(3) rural health clinics (as defined in section
2 1861(aa) of the Social Security Act (42 U.S.C.
3 1395x(aa)));

4 “(4) Federally qualified health centers (as de-
5 fined in that section); and

6 “(5) critical access hospitals (as defined in sec-
7 tion 1861(mm) of the Social Security Act (42
8 U.S.C. 1395x(mm))).”.

9 **SEC. 7413. NATURAL PRODUCTS RESEARCH PROGRAM.**

10 Section 7525(e) of the Food, Conservation, and En-
11 ergy Act of 2008 (7 U.S.C. 5937(e)) is amended by strik-
12 ing “2023” and inserting “2031”.

13 **SEC. 7414. SUN GRANT PROGRAM.**

14 Section 7526 of the Food, Conservation, and Energy
15 Act of 2008 (7 U.S.C. 8114) is amended—

16 (1) in subsection (a)—

17 (A) in paragraph (1), by inserting “and
18 bioproduct” before “technologies”;

19 (B) in paragraph (2), by striking “prod-
20 uct” and inserting “bioproduct”; and

21 (C) in paragraph (3), by striking “prod-
22 uct” and inserting “bioproduct”;

23 (2) in subsection (c)(2), by striking “4 percent”
24 and inserting “30 percent”; and

1 (3) in subsection (g), by striking “2023” and
2 inserting “2031”.

3 **Subtitle E—Other Matters**

4 **SEC. 7501. AGRICULTURAL AND FOOD LAW RESEARCH.**

5 Section 7603 of the Agricultural Act of 2014 (7
6 U.S.C. 3125a–1) is amended—

7 (1) in subsection (a), by inserting “land-grant
8 colleges and universities (as defined in section 1404
9 of the National Agricultural Research, Extension,
10 and Teaching Policy Act of 1977 (7 U.S.C. 3103))
11 or other” after “with”;

12 (2) by redesignating subsection (b) as sub-
13 section (c);

14 (3) by inserting after subsection (a) the fol-
15 lowing:

16 “(b) PROGRAM INCOME.—Notwithstanding any other
17 provision of law, any program income generated by land-
18 grant colleges and universities or institutions of higher
19 education described in subsection (a) from the use of fund-
20 ing provided under that subsection shall be available to
21 those institutions until expended for the purpose of car-
22 rying out objective programs for research, legal tools, and
23 information in agricultural and food law.”; and

1 (4) in subsection (c) (as so redesignated), by
2 striking “\$5,000,000 for fiscal year 2014” and in-
3 serting “\$10,000,000 for fiscal year 2027”.

4 **SEC. 7502. CRITICAL AGRICULTURAL MATERIALS ACT.**

5 Section 16(a)(2) of the Critical Agricultural Mate-
6 rials Act (7 U.S.C. 178n(a)(2)) is amended by striking
7 “2023” and inserting “2031”.

8 **SEC. 7503. EQUITY IN EDUCATIONAL LAND-GRANT STATUS**
9 **ACT OF 1994.**

10 (a) ENDOWMENT FOR 1994 INSTITUTIONS.—Section
11 533(b) of the Equity in Educational Land-Grant Status
12 Act of 1994 (7 U.S.C. 301 note; Public Law 103–382)
13 is amended in the first sentence by striking “2023” and
14 inserting “2031”.

15 (b) APPROPRIATIONS.—Section 534(a)(1) of the Eq-
16 uity in Educational Land-Grant Status Act of 1994 (7
17 U.S.C. 301 note; Public Law 103–382) is amended, in the
18 matter preceding subparagraph (A)—

19 (1) by striking “1996” and inserting “2027”;
20 and

21 (2) by striking “equal to” and inserting “not
22 less than”.

23 (c) INSTITUTIONAL CAPACITY BUILDING GRANTS.—
24 Section 535 of the Equity in Educational Land-Grant Sta-
25 tus Act of 1994 (7 U.S.C. 301 note; Public Law 103–

1 382) is amended by striking “2023” each place it appears
2 in subsections (b)(1) and (c) and inserting “2031”.

3 (d) RESEARCH GRANTS.— Section 536 of the Equity
4 in Educational Land-Grant Status Act of 1994 (7 U.S.C.
5 301 note; Public Law 103–382) is amended—

6 (1) in subsection (a), by inserting “and to ac-
7 quire, alter, repair, maintain, and operate relevant
8 equipment necessary for strengthening the capacity
9 of the 1994 Institution to conduct research in the
10 food and agricultural sciences” before the period at
11 the end;

12 (2) by striking subsection (b);

13 (3) by redesignating subsection (c) as sub-
14 section (b); and

15 (4) in subsection (b) (as so redesignated), in
16 the first sentence, by striking “2023” and inserting
17 “2031”.

18 **SEC. 7504. REPORT ON THE EXTENSION SERVICE NEEDS OF**
19 **TRIBAL LANDS AND POPULATIONS.**

20 (a) STUDY.—Not later than 18 months after the date
21 of enactment of this Act, the Comptroller General of the
22 United States (referred to in this section as the “Comp-
23 troller General”) shall conduct a study of—

1 (1) the extension service needs with respect to
2 Tribal lands and Tribal populations, regardless of
3 the location of those populations;

4 (2) whether the cooperative extension program
5 and the Federally Recognized Tribes Extension Pro-
6 gram established under section 1677 of the Food,
7 Agriculture, Conservation, and Trade Act of 1990 (7
8 U.S.C. 5930) are meeting those needs, including by
9 examining, for the most recent 5 fiscal years—

10 (A) the total amount of Federal funding
11 received in each State for extension services;

12 (B) the types of extension services, includ-
13 ing extension services on agriculture, serving
14 the Tribal population in each State and the
15 amount of funding spent on each type of exten-
16 sion service in the State; and

17 (C) the Tribal population in each State;
18 and

19 (3) how the program established under section
20 1677 of the Food, Agriculture, Conservation, and
21 Trade Act of 1990 (7 U.S.C. 5930) was established
22 when that section was enacted by Congress and the
23 significant changes to the operation and funding of
24 that program since that enactment.

25 (b) REPORT.—

1 (1) IN GENERAL.—Not later than 60 days after
2 the completion of the study under subsection (a), the
3 Comptroller General shall submit a report describing
4 the results of the study to the Committee on Agri-
5 culture, Nutrition, and Forestry of the Senate and
6 the Committee on Agriculture of the House of Rep-
7 resentatives.

8 (2) RECOMMENDATIONS.—If the Comptroller
9 General finds under the study under subsection (a)
10 that the existing cooperative extension program and
11 the Federally Recognized Tribes Extension Program
12 are not meeting the needs described in subsection
13 (a)(1), the report under paragraph (1) shall include
14 such legislative and other recommendations as the
15 Comptroller General determines would result in a
16 system under which those needs are met in an equi-
17 table and effective manner.

18 **SEC. 7505. RESTORATION OF 4-H NAME AND EMBLEM AU-**
19 **THORITY.**

20 (a) DEFINITIONS.—In this section:

21 (1) 4-H CLUB.—

22 (A) IN GENERAL.—The term “4-H club”
23 means a 4-H club recognized under the 4-H
24 Program.

1 (B) INCLUSION.—The term “4-H club” in-
2 cludes an authorized agent of a 4-H club.

3 (2) 4-H EMBLEM OR NAME.—The term “4-H
4 emblem or name” means the 4-H sign or emblem,
5 consisting of a green four-leaf clover with stem and
6 the letter “H” in white or gold on each leaflet, and
7 the words “4-H”, “4-H Club”, and “4-H Clubs”,
8 used to identify and distinguish the 4-H Program
9 and the activities, clubs, members, goods, and serv-
10 ices of the 4-H Program.

11 (3) 4-H PROGRAM.—

12 (A) IN GENERAL.—The term “4-H Pro-
13 gram” means the youth development program
14 of the land-grant colleges or universities, the
15 Cooperative Extension System (as defined by
16 the Secretary), and the Department.

17 (B) INCLUSION.—The term “4-H Pro-
18 gram” includes an authorized agent of the 4-H
19 Program.

20 (4) LAND-GRANT COLLEGE OR UNIVERSITY.—

21 (A) IN GENERAL.—The term “land-grant
22 college or university” means an 1862 Institu-
23 tion, an 1890 Institution, or a 1994 Institution
24 (as those terms are defined in section 2 of the

1 Agricultural Research, Extension, and Edu-
2 cation Reform Act of 1998 (7 U.S.C. 7601)).

3 (B) INCLUSION.—The term “land-grant
4 college or university” includes an authorized
5 agent of a land-grant college or university.

6 (b) EFFECT OF REPEAL; RATIFICATION.—

7 (1) CIVIL ACTS.—Any civil act or action of the
8 4-H Program, a 4-H club, the Secretary, or a land-
9 grant college or university taken with respect to the
10 use of the 4-H emblem or name, or the recognition
11 of any 4-H club, during the period beginning on
12 May 8, 1914, and ending on the date of enactment
13 of this Act, is deemed to be of legal force and effect
14 and ratified as if section 1002(3) of the Clean Up
15 the Code Act of 2019 (title X of division O of Public
16 Law 116–260; 134 Stat. 2155) had not been en-
17 acted into law.

18 (2) EFFECT ON CRIMINAL LAW.—Nothing in
19 this subsection affects the effect on criminal law of
20 the repeal made by section 1002(3) of the Clean Up
21 the Code Act of 2019 (title X of division O of Public
22 Law 116–260; 134 Stat. 2155).

23 (c) AUTHORIZATIONS FOR USE OF 4-H EMBLEM OR
24 NAME; FEES; DEPOSITS.—

25 (1) AUTHORIZATION.—The Secretary may—

1 (A) use the 4-H emblem or name; and

2 (B) grant authorizations to use the 4-H
3 emblem or name, as provided by regulations
4 issued by the Secretary.

5 (2) FEES.—An authorization under paragraph
6 (1) may be granted—

7 (A) without a fee or other consideration; or

8 (B) for a fee or other consideration.

9 (3) USE OF FEES.—The Secretary shall deposit
10 into a special account any fees collected under para-
11 graph (2)(B), the amounts in which shall remain
12 available to the Secretary until expended, without
13 further appropriation, for furthering the 4-H Pro-
14 gram.

15 (d) UNAUTHORIZED USE OF 4-H EMBLEM OR
16 NAME.—

17 (1) PROHIBITION.—Whoever, other than the 4-
18 H Program, a 4-H club, the Department, a land-
19 grant college or university, and those authorized by
20 them, uses in commerce the 4-H emblem or name or
21 any reproduction, counterfeit, copy, or colorable imi-
22 tation of the 4-H emblem or name to indicate mem-
23 bership in an association, organization, or other col-
24 lective group, or in connection with the sale, offering
25 for sale, distribution, or advertising of goods or serv-

1 ices, on or in connection with which that use is likely
2 to cause confusion, to cause mistake, or to deceive
3 as to membership or participation in, an affiliation,
4 connection, or association with, or authorization or
5 approval by, a 4-H club or the 4-H Program, shall
6 be subject to the civil action in paragraph (2).

7 (2) CIVIL ACTION.—The Attorney General on
8 behalf of the Secretary, or contract counsel procured
9 by the Secretary, may bring a civil action in an ap-
10 propriate district court of the United States against
11 whoever engages in any of the prohibited acts de-
12 scribed in paragraph (1) for the remedies provided
13 in the Act of July 5, 1946 (commonly known as the
14 “Trademark Act of 1946” or the “Lanham Act”)
15 (15 U.S.C. 1051 et seq.).

16 (e) SAVINGS CLAUSES.—

17 (1) PRIOR AUTHORIZED USES.—Nothing in this
18 section makes unlawful the use of any emblem,
19 name, sign, symbol, insignia, or words that was law-
20 ful on December 26, 2020.

21 (2) DELEGATION.—Nothing in this section lim-
22 its the authority of the Secretary to delegate author-
23 ity of the Secretary as otherwise authorized by law.

1 **SEC. 7506. AMENDMENTS TO THE HATCH ACT.**

2 (a) **MATCHING FUNDS.**—Section 3(d)(1) of the
3 Hatch Act of 1887 (7 U.S.C. 361c(d)(1)) is amended by
4 striking “agricultural research” and inserting “agricul-
5 tural research, for graduate student tuition and fees,”.

6 (b) **PAYMENT OF ALLOTMENTS TO STATE AGRICUL-**
7 **TURAL EXPERIMENT STATIONS.**—Section 5 of the Hatch
8 Act of 1887 (7 U.S.C. 361e) is amended—

9 (1) in the second sentence, by striking “officer
10 known as a director, and a treasurer or other officer
11 appointed by the government board of the station”
12 and inserting “officer, to be known as a ‘State Agri-
13 cultural Experiment Station Director’, and a treas-
14 urer”; and

15 (2) in the third sentence—

16 (A) by striking “or other officer”; and

17 (B) by striking “director” and inserting
18 “State Agricultural Experiment Station Direc-
19 tor,”.

20 **SEC. 7507. AGRICULTURE AND FOOD RESEARCH INITIA-**
21 **TIVE.**

22 Subsection (b) of the Competitive, Special, and Fa-
23 cilities Research Grant Act (7 U.S.C. 3157(b)) is amend-
24 ed—

25 (1) in paragraph (2)—

1 (A) in subparagraph (A)(iii), by inserting
2 “regionally adapted cultivar and breed develop-
3 ment,” before “selection theory,”;

4 (B) in subparagraph (B)—

5 (i) in clause (i), by inserting “, includ-
6 ing shellfish” before the semicolon; and

7 (ii) in clause (iv), by inserting “re-
8 gionally adapted breed development,” be-
9 fore “selection theory,”;

10 (C) in subparagraph (D)—

11 (i) in clause (vii), by striking “and” at
12 the end;

13 (ii) in clause (viii), by striking the pe-
14 riod at the end and inserting “; and”; and

15 (iii) by adding at the end the fol-
16 lowing:

17 “(ix) biochar.”;

18 (D) in subparagraph (E)—

19 (i) in clause (iv), by striking “and” at
20 the end;

21 (ii) in clause (v), by striking the pe-
22 riod at the end and inserting a semicolon;
23 and

24 (iii) by adding at the end the fol-
25 lowing:

1 “(vi) precision agriculture tech-
2 nologies;

3 “(vii) hydroponics, aquaponics,
4 aeroponics, and other production tech-
5 nologies used in controlled-environment ag-
6 ricultural production; and

7 “(viii) research, development, and im-
8 plementation of artificial intelligence to en-
9 hance precision agriculture, farm manage-
10 ment, crop production, resource manage-
11 ment, cybersecurity, and weather moni-
12 toring.”; and

13 (E) in subparagraph (F)—

14 (i) in clause (vii), by striking “and” at
15 the end;

16 (ii) in clause (viii), by striking the pe-
17 riod at the end and inserting “; and”; and

18 (iii) by adding at the end the fol-
19 lowing:

20 “(ix) workforce training and develop-
21 ment, including meat and poultry proc-
22 essing (including rendering) and precision
23 agriculture.”;

24 (2) in paragraph (6)—

1 (A) by redesignating subparagraphs (E)
2 and (F) as subparagraphs (F) and (G), respec-
3 tively; and

4 (B) by inserting after subparagraph (D)
5 the following:

6 “(E) to a consortium of junior or commu-
7 nity colleges (as defined in section 312 of the
8 Higher Education Act of 1965 (20 U.S.C.
9 1058)) that may partner with land-grant col-
10 leges and universities (as defined in section
11 1404 of the National Agricultural Research,
12 Extension, and Teaching Policy Act of 1977 (7
13 U.S.C. 3103)) to carry out workforce training,
14 education, research, and outreach priorities de-
15 scribed in paragraph (2)(F)(ix).”; and

16 (3) in paragraph (11)(A), in the matter pre-
17 ceding clause (i), by striking “2023” and inserting
18 “2031”.

19 **SEC. 7508. EXTENSION DESIGN AND DEMONSTRATION INI-**
20 **TIATIVE.**

21 Subsection (d)(6) of the Competitive, Special, and
22 Facilities Research Grant Act (7 U.S.C. 3157(d)(6)) is
23 amended by striking “2023” and inserting “2031”.

1 **SEC. 7509. BIOMASS RESEARCH AND DEVELOPMENT.**

2 Section 9008(h)(2) of the Farm Security and Rural
3 Investment Act of 2002 (7 U.S.C. 8108(h)(2)) is amended
4 by striking “2023” and inserting “2031”.

5 **SEC. 7510. RENEWABLE RESOURCES EXTENSION ACT OF**
6 **1978.**

7 (a) AUTHORIZATION OF APPROPRIATIONS.—Section
8 6 of the Renewable Resources Extension Act of 1978 (16
9 U.S.C. 1675) is amended in the first sentence by striking
10 “2023” and inserting “2031”.

11 (b) TERMINATION DATE.—Section 8 of the Renew-
12 able Resources Extension Act of 1978 (16 U.S.C. 1671
13 note; Public Law 95–306) is amended by striking “2023”
14 and inserting “2031”.

15 **SEC. 7511. NATIONAL AQUACULTURE ACT OF 1980.**

16 Section 10 of the National Aquaculture Act of 1980
17 (16 U.S.C. 2809) is amended—

18 (1) by striking “2023” each place it appears
19 and inserting “2031”; and

20 (2) in paragraph (3), by inserting “the” before
21 “Interior”.

22 **SEC. 7512. FEDERAL AGRICULTURE RESEARCH FACILITIES.**

23 Section 1431 of the National Agricultural Research,
24 Extension, and Teaching Policy Act Amendments of 1985
25 (title XIV of Public Law 99–198; 99 Stat. 1556) is

1 amended in the matter preceding paragraph (1) by strik-
2 ing “2023” and inserting “2031”.

3 **SEC. 7513. ENHANCED USE LEASE AUTHORITY PROGRAM.**

4 Section 308(b)(6)(A) of the Federal Crop Insurance
5 Reform and Department of Agriculture Reorganization
6 Act of 1994 (7 U.S.C. 3125a note; Public Law 103–354)
7 is amended by striking “2023” and inserting “2031”.

8 **TITLE VIII—FORESTRY**

9 **Subtitle A—Forest Data**

10 **Modernization**

11 **SEC. 8101. FOREST INVENTORY AND ANALYSIS STRATEGIC**

12 **PLAN.**

13 (a) IN GENERAL.—Section 3(e) of the Forest and
14 Rangeland Renewable Resources Research Act of 1978
15 (16 U.S.C. 1642(e)) is amended—

16 (1) in paragraph (1)—

17 (A) by striking “their resources” and in-
18 serting “the resources of those forests, includ-
19 ing forest carbon,”;

20 (B) by striking “In compliance” and in-
21 serting the following:

22 “(A) IN GENERAL.—In compliance”; and

23 (C) by adding at the end the following:

1 “(B) ADDITIONAL METHODS.—Under the
2 program under this subsection, the Secretary
3 shall carry out, as a data collection method—

4 “(i) a national timber products output
5 survey; and

6 “(ii) a national woodland owner sur-
7 vey.”;

8 (2) in paragraph (3)(C), by inserting “including
9 with respect to available forest carbon data,” after
10 “2 decades,”;

11 (3) in paragraph (4)—

12 (A) in the second sentence, by striking
13 “The standards” and inserting the following:

14 “(B) INCLUSIONS.—The standards de-
15 scribed in subparagraph (A)”;

16 (B) by striking “(4) NATIONAL STAND-
17 ARDS AND DEFINITIONS.—To ensure” and in-
18 serting the following:

19 “(4) NATIONAL CONSISTENCY.—

20 “(A) STANDARDS AND DEFINITIONS.—To
21 ensure”; and

22 (C) by adding at the end the following:

23 “(C) TERMINOLOGY.—The Secretary shall
24 include a clear description of the definition of
25 ‘forest’ used for purposes of reporting data

1 from inventories and analyses of forests and the
2 resources of forests under this subsection
3 with—

4 “(i) any data or report provided under
5 the program under this subsection;

6 “(ii) Renewable Resource Assessments
7 prepared under section 3(a) of the Forest
8 and Rangeland Renewable Resources Plan-
9 ning Act of 1974 (16 U.S.C. 1601(a)); and

10 “(iii) any data or report provided to
11 an entity outside the United States.”;

12 (4) in paragraph (6)—

13 (A) in the matter preceding subparagraph
14 (A), by striking “Not later than 180 days after
15 the date of enactment of this subsection,” and
16 inserting “In accordance with paragraph (7),”;

17 (B) in subparagraph (E), by striking
18 “and” at the end;

19 (C) in subparagraph (F), by striking the
20 period at the end and inserting a semicolon;
21 and

22 (D) by adding at the end the following:

23 “(G) the organization and procedures nec-
24 essary to understand and report on changes in
25 land cover and use; and

1 “(H) the organization and procedures nec-
2 essary to evaluate carbon-related data variables,
3 including soil carbon, collected from forest in-
4 ventory and analysis plots, timber products out-
5 put studies, and national woodland owner sur-
6 veys to ensure that carbon accounting informa-
7 tion needs can be met.”; and

8 (5) by adding at the end the following:

9 “(7) UPDATES TO STRATEGIC PLAN.—

10 “(A) IN GENERAL.—Not later than 90
11 days after the date on which the blue ribbon
12 panel submits the report under subsection
13 (f)(3)(C), the Secretary shall prepare an update
14 to the strategic plan under paragraph (6) to in-
15 clude—

16 “(i) a plan to implement nationally
17 consistent data collection protocols and
18 procedures to improve the statistical preci-
19 sion of base program estimates;

20 “(ii) pathways to integrate and report
21 on status and trends in forest carbon
22 pools, including below-ground carbon;

23 “(iii) plans, including the identifica-
24 tion of challenges, to collaborate with other
25 Federal agencies, non-Federal partners,

1 and the private sector to integrate existing
2 nationally available data sets and best
3 available commercial technologies, such as
4 remote sensing, spatial analysis techniques,
5 and other new technologies;

6 “(iv) a plan to increase transparency
7 and clarity in reporting in accordance with
8 paragraph (4)(C);

9 “(v) a plan to expand current data
10 collection, further integrate remote sensing
11 technology, or both, to include procedures
12 to improve the statistical precision of esti-
13 mates at the sub-State level;

14 “(vi) a plan to expand current data
15 collection, further integrate remote sensing
16 technology, or both, to include information
17 on renewable biomass supplies and carbon
18 stocks at the local, State, regional, and na-
19 tional levels, including by ownership type;
20 and

21 “(vii) such other matters as the Sec-
22 retary determines to be appropriate based
23 on recommendations of the Forest Inven-
24 tory and Analysis National User Group.

1 “(B) SUBMISSION.—Not later than 180
2 days after the date on which the blue ribbon
3 panel submits the report under subsection
4 (f)(3)(C), the Secretary shall submit to the
5 Committee on Agriculture, Nutrition, and For-
6 estry of the Senate and the Committee on Agri-
7 culture of the House of Representatives the up-
8 date to the strategic plan prepared under sub-
9 paragraph (A).

10 “(C) FURTHER UPDATES.—Not later than
11 5 years after the date on which the update is
12 submitted under subparagraph (B), and every 5
13 years thereafter, the Secretary shall—

14 “(i) prepare an additional update to
15 the strategic plan; and

16 “(ii) submit the additional update to
17 the committees described in subparagraph
18 (B).

19 “(8) ACCESSIBILITY.—The Secretary shall en-
20 sure that data collected under this subsection is—

21 “(A) presented in a manner that is easily
22 accessible to the general public and technical
23 experts, including through tools to deliver
24 smaller area estimates; and

1 “(B) collected and made accessible using
2 means that ensure the confidentiality, in ac-
3 cordance with section 1770 of the Food Secu-
4 rity Act of 1985 (7 U.S.C. 2276), of—

5 “(i) plot locations;

6 “(ii) nonaggregated data of woodland
7 owners; and

8 “(iii) nonaggregated data from the
9 timber products output survey carried out
10 under paragraph (1)(B)(i).

11 “(9) BIENNIAL COMPILATIONS.—Biennially, the
12 Secretary shall prepare and make publicly available
13 a compilation of national forest inventory and anal-
14 ysis forest statistics, which shall be similar to the ta-
15 bles contained in the Renewable Resource Assess-
16 ments prepared under section 3(a) of the Forest and
17 Rangeland Renewable Resources Planning Act of
18 1974 (16 U.S.C. 1601(a)) and accompanied by rel-
19 evant geospatial products.

20 “(10) REPORTS.—Each year, the Secretary
21 shall publish as part of the forest inventory and
22 analysis business report a detailed description of the
23 progress of the Secretary in implementing the pro-
24 grammatic elements of the strategic plan described
25 in paragraph (6), including—

1 “(A) the costs and priorities of the stra-
2 tegic plan; and

3 “(B) how the program under this sub-
4 section leverages new technology, improves and
5 standardizes collection protocols, and increases
6 workforce capacity.”.

7 (b) **TECHNICAL AMENDMENT.**—Section 2(c) of the
8 Forest and Rangeland Renewable Resources Research Act
9 of 1978 (16 U.S.C. 1641(c)) is amended by inserting “of
10 Agriculture (referred to in this Act as the ‘Secretary’)”
11 after “the Secretary”.

12 (c) **REMOTE SENSING TECHNOLOGIES.**—Section
13 8632(1) of the Agriculture Improvement Act of 2018 (16
14 U.S.C. 1642 note; Public Law 115–334) is amended by
15 striking “technologies” and inserting “technologies, such
16 as microwave, LiDAR, hyperspectral, and high-resolution
17 remote sensing data, and advanced computing tech-
18 nologies including machine learning and other advanced
19 approaches for improved modeling to provide tabular sta-
20 tistical estimates and geospatial products,”.

21 **SEC. 8102. FOREST INVENTORY AND ANALYSIS PROGRAM**
22 **BLUE RIBBON PANEL.**

23 Section 3 of the Forest and Rangeland Renewable
24 Resources Research Act of 1978 (16 U.S.C. 1642) is
25 amended by adding at the end the following:

1 “(f) FOREST INVENTORY AND ANALYSIS PROGRAM
2 BLUE RIBBON PANEL.—

3 “(1) IN GENERAL.—Not later than 90 days
4 after the date of enactment of this subsection, the
5 Secretary, in consultation with the National Associa-
6 tion of State Foresters, shall convene a blue ribbon
7 panel (referred to in this subsection as the ‘Panel’)
8 to review the forest inventory and analysis program
9 established under this section (referred to in this
10 subsection as the ‘program’).

11 “(2) COMPOSITION.—

12 “(A) NUMBER.—The Panel shall be com-
13 posed of not fewer than 10, and not more than
14 20, members.

15 “(B) MEMBERS.—Members of the Panel
16 shall—

17 “(i) include recognized national lead-
18 ers from across State and Federal agen-
19 cies, universities, industry, and nongovern-
20 mental organizations;

21 “(ii) have knowledge of and expertise
22 in, or be users for purposes of decision
23 making of, forest biometrics, inventory,
24 and remote sensing technology; and

1 “(iii) have no personal financial con-
2 flict of interest in serving on the Panel.

3 “(3) DUTIES.—

4 “(A) REVIEW.—The Panel shall conduct a
5 review of the past progress, current priorities,
6 and future needs of the program with respect to
7 national monitoring of forest carbon, climate
8 change, forest health, and sustainable wood
9 products.

10 “(B) CONSIDERATIONS.—The review under
11 subparagraph (A) shall include consideration
12 of—

13 “(i) the modernization of the pro-
14 gram—

15 “(I) broadly; and

16 “(II) specifically relating to the
17 integration of advanced remote sens-
18 ing technologies and methods such as
19 small area estimation; and

20 “(ii) the possibility of more public-pri-
21 vate-academic partnerships under the pro-
22 gram to help meet the goals of the pro-
23 gram and external needs, particularly re-
24 lating to research priorities, operational

1 implementation of current or ongoing
2 science, and decision support.

3 “(C) REPORT.—Not later than 90 days
4 after the date on which the Panel is convened
5 under paragraph (1), the Panel shall submit to
6 the Secretary, the Secretary of the Interior, and
7 Congress a report describing the review con-
8 ducted under subparagraph (A).

9 “(4) ADMINISTRATIVE MATTERS.—

10 “(A) CHAIRPERSON AND VICE CHAIR-
11 PERSON.—The Panel shall select a Chairperson
12 and Vice Chairperson from among the non-
13 governmental members of the Panel.

14 “(B) COMMITTEES.—The Panel may es-
15 tablish 1 or more committees within the Panel
16 as the Panel determines to be appropriate.

17 “(C) COMPENSATION.—A member of the
18 Panel shall serve without compensation.

19 “(D) ADMINISTRATIVE SUPPORT.—The
20 Secretary shall provide such administrative sup-
21 port as is necessary for the Panel to carry out
22 its duties.

23 “(E) FEDERAL ADVISORY COMMITTEE
24 ACT.—The Panel shall be exempt from chapter
25 10 of title 5, United States Code (commonly re-

1 ferred to as the ‘Federal Advisory Committee
2 Act’).’.

3 **Subtitle B—Forest Health and**
4 **Management**

5 **SEC. 8201. DEFINITIONS.**

6 In this subtitle:

7 (1) NATIONAL FOREST SYSTEM.—The term
8 “National Forest System” has the meaning given
9 the term in section 11(a) of the Forest and Range-
10 land Renewable Resources Planning Act of 1974 (16
11 U.S.C. 1609(a)).

12 (2) PUBLIC LANDS.—The term “public lands”
13 means public lands (as defined in section 103 of the
14 Federal Land Policy and Management Act of 1976
15 (43 U.S.C. 1702)) administered by the Bureau of
16 Land Management.

17 (3) SECRETARY CONCERNED.—The term “Sec-
18 retary concerned” means—

19 (A) the Secretary, with respect to National
20 Forest System land; and

21 (B) the Secretary of the Interior, with re-
22 spect to public lands.

1 **PART I—FOREST SERVICE MANAGEMENT**

2 **SEC. 8211. HAZARDOUS FUEL REDUCTION ON FEDERAL**
3 **LAND.**

4 Section 108 of the Healthy Forests Restoration Act
5 of 2003 (16 U.S.C. 6518) is amended in the matter pre-
6 ceding paragraph (1) by striking “2023” and inserting
7 “2031”.

8 **SEC. 8212. INSECT INFESTATIONS AND RELATED DISEASES.**

9 Section 406 of the Healthy Forests Restoration Act
10 of 2003 (16 U.S.C. 6556) is amended by striking “2023”
11 and inserting “2031”.

12 **SEC. 8213. INSECT AND DISEASE TREATMENT AREAS.**

13 Section 602(d)(2) of the Healthy Forests Restoration
14 Act of 2003 (16 U.S.C. 6591a(d)(2)) is amended by strik-
15 ing “2023” and inserting “2031”.

16 **SEC. 8214. COLLABORATIVE RESTORATION PROJECT.**

17 Section 603(c)(1) of the Healthy Forests Restoration
18 Act of 2003 (16 U.S.C. 6591b(c)(1)) is amended by strik-
19 ing “3000” and inserting “10,000”.

20 **SEC. 8215. WILDFIRE RESILIENCE PROJECT SIZE.**

21 Section 605(c)(1) of the Healthy Forests Restoration
22 Act of 2003 (16 U.S.C. 6591d(c)(1)) is amended by strik-
23 ing “3000 acres” and inserting “10,000 acres”.

1 **SEC. 8216. GREATER SAGE-GROUSE AND MULE DEER HABITAT.**
2 **TAT.**

3 Section 606 of the Healthy Forests Restoration Act
4 of 2003 (16 U.S.C. 6591e) is amended—

5 (1) in subsection (c), by striking “concurrently
6 for both greater sage-grouse and” and inserting “for
7 greater sage-grouse or”; and

8 (2) in subsection (g)(1), by striking “4,500
9 acres” and inserting “7,500 acres”.

10 **SEC. 8217. FUEL BREAKS IN FORESTS AND OTHER**
11 **WILDLAND VEGETATION.**

12 Section 40806(d)(1) of the Infrastructure Investment
13 and Jobs Act (16 U.S.C. 6592b(d)(1)) is amended by
14 striking “3,000 acres” and inserting “10,000 acres”.

15 **SEC. 8218. CATEGORICAL EXCLUSION FOR HIGH-PRIORITY**
16 **HAZARD TREES.**

17 (a) DEFINITIONS.—In this section:

18 (1) HIGH-PRIORITY HAZARD TREE.—The term
19 “high-priority hazard tree” means a standing tree
20 that—

21 (A) presents a visible hazard to people or
22 property due to conditions such as deterioration
23 of, or damage to, the root system, trunk, stem,
24 or limbs of the tree, or the direction or lean of
25 the tree, as determined by the responsible official;
26

1 (B) is determined by the responsible offi-
2 cial to be highly likely to fail and, on failure,
3 would be highly likely to cause injury to people
4 or damage to Federal property; and

5 (C) is located within 300 feet of—

6 (i) a National Forest System road
7 with a maintenance level of 3, 4, or 5;

8 (ii) a National Forest System trail;

9 (iii) a developed recreation site or an
10 administrative facility that is operated and
11 maintained by the Secretary on National
12 Forest System land; or

13 (iv) a project work site.

14 (2) HIGH-PRIORITY HAZARD TREE ACTIVITY.—

15 (A) IN GENERAL.—The term “high-pri-
16 ority hazard tree activity” means a forest man-
17 agement activity that mitigates the risks associ-
18 ated with high-priority hazard trees, including
19 pruning, felling, blasting, cabling, bracing, and
20 disposal of a high-priority hazard tree.

21 (B) EXCLUSIONS.—The term “high-pri-
22 ority hazard tree activity” does not include any
23 activity—

24 (i) conducted in a wilderness area or
25 wilderness study area;

1 (ii) for the construction of a perma-
2 nent road or permanent trail;

3 (iii) conducted on Federal land on
4 which, by Act of Congress or Presidential
5 proclamation, the removal of vegetation is
6 restricted or prohibited;

7 (iv) conducted in an area in which ac-
8 tivities described in subparagraph (A)
9 would be inconsistent with the applicable
10 land and resource management plan; or

11 (v) conducted in an inventoried
12 roadless area.

13 (b) CATEGORICAL EXCLUSION.—

14 (1) IN GENERAL.—High-priority hazard tree
15 activities are a category of actions considered an ac-
16 tion categorically excluded from the requirements of
17 Public Law 91–190 (42 U.S.C. 4321 et seq.).

18 (2) PROJECT SIZE LIMITATION.—A project car-
19 ried out using the categorical exclusion established
20 by paragraph (1) may not exceed 6,000 acres.

21 **SEC. 8219. CATEGORICAL EXCLUSION FOR ELECTRIC UTIL-**
22 **ITY LINES RIGHTS-OF-WAY.**

23 (a) CATEGORICAL EXCLUSION ESTABLISHED.—For-
24 est management activities described in subsection (b) are
25 a category of activities designated as being categorically

1 excluded from the preparation of an environmental assess-
2 ment or an environmental impact statement under section
3 102 of the National Environmental Policy Act of 1969 (42
4 U.S.C. 4332).

5 (b) FOREST MANAGEMENT ACTIVITIES DESIGNATED
6 FOR CATEGORICAL EXCLUSION.—The forest management
7 activities designated as being categorically excluded under
8 subsection (a) are—

9 (1) the development and approval of a vegeta-
10 tion management, facility inspection, and operation
11 and maintenance plan submitted under section
12 512(c)(1) of the Federal Land Policy and Manage-
13 ment Act of 1976 (43 U.S.C. 1772(c)(1)) to the
14 Secretary; and

15 (2) the implementation of routine activities con-
16 ducted under the plan referred to in paragraph (1).

17 (c) AVAILABILITY OF CATEGORICAL EXCLUSION.—
18 On and after the date of enactment of this Act, the Sec-
19 retary may use the categorical exclusion established under
20 subsection (a) in accordance with this section.

21 (d) EXCLUSION OF CERTAIN AREAS.—The categor-
22 ical exclusion established under subsection (a) shall not
23 apply to any forest management activity conducted—

24 (1) in a component of the National Wilderness
25 Preservation System; or

1 (2) on National Forest System land on which,
2 by Act of Congress, the removal of vegetation is re-
3 stricted or prohibited.

4 (e) PERMANENT ROADS.—

5 (1) PROHIBITION ON ESTABLISHMENT.—A for-
6 est management activity designated under subsection
7 (b) shall not include the establishment of a perma-
8 nent road.

9 (2) EXISTING ROADS.—The Secretary may
10 carry out necessary maintenance and repair on an
11 existing permanent road for the purpose of con-
12 ducting a forest management activity designated
13 under subsection (b).

14 (3) TEMPORARY ROADS.—The Secretary shall
15 decommission any temporary road constructed for a
16 forest management activity designated under sub-
17 section (b) not later than 3 years after the date on
18 which the action is completed.

19 (f) APPLICABLE LAW.—A forest management activity
20 designated under subsection (b) shall not be subject to—

21 (1) section 7 of the Endangered Species Act of
22 1973 (16 U.S.C. 1536); or

23 (2) section 306108 of title 54, United States
24 Code.

1 **SEC. 8220. CONSULTATION UNDER CERTAIN LAND AND RE-**
2 **SOURCE MANAGEMENT PLANS AND LAND**
3 **USE PLANS.**

4 (a) **FOREST SERVICE PLANS.**—Section 6(d) of the
5 Forest and Rangeland Renewable Resources Planning Act
6 of 1974 (16 U.S.C. 1604(d)) is amended by striking para-
7 graph (2) and inserting the following:

8 “(2) **NO ADDITIONAL CONSULTATION RE-**
9 **QUIRED UNDER CERTAIN CIRCUMSTANCES.**—Not-
10 withstanding any other provision of law, the Sec-
11 retary shall not be required to reinitiate consultation
12 under section 7(a)(2) of the Endangered Species Act
13 of 1973 (16 U.S.C. 1536(a)(2)) or section 402.16 of
14 title 50, Code of Federal Regulations (or a successor
15 regulation), on a land management plan approved,
16 amended, or revised under this section when—

17 “(A) a new species is listed or critical habi-
18 tat is designated under the Endangered Species
19 Act of 1973 (16 U.S.C. 1531 et seq.); or

20 “(B) new information reveals effects of the
21 land management plan that may affect a spe-
22 cies listed or critical habitat designated under
23 that Act in a manner or to an extent not pre-
24 viously considered.”.

25 (b) **BUREAU OF LAND MANAGEMENT PLANS.**—Sec-
26 tion 202 of the Federal Land Policy and Management Act

1 of 1976 (43 U.S.C. 1712) is amended by adding at the
2 end the following:

3 “(g) NO ADDITIONAL CONSULTATION REQUIRED
4 UNDER CERTAIN CIRCUMSTANCES.—Notwithstanding
5 any other provision of law, the Secretary shall not be re-
6 quired to reinitiate consultation under section 7(a)(2) of
7 the Endangered Species Act of 1973 (16 U.S.C.
8 1536(a)(2)) or section 402.16 of title 50, Code of Federal
9 Regulations (or a successor regulation), on a land use plan
10 approved, amended, or revised under this section when—

11 “(1) a new species is listed or critical habitat
12 is designated under the Endangered Species Act of
13 1973 (16 U.S.C. 1531 et seq.); or

14 “(2) new information reveals effects of the land
15 use plan that may affect a species listed or critical
16 habitat designated under that Act in a manner or to
17 an extent not previously considered.”.

18 **SEC. 8221. FOREST SERVICE PARTICIPATION IN ACES PRO-**
19 **GRAM.**

20 Section 8302 of the Agricultural Act of 2014 (16
21 U.S.C. 3851a) is amended—

22 (1) in the section heading, by striking “**ACES**”
23 and inserting “**EXPERIENCED SERVICES**”;

24 (2) in subsection (a)—

1 (A) by striking “Agriculture Conserva-
2 tion”;

3 (B) by inserting “, professional, or admin-
4 istrative” after “technical”; and

5 (C) by striking “(a) IN GENERAL.—The
6 Secretary” and inserting “The Secretary”; and

7 (3) by striking subsection (b).

8 **SEC. 8222. TIMBER SALES ON NATIONAL FOREST SYSTEM**
9 **LAND.**

10 Section 14(d) of the National Forest Management
11 Act of 1976 (16 U.S.C. 472a(d)) is amended by striking
12 “\$10,000” and inserting “\$55,000”.

13 **PART II—STATE AND PRIVATE PARTNERSHIPS**

14 **SEC. 8231. SUPPORT FOR STATE ASSESSMENTS AND STRAT-**
15 **EGIES FOR FOREST RESOURCES.**

16 Section 2A of the Cooperative Forestry Assistance
17 Act of 1978 (16 U.S.C. 2101a) is amended by striking
18 subsection (f) and inserting the following:

19 “(f) FUNDING.—

20 “(1) AUTHORIZATION OF APPROPRIATIONS.—

21 There is authorized to be appropriated to develop
22 and implement State-wide assessments and State-
23 wide strategies under subsection (a) not more than
24 \$40,000,000 for each of fiscal years 2027 through
25 2031.

1 “(2) ADDITIONAL FUNDING SOURCES.—In ad-
2 dition to funds appropriated for a fiscal year pursu-
3 ant to paragraph (1), the Secretary may use any
4 other funds made available under this Act to develop
5 and implement State-wide assessments and State-
6 wide strategies under subsection (a), except that the
7 total amount of combined funding to develop and
8 implement such State-wide assessments and State-
9 wide strategies may not exceed \$40,000,000 in any
10 fiscal year.”.

11 **SEC. 8232. STATE AND PRIVATE FOREST LANDSCAPE-SCALE**
12 **RESTORATION PROGRAM.**

13 Section 13A(l)(3) of the Cooperative Forestry Assist-
14 ance Act of 1978 (16 U.S.C. 2109a(l)(3)) is amended by
15 striking “2023” and inserting “2031”.

16 **SEC. 8233. PROMOTING CROSS-BOUNDARY WILDFIRE MITI-**
17 **GATION.**

18 Section 103(e)(5) of the Healthy Forests Restoration
19 Act of 2003 (16 U.S.C. 6513(e)(5)) is amended by strik-
20 ing “2023” and inserting “2031”.

21 **SEC. 8234. EXTENSION OF STEWARDSHIP CONTRACTING**
22 **MAXIMUM TERM LIMITS.**

23 Section 604 of the Healthy Forests Restoration Act
24 of 2003 (16 U.S.C. 6591c) is amended—

1 (1) in subsection (b), by inserting “, including
2 retaining and expanding existing forest products in-
3 frastructure necessary to carry out an agreement or
4 contract under this subsection” before the period at
5 the end;

6 (2) in subsection (d)(3)(B), by striking “10
7 years” and inserting “20 years”; and

8 (3) in subsection (h), by adding at the end the
9 following:

10 “(4) SPECIAL RULE FOR LONG-TERM STEWARD-
11 SHIP CONTRACTS.—

12 “(A) DEFINITION OF MULTIYEAR CON-
13 TRACT.—In this paragraph, the term ‘multiyear
14 contract’ means a contract entered into under
15 subsection (b) that—

16 “(i) has a term of longer than 5
17 years; and

18 “(ii) is entered into on or after the
19 date of enactment of this paragraph.

20 “(B) SPECIAL RULE.—A multiyear con-
21 tract entered into under subsection (b) by the
22 Chief or the Director with an entity shall pro-
23 vide that, in the case of cancellation or termi-
24 nation of the multiyear contract by the Chief or
25 the Director, the Chief or the Director, as ap-

1 plicable, shall provide to the entity a cancella-
2 tion or termination payment that is the lesser
3 of—

4 “(i) an amount equal to 10 percent of
5 the multiyear contract; or

6 “(ii) the amount of unrecovered costs
7 that would have been recouped through
8 amortization over the full term of the
9 multiyear contract (including the term can-
10 celed).”.

11 **SEC. 8235. WATER SOURCE PROTECTION PROGRAM.**

12 Section 303 of the Healthy Forests Restoration Act
13 of 2003 (16 U.S.C. 6542) is amended—

14 (1) in subsection (a)—

15 (A) by redesignating paragraphs (1)
16 through (7) as paragraphs (2) through (8), re-
17 spectively;

18 (B) by inserting before paragraph (2) (as
19 so redesignated) the following:

20 “(1) ADJACENT LAND.—The term ‘adjacent
21 land’ means non-Federal land, including State, local,
22 Tribal, and private land, that is adjacent to, and
23 within the same watershed as, National Forest Sys-
24 tem land on which a watershed protection and res-

1 toration project is carried out under this section.”;

2 and

3 (C) in paragraph (2) (as so redesign-
4 nated)—

5 (i) by redesignating subparagraphs
6 (G) and (H) as subparagraphs (K) and
7 (L), respectively; and

8 (ii) by inserting after subparagraph
9 (F) the following:

10 “(G) an acequia association;

11 “(H) a local, regional, or other public enti-
12 ty that manages stormwater or wastewater re-
13 sources or other related water infrastructure;

14 “(I) a land-grant merced;

15 “(J) a local, regional, or other private enti-
16 ty that has water delivery authority;”;

17 (2) in subsection (b)—

18 (A) by inserting “and adjacent land” be-
19 fore the period at the end;

20 (B) by striking “The Secretary” and in-
21 serting the following:

22 “(1) IN GENERAL.—The Secretary”; and

23 (C) by adding at the end the following:

1 “(2) REQUIREMENTS.—A watershed protection
2 and restoration project under the Program shall be
3 designed—

4 “(A) to protect and restore watershed
5 health, water supply and quality, a municipal or
6 agricultural water supply system, and water-re-
7 lated infrastructure;

8 “(B) to protect and restore forest health
9 from insect infestation and disease or wildfire;
10 or

11 “(C) to advance any combination of the
12 purposes described in subparagraphs (A) and
13 (B).

14 “(3) PRIORITIES.—In selecting watershed pro-
15 tection and restoration projects under the Program,
16 the Secretary shall give priority to projects that
17 would—

18 “(A) provide risk management benefits as-
19 sociated with drought, wildfire, post-wildfire
20 conditions, extreme weather events, flooding, re-
21 silience to climate change, and watershed and
22 fire resilience, including minimizing risks to wa-
23 tershed health, water supply and quality, and
24 water-related infrastructure, including munic-
25 ipal and agricultural water supply systems;

1 “(B) support aquatic restoration and con-
2 servation efforts that complement existing or
3 planned forest restoration or wildfire risk re-
4 duction efforts;

5 “(C) provide quantifiable benefits to water
6 supply or quality and include the use of nature-
7 based solutions, such as restoring wetland and
8 riparian ecosystems;

9 “(D) include—

10 “(i) partners with demonstrated ca-
11 pacity to design and implement, and suc-
12 cess in designing and implementing, eco-
13 logical restoration projects, wildfire risk-re-
14 duction efforts, or post-wildfire restoration
15 projects; or

16 “(ii) in the case of communities that
17 have historically lacked access to adequate
18 resources, partners with a strong likelihood
19 of success in designing and implementing a
20 watershed protection and restoration
21 project; and

22 “(E) include—

23 “(i) a contribution of funds or in-kind
24 support from non-Federal partners in an

1 amount greater than the amount required
2 under subsection (g)(2); or

3 “(ii) such other characteristics as the
4 Secretary determines to be appropriate.

5 “(4) CONDITIONS FOR PROJECTS ON ADJACENT
6 LAND.—

7 “(A) IN GENERAL.—No project or activity
8 may be carried out under this section on adja-
9 cent land, unless the owner of the adjacent land
10 provides express support for, and is a willing
11 and engaged partner in, carrying out that
12 project or activity.

13 “(B) EFFECT.—Nothing in this section
14 authorizes any change in—

15 “(i) the ownership of adjacent land on
16 which a project or activity is carried out
17 under this section; or

18 “(ii) the management of adjacent land
19 on which a project or activity is carried out
20 under this section, except during the car-
21 rying out of that project or activity.”;

22 (3) in subsection (c)—

23 (A) in paragraph (1), by striking “agree-
24 ments with” and all that follows through the

1 period at the end and inserting the following:

2 “agreements with end water users—

3 “(A) to protect and restore the condition
4 of National Forest watersheds and adjacent
5 land that provide water to end water users; or

6 “(B) to protect and restore the condition
7 of National Forest watersheds and adjacent
8 land that provide water for the benefit of an-
9 other end water user.”;

10 (B) in paragraph (2)—

11 (i) in subparagraph (C), by striking
12 “or” at the end;

13 (ii) by redesignating subparagraph
14 (D) as subparagraph (E); and

15 (iii) by inserting after subparagraph
16 (C) the following:

17 “(D) in the case of an agreement with a
18 State, a county, or an Indian tribe for a project
19 carried out on National Forest System land—

20 “(i) a good neighbor agreement en-
21 tered into under section 8206 of the Agri-
22 cultural Act of 2014 (16 U.S.C. 2113a); or

23 “(ii) an agreement or contract entered
24 into under the Tribal Forest Protection

1 Act of 2004 (Public Law 108–278; 118
2 Stat. 868); or”; and

3 (C) by adding at the end the following:

4 “(3) COOPERATION WITH NON-FEDERAL PART-
5 NERS.—The Secretary shall cooperate, to the max-
6 imum extent practicable, with non-Federal partners
7 in carrying out assessments, planning, project de-
8 sign, and project implementation under this sec-
9 tion.”;

10 (4) in subsection (d)—

11 (A) by striking paragraph (2) and insert-
12 ing the following:

13 “(2) REQUIREMENTS.—A water source manage-
14 ment plan shall be—

15 “(A) designed to protect and restore eco-
16 logical integrity (as defined in section 219.19 of
17 title 36, Code of Federal Regulations (as in ef-
18 fect on the date of enactment of this subpara-
19 graph));

20 “(B) based on the best available scientific
21 information; and

22 “(C) conducted in a manner consistent
23 with the forest plan applicable to the National
24 Forest System land on which the watershed

1 protection and restoration project is carried
2 out.”; and

3 (B) by adding at the end the following:

4 “(4) REDUCING REDUNDANCY.—An existing
5 watershed plan, such as a watershed restoration ac-
6 tion plan developed under section 304(a)(3), or other
7 applicable watershed planning documents approved
8 by the Secretary may be used as the basis for a
9 water source management plan under this sub-
10 section.”;

11 (5) in subsection (e)(1), by striking “purpose
12 of” in the matter preceding subparagraph (A) and
13 all that follows through the period at the end and
14 inserting “purpose of advancing any of the purposes
15 described in subsection (b)(2).”; and

16 (6) in subsection (g)—

17 (A) in paragraph (2)—

18 (i) by striking “at least equal to” and
19 inserting “not less than 20 percent of”;

20 (ii) by striking “The Secretary” and
21 inserting the following:

22 “(A) IN GENERAL.—Subject to subpara-
23 graph (B), the Secretary”; and

24 (iii) by adding at the end the fol-
25 lowing:

1 “(B) WAIVER.—The Secretary may waive
2 the requirement under subparagraph (A) at the
3 discretion of the Secretary.”;

4 (B) in paragraph (4)—

5 (i) in subparagraph (B), by striking
6 “\$10,000,000 for each of fiscal years 2019
7 through 2023” and inserting “\$30,000,000
8 for each of fiscal years 2027 through
9 2031”;

10 (ii) by redesignating subparagraph
11 (C) as subparagraph (D); and

12 (iii) by inserting after subparagraph
13 (B) the following:

14 “(C) SET-ASIDE FOR PARTNER PARTICIPA-
15 TION IN PLANNING AND CAPACITY.—Of the
16 amounts made available under subparagraphs
17 (A) and (B) to carry out this section for each
18 fiscal year, the Secretary shall use not less than
19 10 percent for non-Federal partner technical
20 assistance participation and capacity-building
21 efforts in developing or implementing a water
22 source management plan under subsection
23 (d).”; and

24 (C) by adding at the end the following:

1 “(5) IN-KIND CONTRIBUTIONS.—The Secretary
2 may include the value of forest restoration and wa-
3 tershed improvement work implemented on adjacent
4 land in the project area in determining in-kind con-
5 tributions to a project from non-Federal partners
6 under paragraph (4)(A).”.

7 **SEC. 8236. WATERSHED CONDITION FRAMEWORK IMPROVE-**
8 **MENTS.**

9 Section 304 of the Healthy Forests Restoration Act
10 of 2003 (16 U.S.C. 6543) is amended—

11 (1) in subsection (a)—

12 (A) in paragraphs (3) and (5), by striking
13 “watershed protection and restoration action
14 plan” each place it appears and inserting “wa-
15 tershed restoration action plan”;

16 (B) in paragraph (5), by striking “and” at
17 the end;

18 (C) in paragraph (6), by striking the pe-
19 riod at the end and inserting “; and”; and

20 (D) by adding at the end the following:

21 “(7) to ensure that management activities and
22 authorizations do not result in long-term degrada-
23 tion of watershed health of any watershed in a Na-
24 tional Forest.”; and

25 (2) by adding at the end the following:

1 “(d) AUTHORIZATION OF APPROPRIATIONS.—There
2 is authorized to be appropriated to carry out this section
3 \$30,000,000 for each of fiscal years 2027 through 2031.”.

4 **SEC. 8237. AUTHORIZATION FOR LEASE OF FOREST SERV-**
5 **ICE SITES.**

6 (a) CONVEYANCE OF FOREST SERVICE ADMINISTRA-
7 TIVE SITES.—Section 503(f) of the Forest Service Facility
8 Realignment and Enhancement Act of 2005 (16 U.S.C.
9 580d note; Public Law 109–54) is amended by striking
10 “2019” and inserting “2031”.

11 (b) AUTHORIZATION FOR LEASE OF FOREST SERV-
12 ICE SITES.—Section 8623(i) of the Agriculture Improve-
13 ment Act of 2018 (16 U.S.C. 580d note; Public Law 115–
14 334) is amended by striking “2028” each place it appears
15 and inserting “2031”.

16 **SEC. 8238. MODIFICATION OF GOOD NEIGHBOR AUTHOR-**
17 **ITY.**

18 (a) GOOD NEIGHBOR AUTHORITY.—Section 8206 of
19 the Agricultural Act of 2014 (16 U.S.C. 2113a) is amend-
20 ed—

21 (1) in subsection (a)—

22 (A) in paragraph (1)(B), by striking “ei-
23 ther the Secretary or a Governor or county”
24 and inserting “the Secretary, a Governor, an
25 Indian tribe, a special district, or a county”;

1 (B) in paragraph (5), by striking “Gov-
2 ernor or” and inserting “Governor, an Indian
3 tribe, a special district, or a”;

4 (C) in paragraph (6), by striking “or In-
5 dian tribe”; and

6 (D) by adding at the end the following:

7 “(11) SPECIAL DISTRICT.—The term ‘special
8 district’ means a political subdivision of a State
9 that—

10 “(A) has significant budgetary autonomy
11 or control;

12 “(B) was established by, or pursuant to,
13 the laws of the State for the purpose of per-
14 forming a limited and specific governmental or
15 proprietary function primarily relating to forest,
16 watershed, or rangeland management or water
17 supply; and

18 “(C) is distinct from any other unit of
19 local government within the State.”; and

20 (2) in subsection (b)—

21 (A) in paragraph (1)(A), by striking “or
22 county” and inserting “, an Indian tribe, a spe-
23 cial district, or a county”;

24 (B) in paragraph (2)(C)—

25 (i) in clause (i)—

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1 (I) in the matter preceding sub-
2 clause (I), by inserting “special dis-
3 trict,” after “Indian Tribe,” each
4 place it appears;

5 (II) in subclause (I)—

6 (aa) by striking “on”; and

7 (bb) by striking “; and” and
8 inserting a semicolon;

9 (III) in subclause (II)—

10 (aa) in the matter preceding
11 item (aa), by striking “clause
12 (i)” and inserting “subclause
13 (I)”; and

14 (bb) in item (bb), by strik-
15 ing “the Good Neighbor Author-
16 ity for Recreation Act.” and in-
17 serting “section 351 of the EX-
18 PLORE Act (16 U.S.C. 8571);”;
19 and

20 (IV) by adding at the end the fol-
21 lowing:

22 “(III) to construct new perma-
23 nent roads on Federal land that are—

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1 “(aa) necessary to imple-
2 ment authorized restoration ac-
3 tivities; and

4 “(bb) approved by the Fed-
5 eral agency through environ-
6 mental analysis or a categorical
7 exclusion decision;

8 “(IV) to complete new permanent
9 road construction to replace and de-
10 commission an existing permanent
11 road that is adversely impacting for-
12 est, rangeland, or watershed health;
13 and

14 “(V) if there are funds remaining
15 after carrying out subclauses (I)
16 through (IV), to carry out authorized
17 restoration services under other good
18 neighbor agreements and for the ad-
19 ministration of a good neighbor au-
20 thority program by a Governor, In-
21 dian tribe, special district, or coun-
22 try.”; and

23 (ii) in clause (ii), by striking “2028”
24 and inserting “2031”;

1 (C) in paragraph (3), by striking “or coun-
2 ty” and inserting “, an Indian tribe, a special
3 district, or a county”; and

4 (D) by striking paragraph (4).

5 (b) TECHNICAL AMENDMENT.—

6 (1) IN GENERAL.—Section 443 of division E of
7 Public Law 118–42 (138 Stat. 297) is amended, in
8 the matter preceding paragraph (1), by striking
9 “Agriculture Act of 2014” and inserting “Agricul-
10 tural Act of 2014”.

11 (2) EFFECTIVE DATE.—The amendment made
12 by paragraph (1) shall take effect on the date of en-
13 actment of Public Law 118–42 (138 Stat. 25).

14 (c) EFFECTIVE DATE.—The amendments made by
15 subsection (a) shall apply to any project initiated pursuant
16 to a good neighbor agreement (as defined in section
17 8206(a) of the Agricultural Act of 2014 (16 U.S.C.
18 2113a(a)))—

19 (1) before the date of enactment of this Act, if
20 the project was initiated after the date of enactment
21 of the Agriculture Improvement Act of 2018 (Public
22 Law 115–334; 132 Stat. 4490); or

23 (2) on or after the date of enactment of this
24 Act.

1 **SEC. 8239. COLLABORATIVE FOREST LANDSCAPE RESTORA-**
2 **TION PROGRAM.**

3 Section 4003 of the Omnibus Public Land Manage-
4 ment Act of 2009 (16 U.S.C. 7303) is amended—

5 (1) in subsection (b)(3)—

6 (A) in subparagraph (D), by striking “spe-
7 cies;” and inserting “species or pathogens;”;

8 (B) in subparagraph (G), by striking
9 “and” at the end;

10 (C) in subparagraph (H), by adding “and”
11 after the semicolon at the end; and

12 (D) by adding at the end the following:

13 “(I) address standardized moni-
14 toring questions and indicators;”;

15 (2) in subsection (c)(3)(A)—

16 (A) in clause (i), by striking “and” at the
17 end;

18 (B) in clause (ii), by adding “and” at the
19 end; and

20 (C) by adding at the end the following:

21 “(iii) include a Federal Government
22 staffing plan for providing support to
23 collaboratives established pursuant to sub-
24 section (b)(2);”;

25 (3) in subsection (d)—

26 (A) in paragraph (2)—

1 (i) in subparagraph (E), by striking
2 “and” at the end;

3 (ii) in subparagraph (F), by striking
4 the period at the end and inserting a semi-
5 colon; and

6 (iii) by adding at the end the fol-
7 lowing:

8 “(G) proposals that seek to use innovative
9 implementation mechanisms, including con-
10 servation finance agreements, good neighbor
11 agreements entered into under section 8206 of
12 the Agricultural Act of 2014 (16 U.S.C.
13 2113a), and similar implementation mecha-
14 nisms;

15 “(H) proposals that seek to reduce the risk
16 of uncharacteristic wildfire or increase ecologi-
17 cal restoration activities—

18 “(i) within areas across land owner-
19 ships, including State, Tribal, and private
20 land; and

21 “(ii) within the wildland-urban inter-
22 face (as defined in section 101 of the
23 Healthy Forests Restoration Act of 2003
24 (16 U.S.C. 6511)); and

1 “(I) proposals that seek to enhance water-
2 shed health and drinking water sources.”; and

3 (B) in paragraph (3)—

4 (i) in subparagraph (A), by striking
5 “10” and inserting “20”; and

6 (ii) in subparagraph (B), by striking
7 “2” and inserting “4”;

8 (4) in subsection (e)(3), by inserting “conflict
9 resolution or collaborative governance,” before “and
10 woody”; and

11 (5) in subsection (f)—

12 (A) in paragraph (4)(B)(ii), by striking
13 “\$4,000,000” and inserting “\$8,000,000”; and

14 (B) in paragraph (6), by striking “2023”
15 and inserting “2031”.

16 **SEC. 8240. JOINT CHIEFS LANDSCAPE RESTORATION PART-**
17 **NERSHIP PROGRAM.**

18 Section 40808 of the Infrastructure Investment and
19 Jobs Act (16 U.S.C. 6592d) is amended—

20 (1) in subsection (a)(2)—

21 (A) in subparagraph (B), by striking “or”
22 at the end;

23 (B) in subparagraph (C), by striking the
24 period at the end and inserting a semicolon;
25 and

1 (C) by adding at the end the following:

2 “(D) to recover from wildfire; or

3 “(E) to enhance soil, water, and related
4 natural resources.”;

5 (2) in subsection (d)(1)—

6 (A) in subparagraph (A), by inserting
7 “and post-wildfire impacts” after “wildfire
8 risk”; and

9 (B) in subparagraph (F), by inserting “,
10 as identified in the corresponding State forest
11 action plan, Tribal-integrated resource manage-
12 ment plan or Tribal forest management plan, or
13 similar priority plan (such as a State wildlife or
14 water plan)” before the semicolon;

15 (3) in subsection (g), by striking paragraph (2)
16 and inserting the following:

17 “(2) ADDITIONAL REPORTS.—For each of fiscal
18 years 2022 and 2023, and not less frequently than
19 once every 2 fiscal years thereafter, the Chiefs shall
20 submit a report describing projects for which fund-
21 ing is provided under the Program, including the
22 status and outcomes of those projects, to—

23 “(A) in the Senate—

24 “(i) the Committee on Agriculture,
25 Nutrition, and Forestry;

1 “(ii) the Committee on Energy and
2 Natural Resources;

3 “(iii) the Committee on Appropria-
4 tions; and

5 “(iv) the Committee on Indian Af-
6 fairs; and

7 “(B) in the House of Representatives—

8 “(i) the Committee on Agriculture;

9 “(ii) the Committee on Natural Re-
10 sources; and

11 “(iii) the Committee on Appropria-
12 tions.”; and

13 (4) in subsection (h)(1), by striking “2022 and
14 2023” and inserting “2027 through 2031”.

15 **PART III—TIMBER INNOVATION**

16 **SEC. 8251. WOOD INNOVATIONS GRANT PROGRAM.**

17 Section 8643 of the Agriculture Improvement Act of
18 2018 (7 U.S.C. 7655d) is amended—

19 (1) in the section heading, by striking “**INNO-**
20 **VATION**” and inserting “**INNOVATIONS**”;

21 (2) in subsection (b)(1), by striking “make a
22 wood innovation grant” and inserting “issue com-
23 petitive or non-competitive grants”;

24 (3) by striking subsection (c) and inserting the
25 following:

1 “(c) TARGETING SUPPORT FOR ECONOMIC DEVEL-
2 OPMENT, ENHANCED BUILDING DESIGN, AND IMPACT
3 ASSESSMENT.—In selecting among proposals of eligible
4 entities under subsection (b)(2), the Secretary may give
5 priority to proposals for projects that—

6 “(1) include the use or retrofitting (or both) of
7 existing sawmill facilities located in counties in
8 which the average annual unemployment rate ex-
9 ceeded the national average unemployment rate by
10 more than 1 percent in the previous calendar year;

11 “(2) recognize or enhance carbon reduction
12 strategies in building design, including forest im-
13 pacts, which can be improved or incentivized by
14 North American procurement; or

15 “(3) report on the connection between the pro-
16 posal and the resilience and economic benefits asso-
17 ciated with wood products from anticipated wood
18 supply areas, including wildfire risk reduction, in-
19 creased fiber flow, forest or mill jobs, and support
20 for forested communities created because of forest
21 management.”; and

22 (4) in subsection (d), by inserting “50 percent
23 of” before “the amount”.

1 **SEC. 8252. COMMUNITY WOOD FACILITIES GRANT PRO-**
2 **GRAM.**

3 Section 9013 of the Farm Security and Rural Invest-
4 ment Act of 2002 (7 U.S.C. 8113) is amended—

5 (1) in the section heading, by striking “**EN-**
6 **ERGY AND WOOD INNOVATION**” and inserting
7 “**FACILITIES GRANT**”;

8 (2) in subsection (a)(4), by striking “Energy
9 and Wood Innovation” and inserting “Facilities
10 Grant”;

11 (3) in subsection (b), by striking “Energy and
12 Wood Innovation” and inserting “Facilities Grant”;

13 (4) in subsection (c)—

14 (A) in paragraph (1), by striking “35” and
15 inserting “50”;

16 (B) by striking paragraph (2); and

17 (C) by redesignating paragraph (3) as
18 paragraph (2);

19 (5) in subsection (d), by striking “exceed—” in
20 the matter preceding paragraph (1) and all that fol-
21 lows through the period at the end of paragraph (2)
22 and inserting “exceed \$5,000,000.”;

23 (6) in subsection (e)—

24 (A) by striking paragraph (1);

1 (B) by redesignating paragraphs (2)
2 through (8) as paragraphs (1) through (7), re-
3 spectively; and

4 (C) in paragraph (1) (as so redesignated),
5 by inserting “or market competitiveness” after
6 “cost effectiveness”;
7 (7) in subsection (f)—

8 (A) by striking paragraph (2);

9 (B) by redesignating paragraphs (3) and
10 (4) as paragraphs (2) and (3), respectively; and

11 (C) in paragraph (2) (as so redesignated),
12 by striking “use or retrofitting (or both) of ex-
13 isting sawmill” and inserting “construction,
14 use, or retrofitting of forest products manufac-
15 turing”;

16 (8) in subsection (g)—

17 (A) in paragraph (1), by striking “5
18 megawatts of thermal energy or combined ther-
19 mal and electric energy” and inserting “40
20 megawatts of thermal energy, combined thermal
21 and electric energy, or electric energy”; and

22 (B) in paragraph (2), by striking “25 per-
23 cent” and inserting “50 percent”; and

24 (9) in subsection (h), by striking “\$25,000,000
25 for each of fiscal years 2019 through 2023” and in-

1 serting “\$50,000,000 for each of fiscal years 2027
2 through 2031”.

3 **SEC. 8253. REPORT ON USE OF MASS TIMBER IN CON-**
4 **STRUCTION OF DEPARTMENT OF AGRI-**
5 **CULTURE FACILITIES AND OTHER FEDERAL**
6 **STRUCTURES.**

7 Not later than 180 days after the date of enactment
8 of this Act, the Secretary shall submit to the Committee
9 on Agriculture of the House of Representatives and the
10 Committee on Agriculture, Nutrition, and Forestry of the
11 Senate a report—

12 (1) describing the projects in which the Depart-
13 ment has used mass timber in the construction of
14 Department facilities;

15 (2) describing the factors considered when de-
16 termining whether to use mass timber in the con-
17 struction of a Department facility; and

18 (3) identifying opportunities for the use of mass
19 timber in the construction of new Department facili-
20 ties and other Federal structures.

21 **Subtitle C—Forest Conservation**

22 **SEC. 8301. SEMIARID AGROFORESTRY RESEARCH CENTER.**

23 Section 1243(d) of the Food, Agriculture, Conserva-
24 tion, and Trade Act of 1990 (16 U.S.C. 1642 note; Public

1 Law 101–624) is amended by striking “2023” and insert-
2 ing “2031”.

3 **SEC. 8302. FOREST SERVICE LEGACY ROAD AND TRAIL RE-**
4 **MEDIATION PROGRAM.**

5 Section 8 of Public Law 88–657 (16 U.S.C. 538a)
6 (commonly known as the “Forest Roads and Trails Act”)
7 is amended—

8 (1) in subsection (c)(2)—

9 (A) by striking subparagraph (B) and in-
10 serting the following:

11 “(B) solicit and consider public input re-
12 gionally in selecting projects for funding under
13 the Program by—

14 “(i) publishing annually for each re-
15 gion the list of projects considered for
16 funding under the Program;

17 “(ii) accepting public comments on
18 the projects listed under clause (i); and

19 “(iii) considering public comments re-
20 ceived under clause (ii) in selecting
21 projects for funding;” and

22 (B) in subparagraph (D)—

23 (i) in the matter preceding clause (i),
24 by inserting “annually for each region,”
25 before “publish”; and

1 (ii) in clause (ii)—

2 (I) by striking “description and
3 the proposed” and inserting the fol-
4 lowing: “description of—

5 “(I) each project considered for
6 funding under the Program;

7 “(II) the public comments re-
8 ceived with respect to each project
9 considered for funding under the Pro-
10 gram;

11 “(III) the ranking in the applica-
12 ble region of each project considered
13 for funding under the Program; and

14 “(IV) the proposed”; and

15 (II) in subclause (IV) (as so des-
16 ignated), by striking “each fiscal” and
17 inserting “the applicable fiscal”; and

18 (2) by adding at the end the following:

19 “(f) DEFINITION OF REGION.—In this section, the
20 term ‘region’ means 1 of the 9 regions of the Forest Serv-
21 ice.”.

22 **Subtitle D—Land Designations**

23 **SEC. 8401. CHESTER COUNTY REVERSIONARY AND MIN-**
24 **ERAL INTERESTS RELEASE.**

25 (a) FINDINGS.—Congress finds that—

1 (1) within the parcel of State forest land lo-
2 cated in Henderson, Chester County, Tennessee, a
3 recent survey by the State determined that Bethel
4 Baptist Church is encroaching on State-owned land
5 in Chickasaw State Forest by approximately 19
6 inches;

7 (2) the parcel described in paragraph (1) was
8 conveyed to the State by the Department, which re-
9 tained a reversionary interest in the land; and

10 (3) it is necessary to release the interests of the
11 United States in and to that land to resolve the en-
12 croachment issue described in paragraph (1).

13 (b) DEFINITIONS.—In this section:

14 (1) STATE.—The term “State” means the State
15 of Tennessee.

16 (2) STATE FOREST LAND.—The term “State
17 forest land” means the approximately 0.62-acre par-
18 cel of land in Chickasaw State Forest that is identi-
19 fied as “State Forest Land” on the map prepared
20 by the Forest Service entitled “State Forest Land
21 Detail Map” and dated December 13, 2019.

22 (c) RELEASE OF REVERSIONARY INTEREST.—

23 (1) RELEASE.—

1 (A) IN GENERAL.—The Secretary shall re-
2 lease, without consideration, the reversionary
3 interest described in paragraph (2).

4 (B) REQUIREMENTS.—Notwithstanding
5 any requirement for a grant of land under sec-
6 tion 32(c) of The Bankhead-Jones Farm Ten-
7 ant Act (7 U.S.C. 1011(c)) or any other provi-
8 sion of law, the release under subparagraph (A)
9 shall occur without any appraisal, other report,
10 or environmental or similar review being under-
11 taken.

12 (2) DESCRIPTION OF REVERSIONARY INTER-
13 EST.—The reversionary interest referred to in para-
14 graph (1)(A) is the reversionary interest of the
15 United States in and to the State forest land that—

16 (A) takes effect if the State forest land
17 ceases to be used for public purposes; and

18 (B) was created by the deed—

19 (i) granting from the United States to
20 the State the State forest land;

21 (ii) dated August 12, 1955; and

22 (iii) registered on pages 588 through
23 591 of book 48 of the record of deeds for
24 Chester County, Tennessee.

1 (3) PAYMENT OF COSTS.—As a condition of the
2 release under paragraph (1), the State shall pay to
3 the United States any administrative costs incurred
4 by the United States in carrying out the release.

5 (d) CONVEYANCE OF MINERAL RIGHTS.—

6 (1) IN GENERAL.—Notwithstanding any re-
7 quirement for the conveyance of Federal mineral in-
8 terests under section 209 of the Federal Land Policy
9 and Management Act of 1976 (43 U.S.C. 1719),
10 part 2720 of title 43, Code of Federal Regulations
11 (or successor regulations), or any other provision of
12 law, the Secretary shall convey to the State, by quit-
13 claim deed, without warranty, and without consider-
14 ation, the mineral interest in the State forest land
15 owned by the United States.

16 (2) REQUIREMENTS.—Notwithstanding any
17 other provision of law, the conveyance under para-
18 graph (1) shall occur—

19 (A) without any exploratory program as to
20 the character of the mineral deposits in the
21 land;

22 (B) without any findings as to known min-
23 eral values and mineral development of the
24 land; and

1 (C) without any appraisal, other report, or
2 environmental or similar review being under-
3 taken by the Secretary.

4 (3) PAYMENT OF COSTS.—As a condition of the
5 conveyance under paragraph (1), the State shall pay
6 to the United States any administrative costs in-
7 curred by the United States in carrying out the con-
8 veyance.

9 **SEC. 8402. ROUGH MOUNTAIN WILDERNESS AND RICH**
10 **HOLE WILDERNESS DESIGNATIONS.**

11 (a) ROUGH MOUNTAIN ADDITION.—Section 1 of
12 Public Law 100–326 (16 U.S.C. 1132 note; 102 Stat.
13 584; 114 Stat. 2057; 123 Stat. 1002) is amended by add-
14 ing at the end the following:

15 “(21) ROUGH MOUNTAIN ADDITION.—Certain
16 land in the George Washington National Forest
17 comprising approximately 1,000 acres, as generally
18 depicted as the ‘Rough Mountain Addition’ on the
19 map entitled ‘GEORGE WASHINGTON NA-
20 TIONAL FOREST—South half—Alternative I—
21 Selected Alternative Management Prescriptions—
22 Land and Resources Management Plan Final Envi-
23 ronmental Impact Statement’ and dated March 4,
24 2014, which is incorporated in the Rough Mountain
25 Wilderness Area designated by paragraph (1).”.

1 (b) RICH HOLE ADDITION.—

2 (1) POTENTIAL WILDERNESS DESIGNATION.—

3 In furtherance of the purposes of the Wilderness Act
4 (16 U.S.C. 1131 et seq.), certain land in the George
5 Washington National Forest comprising approxi-
6 mately 4,600 acres, as generally depicted as the
7 “Rich Hole Addition” on the map entitled
8 “GEORGE WASHINGTON NATIONAL FOR-
9 EST—South half—Alternative I—Selected Alter-
10 native Management Prescriptions—Land and Re-
11 sources Management Plan Final Environmental Im-
12 pact Statement” and dated March 4, 2014, is des-
13 ignated as a potential wilderness area for incorpora-
14 tion in the Rich Hole Wilderness Area designated by
15 section 1(2) of Public Law 100–326 (16 U.S.C.
16 1132 note; 102 Stat. 584).

17 (2) WILDERNESS DESIGNATION.—The potential
18 wilderness area designated by paragraph (1) shall be
19 designated as wilderness and incorporated in the
20 Rich Hole Wilderness Area designated by section
21 1(2) of Public Law 100–326 (16 U.S.C. 1132 note;
22 102 Stat. 584) on the earlier of—

23 (A) the date on which the Secretary pub-
24 lishes in the Federal Register notice that the

1 activities permitted under paragraph (4) have
2 been completed; or

3 (B) the date that is 5 years after the date
4 of enactment of this Act.

5 (3) MANAGEMENT.—Except as provided in
6 paragraph (4), the Secretary shall manage the po-
7 tential wilderness area designated by paragraph (1)
8 in accordance with the Wilderness Act (16 U.S.C.
9 1131 et seq.).

10 (4) WATER QUALITY IMPROVEMENT ACTIVI-
11 TIES.—

12 (A) IN GENERAL.—To enhance natural
13 ecosystems within the potential wilderness area
14 designated by paragraph (1) by implementing
15 certain activities to improve water quality and
16 aquatic passage, as set forth in the Forest
17 Service document entitled “Decision Notice for
18 the Lower Cowpasture Restoration and Man-
19 agement Project” and dated December 2015,
20 the Secretary may use motorized equipment
21 and mechanized transport in the potential wil-
22 derness area until the date on which the poten-
23 tial wilderness area is incorporated into the
24 Rich Hole Wilderness Area under paragraph
25 (2).

1 (B) REQUIREMENT.—In carrying out sub-
2 paragraph (A), the Secretary, to the maximum
3 extent practicable, shall use the minimum tool
4 or administrative practice necessary to carry
5 out that subparagraph with the least amount of
6 adverse impact on wilderness character and re-
7 sources.

8 **SEC. 8403. CONVEYANCE OF SPECIFIED FOREST SERVICE**
9 **PROPERTY TO PERRY COUNTY, ARKANSAS.**

10 (a) REQUIRED CONVEYANCE.—Subject to this sec-
11 tion, if the County submits to the Secretary a written re-
12 quest for conveyance of the property described in sub-
13 section (b) not later than 180 days after the date of enact-
14 ment of this Act, the Secretary shall convey to the County
15 all right, title, and interest of the United States in and
16 to the property described in subsection (b).

17 (b) DESCRIPTION OF PROPERTY.—

18 (1) IN GENERAL.—The property referred to in
19 subsection (a) is the parcel of real property, includ-
20 ing all land and improvements, generally referred to
21 as parcel 850–10555–001 in the urban property
22 records of the County, consisting of approximately
23 0.81 acres of Forest Service land located at 1069
24 Fourche Avenue, Perryville, Arkansas 72126.

1 (2) SURVEY.—The exact acreage and legal de-
2 scription of land to be conveyed under subsection (a)
3 shall be determined by a survey satisfactory to the
4 Secretary.

5 (c) TERMS AND CONDITIONS.—The conveyance
6 under subsection (a) shall be—

- 7 (1) subject to valid existing rights;
8 (2) subject to reversion under subsection (g);
9 (3) made without consideration;
10 (4) made by quitclaim deed; and
11 (5) subject to such other terms and conditions
12 as the Secretary considers to be appropriate to pro-
13 tect the interests of the United States.

14 (d) COSTS OF CONVEYANCE.—As a condition of the
15 conveyance under subsection (a), the County shall pay all
16 costs associated with the conveyance, including the cost
17 of—

- 18 (1) a survey, if necessary, under subsection
19 (b)(2);
20 (2) any environmental analysis or resources
21 survey required under Federal law; and
22 (3) any analysis required to comply with divi-
23 sion A of subtitle III of title 54, United States Code
24 (commonly referred to as the “National Historic
25 Preservation Act”).

1 (e) ENVIRONMENTAL CONDITIONS.—Notwith-
2 standing section 120(h)(3)(A) of the Comprehensive Envi-
3 ronmental Response, Compensation, and Liability Act of
4 1980 (42 U.S.C. 9620(h)(3)(A)), the Secretary shall not
5 be required to provide any covenant or warranty for the
6 property and improvements conveyed to the County under
7 subsection (a).

8 (f) PUBLIC PURPOSES USE.—The property conveyed
9 under subsection (a) shall be used only for public pur-
10 poses, such as supporting education and youth develop-
11 ment.

12 (g) REVERSION.—If the property conveyed under
13 subsection (a) ceases to be used in a manner consistent
14 with subsection (f), the property shall, at the discretion
15 of the Secretary, revert to the United States.

16 (h) DEFINITIONS.—In this section:

17 (1) COUNTY.—The term “County” means Perry
18 County, Arkansas.

19 (2) SECRETARY.—The term “Secretary” means
20 the Secretary, acting through the Chief of the For-
21 est Service.

1 **SEC. 8404. OKHISSA LAKE RURAL ECONOMIC DEVELOP-**
2 **MENT LAND CONVEYANCE.**

3 (a) DEFINITION OF ALLIANCE.—In this section, the
4 term “Alliance” means the Scenic Rivers Development Al-
5 liance, an instrumentality of the State of Mississippi.

6 (b) CONVEYANCE.—Subject to the requirements of
7 this section, not later than 180 days after the completion
8 of the appraisal under subsection (d)(2) and the written
9 agreement under subsection (e)(2), the Secretary shall
10 convey by quitclaim deed to the Alliance all right, title,
11 and interest of the United States in and to the surface
12 estate of the National Forest System land generally de-
13 scribed in subsection (c).

14 (c) LAND TO BE CONVEYED.—

15 (1) IN GENERAL.—The National Forest System
16 land referred to in subsection (b) is—

17 (A) the approximately 137.7 acres of real
18 property located in secs. 5 and 6, T. 5 N., R.
19 4 E., and sec. 31, T. 6 N., R. 4 E., Franklin
20 County, Mississippi, as depicted on the map
21 prepared for the Alliance by Marling Surveying,
22 LLC, entitled “Map of Survey of a 137.70 Acre
23 Tract, a Portion of U.S. Department of Agri-
24 culture Forest Service Homochitto National
25 Forest Tracts H-41g & H-307”, and dated Sep-
26 tember 16, 2024; and

1 (B) the approximately 173 acres of real
2 property located in secs. 5, 6, 7, and 8, T. 5
3 N., R. 4 E., Franklin County, Mississippi, as
4 depicted on the map prepared for the Alliance
5 by Marling Surveying, LLC, entitled “Map of
6 Survey of a +/- 173 Acre Tract, a Portion of
7 U.S. Department of Agriculture Forest Service
8 Homochitto National Forest Tracts H-1, H-3b,
9 H-41g & H-307”, and dated September 16,
10 2024.

11 (2) SURVEY.—The exact acreage and legal de-
12 scription of the National Forest System land to be
13 conveyed under this section shall be determined by
14 a survey satisfactory to the Secretary.

15 (d) CONSIDERATION.—The consideration for the con-
16 veyance of any National Forest System land under this
17 section shall be—

18 (1) provided in the form of cash; and

19 (2) in an amount equal to the fair market value
20 of the National Forest System land being conveyed,
21 as determined by an appraisal conducted in accord-
22 ance with the Uniform Appraisal Standards for Fed-
23 eral Land Acquisitions and approved by the Sec-
24 retary.

1 (e) TERMS AND CONDITIONS.—The conveyance
2 under this section shall be subject to—

3 (1) valid existing rights;

4 (2) a written agreement entered into between
5 the Secretary and the Alliance, under which the Alli-
6 ance—

7 (A) agrees to cover the costs of upkeep and
8 maintenance of the Okhissa Lake Dam, includ-
9 ing the dam, spillway, and related water control
10 facilities; and

11 (B) assumes responsibility and liability for
12 compliance with all Federal and State dam
13 safety laws and regulations;

14 (3) the reservations in the United States of
15 easements for public roads and trails, including—

16 (A) a perpetual, nonexclusive road right-of-
17 way 30 feet in width for ingress and egress over
18 all portions of Forest Service Road 149A within
19 any of the conveyed land; and

20 (B) such road and trail rights-of-way as
21 the Secretary may determine to be necessary or
22 desirable to retain public and administrative ac-
23 cess to Okhissa Lake and appurtenant National
24 Forest System land;

1 (4) the reservation in the United States of all
2 mineral rights, oil and gas rights, and all other sub-
3 surface rights in the conveyed land;

4 (5) a right of re-entry reserving to the Sec-
5 retary the right to retake possession and title to the
6 conveyed land in the event the land is subsequently
7 conveyed to a nonpublic entity or used for purposes
8 other than public recreation and fish and wildlife
9 habitat, subject to the condition that, in the event
10 the Secretary exercises such a right of re-entry, the
11 Alliance shall remain liable for the abatement and
12 clean-up of hazardous substances, oil, and any other
13 contaminants;

14 (6) a restrictive covenant against the subdivi-
15 sion of the conveyed land into residential lots; and

16 (7) such other terms and conditions as the Sec-
17 retary considers to be appropriate to protect the in-
18 terests of the United States.

19 (f) PROCEEDS FROM SALE.—

20 (1) IN GENERAL.—The Secretary shall deposit
21 the proceeds of the conveyance of any National For-
22 est System land under this section in the fund estab-
23 lished under Public Law 90–171 (commonly known
24 as the “Sisk Act”) (16 U.S.C. 484a).

1 (2) USE OF FUNDS.—Amounts deposited under
2 paragraph (1) shall remain available until expended,
3 without further appropriation, for the acquisition of
4 land and interests in land for the National Forest
5 System.

6 (g) COSTS.—As a condition for the conveyance under
7 this section, the Secretary shall require the Alliance to pay
8 at closing any reasonable appraisal, survey, and closing
9 costs.

10 (h) ENVIRONMENTAL LAWS.—The Secretary shall
11 not be required to comply with National Environmental
12 Policy Act of 1969 (42 U.S.C. 4321 et seq.) or any other
13 applicable environmental law in carrying out the convey-
14 ance under this section.

15 (i) HAZARDOUS MATERIALS.—For purposes of the
16 conveyance under this section, the Secretary—

17 (1) shall meet disclosure requirements for haz-
18 ardous substances, pollutants, or contaminants
19 under section 120(h) of the Comprehensive Environ-
20 mental Response, Compensation, and Liability Act
21 of 1980 (42 U.S.C. 9620(h)); and

22 (2) shall not otherwise be required to remediate
23 or abate those hazardous substances, pollutants, or
24 contaminants.

1 **SEC. 8405. LAKE WINNIBIGOSHISH LAND EXCHANGE.**

2 (a) **DEFINITIONS.**—In this section:

3 (1) **BWLT.**—The term “BWLT” means Big
4 Winnie Land and Timber, LLC, a Minnesota Lim-
5 ited Liability Corporation.

6 (2) **MAP.**—The term “Map” means the map en-
7 titled “Heig Land Exchange” and dated December
8 14, 2023.

9 (3) **FEDERAL LAND.**—The term “Federal land”
10 means the approximately 17.5 acres of Federal land
11 in Itasca County, Minnesota, generally depicted as
12 the “Federal Parcel” on the Map.

13 (4) **NON-FEDERAL LAND.**—The term “non-Fed-
14 eral land” means the approximately 36.7 acres of
15 non-Federal land in Itasca County, Minnesota, gen-
16 erally depicted as the “Non-Federal Parcel” on the
17 Map.

18 (5) **SECRETARY.**—The term “Secretary” means
19 the Secretary, acting through the Chief of the For-
20 est Service.

21 (b) **EXCHANGE AUTHORIZED.**—Subject to the provi-
22 sions of this section, if BWLT offers to convey the non-
23 Federal land to the United States, the Secretary shall, not
24 later than 1 year after the date on which such offer is
25 made—

26 (1) accept the offer;

1 (2) convey to BWLT all right, title, and inter-
2 est of the United States in and to the Federal land,
3 excepting and reserving an easement for road access
4 to National Forest System land west of the Federal
5 Parcel; and

6 (3) accept from BWLT all right, title, and in-
7 terest of BWLT in and to the non-Federal land.

8 (c) REQUIREMENTS.—The exchange under sub-
9 section (b) shall be—

10 (1) conditioned on title approval for the non-
11 Federal land by the Secretary in accordance with
12 subsection (f);

13 (2) conditioned on a cash equalization payment
14 made by BWLT to the United States in accordance
15 with subsection (d) if, under the appraisals con-
16 ducted in accordance with this section, it is deter-
17 mined that the value of the Federal land exceeds the
18 value of the non-Federal land;

19 (3) conditioned on the satisfactory completion
20 of a Phase I Environmental Site Assessment by
21 BWLT, provided to the Secretary, in advance of the
22 acceptance of the non-Federal parcel;

23 (4) subject to valid existing rights; and

24 (5) subject to any other terms and conditions
25 the Secretary determines appropriate.

1 (d) EQUAL VALUE AND CASH EQUALIZATION.—

2 (1) IN GENERAL.—Except as provided in para-
3 graph (2), the exchange under subsection (b) shall
4 be for equal value or the values shall be equalized
5 by a cash payment.

6 (2) EXCEPTION.—Notwithstanding any other
7 provision of law, if the appraised value of the non-
8 Federal land to be conveyed to the United States ex-
9 ceeds the appraised value of the Federal land, a cash
10 equalization payment by the United States to
11 BWLT is hereby waived and the amount of such
12 waived payment shall be considered a donation by
13 BWLT to the United States for all purposes of law.

14 (e) APPRAISALS.—

15 (1) IN GENERAL.—The value of the land to be
16 exchanged under this section shall be determined by
17 appraisals conducted by an independent and quali-
18 fied appraiser mutually agreed to by the Secretary
19 and BWLT.

20 (2) APPRAISAL STANDARDS.—The Secretary
21 shall complete appraisals of the land to be ex-
22 changed under this section in accordance with—

23 (A) the Uniform Appraisal Standards for
24 Federal Land Acquisitions; and

1 (B) the Uniform Standards of Professional
2 Appraisal Practice.

3 (f) FORMAT.—Title to the non-Federal land to be
4 conveyed to the United States under this Act shall be
5 found sufficient by the Secretary pursuant to section 3111
6 of title 40, United States Code.

7 (g) MANAGEMENT OF ACQUIRED LAND.—The non-
8 Federal land acquired by the United States under sub-
9 section (b) shall be—

10 (1) added to, and managed as part of, the
11 Chippewa National Forest; and

12 (2) managed in accordance with the laws, rules,
13 and regulations pertaining to National Forest Sys-
14 tem lands.

15 (h) MAP AND LEGAL DESCRIPTIONS.—

16 (1) IN GENERAL.—As soon as practicable after
17 the date of enactment of this Act, the Secretary
18 shall finalize the Map and legal descriptions of all
19 land to be conveyed under this section.

20 (2) CONTROLLING DOCUMENT.—In the case of
21 a discrepancy between the Map and a legal descrip-
22 tion, the Map shall control.

23 (3) CORRECTIONS.—The Secretary and BWLT,
24 by mutual agreement, may correct any minor errors
25 in the Map or in the legal descriptions, including

1 with respect to the boundaries of the Federal land
2 and the non-Federal land.

3 (4) MAP ON FILE.—The Map and legal descrip-
4 tions shall be on file and available for public inspec-
5 tion in appropriate offices of the Forest Service.

6 (i) CLOSING COSTS.—As a condition for the exchange
7 under subsection (b), BWLT shall pay all closing costs
8 associated with the exchange, including for—

9 (1) title insurance and title search;

10 (2) any applicable inspection fees, escrow fees,
11 attorneys fees, and recording fees; and

12 (3) any environmental analysis or resource sur-
13 vey required under Federal law, regulation, or pol-
14 icy, including a Phase I Environmental Site Assess-
15 ment of the non-Federal land.

16 (j) SURVEY.—

17 (1) IN GENERAL.—The exact acreages and legal
18 descriptions of the Federal and non-Federal land to
19 be exchanged under subsection (b) shall be deter-
20 mined by surveys satisfactory to the Secretary.

21 (2) COSTS OF SURVEY.—BWLT shall bear all
22 costs associated with the surveys under paragraph
23 (1).

1 **SEC. 8406. RELEASE OF REVERSIONARY INTEREST, BLACK**
2 **RIVER STATE FOREST, WISCONSIN.**

3 (a) DEFINITIONS.—In this section:

4 (1) DELI, INC.—The term “Deli, Inc.” means
5 Deli, Inc., a sphagnum moss production business lo-
6 cated in Millston, Wisconsin.

7 (2) DELI LAND.—The term “Deli land” means
8 the approximately 37.27 acres of land owned or
9 optioned to acquire, subject to the approval of the
10 land exchange by the Wisconsin Department of Nat-
11 ural Resources, the Wisconsin Natural Resources
12 Board, and the Governor of the State, in 2 separate
13 parcels, by Deli, Inc., located in Millston, Wisconsin,
14 as depicted on the map and more particularly de-
15 scribed as follows:

16 (A) The approximately 31.3-acre parcel
17 (including land within the road right-of-way),
18 together with any improvements—

19 (i) comprising the NE¹/₄NE¹/₄ of sec.
20 29, T. 20 N., R. 2 W., Town of Millston,
21 Jackson County, Wisconsin;

22 (ii) excluding—

23 (I) land lying north of the rail-
24 road right-of-way; and

25 (II) a parcel 150 feet wide, with
26 50 feet lying to the northeast, and

1 100 feet to the southwest, of a line
2 commencing at a point 5 feet east of
3 the northwest corner of the quarter-
4 quarter section described in clause (i),
5 thence south 56° E. 39' a distance of
6 222 feet, thence south 57° E. 31' a
7 distance of 1359 feet; and

8 (iii) subject to—

9 (I) any public water use or ease-
10 ments on Lee Lake; and

11 (II) any easements or restrictions
12 of record, public roadways, zoning and
13 use ordinances, and the railroad right-
14 of-way.

15 (B) The approximately 5.97-acre parcel lo-
16 cated in the SW $\frac{1}{4}$ SW $\frac{1}{4}$ of sec. 20, T. 20 N.,
17 R. 4 W., Town of Millston, Jackson County,
18 Wisconsin, comprising lot 7 of Certified Survey
19 Map No. 4483, as recorded in volume 19S of
20 the certified survey maps, page 334, as Docu-
21 ment No. 413440 in the Jackson County Reg-
22 ister of Deeds.

23 (3) MAP.—The term “map” means the map en-
24 titled “Black River State Forest – Deli, Inc.” and
25 dated June 26, 2023.

1 (4) STATE.—The term “State” means the State
2 of Wisconsin.

3 (5) STATE FOREST LAND.—The term “State
4 forest land” means the approximately 31.83 acres of
5 land located in the Black River State Forest in
6 Millston, Wisconsin, as depicted on the map and
7 more particularly described as follows:

8 (A) The 23.13-acre parcel—

9 (i) comprising the portion of the
10 E $\frac{1}{2}$ SE $\frac{1}{4}$ of sec. 20, T. 20 N., R. 2. W.,
11 Town of Millston, Jackson County, Wis-
12 consin, lying south of the Interstate 94
13 southern right-of-way; and

14 (ii) excluding a triangular parcel in
15 the southwest corner described as com-
16 mencing at the southwest corner, thence
17 east 260 feet, thence northwesterly to a
18 point on the west boundary thereof 200
19 feet north of the southwest corner, thence
20 south to the place of beginning.

21 (B) The 8.70-acre parcel comprising the
22 portion of the NE $\frac{1}{4}$ NE $\frac{1}{4}$ of sec. 29, T. 20 N.,
23 R. 2. W., Town of Millston, Jackson County,
24 Wisconsin, lying north of the railroad right-of-
25 way, forming a triangular piece, and more par-

1 ticularly described as commencing at the north-
2 east corner of that quarter-quarter section,
3 thence west 1010 feet to the north line of the
4 railroad right-of-way, thence southeasterly
5 along the boundary of the railroad to the east
6 line of that quarter-quarter section, thence
7 north on the east line 750 feet to the place of
8 beginning.

9 (b) CONDITIONAL RELEASE.—

10 (1) FINDINGS.—Congress finds that—

11 (A) the State forest land is subject to a re-
12 versionary interest of the United States pursu-
13 ant to section 32(c) of The Bankhead-Jones
14 Farm Tenant Act (7 U.S.C. 1011(c)), requiring
15 that the State forest land be used for public
16 purposes in perpetuity; and

17 (B) the State and Deli, Inc. have agreed
18 that—

19 (i) the State will convey to Deli, Inc.
20 the State forest land in exchange for the
21 Deli land; and

22 (ii) after that exchange, the Deli land
23 will be added to Black River State Forest
24 in the State.

1 (2) RELEASE.—If the State offers, in a written
2 agreement, to convey to Deli, Inc., the State forest
3 land in exchange for the conveyance of the Deli land
4 by Deli, Inc. to the State—

5 (A) the reversionary interest of the United
6 States in the State forest land shall be released;
7 and

8 (B) the Secretary shall provide, as expedi-
9 tiously as practicable, recordable evidence of the
10 release under subparagraph (A) in the form of
11 a quitclaim deed, which shall—

12 (i) convey any interest of the United
13 States in and to the State forest land,
14 without consideration; and

15 (ii) be provided to the State for re-
16 cording before the exchange deeds are re-
17 corded.

18 (3) CORRECTIONS.—The Secretary, in consulta-
19 tion with the State, may make any necessary correc-
20 tions to the legal description of the State forest land
21 for purposes of the quitclaim deed described in para-
22 graph (2)(B).

23 **SEC. 8407. SHAWNEE NATIONAL FOREST CONSERVATION.**

24 (a) DEFINITIONS.—In this section:

1 (1) DESIGNATED NATURAL AREA.—The term
2 “designated natural area” means an area deter-
3 mined to be of exceptional ecological, botanical, geo-
4 logic, scenic, or archeological value by the Secretary.

5 (2) DESIGNATED RESEARCH NATURAL AREA.—
6 The term “designated research natural area” means
7 an area that has been selected by the Secretary, and
8 is managed by the Forest Service, for scientific re-
9 search value.

10 (3) MAP.—The term “Map” means the map
11 prepared and submitted by the Secretary under sub-
12 section (b)(5)(A).

13 (4) SECRETARY.—The term “Secretary” means
14 the Secretary, acting through the Chief of the For-
15 est Service.

16 (5) SPECIAL MANAGEMENT AREA.—The term
17 “Special Management Area” means a Special Man-
18 agement Area established by subsection (c)(1).

19 (b) CAMP HUTCHINS WILDERNESS.—

20 (1) ADDITION TO THE NATIONAL WILDERNESS
21 PRESERVATION SYSTEM.—In accordance with the
22 Wilderness Act (16 U.S.C. 1131 et seq.), certain
23 land in the Shawnee National Forest in the State of
24 Illinois managed by the Forest Service, comprising
25 approximately 750 acres and generally depicted as

1 “Camp Hutchins Wilderness Area—Proposed” on
2 the map prepared by the Environmental Law and
3 Policy Center entitled “Camp Hutchins Wilderness
4 Area and Special Management Area” and dated No-
5 vember 23, 2023, is designated as wilderness and as
6 a component of the National Wilderness Preserva-
7 tion System, and shall be known as the “Camp
8 Hutchins Wilderness”.

9 (2) MANAGEMENT.—Subject to valid existing
10 rights, the Camp Hutchins Wilderness shall be ad-
11 ministered by the Secretary in accordance with the
12 Wilderness Act (16 U.S.C. 1131 et seq.), except that
13 any reference in that Act to the effective date shall
14 be considered to be a reference to the date of enact-
15 ment of this Act.

16 (3) HIKING TRAIL.—National Forest System
17 Road 211 shall be closed to public vehicular traffic
18 and may be maintained as a hiking trail, including
19 the eastern extension of Forest Road 211 formerly
20 known as the “Hutchins Creek Spur” up to the area
21 known as “Hutchins Creek Corridor”, as generally
22 depicted on the Map.

23 (4) WITHDRAWAL.—Subject to valid existing
24 rights, all Federal land within the Camp Hutchins
25 Wilderness, including any land or interest in land

1 that is acquired by the United States within the
2 Camp Hutchins Wilderness after the date of enact-
3 ment of this Act, is withdrawn from—

4 (A) entry, appropriation, or disposal under
5 public land law;

6 (B) location, entry, and patent under min-
7 ing law; and

8 (C) operation of mineral leasing, mineral
9 materials, and geothermal leasing law.

10 (5) MAP AND LEGAL DESCRIPTION.—

11 (A) IN GENERAL.—As soon as practicable
12 after the date of enactment of this Act, the Sec-
13 retary shall file a map and legal description of
14 the Camp Hutchins Wilderness with—

15 (i) the Committee on Agriculture, Nu-
16 trition, and Forestry of the Senate; and

17 (ii) the Committee on Agriculture of
18 the House of Representatives.

19 (B) EFFECT.—The Map and legal descrip-
20 tion filed under subparagraph (A) shall have
21 the same force and effect as if included in this
22 Act, except that the Secretary may correct cler-
23 ical and typographical errors on the Map and in
24 the legal description.

1 (C) AVAILABILITY.—The Map and legal
2 description filed under subparagraph (A) shall
3 be on file and available for public inspection in
4 the appropriate office of the Secretary and on
5 the website of the Forest Service.

6 (c) ESTABLISHMENT OF SPECIAL MANAGEMENT
7 AREAS.—

8 (1) ESTABLISHMENT.—Subject to valid existing
9 rights, the following Special Management Areas
10 within the Shawnee National Forest in the State of
11 Illinois are established:

12 (A) CAMP HUTCHINS SPECIAL MANAGE-
13 MENT AREA.—Certain Federal land managed by
14 the Forest Service, comprising approximately
15 2,953 acres and generally depicted as “Camp
16 Hutchins Special Management Area—Pro-
17 posed” on the map prepared by the Environ-
18 mental Law and Policy Center entitled “Camp
19 Hutchins Wilderness Area and Special Manage-
20 ment Area” and dated November 23, 2023,
21 which shall be known as the “Camp Hutchins
22 Special Management Area”.

23 (B) RIPPLE HOLLOW SPECIAL MANAGE-
24 MENT AREA.—Certain Federal land managed by
25 the Forest Service, comprising approximately

1 3,445 acres and generally depicted as “Ripple
2 Hollow Special Management Area—Proposed”
3 on the map prepared by the Environmental
4 Law and Policy Center entitled “Ripple Hollow
5 Special Management Area” and dated Novem-
6 ber 23, 2023, which shall be known as the
7 “Ripple Hollow Special Management Area”.

8 (C) BURKE BRANCH SPECIAL MANAGE-
9 MENT AREA.—Certain Federal land managed by
10 the Forest Service, comprising approximately
11 6,310 acres and generally depicted as “Burke
12 Branch Special Management Area—Proposed”,
13 on the map prepared by the Environmental
14 Law and Policy Center entitled “Burke Branch
15 Special Management Area” and dated Novem-
16 ber 23, 2023, which shall be known as the
17 “Burke Branch Special Management Area”.

18 (2) PURPOSES.—The purposes of the Special
19 Management Areas are—

20 (A) to conserve, protect, and enhance the
21 ecological, scenic, wildlife, recreational, cultural,
22 historic, educational, and scientific resources of
23 the Special Management Areas for the benefit
24 and enjoyment of present and future genera-
25 tions;

1 (B) to promote biodiversity and control
2 invasive species;

3 (C) to allow for the continuation of res-
4 toration efforts and scientific study of the des-
5 ignated natural areas and designated research
6 natural areas within the Special Management
7 Areas; and

8 (D) to allow for public use and enjoyment
9 of the Special Management Areas.

10 (d) ADMINISTRATION OF SPECIAL MANAGEMENT
11 AREAS.—

12 (1) IN GENERAL.—The Secretary shall admin-
13 ister the Special Management Areas—

14 (A) in a manner that conserves, protects,
15 and enhances the purposes for which the Spe-
16 cial Management Areas are established; and

17 (B) in accordance with—

18 (i) this subsection; and

19 (ii) other applicable law.

20 (2) MANAGEMENT PLAN.—Not later than 3
21 years after the date of enactment of this Act, the
22 Secretary shall develop a management plan for the
23 long-term protection and management of the Special
24 Management Areas.

25 (3) USES.—

1 (A) IN GENERAL.—The Secretary shall
2 allow only uses of the Special Management
3 Areas that are consistent with the purposes for
4 which the Special Management Areas are estab-
5 lished.

6 (B) PRESCRIBED FIRE.—The Secretary
7 may use prescribed fire to sustain the ecological
8 structure and composition of the Special Man-
9 agement Areas, to sustain the biodiversity of
10 the Special Management Areas, and to mitigate
11 the risk of wildfire in the Special Management
12 Areas or nearby areas.

13 (C) MANAGEMENT TOOLS.—

14 (i) IN GENERAL.—The Secretary may
15 use herbicides, insecticides, and mecha-
16 nized equipment, including chainsaws,
17 drones, unmanned aerial systems, aircraft,
18 pickup trucks, all-terrain vehicles, and rub-
19 ber-tired and tracked vehicles, to control
20 fire, insects, disease, and invasive species
21 in managing the Special Management
22 Areas approved by the Secretary.

23 (ii) REQUIREMENT.—In managing the
24 Special Management Areas, the Secretary

1 shall use the best available technology and
2 science.

3 (D) MOTOR VEHICLES.—Except in cases in
4 which motor vehicles are needed for administra-
5 tive purposes, emergency response, or access on
6 established roads accessing trailheads,
7 inholdings, cemeteries, or campgrounds, or are
8 essential to provide off-road access for eco-
9 system management of habitat, the use of
10 motor vehicles, including over-snow vehicles, in
11 the Special Management Areas shall be prohib-
12 ited.

13 (E) ROADS.—The Secretary shall decom-
14 mission as soon as practicable any National
15 Forest System roads within the Special Man-
16 agement Areas that are not needed for manage-
17 ment or access to trailheads, cemeteries, and
18 inholdings.

19 (F) TIMBER.—

20 (i) IN GENERAL.—Commercial timber
21 harvesting in the Special Management
22 Areas, except as needed for fire, insect,
23 and disease control, and for visitor and ad-
24 ministrative safety, shall be prohibited.

1 (ii) ACTIVITIES PERMITTED.—

2 Thinning of trees and other vegetation in
3 the Special Management Areas is per-
4 mitted for restoration of the designated
5 natural areas and designated research nat-
6 ural areas and to further the management
7 objectives described in this section.

8 (G) INHOLDINGS.—

9 (i) IN GENERAL.—Access to private
10 inholdings in the Special Management
11 Areas shall be preserved.

12 (ii) ACQUISITIONS.—The Secretary
13 shall acquire any private inholdings in the
14 Special Management Areas by purchase or
15 exchange from willing sellers as soon as
16 practicable.

17 (H) HUNTING AND TRAPPING.—

18 (i) HUNTING.—Hunting shall be per-
19 mitted in the Special Management Areas
20 as permitted by the State of Illinois and in
21 accordance with regulations of the State of
22 Illinois and regulations and orders issued
23 by the Forest Service.

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1 (ii) TRAPPING.—Trapping shall not be
2 permitted in the Special Management
3 Areas.

4 (iii) ACCESS BY MOTOR VEHICLES.—
5 Motor vehicle access by hunters within the
6 Special Management Areas, including over-
7 snow vehicles, shall be prohibited.

8 (I) VOLUNTEER RESTORATION AND RE-
9 SEARCH.—

10 (i) VOLUNTEERS.—The Secretary
11 shall allow volunteers of cooperators and
12 individual Forest Service volunteers to par-
13 ticipate in ecological restoration activities
14 under the guidance of Forest Service eco-
15 logists and botanists within the Special Man-
16 agement Areas through cooperative agree-
17 ments.

18 (ii) ACCESS FOR RESEARCH PUR-
19 POSES.—The Secretary shall allow access
20 to the Special Management Areas for sci-
21 entific research by individuals and organi-
22 zations that the Secretary determines to be
23 qualified for that purpose.

24 (J) ONGOING MANAGEMENT DECISIONS.—
25 The Supervisor of the Shawnee National Forest

1 shall have the authority, without requiring the
2 permission of the Secretary, to make manage-
3 ment decisions concerning any designated nat-
4 ural area or designated research natural area
5 within the Special Management Areas pursuant
6 to the land management plan for the Shawnee
7 National Forest.

8 (4) WITHDRAWAL.—Subject to valid existing
9 rights, all Federal land within the Special Manage-
10 ment Areas, including any land or interest in land
11 that is acquired by the United States within the
12 Special Management Areas after the date of enact-
13 ment of this Act, is withdrawn from—

14 (A) entry, appropriation, or disposal under
15 public land law;

16 (B) location, entry, and patent under min-
17 ing law; and

18 (C) operation of mineral leasing, mineral
19 materials, and geothermal leasing law.

20 (5) MAPS AND LEGAL DESCRIPTIONS.—

21 (A) IN GENERAL.—As soon as practicable
22 after the date of enactment of this Act, the Sec-
23 retary shall file a map and legal descriptions of
24 the Special Management Areas with—

1 (i) the Committee on Energy and
2 Natural Resources of the Senate; and

3 (ii) the Committee on Natural Re-
4 sources of the House of Representatives.

5 (B) EFFECT.—The map and legal descrip-
6 tions filed under subparagraph (A) shall have
7 the same force and effect as if included in this
8 Act, except that the Secretary may correct cler-
9 ical and typographical errors on the map and in
10 the legal descriptions.

11 (C) AVAILABILITY.—The map and legal
12 descriptions filed under subparagraph (A) shall
13 be on file and available for public inspection in
14 the appropriate office of the Secretary and on
15 the website of the Forest Service.

16 (6) PUBLIC INFORMATION.—Annually, the Sec-
17 retary shall make publicly available on the website of
18 the Shawnee National Forest a description of the
19 progress in achieving the management objectives de-
20 scribed in this section.

21 **SEC. 8408. SHENANDOAH MOUNTAIN.**

22 (a) DEFINITIONS.—In this section:

23 (1) NATIONAL SCENIC AREA.—

24 (A) IN GENERAL.—The term “National
25 Scenic Area” means the Shenandoah Mountain

1 National Scenic Area established by subsection
2 (b)(1).

3 (B) INCLUSIONS.—The term “National
4 Scenic Area” includes—

5 (i) any National Forest System land
6 within the boundary of the National Scenic
7 Area that is administered as part of the
8 National Scenic Area; and

9 (ii) any National Forest System land
10 within the boundary of the National Scenic
11 Area that is administered as a component
12 of the National Wilderness Preservation
13 System under the amendments made by
14 subsection (c).

15 (2) SECRETARY.—The term “Secretary” means
16 the Secretary, acting through the Chief of the For-
17 est Service.

18 (3) STATE.—The term “State” means the State
19 of Virginia.

20 (4) WILDERNESS AREA.—The term “Wilderness
21 Area” means a wilderness area designated by para-
22 graphs (22) through (26) of section 1 of Public Law
23 100–326 (16 U.S.C. 1132 note; 102 Stat. 584; 114
24 Stat. 2057; 123 Stat. 1002) (as added by subsection
25 (c)).

1 (b) ESTABLISHMENT OF THE SHENANDOAH MOUN-
2 TAIN NATIONAL SCENIC AREA.—

3 (1) ESTABLISHMENT.—Subject to valid existing
4 rights, there is established the Shenandoah Moun-
5 tain National Scenic Area, consisting of approxi-
6 mately 92,562 acres of National Forest System land
7 in the George Washington and Jefferson National
8 Forests, as generally depicted on the map filed
9 under subsection (d)(1)(A).

10 (2) PURPOSES.—The purposes of the National
11 Scenic Area are—

12 (A) to ensure the protection and preserva-
13 tion of the scenic quality, water quality, natural
14 characteristics, and water resources of the Na-
15 tional Scenic Area;

16 (B) to protect wildlife, fish, and plant
17 habitat in the National Scenic Area;

18 (C) to protect outstanding natural biologi-
19 cal values and habitat for plant and animal spe-
20 cies along the Shenandoah Mountain crest
21 above 3,000 feet above sea level elevation, in-
22 cluding the Cow Knob salamander;

23 (D) to protect forests in the National Sce-
24 nic Area that may develop characteristics of
25 old-growth forests;

1 (E) to protect the Wilderness Areas; and

2 (F) to provide for a variety of, and im-
3 prove existing, recreation settings and opportu-
4 nities in the National Scenic Area in a manner
5 consistent with the purposes of the National
6 Scenic Area described in subparagraphs (A)
7 through (E).

8 (3) ADMINISTRATION.—

9 (A) IN GENERAL.—Except as provided in
10 subparagraph (B), the Secretary shall admin-
11 ister the National Scenic Area in accordance
12 with—

13 (i) this subsection; and

14 (ii) the laws (including regulations)
15 generally applicable to the National Forest
16 System.

17 (B) EXCEPTION.—Subject to valid existing
18 rights, the Secretary shall administer the Wil-
19 derness Areas in accordance with the Wilder-
20 ness Act (16 U.S.C. 1131 et seq.) and any
21 other laws applicable to the Wilderness Areas,
22 except that any reference in that Act to the ef-
23 fective date of that Act shall be considered to
24 be a reference to the date of enactment of this

1 Act for purposes of administering the Wilder-
2 ness Areas.

3 (C) EFFECT; CONFLICTS.—

4 (i) EFFECT.—The establishment of
5 the National Scenic Area shall not affect
6 the administration of the Wilderness
7 Areas.

8 (ii) CONFLICTS.—In the case of any
9 conflict between the laws applicable to the
10 Wilderness Areas, the Wilderness Act (16
11 U.S.C. 1131 et seq.) shall control.

12 (D) NO BUFFER ZONES.—

13 (i) IN GENERAL.—Nothing in this
14 subsection creates a protective perimeter or
15 buffer zone around the National Scenic
16 Area or a Wilderness Area.

17 (ii) ACTIVITIES OUTSIDE NATIONAL
18 SCENIC AREA OR WILDERNESS AREAS.—
19 The fact that an activity or use on land
20 outside the National Scenic Area or a Wil-
21 derness Area can be seen or heard by hu-
22 mans within the National Scenic Area or
23 Wilderness Area shall not preclude the ac-
24 tivity or use outside the boundaries of the
25 National Scenic Area or Wilderness Area.

1 (4) RECREATIONAL USES.—

2 (A) IN GENERAL.—Except as otherwise
3 provided in this subsection or under applicable
4 law, the Secretary shall authorize the continu-
5 ation of, or seek to improve, authorized rec-
6 reational uses of the National Scenic Area in
7 existence on the date of enactment of this Act.

8 (B) EFFECT.—Nothing in this subsection
9 interferes with the authority of the Secretary—

10 (i) to maintain or improve non-
11 motorized trails and recreation sites within
12 the National Scenic Area;

13 (ii) to construct new nonmotorized
14 trails and recreation sites within the Na-
15 tional Scenic Area;

16 (iii) to adjust recreational uses within
17 the National Scenic Area for reasons of
18 sound resource management or public safe-
19 ty; and

20 (iv) to evaluate applications for, and
21 issue or deny, special use authorizations in
22 connection with recreation within the Na-
23 tional Scenic Area.

24 (C) REQUIREMENT.—Recreation within the
25 National Scenic Area shall be conducted in a

1 manner consistent with the purposes of the Na-
2 tional Scenic Area described in paragraph (2).

3 (5) NATIONAL FOREST SYSTEM TRAIL PLAN.—

4 (A) IN GENERAL.—Not later than 2 years
5 after the date of enactment of this Act, the Sec-
6 retary shall develop a National Forest System
7 trail plan for National Forest System land in
8 the National Scenic Area that is not located in
9 a Wilderness Area in order to construct, main-
10 tain, and improve nonmotorized recreation Na-
11 tional Forest System trails in a manner con-
12 sistent with the purposes of the National Scenic
13 Area described in paragraph (2).

14 (B) POTENTIAL INCLUSION.—The Sec-
15 retary may address in the National Forest Sys-
16 tem trail plan developed under subparagraph
17 (A) National Forest System land that is near,
18 but not within the boundary of, the National
19 Scenic Area.

20 (C) PUBLIC INPUT.—In developing the Na-
21 tional Forest System trail plan under subpara-
22 graph (A), the Secretary shall seek input from
23 interested parties, including members of the
24 public.

1 (D) REQUIREMENTS.—The National For-
2 est System trail plan developed under subpara-
3 graph (A) shall—

4 (i) promote sustainable trail manage-
5 ment that protects natural resources and
6 provides diverse, high-quality recreation
7 opportunities, which may include loop
8 trails for nonmotorized uses;

9 (ii) consider natural resource protec-
10 tion, trail sustainability, and trail mainte-
11 nance needs as primary factors in deter-
12 mining the location or relocation of Na-
13 tional Forest System trails; and

14 (iii) develop a National Forest System
15 trail outside the Little River Wilderness
16 Area in the area of the Tillman Road cor-
17 ridor (along National Forest System road
18 101) to connect the Wolf Ridge Trail park-
19 ing area to the Wild Oak National Recre-
20 ation Trail, as generally depicted on the
21 applicable map filed under subsection
22 (d)(1)(B), pending completion of the re-
23 quired environmental analysis.

24 (E) IMPLEMENTATION REPORT.—Not later
25 than 2 years after the date of enactment of this

1 Act, the Secretary shall submit to Congress a
2 report that describes the implementation of the
3 National Forest System trail plan developed
4 under subparagraph (A), including the identi-
5 fication of the National Forest System trail de-
6 scribed in subparagraph (D)(iii) and any other
7 priority National Forest System trails identified
8 for development.

9 (6) ROADS.—

10 (A) IN GENERAL.—The establishment of
11 the National Scenic Area shall not—

12 (i) result in the closure of any Na-
13 tional Forest System roads, as generally
14 depicted on the map filed under subsection
15 (d)(1)(A); or

16 (ii) modify public access within the
17 National Scenic Area.

18 (B) NO NEW ROADS.—No new roads shall
19 be constructed in the National Scenic Area
20 after the date of enactment of this Act.

21 (C) EFFECT.—Nothing in this sub-
22 section—

23 (i) denies any owner of private land or
24 an interest in private land that is located

1 within the National Scenic Area the right
2 to access the private land;

3 (ii) alters the authority of the Sec-
4 retary to open or close roads in the Na-
5 tional Scenic Area in existence on the date
6 of enactment of this Act in furtherance of
7 the purposes of this Act; or

8 (iii) alters the authority of the
9 State—

10 (I) to maintain the access road to
11 the crest of Shenandoah Mountain
12 (Route 924); or

13 (II) to realign the access road de-
14 scribed in subclause (I) if necessary
15 for reasons of sound resource manage-
16 ment or public safety.

17 (D) PARKING AREAS.—

18 (i) IN GENERAL.—Subject to clause
19 (ii), the reconstruction, minor relocation,
20 and construction of parking areas and re-
21 lated facilities within the National Scenic
22 Area are authorized in a manner consistent
23 with the purposes of the National Scenic
24 Area described in paragraph (2).

1 (ii) LIMITATION.—Additional trail-
2 head parking areas authorized in the Na-
3 tional Scenic Area under clause (i) may be
4 constructed only along National Forest
5 System roads.

6 (7) MOTORIZED TRAVEL.—Motorized travel
7 shall be allowed only on roads within the portions of
8 the National Scenic Area that are not Wilderness
9 Areas, in a manner consistent with paragraph (6).

10 (8) WATER.—The Secretary shall administer
11 the National Scenic Area in a manner that main-
12 tains and enhances water quality.

13 (9) WATER IMPOUNDMENTS.—The establish-
14 ment of the National Scenic Area shall not pro-
15 hibit—

16 (A) the operation, maintenance, or im-
17 provement of, or access to, dams, reservoirs, or
18 related infrastructure in existence on the date
19 of enactment of this Act, as generally depicted
20 on the map filed under subsection (d)(1)(A); or

21 (B) the establishment of new dams, res-
22 ervoirs, or related infrastructure if necessary
23 for municipal use.

24 (10) TIMBER HARVEST.—

1 (A) IN GENERAL.—Except as provided in
2 subparagraph (B), no harvesting of timber shall
3 be allowed within the National Scenic Area.

4 (B) EXCEPTIONS.—

5 (i) NECESSARY HARVESTING.—The
6 Secretary may authorize harvesting of tim-
7 ber in the National Scenic Area if the Sec-
8 retary determines that the harvesting is
9 necessary—

10 (I) to control fire;

11 (II) to provide for public safety
12 or trail access;

13 (III) to construct or maintain
14 overlooks and vistas; or

15 (IV) to control insect or disease
16 outbreaks.

17 (ii) FIREWOOD FOR PERSONAL USE.—
18 Firewood may be harvested for personal
19 use along roads within the National Scenic
20 Area, subject to any conditions that the
21 Secretary may require.

22 (11) INSECT AND DISEASE OUTBREAKS.—

23 (A) IN GENERAL.—Subject to subpara-
24 graph (B), the Secretary may carry out activi-
25 ties necessary to control insect and disease out-

1 breaks in a manner consistent with the pur-
2 poses of the National Scenic Area described in
3 paragraph (2)—

- 4 (i) to maintain scenic quality;
5 (ii) to reduce hazards to visitors; or
6 (iii) to protect National Forest Sys-
7 tem land or private land.

8 (B) LIMITATIONS.—For purposes of activi-
9 ties carried out under subparagraph (A)—

10 (i) native forest insect and disease
11 outbreaks shall be controlled only—

12 (I) to prevent unacceptable dam-
13 age to resources on adjacent land; or

14 (II) to protect threatened, endan-
15 gered, sensitive, or locally rare spe-
16 cies, with biological control methods
17 being favored; and

18 (ii) nonnative insects and diseases
19 may be eradicated or suppressed only in
20 order to prevent a loss of a special biologi-
21 cal community.

22 (12) VEGETATION MANAGEMENT.—The Sec-
23 retary may engage in vegetation management prac-
24 tices within the National Scenic Area in a manner

1 consistent with the purposes of the National Scenic
2 Area described in paragraph (2)—

3 (A) to maintain wildlife clearings and sce-
4 nic enhancements in existence on the date of
5 enactment of this Act; or

6 (B) to construct not more than 100 acres
7 of additional wildlife clearings by—

8 (i) expanding wildlife clearings in ex-
9 istence on the date of enactment of this
10 Act; or

11 (ii) constructing new wildlife clearings
12 of approximately 2 to 5 acres.

13 (13) WILDFIRE SUPPRESSION.—

14 (A) IN GENERAL.—Nothing in this sub-
15 section prohibits the Secretary, in cooperation
16 with other Federal, State, and local agencies, as
17 appropriate, from carrying out wildfire suppres-
18 sion activities within the National Scenic Area.

19 (B) REQUIREMENTS.—Wildfire suppres-
20 sion activities within the National Scenic Area
21 shall be carried out—

22 (i) in a manner consistent with the
23 purposes of the National Scenic Area de-
24 scribed in paragraph (2); and

1 (ii) using such means as the Secretary
2 determines to be appropriate.

3 (14) PRESCRIBED FIRE.—Nothing in this sub-
4 section prohibits the Secretary from conducting pre-
5 scribed burns and necessary burn unit preparation
6 within the National Scenic Area in a manner con-
7 sistent with the purposes of the National Scenic
8 Area described in paragraph (2).

9 (15) WITHDRAWAL.—

10 (A) IN GENERAL.—Subject to valid exist-
11 ing rights, all Federal land within the National
12 Scenic Area is withdrawn from—

13 (i) entry, appropriation, or disposal
14 under the public land laws;

15 (ii) location, entry, and patent under
16 the mining laws;

17 (iii) operation of the mineral leasing
18 and geothermal leasing laws;

19 (iv) wind, solar, or other renewable
20 energy development; and

21 (v) designation of new utility cor-
22 ridors, utility rights-of-way, or communica-
23 tions sites.

24 (B) EFFECT.—Consistent with paragraph
25 (6)(C)(i), the withdrawal under subparagraph

1 (A) shall not deny access to private land or an
2 interest in private land within the National Sce-
3 nic Area.

4 (16) MANAGEMENT PLAN.—

5 (A) IN GENERAL.—As soon as practicable
6 after the date of the completion of the National
7 Forest System trail plan under paragraph (5),
8 but not later than 2 years after the date of en-
9 actment of this Act, the Secretary shall develop
10 as an amendment to the land management plan
11 for the George Washington and Jefferson Na-
12 tional Forests a management plan for the Na-
13 tional Scenic Area that is consistent with this
14 subsection.

15 (B) EFFECT.—Nothing in this paragraph
16 requires the Secretary to revise the land man-
17 agement plan for the George Washington and
18 Jefferson National Forests under section 6 of
19 the Forest and Rangeland Renewable Resources
20 Planning Act of 1974 (16 U.S.C. 1604).

21 (c) DESIGNATION OF WILDERNESS AREAS.—Section
22 1 of Public Law 100–326 (16 U.S.C. 1132 note; 102 Stat.
23 584; 114 Stat. 2057; 123 Stat. 1002) (as amended by sec-
24 tion 8402(a)) is amended by adding at the end the fol-
25 lowing:

1 “(22) SKIDMORE FORK WILDERNESS.—Certain
2 National Forest System land in the George Wash-
3 ington and Jefferson National Forests comprising
4 approximately 5,088 acres, as generally depicted on
5 the applicable map filed under section 8408(d)(1)(B)
6 of the Agricultural Act of 2026, which shall be
7 known as the ‘Skidmore Fork Wilderness’.

8 “(23) RAMSEYS DRAFT WILDERNESS ADDI-
9 TION.—Certain National Forest System land in the
10 George Washington and Jefferson National Forests
11 comprising approximately 6,961 acres, as generally
12 depicted on the applicable map filed under section
13 8408(d)(1)(B) of the Agricultural Act of 2026,
14 which shall be incorporated into the Ramseys Draft
15 Wilderness designated by Public Law 98–586 (16
16 U.S.C. 1132 note; 98 Stat. 3106).

17 “(24) LYNN HOLLOW WILDERNESS.—Certain
18 National Forest System land in the George Wash-
19 ington and Jefferson National Forests comprising
20 approximately 3,568 acres, as generally depicted on
21 the applicable map filed under section 8408(d)(1)(B)
22 of the Agricultural Act of 2026, which shall be
23 known as the ‘Lynn Hollow Wilderness’.

24 “(25) LITTLE RIVER WILDERNESS.—Certain
25 National Forest System land in the George Wash-

1 ington and Jefferson National Forests comprising
2 approximately 12,461 acres, as generally depicted on
3 the applicable map filed under section 8408(d)(1)(B)
4 of the Agricultural Act of 2026, which shall be
5 known as the ‘Little River Wilderness’.

6 “(26) BEECH LICK KNOB WILDERNESS.—Cer-
7 tain National Forest System land in the George
8 Washington and Jefferson National Forests com-
9 prising approximately 5,779 acres, as generally de-
10 picted on the applicable map filed under section
11 8408(d)(1)(B) of the Agricultural Act of 2026,
12 which shall be known as the ‘Beech Lick Knob Wil-
13 derness’.”.

14 (d) MAPS AND BOUNDARY DESCRIPTIONS.—

15 (1) FILING.—As soon as practicable after the
16 date of enactment of this Act, the Secretary shall
17 file with the Committee on Agriculture, Nutrition,
18 and Forestry of the Senate and the Committee on
19 Natural Resources and the Committee on Agri-
20 culture of the House of Representatives maps and
21 boundary descriptions of—

22 (A) the National Scenic Area; and

23 (B) each of the Wilderness Areas.

24 (2) FORCE AND EFFECT.—The maps and
25 boundary descriptions filed under paragraph (1)

1 shall have the same force and effect as if included
2 in this Act, except that the Secretary may correct
3 clerical and typographical errors in the maps and
4 boundary descriptions.

5 (3) MAPS CONTROL.—In the case of any dis-
6 crepancy between the acreage of the National Scenic
7 Area or a Wilderness Area and the applicable map
8 filed under paragraph (1), the applicable map filed
9 under that paragraph shall control.

10 (4) AVAILABILITY.—The maps and boundary
11 descriptions filed under paragraph (1) shall be on
12 file and available for public inspection in the office
13 of the Chief of the Forest Service.

14 **SEC. 8409. FLATSIDE WILDERNESS ADDITIONS.**

15 (a) IN GENERAL.—Section 3(d) of Arkansas Wilder-
16 ness Act of 1984 (Public Law 98–508; 98 Stat. 2349)
17 is amended by inserting “and certain land in the Ouachita
18 National Forest, which comprise approximately 2,212
19 acres, generally depicted as ‘Land Proposed for Wilder-
20 ness Designation’ on the map titled ‘Flatside Wilderness,
21 Proposed Addition Designation’, dated November 12,
22 2024” after “1984”.

23 (b) FIRE, INSECTS, AND DISEASES.—Nothing in this
24 section or the amendment made by subsection (a) shall
25 be construed to limit the authority of the Secretary under

1 section 4(d)(1) of the Wilderness Act (16 U.S.C.
2 1133(d)(1)), in accordance with existing laws (including
3 regulations).

4 (c) DESIGNATION OF WILDERNESS ADDITION.—The
5 wilderness designated by section 3(d) of Arkansas Wilder-
6 ness Act of 1984 (Public Law 98–508; 98 Stat. 2349),
7 shall be known as the “Flatside-Bethune Wilderness”.
8 Any reference in a law, map, regulation, document, paper,
9 or other record of the United States to such portion of
10 the Flatside Wilderness shall be deemed to be a reference
11 to the Flatside-Bethune Wilderness.

12 **SEC. 8410. TALLADEGA NATIONAL FOREST BOUNDARY**
13 **MODIFICATION.**

14 (a) IN GENERAL.—The boundaries of the Talladega
15 National Forest are modified to include the land depicted
16 on the map entitled “Talladega National Forest Proposed
17 Proclamation Boundary Addition” and dated September
18 6, 2024.

19 (b) MAP.—The map described in subsection (a) shall
20 be on file and available for public inspection in the appro-
21 priate office of the Forest Service.

22 (c) ACQUISITIONS.—

23 (1) IN GENERAL.—Within the area delineated
24 on the map described in subsection (a), the Sec-
25 retary may use the land acquisition authorities ap-

1 plicable to the National Forest System, including the
2 Act of March 1, 1911 (commonly known as the
3 “Weeks Law”) (36 Stat. 961, chapter 186; 16
4 U.S.C. 552 et seq.), to acquire land, waters, and in-
5 terests therein.

6 (2) MANAGEMENT.—Land acquired pursuant to
7 paragraph (1) shall be managed as land acquired
8 under the Act of March 1, 1911 (commonly known
9 as the “Weeks Law”) (36 Stat. 961, chapter 186;
10 16 U.S.C. 552 et seq.), and in accordance with all
11 laws and regulations pertaining to the National For-
12 est System.

13 (3) STANDARDS.—The Secretary shall ensure
14 that any private land or waters and any interest in
15 private land or waters acquired pursuant to para-
16 graph (1) is acquired—

17 (A) from a willing seller by donation, ex-
18 change, or purchase using donated or appro-
19 priated funds; and

20 (B) to the extent practicable, without
21 undue delay.

22 **SEC. 8411. BENTON MACKAYE NATIONAL SCENIC TRAIL**
23 **FEASIBILITY STUDY.**

24 (a) FINDINGS.—Congress finds that the Benton
25 MacKaye Trail—

1 (1) is a scenic, nonmotorized trail that traverses
2 approximately 287 miles over some of the most re-
3 nowned forests and mountains in the States of Geor-
4 gia, Tennessee, and North Carolina;

5 (2) showcases a wide variety of scenic views, in-
6 cluding high-elevation peaks, mature forests, and se-
7 cluded waterfalls;

8 (3) passes through wilderness that is rich with
9 biodiversity;

10 (4) passes through six designated Wilderness
11 Areas, the Great Smoky Mountains National Park,
12 and the Chattahoochee-Oconee, Cherokee, and
13 Nantahala National Forests;

14 (5) provides a wide array of easily accessible
15 hikes for novice and intermediate hikers, as well as
16 more challenging trails for backpacking;

17 (6) supports economic opportunities for numer-
18 ous rural communities which benefit from the visi-
19 tors of the trail spending their money on accom-
20 modations, food, and outdoor supplies;

21 (7) runs from Springer Mountain in Georgia,
22 through Tennessee, and extends through the Great
23 Smoky Mountains National Park in North Carolina;

24 (8) is physically accessible; and

1 (9) can be maintained at a minimal cost be-
2 cause—

3 (A) the Benton MacKaye Trail has been
4 maintained at its current length since 2005;

5 (B) 95 percent of the Benton MacKaye
6 Trail is located on Federal land; and
7 (C) the Benton MacKaye Trail has been
8 successfully constructed, maintained, and man-
9 aged by the Benton MacKaye Trail Association
10 since 1980.

11 (b) FEASIBILITY STUDY.—Section 5(c) of the Na-
12 tional Trails System Act (16 U.S.C. 1244(c)) is amended
13 by adding at the end the following:

14 “(50) BENTON MACKAYE TRAIL.—

15 “(A) IN GENERAL.—The Benton MacKaye
16 Trail, a scenic, nonmotorized trail that tra-
17 verses approximately 287 miles in the States of
18 Georgia, Tennessee, and North Carolina.

19 “(B) STUDY.—Not later than 1 year after
20 the date of enactment of this paragraph, the
21 Secretary of Agriculture, in consultation with
22 interested organizations, including the Benton
23 MacKaye Trail Association, shall complete and
24 submit to Congress the feasibility study for des-

1 ignating the Benton MacKaye Trail as a na-
2 tional scenic trail.”.

3 **SEC. 8412. RELOCATION OF MEMORIAL HONORING THE 9**
4 **AIR FORCE CREW MEMBERS WHO LOST**
5 **THEIR LIVES IN AN AIRPLANE CRASH DUR-**
6 **ING A TRAINING MISSION ON AUGUST 31,**
7 **1982.**

8 (a) IN GENERAL.—With the consent of the owner of
9 the private land adjacent to the Cherohala Skyway in the
10 State of North Carolina on which there is located a memo-
11 rial honoring the 9 members of the Air Force crew of the
12 C-141B transport plane that crashed during a training
13 mission over the Cherokee and Nantahala National For-
14 ests on August 31, 1982 (referred to in this section as
15 the “memorial”), and subject to subsections (b) through
16 (e), the Secretary may authorize, by special use authoriza-
17 tion, the installation and any maintenance associated with
18 the installation of the memorial at an appropriate site at
19 the Stratton Ridge rest area located at mile marker 2 on
20 the Cherohala Skyway in Graham County, North Carolina,
21 in the Nantahala National Forest.

22 (b) SITE APPROVAL.—The site at which the memorial
23 is installed under subsection (a) is subject to approval by
24 the Secretary, in concurrence with—

1 (1) the North Carolina Department of Trans-
2 portation; and

3 (2) in a case in which the site is located adja-
4 cent to a Federal-aid highway, the Administrator of
5 the Federal Highway Administration.

6 (c) FUNDING.—No Federal funds may be used to re-
7 locate, install, or maintain the memorial under subsection
8 (a).

9 (d) COSTS.—The individual or entity requesting the
10 installation of the memorial on National Forest System
11 land under subsection (a) shall be responsible for the costs
12 associated with the use of National Forest System land
13 for the memorial, including the costs of—

14 (1) processing the application for the relocation;

15 (2) issuing a special use authorization for the
16 memorial, including the costs associated with any re-
17 lated environmental analysis; and

18 (3) relocating, installing, and maintaining the
19 memorial.

20 (e) TERMS AND CONDITIONS.—The special use au-
21 thorization for the installation of the memorial under sub-
22 section (a) may include any terms and conditions that are
23 determined to be appropriate by the Secretary, including
24 a provision preventing any enlargement or expansion of
25 the memorial.

1 **SEC. 8413. APPRAISALS.**

2 Section 5 of the Act of June 22, 1948 (commonly
3 known as the “Thye-Blatnik Act”) (62 Stat. 570, chapter
4 593; 16 U.S.C. 577g), is amended by striking “of the fair
5 appraised value of such” and inserting “of the highest fair
6 appraised value, including historical fair appraised values,
7 as determined by the Secretary of Agriculture in accord-
8 ance with this section, of such”.

9 **Subtitle E—White Oak Resilience**

10 **SEC. 8501. WHITE OAK RESTORATION INITIATIVE COALI-**
11 **TION.**

12 (a) IN GENERAL.—There is established a coalition,
13 to be known as the “White Oak Restoration Initiative Coa-
14 lition” (referred to in this section as the “Coalition”)—

15 (1) as a voluntary collaborative group of Fed-
16 eral, State, and local governments, Indian Tribes,
17 and private and nongovernmental organizations the
18 purpose of which is to carry out the duties described
19 in subsection (b); and

20 (2) in accordance with the charter entitled
21 “White Oak Initiative Coalition Charter” adopted by
22 the White Oak Initiative Board of Directors on
23 March 21, 2023 (or a successor charter).

24 (b) DUTIES.—In addition to the duties specified in
25 the charter referred to in subsection (a)(2), the duties of
26 the Coalition are—

1 (1) to coordinate Federal, State, Tribal, local,
2 private, and nongovernmental activities for the res-
3 toration of white oak trees and forests that support
4 white oak trees in the United States; and

5 (2) to make program and policy recommenda-
6 tions, consistent with applicable forest management
7 plans, with respect to—

8 (A) changes necessary to address Federal
9 and State policies that impede activities to im-
10 prove the health, resiliency, and natural regen-
11 eration of white oak trees;

12 (B) adopting or modifying Federal and
13 State policies to increase the pace and scale of
14 white oak regeneration and the resiliency of
15 white oak trees;

16 (C) options to enhance communication, co-
17 ordination, and collaboration among forest land
18 owners, particularly with respect to cross-
19 boundary projects, to improve the health, resil-
20 iency, and natural regeneration of white oak
21 trees;

22 (D) research gaps that should be ad-
23 dressed to improve the best available science on
24 white oaks;

1 (E) outreach to forest landowners the land
2 of which possesses white oak trees or white oak
3 regeneration potential, as determined by the
4 Coalition; and

5 (F) options and policies necessary to im-
6 prove the quality and quantity of white oak
7 trees in tree nurseries.

8 (c) ADMINISTRATIVE, STAFFING, AND TECHNICAL
9 SUPPORT.—The Secretaries shall make available to the
10 Coalition such personnel for administrative support, tech-
11 nical services, and the development and dissemination of
12 educational materials as those Secretaries determine to be
13 necessary to carry out this section.

14 (d) PRIVATE FUNDING.—Subject to the availability
15 of appropriations made in advance for that purpose, the
16 Secretary may make funds available to the Coalition to
17 carry out this section from the account established pursu-
18 ant to section 1241(f) of the Food Security Act of 1985
19 (16 U.S.C. 3841(f)).

20 **SEC. 8502. FOREST SERVICE PILOT PROGRAM.**

21 (a) IN GENERAL.—The Secretary, acting through the
22 Chief of the Forest Service, shall establish and carry out
23 5 pilot projects in units of the National Forest System
24 to restore white oak trees in those units through white

1 oak restoration and natural regeneration practices that
2 are consistent with applicable forest management plans.

3 (b) REQUIREMENT.—Of the pilot projects carried out
4 under subsection (a), not fewer than 3 shall be carried
5 out on units of the National Forest System that are re-
6 served or withdrawn from the public domain.

7 (c) COOPERATIVE AGREEMENTS.—The Secretary
8 may enter into cooperative agreements to carry out the
9 pilot projects under this section.

10 (d) SUNSET.—The authority under this section ter-
11 minates on the date that is 7 years after the date of enact-
12 ment of this Act.

13 **SEC. 8503. WHITE OAK REGENERATION AND UPLAND OAK**
14 **HABITAT.**

15 (a) ESTABLISHMENT.—Not later than 180 days after
16 the date of enactment of this Act, the Secretary shall es-
17 tablish a nonregulatory program, to be known as the
18 “White Oak and Upland Oak Habitat Regeneration Pro-
19 gram” (referred to in this section as the “Program”).

20 (b) PURPOSES.—The purposes of the Program shall
21 include—

22 (1) coordinating restoration and conservation
23 activities among Federal, State, and local entities,
24 Indian Tribes, and conservation partners to address
25 white oak restoration priorities;

1 (2) improving and regenerating white oak and
2 upland oak forests and the wildlife habitat such for-
3 ests provide;

4 (3) carrying out coordinated restoration and
5 conservation activities that lead to the increased
6 growth of species of white oak in native white oak
7 regions;

8 (4) facilitating strategic planning to maximize
9 the resilience of white oak systems and habitats
10 under changing climate conditions;

11 (5) engaging the public through outreach, edu-
12 cation, and citizen involvement to increase capacity
13 and support for coordinated restoration and con-
14 servation activities for species of white oak; and

15 (6) increasing scientific capacity to support the
16 planning, monitoring, and research activities nec-
17 essary to carry out such coordinated restoration and
18 conservation activities.

19 (c) CONSULTATION.—In establishing the Program,
20 the Secretary, acting through the Chief of the Forest Serv-
21 ice, shall consult with—

22 (1) the heads of Federal agencies, including—

23 (A) the Director of the United States Fish
24 and Wildlife Service; and

1 (B) the Chief of the Natural Resources
2 Conservation Service;

3 (2) the Governor of each State in which res-
4 toration efforts will be carried out pursuant to the
5 Program; and

6 (3) Indian Tribes.

7 (d) DUTIES.—In carrying out the Program, the Sec-
8 retary shall—

9 (1) draw on the best available science and man-
10 agement plans for species of white oak to identify,
11 prioritize, and implement restoration and conserva-
12 tion activities that will improve the growth of white
13 oak trees in the United States;

14 (2) collaborate and coordinate with the White
15 Oak Restoration Initiative Coalition established by
16 section 8501(a) to prioritize white oak restoration
17 initiatives;

18 (3) adopt a white oak restoration strategy
19 that—

20 (A) supports the implementation of a
21 shared set of science-based restoration and con-
22 servation activities developed in accordance with
23 paragraph (1);

24 (B) targets cost-effective projects with
25 measurable results; and

1 (C) maximizes restoration outcomes with
2 no net gain of Federal full-time equivalent em-
3 ployees; and

4 (4) establish voluntary grant and technical as-
5 sistance programs in accordance with subsection (e).

6 (e) GRANTS AND ASSISTANCE.—

7 (1) DEFINITIONS.—In this subsection:

8 (A) FOUNDATION.—The term “Founda-
9 tion” means the National Fish and Wildlife
10 Foundation.

11 (B) GRANT PROGRAM.—The term “grant
12 program” means the voluntary grant and tech-
13 nical assistance program established under
14 paragraph (2).

15 (2) ESTABLISHMENT.—To the extent that
16 funds are available to carry out this section, the Sec-
17 retary shall establish a voluntary grant and technical
18 assistance program to achieve the purposes of the
19 Program described in subsection (b).

20 (3) ADMINISTRATION.—

21 (A) IN GENERAL.—The Secretary shall
22 offer to enter into a cooperative agreement with
23 the Foundation to manage and administer the
24 grant program.

1 (B) FUNDING.—Subject to the availability
2 of appropriations made in advance for that pur-
3 pose, on entering into a cooperative agreement
4 with the Foundation under subparagraph (A),
5 the Secretary shall pay to the Foundation to
6 carry out this subsection for each fiscal year an
7 advance payment of the entire amount for the
8 applicable fiscal year—

9 (i) on October 1 of that fiscal year; or

10 (ii) as soon as practicable thereafter.

11 (4) APPLICATION OF NATIONAL FISH AND
12 WILDLIFE FOUNDATION ESTABLISHMENT ACT.—
13 Amounts received by the Foundation to carry out
14 the grant program shall be subject to the National
15 Fish and Wildlife Foundation Establishment Act (16
16 U.S.C. 3701 et seq.), excluding section 10(a) of that
17 Act (16 U.S.C. 3709(a)).

18 (f) SUNSET.—The authority under this section termi-
19 nates on the date that is 7 years after the date of enact-
20 ment of this Act.

21 **SEC. 8504. TREE NURSERY SHORTAGES.**

22 (a) IN GENERAL.—Not later than 1 year after the
23 date of enactment of this Act, the Secretary, acting
24 through the Chief of the Forest Service, shall—

1 (1) develop and implement a national strategy
2 to increase the capacity of Federal, State, and pri-
3 vate tree nurseries and tree nurseries of Indian
4 Tribes to address the nationwide shortage of tree
5 seedlings; and

6 (2) coordinate the strategy under paragraph (1)
7 with—

8 (A) the national reforestation strategy of
9 the Forest Service; and

10 (B) each regional implementation plan for
11 National Forests.

12 (b) ELEMENTS.—The strategy required under sub-
13 section (a) shall—

14 (1) be based on the best available science and
15 data, including the consideration of Indigenous
16 knowledge; and

17 (2) identify and address—

18 (A) regional seedling shortages of bareroot
19 and container tree seedlings;

20 (B) regional reforestation opportunities
21 and the seedling supply necessary to fulfill
22 those opportunities;

23 (C) opportunities to enhance seedling di-
24 versity, improve quality, quantity, genetic re-

1 sources, and availability, and close gaps in seed
2 inventories; and

3 (D) barriers to expanding, enhancing, or
4 creating new infrastructure to increase nursery
5 capacity.

6 **Subtitle F—Other Matters**

7 **SEC. 8601. NATIONAL FOREST FOUNDATION ACT.**

8 (a) MATCHING FUNDS.—Section 405(b) of the Na-
9 tional Forest Foundation Act (16 U.S.C. 583j–3(b)) is
10 amended by striking “2023” and inserting “2031”.

11 (b) AUTHORIZATION OF APPROPRIATIONS.—Section
12 410(b) of the National Forest Foundation Act (16 U.S.C.
13 583j–8(b)) is amended by striking “\$3,000,000 for each
14 of fiscal years 2016 through 2023” and inserting
15 “\$5,000,000 for each of fiscal years 2027 through 2031”.

16 (c) WHITE OAK RESTORATION FUND.—Section 409
17 of the National Forest Foundation Act (16 U.S.C. 583j–
18 7) is amended—

19 (1) by striking “The activities” and inserting
20 the following:

21 “(a) IN GENERAL.—The activities”; and

22 (2) by adding at the end the following:

23 “(b) WHITE OAK RESTORATION FUND.—

24 “(1) IN GENERAL.—Funds described in para-
25 graph (2) shall be made available for activities on

1 units of the National Forest System that are ap-
2 proved by the Secretary, acting through the Chief of
3 the Forest Service—

4 “(A) to re-establish white oak forests
5 where appropriate;

6 “(B) to improve management of existing
7 white oak forests to foster natural regeneration
8 of white oak;

9 “(C) to improve and expand white oak
10 nursery stock; and

11 “(D) to adapt and improve white oak seed-
12 lings.

13 “(2) FUND.—The Foundation may accept gifts,
14 devises, or bequests for the purposes of carrying out
15 the activities specified in paragraph (1).

16 “(3) SUMMARY.—Beginning 1 year after the
17 date of enactment of this subsection, the Foundation
18 shall include in the budget justification materials
19 submitted to Congress in support of the budget of
20 the Foundation for each fiscal year (as submitted
21 with the budget of the President under section
22 1105(a) of title 31, United States Code) a summary
23 of the activities carried out under paragraph (1) and
24 the funds accepted under paragraph (2) that in-
25 cludes—

1 “(A) the amount accepted under para-
2 graph (2) in the preceding fiscal year;

3 “(B) the amount described in subpara-
4 graph (A) that is unobligated on the date of the
5 report; and

6 “(C) a description of the activities under
7 paragraph (1) funded during the preceding fis-
8 cal year.”.

9 **SEC. 8602. RURAL REVITALIZATION TECHNOLOGIES.**

10 Section 2371(d)(2) of the Food, Agriculture, Con-
11 servation, and Trade Act of 1990 (7 U.S.C. 6601(d)(2))
12 is amended by striking “2023” and inserting “2031”.

13 **SEC. 8603. RESOURCE ADVISORY COMMITTEES.**

14 Section 205 of the Secure Rural Schools and Commu-
15 nity Self-Determination Act of 2000 (16 U.S.C. 7125) is
16 amended—

17 (1) in subsection (c), by adding at the end the
18 following:

19 “(6) APPOINTMENTS BY APPLICABLE REGIONAL
20 FORESTERS.—In making appointments under this
21 subsection, the Secretary concerned may act through
22 the applicable regional forester if, before the applica-
23 ble regional forester makes an appointment, the ap-
24 plicable regional forester conducts the review and
25 analysis that would otherwise be conducted for an

1 appointment to a resource advisory committee, in-
2 cluding any review and analysis with respect to civil
3 rights, budgetary requirements, vetting, and report-
4 ing, as the Secretary concerned determines appro-
5 priate.”;

6 (2) in subsection (d)(6)(C), by striking “Octo-
7 ber 1, 2026” and inserting “October 1, 2031”; and

8 (3) by striking subsection (g).

9 **SEC. 8604. TRIBAL FOREST PROTECTION MANAGEMENT.**

10 Section 2 of the Tribal Forest Protection Act of 2004
11 (25 U.S.C. 3115a) is amended—

12 (1) in subsection (a)—

13 (A) by striking paragraph (2) and insert-
14 ing the following:

15 “(2) INDIAN FOREST LAND OR RANGELAND.—

16 The term ‘Indian forest land or rangeland’ means—

17 “(A) land that—

18 “(i) is held in trust, or subject to a re-
19 striction against alienation, by the United
20 States for an Indian Tribe or a member of
21 an Indian Tribe; and

22 “(ii)(I) is Indian forest land (as de-
23 fined in section 304 of the National Indian
24 Forest Resources Management Act (25
25 U.S.C. 3103)); or

1 “(II)(aa) has a cover of grasses,
2 brush, or any similar vegetation; or

3 “(bb) formerly had a forest cover or
4 vegetative cover that is capable of restora-
5 tion; and

6 “(B) land that—

7 “(i) is in the State of Alaska and held
8 by an Alaska Native Corporation pursuant
9 to the Alaska Native Claims Settlement
10 Act (43 U.S.C. 1601 et seq.); and

11 “(ii)(I) has a cover of grasses, brush,
12 or any similar vegetation; or

13 “(II) formerly had a forest cover or
14 vegetative cover that is capable of restora-
15 tion.”;

16 (B) in paragraph (3), by striking “450b”
17 and inserting “5304”; and

18 (C) by adding at the end the following:

19 “(5) TRIBAL ORGANIZATION.—The term ‘Tribal
20 organization’ has the meaning given the term in sec-
21 tion 4 of the Indian Self-Determination and Edu-
22 cation Assistance Act (25 U.S.C. 5304).”;

23 (2) in subsection (b)—

24 (A) in the subsection heading, by striking
25 “INDIAN FOREST LAND OR RANGELAND” and

1 inserting “OR RESTORE INDIAN FOREST LAND
2 OR RANGELAND AND FEDERAL LAND OF SPE-
3 CIAL SIGNIFICANCE”;

4 (B) in paragraph (1)—

5 (i) by inserting “or Tribal organiza-
6 tion” after “Indian tribe” each place it ap-
7 pears;

8 (ii) by striking “a project to protect
9 Indian forest land or rangeland (including
10 a project to restore Federal land that bor-
11 ders on or is adjacent to Indian forest land
12 or rangeland)” and inserting “activities
13 and projects to protect or restore Indian
14 forest land or rangeland or Federal land”;
15 and

16 (iii) by striking “activities described”
17 and inserting “activities and projects de-
18 scribed”;

19 (C) in paragraph (2), by inserting “or
20 Tribal organization” after “Indian tribe”; and

21 (D) by striking paragraph (3) and insert-
22 ing the following:

23 “(3) ACTIVITIES AND PROJECTS.—Under an
24 agreement or contract entered into under paragraph
25 (2), the Indian tribe or Tribal organization may

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1 carry out activities and projects to achieve land
2 management goals for—

3 “(A) Federal land that is—

4 “(i) under the jurisdiction of the Sec-
5 retary; and

6 “(ii) consistent with the criteria de-
7 scribed in subsection (c); and

8 “(B) Indian forest land or rangeland.”;

9 (3) in subsection (c)—

10 (A) in the subsection heading, by inserting

11 “FOR FEDERAL LAND” after “CRITERIA”;

12 (B) by striking “an Indian tribe,” in the
13 matter preceding paragraph (1) and all that fol-
14 lows through “Indian tribe—” in the matter
15 preceding subparagraph (A) of paragraph (2)
16 and inserting the following: “Federal land, are
17 whether—

18 “(1) the Federal land has a special geographic,
19 historical, or cultural significance to the Indian tribe
20 or Tribal organization and—”;

21 (C) in paragraph (1) (as so designated)—

22 (i) in subparagraph (A), by striking
23 clause (i) and inserting the following:

24 “(i) Indian forest land or rangeland;
25 or”; and

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1 (ii) in subparagraph (B), by striking
2 “restoration activities;” and inserting “or
3 watershed restoration activities; and”;

4 (D) by redesignating paragraph (3) as
5 paragraphs (2);

6 (E) in paragraph (2) (as so redesign-
7 nated)—

8 (i) by inserting “and projects” after
9 “activities”;

10 (ii) by inserting “or Tribal organiza-
11 tion” after “Indian tribe”; and

12 (iii) by striking “subject land; and”
13 and inserting “Federal land.”; and

14 (F) by striking paragraph (4);

15 (4) in subsection (d)—

16 (A) in the matter preceding paragraph (1),
17 by inserting “or Tribal organization” after “In-
18 dian tribe”; and

19 (B) in paragraph (3), by striking “Indian
20 tribe for” and all that follows through the pe-
21 riod at the end and inserting the following: “In-
22 dian tribe or Tribal organization for the pur-
23 pose of developing a strategy for protecting or
24 restoring—

25 “(A) Indian forest land or rangeland; or

1 “(B) Federal land that has a special geo-
2 graphic, historical, or cultural significance to
3 the Indian tribe or Tribal organization.”;

4 (5) in subsection (e), in the matter preceding
5 paragraph (1), by inserting “or Tribal organization”
6 after “Indian tribe”;

7 (6) in subsection (g), by striking “date of en-
8 actment of this Act” and inserting “date of enact-
9 ment of the Agricultural Act of 2026”; and

10 (7) by adding at the end the following:

11 “(h) AUTHORIZATION OF APPROPRIATIONS.—There
12 is authorized to be appropriated to carry out this Act
13 \$15,000,000 for each of fiscal years 2027 through 2031.”.

14 **SEC. 8605. CIVILIAN CONSERVATION CENTERS.**

15 Public Law 91–378 (16 U.S.C. 1701 et seq.) is
16 amended by adding at the end the following:

17 **“TITLE III—CIVILIAN**
18 **CONSERVATION CENTERS**

19 **“SEC. 301. DEFINITIONS.**

20 “In this title:

21 “(1) CIVILIAN CONSERVATION CENTER.—The
22 term ‘Civilian Conservation Center’ means any resi-
23 dential workforce development or training facility for
24 underserved youth operated by the Department of
25 the Interior or the Department of Agriculture.

1 “(2) COVERED GRADUATE.—The term ‘covered
2 graduate’ means an individual who successfully com-
3 pleted a training program at a Civilian Conservation
4 Center.

5 “(3) COVERED STUDENT.—The term ‘covered
6 student’ means an individual who is enrolled in a
7 training program at a Civilian Conservation Center.

8 “(4) SECRETARIES.—The term ‘Secretaries’
9 means—

10 “(A) the Secretary of Agriculture; and

11 “(B) the Secretary of the Interior.

12 **“SEC. 302. CIVILIAN CONSERVATION CENTERS WILDFIRE**
13 **AND CONSERVATION TRAINING PROGRAM.**

14 “(a) SPECIALIZED TRAINING PROGRAMS.—The Sec-
15 retaries, in coordination with the Secretary of Labor, shall
16 offer at Civilian Conservation Centers specialized training
17 programs focused on—

18 “(1) forestry and rangeland management;

19 “(2) wildland firefighting; or

20 “(3) any other topic relating to the mission of
21 the Forest Service or the Department of the Interior
22 or the public interest.

23 “(b) PRIORITIZATION.—The Secretaries shall
24 prioritize offering specialized training programs under
25 subsection (a) at facilities described in section 147(d) of

1 the Workforce Innovation and Opportunity Act (29 U.S.C.
2 3197(d)).

3 **“SEC. 303. WILDLAND FIREFIGHTING WORKFORCE DEVEL-**
4 **OPMENT PILOT.**

5 “(a) IN GENERAL.—

6 “(1) EXPERIMENT, RESEARCH, OR DEMONSTRA-
7 TION PILOTS.—The Secretary of Agriculture, in co-
8 ordination with the Secretary of Labor, may carry
9 out experimental, research, or demonstration pilots
10 to provide career and technical education curricula
11 and course offerings to advance the missions of the
12 Department of Agriculture at Civilian Conservation
13 Centers operated by the Department of Agriculture,
14 including facilities described in section 147(d) of the
15 Workforce Innovation and Opportunity Act (29
16 U.S.C. 3197(d)).

17 “(2) CURRICULA AND COURSES.—Curricula and
18 courses described in paragraph (1) include—

19 “(A) incident management and emergency
20 response logistics;

21 “(B) disaster response;

22 “(C) forest products measurement;

23 “(D) timber sale administration and prepa-
24 ration;

25 “(E) heavy equipment operation;

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1 “(F) equipment and mechanical services;
2 “(G) industrial electrical;
3 “(H) machining;
4 “(I) mill operations;
5 “(J) forest restoration;
6 “(K) habitat and water quality monitoring;
7 “(L) watershed and habitat enhancement;
8 “(M) range management;
9 “(N) recreation access improvement;
10 “(O) volunteers and visitors enhancement;
11 and
12 “(P) historic preservation.

13 “(b) REQUIREMENTS.—In carrying out subsection
14 (a), the Secretary of Agriculture shall—

15 “(1) identify workforce needs in Federal land
16 agencies, forest, conservation, and recreation indus-
17 tries, and rural communities, after consulting with
18 State governments and agencies, Federal emergency
19 management and Federal land agencies, local com-
20 munities, institutions of higher education, and In-
21 dian Tribes;

22 “(2) develop marketing, recruitment, and reten-
23 tion materials for the curricula and courses offerings
24 provided under subsection (a); and

1 “(3) provide specialized staff necessary to teach
2 curricula and courses offerings provided under sub-
3 section (a), to the extent practicable.

4 **“SEC. 304. WILDLAND FIREFIGHTING WORKFORCE EN-**
5 **HANCEMENT.**

6 “(a) RECRUITMENT GOALS AND INVESTMENTS.—

7 “(1) RECRUITMENT GOAL.—The Secretaries—

8 “(A) shall each set goals of—

9 “(i) hiring 300 covered graduates an-
10 nually to contribute to wildland firefighting
11 or other critical workforce needs within the
12 respective Department of each of the Sec-
13 retaries;

14 “(ii) a certain percentage of covered
15 graduates annually attaining employment
16 within the wildland firefighting, natural re-
17 sources, forestry, or a related field; and

18 “(iii) a certain percentage of covered
19 graduates annually attaining employment;
20 and

21 “(B) may make investments to support the
22 recruitment, training, hiring, and retention of
23 covered graduates.

24 “(2) SIGNING BONUS.—The Secretaries may
25 provide for a signing bonus to enable the successful

1 employment and transition of covered graduates, in-
2 cluding for the purpose of securing housing in rural
3 and remote communities.

4 “(b) DIRECT HIRE AUTHORITY.—For fiscal year
5 2025 and each fiscal year thereafter, the Secretaries may
6 appoint, without regard to the provisions of subchapter I
7 of chapter 33 of title 5, United States Code, other than
8 sections 3303 and 3328 of that title, a covered graduate
9 directly to a position for which the covered graduate meets
10 Office of Personnel Management qualification standards.

11 “(c) PATHWAYS TO EMPLOYMENT.—The Secretaries
12 shall ensure that appropriate career pathways are devel-
13 oped for covered graduates of relevant Civilian Conserva-
14 tion Center training programs.

15 “(d) DISADVANTAGED YOUTH EMPLOYMENT.—Not-
16 withstanding any other provision of law, the Secretaries
17 may employ covered students at regular rates of pay for
18 necessary hours of work.

19 “(e) USE OF COVERED STUDENTS FOR CONTRACTS,
20 AGREEMENTS, AND GRANTS.—To the maximum extent
21 practicable, the Secretary of Agriculture shall encourage
22 the use of covered students to fulfill obligations under con-
23 tracts, agreements, and grants relevant to the training ad-
24 ministered by the Forest Service at a unit of the National

1 Forest System where a Civilian Conservation Center is lo-
2 cated.

3 **“SEC. 305. WILDLAND FIREFIGHTING HOUSING PILOT PRO-**
4 **GRAM.**

5 “(a) IN GENERAL.—The Secretaries shall establish
6 a pilot program to employ covered students to improve and
7 expand the housing stock owned by the Federal Govern-
8 ment for the purpose of housing wildland firefighters, vol-
9 unteers, partner crewmembers, interns, and other agency
10 employees.

11 “(b) REQUIREMENTS.—In carrying out the pilot pro-
12 gram under subsection (a), the Secretaries shall—

13 “(1) identify properties currently owned by the
14 Federal Government that would be appropriate
15 housing for wildland firefighters, volunteers, partner
16 crewmembers, interns, and other agency employees;

17 “(2) identify areas where the construction of
18 new housing described in paragraph (1) would be
19 appropriate and sustainable; and

20 “(3) submit to Congress a prioritized list of
21 projects for renovation with a plan for how the Sec-
22 retaries will employ covered students to repair, ren-
23 ovate, and remediate the properties identified under
24 paragraph (1).

1 **“SEC. 306. REPORT.**

2 “Not later than 1 year after the date of enactment
3 of this title, the Secretaries shall submit to the Committee
4 on Agriculture, Nutrition, and Forestry of the Senate and
5 the Committee on Agriculture of the House of Representa-
6 tives a report—

7 “(1) describing underutilized capacity at Civil-
8 ian Conservation Centers, based on an assessment
9 conducted by the Secretaries; and

10 “(2) identifying the investments, improvements,
11 and efficiencies necessary to utilize the full capacity
12 of Civilian Conservation Centers.”.

13 **SEC. 8606. PERMITS AND AGREEMENTS WITH ELECTRICAL**
14 **UTILITIES.**

15 (a) IN GENERAL.—In any special use permit or ease-
16 ment on National Forest System land provided to an elec-
17 tric utility company (as defined in section 1262 of the En-
18 ergy Policy Act of 2005 (42 U.S.C. 16451)), the Secretary
19 may provide permission to cut and remove trees or other
20 vegetation from within the vicinity of distribution lines or
21 transmission lines, including hazardous vegetation that in-
22 creases fire risk, without requiring a separate timber sale
23 if that cutting and removal is consistent with the applica-
24 ble land management plan.

25 (b) USE OF PROCEEDS.—A special use permit or
26 easement that includes permission for the cutting and re-

1 removal of trees or other vegetation described in subsection
2 (a) shall include a requirement that, if the applicable elec-
3 tric utility company sells any portion of the material re-
4 moved under the permit or easement, the electric utility
5 company shall provide to the Secretary, acting through the
6 Chief of the Forest Service, any proceeds received from
7 the sale, less any transportation costs incurred in the sale.

8 (c) **RULE OF CONSTRUCTION.**—Nothing in this sec-
9 tion shall be construed to require the sale of any material
10 removed under a special use permit or easement that in-
11 cludes permission for the cutting and removal of trees or
12 other vegetation described in subsection (a).

13 **SEC. 8607. EXEMPTION FOR PREVIOUSLY ANALYZED AREAS**
14 **OF NATIONAL FOREST SYSTEM LAND.**

15 (a) **IN GENERAL.**—The requirements under the Na-
16 tional Environmental Policy Act of 1969 (42 U.S.C. 4321
17 et seq.) or division A of subtitle III of title 54, United
18 States Code, shall not apply to an application for a com-
19 munications use authorization on National Forest System
20 land, including National Forest System land on which au-
21 thorized utilities, communications facilities, powerline fa-
22 cilities, or roads have been installed, if—

23 (1) the communications equipment is located in
24 or on existing infrastructure; or

1 (2) the communications facility is located on
2 previously analyzed areas of National Forest System
3 land.

4 (b) NO ADDITIONAL CONSULTATION REQUIRED
5 UNDER CERTAIN CIRCUMSTANCES.—Notwithstanding
6 any other provision of law, the Secretary shall not be re-
7 quired to reinitiate consultation under the National Envi-
8 ronmental Policy Act of 1969 (42 U.S.C. 4321 et seq.)
9 or division A of subtitle III of title 54, United States Code,
10 for an application for a communications use authorization
11 on previously analyzed areas of National Forest System
12 land if new information concerning a previously analyzed
13 area of National Forest System land becomes available.

14 (c) DEFINITIONS.—In this section:

15 (1) COMMUNICATIONS FACILITY; COMMUNICA-
16 TIONS USE AUTHORIZATION.—The terms “commu-
17 nications facility” and “communications use author-
18 ization” have the meanings given the terms, respec-
19 tively, in section 8705 of the Agriculture Improve-
20 ment Act of 2018 (43 U.S.C. 1761a).

21 (2) PREVIOUSLY ANALYZED AREAS OF NA-
22 TIONAL FOREST SYSTEM LAND.—The term “pre-
23 viously analyzed areas of National Forest System
24 land” means any National Forest System land with
25 respect to which the Secretary has—

1 (A) granted, issued, and executed a com-
2 munications use authorization; and

3 (B) conducted sufficient environmental or
4 historical reviews, including under the National
5 Environmental Policy Act of 1969 (42 U.S.C.
6 4321 et seq.) or division A of subtitle III of
7 title 54, United States Code.

8 (3) SECRETARY.—The term “Secretary” means
9 the Secretary, acting through the Chief of the For-
10 est Service.

11 **SEC. 8608. ALIGNMENT OF FARM SERVICE AGENCY AND**
12 **FOREST SERVICE DROUGHT RESPONSE.**

13 (a) IN GENERAL.—Not later than 60 days after the
14 date of enactment of this Act, the Administrator of the
15 Farm Service Agency and the Chief of the Forest Service
16 shall enter into a memorandum of understanding to better
17 align drought response activities of the Farm Service
18 Agency and the Forest Service (referred to in this section
19 as the “agencies”).

20 (b) CONTENTS.—The memorandum of understanding
21 entered into under subsection (a) shall include—

22 (1) a commitment to better align practices of
23 the agencies with respect to determining the severity
24 of regional drought conditions;

1 (2) a strategy for amending those determina-
2 tions to ensure consistent policy with respect to
3 drought response in cases where the agencies are
4 making inconsistent determinations within the same
5 spatial scale;

6 (3) an agreement to utilize, to the extent prac-
7 ticable, the United States Drought Monitor in mak-
8 ing those determinations; and

9 (4) an agreement to provide consistent informa-
10 tion to grazing permittees, operators, and other
11 stakeholders affected by determinations relating to
12 drought.

13 **SEC. 8609. TECHNICAL CORRECTIONS.**

14 Section 7(l)(3) of the Cooperative Forestry Assist-
15 ance Act of 1978 (16 U.S.C. 2103c(l)(3)) is amended—

16 (1) in subparagraph (A), by striking “the State
17 of Vermont” and inserting “any State”; and

18 (2) in subparagraph (B)—

19 (A) in clause (i)(II), by adding “and” after
20 the semicolon; and

21 (B) in clause (ii), in the matter preceding
22 subclause (I), by striking “State of Vermont”
23 and inserting “applicable State”.

TITLE IX—ENERGY

2 SEC. 9001. DEFINITION OF ADVANCED BIOFUEL.

3 Section 9001(3)(B)(iv) of the Farm Security and
4 Rural Investment Act of 2002 (7 U.S.C. 8101(3)(B)(iv))
5 is amended by inserting “and sustainable aviation fuel”
6 after “diesel-equivalent fuel”.

7 SEC. 9002. BIOBASED MARKETS PROGRAM.

Section 9002 of the Farm Security and Rural Investment Act of 2002 (7 U.S.C. 8102) is amended—

10 (1) in subsection (a)—

11 (A) in paragraph (2)—

12 (i) in subparagraph (A)(i)—

13 (I) in subclause (II)(bb), by
14 striking “and” at the end;

(II) in subclause (III), by striking the period at the end and inserting “; and”; and

(III) by adding at the end the following:

20 “(IV) on an annual basis, update
21 the procurement requirement de-
22 scribed in subclause (III) by increas-
23 ing the number of biobased-only con-
24 tracts or the volume purchased under

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1 those contracts from the previous
2 year.”; and

3 (ii) by adding at the end the fol-
4 lowing:

5 “(G) GUIDANCE.—The Secretary, in co-
6 ordination with the Office of Federal Procure-
7 ment Policy, shall issue guidance to procuring
8 agencies to consider product lifespan, savings,
9 and efficacy in making procurement decisions
10 under this subsection.”;

11 (B) in paragraph (4)—

12 (i) in subparagraph (A)—

13 (I) by striking clause (ii); and

14 (II) by redesignating clauses (iii)
15 and (iv) as clauses (ii) and (iii), re-
16 spectively;

17 (ii) in subparagraph (B)(i)—

18 (I) in the matter preceding sub-
19 clause (I)—

20 (aa) by inserting “and the
21 Secretary” after “Policy”; and

22 (bb) by striking “informa-
23 tion concerning—” and inserting
24 “a report that describes, for the
25 year covered by the report—”;

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1 (II) in subclause (I), by inserting
2 “, including the actions taken by the
3 procuring agency to establish and im-
4 plement the biobased procurement
5 program of the procuring agency
6 under that paragraph” before the
7 semicolon;

8 (III) in subclause (IV), by strik-
9 ing “and” at the end;

10 (IV) in subclause (V), by striking
11 “and” at the end; and

12 (V) by adding at the end the fol-
13 lowing:

14 “(VI)(aa) the specific categories
15 of biobased products that are unavail-
16 able to meet the procurement needs of
17 the procuring agency; and

18 “(bb) the desired performance
19 standards and other relevant speci-
20 fications for those products; and

21 “(VII) if applicable, the procure-
22 ment requirement or updated procure-
23 ment requirement established under
24 paragraph (2)(A)(i) that the pro-

1 curing agency failed to meet and rea-
2 sons for the failure; and”; and

3 (iii) by adding at the end the fol-
4 lowing:

5 “(D) VERIFICATION.—The Office of Fed-
6 eral Procurement Policy, in consultation with
7 the Secretary, shall—

8 “(i) annually collect the information
9 required to be reported under subpara-
10 graph (B) and make the information pub-
11 licly available; and

12 “(ii) annually verify, using the infor-
13 mation collected under clause (i), that each
14 procuring agency under paragraph
15 (2)(A)(i), as applicable, has established a
16 procurement program in accordance with
17 subclause (I) of that paragraph.

18 “(E) TRAINING.—

19 “(i) IN GENERAL.—Not later than 2
20 years after the date of enactment of this
21 subparagraph, each procuring agency shall
22 have completed training on biobased prod-
23 uct purchasing for the appropriate staff of
24 the procuring agency, including contracting

1 officers, purchase card managers, and pur-
2 chase card holders.

3 “(ii) MATERIALS.—The Office of Fed-
4 eral Procurement Policy, in cooperation
5 with the Secretary, shall provide training
6 materials for procuring agencies con-
7 ducting training pursuant to clause (i).

8 “(F) FEDERAL CATALOG UPDATES.—Not
9 later than 2 years after the date of enactment
10 of this subparagraph, the Office of Federal Pro-
11 curement Policy, in cooperation with the Sec-
12 retary, shall—

13 “(i) direct the Administrator of Gen-
14 eral Services to update the Federal Pro-
15 curement Data System described in section
16 1122(a)(4) of title 41, United States Code
17 (or any successor system), to include
18 biobased product designations;

19 “(ii) direct that the System for Award
20 Management collect biobased product pur-
21 chasing data;

22 “(iii) direct that Federal online pro-
23 curement systems, including GSA Advan-
24 tage! and FedMall, include designations for

1 products that meet the guidelines under
2 paragraph (3);

3 “(iv) require, to the maximum extent
4 practicable, that Federal online procure-
5 ment systems, including GSA Advantage!
6 and FedMall, use North American Indus-
7 try Classification System codes, North
8 American Product Classification System-
9 based product codes, and other product
10 codes, as determined in consultation with
11 the Secretary, when identifying products
12 that meet the guidelines under paragraph
13 (3); and

14 “(v) require agencies with online Fed-
15 eral sales platforms to include reporting of
16 purchases in their reporting on products
17 that meet the guidelines under paragraph
18 (3).”;

19 (2) in subsection (b)—

20 (A) in paragraph (3), by adding at the end
21 the following:

22 “(C) REGULATIONS.—The Secretary shall
23 promulgate such regulations as the Secretary
24 determines to be appropriate to ensure the in-
25 tegrity of the label described in paragraph (1),

1 including regulations to define additional terms
2 necessary to avoid or reduce public confusion
3 relating to the label.

4 “(D) UNAUTHORIZED USE.—Not later
5 than 120 days after the date of enactment of
6 this subparagraph, the Secretary shall, in co-
7 ordination with the Inspector General of the
8 Department of Agriculture, make publicly avail-
9 able instructions on how to report an instance
10 of unauthorized use of the label described in
11 paragraph (1).”; and

12 (B) by adding at the end the following:

13 “(5) PUBLIC MARKETING AND EDUCATION.—

14 “(A) IN GENERAL.—The Secretary may
15 conduct outreach to educate the public on and
16 promote the use of biobased products, including
17 by—

18 “(i) conducting outreach to small
19 businesses producing biobased products
20 that seek a label described in paragraph
21 (1);

22 “(ii) providing information about
23 biobased product procurement preferences
24 to State procurement agencies; and

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1 “(iii) establishing public-private part-
2 nerships to further increase awareness and
3 use of biobased products.

4 “(B) ACCEPTANCE AND USE OF CON-
5 TRIBUTIONS.—

6 “(i) IN GENERAL.—The Secretary
7 may establish an account to accept con-
8 tributions of non-Federal funds to carry
9 out the outreach described in subpara-
10 graph (A).

11 “(ii) DEPOSIT AND USE OF CON-
12 TRIBUTIONS.—Contributions under clause
13 (i) shall—

14 “(I) be deposited into the ac-
15 count established under that clause;

16 “(II) be available to and subject
17 to the control of the Secretary, with-
18 out further appropriation and until
19 expended; and

20 “(III) supplement any funding
21 made available under subsection (k)
22 and allocated by the Secretary for the
23 outreach described in subparagraph
24 (A).

1 “(6) REPORT.—Not later than December 31,
2 2027, and annually thereafter, the Secretary shall
3 make publicly available on the website of the De-
4 partment of Agriculture and submit to the Com-
5 mittee on Agriculture, Nutrition, and Forestry of
6 the Senate and the Committee on Agriculture of the
7 House of Representatives a report that includes—

8 “(A) a list of the biobased products that
9 were authorized to use the label described in
10 paragraph (1) during the preceding fiscal year;

11 “(B) a description of the audit and compli-
12 ance activities conducted under paragraph
13 (3)(B) during the preceding fiscal year, includ-
14 ing any findings of noncompliance and any ac-
15 tions taken by the Secretary to address the
16 noncompliance;

17 “(C)(i) a description of the outreach con-
18 ducted under paragraph (5)(A); and

19 “(ii) a plan for conducting outreach under
20 that paragraph for the following 2 fiscal years
21 that is designed to increase the use of the label
22 described in paragraph (1) and the purchase of
23 biobased products; and

1 “(D) the total amount of contributions of
2 non-Federal funds accepted into the account es-
3 tablished under paragraph (5)(B).”;

4 (3) in subsection (f), by adding at the end the
5 following:

6 “(3) REPORT.—Not later than 90 days after
7 the date of enactment of this paragraph, the Sec-
8 retary shall submit to the Committee on Agriculture,
9 Nutrition, and Forestry of the Senate and the Com-
10 mittee on Agriculture of the House of Representa-
11 tives a report that—

12 “(A) includes the Federal statistical collec-
13 tions of information related to the North Amer-
14 ican Industry Classification System codes and
15 the North American Product Classification Sys-
16 tem codes that utilize bioeconomy-specific data;

17 “(B) recommends necessary changes to the
18 most recent North American Industry Classi-
19 fication System codes and the North American
20 Product Classification System codes related to
21 the bioeconomy in accordance with this sub-
22 section; and

23 “(C) provides an assessment of the im-
24 pacts that bioeconomy-specific North American
25 Industry Classification System codes and North

1 American Products Classification System codes
2 would have on the measurement by the Sec-
3 retary of the economic contributions of the bio-
4 economy.”;

5 (4) in subsection (k)—

6 (A) in paragraph (1), by striking “2024”
7 and inserting “2031”; and

8 (B) in paragraph (2), by striking “2019
9 through 2023” and inserting “2027 through
10 2031”; and

11 (5) in subsection (l)—

12 (A) by striking “In this section” and in-
13 serting the following:

14 “(1) IN GENERAL.—In this section”; and

15 (B) by adding at the end the following:

16 “(2) STANDARD.—To determine the contents of
17 biobased products, the Secretary shall use—

18 “(A) the most recent version of the ASTM-
19 D-6866 standard of the ASTM International
20 standards; or

21 “(B) any alternative standard that the
22 Secretary determines appropriate.”.

1 **SEC. 9003. BIOREFINERY, RENEWABLE CHEMICAL,**
2 **BIOBASED PRODUCT MANUFACTURING, AND**
3 **SUSTAINABLE AVIATION FUEL ASSISTANCE.**

4 (a) IN GENERAL.—Section 9003 of the Farm Secu-
5 rity and Rural Investment Act of 2002 (7 U.S.C. 8103)
6 is amended—

7 (1) in the section heading, by striking “**AND**
8 **BIOBASED PRODUCT MANUFACTURING**” and in-
9 serting “**BIOBASED PRODUCT MANUFACTURING,**
10 **AND SUSTAINABLE AVIATION FUEL**”;

11 (2) in subsection (a), in the matter preceding
12 paragraph (1)—

13 (A) by striking “to assist” and inserting
14 “to develop advanced biofuels, renewable chemi-
15 cals, biobased product manufacturing, and sus-
16 tainable aviation fuel, and to assist”; and

17 (B) by striking “and biobased product
18 manufacturing so as” and inserting “biobased
19 product manufacturing, and sustainable avia-
20 tion fuel so as”;

21 (3) in subsection (b)—

22 (A) in paragraph (1)—

23 (i) by inserting “or innovative” after
24 “technologically new”; and

25 (ii) by striking “end-user products”
26 and inserting “end-user products, renew-

1 able chemicals, and biobased products”;

2 and

3 (B) in paragraph (3)—

4 (i) in subparagraph (A)—

5 (I) by indenting clauses (i)

6 through (iii) appropriately;

7 (II) in clause (ii), by striking

8 “or” at the end;

9 (III) in clause (iii), by striking “;

10 and” and inserting “; or”; and

11 (IV) by adding at the end the fol-

12 lowing:

13 “(iv) sustainable aviation fuel (as de-

14 fined by the Secretary); and”; and

15 (ii) in subparagraph (B)—

16 (I) by indenting clauses (i)

17 through (iii) appropriately;

18 (II) in clause (ii), by striking

19 “or” at the end;

20 (III) in clause (iii), by striking

21 the period at the end and inserting “;

22 or”; and

23 (IV) by adding at the end the fol-

24 lowing:

1 “(iv) sustainable aviation fuel (as de-
2 fined by the Secretary).”;

3 (4) in subsection (c)—

4 (A) by striking “The Secretary shall make
5 available to eligible entities guarantees” and in-
6 serting the following: “Subject to the avail-
7 ability of funding, the Secretary shall make
8 available to eligible entities—

9 “(1) on a year-round basis, guarantees”; and

10 (B) in paragraph (1) (as so designated), by
11 striking the period at the end and inserting the
12 following: “, in accordance with subsection (d);
13 and

14 “(2) on a competitive basis, grants to develop,
15 construct, or retrofit pilot or demonstration-scale
16 biorefineries to demonstrate the commercial viability
17 of 1 or more processes for converting renewable bio-
18 mass to advanced biofuels, renewable chemicals, sus-
19 tainable aviation fuel (as defined by the Secretary),
20 and biobased products in accordance with subsection
21 (e).”;

22 (5) in subsection (d)—

23 (A) in paragraph (1)—

24 (i) by striking subparagraphs (A) and
25 (C);

1 (ii) by redesignating subparagraphs
2 (B) and (D) as subparagraphs (A) and
3 (B), respectively;

4 (iii) in subparagraph (A) (as so rededesignated)—

6 (I) by striking “In approving a
7 loan guarantee application” and inserting the following:

9 “(i) IN GENERAL.—In approving an
10 application for a loan guarantee under subsection (c)(1)”; and

12 (II) by adding at the end the following:

14 “(ii) WAIVER.—The Secretary may
15 waive the feasibility study under clause (i)
16 for proven or otherwise commercially available technologies.”; and

18 (iv) in subparagraph (B) (as so redesignated), by striking “loan guarantee applications” and inserting “applications for loan guarantees under subsection (c)(1)”; and

22 (B) in paragraph (2), by striking “subsection (c)” each place it appears and inserting “subsection (c)(1)”; and

25 (C) by adding at the end the following:

1 “(3) TECHNICAL REVIEW AGREEMENTS.—

2 “(A) IN GENERAL.—The Secretary shall,
3 at the appropriate time, enter into an agree-
4 ment with project applicants that clearly de-
5 scribes the specific objectives, outcomes, and
6 conditions by which the Secretary shall deter-
7 mine the successful technical feasibility of the
8 projects to be carried out by the project appli-
9 cants.

10 “(B) GUIDELINES AND EXPECTATIONS.—

11 “(i) IN GENERAL.—The agreement
12 entered into under clause (i) shall include
13 clear guidelines and expectations for—

14 “(I) the methodologies, protocols,
15 and procedures to be used by the Sec-
16 retary to determine the technical fea-
17 sibility of an integrated demonstration
18 unit; and

19 “(II) the functions to be dem-
20 onstrated by the integrated dem-
21 onstration unit.

22 “(ii) CONTENTS.—The guidelines and
23 expectations referred to in clause (i) shall
24 include—

1 “(I) a set timeline for the inte-
2 grated demonstration unit campaign
3 and final technical report to show reli-
4 able evidence of continuous, steady-
5 state production;

6 “(II) criteria and methods for
7 evaluating the success of the project,
8 including any third-party assessments
9 or evaluations that may be conducted
10 during the demonstration period and
11 at the conclusion of the set timeline
12 described in subclause (I);

13 “(III) criteria and methods to
14 prove the ability of the integrated
15 demonstration unit to use project-spe-
16 cific feedstock for the production of
17 advanced biofuels, renewable chemi-
18 cals, sustainable aviation fuels (as de-
19 fined by the Secretary), or biobased
20 products at a yield and quality con-
21 sistent with the design basis of the
22 project;

23 “(IV) required information and
24 conditions that demonstrate operation

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1 duration, quality, and quantity speci-
2 fications; and

3 “(V) any other information that,
4 if supplied to the Secretary, would as-
5 sist the project applicants in suffi-
6 ciently demonstrating the technical
7 feasibility of the project.

8 “(C) FAILURE TO COMPLY.—

9 “(i) NOTIFICATION.—If an eligible en-
10 tity fails to comply with a guideline or ex-
11 pectation under subparagraph (B), the
12 Secretary shall issue to the eligible entity
13 a written notice that—

14 “(I) describes each deficiency;
15 and

16 “(II) provides a reasonable time-
17 frame for the eligible entity to correct
18 any deficiencies.

19 “(ii) CORRECTIVE ACTION PERIOD.—
20 Not later than 90 days after the date of
21 receipt of a notice under clause (i), the ap-
22 plicable eligible entity shall—

23 “(I) address any deficiency de-
24 scribed in clause (i)(I); and

1 “(II) submit to the Secretary a
2 revised technical feasibility assessment
3 for reconsideration.

4 “(D) DETERMINATION OF TECHNICAL
5 FEASIBILITY.—On fulfillment by an eligible en-
6 tity of the guidelines and expectations under
7 subparagraph (B), or approval of a revised
8 technical feasibility assessment submitted by an
9 eligible entity under subparagraph (C)(ii)(II),
10 as applicable, the Secretary shall determine that
11 the project of the eligible entity is technically
12 feasible.”;

13 (6) by striking subsection (e) and inserting the
14 following:

15 “(e) GRANTS.—

16 “(1) SELECTION CRITERIA.—

17 “(A) IN GENERAL.—In approving applica-
18 tions for grants under subsection (c)(2), the
19 Secretary shall establish a priority scoring sys-
20 tem that assigns priority scores to each applica-
21 tion and only approve applications that exceed
22 a specified minimum score, as determined by
23 the Secretary.

24 “(B) FEASIBILITY.—

“(i) IN GENERAL.—In approving an application for a grant under subsection (c)(2), the Secretary shall determine the technical and economic feasibility of the project based on a feasibility study of the project described in the application conducted by an independent third party.

“(ii) **WAIVER.**—The Secretary may waive the feasibility study under clause (i) for proven or otherwise commercially available technologies.

“(C) SCORING SYSTEM.—The priority scoring system established under subparagraph (A) shall consider, with respect to a project proposed in an application for a grant under subsection (c)(2)—

“(i) the potential market for the advanced biofuel, renewable chemical, sustainable aviation fuel (as defined by the Secretary), or biobased product, and the byproducts produced under the project;

“(ii) the level of financial participation by the eligible entity, including support from non-Federal and private sources;

1 “(iii) whether the eligible entity is
2 proposing to use—

3 “(I) a feedstock not previously
4 used in the production of advanced
5 biofuels; or

6 “(II) a feedstock, process, or
7 technology used in an innovative man-
8 ner in the production of renewable
9 chemicals, sustainable aviation fuel
10 (as defined by the Secretary), or
11 biobased products;

12 “(iv) whether the eligible entity is pro-
13 posing to work with producer associations
14 or cooperatives;

15 “(v) whether the eligible entity has es-
16 tablished that the adoption of the process
17 proposed in the application will have a
18 positive impact on resource conservation,
19 public health, and the environment;

20 “(vi) the potential for rural economic
21 development;

22 “(vii) whether the project can be rep-
23 licated;

24 “(viii) scalability for commercial use;
25 and

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1 “(ix) in the case of an advanced
2 biofuels project, the contribution of the
3 project to domestic energy security.

4 “(2) GRANT AMOUNT.—The amount of a grant
5 awarded under subsection (c)(2) shall not exceed
6 \$10,000,000.”;

7 (7) in subsection (g)(2), by striking “2023”
8 and inserting “2031”;

9 (8) in subsection (h)(1), by striking “sub-
10 sections (a) through (e), and (g)” and inserting
11 “subsections (a) through (e) and (g)”; and

12 (9) in subsection (i)(1), by striking “subsections
13 (a) through (e) and subsection (g)” and inserting
14 “subsections (a) through (e) and (g)”.

15 (b) RESCISSION.—Of the unobligated balances of
16 amounts made available under section 9003 of the Farm
17 Security and Rural Investment Act of 2002 (7 U.S.C.
18 8103), \$18,000,000 are rescinded.

19 **SEC. 9004. BIOPRODUCT LABELING TERMINOLOGY.**

20 The Farm Security and Rural Investment Act of
21 2002 is amended by inserting after section 9003 (7 U.S.C.
22 8103) the following:

23 **“SEC. 9004. BIOPRODUCT LABELING TERMINOLOGY.**

24 “(a) IN GENERAL.—Not later than 1 year after the
25 date of enactment of the Agricultural Act of 2026, the

1 Secretary shall issue rules implementing national uniform
2 labeling standards for, and ensuring the proper use of, the
3 following terms in the labeling and marketing of bioprod-
4 ucts:

5 “(1) Bio-attributed plastic.

6 “(2) Bio-attributed product.

7 “(3) Biobased plastic.

8 “(4) Plant-based product.

9 “(b) INCLUSION OF DEFINED TERMS.—In issuing
10 rules to implement national uniform labeling standards
11 under subsection (a), the Secretary shall include the fol-
12 lowing terms (as defined in section 9001):

13 “(1) Biobased product.

14 “(2) Intermediate ingredient or feedstock.

15 “(3) Renewable biomass.

16 “(4) Renewable chemical.

17 “(c) CONSULTATION.—In carrying out subsection
18 (a), the Secretary shall consult with—

19 “(1) biomanufacturers;

20 “(2) entities engaged in research and develop-
21 ment of bioproducts;

22 “(3) feedstock growers; and

23 “(4) other industry stakeholders.”.

1 **SEC. 9005. BIOENERGY PROGRAM FOR ADVANCED**
2 **BIOFUELS.**

3 Section 9005(g)(2) of the Farm Security and Rural
4 Investment Act of 2002 (7 U.S.C. 8105(g)(2)) is amended
5 by striking “2019 through 2023” and inserting “2027
6 through 2031”.

7 **SEC. 9006. BIODIESEL FUEL EDUCATION PROGRAM.**

8 Section 9006(d) of the Farm Security and Rural In-
9 vestment Act of 2002 (7 U.S.C. 8106(d)) is amended by
10 striking “2019 through 2023” and inserting “2027
11 through 2031”.

12 **SEC. 9007. RURAL ENERGY FOR AMERICA PROGRAM.**

13 Section 9007 of the Farm Security and Rural Invest-
14 ment Act of 2002 (7 U.S.C. 8107) is amended—

15 (1) in subsection (b)—

16 (A) in the subsection heading, by striking
17 “ENERGY AUDITS AND RENEWABLE ENERGY”
18 and inserting “PROJECT”;

19 (B) in paragraph (1)—

20 (i) by redesignating subparagraphs
21 (A) and (B) as clauses (i) and (ii), respec-
22 tively, and indenting appropriately;

23 (ii) in the matter preceding clause (i)
24 (as so redesignated), by striking “provide
25 assistance” and inserting the following:
26 “provide—

1 “(A) assistance”;

2 (iii) in subparagraph (A)(ii) (as so re-
3 designated), by striking the period at the
4 end and inserting “; and”; and

5 (iv) by adding at the end the fol-
6 lowing:

7 “(B) technical assistance to agricultural
8 producers and rural small businesses to apply
9 for financial assistance under subsection (c).”;

10 (C) in paragraph (2)—

11 (i) in subparagraph (D), by striking
12 “and” at the end;

13 (ii) by redesignating subparagraph
14 (E) as subparagraph (F); and

15 (iii) by inserting after subparagraph
16 (D) the following:

17 “(E) an agricultural producer coopera-
18 tive;”;

19 (D) in paragraph (3)—

20 (i) in subparagraph (A), by striking
21 “audits and” and inserting “audits, rel-
22 evant technical assistance, and”;

23 (ii) by redesignating subparagraphs
24 (D) through (F) as subparagraphs (E)
25 through (G), respectively; and

1 (iii) by inserting after subparagraph
2 (C) the following:

3 “(D) the potential improvements to the fi-
4 nancial conditions of those agricultural pro-
5 ducers and rural small businesses;”; and

6 (E) in paragraph (4)—

7 (i) in subparagraph (B), by redesi-
8 gnating clauses (i) and (ii) as subclauses (I)
9 and (II), respectively, and indenting appro-
10 priately;

11 (ii) by redesignating subparagraphs
12 (A) and (B) as clauses (i) and (ii), respec-
13 tively, and indenting appropriately;

14 (iii) in the matter preceding clause (i)
15 (as so redesignated), by striking “funds to
16 assist” and inserting the following:
17 “funds—

18 “(A) to assist”;

19 (iv) in subparagraph (A)(ii) (as so re-
20 designated)—

21 (I) in subclause (I) (as so redesi-
22 gnated), by striking “and” at the
23 end;

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1 (II) in subclause (II) (as so re-
2 designated), by striking the period at
3 the end and inserting “; and”; and

4 (III) by adding at the end the
5 following:

6 “(III) to apply for assistance
7 under subsection (c); and”; and

8 (v) by adding at the end the following:

9 “(B) to provide training for individuals to
10 perform the activities described in subpara-
11 graph (A).”;

12 (2) in subsection (c)—

13 (A) in paragraph (2)—

14 (i) in subparagraph (F), by striking
15 “and” at the end;

16 (ii) by redesignating subparagraph
17 (G) as subparagraph (H); and

18 (iii) by inserting after subparagraph
19 (F) the following:

20 “(G) the potential improvements to the fi-
21 nancial conditions of the agricultural producer
22 or rural small business receiving the loan guar-
23 antee or grant; and”; and

1 (B) in paragraph (3)(B), by striking
2 “\$25,000,000” and inserting “\$50,000,000”;
3 and

4 (C) by striking paragraph (4) and insert-
5 ing the following:

6 “(4) APPLICATION PROCESS.—For projects car-
7 ried out using assistance under this subsection, the
8 Secretary shall establish an application, evaluation,
9 and oversight process that is—

10 “(A) the most simplified for projects for
11 which the cost of the activity funded under this
12 subsection is less than \$50,000; and

13 “(B) more comprehensive for projects for
14 which the cost of the activity funded under this
15 subsection is more than \$50,000.”;

16 (3) in subsection (e)—

17 (A) in paragraph (1)—

18 (i) by striking “20” and inserting
19 “25”; and

20 (ii) by striking “\$20,000” and insert-
21 ing “\$50,000”; and

22 (B) by adding at the end the following:

23 “(3) REBATE PILOT PROJECT.—

24 “(A) DEFINITIONS.—In this paragraph:

1 “(i) COVERED REBATE.—The term
2 ‘covered rebate’ means a rebate provided
3 by the Secretary to an eligible entity for
4 the purchase of certain energy efficient
5 equipment described in subsection
6 (c)(1)(A), to be determined by the Sec-
7 retary, that was made by an eligible enti-
8 ty—

9 “(I) as part of a project com-
10 pleted in the 12-month period pre-
11 ceding the provision of the rebate; and

12 “(II) to meet the immediate
13 needs of the eligible entity, which were
14 not anticipated while the application
15 period for assistance under subsection
16 (c) was open but would otherwise
17 meet the requirements for projects eli-
18 gible for assistance under that sub-
19 section.

20 “(ii) ELIGIBLE ENTITY.—The term
21 ‘eligible entity’ means any entity eligible to
22 receive financial assistance under sub-
23 section (c).

1 “(iii) PILOT PROJECT.—The term
2 ‘pilot project’ means the pilot project es-
3 tablished under subparagraph (B).

4 “(B) ESTABLISHMENT.—Using not more
5 than 2 percent of the funds made available to
6 carry out subsection (c) for each of fiscal years
7 2027 and 2028, the Secretary shall carry out a
8 pilot project under which the Secretary shall—

9 “(i) award covered rebates to eligible
10 entities; and

11 “(ii) test and evaluate a simplified ap-
12 plication process for eligible entities to
13 apply for those covered rebates.

14 “(C) NOTIFICATION PRIOR TO COMMENCE-
15 MENT.—Not later than 30 days before the com-
16 mencement of the pilot project, the Secretary
17 shall submit to the Committee on Agriculture,
18 Nutrition, and Forestry of the Senate and the
19 Committee on Agriculture of the House of Rep-
20 resentatives a notification containing—

21 “(i) the commencement date of the
22 pilot project;

23 “(ii) a detailed description of the pilot
24 project;

1 “(iii) a copy of the simplified applica-
2 tion to be used under the pilot project; and

3 “(iv) a list of the equipment for which
4 covered rebates will be provided under the
5 pilot project.

6 “(D) REPORT.—Not later than June 30,
7 2027, the Secretary shall submit to the Com-
8 mittee on Agriculture, Nutrition, and Forestry
9 of the Senate and the Committee on Agri-
10 culture of the House of Representatives, and
11 make publicly available, a report on the pilot
12 project, which shall include—

13 “(i) the total number of each type of
14 equipment for which an application for a
15 covered rebate was submitted, and the
16 total number of each type of equipment for
17 which a covered rebate was provided; and

18 “(ii) the extent to which applications
19 for covered rebates exceeded the avail-
20 ability of funding, if applicable.

21 “(E) PROCEDURES.—The administration
22 of this paragraph shall be—

23 “(i) made without regard to chapter
24 35 of title 44, United States Code; and

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1 “(ii) carried out by the Secretary
2 using the authority provided under section
3 808 of title 5, United States Code.”; and
4 (4) in subsection (f)—

5 (A) in paragraph (2)(A), by striking
6 “paragraph (1), 4 percent” and inserting “this
7 subsection, 5 percent”;

8 (B) in paragraph (3), by striking “2023”
9 and inserting “2031”; and

10 (C) by adding at the end the following:

11 “(4) RESERVATION OF FUNDS.—Of the funds
12 made available to carry out this section for a fiscal
13 year, the Secretary may reserve—

14 “(A) not more than 10 percent for award-
15 ing grants under subsection (c) that support
16 the adoption of underutilized but proven com-
17 mercial renewable energy technologies; and

18 “(B) not more than 5 percent to carry out
19 subsection (d).”.

20 **SEC. 9008. FEEDSTOCK FLEXIBILITY PROGRAM FOR BIO-**
21 **ENERGY PRODUCERS.**

22 Section 9010(b) of the Farm Security and Rural In-
23 vestment Act of 2002 (7 U.S.C. 8110(b)) is amended in
24 paragraphs (1)(A) and (2)(A) by striking “2023” each
25 place it appears and inserting “2031”.

1 **SEC. 9009. BIOMASS CROP ASSISTANCE PROGRAM.**

2 Section 9011(f)(1) of the Farm Security and Rural
3 Investment Act of 2002 (7 U.S.C. 8111(f)(1)) is amended
4 by striking “2019 through 2023” and inserting “2027
5 through 2031”.

6 **SEC. 9010. CARBON UTILIZATION AND BIOGAS EDUCATION**
7 **PROGRAM.**

8 Section 9014(c) of the Farm Security and Rural In-
9 vestment Act of 2002 (7 U.S.C. 8115(c)) is amended in
10 the matter preceding paragraph (1) by striking “2019
11 through 2023” and inserting “2027 through 2031”.

12 **SEC. 9011. SUSTAINABLE AVIATION FUELS STRATEGY.**

13 The Secretary shall establish a Department-wide
14 strategy to advance the production of sustainable aviation
15 fuels by—

16 (1) facilitating collaboration between relevant
17 mission areas of the Department to encourage the
18 advancement of the sustainable aviation fuels supply
19 chain, including use of agricultural crops grown for
20 sustainable aviation fuel production;

21 (2) identifying opportunities to maximize sus-
22 tainable aviation fuels development, deployment, and
23 commercialization;

24 (3) leveraging the capabilities of United States
25 farmers, ranchers, foresters, and agricultural pro-

1 ducers to capture opportunities in the sustainable
2 aviation fuels market;

3 (4) supporting rural economic development
4 through sustainable aviation fuel production; and

5 (5) promoting public-private partnerships for
6 the development, deployment, and commercialization
7 of sustainable aviation fuels.

8 **SEC. 9012. LEVERAGING EFFICIENCY AWARENESS FOR**
9 **PUMPING SYSTEMS.**

10 (a) DEFINITION OF PUMPING SYSTEM.—In this sec-
11 tion, the term “pumping system” means any pumps,
12 pipes, motors, drives, and controls used to move water and
13 other fluids on farms, ranches, and aquaculture oper-
14 ations.

15 (b) INFORMATION ON ENERGY-EFFICIENT PUMPING
16 SYSTEMS.—

17 (1) IN GENERAL.—Not later than 180 days
18 after the date of enactment of this Act, the Sec-
19 retary, in consultation with pumping system experts,
20 in order to provide to farmers education on the ben-
21 efits of energy-efficient pumping systems, shall de-
22 velop and make publicly available on the website of
23 the Department easily accessible information on cost
24 savings, energy savings, water conservation, and car-

1 bon emissions reductions that can be realized
2 through the use of energy-efficient pumping systems.

3 (2) CONTENTS.—In carrying out paragraph (1),
4 the Secretary shall include information on—

5 (A) pumps, pipes, motors, drives, and con-
6 trols that can provide energy savings and cost
7 savings, conserve water, and reduce carbon
8 emissions; and

9 (B) Department programs that provide to
10 farmers resources for acquiring energy-efficient
11 pumping systems and drought management in-
12 frastructure, including the environmental qual-
13 ity incentives program, the Rural Energy for
14 America Program, and the conservation stew-
15 ardship program.

16 (c) ENERGY EFFICIENCY PREASSESSMENT TOOL.—

17 (1) IN GENERAL.—Not later than 180 days
18 after the date of enactment of this Act, the Sec-
19 retary, in consultation with pumping system experts,
20 in order to raise awareness of the benefits of energy-
21 efficient pumping systems and increase participation
22 in Department programs that promote energy effi-
23 ciency, shall develop and make publicly available on
24 the website of the Department a user-friendly tool—

1 (A) to assist farmers in making a prelimi-
2 nary assessment of the energy efficiency of ex-
3 isting pumping systems; and

4 (B) to provide an estimate of potential en-
5 ergy savings, cost savings, and carbon emissions
6 reductions that may be realized through pump-
7 ing system improvements.

8 (2) REQUIREMENTS.—

9 (A) EASE OF USE.—The Secretary shall
10 ensure that the tool made available under para-
11 graph (1) provides a user with projected energy
12 savings, projected cost savings, and projected
13 carbon emissions reductions through the input
14 by the user of the following data relating to an
15 existing pumping system:

16 (i) Pump type.

17 (ii) Flow rating and actual flow.

18 (iii) Pressure rating and actual pres-
19 sure.

20 (iv) Speed rating and actual speed.

21 (B) CONSIDERATIONS.—The Secretary
22 shall ensure that the tool made available under
23 paragraph (1)—

24 (i) in assessing the energy efficiency
25 of a pumping system, takes into consider-

1 ation pumps, pipes, motors, drives, and
2 controls associated with the pumping sys-
3 tem; and

4 (ii) in projecting the energy savings,
5 cost savings, and carbon emissions reduc-
6 tions that may be realized through pump-
7 ing system improvements, takes into con-
8 sideration the cost of electricity and the
9 profile of the existing pumping system.

10 (d) ENERGY AUDITOR EDUCATION.—

11 (1) IN GENERAL.—Not later than 180 days
12 after the date of enactment of this section, the Sec-
13 retary, in consultation with pumping system experts,
14 in order to increase the effectiveness of Department
15 energy efficiency programs, shall establish a process
16 to provide to persons performing energy efficiency
17 audits for the Department education on energy use
18 and energy efficiency in pumping systems.

19 (2) IMPLEMENTATION.—In carrying out para-
20 graph (1), the Secretary shall consider the use of ex-
21 isting education and training programs focused on
22 energy use and energy efficiency in pumping sys-
23 tems.

24 (e) CONSERVATION STEWARDSHIP PROGRAM ACTIVI-
25 TIES.—Section 1240I(2)(B)(i) of the Food Security Act

1 of 1985 (16 U.S.C. 3839aa–21(2)(B)(i)) is amended by
2 inserting “and energy-efficient pumping systems (as de-
3 fined in section 9012(a) of the Agricultural Act of 2026”
4 before “, as determined”.

5 **SEC. 9013. TECHNICAL CORRECTIONS.**

6 Section 9008 of the Farm Security and Rural Invest-
7 ment Act of 2002 (7 U.S.C. 8108) is amended—

8 (1) in subsection (f)(1), by striking “Secretary
9 of Energy and the Secretary of Agriculture may pro-
10 vide such administrative support and funds of the
11 Department of Energy and the Department of Agri-
12 culture to the Board and the Advisory Committee”
13 and inserting “Secretary and the Secretary of En-
14 ergy may provide to the Board and the Advisory
15 Committee such administrative support and funds of
16 the Department of Agriculture and the Department
17 of Energy”;

18 (2) in subsection (g), by striking “Secretary of
19 Energy and the Secretary of Agriculture” each place
20 it appears and inserting “Secretary and the Sec-
21 retary of Energy”; and

22 (3) by striking “Secretary of Agriculture” each
23 place it appears and inserting “Secretary”.

1 **TITLE X—HORTICULTURE**
2 **Subtitle A—Horticulture Marketing**
3 **and Information**

4 **SEC. 10101. MARKETING ORDERS.**

5 Section 8e(a) of the Agricultural Adjustment Act (7
6 U.S.C. 608e–1(a)), reenacted with amendments by the Ag-
7 ricultural Marketing Agreement Act of 1937, is amended
8 by inserting “mandarin oranges,” after “oranges,”.

9 **SEC. 10102. SPECIALTY CROPS MARKET NEWS ALLOCATION.**

10 Section 10107(b) of the Food, Conservation, and En-
11 ergy Act of 2008 (7 U.S.C. 1622b(b)) is amended by strik-
12 ing “2023” and inserting “2031”.

13 **SEC. 10103. LOCAL AGRICULTURE MARKET PROGRAM.**

14 Section 210A of the Agricultural Marketing Act of
15 1946 (7 U.S.C. 1627c) is amended—

16 (1) in subsection (b)(4), by inserting “, regional
17 food chain coordination,” after “collaboration”;

18 (2) in subsection (d)—

19 (A) in paragraph (1), by striking “2023”
20 and inserting “2031”; and

21 (B) in paragraph (6)(B)—

22 (i) by redesignating clauses (vii) and
23 (viii) as clauses (viii) and (ix), respectively;

24 and

1 (ii) by inserting after clause (vi) the
2 following:

3 “(vii) a food hub;”;

4 (3) in subsection (e)—

5 (A) in paragraph (1)(A)—

6 (i) by redesignating clauses (x) and
7 (xi) as clauses (xi) and (xii), respectively;
8 and

9 (ii) by inserting after clause (ix) the
10 following:

11 “(x) a food hub;” and

12 (B) in paragraph (2)(A), by striking
13 “2023” and inserting “2031”;

14 (4) in subsection (f)—

15 (A) in paragraph (1), by striking “that—
16 ” in the matter preceding subparagraph (A)
17 and all that follows through “apply” in sub-
18 paragraph (B) and inserting “that apply”; and

19 (B) by adding at the end the following:

20 “(3) STAKEHOLDER INPUT.—In developing the
21 simplified application and reporting process under
22 this subsection, the Secretary shall engage with
23 stakeholders to receive input on how the simplified
24 application and reporting process can be streamlined

1 for eligible entities without affecting program integ-
2 rity.”; and

3 (5) in subsection (h)(2), by striking “this sec-
4 tion” and inserting “the Agricultural Act of 2026”.

5 **SEC. 10104. ACER ACCESS AND DEVELOPMENT PROGRAM.**

6 Section 12306 of the Agricultural Act of 2014 (7
7 U.S.C. 1632c) is amended—

8 (1) by redesignating subsections (e) and (f) as
9 subsections (g) and (h), respectively;

10 (2) by inserting after subsection (d) the fol-
11 lowing:

12 “(e) CONSULTATIONS.—

13 “(1) IN GENERAL.—Beginning with the first re-
14 quest for applications under this section that occurs
15 at least 1 year after the date of enactment of the
16 Agricultural Act of 2026, not later than 6 months
17 before such a request for applications, the Secretary
18 shall solicit input from maple syrup industry stake-
19 holders with respect to the research and education
20 priorities of the maple syrup industry.

21 “(2) CONSIDERATION.—The Secretary shall
22 consider the information provided through the con-
23 sultation required under paragraph (1) when making
24 grants under this section.

1 “(f) NO COST-SHARING OR MATCHING REQUIRE-
2 MENTS.—The Secretary may not impose any cost-sharing
3 or matching requirement on any award or sub-award made
4 using funds made available to carry out this section.”; and
5 (3) in subsection (h), as so redesignated, by
6 striking “2023” and inserting “2031”.

7 **SEC. 10105. NATIONAL ORGANIC PROGRAM.**

8 (a) TECHNICAL ASSISTANCE.—Section 2107 of the
9 Organic Foods Production Act of 1990 (7 U.S.C. 6506)
10 is amended—

11 (1) by redesignating subsections (c) through (e)
12 as subsections (d) through (f), respectively; and

13 (2) by inserting after subsection (b) the fol-
14 lowing:

15 “(c) TECHNICAL ASSISTANCE.—

16 “(1) IN GENERAL.—As part of the national or-
17 ganic program established under this title, the Sec-
18 retary may provide technical assistance, education,
19 and outreach to—

20 “(A) farmers on certified organic farms;
21 and

22 “(B) farmers who are transitioning to or-
23 ganic (as determined by the Secretary).

24 “(2) ACTIVITIES.—In carrying out paragraph
25 (1), the Secretary may—

1 “(A) coordinate with the heads of agencies
2 within the Department of Agriculture, including
3 the Administrator of the Farm Service Agency,
4 the Chief of the Natural Resources Conserva-
5 tion Service, the Administrator of the Risk
6 Management Agency, and the Director of the
7 National Institute of Food and Agriculture; and

8 “(B) enter into cooperative agreements
9 with nonprofit organizations to provide region-
10 ally-specific training, education, and outreach.”.

11 (b) FUNDING.—Section 2123(b) of the Organic
12 Foods Production Act of 1990 (7 U.S.C. 6522(b)) is
13 amended by striking paragraphs (1) through (6) and in-
14 serting the following:

15 “(1) \$26,000,000 for fiscal year 2027;

16 “(2) \$28,000,000 for fiscal year 2028;

17 “(3) \$30,000,000 for fiscal year 2029;

18 “(4) \$32,000,000 for fiscal year 2030; and

19 “(5) \$34,000,000 for fiscal year 2031.”.

20 **SEC. 10106. NATIONAL ORGANIC CERTIFICATION COST-**
21 **SHARE PROGRAM.**

22 Section 10606 of the Farm Security and Rural In-
23 vestment Act of 2002 (7 U.S.C. 6523) is amended—

1 (1) in subsection (a), by inserting “(referred to
2 in this section as the ‘program’)” after “cost-share
3 program”;

4 (2) in subsection (c)—

5 (A) by striking “Not” and inserting the
6 following:

7 “(1) ANNUAL REPORT.—Not”; and

8 (B) by adding at the end the following:

9 “(2) GAO ASSESSMENT.—

10 “(A) EFFICACY STUDY.—The Comptroller
11 General of the United States shall conduct a
12 study to assess the impact that the program
13 has had on the rising cost of organic certifi-
14 cation.

15 “(B) REPORT.—Not later than 18 months
16 after the date of enactment of this paragraph,
17 the Comptroller General of the United States
18 shall submit to the Committee on Agriculture,
19 Nutrition, and Forestry of the Senate and the
20 Committee on Agriculture of the House of Rep-
21 resentatives a report that summarizes the find-
22 ings of the study conducted under subpara-
23 graph (A).”; and

24 (3) by adding at the end the following:

1 “(e) DISCRETIONARY FUNDING.—In addition to
2 amounts made available under subsection (d), there is au-
3 thorized to be appropriated to carry out this section not
4 more than \$8,000,000 for each of fiscal years 2027
5 through 2031.”.

6 **SEC. 10107. FOOD SAFETY EDUCATION INITIATIVES.**

7 Section 10105(c) of the Food, Conservation, and En-
8 ergy Act of 2008 (7 U.S.C. 7655a(c)) is amended by strik-
9 ing “2023” and inserting “2031”.

10 **SEC. 10108. NATIONAL PLANT DIAGNOSTIC NETWORK.**

11 Section 12203(c)(5) of the Agriculture Improvement
12 Act of 2018 (7 U.S.C. 8914(c)(5)) is amended by striking
13 “2023” and inserting “2031”.

14 **SEC. 10109. SPECIALTY CROP BLOCK GRANTS.**

15 Section 101 of the Specialty Crops Competitiveness
16 Act of 2004 (7 U.S.C. 1621 note; Public Law 108–465)
17 is amended—

18 (1) in subsection (a), in the matter preceding
19 paragraph (1)—

20 (A) by striking “2023” and inserting
21 “2031”; and

22 (B) by striking “specialty crops,” and in-
23 serting “specialty crops through priorities es-
24 tablished annually by State program adminis-

1 trators in consultation with specialty crop pro-
2 ducers and producer groups,”;

3 (2) in subsection (c)—

4 (A) by redesignating paragraphs (1) and
5 (2) as subparagraphs (A) and (B), respectively,
6 and indenting appropriately;

7 (B) in the matter preceding subparagraph
8 (A) (as so redesignated), by striking “Notwith-
9 standing” and inserting the following:

10 “(1) IN GENERAL.—Notwithstanding”; and

11 (C) by adding at the end the following:

12 “(2) NO COST-SHARING OR MATCHING RE-
13 QUIREMENTS.—The Secretary may not impose any
14 cost-sharing or matching requirement on any award
15 or sub-award made using funds made available to
16 carry out this section.”;

17 (3) in subsection (e), by striking “indicate how”
18 and inserting the following: “indicate—

19 “(1) how outreach to, and consultation with,
20 specialty crop producers and producer groups will be
21 achieved; and

22 “(2) how”; and

23 (4) in subsection (i)(1)—

24 (A) by striking “in accordance with para-
25 graph (2)”; and

1 (B) by inserting “, by adding those unobli-
2 gated or unexpended amounts to the allocation
3 funding pool for the following fiscal year or any
4 subsequent fiscal year” after “determined by
5 the Secretary”.

6 **SEC. 10110. ORGANIC INPUTS VERIFICATION.**

7 (a) DEFINITIONS.—In this section:

8 (1) COVERED ORGANIC FEEDSTUFF.—The term
9 “covered organic feedstuff” means any organic
10 feedstuff included on the list established under sub-
11 section (c)(2)—

12 (A) that is shipped in bulk; and

13 (B) for which there is a national organic
14 program import certificate.

15 (2) NATIONAL ORGANIC PROGRAM IMPORT CER-
16 TIFICATE.—The term “national organic program im-
17 port certificate” has the meaning given the term in
18 section 2103 of the Organic Foods Production Act
19 of 1990 (7 U.S.C. 6502).

20 (3) ORGANIC.—The term “organic”, with re-
21 spect to a feedstuff, means that the feedstuff is or-
22 ganically produced (as defined in section 2103 of the
23 Organic Foods Production Act of 1990 (7 U.S.C.
24 6502)).

1 (4) SECRETARY.—The term “Secretary” means
2 the Secretary, acting through the Administrator of
3 the Agricultural Marketing Service.

4 (5) SHIPPED IN BULK.—

5 (A) IN GENERAL.—The term “shipped in
6 bulk”, with respect to a feedstuff, means that
7 the feedstuff is shipped loose in a ship hold,
8 railcar, container, or super sack, or by another
9 similar method.

10 (B) EXCLUSION.—The term “shipped in
11 bulk”, with respect to a feedstuff, does not in-
12 clude the shipment of that feedstuff as a pack-
13 aged good.

14 (b) ANNUAL REPORT ON RESIDUE TESTING FOR
15 COVERED ORGANIC FEEDSTUFFS AND OTHER IMPORTED
16 ORGANIC FEEDSTUFFS.—

17 (1) IN GENERAL.—Not later than 180 days
18 after the date of enactment of this Act, and annually
19 thereafter, the Secretary shall submit to Congress a
20 report on the residue testing described in paragraph
21 (2) that was carried out during the year covered by
22 the report for—

23 (A) each covered organic feedstuff; and

24 (B) each other imported organic
25 feedstuff—

- 1 (i) that is shipped in bulk; and
- 2 (ii) for which there is a national or-
- 3 ganic program import certificate.

4 (2) RESIDUE TESTING DESCRIBED.—The res-

5 idue testing referred to in paragraph (1) is residue

6 testing carried out under any of the following:

7 (A) Subsection (c)(3).

8 (B) Section 2107(a)(6) of the Organic

9 Foods Production Act of 1990 (7 U.S.C.

10 6506(a)(6)).

11 (C) Section 2112(a) of that Act (7 U.S.C.

12 6511(a)).

13 (D) Section 205.670(c) of title 7, Code of

14 Federal Regulations (or a successor regulation).

15 (3) REQUIREMENTS.—Each report under para-

16 graph (1) shall include information on—

17 (A) the frequency of the applicable residue

18 testing;

19 (B) the methods used for that residue test-

20 ing;

21 (C) the results of that residue testing;

22 (D) the standards used to analyze those

23 results; and

24 (E) any actions taken as a result of that

25 residue testing.

1 (c) ANNUAL TESTING AND CORRECTIVE ACTION.—

2 (1) RISK-BASED PROTOCOL.—The Secretary, in
3 consultation with the Secretary of Homeland Secu-
4 rity and the organic agricultural product imports
5 interagency working group established under section
6 2122A of the Organic Foods Production Act of 1990
7 (7 U.S.C. 6521a), shall develop and regularly update
8 risk-based protocols for—

9 (A) determining which imported organic
10 feedstuffs shall be included on the list of cov-
11 ered organic feedstuffs described in paragraph
12 (2) each year; and

13 (B) determining necessary parameters of
14 residue testing for those imported organic
15 feedstuffs, including—

- 16 (i) frequency of testing;
17 (ii) quantity to be tested;
18 (iii) type of testing;
19 (iv) responsibility for testing; and
20 (v) other necessary parameters.

21 (2) LIST OF COVERED ORGANIC
22 FEEDSTUFFS.—

23 (A) IN GENERAL.—The Secretary, using
24 the risk-based protocol established under para-
25 graph (1)(A), shall establish and annually up-

1 date a list of imported organic feedstuffs for
2 which the Secretary shall carry out residue test-
3 ing under paragraph (3) during that year.

4 (B) CONFIDENTIALITY.—The list estab-
5 lished under subparagraph (A) shall not be
6 made publicly available.

7 (3) ANNUAL TESTING.—Each year, the Sec-
8 retary shall carry out residue testing for each cov-
9 ered organic feedstuff.

10 (4) CORRECTIVE ACTION.—Beginning on the
11 date of enactment of this Act, if any residue testing
12 required under paragraph (3) indicates any detect-
13 able prohibited substance at a level in excess of the
14 level permitted by the national organic program es-
15 tablished under the Organic Foods Production Act
16 of 1990 (7 U.S.C. 6501 et seq.) or the relevant,
17 equivalent organic certification program of a State,
18 the applicable shipment of that covered organic
19 feedstuff—

20 (A) shall be excluded from organic sale;
21 and

22 (B) may not be sold, labeled, or rep-
23 resented as organically produced.

1 **SEC. 10111. OFFICE OF URBAN AGRICULTURE AND INNOVA-**
2 **TIVE PRODUCTION.**

3 Section 222 of the Department of Agriculture Reor-
4 ganization Act of 1994 (7 U.S.C. 6923) is amended—

5 (1) in subsection (a)(3)—

6 (A) in the matter preceding subparagraph
7 (A), by inserting “production” after “emerging
8 agricultural”;

9 (B) in subparagraph (D)—

10 (i) by inserting “controlled-envi-
11 ronment agriculture, including” before “hy-
12 droponic”; and

13 (ii) by striking “and” at the end;

14 (C) by redesignating subparagraph (E) as
15 subparagraph (H); and

16 (D) by inserting after subparagraph (D)
17 the following:

18 “(E) using the resources of the Depart-
19 ment and of State, Tribal, and local agencies to
20 provide technical assistance for business incor-
21 poration, navigating local zoning, and managing
22 farm tract numbers for smaller, noncontiguous
23 parcels to growers implementing activities de-
24 scribed in this paragraph;

25 “(F) using the resources of the Depart-
26 ment and of State, Tribal, and local agencies to

1 promote conservation techniques unique to
2 urban agriculture and innovative production, in-
3 cluding techniques that address stormwater
4 runoff and the impacted nature of urban land
5 and the subsurface of the land;

6 “(G) assisting urban and innovative pro-
7 ducers in navigating Federal, State, Tribal, and
8 local policies and regulations that impact busi-
9 ness or operations; and”;

10 (2) in subsection (b)—

11 (A) in paragraph (5)(B), by striking
12 “2023” and inserting “2031”; and

13 (B) in paragraph (7)(A), by striking “the
14 date that is 5 years after the date on which the
15 members are appointed under paragraph
16 (2)(B)” and inserting “September 30, 2031”;

17 (3) by striking subsection (c) and inserting the
18 following:

19 “(c) GRANTS AND COOPERATIVE AGREEMENTS.—

20 “(1) GRANTS.—

21 “(A) IN GENERAL.—The Director shall
22 award competitive grants to support the devel-
23 opment of urban and innovative agricultural
24 production and technical or financial assistance
25 to producers.

1 “(B) SUBGRANTS.—An eligible entity may
2 use funds from a grant under subparagraph (A)
3 to provide subgrants to urban and innovative
4 producers to support the growth of the farm or
5 farm business of the urban and innovative pro-
6 ducers.

7 “(C) ELIGIBLE ENTITIES.—An entity eligi-
8 ble to receive a grant under subparagraph (A)
9 is—

10 “(i) a nonprofit organization;

11 “(ii) a unit of local government;

12 “(iii) a Tribal organization;

13 “(iv) an agricultural cooperative or
14 other agricultural business entity or a pro-
15 ducer network or association; or

16 “(v) a school that serves any of
17 grades kindergarten through grade 12.

18 “(2) COOPERATIVE AGREEMENTS.—

19 “(A) IN GENERAL.—The Director may
20 enter into cooperative agreements with eligible
21 entities to support the development of urban
22 and innovative agricultural production.

23 “(B) ELIGIBLE ENTITIES.—An entity eligi-
24 ble to enter into a cooperative agreement under
25 subparagraph (A) is—

1 “(i) a nonprofit organization;

2 “(ii) a unit of local government;

3 “(iii) a Tribal organization;

4 “(iv) an agricultural cooperative or
5 other agricultural business entity; or

6 “(v) a producer network or associa-
7 tion.”;

8 (4) in subsection (d)—

9 (A) in the subsection heading, by striking
10 “PILOT”;

11 (B) in paragraph (1)—

12 (i) in subparagraph (A), by striking
13 “Not later than 1 year after the date of
14 enactment of this section, the Secretary
15 shall establish a pilot program for not
16 fewer than 5 years that” and inserting
17 “The Secretary shall continue to imple-
18 ment a program that”; and

19 (ii) in subparagraph (C)—

20 (I) in the matter preceding clause

21 (i), by striking “2023” and inserting
22 “2031”; and

23 (II) in clause (i), by striking
24 “pilot”; and

25 (C) in paragraph (2)—

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1 (i) in subparagraph (A)—

2 (I) by striking “pilot”;

3 (II) by striking “local or munic-
4 ipal” and inserting “local, municipal,
5 or Tribal”;

6 (III) by striking the period at the
7 end and inserting “; and”;

8 (IV) by striking “States to de-
9 velop” and inserting the following:
10 “States—

11 “(i) to develop”; and

12 (V) by adding at the end the fol-
13 lowing:

14 “(ii) to construct at-scale composting,
15 food-to-feed, or anaerobic digestion food
16 waste-to-energy projects.”;

17 (ii) in subparagraph (B)—

18 (I) in the subparagraph heading,
19 by striking “PILOT”;

20 (II) in the matter preceding
21 clause (i), by inserting “Tribal gov-
22 ernments,” after “local govern-
23 ments,”;

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1 (III) by redesignating clauses (vi)
2 through (viii) as clauses (vii) through
3 (ix), respectively; and
4 (IV) by inserting after clause (v)
5 the following:
6 “(vi) develop food waste-to-energy op-
7 erations;”; and
8 (iii) in subparagraph (C), by striking
9 “pilot” each place it appears; and
10 (5) in subsection (e), by striking “2023” and
11 inserting “2031”.

12 **SEC. 10112. NATIONAL ORGANIC PROGRAM OVERSIGHT**
13 **PROTOCOLS AND INSPECTION REQUIRE-**
14 **MENTS.**

15 (a) DEFINITIONS OF RISK TO ORGANIC INTEGRITY
16 AND OVERSIGHT PROTOCOLS.—

17 (1) IN GENERAL.—Section 2103 of the Organic
18 Foods Production Act of 1990 (7 U.S.C. 6502) is
19 amended—

20 (A) by redesignating paragraphs (2), (3),
21 and (6) through (22) as paragraphs (3), (6),
22 (7), (8), (9), (10), (11), (12), (13), (15), (17),
23 (18), (20), (21), (22), (23), (25), (26), and
24 (27), respectively, and moving all paragraphs of
25 that section so as to appear in numerical order;

1 (B) by inserting after paragraph (1) the
2 following:

3 “(2) APPROPRIATE COMMITTEES OF CON-
4 GRESS.—The term ‘appropriate committees of Con-
5 gress’ means—

6 “(A) the Committee on Agriculture, Nutri-
7 tion, and Forestry of the Senate; and

8 “(B) the Committee on Agriculture of the
9 House of Representatives.”;

10 (C) by inserting after paragraph (13) (as
11 so redesignated) the following:

12 “(14) NATIONAL ORGANIC PROGRAM.—The
13 term ‘national organic program’ means the national
14 organic program established under this title.”;

15 (D) by inserting after paragraph (15) (as
16 so redesignated) the following:

17 “(16) NATIONAL ORGANIC STANDARDS
18 BOARD.—The term ‘National Organic Standards
19 Board’ means the National Organic Standards
20 Board established under section 2119.”;

21 (E) by inserting after paragraph (18) (as
22 so redesignated) the following:

23 “(19) OVERSIGHT PROTOCOLS.—The term
24 ‘oversight protocols’ means the regulations, policies,
25 and procedures issued by the Secretary under the

1 authorities provided by sections 2104, 2107, 2114,
2 2115, 2116, and 2120.”; and

3 (F) by inserting after paragraph (23) (as
4 so redesignated) the following:

5 “(24) RISK TO ORGANIC INTEGRITY.—The term
6 ‘risk to organic integrity’ means the likelihood that
7 a product marketed as organically produced is, or
8 contains, an agricultural product that—

9 “(A) was not produced utilizing a system
10 of organic farming in compliance with this title;
11 or

12 “(B) was not processed in compliance with
13 this title.”.

14 (2) CONFORMING AMENDMENTS.—

15 (A) Section 2104(c) of the Organic Foods
16 Production Act of 1990 (7 U.S.C. 6503(c)) is
17 amended by striking “established under section
18 2119”.

19 (B) Section 2107 of the Organic Foods
20 Production Act of 1990 (7 U.S.C. 6506) (as
21 amended by section 10105(a)) is amended—

22 (i) in subsection (c)(1), in the matter
23 preceding subparagraph (A), by striking
24 “established under this title”; and

1 (ii) in subsection (d)(2)(A)(ii), by
2 striking “established under section 2119”.

3 (C) Section 2115(c) of the Organic Foods
4 Production Act of 1990 (7 U.S.C. 6514(c)) is
5 amended by striking “established under this
6 title”.

7 (D) Section 2123(b) of the Organic Foods
8 Production Act of 1990 (7 U.S.C. 6522(b)) is
9 amended, in the matter preceding paragraph
10 (1), by striking “established under this title”.

11 (b) STUDY AND REFORM OF NATIONAL ORGANIC
12 PROGRAM OVERSIGHT PROTOCOLS.—

13 (1) IN GENERAL.—The Organic Foods Produc-
14 tion Act of 1990 is amended by inserting after sec-
15 tion 2122A (7 U.S.C. 6521a) the following:

16 **“SEC. 2122B. STUDY AND REFORM OF NATIONAL ORGANIC**
17 **PROGRAM OVERSIGHT PROTOCOLS.**

18 “(a) STUDY.—Not later than 1 year after the date
19 of enactment of this section, the Secretary shall complete
20 a comprehensive study for the purpose of determining
21 whether the establishment of oversight protocols based on
22 risk to organic integrity and the implementation of related
23 reforms are necessary and appropriate.

24 “(b) ELEMENTS.—

1 “(1) IN GENERAL.—In conducting the study
2 under subsection (a), the Secretary shall examine
3 the feasibility of, opportunities for, and implications
4 of, implementing oversight protocols that—

5 “(A) are based on risk to organic integrity;

6 “(B) include differential treatment of non-
7 compliance that increases the risk to organic in-
8 tegrity versus noncompliance that does not in-
9 crease the risk to organic integrity;

10 “(C) utilize common organic plans under
11 section 2114 that are aligned with the risk to
12 organic integrity;

13 “(D) include a multi-tiered approach to
14 certification aligned with the risk to organic in-
15 tegrity and the scale of the organic operation;

16 “(E) provide for increased guidance and
17 interpretations of standards and criteria estab-
18 lished under this title, to be provided by the na-
19 tional organic program to—

20 “(i) certifying agents;

21 “(ii) certified organic farms; and

22 “(iii) certified organic handling oper-
23 ations; and

24 “(F) include virtual inspections as de-
25 scribed in subsection (e)(4).

1 “(2) CONSIDERATION OF RELEVANT FAC-
2 TORS.—In carrying out paragraph (1), the Secretary
3 shall, with respect to certified organic farms, cer-
4 tified organic handling operations, and certifying
5 agents, take into account—

6 “(A) the scope of certification or accredita-
7 tion of each entity;

8 “(B) the scale and complexity of each enti-
9 ty;

10 “(C) the domestic or international location
11 of each entity;

12 “(D) the history of compliance of each en-
13 tity; and

14 “(E) other relevant factors.

15 “(c) REPORT.—Not later than 18 months after the
16 date of enactment of this section, the Secretary shall sub-
17 mit to the appropriate committees of Congress, and make
18 publicly available on the website of the Department of Ag-
19 riculture, a report describing the findings of the study con-
20 ducted under subsection (a).

21 “(d) CONSULTATION.—In conducting the study
22 under subsection (a), the Secretary shall consult with—

23 “(1) the National Organic Standards Board;

24 “(2) certifying agents;

25 “(3) certified organic farms;

1 “(4) certified organic handling operations;

2 “(5) consumers of organically produced agricul-
3 tural products; and

4 “(6) other relevant stakeholders.

5 “(e) AUTHORITY TO ESTABLISH ADDITIONAL TERMS
6 AND CONDITIONS.—

7 “(1) OVERSIGHT PROTOCOLS.—Based on the
8 findings described in the report under subsection (c),
9 and after consultation with the appropriate commit-
10 tees of Congress, the Secretary may promulgate reg-
11 ulations to establish or modify oversight protocols
12 under this title that the Secretary determines are
13 necessary and appropriate, subject to the condition
14 that such regulations—

15 “(A) maintain strong organic integrity;

16 “(B) support a resilient domestic organic
17 sector; and

18 “(C) are consistent with the requirements
19 of this title.

20 “(2) PUBLIC COMMENT PERIOD.—Any rule-
21 making proceeding relating to the promulgation of
22 regulations under paragraph (1) shall include a pub-
23 lic comment period of not less than 90 days.

1 “(3) REDUCING OVERSIGHT COSTS;
2 PRIORITIZATION.—In promulgating regulations
3 under paragraph (1), the Secretary may seek—

4 “(A) to reduce oversight costs and admin-
5 istrative burdens for certified organic farms,
6 certified organic handling operations, and certi-
7 fying agents that present a lower risk to or-
8 ganic integrity; or

9 “(B) to prioritize oversight resources for
10 activities that present a higher risk to organic
11 integrity.

12 “(4) LIMITED VIRTUAL INSPECTIONS.—

13 “(A) IN GENERAL.—If the Secretary deter-
14 mines, based on the study, report, and consulta-
15 tion required under subsections (a) through (d)
16 and paragraph (1), that it would be appropriate
17 to allow certifying agents to conduct a limited
18 number of annual inspections under section
19 2107(a)(5) virtually pursuant to the protocol
20 described in subparagraph (B), the Secretary
21 may, subject to all other requirements of this
22 subsection, include in any regulations promul-
23 gated under paragraph (1) provisions allowing
24 for the use of virtual inspections consistent with
25 that protocol.

1 “(B) INSPECTION PROTOCOL.—The pro-
2 tocol referred to in subparagraph (A) is the fol-
3 lowing:

4 “(i) In the case of a farm or handling
5 operation site located outside the United
6 States, all inspections shall be conducted
7 on-site.

8 “(ii) In the case of a farm or handling
9 operation site located in the United States,
10 inspections shall be conducted on-site once
11 every 3 years with intervening annual in-
12 spections being conducted on-site or vir-
13 tually based on the risk to organic integ-
14 rity at the farm or handling operation site,
15 as determined by the Secretary.

16 “(iii) In the case of a handling oper-
17 ation that acquires but does not physically
18 receive, process, package, or store organic
19 products, inspections shall be conducted
20 through inspection methods, including vir-
21 tual methods, that provide sufficient assur-
22 ance of compliance with this title, as deter-
23 mined by the Secretary.

“(f) RULE OF CONSTRUCTION.—Nothing in this section limits the authority of the Secretary to enforce compliance with this title to protect organic integrity.”.

(2) CONFORMING AMENDMENT.—Section 2107(a) of the Organic Foods Production Act of 1990 (7 U.S.C. 6506(a)) is amended by striking paragraph (5) and inserting the following:

8 “(5) provide for annual inspections by the certi-
9 fying agent of each farm and handling operation
10 that has been certified under this title, which shall
11 be conducted—

12 “(A) on-site; or

13 “(B) if the Secretary has promulgated reg-
14 ulations under section 2122B(e) allowing for
15 the limited use of virtual inspections, pursuant
16 to those regulations.”.

(3) CLERICAL AMENDMENT.—The table of contents in section 1(b) of the Food, Agriculture, Conservation, and Trade Act of 1990 (Public Law 101–624; 104 Stat. 3370) is amended by striking the item relating to section 2123 and inserting the following:

“Sec. 2122A. Organic agricultural product imports interagency working group.

“Sec. 2122B. Study and reform of national organic program oversight protocols.

“Sec. 2123. Funding.”.

1 **Subtitle B—Regulatory Reform**

2 **SEC. 10201. BIOSTIMULANTS.**

3 (a) DEFINITIONS.—Section 2 of the Federal Insecti-
4 cide, Fungicide, and Rodenticide Act (7 U.S.C. 136) is
5 amended—

6 (1) by striking subsection (v) and inserting the
7 following:

8 “(v) PLANT REGULATOR.—

9 “(1) IN GENERAL.—The term ‘plant regulator’
10 means any substance or mixture of substances in-
11 tended, through physiological action, for accelerating
12 or retarding the rate of growth or rate of matura-
13 tion, or for otherwise altering the behavior, of plants
14 or the produce thereof.

15 “(2) EXCLUSIONS.—The term ‘plant regulator’
16 does not include—

17 “(A) substances to the extent that they
18 are—

19 “(i) intended to be produced and used
20 within a plant; or

21 “(ii) intended as plant nutrients, trace
22 elements, nutritional chemicals, plant in-
23 oculants, soil amendments, or vitamin hor-
24 mone products; or

25 “(B) plant biostimulants that—

1 “(i) have a low-risk profile in relation
2 to humans and other organisms, as deter-
3 mined by the Environmental Protection
4 Agency; and

5 “(ii) are of biological origin or include
6 chemical compounds that are synthetically
7 derived, but structurally similar and func-
8 tionally identical to substances of biological
9 origin.”;

10 (2) in subsection (hh)—

11 (A) in paragraph (2), by striking “or” at
12 the end;

13 (B) in paragraph (3)—

14 (i) in the matter preceding subpara-
15 graph (A), by striking “substances.” and
16 inserting “substances”;

17 (ii) in subparagraph (B)—

18 (I) by striking “volatilization
19 urease” and inserting “volatilization,
20 or urease”; and

21 (II) by striking the period at the
22 end and inserting a semicolon; and

23 (C) by inserting after paragraph (3) the
24 following:

25 “(4) a plant biostimulant; or

1 “(5) a nutritional chemical.”; and

2 (3) by adding at the end the following:

3 “(pp) PLANT BIOSTIMULANT.—The term ‘plant bio-
4 stimulant’ means any substance or mixture of substances
5 that, when applied to seeds, plants, the rhizosphere, or soil
6 or other growth media, acts to support a plant’s natural
7 nutrition processes independently of the nutrient content
8 of that substance or mixture of substances, and that there-
9 by improves—

10 “(1) nutrient availability, uptake, or use effi-
11 ciency;

12 “(2) tolerance to abiotic stress; or

13 “(3) consequent growth, development, quality,
14 or yield.

15 “(qq) NUTRITIONAL CHEMICAL.—The term ‘nutri-
16 tional chemical’ means any substance or mixture of sub-
17 stances that interacts with plant nutrients in a manner
18 that improves nutrient availability or aids the plant in ac-
19 quiring or utilizing plant nutrients.

20 “(rr) VITAMIN HORMONE PRODUCT.—The term ‘vi-
21 tamin hormone product’ means a product that—

22 “(1) consists of a mixture of plant hormones,
23 plant nutrients, plant inoculants, soil amendments,
24 trace elements, nutritional chemicals, plant biostimu-
25 lants, or vitamins that is intended for the improve-

1 ment, maintenance, survival, health, and propaga-
2 tion of plants;

3 “(2) is nontoxic and nonpoisonous in the undi-
4 luted packaged concentrations of the product; and

5 “(3) is not intended for use on food crop sites
6 and is labeled accordingly.

7 “(ss) PLANT-INCORPORATED PROTECTANT.—

8 “(1) IN GENERAL.—The term ‘plant-incor-
9 porated protectant’ means a pesticide that is—

10 “(A) intended for preventing, destroying,
11 repelling, or mitigating a pest; and

12 “(B) a substance or mixture of substances
13 intended to be produced and used within a liv-
14 ing plant, or in the produce thereof, and the ge-
15 netic material necessary for its production.

16 “(2) INCLUSIONS.—The term ‘plant-incor-
17 porated protectant’ includes any inert ingredient (as
18 defined in section 174.3 of title 40, Code of Federal
19 Regulations (or any successor regulation)).”.

20 (b) EXEMPTION FROM REGULATION.—Section 25 of
21 the Federal Insecticide, Fungicide, and Rodenticide Act
22 (7 U.S.C. 136w) is amended by striking subsection (b) and
23 inserting the following:

24 “(b) EXEMPTION OF PESTICIDES.—

1 “(1) EXEMPTION BY RULE.—The Adminis-
2 trator may exempt from the requirements of this Act
3 by regulation any pesticide which the Administrator
4 determines either—

5 “(A) to be adequately regulated by another
6 Federal agency; or

7 “(B) to be of a character which is unneces-
8 sary to be subject to this Act in order to carry
9 out the purposes of this Act.

10 “(2) EXEMPTION FOR CERTAIN PLANT-INCOR-
11 PORATED PROTECTANTS.—

12 “(A) EXEMPTION.—

13 “(i) IN GENERAL.—On the issuance of
14 guidance as described in subparagraph
15 (B), plant-incorporated protectants result-
16 ing from endogenous genetic material
17 found within or that could arise from the
18 plant’s gene pool are exempt from the re-
19 quirements of this Act.

20 “(ii) EXCEPTION.—A specific plant-
21 incorporated protectant arising from en-
22 dogenous genetic material found within or
23 that could arise from the plant’s gene pool
24 shall not be exempt from the requirements
25 of this Act if the Administrator determines

1 that such plant-incorporated protectant is
2 of a character which is necessary to be
3 subject to this Act in order to carry out
4 the purposes of this Act.

5 “(B) GUIDANCE.—

6 “(i) IN GENERAL.—Not later than 1
7 year after the date of enactment of the Ag-
8 ricultural Act of 2026, the Administrator
9 shall issue guidance for the implementation
10 of subparagraph (A).

11 “(ii) UPDATES.—The Administrator
12 may update the guidance issued under
13 clause (i) as the Administrator determines
14 to be appropriate.

15 “(C) ORDER.—

16 “(i) IN GENERAL.—If the Adminis-
17 trator makes a determination described in
18 subparagraph (A)(ii) with respect to a
19 plant-incorporated protectant, the Admin-
20 istrator shall issue an order explaining the
21 basis for that determination, which may be
22 issued directly to any person who owns,
23 controls, or has custody of the plant-incor-
24 porated protectant or published in the
25 Federal Register.

1 “(ii) EFFECT OF ORDER.—After re-
2 ceipt or publication of an order described
3 in clause (i), the plant-incorporated pro-
4 tectant described in the order will no
5 longer be exempt from the requirements of
6 this Act.

7 “(D) TOLERANCE EXEMPTION.—The res-
8 idue of a plant-incorporated protectant that is
9 exempt under subparagraph (A)(i) shall be ex-
10 empt from the requirement for a tolerance
11 under section 408 of the Federal Food, Drug,
12 and Cosmetic Act (21 U.S.C. 346a) unless, and
13 until such time as, the Administrator issues or
14 publishes an order under subparagraph (C)(i).”.

15 (c) CONFORMING AMENDMENTS.—Section 17(c) of
16 the Federal Insecticide, Fungicide, and Rodenticide Act
17 (7 U.S.C. 136o(c)) is amended—

18 (1) in paragraph (2)—

19 (A) in the matter preceding subparagraph
20 (A), by striking “(as defined in section 174.3 of
21 title 40, Code of Federal Regulations (or any
22 successor regulation))”;

23 (B) in subparagraph (B), by striking “or”
24 at the end;

1 (C) in subparagraph (C), by striking the
2 period at the end and inserting “; or”; and

3 (D) by adding at the end the following:

4 “(D) that plant-incorporated protectant is
5 exempt under section 25(b)(2) or part 174 of
6 title 40, Code of Federal Regulations (or any
7 successor regulation).”; and

8 (2) in paragraph (3)(A), by striking “(as de-
9 fined in section 174.3 of title 40, Code of Federal
10 Regulations (or any successor regulation))”.

11 **SEC. 10202. SOIL HEALTH STUDY.**

12 (a) STUDY.—The Secretary shall conduct a study to
13 assess the types of, and practices using, plant biostimu-
14 lants (as defined in section 2 of the Federal Insecticide,
15 Fungicide, and Rodenticide Act (7 U.S.C. 136)) that best
16 achieve the following:

17 (1) Increasing organic matter content.

18 (2) Reducing atmospheric volatilization.

19 (3) Promotion of nutrient management prac-
20 tices.

21 (4) Limiting or eliminating runoff or leaching
22 of soil or nutrients, such as phosphorus and nitro-
23 gen, into groundwater or other water sources.

24 (5) Restoring beneficial bioactivity or healthy
25 nutrients to the soil.

1 (6) Aiding in carbon sequestration, nutrient use
2 efficiency, and other climate-related benefits.

3 (7) Supporting innovative approaches to im-
4 proving agricultural sustainability, including the
5 adoption of performance-based outcome standards
6 and criteria.

7 (b) REPORT.—Not later than 4 years after the date
8 on which funds are first made available for the study
9 under subsection (a), the Secretary shall make publicly
10 available and submit to the Committee on Agriculture of
11 the House of Representatives and the Committee on Agri-
12 culture, Nutrition, and Forestry of the Senate a report
13 that describes the results of the study.

14 **SEC. 10203. FIFRA INTERAGENCY WORKING GROUP.**

15 Section 3(c)(11) of the Federal Insecticide, Fun-
16 gicide, and Rodenticide Act (7 U.S.C. 136a(c)(11)) is
17 amended—

18 (1) in subparagraph (B)—

19 (A) by striking “The Administrator shall”
20 and inserting the following:

21 “(i) IN GENERAL.—The Administrator
22 shall”; and

23 (B) by adding at the end the following:

24 “(ii) PARTICIPATION.—The Secretary
25 of Agriculture shall include the Director of

1 the Office of Pest Management Policy in
2 all meetings of the interagency working
3 group.”;

4 (2) in subparagraph (D)—

5 (A) in clause (iv), in the matter preceding
6 subclause (I), by striking “every 180 days
7 thereafter during the 5-year period beginning
8 on that date” and inserting “each year there-
9 after”; and

10 (B) by adding at the end the following:

11 “(v) AVAILABILITY.—All reports re-
12 quired under this subparagraph shall be
13 published on the website of the Environ-
14 mental Protection Agency.”; and

15 (3) by striking subparagraph (E) and inserting
16 the following:

17 “(E) CONSULTATION.—

18 “(i) WORKING GROUP WITH PRIVATE
19 SECTOR.—In carrying out the duties under
20 this paragraph, the working group shall, as
21 appropriate—

22 “(I) consult, including through
23 public meetings, with representatives
24 of interested industry stakeholders
25 and nongovernmental organizations

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1 not less frequently than once each
2 year; and

3 “(II) take into consideration fac-
4 tors, such as actual and potential dif-
5 ferences in interest between, and the
6 views of, those stakeholders and orga-
7 nizations.

8 “(ii) ADMINISTRATOR WITH WORKING
9 GROUP.—Before the Administrator imple-
10 ments any policy, strategy, workplan, or
11 pilot program regarding the application of
12 the Endangered Species Act of 1973 (16
13 U.S.C. 1531 et seq.) to the processes for
14 the registration or registration review of a
15 pesticide under this Act, the Administrator
16 shall—

17 “(I) consult with the covered
18 agencies on the policy, strategy,
19 workplan, or pilot program and take
20 into consideration input received; and

21 “(II) publish the input received
22 from the covered agencies in the dock-
23 et with the corresponding policy,
24 strategy, workplan, or pilot pro-
25 gram.”.

1 **SEC. 10204. INTERSTATE MOVEMENT OUTSIDE OF THE CON-**
2 **TINENTAL UNITED STATES.**

3 Section 433(c)(1) of the Plant Protection Act (7
4 U.S.C. 7753(c)(1)) is amended by inserting “or interstate
5 movement from areas outside of the continental United
6 States,” after “United States,”.

7 **SEC. 10205. CONSTRUCTION PROJECTS TO SUPPORT EMER-**
8 **GENCY PLANT HEALTH RESPONSE EFFORTS.**

9 Subtitle D of the Plant Protection Act (7 U.S.C.
10 7771 et seq.) is amended by adding at the end the fol-
11 lowing:

12 **“SEC. 443. USE OF FUNDS.**

13 “The Secretary may use funds made available to
14 carry out this title for the construction and operation of
15 research laboratories, quarantine stations, and other
16 buildings and facilities for special purposes.”.

17 **SEC. 10206. AGRICULTURE QUARANTINE AND INSPECTION**
18 **PROGRAM RESERVE FEE.**

19 Section 2509(a)(1) of the Food, Agriculture, Con-
20 servation, and Trade Act of 1990 (21 U.S.C. 136a(a)(1))
21 is amended by striking subparagraph (C) and inserting
22 the following:

23 “(C) to maintain a reasonable balance in
24 the Department of Agriculture accounts de-
25 scribed in paragraph (6).”.

1 **SEC. 10207. REGISTRATION REVIEW.**

2 (a) EXTENSION OF DEADLINE.—Section
3 3(g)(1)(A)(iii) of the Federal Insecticide, Fungicide, and
4 Rodenticide Act (7 U.S.C. 136a(g)(1)(A)(iii)) is amend-
5 ed—

6 (1) in the matter preceding subclause (I), by
7 striking “the registration review of” and inserting
8 “the interim registration review decision of”; and

9 (2) in subclause (I), by striking “2022” and in-
10 serting “2031”.

11 (b) INTERIM REGISTRATION REVIEW DECISION RE-
12 QUIREMENTS.—Section 3(g)(1)(A) of the Federal Insecti-
13 cide, Fungicide, and Rodenticide Act (7 U.S.C.
14 136a(g)(1)(A)) is amended by adding at the end the fol-
15 lowing:

16 “(vi) INTERIM REGISTRATION REVIEW
17 DECISION REQUIREMENTS.—

18 “(I) REQUIREMENTS.—Any cov-
19 ered interim registration review deci-
20 sion shall include, where applicable,
21 measures to reduce the effects of the
22 applicable pesticide on—

23 “(aa) species listed under
24 the Endangered Species Act of
25 1973 (16 U.S.C. 1531 et seq.);
26 or

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1 “(bb) any designated critical
2 habitat.

3 “(II) CONSULTATION.—In devel-
4 oping measures described in subclause
5 (I), the Administrator shall take into
6 account the input received from the
7 Secretary of Agriculture and other
8 members of the interagency working
9 group established under subsection
10 (c)(11).

11 “(III) COVERED INTERIM REG-
12 ISTRATION REVIEW DECISION.—In
13 this subsection, the term ‘covered in-
14 terim registration review decision’
15 means an interim registration review
16 decision—

17 “(aa) that is associated with
18 an initial registration review de-
19 scribed in clause (iii);

20 “(bb) that is noticed in the
21 Federal Register before October
22 1, 2031; and

23 “(cc) for which the Adminis-
24 trator has not, as of the date on
25 which the decision is noticed in

1 the Federal Register, made ef-
2 fects determinations or completed
3 any necessary consultation under
4 section 7(a)(2) of the Endan-
5 gered Species Act of 1973 (16
6 U.S.C. 1536(a)(2)).”.

7 (c) CONFORMING REPEAL.—Section 711 of the Pes-
8 ticide Registration Improvement Act of 2022 (title VI of
9 division HH of Public Law 117–328; 136 Stat. 6083) is
10 repealed.

11 **SEC. 10208. OFFICE OF PEST MANAGEMENT POLICY.**

12 Section 614(f) of the Agricultural Research, Exten-
13 sion, and Education Reform Act of 1998 (7 U.S.C.
14 7653(f)) is amended—

15 (1) in paragraph (1), by striking “and” at the
16 end;

17 (2) in paragraph (2), by striking “2023.” and
18 inserting “2026; and”; and

19 (3) by adding at the end the following:

20 “(3) \$8,000,000 for each of fiscal years 2027
21 through 2031.”.

22 **SEC. 10209. COORDINATION.**

23 Section 3 of the Federal Insecticide, Fungicide, and
24 Rodenticide Act (7 U.S.C. 136a) is amended by adding
25 at the end the following:

1 “(i) COORDINATION.—

2 “(1) RISK MITIGATION MEASURES.—If any risk
3 mitigation measures are required for any pesticide
4 registered under this Act, the Administrator shall—

5 “(A) develop such measures in coordina-
6 tion with the Secretary of Agriculture; and

7 “(B) conduct, and publish in the docket,
8 with the corresponding action, an economic
9 analysis determining the cost of implementation
10 of such measures.

11 “(2) DATA AND INFORMATION.—

12 “(A) COORDINATION OF DATA AND INFOR-
13 MATION.—With respect to the registration or
14 registration review of a pesticide under this Act
15 and for making a determination under section
16 408 of the Federal Food, Drug, and Cosmetic
17 Act (21 U.S.C. 346a) with respect to any action
18 that impacts the sale, distribution, or use of a
19 pesticide, the Administrator shall coordinate
20 with the Secretary of Agriculture, acting
21 through the Director of the Office of Pest Man-
22 agement Policy, so that the Administrator has,
23 for the Administrator’s use and consideration
24 for such processes—

25 “(i) agronomic use data from—

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1 “(I) the Department of Agri-
2 culture; and

3 “(II) industry; and

4 “(ii) any information relating to the
5 availability and economic viability of alter-
6 natives to the applicable pesticide.

7 “(B) PUBLICATION.—In issuing any deci-
8 sion resulting from a process described in sub-
9 paragraph (A), the Administrator shall pub-
10 lish—

11 “(i) a description of the use by the
12 Administrator of any data or information
13 provided by the Secretary of Agriculture
14 under that subparagraph; and

15 “(ii) the determination of the Admin-
16 istrator on whether to use such data or in-
17 formation, including, if applicable, the rea-
18 sons that the data or information was not
19 used.

20 “(3) REASONABLE AND PRUDENT ACTIONS AND
21 MEASURES.—With respect to the implementation of
22 reasonable and prudent actions and measures relat-
23 ing to the use of a pesticide registered under this
24 Act, the Administrator shall coordinate with the Sec-

1 retary of Agriculture, the Secretary of the Interior,
2 and the Secretary of Commerce—

3 “(A) to review the development of any such
4 actions and measures that are a result of con-
5 sultations relating to actions under this Act;

6 “(B) to fully consider the risks and bene-
7 fits of any such actions and measures in a man-
8 ner consistent with practices established to
9 evaluate the risks and benefits of a pesticide
10 registered under this Act; and

11 “(C) to provide feedback to the Secretary
12 of the Interior and the Secretary of Commerce
13 on decisions relating to any such actions and
14 measures that may affect end users of a pes-
15 ticide registered under this Act.

16 “(4) WAIVER.—The coordination requirements
17 imposed by this subsection may be waived or modi-
18 fied for a specific action to the extent agreed upon
19 by the Administrator, the Secretary of Agriculture,
20 and the registrant, subject to the condition that such
21 agreement is published by the Administrator in the
22 docket for the corresponding action.”.

1 **SEC. 10210. MULTIPLE CROP AND PESTICIDE USE SURVEY.**

2 Section 10109 of the Agriculture Improvement Act
3 of 2018 (Public Law 115–334; 132 Stat. 4906) is amend-
4 ed by striking subsection (b) and inserting the following:

5 “(b) ADMINISTRATION.—

6 “(1) SUBMISSION.—The Secretary shall submit
7 to the Administrator of the Environmental Protec-
8 tion Agency, and make publicly available, the survey
9 described in subsection (a).

10 “(2) COMMERCIAL DATA.—The Secretary, act-
11 ing through the Director of the Office of Pest Man-
12 agement Policy, shall obtain commercial data on pes-
13 ticide use to inform the conduct of, and enhance the
14 results of, the survey described in subsection (a).

15 “(3) RULEMAKING PROCEDURE.—The adminis-
16 tration of this section shall be made without regard
17 to chapter 35 of title 44, United States Code (com-
18 monly known as the ‘Paperwork Reduction Act’).”.

19 **SEC. 10211. OFFICE OF BIOTECHNOLOGY POLICY.**

20 (a) IN GENERAL.—Subtitle B of title VI of the Agri-
21 cultural Research, Extension, and Education Reform Act
22 of 1998 (7 U.S.C. 7651 et seq.) is amended by adding
23 at the end following:

24 **“SEC. 621. OFFICE OF BIOTECHNOLOGY POLICY.**

25 “(a) PURPOSE.—The purpose of this section is to es-
26 tablish an Office of Biotechnology Policy to provide for

1 the effective coordination of agricultural policies and ac-
2 tivities within the Department related to biotechnology,
3 while taking into account the effects of actions of other
4 government agencies.

5 “(b) ESTABLISHMENT OF OFFICE; PRINCIPAL RE-
6 SPONSIBILITIES.—The Secretary shall establish in the De-
7 partment an Office of Biotechnology Policy, which shall
8 be responsible for—

9 “(1) facilitating the coordination of the develop-
10 ment of Department policy on biotechnology, bio-
11 manufacturing, and related topics;

12 “(2) facilitating the coordination of activities
13 and services of the Department, including research,
14 extension, and education activities, regarding the de-
15 velopment, regulation, availability, and use of bio-
16 technology tools and products under—

17 “(A) the Plant Protection Act (7 U.S.C.
18 7701 et seq.);

19 “(B) the Animal Health Protection Act (7
20 U.S.C. 8301 et seq.);

21 “(C) the eighth paragraph of the matter
22 under the heading ‘BUREAU OF ANIMAL INDUS-
23 TRY’ in the Act of March 4, 1913 (commonly
24 known as the ‘Virus-Serum-Toxin Act’) (21
25 U.S.C. 151 et seq.);

1 “(D) the Federal Meat Inspection Act (21
2 U.S.C. 601 et seq.);

3 “(E) the Poultry Products Inspection Act
4 (21 U.S.C. 451 et seq.);

5 “(F) the Egg Products Inspection Act (21
6 U.S.C. 1031 et seq.); and

7 “(G) other applicable laws;

8 “(3) offering consultation to other agencies of
9 the Department in fulfilling their responsibilities re-
10 lating to biotechnology under—

11 “(A) the Federal Insecticide, Fungicide,
12 and Rodenticide Act (7 U.S.C. 136 et seq.);

13 “(B) the Federal Food, Drug, and Cos-
14 metic Act (21 U.S.C. 301 et seq.);

15 “(C) the Food Quality Protection Act of
16 1996 (Public Law 104–170; 110 Stat. 1489);
17 and

18 “(D) other applicable laws; and

19 “(4) performing such other functions as may be
20 required by law or prescribed by the Secretary.

21 “(c) INTERAGENCY COORDINATION.—In support of
22 its responsibilities under subsection (b), the Office of Bio-
23 technology Policy shall provide leadership to ensure co-
24 ordination of interagency activities between cross-Depart-
25 mental agencies and offices and 1 or more of the following:

1 “(1) The Environmental Protection Agency.

2 “(2) The Food and Drug Administration.

3 “(3) Any other Federal or State agency.

4 “(d) OUTREACH.—The Office of Biotechnology Pol-
5 icy shall consult with biotechnology developers, academics,
6 agricultural producers, and others that may be affected
7 by biotechnology-related activities or actions of the De-
8 partment or other Federal agencies, as necessary, in car-
9 rying out the responsibilities of the Office of Biotechnology
10 Policy under this section.

11 “(e) DIRECTOR.—The Office of Biotechnology Policy
12 shall be under the direction of a Director appointed by
13 the Secretary, who shall report directly to the Secretary
14 or a designee of the Secretary.

15 “(f) AUTHORIZATION OF APPROPRIATIONS.—There
16 is authorized to be appropriated to carry out this section
17 \$1,000,000 for each of fiscal years 2027 through 2031.”.

18 (b) CLERICAL AMENDMENTS.—The table of contents
19 in section 1(b) of the Agricultural Research, Extension,
20 and Education Reform Act of 1998 (Public Law 105–185;
21 112 Stat. 523) is amended—

22 (1) by striking the items relating to sections
23 401, 402, 403, 405, 409, 612, 617, 631, and 632;

24 (2) by striking the item relating to subtitle C
25 of title VI;

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1 (3) by inserting after the item relating to sec-
2 tion 404 the following:

“Sec. 405. National food safety training, education, extension, outreach, and
technical assistance program.”;

3 (4) by inserting after the item relating to sec-
4 tion 408 the following:

“Sec. 410. Grants for youth organizations.

“Sec. 411. Agricultural biotechnology research and development for developing
countries.

“Sec. 412. Specialty crop research initiative.

“Sec. 413. Food and agriculture service learning program.”;

5 (5) by inserting after the item relating to sec-
6 tion 616 the following:

“Sec. 617. Forestry products advanced utilization research.”; and

7 (6) by inserting after the item relating to sec-
8 tion 619 the following:

“Sec. 620. Senior Scientific Research Center.

“Sec. 621. Office of Biotechnology Policy.”.

9 **TITLE XI—CROP INSURANCE**

10 **SEC. 11001. MANAGEMENT OF CORPORATION.**

11 (a) IN GENERAL.—Section 505 of the Federal Crop
12 Insurance Act (7 U.S.C. 1505) is amended—

13 (1) in subsection (a)—

14 (A) in paragraph (2)—

15 (i) by redesignating subparagraphs
16 (E), (F), and (G) as subparagraphs (F),
17 (G), and (H), respectively;

18 (ii) by inserting after subparagraph
19 (D) the following:

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1 “(E) The chairperson of the Specialty
2 Crop Advisory Committee established under
3 subsection (f)(1)(A), who shall serve as a non-
4 voting ex officio member.”; and

5 (iii) in subparagraph (H) (as so redes-
6 ignated)—

7 (I) by striking “Four” and in-
8 serting “4”; and

9 (II) by striking “including at
10 least one specialty crop producer.”
11 and inserting the following: “including
12 at least—

13 “(i) 1 specialty crop producer; and

14 “(ii) beginning with the Board of Di-
15 rectors serving on or after May 1, 2027—

16 “(I) 1 producer that actively en-
17 gages in livestock production and crop
18 production of agricultural commod-
19 ities; and

20 “(II) 1 underserved producer (as
21 defined in section 508(a)(7)(A)) that
22 is a beginning farmer or rancher.”;
23 and

24 (B) in paragraph (3), in the matter pre-
25 ceding subparagraph (A), by striking “subpara-

1 graphs (E), (F), and (G) of paragraph (2)” and
2 inserting “subparagraphs (F), (G), and (H) of
3 paragraph (2), and the members of the Spe-
4 cialty Crop Advisory Committee established
5 under subsection (f)(1)(A)”;

6 (2) by striking subsection (b) and inserting the
7 following:

8 “(b) VACANCIES.—

9 “(1) IN GENERAL.—A vacancy on the Board
10 shall not impair the power of the Board to execute
11 the functions of the Corporation, subject to the con-
12 dition that there are at least 6 members of the
13 Board in office.

14 “(2) QUORUM.—6 members of the Board in of-
15 fice shall constitute a quorum for the transaction of
16 the business of the Board.”; and

17 (3) by adding at the end the following:

18 “(f) SPECIALTY CROP ADVISORY COMMITTEE.—

19 “(1) IN GENERAL.—Not later than 180 days
20 after the date of enactment of this subsection, the
21 Secretary shall—

22 “(A) establish a Specialty Crop Advisory
23 Committee (referred to in this subsection as the
24 ‘Committee’), to assist the Corporation in the
25 research, establishment, and improvement of

1 policies or plans of insurance for specialty
2 crops; and

3 “(B) appoint the initial members of the
4 Committee in accordance with paragraph (2).

5 “(2) COMPOSITION.—

6 “(A) CHAIRPERSON.—The chairperson of
7 the Committee shall be an individual with—

8 “(i) experience in crop insurance; and

9 “(ii) familiarity with the unique na-
10 ture of the specialty crop industry.

11 “(B) MEMBERS.—The Committee shall
12 consist of not more than 10 members, to be ap-
13 pointed in accordance with subsection (a)(3),
14 including—

15 “(i) individuals with an understanding
16 of the production methods, markets, and
17 risks (including losses due to weather,
18 trade damages, and supply chain disrup-
19 tions) unique to specialty crop production;

20 “(ii) not fewer than 5 producers; and

21 “(iii) not fewer than 1 producer from
22 each of the West, Midwest, South, and
23 Northeast regions of the United States (as
24 identified by the Bureau of the Census).

25 “(3) DUTIES.—

1 “(A) IN GENERAL.—The Committee
2 shall—

3 “(i) review available educational pro-
4 grams and make recommendations on how
5 to enhance the effectiveness of those pro-
6 grams for specialty crop producers;

7 “(ii) advise the manager of the Cor-
8 poration on issues relating to specialty
9 crop insurance policies;

10 “(iii) provide, through the Chair-
11 person of the Committee, input to the
12 Board on decisions relating to specialty
13 crop insurance policies;

14 “(iv) provide recommendations to the
15 manager of the Corporation regarding the
16 presentation of policies to the Board under
17 section 508(a)(6); and

18 “(v) advise the manager of the Cor-
19 poration on entering into partnerships to
20 carry out subsections (d) and (e)(2)(B) of
21 section 522.

22 “(B) REQUIREMENTS.—In carrying out
23 the duties under this paragraph, the Committee
24 shall—

1 “(i) meet not less frequently than 2
2 times each year; and

3 “(ii) coordinate closely with the Spe-
4 cialty Crops Coordinator under section
5 507(g).”.

6 (b) SPECIALTY CROPS COORDINATOR.—Section 507
7 of the Federal Crop Insurance Act (7 U.S.C. 1507) is
8 amended by striking subsection (g) and inserting the fol-
9 lowing:

10 “(g) SPECIALTY CROPS COORDINATOR.—

11 “(1) IN GENERAL.—The Corporation shall es-
12 tablish a management-level position, to be known as
13 the ‘Specialty Crops Coordinator’.

14 “(2) RESPONSIBILITIES.—

15 “(A) IN GENERAL.—The Specialty Crops
16 Coordinator shall have the primary responsi-
17 bility for—

18 “(i) addressing the needs of specialty
19 crop producers; and

20 “(ii) providing information and advice,
21 in connection with the activities of the Cor-
22 poration, to improve and expand the insur-
23 ance program for specialty crops.

1 “(B) OTHER DUTIES.—In carrying out
2 subparagraph (A), the Specialty Crops Coordi-
3 nator shall—

4 “(i) act as a liaison of the Corporation
5 with representatives of specialty crop pro-
6 ducers and the Specialty Crop Advisory
7 Committee; and

8 “(ii) assist the Corporation with the
9 knowledge, expertise, and familiarity of
10 specialty crop producers with risk manage-
11 ment and production issues relating to spe-
12 cialty crops.”.

13 (c) ANNUAL REVIEW OF NEW AND SPECIALTY
14 CROPS.—Section 508(a)(6)(A) of the Federal Crop Insur-
15 ance Act (7 U.S.C. 1508(a)(6)(A)) is amended, in the
16 matter preceding clause (i), by inserting “, in consultation
17 with the Specialty Crop Advisory Committee,” after “Cor-
18 poration”.

19 **SEC. 11002. IDENTIFICATION OF HOLDERS OF SUBSTAN-**
20 **TIAL INTERESTS.**

21 (a) IN GENERAL.—Section 506(m) of the Federal
22 Crop Insurance Act (7 U.S.C. 1506(m)) is amended—

23 (1) by striking paragraph (3) and inserting the
24 following:

1 “(3) IDENTIFICATION OF HOLDERS OF SUB-
2 STANTIAL INTERESTS.—

3 “(A) IN GENERAL.—Subject to subpara-
4 graph (B), the Manager of the Corporation may
5 require each policyholder to provide to the Man-
6 ager, at such times and in such manner as the
7 Manager may prescribe, the name of each indi-
8 vidual or other entity that acquires or holds a
9 substantial beneficial interest in such policy-
10 holder.

11 “(B) EXTENSION AVAILABLE.—

12 “(i) IN GENERAL.—Except as pro-
13 vided in clause (ii), the Manager of the
14 Corporation shall allow a policyholder that
15 does not provide to the Manager any infor-
16 mation required pursuant to subparagraph
17 (A) at the time prescribed by the Manager
18 to provide that information to the Manager
19 at any time during the applicable crop
20 year.

21 “(ii) EXCEPTION.—Clause (i) shall
22 not apply to a policyholder that an ap-
23 proved insurance provider determines—

24 “(I) would receive a dispropor-
25 tionate benefit under a crop insurance

1 program as a result of failing to pro-
2 vide to the Manager of the Corpora-
3 tion information required pursuant to
4 subparagraph (A) at the time pre-
5 scribed by the Manager; or

6 “(II) failed to provide such infor-
7 mation to avoid an obligation or re-
8 quirement under an applicable Fed-
9 eral or State law.”; and

10 (2) in paragraph (4), by striking “5 percent”
11 and inserting “10 percent”.

12 (b) TECHNICAL CORRECTIONS.—Section 506 of the
13 Federal Crop Insurance Act (7 U.S.C. 1506) is amend-
14 ed—

15 (1) in subsection (d), in the first sentence, by
16 striking “section 508(j)(2)(A), the Corporation, sub-
17 ject to the provisions of section 508(j), may” and in-
18 serting “section 508(j), the Corporation may”; and

19 (2) in subsection (m) (as amended by sub-
20 section (a))—

21 (A) in paragraph (1), by striking
22 “205(c)(2)(C)(iii)” and inserting
23 “205(c)(2)(C)(iv)”; and

24 (B) by redesignating paragraphs (1)
25 through (4) as paragraphs (2), (3), (4), and

1 (1), respectively, and moving the paragraphs so
2 as to appear in numerical order.

3 **SEC. 11003. RESTORATION OF FINAL AGENCY DETERMINA-**
4 **TIONS.**

5 Section 506 of the Federal Crop Insurance Act (7
6 U.S.C. 1506) is amended by striking subsection (r) and
7 inserting the following:

8 “(q) PROCEDURES FOR RESPONDING TO CERTAIN
9 INQUIRIES.—

10 “(1) EXCLUSIVE INTERPRETIVE AUTHORITY.—

11 The Corporation shall have exclusive authority to in-
12 terpret—

13 “(A) any regulation issued under this sub-
14 title;

15 “(B) any plan of insurance authorized by
16 this Act or reinsured by the Corporation; and

17 “(C) any policy, plan of insurance, con-
18 tract provision, or procedure issued or approved
19 pursuant to this Act.

20 “(2) REQUEST FOR INTERPRETATION.—A par-
21 ticipant in the Federal crop insurance program may
22 request the Corporation to provide an interpretation
23 under paragraph (1).

24 “(3) FINAL AGENCY DETERMINATION.—

1 “(A) IN GENERAL.—Not later than 90
2 days after receiving a request under paragraph
3 (2), the Corporation shall provide a written in-
4 terpretation, which shall be considered a final
5 agency determination.

6 “(B) PUBLICATION.—The Corporation
7 shall make publicly available each interpretation
8 provided under subparagraph (A).

9 “(4) GENERAL APPLICABILITY AND BINDING
10 EFFECT.—Any final agency determination made
11 pursuant to paragraph (3) or, if made before the
12 date of enactment of the Agricultural Act of 2026,
13 pursuant to any provision of this section then in ef-
14 fect, shall—

15 “(A) be generally applicable to and binding
16 on all participants in the Federal crop insur-
17 ance program, including producers, approved
18 insurance providers, agents, loss adjusters, arbi-
19 trators, the National Appeals Division, and all
20 courts of competent jurisdiction; and

21 “(B) apply in any litigation, arbitration, or
22 judicial review arising under this Act.”.

23 **SEC. 11004. COVERAGE OF REVENUE LOSSES.**

24 Section 508(a)(1) of the Federal Crop Insurance Act
25 (7 U.S.C. 1508(a)(1)) is amended, in the second sentence,

1 by inserting “or a decline in the market price of the in-
2 sured commodity, subject to the condition that the decline
3 was not directly caused by the producer, as determined
4 by the Secretary” before the period at the end.

5 **SEC. 11005. YIELD DETERMINATIONS.**

6 Section 508(g)(4) of the Federal Crop Insurance Act
7 (7 U.S.C. 1508(g)(4)) is amended—

8 (1) in subparagraph (D), by inserting “, except
9 no such adjustment shall be made in the case of an
10 action taken by the Corporation under subparagraph
11 (E)” before the period at the end; and

12 (2) by adding at the end the following:

13 “(E) FURTHER EXCLUSION.—Notwith-
14 standing any other provision of this Act, with
15 respect to 1 or more of the crop years used to
16 establish the actual production history of an ag-
17 ricultural commodity of the producer, the Cor-
18 poration shall exclude any recorded or ap-
19 praised yield for any crop year in which the per
20 planted acre yield of the agricultural commodity
21 of the producer is adversely impacted due to the
22 operation of the project described in row 4 in
23 the table under section 7002(2) of the Water
24 Resources Reform and Development Act of
25 2014 (Public Law 113–121; 128 Stat. 1366).”.

1 SEC. 11006. CROP INSURANCE SUPPORT FOR BEGINNING
2 AND VETERAN FARMERS AND RANCHERS.

(a) DEFINITION OF VETERAN FARMER OR RANCH-
ER.—Section 502(b)(14)(B) of the Federal Crop Insur-
ance Act (7 U.S.C. 1502(b)(14)(B)) is amended—

6 (1) in clause (ii), by striking “5” and inserting
7 “10”; and

8 (2) in clause (iii), by striking “5-year” and in-
9 serting “10-year”.

(b) INCREASE IN ASSISTANCE.—Section 508(e)(9) of the Federal Crop Insurance Act (7 U.S.C. 1508(e)(9)) is amended by inserting “or veteran farmer or rancher” after “beginning farmer or rancher” each place it appears.

14 SEC. 11007. MARKETABILITY.

15 Section 508(h)(4) of the Federal Crop Insurance Act
16 (7 U.S.C. 1508(h)(4)) is amended—

17 (1) in subparagraph (A)(iii)—

18 (A) by striking “This subparagraph” and
19 inserting the following:

20 “(I) IN GENERAL.—Except as
21 provided in subclause (II), this sub-
22 paragraph”; and

23 (B) by adding at the end the following:

24 “(II) EXCEPTION.—An approved
25 insurance provider that submits a let-

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1 ter of support for a concept proposal
2 or a policy or plan of insurance—

3 “(aa) shall not be considered
4 the public for purposes of clause
5 (ii);

6 “(bb) shall have access to
7 data and other product develop-
8 ment information submitted to
9 the Board under this subsection;
10 and

11 “(cc) shall be subject to the
12 confidentiality requirements that
13 are applicable to the Board under
14 clauses (i) and (ii).”;

15 (2) by striking subparagraph (B) and inserting
16 the following:

17 “(B) SUBMITTER.—With respect to a per-
18 son authorized to make a submission under
19 paragraph (1)(A), the Board—

20 “(i) shall provide that person with an
21 opportunity to present the submission to
22 the Board in person; and

23 “(ii) shall not require an approved in-
24 surance provider assisting that person with
25 a policy to be included as a person or enti-

1 ty making the submission under this sub-
2 section.”;

3 (3) in subparagraph (D), by adding at the end
4 the following:

5 “(iv) MARKETABILITY DEADLINE.—

6 Any new policy, plan of insurance, or other
7 material approved by the Board under this
8 subsection during a reinsurance year and
9 after the Standard Reinsurance Agreement
10 closing date of July 1 shall not be imple-
11 mented for that reinsurance year unless,
12 not later than 90 days before the sales
13 closing date for that policy, plan of insur-
14 ance, or other material, the Board makes
15 available to the approved insurance pro-
16 viders all necessary handbooks, training
17 materials, and other resources associated
18 with such policy, plan of insurance, or
19 other materials, as determined by the
20 Board.”; and

21 (4) by adding at the end the following:

22 “(F) MARKETABILITY DETERMINATION.—

23 Prior to the approval of a policy, plan of insur-
24 ance, or other material submitted to the Board
25 under this subsection (referred to in this sub-

1 paragraph as a ‘product’), any approved insur-
2 ance provider that submits a letter of support
3 for the product shall provide information and
4 analysis to the Board on the marketability of
5 that product.”.

6 **SEC. 11008. REIMBURSEMENT RATES FOR ADMINISTRATIVE**
7 **AND OPERATING COSTS.**

8 Section 508(k)(4) of the Federal Crop Insurance Act
9 (7 U.S.C. 1508(k)(4)) is amended—

10 (1) in subparagraph (A)—

11 (A) in the matter preceding clause (i), by
12 striking “shall not exceed—” and inserting
13 “shall—”;

14 (B) in clause (i)—

15 (i) by inserting “not exceed,” before
16 “for the”; and

17 (ii) by striking “and” after the semi-
18 colon;

19 (C) in clause (ii)—

20 (i) by inserting “not exceed,” before
21 “for each”;

22 (ii) by striking “and subsequent” and
23 inserting “through 2026”; and

24 (iii) by striking the period at the end
25 and inserting “; and”; and

1 (D) by adding at the end the following:

2 “(iii) for each of the 2027 and subse-
3 quent reinsurance years, be determined in
4 accordance with subparagraph (F).”; and

5 (2) by striking subparagraph (F) and inserting
6 the following:

7 “(F) REIMBURSEMENT RATES FOR REIN-
8 SURANCE YEAR 2027 AND SUBSEQUENT REIN-
9 SURANCE YEARS.—Notwithstanding subpara-
10 graphs (A), (B), (C), and (E), for each of the
11 2027 and subsequent reinsurance years, the
12 rate established by the Board to reimburse ap-
13 proved insurance providers and agents for the
14 administrative and operating costs of the pro-
15 viders and agents with respect to each policy
16 made available under this Act shall be equal to
17 the rate applicable to the policy in effect for the
18 2026 reinsurance year.”.

19 **SEC. 11009. QUALITY LOSS ADJUSTMENT COVERAGE.**

20 Section 508(m)(3) of the Federal Crop Insurance Act
21 (7 U.S.C. 1508(m)(3)) is amended—

22 (1) by striking subparagraph (A) and inserting
23 the following:

24 “(A) PERIODIC REVIEW.—Beginning with
25 the 2027 calendar year and every 5 years there-

1 after, the Corporation shall contract with a
2 qualified person to conduct a review, which
3 shall be completed within 1 year of initiation, of
4 the quality loss adjustment procedures of the
5 Corporation.”;

6 (2) in subparagraph (B), by striking the sub-
7 paragraph designation and all that follows through
8 “review” and inserting the following:

9 “(B) STAKEHOLDER ENGAGEMENT.—Each
10 review under subparagraph (A) shall include en-
11 gagement from regionally diverse industry
12 stakeholders for each agricultural commodity
13 for which a quality loss adjustment is offered.

14 “(C) PROCEDURES.—Based on each review
15 conducted under subparagraph (A)”;

16 (3) by adding at the end the following:

17 “(D) REPORT.—On the completion of each
18 review under subparagraph (A), the Corpora-
19 tion shall submit to the Committee on Agri-
20 culture, Nutrition, and Forestry of the Senate
21 and the Committee on Agriculture of the House
22 of Representatives a report that describes—

23 “(i) findings from that review;

24 “(ii) changes to the quality loss ad-
25 justment procedures;

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1 “(iii) the stakeholder engagement for
2 that review pursuant to subparagraph (B);
3 and
4 “(iv) plans for establishing specific
5 quality loss adjustment procedures for
6 unique regions, as determined by the Sec-
7 retary.”.

8 **SEC. 11010. LIMITATION ON FARM PROGRAM PARTICIPA-**
9 **TION.**

10 (a) IN GENERAL.—Section 508B(f) of the Federal
11 Crop Insurance Act (7 U.S.C. 1508b(f)) is amended, in
12 the matter preceding paragraph (1), by striking “begin-
13 ning with the 2019 crop year” and inserting “for the 2019
14 through 2025 crop years”.

15 (b) CONFORMING AMENDMENT.—Section 1115 of the
16 Agricultural Act of 2014 (7 U.S.C. 9015) is amended by
17 adding at the end the following:

18 “(j) LIMITATION.—Beginning with the 2026 crop
19 year, in the case of a farm for which a producer obtains
20 coverage under the Stacked Income Protection Plan for
21 upland cotton under section 508B of the Federal Crop In-
22 surance Act (7 U.S.C. 1508b) for a crop year, that farm
23 shall not be eligible to receive payments for seed cotton
24 for that crop year under—

25 “(1) price loss coverage under section 1116; or

1 “(2) agriculture risk coverage under section
2 1117.”.

3 (c) TECHNICAL CORRECTION.—Section
4 508(c)(4)(C)(iv) of the Federal Crop Insurance Act (7
5 U.S.C. 1508(c)(4)(C)(iv)) is amended, in the clause head-
6 ing, by striking “CROPS AND”.

7 **SEC. 11011. PILOT PROGRAM TO REVIEW EFFECTIVENESS**
8 **OF COVERAGE PENALTY.**

9 The Federal Crop Insurance Act is amended by in-
10 serting after section 508D (7 U.S.C. 1508d) the following:

11 **“SEC. 508E. PILOT PROGRAM TO REVIEW EFFECTIVENESS**
12 **OF COVERAGE PENALTY.**

13 “(a) IN GENERAL.—The Risk Management Agency
14 and the Corporation shall establish a pilot program (re-
15 ferred to in this section as the ‘pilot program’), to be in
16 effect beginning with the 2027 crop year, to evaluate the
17 effectiveness of the reduction in benefits applied to corn
18 and other crops, as determined by the Corporation, plant-
19 ed during the late planting period (as defined in section
20 457.8 of title 7, Code of Federal Regulations (or a suc-
21 cessor regulation)).

22 “(b) LOCATION.—The pilot program shall be con-
23 ducted in not less than 4 counties located within or adja-
24 cent to the North Plains Groundwater Conservation Dis-

1 triet or the Panhandle Groundwater Conservation District
2 in the State of Texas.

3 “(c) DURATION.—The pilot program shall operate for
4 a period of not less than 4 crop years.

5 “(d) EVALUATION.—In carrying out the pilot pro-
6 gram, the Risk Management Agency and the Corporation
7 shall—

8 “(1) suspend any reduction to the insurance
9 guarantee applied to an insurance policy for a crop
10 that is planted during the late planting period;

11 “(2) gather and analyze data to determine if
12 the number of days beyond the final plant date in
13 which a crop was planted during the late planting
14 period correlates with a decrease in crop yields; and

15 “(3) determine if planting a crop after the final
16 plant date results in reduced usage of irrigation
17 from the Ogallala Aquifer.

18 “(e) PARTNERSHIPS.—Of the amounts made avail-
19 able under section 522(e)(2)(A)(ii), the Corporation may
20 use not more than \$200,000 to enter into a partnership
21 or cooperative agreement with a nonprofit organization,
22 State agency, or public university that is familiar with ag-
23 ricultural production in the area described in subsection
24 (b) to conduct the research and evaluation required under
25 paragraphs (2) and (3) of subsection (d).

1 “(f) REPORT.—Not later than 90 days after the last
2 day of crop year 2031, the Risk Management Agency and
3 the Corporation shall submit to the Committee on Agri-
4 culture, Forestry, and Nutrition of the Senate and the
5 Committee on Agriculture of the House of Representatives
6 a report that includes—

7 “(1) a summary of the results of the pilot pro-
8 gram;

9 “(2) an analysis of the correlation between
10 planting date and final yields; and

11 “(3) any changes to existing policies that the
12 Corporation intends to make as a result of the infor-
13 mation obtained during the pilot program.”.

14 **SEC. 11012. PROGRAM COMPLIANCE AND INTEGRITY.**

15 Section 515(b) of the Federal Crop Insurance Act (7
16 U.S.C. 1515(b)) is amended—

17 (1) in the subsection heading, by inserting “,
18 RESPONSE, AND FINAL DETERMINATION”
19 after “NOTIFICATION”;

20 (2) in paragraph (1), by striking “shall notify
21 in writing” and inserting “shall, through an initial
22 finding in writing, notify (unless such notification is
23 pursuant to the responsibilities to conduct reviews
24 and make corrections)”;

25 (3) in paragraph (2)—

1 (A) by striking the paragraph designation
2 and heading and all that follows through “No-
3 tice” and inserting the following:

4 “(2) REQUIRED TIMING.—

5 “(A) INITIAL FINDING.—Notice”; and

6 (B) by adding at the end the following:

7 “(B) RESPONSE.—During the 90-day pe-
8 riod beginning on the date on which the Cor-
9 poration notifies an approved insurance pro-
10 vider of an initial finding under paragraph (1),
11 the approved insurance provider may appeal
12 that initial finding in writing.

13 “(C) FINAL FINDING.—Not later than 90
14 days after the date on which an approved insur-
15 ance provider submits an appeal under subpara-
16 graph (B), the Corporation shall issue a final
17 finding in writing to the approved insurance
18 provider.

19 “(D) REQUEST FOR FINAL ADMINISTRA-
20 TIVE DETERMINATION.—Not later than 90 days
21 after the date of a final finding of the Corpora-
22 tion under subparagraph (C), an approved in-
23 surance provider may request, in writing, a
24 final administrative determination if the ap-
25 proved insurance provider has reason to believe

1 that the final finding under subparagraph (C)
2 is not in accordance with—

3 “(i) the applicable laws, regulations,
4 custom, or practice of the crop insurance
5 industry; or

6 “(ii) the approved policy and proce-
7 dure of the Corporation.

8 “(E) FINAL DETERMINATION.—Not later
9 than 90 days after the receipt of a request for
10 a final administrative determination under sub-
11 paragraph (D), the Corporation shall provide a
12 final administrative determination, unless sub-
13 stantial new information, as determined by the
14 Corporation, is provided by the approved insur-
15 ance provider.

16 “(F) APPEAL TO CIVILIAN BOARD OF CON-
17 TRACT APPEALS.—Not later than 90 days after
18 receipt of a final administrative determination
19 under subparagraph (E), an approved insurance
20 provider may appeal that determination to the
21 Civilian Board of Contract Appeals.”; and

22 (4) by striking paragraph (3) and inserting the
23 following:

24 “(3) EFFECT OF FAILURE TO TIMELY NO-
25 TIFY.—

1 “(A) IN GENERAL.—Except as provided in
2 subparagraph (B), failure of the Corporation to
3 comply with the requirements under paragraph
4 (2) shall relieve the approved insurance provider
5 from the debt owed to the Corporation.

6 “(B) EXCEPTION.—Subparagraph (A)
7 shall not apply to any matters referred to the
8 Office of the Inspector General or the Depart-
9 ment of Justice.”.

10 **SEC. 11013. WHOLE FARM IMPROVEMENTS.**

11 Section 522(c)(7)(E) of the Federal Crop Insurance
12 Act (7 U.S.C. 1522(c)(7)(E)) is amended by adding at
13 the end the following:

14 “(iii) ADDITIONAL REVIEW.—Not
15 later than 1 year after the date of enact-
16 ment of this clause and annually there-
17 after, the Corporation shall—

18 “(I) review any limitations on in-
19 surable revenue (including the overall
20 limitation and limitations specific to
21 animals, animal products, greenhouses
22 and nurseries, and aquaculture) to en-
23 sure that those limitations are ade-
24 quate to cover the financial risks asso-

1 ciated with the production of high-
2 value agricultural products; and

3 “(II) submit to the Committee on
4 Agriculture, Nutrition, and Forestry
5 of the Senate and the Committee on
6 Agriculture of the House of Rep-
7 resentatives a report that contains a
8 summary of the review conducted
9 under subclause (I) and a description
10 of any expected changes to the policy
11 for the following reinsurance year.”.

12 **SEC. 11014. RESEARCH AND DEVELOPMENT.**

13 Section 522(c) of the Federal Crop Insurance Act (7
14 U.S.C. 1522(c)) is amended by adding at the end the fol-
15 lowing:

16 “(20) ORGANIC PRODUCERS.—

17 “(A) IN GENERAL.—The Corporation shall
18 carry out research and development, or offer to
19 enter into 1 or more contracts with 1 or more
20 qualified persons to carry out research and de-
21 velopment, regarding impediments faced by or-
22 ganic producers in participating in Federal crop
23 insurance.

24 “(B) REPORT.—Not later than 18 months
25 after the date of enactment of the Agricultural

1 Act of 2026, the Corporation shall submit to
2 the Committee on Agriculture, Nutrition, and
3 Forestry of the Senate and the Committee on
4 Agriculture of the House of Representatives a
5 report that describes—

6 “(i) the results of the research and
7 development carried out under subpara-
8 graph (A); and

9 “(ii) any recommendations with re-
10 spect to those results.

11 “(21) WINE GRAPES.—

12 “(A) IN GENERAL.—The Corporation shall
13 carry out research and development, or offer to
14 enter into 1 or more contracts with 1 or more
15 qualified persons to carry out research and de-
16 velopment, regarding a policy to insure wine
17 grapes (including wine grapes produced in the
18 States of California, Oregon, and Washington)
19 against losses due to wildfire smoke exposure.

20 “(B) REPORT.—Not later than 18 months
21 after the date of enactment of the Agricultural
22 Act of 2026, the Corporation shall submit to
23 the Committee on Agriculture, Nutrition, and
24 Forestry of the Senate and the Committee on

1 Agriculture of the House of Representatives a
2 report that describes—

3 “(i) the results of the research and
4 development carried out under subpara-
5 graph (A); and

6 “(ii) any recommendations with re-
7 spect to those results.

8 “(22) MUSHROOMS.—

9 “(A) IN GENERAL.—The Corporation shall
10 carry out research and development, or offer to
11 enter into 1 or more contracts with 1 or more
12 qualified persons to carry out research and de-
13 velopment, regarding a policy to insure mush-
14 rooms.

15 “(B) REPORT.—Not later than 1 year
16 after the date of enactment of the Agricultural
17 Act of 2026, the Corporation shall submit to
18 the Committee on Agriculture, Nutrition, and
19 Forestry of the Senate and the Committee on
20 Agriculture of the House of Representatives,
21 and make publicly available, a report that de-
22 scribes—

23 “(i) the results of the research and
24 development carried out under subpara-
25 graph (A); and

1 “(ii) any recommendations with re-
2 spect to those results.

3 “(23) FROST, FREEZE, OR COLD WEATHER IN-
4 SURANCE.—

5 “(A) IN GENERAL.—The Corporation shall
6 carry out research and development, or offer to
7 enter into 1 or more contracts with 1 or more
8 qualified persons to carry out research and de-
9 velopment, regarding an index-based policy to
10 insure crops (including tomatoes, table grapes,
11 wine grapes, juice grapes, peppers, sugarcane,
12 strawberries, melons, citrus, peaches, blue-
13 berries, apples, cherries, and any other crop)
14 against losses due to a frost, freeze, or cold
15 weather event.

16 “(B) RESEARCH AND DEVELOPMENT.—
17 Research and development under subparagraph
18 (A) shall—

19 “(i) evaluate the effectiveness of risk
20 management tools, such as the use of an
21 index, with respect to low frequency and
22 catastrophic loss weather events; and

23 “(ii) result in a policy that provides
24 protection for at least 1 of the following:

25 “(I) Production loss.

1 “(II) Revenue loss.

2 “(C) REPORT.—Not later than 1 year
3 after the date of enactment of the Agricultural
4 Act of 2026, the Corporation shall submit to
5 the Committee on Agriculture, Nutrition, and
6 Forestry of the Senate and the Committee on
7 Agriculture of the House of Representatives a
8 report that describes—

9 “(i) the results of the research and
10 development carried out under subpara-
11 graph (A); and

12 “(ii) any recommendations with re-
13 spect to those results.

14 “(24) DOUBLE CROPPING AND ROTATIONAL
15 CROPPING OF CERTAIN OILSEED CROPS.—

16 “(A) DEFINITION OF COVERED OILSEED
17 CROPS.—In this paragraph, the term ‘covered
18 oilseed crops’ means rapeseed, canola, camelina,
19 and other oilseed crops that—

20 “(i) require a period of cold tempera-
21 ture (vernalization) before the plants will
22 produce flowers and seeds; and

23 “(ii) are planted and harvested on
24 land that would otherwise be idle in a rota-
25 tion pattern.

1 “(B) RESEARCH AND DEVELOPMENT.—

2 The Corporation shall carry out research and
3 development, or offer to enter into 1 or more
4 contracts with 1 or more qualified persons to
5 carry out research and development, with re-
6 spect to the inclusion of covered oilseed crops
7 under double cropping and rotational cropping
8 policies.

9 “(C) REQUIREMENTS.—The research and
10 development carried out pursuant to subpara-
11 graph (B) shall be conducted in consultation
12 with stakeholders to evaluate—

13 “(i) the factors impacting availability
14 and cost of crop insurance when incor-
15 porating covered oilseed crops into double
16 cropping and rotational cropping policies;
17 and

18 “(ii) the potential risk management
19 benefits associated with incorporating cov-
20 ered oilseed crops into double cropping and
21 rotational cropping policies, including risk
22 management benefits to soil health, bio-
23 diversity, and the profitability of farming
24 operations.

1 “(D) EMPHASIS.—In awarding contracts
2 under subparagraph (B), the Corporation may
3 place emphasis on qualified persons and institu-
4 tions that—

5 “(i) have previous research experience
6 with covered oilseed crops; and

7 “(ii) have access to a facility with the
8 capacity to do the applicable research.

9 “(E) REPORT.—Not later than 13 months
10 after the date of enactment of the Agricultural
11 Act of 2026, the Corporation shall submit to
12 the Committee on Agriculture, Nutrition, and
13 Forestry of the Senate and the Committee on
14 Agriculture of the House of Representatives,
15 and make publicly available, a report that de-
16 scribes—

17 “(i) the results of the research and
18 development carried out under subpara-
19 graph (B); and

20 “(ii) any recommendations with re-
21 spect to those results.

22 “(25) STUDY ON SUPPLEMENTAL COVERAGE
23 OPTION.—

24 “(A) IN GENERAL.—The Corporation shall
25 carry out a study, or offer to enter into 1 or

1 more contracts with 1 or more qualified persons
2 to carry out a study, to determine the feasibility
3 of modifying the supplemental coverage option
4 described in section 508(c)(4)(C) to provide
5 coverage for counties larger than 1,400 square
6 miles—

7 “(i) at a level smaller than county-
8 wide; and

9 “(ii) at a level greater than individual
10 coverage.

11 “(B) REPORT.—Not later than 1 year
12 after the date of enactment of the Agricultural
13 Act of 2026, the Corporation shall submit to
14 the Committee on Agriculture, Nutrition, and
15 Forestry of the Senate and the Committee on
16 Agriculture of the House of Representatives a
17 report that describes—

18 “(i) the results of the study carried
19 out under subparagraph (A); and

20 “(ii) any recommendations with re-
21 spect to those results.

22 “(26) BLUEBERRIES.—

23 “(A) IN GENERAL.—The Corporation shall
24 carry out research and development, or offer to
25 enter into 1 or more contracts with 1 or more

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1 qualified persons to carry out research and de-
2 velopment, regarding—

3 “(i) improvements to existing policies
4 (including the Actual Production History
5 policy) to insure blueberries, including tak-
6 ing into consideration multiple crop types
7 and values; and

8 “(ii) a policy to insure blueberries
9 against revenue loss.

10 “(B) REPORT.—Not later than 18 months
11 after the date of enactment of the Agricultural
12 Act of 2026, the Corporation shall submit to
13 the Committee on Agriculture, Nutrition, and
14 Forestry of the Senate and the Committee on
15 Agriculture of the House of Representatives a
16 report that describes—

17 “(i) the results of the research and
18 development carried out under subpara-
19 graph (A); and

20 “(ii) any recommendations with re-
21 spect to those results.

22 “(27) PECAN REVENUE ENHANCEMENTS.—

23 “(A) RESEARCH AND DEVELOPMENT.—

24 “(i) IN GENERAL.—The Corporation
25 shall carry out research and development,

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1 or offer to enter into 1 or more contracts
2 with 1 or more qualified persons to carry
3 out research and development, to explore
4 options to mitigate the impacts of hurri-
5 canes, freezes, droughts, and other natural
6 disasters (as determined by the Secretary)
7 on the revenue guarantee under the Pecan
8 Revenue policy by offering 1 or more of
9 the following:

10 “(I) Options to exclude certain
11 crop years from revenue history, in a
12 manner similar to section
13 508(g)(4)(C).

14 “(II) Streamlined process and
15 procedures to allow approved insur-
16 ance providers to increase revenue
17 guarantees on restoration of pecan
18 production after a natural disaster.

19 “(III) Other policy and proce-
20 dural changes that—

21 “(aa) mitigate the impact of
22 low-revenue years; and

23 “(bb) retain actuarial sound-
24 ness.

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1 “(ii) POLICY CHANGES.—Notwith-
2 standing section 508(g)(4)(C), the Cor-
3 poration shall make a policy change de-
4 scribed in subclause (I) or (III) of clause
5 (i) available if the requirements of section
6 508(h) are met.

7 “(B) REPORT.—Not later than 18 months
8 after the date of enactment of the Agricultural
9 Act of 2026, the Corporation shall submit to
10 the Committee on Agriculture, Nutrition, and
11 Forestry of the Senate and the Committee on
12 Agriculture of the House of Representatives a
13 report that describes—

14 “(i) the results of the research and
15 development carried out under subpara-
16 graph (A); and

17 “(ii) any recommendations with re-
18 spect to those results.

19 “(28) STANDALONE POLICY FOR HURRICANES
20 AND TROPICAL STORMS.—

21 “(A) IN GENERAL.—The Corporation shall
22 conduct a study, or offer to enter into 1 or
23 more contracts with 1 or more qualified persons
24 to conduct a study, to determine the feasibility
25 of making available insurance against tropical

1 storms and hurricanes, regardless of whether
2 there exists an applicable underlying crop insur-
3 ance policy.

4 “(B) REPORT.—Not later than 1 year
5 after the date of enactment of the Agricultural
6 Act of 2026, the Corporation shall submit to
7 the Committee on Agriculture, Nutrition, and
8 Forestry of the Senate and the Committee on
9 Agriculture of the House of Representatives a
10 report that describes the results of the study
11 conducted under subparagraph (A).

12 “(29) HARVEST INCENTIVES.—

13 “(A) IN GENERAL.—Not later than 1 year
14 after the date of enactment of the Agricultural
15 Act of 2026, the Corporation shall carry out re-
16 search and development, or offer to enter into
17 1 or more contracts with 1 or more qualified
18 persons to carry out research and development,
19 relating to harvest incentives for policies that
20 provide coverage against losses of revenue.

21 “(B) AVAILABILITY OF POLICY.—Notwith-
22 standing paragraphs (1)(B) and (2) of section
23 508(a), not later than 2 years after the date of
24 enactment of the Agricultural Act of 2026, the
25 Corporation shall make available a policy de-

1 scribed in subparagraph (A) if the requirements
2 of section 508(h) are met.

3 “(C) REPORT.—Not later than 1 year
4 after the date of enactment of the Agricultural
5 Act of 2026, the Corporation shall submit to
6 the Committees on Appropriations and Agri-
7 culture, Nutrition, and Forestry of the Senate
8 and the Committees on Appropriations and Agri-
9 culture of the House of Representatives a re-
10 port that describes—

11 “(i) the results of the research and
12 development carried out under subpara-
13 graph (A); and

14 “(ii) any policy made available under
15 this paragraph.

16 “(30) SEPARATE ENTERPRISE UNITS FOR FAL-
17 LOW CROPPING SYSTEMS.—

18 “(A) IN GENERAL.—The Corporation shall
19 carry out a study, or offer to enter into 1 or
20 more contracts with 1 or more qualified persons
21 to carry out a study, to determine the feasibility
22 of allowing separate enterprise units for fallow
23 and continuous acreage of crops in counties.

24 “(B) REPORT.—Not later than 1 year
25 after the date of enactment of the Agricultural

1 Act of 2026, the Corporation shall submit to
2 the Committee on Agriculture, Nutrition, and
3 Forestry of the Senate and the Committee on
4 Agriculture of the House of Representatives a
5 report that describes—

6 “(i) the results of the study carried
7 out under subparagraph (A); and

8 “(ii) any recommendations with re-
9 spect to those results.”.

10 **SEC. 11015. RISK MANAGEMENT STUDY FOR LAMB.**

11 (a) DEFINITION OF LIVESTOCK PROTECTION AND
12 RISK MANAGEMENT PROGRAM.—In this section, the term
13 “livestock protection and risk management program” in-
14 cludes—

15 (1) dairy margin coverage;

16 (2) livestock risk protection; and

17 (3) any other program designed to protect pro-
18 ducers from market volatility, as determined by the
19 Secretary.

20 (b) STUDY.—The Secretary shall conduct a study on
21 modifications to existing livestock protection and risk
22 management programs that may enhance risk manage-
23 ment protection to domestic lamb producers.

1 (c) CONTENT.—In conducting the study under this
2 section, the Secretary shall take into account various fac-
3 tors affecting risk management, including—

- 4 (1) market access;
- 5 (2) sources of feed;
- 6 (3) costs of, and fluctuation of costs of, feed;
- 7 (4) imports;
- 8 (5) consumer demand and trends;
- 9 (6) labor costs; and
- 10 (7) availability and accuracy of market data.

11 (d) REPORT.—Not later than 1 year after the date
12 of enactment of this Act, the Secretary shall submit to
13 the Committee on Agriculture, Nutrition, and Forestry of
14 the Senate and the Committee on Agriculture of the
15 House of Representatives a report on the findings of the
16 study conducted under this section.

17 **SEC. 11016. REPORT ON STANDARD REINSURANCE AGREE-**
18 **MENT.**

19 (a) IN GENERAL.—Not later than 90 days after the
20 date of enactment of this Act, the Federal Crop Insurance
21 Corporation shall submit to the Committee on Agriculture,
22 Nutrition, and Forestry of the Senate and the Committee
23 on Agriculture of the House of Representatives a report
24 on modifications to the Standard Reinsurance Agreement
25 that are necessary to expand the availability of policies

1 and plans of insurance that meet the risk management
2 needs of agricultural producers, States, regions, and com-
3 modities.

4 (b) CONTENTS.—The report required under sub-
5 section (a) shall—

6 (1) take into account the requirements under
7 section 508(k)(8)(F) of the Federal Crop Insurance
8 Act (7 U.S.C. 1508(k)(8)(F)) relating to budget
9 neutrality of the Standard Reinsurance Agreement;
10 and

11 (2) include an analysis of—

12 (A) any benefit related to establishing—

13 (i) at least 1 additional reinsurance
14 fund for States that have experienced con-
15 sistently high loss ratios; and

16 (ii) at least 1 additional reinsurance
17 fund to provide alternative risk sharing
18 terms for approved insurance providers
19 that sell insurance contracts offering area
20 plan coverage;

21 (B) with respect to any funds reimbursed
22 for administrative and operating costs under
23 section 507(c) of the Federal Crop Insurance
24 Act (7 U.S.C. 1507(c)), the best method for en-

1 suring that approved insurance providers obli-
2 gate those funds for—

3 (i) the delivery of risk management
4 tools to producers; and

5 (ii) agent workforce assistance for
6 producers, in an amount that is not less
7 than the historical percentage of such re-
8 imbursement; and

9 (C) with respect to each policy and plan of
10 insurance, compensation amounts for agents
11 that—

12 (i) are consistent with historical
13 norms; and

14 (ii) provide a reasonable return, tak-
15 ing into account workload and the critical
16 service across programs that the agents
17 provide.

18 (c) CONSULTATION.—In developing the report under
19 subsection (a), the Federal Crop Insurance Corporation
20 shall consult with—

21 (1) representatives of producers—

22 (A) from each State and region; and

23 (B) with respect to each commodity;

24 (2) representatives of agents and approved in-
25 surance providers;

1 (3) the Committee on Agriculture of the House
2 of Representatives; and

3 (4) the Committee on Agriculture, Nutrition,
4 and Forestry of the Senate.

5 **TITLE XII—MISCELLANEOUS**

6 **Subtitle A—Livestock**

7 **SEC. 12101. ANIMAL IMPORTATION INSPECTIONS.**

8 Section 10404(b) of the Animal Health Protection
9 Act (7 U.S.C. 8303(b)) is amended—

10 (1) in paragraph (2), by inserting “under para-
11 graph (1)” after “regulations”; and

12 (2) by adding at the end the following:

13 “(3) CONDUCT OF INSPECTIONS.—

14 “(A) IN GENERAL.—The Secretary may
15 promulgate regulations under paragraph (1)
16 that—

17 “(i) permit qualified veterinarians em-
18 ployed by or contracted with the Depart-
19 ment of Agriculture to conduct inspections
20 for the purpose of carrying out this sec-
21 tion; and

22 “(ii) give priority to the conduct of in-
23 spections by those qualified veterinarians
24 in regions that do not have veterinary med-

1 ical officers of the Animal and Plant
2 Health Inspection Service available.

3 “(B) QUALIFIED VETERINARIAN.—A quali-
4 fied veterinarian under subparagraph (A) shall
5 have appropriate training and credentials, as
6 determined by the Secretary.”.

7 **SEC. 12102. ANIMAL DISEASE PREVENTION AND MANAGE-**
8 **MENT.**

9 Section 10409A of the Animal Health Protection Act
10 (7 U.S.C. 8308a) is amended—

11 (1) in subsection (b)(2)—

12 (A) in subparagraph (F)—

13 (i) by striking “including training”
14 and inserting the following: “including—
15 “(i) training”;

16 (ii) in clause (i) (as so designated), by
17 striking the period at the end and inserting
18 “; and”; and

19 (iii) by adding at the end the fol-
20 lowing:

21 “(ii) improving animal disease
22 traceability.”; and

23 (B) in subparagraph (I), by inserting “, in-
24 cluding activities approved by the Secretary as

1 of the date of enactment of the Agricultural Act
2 of 2026” before the period at the end;

3 (2) in subsection (c)(2)(A)—

4 (A) by striking “veterinary counter-
5 measures” and inserting “vaccines and veteri-
6 nary countermeasures (including pest eradi-
7 cation tools such as sterile insects)”; and

8 (B) by inserting “and pests of livestock”
9 after “diseases”;

10 (3) in subsection (d)—

11 (A) in paragraph (2)—

12 (i) in subparagraph (A)—

13 (I) by striking “\$30,000,000”
14 and inserting “\$45,000,000”; and

15 (II) by striking “2019 through
16 2023” and inserting “2027 through
17 2031”; and

18 (ii) in subparagraph (B), by striking
19 “2019 through 2023” and inserting “2027
20 through 2031”; and

21 (B) in paragraph (3)(B)—

22 (i) by inserting “the National Animal
23 Health Laboratory Network under sub-
24 section (a) and” after “carry out”;

1 (ii) by striking “10” and inserting
2 “15”;

3 (iii) by striking “paragraph (7)(B) of
4 such subsection” and inserting “subsection
5 (b)(7)(B)”; and

6 (iv) by striking “the Program” and
7 inserting “the National Animal Health
8 Laboratory Network or the National Ani-
9 mal Disease Preparedness and Response
10 Program”; and

11 (4) in subsection (e)(1), by striking “2019
12 through 2023” and inserting “2027 through 2031”.

13 **SEC. 12103. ENGAGEMENT WITH EXPORT MARKETS.**

14 Section 10411 of the Animal Health Protection Act
15 (7 U.S.C. 8310) is amended by adding at the end the fol-
16 lowing:

17 “(f) ENGAGEMENT WITH EXPORT MARKETS.—

18 “(1) IN GENERAL.—The Secretary may pre-
19 emptively negotiate, to the extent practicable, re-
20 gionalization, compartmentalization, and other trade
21 agreements regarding outbreaks of known animal
22 disease threats with the governments of countries
23 with export markets for any animal, article, or asso-
24 ciated means of conveyance from the United States.

1 “(2) RULE OF CONSTRUCTION.—Nothing in
2 this subsection may be construed—

3 “(A) to limit the ability of the United
4 States Trade Representative to negotiate trade
5 agreements; or

6 “(B) to require the United States Trade
7 Representative to condition other trade agree-
8 ments on the inclusion of language relating to
9 outbreaks of known animal disease threats, as
10 described in paragraph (1).”.

11 **SEC. 12104. REPORT ON SUPPORT FOR LIVESTOCK AND**
12 **POULTRY PRODUCERS DURING A FOREIGN**
13 **ANIMAL DISEASE OUTBREAK.**

14 (a) IN GENERAL.—Not later than 180 days after the
15 date of enactment of this Act, the Secretary shall submit
16 to the Committee on Agriculture, Nutrition, and Forestry
17 of the Senate and the Committee on Agriculture of the
18 House of Representatives a report on the readiness of the
19 Department to support livestock producers and poultry
20 growers facing economic losses in the event of an outbreak
21 of a foreign animal disease.

22 (b) CONTENTS.—The report submitted under sub-
23 section (a) shall include, with respect to the ability of the
24 Department to protect producers and growers from sig-

1 nificant economic losses as a result of an outbreak of a
2 foreign animal disease—

3 (1) an assessment of—

4 (A) existing Federal programs to assist
5 producers impacted by foreign animal disease
6 outbreaks, including catastrophic risk manage-
7 ment tools, producer indemnity, direct pay-
8 ments, biosecurity assistance, and herd buyouts;
9 and

10 (B) the capacity of the Department to use
11 those programs to provide benefits to producers
12 and growers that, as a result of an outbreak of
13 a foreign animal disease—

14 (i) have to sell livestock and poultry
15 at a reduced price;

16 (ii) have to quarantine, treat, destroy,
17 or dispose of animals;

18 (iii) have to implement additional bio-
19 security measures; or

20 (iv) experience other significant eco-
21 nomic losses as a result of catastrophic
22 market conditions;

23 (2) a determination of gaps that exist in the
24 ability of the Department to provide economic sup-
25 port for growers suffering losses; and

1 (3) recommendations of the Secretary for modi-
2 fications to Federal law (including regulations) relat-
3 ing to protecting producers and growers from sig-
4 nificant economic losses related to a foreign animal
5 disease outbreak.

6 (c) PROVISION OF INFORMATION.—

7 (1) IN GENERAL.—Not later than 90 days after
8 the date of enactment of this Act, for purposes of
9 facilitating the preparation of the report required
10 under subsection (a), the relevant Department offi-
11 cials described in paragraph (2) shall provide infor-
12 mation to the Secretary necessary for conducting the
13 assessment described in subsection (b)(1).

14 (2) RELEVANT DEPARTMENT OFFICIALS DE-
15 SCRIBED.—The relevant Department officials re-
16 ferred to in paragraph (1) are the following:

17 (A) The Under Secretary for Farm Pro-
18 duction and Conservation.

19 (B) The Under Secretary for Food, Nutri-
20 tion and Consumer Services.

21 (C) The Under Secretary for Rural Devel-
22 opment.

23 (D) The Under Secretary for Food Safety.

24 (E) The Under Secretary for Marketing
25 and Regulatory Programs.

1 (F) The Under Secretary for Trade and
2 Foreign Agricultural Affairs.

3 (G) Other officials, as specified by the Sec-
4 retary.

5 **SEC. 12105. ADDITIONAL TRAINING FACILITIES.**

6 The Beagle Brigade Act of 2023 (Public Law 118–
7 191; 138 Stat. 2658) is amended by adding at the end
8 the following:

9 **“SEC. 4. ADDITIONAL TRAINING FACILITIES.**

10 “(a) IN GENERAL.—In addition to the Center, the
11 Secretary may—

12 “(1) establish additional dog training facilities,
13 which shall have the same duties as the duties of the
14 Center described in section 2(b); and

15 “(2) enter into a cooperative agreement with
16 the department of agriculture of a State (or political
17 subdivision thereof) to establish an off-site training
18 program for the purpose of providing training and
19 technical assistance in the training of dogs, as de-
20 scribed in section 2(b).

21 “(b) CONSIDERATIONS.—In determining the need for
22 establishing 1 or more additional training facilities under
23 subsection (a)(1), the Secretary shall consider—

24 “(1) the location of international ports of entry;

1 “(2) the volume of international passengers and
2 cargo; and

3 “(3) regional agricultural production trends and
4 associated pest and disease threats.

5 **“SEC. 5. AUTHORIZATION OF APPROPRIATIONS.**

6 “In addition to amounts otherwise made available,
7 there is authorized to be appropriated to carry out this
8 Act \$15,000,000 for each of fiscal years 2027 through
9 2031, to remain available until expended.”.

10 **SEC. 12106. ALLOWED INTEREST OF LIVESTOCK AUCTION**
11 **OWNERS IN MEATPACKING BUSINESSES.**

12 (a) IN GENERAL.—Not later than 1 year after the
13 date of enactment of this Act, the Secretary shall revise
14 section 201.67 of title 9, Code of Federal Regulations (as
15 in effect on the date of enactment of this Act), to exempt
16 the packers described in subsection (b) from the prohibi-
17 tion described in that section.

18 (b) PACKERS DESCRIBED.—A packer referred to in
19 subsection (a) is a packer that—

20 (1) with respect to cattle or sheep, has a cumu-
21 lative slaughter capacity of less than—

22 (A) 2,000 animals per day; or

23 (B) 700,000 animals per year; and

24 (2) with respect to hogs, has a cumulative
25 slaughter capacity of less than—

1 (A) 10,000 animals per day; or

2 (B) 3,000,000 animals per year.

3 (c) REQUIRED DISCLOSURE.—In the case of a mar-
4 ket agency that has an ownership interest in, finances, or
5 participates in the management or operation of a packer
6 to which the market agency sells consigned livestock, the
7 market agency shall disclose on the account of sale the
8 name of the packer and the nature of the relationship be-
9 tween the market agency and the packer.

10 (d) SAVINGS CLAUSE.—Nothing in this section shall
11 limit the authority of the Secretary to adopt or enforce
12 rules or regulations under the Packers and Stockyards
13 Act, 1921 (7 U.S.C. 181 et seq.), relating to the protection
14 of producers, competition, market integrity, or the preven-
15 tion of conflicts of interest.

16 **SEC. 12107. HAZARD ANALYSIS AND CRITICAL CONTROL**
17 **POINT GUIDANCE AND RESOURCES FOR**
18 **SMALL AND VERY SMALL POULTRY AND**
19 **MEAT ESTABLISHMENTS.**

20 (a) MEAT ESTABLISHMENTS.—The Federal Meat In-
21 spection Act is amended by inserting after section 25 (21
22 U.S.C. 625) the following:

1 **“SEC. 26. SMALL AND VERY SMALL ESTABLISHMENT GUID-**
2 **ANCE AND RESOURCES.**

3 “(a) DEFINITIONS OF SMALL ESTABLISHMENT AND
4 VERY SMALL ESTABLISHMENT.—In this section, the
5 terms ‘small establishment’ and ‘very small establishment’
6 have the meanings given the terms ‘smaller establishment’
7 and ‘very small establishment’, respectively, in the final
8 rule entitled ‘Pathogen Reduction; Hazard Analysis and
9 Critical Control Point (HACCP) Systems’ (61 Fed. Reg.
10 38806 (July 25, 1996)) (or successor regulations).

11 “(b) STUDIES; MODEL PLANS.—Not later than 18
12 months after the date of enactment of this section, the
13 Secretary shall, to the maximum extent practicable, make
14 publicly available—

15 “(1) a list of scientific studies, updated as nec-
16 essary by the Secretary, for use by small establish-
17 ments and very small establishments in developing a
18 Hazard Analysis and Critical Control Points plan,
19 which list the Secretary shall update as necessary;

20 “(2) guidelines relating to best practices and
21 techniques by small establishments and very small
22 establishments in the production of fresh or further
23 processed meat and meat food products; and

24 “(3) scale-appropriate model Hazard Analysis
25 and Critical Control Points plans for small establish-

1 ments and very small establishments, including
2 model plans for—

3 “(A) slaughter-only establishments;

4 “(B) processing-only establishments; and

5 “(C) slaughter and processing establish-
6 ments.

7 “(c) GUIDANCE.—Not later than 2 years after the
8 date of enactment of this section, the Secretary shall pub-
9 lish a guidance document, after notice and an opportunity
10 for public comment, providing information on the require-
11 ments that need to be met for small establishments and
12 very small establishments to develop a Hazard Analysis
13 and Critical Control Points plan pursuant to this Act.

14 “(d) DATA CONFIDENTIALITY.—In carrying out this
15 section, the Secretary shall not publish confidential busi-
16 ness information of any meat processing establishment, in-
17 cluding a Hazard Analysis and Critical Control Points
18 plan of a meat processing establishment.

19 “(e) NONBINDING GUIDANCE.—Any guidance, model
20 plans, or scientific resources made publicly available by the
21 Secretary under this section shall be clearly identified as
22 nonbinding examples that are not endorsed, approved, or
23 considered universally applicable by the Secretary.

24 “(f) RULE OF CONSTRUCTION.—Nothing in this sec-
25 tion limits the ability of the Secretary to issue additional

1 guidance, model plans, or scientific resources before or
2 after the deadlines required under this section, as deter-
3 mined necessary by the Secretary.”.

4 (b) POULTRY ESTABLISHMENTS.—The Poultry Prod-
5 ucts Inspection Act is amended by inserting after section
6 14 (21 U.S.C. 463) the following:

7 **“SEC. 14A. SMALL AND VERY SMALL ESTABLISHMENT GUID-**
8 **ANCE AND RESOURCES.**

9 “(a) DEFINITIONS OF SMALL ESTABLISHMENT AND
10 VERY SMALL ESTABLISHMENT.—In this section, the
11 terms ‘small establishment’ and ‘very small establishment’
12 have the meanings given the terms ‘smaller establishment’
13 and ‘very small establishment’, respectively, in the final
14 rule entitled ‘Pathogen Reduction; Hazard Analysis and
15 Critical Control Point (HACCP) Systems’ (61 Fed. Reg.
16 38806 (July 25, 1996)) (or successor regulations).

17 “(b) STUDIES; MODEL PLANS.—Not later than 18
18 months after the date of enactment of this section, the
19 Secretary shall, to the maximum extent practicable, make
20 publicly available—

21 “(1) a list of scientific studies, updated as nec-
22 essary by the Secretary, for use by small establish-
23 ments and very small establishments in developing a
24 Hazard Analysis and Critical Control Points plan,
25 which list the Secretary shall update as necessary;

1 “(2) guidelines relating to best practices and
2 techniques used by small establishments and very
3 small establishments in the production of fresh or
4 further processed poultry products; and

5 “(3) scale-appropriate model Hazard Analysis
6 and Critical Control Points plans for small establish-
7 ments and very small establishments, including
8 model plans for—

9 “(A) slaughter-only establishments;

10 “(B) processing-only establishments; and

11 “(C) slaughter and processing establish-
12 ments.

13 “(c) GUIDANCE.—Not later than 2 years after the
14 date of enactment of this section, the Secretary shall pub-
15 lish a guidance document, after notice and an opportunity
16 for public comment, providing information on the require-
17 ments that need to be met for small establishments and
18 very small establishments to develop a Hazard Analysis
19 and Critical Control Points plan pursuant to this Act.

20 “(d) DATA CONFIDENTIALITY.—In carrying out this
21 section, the Secretary shall not publish confidential busi-
22 ness information of any poultry processing establishment,
23 including a Hazard Analysis and Critical Control Points
24 plan of a poultry processing establishment.

1 “(e) NONBINDING GUIDANCE.—Any guidance, model
2 plans, or scientific resources made publicly available by the
3 Secretary under this section shall be clearly identified as
4 nonbinding examples that are not endorsed, approved, or
5 considered universally applicable by the Secretary.

6 “(f) RULE OF CONSTRUCTION.—Nothing in this sec-
7 tion limits the ability of the Secretary to issue additional
8 guidance, model plans, or scientific resources before or
9 after the deadlines required under this section, as deter-
10 mined necessary by the Secretary.”.

11 **SEC. 12108. NATIONAL POULTRY IMPROVEMENT PLAN.**

12 The Animal Health Protection Act is amended by in-
13 serting after section 10409A (7 U.S.C. 8308a) the fol-
14 lowing:

15 **“SEC. 10409B. NATIONAL POULTRY IMPROVEMENT PLAN.**

16 “(a) IN GENERAL.—The Secretary shall maintain
17 and administer the National Poultry Improvement Plan
18 in accordance with parts 145, 146, and 147 of title 9,
19 Code of Federal Regulations (as in effect on the date of
20 enactment of this section).

21 “(b) GENERAL CONFERENCE COMMITTEE.—The
22 Secretary shall maintain a general conference committee
23 in accordance with part 147 of title 9, Code of Federal
24 Regulations (as in effect on the date of enactment of this
25 section) and chapter 10 of title 5, United States Code,

1 to provide recommendations to the Secretary on the ad-
2 ministration of the National Poultry Improvement Plan
3 under subsection (a).

4 “(c) SUCCESSOR REGULATIONS.—The Secretary may
5 promulgate successor regulations to the regulations de-
6 scribed in subsections (a) and (b) as the Secretary deter-
7 mines necessary to carry out this section.

8 “(d) AUTHORIZATION OF APPROPRIATIONS.—In ad-
9 dition to amounts otherwise made available, there is au-
10 thorized to be appropriated to carry out this section
11 \$1,500,000 for each of fiscal years 2027 through 2031,
12 to remain available until expended.

13 “(e) GENERAL LIMITATION.—The expenses of the
14 general conference committee under subsection (b) shall
15 not be counted toward any general limitation on the ex-
16 penses of advisory committees, panels, commissions, and
17 task forces of the Department of Agriculture contained in
18 any Act making appropriations for the Department of Ag-
19 riculture, whether enacted before, on, or after June 23,
20 1998, unless the appropriation Act specifically—

21 “(1) refers to this subsection; and

22 “(2) includes the general conference committee
23 under subsection (b) within the general limitation.”.

1 **SEC. 12109. U.S. SWINE HEALTH IMPROVEMENT PLAN.**

2 The Animal Health Protection Act is amended by in-
3 serting after section 10409B (as added by section 12108)
4 the following:

5 **“SEC. 10409C. U.S. SWINE HEALTH IMPROVEMENT PLAN.**

6 “(a) IN GENERAL.—The Secretary shall establish
7 and maintain a voluntary certification program for swine
8 diseases, to be known as the ‘U.S. Swine Health Improve-
9 ment Plan’, to improve biosecurity, traceability, disease
10 surveillance, and foreign animal disease preparedness of
11 the swine industry.

12 “(b) ADVISORY COMMITTEE.—The Secretary shall
13 establish and maintain a Federal advisory committee in
14 accordance with chapter 10 of title 5, United States Code,
15 to provide recommendations to the Secretary in the ad-
16 ministration of the U.S. Swine Health Improvement Plan
17 established under subsection (a).

18 “(c) RULEMAKING.—Not later than 1 year after the
19 date of enactment of this section, the Secretary shall es-
20 tablish the U.S. Swine Health Improvement Plan under
21 subsection (a) and the Federal advisory committee under
22 subsection (b) by finalizing the proposed rule entitled ‘US
23 Swine Health Improvement Plan’ (89 Fed. Reg. 107045
24 (December 31, 2024)), taking into consideration the com-
25 ments received.

1 “(d) AUTHORIZATION OF APPROPRIATIONS.—In ad-
2 dition to amounts otherwise made available, there is au-
3 thorized to be appropriated to carry out this section
4 \$4,500,000 for each of fiscal years 2027 through 2031,
5 to remain available until expended.

6 “(e) GENERAL LIMITATION.—The expenses of the
7 Federal advisory committee under subsection (b) shall not
8 be counted toward any general limitation on the expenses
9 of advisory committees, panels, commissions, and task
10 forces of the Department of Agriculture contained in any
11 Act making appropriations for the Department of Agri-
12 culture, whether enacted before, on, or after June 23,
13 1998, unless the appropriation Act specifically—

14 “(1) refers to this subsection; and

15 “(2) includes the Federal advisory committee
16 under subsection (b) within the general limitation.”.

17 **SEC. 12110. INTERSTATE INTERNET SALES OF CERTAIN**
18 **STATE-INSPECTED MEAT AND POULTRY.**

19 (a) MEAT.—

20 (1) IN GENERAL.—Section 301 of the Federal
21 Meat Inspection Act (21 U.S.C. 661) is amended—

22 (A) in subsection (a)(1), by inserting “or
23 for distribution pursuant to the second sentence
24 of subsection (c)(2)” before the period at the
25 end; and

1 (B) in subsection (c)(2)—

2 (i) in the first sentence, by inserting
3 “or by” after “conducted at” each place it
4 appears; and

5 (ii) by inserting after the first sen-
6 tence the following: “For the purposes of
7 this paragraph, any retail store, res-
8 taurant, or similar retail-type establish-
9 ment may sell over the internet and ship
10 by carrier in commerce (other than for ex-
11 port to a foreign country) any State-in-
12 spected meat or meat food product, pro-
13 vided that the State-inspected meat or
14 meat food product is shipped directly to
15 household consumers and in normal retail
16 quantities.”.

17 (2) TECHNICAL AMENDMENTS.—Section 301 of
18 the Federal Meat Inspection Act (21 U.S.C. 661) is
19 amended—

20 (A) by striking “he” each place it appears
21 and inserting “the Secretary”; and

22 (B) in subsection (c)—

23 (i) in paragraph (1), in the first sen-
24 tence, by striking “subparagraph (2)” and
25 inserting “paragraph (2)”;

1 (ii) in paragraph (2)—

2 (I) in the first sentence, by strik-
3 ing “paragraph (c)” and inserting
4 “subsection”; and

5 (II) in the third sentence (as so
6 redesignated), by striking “subpara-
7 graph” and inserting “paragraph”;

8 (iii) in paragraph (3)—

9 (I) by striking “paragraph (c)”
10 each place it appears and inserting
11 “subsection”;

12 (II) by striking “subparagraph
13 (1)” and inserting “paragraph (1)”;
14 and

15 (III) by striking “this para-
16 graph” each place it appears and in-
17 serting “this subsection”; and

18 (iv) in paragraph (4), by striking
19 “paragraph (c)” and inserting “sub-
20 section”.

21 (b) POULTRY.—

22 (1) IN GENERAL.—Section 5 of the Poultry
23 Products Inspection Act (21 U.S.C. 454) is amend-
24 ed—

1 (A) in subsection (a)(1), by inserting “or
2 for distribution pursuant to the second sentence
3 of subsection (c)(2)” before the period at the
4 end; and

5 (B) in subsection (c)(2)—

6 (i) in the first sentence, by inserting
7 “or by” after “conducted at” each place it
8 appears; and

9 (ii) by inserting after the first sen-
10 tence the following: “For the purposes of
11 this paragraph, any retail store, res-
12 taurant, or similar retail-type establish-
13 ment may sell over the internet and ship
14 by carrier in commerce (other than for ex-
15 port to a foreign country) any State-in-
16 spected poultry product, provided that the
17 State-inspected poultry product is shipped
18 directly to household consumers and in
19 normal retail quantities.”.

20 (2) TECHNICAL AMENDMENTS.—Section 5 of
21 the Poultry Products Inspection Act (21 U.S.C.
22 454) is amended—

23 (A) by striking “he” each place it appears
24 and inserting “the Secretary”;

1 (B) in subsection (a)(3), in the third sen-
2 tence, by striking “subparagraph (4)” and in-
3 serting “paragraph (4)”; and

4 (C) in subsection (c)—

5 (i) in paragraph (1)—

6 (I) in the first sentence, by strik-
7 ing “subparagraph (2) of this para-
8 graph (c)” and inserting “paragraph
9 (2)”; and

10 (II) in the fourth sentence, by
11 striking “subparagraph (a)(4) of this
12 section” and inserting “subsection
13 (a)(4)”; and

14 (ii) in paragraph (2)—

15 (I) in the first sentence, by strik-
16 ing “paragraph (c)” and inserting
17 “subsection”; and

18 (II) in the third sentence (as so
19 redesignated), by striking “subpara-
20 graph” and inserting “paragraph”;

21 (iii) in paragraph (3)—

22 (I) by striking “subparagraph (1)
23 of this paragraph (c)” and inserting
24 “paragraph (1)”; and

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1 (II) by striking “paragraph (c)”
2 each place it appears and inserting
3 “subsection”; and
4 (III) by striking “this para-
5 graph” each place it appears and in-
6 serting “this subsection”; and
7 (iv) in paragraph (4), by striking
8 “paragraph (c)” and inserting “sub-
9 section”.

10 **SEC. 12111. OUTREACH ON COOPERATIVE INTERSTATE**
11 **SHIPMENT.**

12 (a) MEAT.—Section 501 of the Federal Meat Inspec-
13 tion Act (21 U.S.C. 683) is amended by striking sub-
14 section (j) and inserting the following:

15 “(j) FEDERAL OUTREACH.—In each of fiscal years
16 2027 through 2031, the Secretary shall conduct outreach
17 to States that—

18 “(1) have a State meat inspection program pur-
19 suant to section 301; but

20 “(2) do not have a selected establishment.

21 “(k) REPORT.—Not later than September 30 of each
22 of fiscal years 2027 through 2031, the Secretary shall sub-
23 mit to the Committees on Agriculture, Nutrition, and For-
24 estry and Appropriations of the Senate and the Commit-
25 tees on Agriculture and Appropriations of the House of

1 Representatives a report that describes the outreach ac-
2 tivities carried out under subsection (j) and the results of
3 that outreach.”.

4 (b) POULTRY.—Section 31 of the Poultry Products
5 Inspection Act (21 U.S.C. 472) is amended by striking
6 subsection (i) and inserting the following:

7 “(i) FEDERAL OUTREACH.—In each of fiscal years
8 2027 through 2031, the Secretary shall conduct outreach
9 to States that—

10 “(1) have a State poultry product inspection
11 program pursuant to section 5; but

12 “(2) do not have a selected establishment.

13 “(j) REPORT.—The Secretary shall include in the re-
14 port required under subsection (k) of section 501 of the
15 Federal Meat Inspection Act (21 U.S.C. 683) a descrip-
16 tion of the outreach activities carried out under subsection
17 (i) and the results of that outreach.”.

18 **SEC. 12112. LIVESTOCK AND MEAT MARKETING STUDY.**

19 (a) IN GENERAL.—The Secretary, acting through the
20 Office of the Chief Economist, shall offer to enter into a
21 contract with an independent, nonpartisan research insti-
22 tute, a land-grant college or university (as defined in sec-
23 tion 1404 of the National Agricultural Research, Exten-
24 sion, and Teaching Policy Act of 1977 (7 U.S.C. 3103)),
25 or a non-land-grant college of agriculture (as defined in

1 that section) with expertise in economic analyses of the
2 livestock and meat industry to carry out a study that—

3 (1) is similar in scope to the study funded
4 under the heading “SALARIES AND EXPENSES”
5 under the heading “GRAIN INSPECTION, PACKERS
6 AND STOCKYARDS ADMINISTRATION” under the
7 heading “AGRICULTURAL PROGRAMS” under
8 title I of division A of the Consolidated Appropria-
9 tions Resolution, 2003 (Public Law 108–7; 117
10 Stat. 22); and

11 (2) analyzes production trends and marketing
12 practices used in the livestock and meat industries,
13 including the extent to which different marketing
14 practices are used and the possible effects of the use
15 of those marketing practices on industry partici-
16 pants, including consumers.

17 (b) REPORT.—Not later than 2 years after the date
18 of enactment of this Act, the Secretary shall submit to
19 the Committee on Agriculture, Nutrition, and Forestry of
20 the Senate and the Committee on Agriculture of the
21 House of Representatives, and make publicly available on
22 the website of the Department, a report containing the
23 findings of the study conducted under subsection (a).

1 (c) AUTHORIZATION OF APPROPRIATIONS.—There is
2 authorized to be appropriated to carry out this section
3 \$3,000,000, to remain available until expended.

4 **Subtitle B—National Security**

5 **SEC. 12201. DEFINITIONS; ORGANIZATIONAL UPDATES.**

6 (a) DEFINITIONS.—Section 9 of the Agricultural
7 Foreign Investment Disclosure Act of 1978 (7 U.S.C.
8 3508) is amended—

9 (1) by striking the section designation and
10 heading and all that follows through “located in
11 one” in paragraph (1) and inserting the following:

12 **“SEC. 9. DEFINITIONS.**

13 “In this Act:

14 “(1) AGRICULTURAL LAND.—The term ‘agricul-
15 tural land’ means any land located in 1”;

16 (2) in paragraph (2)—

17 (A) by striking the semicolon at the end
18 and inserting a period; and

19 (B) by striking “(2) the term ‘foreign gov-
20 ernment’ means any government other than the
21 Federal Government” and inserting the fol-
22 lowing:

23 “(2) FOREIGN GOVERNMENT.—The term ‘for-
24 eign government’ means any government other than
25 the United States Government”;

1 (3) in paragraph (3)—

2 (A) in subparagraph (A)—

3 (i) in clause (ii), by striking “the
4 Trust Territory of the Pacific Islands” and
5 inserting “a party to a Compact of Free
6 Association with the United States”; and

7 (ii) in clause (iii), by inserting “(8
8 U.S.C. 1101 et seq.)” before the semicolon
9 at the end;

10 (B) in subparagraph (D), by striking the
11 semicolon at the end and inserting a period;
12 and

13 (C) in the matter preceding subparagraph
14 (A), by striking “(3) the term” and inserting
15 the following:

16 “(3) FOREIGN PERSON.—The term”;

17 (4) in paragraph (4)—

18 (A) by striking the semicolon at the end
19 and inserting a period; and

20 (B) by striking “(4) the term” and insert-
21 ing the following:

22 “(4) PERSON.—The term”;

23 (5) in paragraph (5)—

24 (A) by striking “; and” at the end and in-
25 serting a period; and

1 (B) by striking “(5) the term” and insert-
2 ing the following:

3 “(5) SECRETARY.—The term”; and
4 (6) in paragraph (6)—

5 (A) by striking “the Trust Territory of the
6 Pacific Islands” and inserting “any party to a
7 Compact of Free Association with the United
8 States”; and

9 (B) by striking “(6) the term” and insert-
10 ing the following:

11 “(6) STATE.—The term”.

12 (b) ORGANIZATIONAL UPDATES.—

13 (1) IN GENERAL.—The Agricultural Foreign
14 Investment Disclosure Act of 1978 is amended—

15 (A) by redesignating sections 2, 3, and 4
16 (7 U.S.C. 3501, 3502, 3503) as sections 3, 4,
17 and 5, respectively; and

18 (B) by redesignating section 9 (7 U.S.C.
19 3508) as section 2 and moving the section so as
20 to appear after section 1 (7 U.S.C. 3501 note;
21 Public Law 95–460).

22 (2) CONFORMING AMENDMENTS.—

23 (A) IN GENERAL.—The Agricultural For-
24 eign Investment Disclosure Act of 1978 is
25 amended—

1 (i) in section 5 (as redesignated by
2 paragraph (1)(A))—

3 (I) by striking “section 2” and
4 inserting “section 3”; and

5 (II) by striking “person who”
6 and inserting “person that”; and

7 (ii) in section 6 (7 U.S.C. 3505)—

8 (I) by striking “beginning after
9 the effective date of section 2”; and

10 (II) by striking “section 2 during
11 such” and inserting “section 3 during
12 that”.

13 (B) AGRICULTURAL ADJUSTMENT ACT.—

14 Section 8c(5)(K)(i) of the Agricultural Adjust-
15 ment Act (7 U.S.C. 608c(5)(K)(i)) is amended,
16 in the undesignated matter following subclause
17 (II), by striking “such term under section 9(3)
18 of the Agricultural Foreign Investment Disclo-
19 sure Act of 1978 (7 U.S.C. 3508(3))” and in-
20 serting “the term in section 2 of the Agricul-
21 tural Foreign Investment Disclosure Act of
22 1978”.

23 (3) REPEAL.—Section 10 of the Agricultural
24 Foreign Investment Disclosure Act of 1978 (7
25 U.S.C. 3501 note; Public Law 95–460) is repealed.

1 **SEC. 12202. REPORTING REQUIREMENTS.**

2 Section 3 of the Agricultural Foreign Investment Dis-
3 closure Act of 1978 (as redesignated by section
4 12201(b)(1)(A)) is amended—

5 (1) in subsection (a)—

6 (A) in paragraph (4), by striking “acquired
7 or transferred” and inserting “acquired, trans-
8 ferred, or leased”;

9 (B) in paragraph (6), by inserting “or
10 lease” after “purchase”;

11 (C) in paragraph (7), by redesignating
12 subparagraphs (A) and (B) as clauses (i) and
13 (ii), respectively, and indenting the clauses ap-
14 propriately; and

15 (D) by redesignating paragraphs (1)
16 through (9) as subparagraphs (A) through (I),
17 respectively, and indenting the subparagraphs
18 appropriately;

19 (2) by striking the section designation and
20 heading and all that follows through “Such report”
21 in the second sentence of subsection (a) in the mat-
22 ter preceding paragraph (1) and inserting the fol-
23 lowing:

24 **“SEC. 3. REPORTING REQUIREMENTS.**

25 “(a) ACQUISITIONS OR TRANSFERS OF CERTAIN AG-
26 RICULTURAL LAND INTERESTS BY FOREIGN PERSONS.—

1 “(1) IN GENERAL.—A foreign person that ac-
2 quires or transfers any interest in agricultural land,
3 or that enters into a leasing agreement the period of
4 which is longer than 5 years with respect to agricul-
5 tural land, shall submit to the Secretary a report de-
6 scribing the acquisition, transfer, or lease, as appli-
7 cable, not later than 90 days after the date of the
8 acquisition, transfer, or lease.

9 “(2) REQUIREMENTS.—A report under para-
10 graph (1)”;

11 (3) by striking subsection (b);

12 (4) in subsection (c)—

13 (A) by striking the third sentence;

14 (B) in the second sentence—

15 (i) by striking “subsection (b) of this
16 section” and inserting “subparagraphs (A)
17 through (F), (H), and (I) of subsection
18 (a)(2)”;

19 (ii) by striking “Such report” and in-
20 serting the following:

21 “(2) REQUIREMENTS.—A report under para-
22 graph (1)”;

23 (C) by striking the subsection designation
24 and all that follows through “who subse-

1 quently” in the first sentence and inserting the
2 following:

3 “(b) CHANGE IN FOREIGN PERSON STATUS OF IN-
4 TEREST HOLDERS.—

5 “(1) IN GENERAL.—A person that holds or ac-
6 quires any interest in agricultural land at a time
7 when the person is not a foreign person, and that
8 subsequently”;

9 (5) in subsection (d)—

10 (A) by striking the third sentence;

11 (B) in the second sentence—

12 (i) by striking “subsection (b) of this
13 section” and inserting “subparagraphs (A)
14 through (F), (H), and (I) of subsection
15 (a)(2)”; and

16 (ii) by striking “Such report” and in-
17 serting the following:

18 “(3) REQUIREMENTS.—A report under para-
19 graphs (1) and (2)”;

20 (C) by striking the subsection designation
21 and all that follows through “security interest,”
22 in the first sentence and inserting the following:

23 “(c) CONVERSION OF LAND.—

1 “(1) CONVERSION OF LAND TO AGRICULTURAL
2 USE.—A foreign person that holds or acquires any
3 interest”; and

4 (D) by inserting after paragraph (1) (as so
5 designated) the following:

6 “(2) CONVERSION OF LAND OUT OF AGRICUL-
7 TURAL USE.—A foreign person that holds or ac-
8 quires any interest in agricultural land that subse-
9 quently ceases to be agricultural land shall submit a
10 report to the Secretary not later than 90 days after
11 the date on which that land ceases to be agricultural
12 land.”;

13 (6) in subsection (e)—

14 (A) in subparagraph (A), by striking “each
15 person who” and inserting “each person that”;

16 (B) by redesignating subparagraphs (A)
17 through (C) as paragraphs (1) through (3), re-
18 spectively; and

19 (C) in the matter preceding paragraph (1)
20 (as so redesignated)—

21 (i) by striking “who is required by
22 subsection (a), (b), (c), or (d) of this sec-
23 tion” and inserting “that is required under
24 subsection (a), (b), or (c)”;

1 (ii) by striking “(e) With respect” and
2 inserting the following:

3 “(d) ADDITIONAL REPORTS BY FOREIGN PERSONS
4 OTHER THAN INDIVIDUALS OR GOVERNMENTS.—With re-
5 spect”; and

6 (7) in subsection (f)—

7 (A) in subparagraph (A), by striking “any
8 person who” and inserting “each person that”;

9 (B) in subparagraph (C), by striking
10 “principle place” and inserting “principal
11 place”;

12 (C) by redesignating subparagraphs (A)
13 through (C) as paragraphs (1) through (3), re-
14 spectively; and

15 (D) in the matter preceding paragraph (1)
16 (as so redesignated)—

17 (i) by striking “subsection (e) of the
18 section” and inserting “subsection (d)”;

19 and

20 (ii) by striking “(f) With respect” and
21 inserting the following:

22 “(e) PERSONS HOLDING CERTAIN INTERESTS.—
23 With respect”.

1 **SEC. 12203. CIVIL PENALTIES.**

2 Section 4 of the Agricultural Foreign Investment Dis-
3 closure Act of 1978 (as redesignated by section
4 12201(b)(1)(A)) is amended to read as follows:

5 **“SEC. 4. CIVIL PENALTIES.**

6 **“(a) ASSESSMENT.—**

7 **“(1) IN GENERAL.—**The Secretary shall assess
8 against a person a civil penalty if the Secretary de-
9 termines that the person has committed a violation
10 of this Act by—

11 **“(A)** failing to submit a report required
12 under section 3 in accordance with that section;

13 **“(B)** knowingly submitting a report under
14 section 3 that—

15 **“(i)** does not contain all information
16 required to appear in the report; or

17 **“(ii)** contains information that is mis-
18 leading or false; or

19 **“(C)** failing to update any report sub-
20 mitted under section 3 that presents informa-
21 tion that is no longer accurate.

22 **“(2) AMOUNT.—**The amount of a civil penalty
23 assessed under paragraph (1) shall be such amount
24 as the Secretary determines to be appropriate to
25 achieve the purposes of this Act, subject to the con-
26 ditions that—

1 “(A) the amount determined for a violation
2 described in subparagraph (A) or (C) of para-
3 graph (1) shall not exceed 25 percent of the
4 fair market value, on the date of the assess-
5 ment, of the interest in agricultural land with
6 respect to which the applicable violation oc-
7 curred; and

8 “(B) the amount determined for a violation
9 described in paragraph (1)(B) shall be not less
10 than 5 percent, but not more than 25 percent,
11 of the fair market value, on the date of the as-
12 sessment, of the interest in agricultural land
13 with respect to which the applicable violation
14 occurred.

15 “(b) COLLECTION.—A civil penalty assessed under
16 subsection (a) shall be recoverable in a civil action brought
17 by the Attorney General of the United States in a United
18 States district court of competent jurisdiction.

19 “(c) AVAILABILITY.—A civil penalty collected under
20 this section shall be available to the Secretary, and remain
21 available until expended, for the purpose of enforcing this
22 Act.

23 “(d) LIENS.—

24 “(1) IN GENERAL.—On assessing a civil penalty
25 under subsection (a), the Secretary may place a lien

1 on the agricultural land with respect to which the
2 violation that is the subject of the penalty occurred.

3 “(2) RELEASE.—A lien placed pursuant to
4 paragraph (1) shall be released only on payment of
5 the applicable civil penalty.

6 “(e) PUBLIC DISCLOSURE OF ENFORCEMENT AC-
7 TIONS.—The Secretary shall include in the report required
8 under section 9(a), and make publicly available, the fol-
9 lowing information:

10 “(1) The name of each person that paid to the
11 Secretary a civil penalty assessed under subsection
12 (a).

13 “(2) The amount of each civil penalty assessed
14 under subsection (a), including, if applicable, any
15 such penalty assessed after completion of an appeal
16 of the penalty.

17 “(3) The reason for each civil penalty assessed
18 under subsection (a), including whether the penalty
19 was for a violation described in subparagraph (A),
20 (B), or (C) of paragraph (1) of that subsection.”.

21 **SEC. 12204. INVESTIGATIVE ACTIONS.**

22 Section 5 of the Agricultural Foreign Investment Dis-
23 closure Act of 1978 (as redesignated and amended by sec-
24 tion 12201(b)) is amended—

1 (1) by striking the section designation and
2 heading and all that follows through “compliance”
3 and inserting the following:

4 **“SEC. 5. INVESTIGATIVE ACTIONS.**

5 “(a) IN GENERAL.—The Secretary may take such ac-
6 tions as the Secretary considers necessary to promote and
7 monitor compliance”; and

8 (2) by adding at the end the following:

9 “(b) AUDIT.—The Secretary shall conduct an annual
10 compliance audit of not less than 10 percent of the reports
11 submitted under section 3 for the year covered by the
12 audit to ensure the completeness and accuracy of those
13 reports.

14 “(c) TRAINING.—The Secretary shall provide annual
15 training to State- and county-level personnel relating to
16 identifying agricultural land for which—

17 “(1) a report is required to be submitted under
18 section 3; but

19 “(2) no report has been submitted by the appli-
20 cable foreign person.

21 “(d) OUTREACH.—Using existing resources and ef-
22 forts, to the maximum extent practicable, the Secretary
23 shall carry out a nationwide outreach program for land-
24 lords, owners, operators, persons, producers, and tenants
25 (as those terms are defined in section 718.2 of title 7,

1 Code of Federal Regulations (as in effect on the date of
2 enactment of the Agricultural Act of 2026)) of agricul-
3 tural land, county property appraiser offices, land ap-
4 praisal companies, and real estate auction companies to
5 increase public awareness and provide education regarding
6 the reporting requirements under this Act.”.

7 **SEC. 12205. PUBLIC INSPECTION.**

8 Section 7 of the Agricultural Foreign Investment Dis-
9 closure Act of 1978 (7 U.S.C. 3506) is amended to read
10 as follows:

11 **“SEC. 7. PUBLIC DISCLOSURE OF REPORTING DATA.**

12 “(a) IN GENERAL.—Not later than 2 years after the
13 date of enactment of the Agricultural Act of 2026, the
14 Secretary shall—

15 “(1) establish a streamlined process for elec-
16 tronic submission and retention of reports submitted
17 under section 3; and

18 “(2) publish in the internet database estab-
19 lished under section 742 of division B of the Con-
20 solidated Appropriations Act, 2024 (7 U.S.C. 3501
21 note; Public Law 118–42), human-readable and ma-
22 chine-readable data sets that—

23 “(A) contain a description of—

24 “(i) the purchase or lease price paid,
25 or any other consideration given, for each

1 interest in agricultural land for which a re-
2 port is submitted under section 3;

3 “(ii) updated estimated values of each
4 interest in agricultural land described in
5 subparagraph (A), as that information is
6 made available to the Secretary, based on
7 the most recently assessed value of the ag-
8 ricultural land or another comparable
9 method determined by the Secretary;

10 “(iii) with respect to any agricultural
11 land for which a report is submitted under
12 section 3, updated descriptions of each for-
13 eign person that holds an interest in the
14 agricultural land, as that information is
15 made available to the Secretary, cat-
16 egorized as a majority owner or a minority
17 owner of the agricultural land; and

18 “(iv) any other relevant information,
19 as determined by the Secretary, relating to
20 reporting requirements under this Act,
21 based on each report submitted to the Sec-
22 retary under section 3; and

23 “(B) as soon as practicable after the date
24 of receipt of a report under section 3, be up-
25 dated with the data from that report, except

1 that the name of the filer and the purchase or
2 lease price of the transaction shall not be pub-
3 licly disclosed for a period of at least 30 days
4 following the date of receipt.

5 “(b) PROTECTION OF INFORMATION.—In carrying
6 out subsection (a), the Secretary shall ensure the protec-
7 tion of personally identifiable information contained in re-
8 ports submitted under section 3.”.

9 SEC. 12206. SECRETARIAL REPORTS.

10 The Agricultural Foreign Investment Disclosure Act
11 of 1978 (as amended by section 12201(b)(1)) is amended
12 by inserting after section 8 (7 U.S.C. 3507) the following:

13 "SEC. 9. SECRETARIAL REPORTS.

14 “(a) REPORT ON DATA COLLECTED.—

“(1) IN GENERAL.—Not later than 1 year after the date of enactment of the Agricultural Act of 2026, and not less frequently than annually thereafter, the Secretary shall submit to Congress, and make publicly available, a report describing, with respect to the year covered by the report—

21 “(A) a description of—

22 “(i) the number of acres of agricul-
23 tural land owned, leased, or managed by
24 foreign persons, organized by State; and

1 “(ii) for each State, the percentage of
2 land owned or managed by foreign persons
3 compared to the total acreage of the State;

4 “(B) the activities carried out by the Sec-
5 retary pursuant to this Act;

6 “(C) the intended and unintended mis-
7 representation of foreign landownership in any
8 annual reports prepared by the Secretary de-
9 scribing foreign holdings of agricultural land
10 due to inaccurate reporting of foreign holdings
11 of agricultural land; and

12 “(D) any specific activities carried out by
13 the Secretary to monitor erroneous reporting
14 required under this Act that would result in—

15 “(i) a violation of this Act; or

16 “(ii) the assessment of a civil penalty
17 under section 4, including the information
18 described in subsection (e) of that section.

19 “(2) PROTECTION OF INFORMATION.—The Sec-
20 retary shall ensure the protection of personally iden-
21 tifiable information contained in the report pursuant
22 to subparagraphs (A) through (D) of paragraph (1).

23 “(b) INTERAGENCY REPORT ON FOREIGN INFLU-
24 ENCE IN AGRICULTURE.—Not later than 1 year after the
25 date of enactment of the Agricultural Act of 2026, and

1 not less frequently than annually thereafter, the Secretary,
2 jointly with the Secretary of Homeland Security and the
3 head of any other appropriate Federal agency, shall—

4 “(1) conduct an analysis of foreign influence in
5 the United States agricultural sector; and

6 “(2) submit to Congress a report, which may be
7 included with the report submitted under subsection
8 (a), that includes a summary, with respect to the
9 year covered by the report, of—

10 “(A) foreign investments in the United
11 States agricultural sector;

12 “(B) trends relating to the purchase of ag-
13 ricultural land in the United States by foreign-
14 owned shell corporations;

15 “(C) the risks and benefits, as determined
16 by the Secretary, that are associated with for-
17 eign ownership or leasing of agricultural land in
18 rural areas (as defined in section 520 of the
19 Housing Act of 1949 (42 U.S.C. 1490));

20 “(D) the risks to the agricultural sector of
21 the United States posed by foreign purchases of
22 United States businesses engaged in agri-
23 culture;

1 “(E) the potential for foreign investment
2 to undermine United States agricultural pro-
3 duction and agricultural supply chains;

4 “(F) the greatest international threats of
5 increased foreign control of, and investment in,
6 the United States agricultural sector; and

7 “(G) agriculture-related espionage and
8 theft techniques used by foreign governments,
9 including any attempts to target United States
10 agricultural intellectual property, innovation, re-
11 search and development, cost or pricing data, or
12 internal strategy documents.

13 “(c) REPORT ON IMPLEMENTATION AND INTER-
14 AGENCY COLLABORATION.—Not later than 1 year after
15 the date of enactment of the Agricultural Act of 2026,
16 the Secretary shall, in coordination with any other Federal
17 agency as determined by the Secretary, submit to Con-
18 gress a report describing—

19 “(1) the progress of the Secretary in imple-
20 menting the amendments made to this Act by the
21 Agricultural Act of 2026;

22 “(2) the feasibility of establishing a mechanism
23 for quantifying the threats posed by foreign persons
24 to United States food security, biosecurity, food

1 safety, environmental protection, and national de-
2 fense; and

3 “(3) the feasibility of establishing a rigorous
4 discovery and review process to review transactions
5 that may be transactions described in section
6 721(a)(4)(B) of the Defense Production Act of 1950
7 (50 U.S.C. 4565(a)(4)(B)) for referral to the Com-
8 mittee on Foreign Investment in the United
9 States.”.

10 **SEC. 12207. OFFICE OF HOMELAND SECURITY, DEPART-**
11 **MENT OF AGRICULTURE.**

12 Section 221 of the Department of Agriculture Reor-
13 ganization Act of 1994 (7 U.S.C. 6922) is amended—

14 (1) in subsection (a)—

15 (A) by striking the subsection designation
16 and heading and all that follows through “sec-
17 tion, the” and inserting the following:

18 “(a) DEFINITIONS.—In this section:

19 “(1) AGRICULTURE AND FOOD DEFENSE.—
20 The”; and

21 (B) by adding at the end the following:

22 “(2) FOOD AND AGRICULTURE CRITICAL INFRA-
23 STRUCTURE SECTOR.—The term ‘food and agri-
24 culture critical infrastructure sector’ means any
25 physical infrastructure, energy production, or land

1 associated with the production, including the stor-
2 age, manufacturing, and processing, of crops, live-
3 stock, poultry, or forestry, as determined by the Sec-
4 retary.

5 “(3) INTELLIGENCE COMMUNITY.—The term
6 ‘intelligence community’ has the meaning given the
7 term in section 3 of the National Security Act of
8 1947 (50 U.S.C. 3003).”;

9 (2) in subsection (d)—

10 (A) in paragraph (4)(B)—

11 (i) by striking “(as defined in section
12 3 of the National Security Act of 1947 (50
13 U.S.C. 3003))”; and

14 (ii) by striking “124h(j))” and insert-
15 ing “124h(j)))”;

16 (B) in paragraph (7), by striking “and” at
17 the end;

18 (C) by redesignating paragraphs (6), (7),
19 and (8) as paragraphs (12), (13), and (16), re-
20 spectively;

21 (D) by inserting after paragraph (5) the
22 following:

23 “(6) be responsible for leveraging the capabili-
24 ties of the intelligence community and research con-
25 ducted by the National Laboratories relating to in-

1 telligence to ensure that the Secretary is fully in-
2 formed of threats by foreign actors to the food and
3 agriculture critical infrastructure sector;

4 “(7) advise the Secretary on foreign efforts—

5 “(A) to steal knowledge and technology
6 from the food and agriculture critical infra-
7 structure sector; and

8 “(B) to develop or implement biological
9 warfare attacks, cyber or clandestine oper-
10 ations, or other means of sabotaging and dis-
11 rupting the food and agriculture critical infra-
12 structure sector;

13 “(8) prepare, conduct, and facilitate intelligence
14 briefings for the Secretary and appropriate officials
15 of the Department;

16 “(9) serve as the Federal Senior Intelligence
17 Coordinator of the Department, and as the liaison
18 between the Secretary and the intelligence commu-
19 nity, with the authority to request intelligence collec-
20 tion and analysis on matters relating to the food and
21 agriculture critical infrastructure sector;

22 “(10) collaborate with the intelligence commu-
23 nity to downgrade intelligence assessments for
24 broader dissemination within the Department;

1 “(11) facilitate the sharing with the intelligence
2 community of information acquired by the Depart-
3 ment regarding foreign activities relating to agri-
4 culture;”; and

5 (E) by inserting after paragraph (13) (as
6 so redesignated) the following:

7 “(14) coordinate with the Administrator of the
8 Farm Service Agency to monitor compliance with
9 the reporting requirements of the Agricultural For-
10 eign Investment Disclosure Act of 1978 (7 U.S.C.
11 3501 et seq.);

12 “(15) refer to the Committee on Foreign In-
13 vestment in the United States any transactions that
14 raise potential national security concerns; and”;

15 (3) in subsection (e)(1)—

16 (A) by striking “(as defined in section 3 of
17 the National Security Act of 1947 (50 U.S.C.
18 3003))”; and

19 (B) by striking “124h(j)) that have” and
20 inserting “124h(j))) that have”; and

21 (4) by adding at the end the following:

22 “(f) DETAILEES.—

23 “(1) IN GENERAL.—The Secretary may detail
24 employees of the Department to, and accept employ-
25 ees detailed from, the intelligence community and

1 other relevant departments and agencies, as nec-
2 essary, to assist in carrying out the duties of the Of-
3 fice of Homeland Security.

4 “(2) OFFICE OF HOMELAND SECURITY.—

5 “(A) FROM DEPARTMENT.—The Secretary
6 may detail employees from across the Depart-
7 ment to the Office of Homeland Security.

8 “(B) REIMBURSEMENT.—The Office of
9 Homeland Security may accept an employee de-
10 tailed under paragraph (1) or subparagraph (A)
11 without reimbursement.”.

12 **Subtitle C—Fertilizer**

13 **SEC. 12301. CROP INPUT ECONOMIST.**

14 (a) IN GENERAL.—Subtitle A of the Department of
15 Agriculture Reorganization Act of 1994 (7 U.S.C. 6912
16 et seq.) is amended by adding at the end the following:

17 **“SEC. 224B. CROP INPUT ECONOMIST.**

18 “(a) ESTABLISHMENT.—The Secretary shall estab-
19 lish for the Department, in the Office of the Chief Econo-
20 mist, the full-time position of Crop Input Economist to
21 coordinate across the Department the development of re-
22 ports on, including assessments of, the domestic and inter-
23 national crop input market.

24 “(b) DUTIES.—The Crop Input Economist shall—

1 “(1) serve as a liaison between the Department,
2 other Federal agencies, and Congress with respect to
3 the crop input market;

4 “(2) make available to the public on the website
5 of the Department routine reports on, with respect
6 to the crop input market—

7 “(A) supply and demand conditions;

8 “(B) pricing indicators;

9 “(C) trade flows; and

10 “(D) any other market trends;

11 “(3) assess any volatility, disruption, or supply
12 chain risk in the crop input market;

13 “(4) with respect to such volatility, disruption,
14 or risk, assess any implication for producers and
15 food security in the United States;

16 “(5) improve the collection, quality, trans-
17 parency, and accessibility of data on the crop input
18 market, including through coordination with other
19 Federal agencies;

20 “(6) coordinate research on improving trans-
21 parency, resilience, and competitiveness with respect
22 to the supply chain for crop inputs;

23 “(7) provide to the Secretary any recommenda-
24 tions related to the results of such research;

1 “(8) support research evaluating any connection
2 between—

3 “(A) the availability, affordability, and effi-
4 ciency of crop inputs; and

5 “(B) agricultural productivity, food secu-
6 rity, and conservation outcomes; and

7 “(9) submit to Congress and provide publicly,
8 at such time and in such manner as is determined
9 by the Secretary, reports containing the information
10 described in this subsection.

11 “(c) DESIGNATION; VACANCIES.—

12 “(1) IN GENERAL.—Not later than 180 days
13 after the date of enactment of this section, the Sec-
14 retary shall designate an individual as the Crop
15 Input Economist.

16 “(2) VACANCIES.—Any vacancy in the position
17 of Crop Input Economist shall be filled as soon as
18 practicable.”.

19 (b) RULEMAKING.—Not later than 180 days after the
20 date of enactment of this Act, the Secretary shall issue
21 such rules as are necessary to implement the amendments
22 made by this section.

23 (c) TECHNICAL AND CONFORMING AMENDMENTS.—

24 (1) Subtitle A of the Department of Agriculture
25 Reorganization Act of 1994 is amended by redesignig-

1 nating section 225 (7 U.S.C. 6925) (relating to the
2 Food Access Liaison) as section 224A.

3 (2) Section 296(b) of the Department of Agri-
4 culture Reorganization Act of 1994 (7 U.S.C.
5 7014(b)) is amended by adding at the end the fol-
6 lowing:

7 “(11) The authority of the Secretary to carry
8 out the amendments made to this title by the Agri-
9 cultural Act of 2026.”.

10 **SEC. 12302. FERTILIZER RESEARCH.**

11 (a) IN GENERAL.—Not later than 1 year after the
12 date of enactment of this Act, the Secretary, in consulta-
13 tion with the Administrator of the Economic Research
14 Service, shall publish on the website of the Department
15 a report on the United States fertilizer industry, includ-
16 ing—

17 (1) a description of the impacts on the fertilizer
18 industry that influence the prices that agricultural
19 producers receive for their agricultural products at
20 the location of the farm;

21 (2) a description of the current size and value,
22 and the size and value over the previous 25 years,
23 of the United States fertilizer market, including—

24 (A) any trends over the previous 25 years;

25 and

1 (B) such sizes and values by each type of
2 fertilizer;

3 (3) a description of any patterns in pricing of
4 fertilizer over the previous 25 years;

5 (4) a description of the importation of fertilizer
6 into the United States, including—

7 (A) a list of types of fertilizer that are im-
8 ported into the United States, including the
9 quantity of each type of fertilizer imported;

10 (B) a list of foreign companies and domes-
11 tic companies that import into the United
12 States fertilizer, including the quantity of fer-
13 tilizer imported by each company;

14 (C) a list of the countries from which fer-
15 tilizer is imported into the United States; and

16 (D) a description of the impacts that anti-
17 dumping duties and countervailing duties have
18 on prices of fertilizer paid at the retail level;

19 (5) an overview of the manufacturing level, dis-
20 tribution channels, and retail level of the fertilizer
21 supply chain, including transportation, logistics, and
22 supply chain disruptions from natural disasters;

23 (6) a study of the concentration of the United
24 States fertilizer industry in United States fertilizer
25 companies, including an evaluation of the extent to

1 which concentration has had any anticompetitive im-
2 pacts;

3 (7) a description of the prices, crop-use effi-
4 ciencies, and crop yields of emerging fertilizers and
5 fertilizer technologies, including biological fertilizers
6 and other recently developed tools, compared to con-
7 ventional fertilizers and fertilizer technologies;

8 (8) an assessment of the regulatory environ-
9 ment governing fertilizer production, distribution,
10 and usage, including a description of areas in which
11 regulatory burden is hampering domestic production,
12 distribution, and usage of fertilizer;

13 (9) a description of the extent to which current
14 public price reporting of fertilizer is transparent for
15 market participants and the extent to which further
16 public price reporting is needed to achieve trans-
17 parency for market participants, including—

18 (A) an evaluation of the potential for the
19 Secretary to establish a fertilizer reporting
20 mechanism in which the fertilizer industry is re-
21 quired to report fertilizer prices at multiple lev-
22 els of the supply chain on a daily, weekly, or
23 monthly basis; and

1 (B) a recommendation to Congress on
2 whether a reporting mechanism described in
3 subparagraph (A) should be established; and

4 (10) a description of the projected growth of
5 the United States fertilizer market and the antici-
6 pated economic and political risks to fertilizer pro-
7 duction as a result of that growth.

8 (b) CONFIDENTIAL INFORMATION.—The report pub-
9 lished under subsection (a) shall not include any confiden-
10 tial business information.

11 **Subtitle D—United States Grain**
12 **Standards Reauthorization**

13 **SEC. 12401. PRIORITIZING IMPROVEMENTS TO GRAIN**
14 **GRADING TECHNOLOGY.**

15 Section 2(b) of the United States Grain Standards
16 Act (7 U.S.C. 74(b)) is amended—

17 (1) in paragraph (2), by striking “and” at the
18 end;

19 (2) in paragraph (3)(F), by striking the period
20 at the end and inserting “; and”; and

21 (3) by adding at the end the following:

22 “(4) that the Secretary shall prioritize the
23 adoption of improved grain grading technology to
24 provide for the efficient, accurate, and consistent
25 grading of grain.”.

1 **SEC. 12402. ADDITIONAL FLEXIBILITIES.**

2 (a) IN GENERAL.—Section 7(e) of the United States
3 Grain Standards Act (7 U.S.C. 79(e)) is amended by add-
4 ing at the end the following:

5 “(5) MANNER OF INSPECTION OF DOMESTIC
6 GRAIN AT EXPORT PORT LOCATIONS.—The Secretary
7 may provide that grain that is not export grain and
8 is loaded into or unloaded out of a rail car, barge,
9 truck, or other container at an export port location
10 shall be inspected in the manner provided in this
11 subsection or subsection (f), as the Secretary deter-
12 mines will best meet the objectives of this Act.”.

13 (b) CONFORMING AMENDMENT.—Section 7A(c)(2) of
14 the United States Grain Standards Act (7 U.S.C.
15 79a(c)(2)) is amended, in the first sentence, by inserting
16 “or official agency” after “State agency”.

17 **SEC. 12403. INVESTMENT AUTHORITY.**

18 (a) IN GENERAL.—Section 7(j) of the United States
19 Grain Standards Act (7 U.S.C. 79(j)) is amended—

20 (1) by inserting “trust” before “fund” each
21 place it appears;

22 (2) in paragraph (3), in the second sentence, by
23 striking “Secretary shall be credited to the fund”
24 and inserting “Secretary, and the interest earned
25 from the investment of those penalties, shall be cred-
26 ited to the trust fund created in paragraph (1)”; and

1 (3) in paragraph (5), in the first sentence, by
2 striking “2025” and inserting “2033”.

3 (b) CONFORMING AMENDMENTS.—

4 (1) Section 7(g)(2) of the United States Grain
5 Standards Act (7 U.S.C. 79(g)(2)) is amended, in
6 the second sentence, by inserting “trust” before
7 “fund”.

8 (2) Section 7A(l) of the United States Grain
9 Standards Act (7 U.S.C. 79a(l)) is amended by in-
10 serting “trust” before “fund created in section 7(j)”
11 each place it appears.

12 (3) Section 7B(a) of the United States Grain
13 Standards Act (7 U.S.C. 79b(a)) is amended, in the
14 third sentence, by inserting “trust” before “fund”.

15 (4) Section 16(j) of the United States Grain
16 Standards Act (7 U.S.C. 87e(j)) is amended by in-
17 serting “trust” before “fund”.

18 (5) Section 17A(e) of the United States Grain
19 Standards Act (7 U.S.C. 87f–1(e)) is amended, in
20 the third sentence, by inserting “trust” before
21 “fund”.

22 **SEC. 12404. ADMINISTRATIVE AND SUPERVISORY COSTS.**

23 Section 7D of the United States Grain Standards Act
24 (7 U.S.C. 79d) is amended—

1 (1) by inserting “, equipment, and development
2 of technology” after “activities”; and

3 (2) by striking “2025” and inserting “2033”.

4 **SEC. 12405. GENERAL AUTHORITIES.**

5 Section 16(e) of the United States Grain Standards
6 Act (7 U.S.C. 87e(e)) is amended by inserting “State
7 agencies delegated authority under sections 7 and 7A, and
8 official agencies,” after “Department of Agriculture,”.

9 **SEC. 12406. REPORTING REQUIREMENTS.**

10 Section 17B(e) of the United States Grain Standards
11 Act (7 U.S.C. 87f–2(e)) is amended—

12 (1) by redesignating paragraphs (1) and (2) as
13 subparagraphs (A) and (B), respectively, and indent-
14 ing appropriately;

15 (2) in the matter preceding subparagraph (A)
16 (as so redesignated), by striking “The Secretary”
17 and inserting the following:

18 “(1) DATA.—The Secretary”; and

19 (3) by adding at the end the following:

20 “(2) TECHNOLOGY ANALYSIS.—The Secretary
21 shall, to the extent determined appropriate by the
22 Secretary, in consultation with State agencies dele-
23 gated authority under sections 7 and 7A, official
24 agencies, and the grain industries described in the
25 second sentence of section 21(a), publish—

1 “(A) an analysis of any existing defi-
2 ciencies in the technology evaluation process;
3 and

4 “(B) recommendations—

5 “(i) to advance the efficiency, accu-
6 racy, and consistency of grain grading; and

7 “(ii) to minimize costs imposed on the
8 Federal Government and the grain export
9 industry.”.

10 **SEC. 12407. IMPROVING ADVISORY COMMITTEE NOMINA-**
11 **TIONS EFFICIENCY AND CONTINUITY.**

12 Section 21 of the United States Grain Standards Act
13 (7 U.S.C. 87j) is amended—

14 (1) in subsection (a)—

15 (A) by adding at the end the following:

16 “(5) NOMINATIONS; APPOINTMENT.—

17 “(A) NOMINATIONS.—Before the terms of
18 the current members of the advisory committee
19 expire, the Secretary shall solicit nominations
20 for individuals to be appointed to the advisory
21 committee.

22 “(B) APPOINTMENT.—Not later than 180
23 days after the end of the period of soliciting
24 nominations under subparagraph (A), the Sec-
25 retary shall announce the new members that

1 the Secretary has appointed to the advisory
2 committee.

3 “(C) CONTINUITY OF SERVICE.—The cur-
4 rent members of the advisory committee may
5 continue to serve until such time as new mem-
6 bers are nominated and appointed by the Sec-
7 retary.”;

8 (B) in the matter preceding paragraph (5)
9 (as added by subparagraph (A))—

10 (i) in the fourth sentence, by striking

11 “No member” and inserting the following:

12 “(4) TERM LIMIT.—No member”;

13 (ii) in the third sentence, by striking

14 “Members” and inserting the following:

15 “(3) TERM LENGTH.—Members”;

16 (iii) in the second sentence, by strik-

17 ing “The advisory” and inserting the fol-

18 lowing:

19 “(2) COMPOSITION.—The advisory”;

20 (iv) in the first sentence, by inserting

21 “(referred to in this section as the ‘advi-

22 sory committee’)” before the period at the

23 end; and

24 (v) by striking “(a) Not later” and in-

25 serting the following:

1 “(a) IN GENERAL.—

2 “(1) ESTABLISHMENT.—Not later”; and

3 (C) in paragraph (4) (as so designated), by
4 striking “terms” and inserting “terms unless
5 the member is continuing to serve in accordance
6 with paragraph (5)(C)”; and

7 (2) in subsection (e), by striking “2025” and
8 inserting “2033”.

9 **SEC. 12408. REAUTHORIZATION OF OTHER EXPIRING PRO-**
10 **VISIONS.**

11 (a) WEIGHING FEES AND DUTIES.—Section 7A(l)(4)
12 of the United States Grain Standards Act (7 U.S.C.
13 79a(l)(4)) is amended, in the first sentence, by striking
14 “2025” and inserting “2033”.

15 (b) AUTHORIZATION OF APPROPRIATIONS.—Section
16 19(a) of the United States Grain Standards Act (7 U.S.C.
17 87h(a)) is amended by striking “2025” and inserting
18 “2033”.

19 **Subtitle E—Other Miscellaneous**
20 **Provisions**

21 **SEC. 12501. PROTECTING ANIMALS WITH SHELTER.**

22 Section 12502(b)(8)(A) of the Agriculture Improve-
23 ment Act of 2018 (34 U.S.C. 20127(8)(A)) is amended
24 by striking “2019 through 2023” and inserting “2027
25 through 2031”.

1 **SEC. 12502. IMPORTATION OF LIVE DOGS.**

2 (a) IN GENERAL.—The Animal Health Protection
3 Act is amended by inserting after section 10404 (7 U.S.C.
4 8303) the following:

5 **“SEC. 10404A. IMPORTATION OF LIVE DOGS.**

6 “(a) DEFINITIONS.—In this section:

7 “(1) COMPENSATION.—The term ‘compensa-
8 tion’ means any act, consideration, or thing of value
9 received by a person directly, including cash or
10 noncash benefits, cost-avoidance, obtaining positive
11 or avoiding negative publicity, an exchange of serv-
12 ices, or maintaining a license issued under any local,
13 State, or Federal government authority.

14 “(2) IMPORT TRANSPORTER.—The term ‘import
15 transporter’ means any person or entity who—

16 “(A) receives an imported dog from any
17 importer, dealer, research facility, exhibitor, op-
18 erator of an auction sale, or department, agen-
19 cy, or instrumentality of the United States or
20 of any State or local government; and

21 “(B) receives compensation for moving
22 that imported dog in commerce.

23 “(3) IMPORTER.—The term ‘importer’ means
24 any person who transports or causes the transpor-
25 tation of a dog into the United States from a foreign
26 country.

1 “(4) TRANSFER.—The term ‘transfer’ means a
2 change of ownership or control of an imported dog
3 to another person, including by sale, adoption, ex-
4 change, or donation.

5 “(b) REQUIREMENTS.—

6 “(1) IN GENERAL.—Except as provided in para-
7 graph (2), no person shall import a dog into the
8 United States unless, prior to transport to the
9 United States, the Secretary receives electronic doc-
10 umentation demonstrating, as determined by the
11 Secretary, that the dog—

12 “(A) is in good health;

13 “(B) has received all necessary vaccina-
14 tions and internal and external parasite treat-
15 ment and demonstrated negative test results, as
16 required by the Secretary and evidenced by a
17 certificate that—

18 “(i) is issued by a licensed veteri-
19 narian accredited by a competent veteri-
20 nary authority recognized by the Secretary;
21 and

22 “(ii) is endorsed by that authority in
23 a manner representing that the veteri-
24 narian issuing the certificate was author-
25 ized to do so;

1 “(C) is officially identified by a permanent
2 method approved by the Secretary; and

3 “(D) if intended for transfer—

4 “(i) is at least 6 months old; and

5 “(ii) is accompanied by an import per-
6 mit issued by the Secretary under this Act.

7 “(2) EXCEPTIONS.—The Secretary, by regula-
8 tion, shall provide an exception to any requirement
9 under this Act in any case in which a dog is im-
10 ported—

11 “(A) as a personal pet of United States or-
12 igin returning to the United States;

13 “(B) as a United States military working
14 dog or contracted working dog supporting a
15 military mission or tasking; or

16 “(C) for purposes of transfer for—

17 “(i) research purposes;

18 “(ii) veterinary treatment, paid for by
19 the importer, subject to the condition that
20 the dog—

21 “(I) is taken directly to a veteri-
22 nary facility for treatment with appro-
23 priate quarantine until the dog meets
24 the criteria described in paragraph
25 (1); and

1 “(II) is then exported to its coun-
2 try of origin; or

3 “(iii) in the case of a dog that is less
4 than 6 months old, lawful importation into
5 the State of Hawaii from the British Isles,
6 Australia, Guam, or New Zealand, in com-
7 pliance with the regulations of the State of
8 Hawaii and the other requirements of this
9 section, if the dog is not transported out of
10 the State of Hawaii for transfer at less
11 than 6 months of age.

12 “(c) IMPLEMENTATION AND REGULATIONS.—Not
13 later than 18 months after the date of enactment of the
14 Agricultural Act of 2026, the Secretary, in consultation
15 with the Secretary of Health and Human Services, the
16 Secretary of Commerce, the Secretary of Homeland Secu-
17 rity, and the Secretary of Transportation, shall promul-
18 gate such regulations as the Secretary determines to be
19 necessary to implement and enforce this section, including
20 regulations that—

21 “(1) facilitate electronic submission and inter-
22 agency sharing of all documentation required under
23 subsection (b)(1) prior to the arrival of a dog into
24 the United States;

1 “(2) establish any necessary post-arrival
2 verification processes for imported dogs;

3 “(3) ensure the denial of entry into the United
4 States of any dog that fails to meet the require-
5 ments of subsection (b)(1);

6 “(4) require each importer, import transporter,
7 intermediate handler, or carrier receiving a certifi-
8 cate described in subsection (b)(1)(B) to submit a
9 copy of the certificate to the Secretary;

10 “(5) require the Secretary to maintain the in-
11 formation submitted under paragraph (4) in a cen-
12 tralized database and, on request by a State veteri-
13 narian, promptly share the information with the
14 State veterinarian not later than 3 days after such
15 request is received by the Secretary;

16 “(6) require the Secretary to annually submit
17 to Congress and make publicly available a report
18 that describes the aggregated data maintained under
19 paragraph (5), including information on the country
20 of origin and purpose of the import; and

21 “(7) determine and establish such fees for the
22 verification of documentation and issuance of per-
23 mits with respect to dog importation as are nec-
24 essary to fund the implementation and enforcement
25 of this section.

1 “(d) RULE OF CONSTRUCTION.—Nothing in sub-
2 section (c)(7) limits the availability of funding made avail-
3 able under section 10417 to carry out this section.

4 “(e) ENFORCEMENT.—

5 “(1) AUTHORITY.—The Secretary shall have
6 the authority granted under section 10414 to en-
7 force this section.

8 “(2) PENALTIES.—An importer or import
9 transporter that fails to comply with this section
10 shall—

11 “(A) be subject to penalties under section
12 10414; and

13 “(B) provide, as the Secretary may deter-
14 mine, at the expense of the importer or import
15 transporter, for—

16 “(i) the care (including appropriate
17 veterinary care), forfeiture, quarantine,
18 and removal from the United States of
19 each applicable dog; and

20 “(ii) the return of each applicable dog
21 to its place of export, with due care for the
22 welfare of each applicable dog.”.

23 “(b) CONFORMING AMENDMENT.—Section 18 of the
24 Animal Welfare Act (7 U.S.C. 2148) is repealed.

1 (c) **TRANSITION PERIOD.**—Until the date on which
2 final regulations are issued under section 10404A(c) of the
3 Animal Health Protection Act (as added by subsection
4 (a)), the importation of live dogs shall be regulated in ac-
5 cordance with the regulations promulgated under section
6 18 of that Act (7 U.S.C. 2148) (as in effect on the day
7 before the date of enactment of this Act), but only to the
8 extent that those regulations are not in conflict with sec-
9 tion 10404A of that Act.

10 **SEC. 12503. DAIRY BUSINESS INNOVATION INITIATIVES.**

11 Section 12513(i) of the Agriculture Improvement Act
12 of 2018 (7 U.S.C. 1632d(i)) is amended by striking
13 “\$20,000,000” and inserting “\$36,000,000”.

14 **SEC. 12504. COUNTRY OF ORIGIN LABELING FOR COOKED**
15 **KING CRAB AND TANNER CRAB AND COOKED**
16 **AND CANNED SALMON.**

17 Section 281 of the Agricultural Marketing Act of
18 1946 (7 U.S.C. 1638) is amended—

19 (1) in paragraph (1)(B), by inserting “(exclud-
20 ing wild fish described in clause (ii) or (iii) of para-
21 graph (7)(B))” after “an item described in subpara-
22 graph (A)”; and

23 (2) in paragraph (7)(B)—

24 (A) by striking the period at the end and
25 inserting a semicolon;

1 (B) by striking “includes a fillet” and in-
2 serting the following: “includes—

3 “(i) a fillet”; and

4 (C) by adding at the end the following:

5 “(ii) cooked (including by frying,
6 broiling, grilling, boiling, steaming, baking,
7 and roasting)—

8 “(I) salmon;

9 “(II) whole king crab and tanner
10 crab; and

11 “(III) king crab and tanner crab
12 sections; and

13 “(iii) canned salmon.”.

14 **SEC. 12505. ESTABLISHMENT OF OFFICE OF SEAFOOD.**

15 Subtitle A of the Department of Agriculture Reorga-
16 nization Act of 1994 (7 U.S.C. 6912 et seq.) (as amended
17 by section 12301(a)) is amended by adding at the end the
18 following:

19 **“SEC. 224C. OFFICE OF SEAFOOD.**

20 “(a) ESTABLISHMENT.—The Secretary shall estab-
21 lish an Office of Seafood to improve coordination within
22 the Department, and with other Federal, State, local, and
23 nongovernmental entities, relating to the domestic har-
24 vesting, processing, and consumption of wild and farmed
25 seafood in the United States.

1 “(b) RESPONSIBILITIES.—The Office of Seafood
2 shall—

3 “(1) coordinate seafood policies and activities
4 within the Department and with other Federal agen-
5 cies, including the Department of Commerce, the
6 Food and Drug Administration, and the Office of
7 the United States Trade Representative;

8 “(2) provide strategic analysis, planning, com-
9 munication, and coordination of Department and
10 interagency activities for wild and farmed seafood;

11 “(3) coordinate efforts to provide economic
12 analysis to advise the Secretary and the Chief Econ-
13 omist regarding the development, availability, pro-
14 motion, and use of seafood produced in the United
15 States in Department programs and policies;

16 “(4) coordinate with the Foreign Agricultural
17 Service and the Economic Research Service to inte-
18 grate analysis of wild and farmed seafood products
19 into existing analyses of the agricultural exports of
20 the United States, including analysis on the competi-
21 tiveness of United States wild and farmed seafood
22 producers in global markets;

23 “(5) identify opportunities to provide integrated
24 access for United States wild and farmed seafood
25 producers to Department programs; and

1 “(6) perform such other functions as may be
2 required by law or prescribed by the Secretary.

3 “(c) OUTREACH.—The Office of Seafood shall consult
4 with wild and farmed seafood harvesters and producers
5 that may be affected by policies or actions of the Depart-
6 ment, as necessary, in carrying out the responsibilities de-
7 scribed in subsection (b), which may include providing
8 technical assistance regarding access to applicable Depart-
9 ment programs.”.

10 **SEC. 12506. STUDY AND REPORT ON EXPANDING SEAFOOD**
11 **PROCESSING CAPACITY.**

12 (a) STUDY.—Not later than 180 days after the date
13 of enactment of this Act, the Secretary, in consultation
14 with the Secretary of Commerce and the Commissioner
15 of Food and Drugs, shall conduct a study to evaluate
16 methods to facilitate more domestic processing of United
17 States-caught seafood in coastal communities, including—

18 (1) an identification of coastal communities in
19 which—

20 (A) commercial fishing is a significant eco-
21 nomic driver;

22 (B) current processing infrastructure is
23 not sufficient to meet the needs of the seafood
24 industry; and

1 (C) there exists a need and a voiced com-
2 munity desire for the creation of new, or the re-
3 habilitation of existing, seafood processing in-
4 frastructure to allow the coastal community to
5 process caught seafood and provide seafood to
6 local, national, and international markets; and

7 (2) an extensive evaluation of all potential Fed-
8 eral and State programs for facilitating the ex-
9 panded processing of seafood, including rec-
10 ommendations to improve the access of seafood pro-
11 ducers to those programs.

12 (b) REPORT.—Not later than 180 days after the date
13 of enactment of this Act, the Secretary shall submit to
14 Congress, and make publicly available, a report describing
15 the results of the study conducted under subsection (a).

16 **SEC. 12507. INNOVATIVE FEED ENHANCEMENT.**

17 (a) DEFINITION.—Section 201 of the Federal Food,
18 Drug, and Cosmetic Act (21 U.S.C. 321) is amended by
19 adding at the end the following:

20 “(tt)(1) The term ‘zootechnical animal food sub-
21 stance’ means a substance that—

22 “(A) is added to the food or drinking water of
23 animals;

24 “(B) is intended to—

1 “(i) affect the byproducts of the digestive
2 process of an animal;

3 “(ii) reduce the presence of foodborne
4 pathogens of human health significance in an
5 animal intended to be used for food; or

6 “(iii) affect the structure or function of the
7 body of the animal, other than by providing nu-
8 tritive value, by altering the animal’s gastro-
9 intestinal microbiome; and

10 “(C) achieves its intended effect by acting solely
11 within the gastrointestinal tract of the animal.

12 “(2) Such term does not include a substance that—

13 “(A) is intended for use in the diagnosis, cure,
14 mitigation, treatment, or prevention of disease in an
15 animal;

16 “(B) is a hormone;

17 “(C) is an active moiety in an animal drug,
18 which, prior to the filing of a petition under section
19 409 was approved under section 512, conditionally
20 approved under section 571, indexed under section
21 572, or for which substantial clinical investigations
22 have been instituted and for which the existence of
23 such investigations has been made public;

24 “(D) is an ionophore; or

1 “(E) is otherwise excluded from the definition
2 based on criteria established by the Secretary
3 through notice and comment rulemaking.

4 “(3) A zootechnical animal food substance shall be
5 deemed to be a food additive within the meaning of para-
6 graph (s) and its introduction into interstate commerce
7 shall be in accordance with a regulation issued under sec-
8 tion 409. A zootechnical animal food substance shall not
9 be considered a drug under paragraph (g)(1)(C) solely be-
10 cause the substance has an intended effect described in
11 subparagraph (1).”.

12 (b) FOOD ADDITIVES.—Section 409 of the Federal
13 Food, Drug, and Cosmetic Act (21 U.S.C. 348) is amend-
14 ed—

15 (1) in subsection (b)—

16 (A) by redesignating paragraphs (3)
17 through (5) as paragraphs (4) through (6), re-
18 spectively; and

19 (B) by inserting after paragraph (2) the
20 following:

21 “(3) In the case of a zootechnical animal food
22 substance, such petition shall, in addition to any ex-
23 planatory or supporting data, contain—

24 “(A) all relevant data bearing on the effect
25 the zootechnical animal food substance is in-

1 tended to have and the quantity of such sub-
2 stance required to produce the intended effect;
3 and

4 “(B) full reports of investigations made
5 with respect to the intended use of such sub-
6 stance, including full information as to the
7 methods and controls used in conducting such
8 investigations.”;

9 (2) in subsection (c)—

10 (A) by amending subparagraph (A) of
11 paragraph (1) to read as follows:

12 “(A)(i) by order establish a regulation (whether
13 or not in accord with that proposed by the peti-
14 tioner) prescribing—

15 “(I) with respect to one or more proposed
16 uses of the food additive involved, the condi-
17 tions under which such additive may be safely
18 used (including specifications as to the par-
19 ticular food or classes of food in or on which
20 such additive may be used, the maximum quan-
21 tity which may be used or permitted to remain
22 in or on such food, the manner in which such
23 additive may be added to or used in or on such
24 food, and any directions or other labeling or
25 packaging requirements for such additive as the

1 Secretary determines necessary to assure the
2 safety of such use); and

3 “(II) in the case of a zootechnical animal
4 food substance, the conditions under which such
5 substance may be used to achieve the intended
6 effect; and

7 “(ii) notify the petitioner of such order and the
8 reasons for such action; or”; and

9 (B) in paragraph (3)—

10 (i) in subparagraph (A), by striking “;
11 or” and inserting a semicolon;

12 (ii) in subparagraph (B), by striking
13 the period and inserting “; or”; and

14 (iii) by adding at the end the fol-
15 lowing:

16 “(C) in the case of a zootechnical animal food
17 substance, fails to establish that the proposed use of
18 the substance, under the conditions of use to be
19 specified in the regulation, will achieve the intended
20 effect.”; and

21 (3) by adding at the end the following:

22 “(1) ZOOTECHNICAL ANIMAL FOOD SUBSTANCES.—
23 The labeling of a zootechnical animal food substance—

1 “(1) shall include the statement: ‘Not for use in
2 the diagnosis, cure, mitigation, treatment, or preven-
3 tion of disease in animals.’; and

4 “(2) may include statements regarding the in-
5 tended effect of the substance on the structure or
6 function of the body of animals, as set forth in sec-
7 tion 201(tt)(1).”.

8 (c) MISBRANDED FOOD.—Section 403 of the Federal
9 Food, Drug, and Cosmetic Act (21 U.S.C. 343) is amend-
10 ed by adding at the end the following:

11 “(z) If it is a zootechnical animal food substance and
12 the labeling of the food does not include the statement
13 required by section 409(l)(1).”.

14 (d) RULE OF CONSTRUCTION.—Nothing in this sec-
15 tion, or the amendments made by this section, shall be
16 construed to authorize the Secretary of Health and
17 Human Services to require the use of any zootechnical
18 food substance or food additive (as those terms are defined
19 in section 201 of the Federal Food, Drug, and Cosmetic
20 Act, as amended by subsection (a)).

21 **SEC. 12508. CATTLE FEVER TICK ERADICATION PROGRAM**

22 **REVIEW AND REPORT.**

23 (a) DEFINITIONS.—In this section:

24 (1) COVERED INSTITUTION.—The term “cov-
25 ered institution” means—

1 (A) a land-grant college or university (as
2 defined in section 1404 of the National Agricultural
3 Research, Extension, and Teaching Policy
4 Act of 1977 (7 U.S.C. 3103)); and

5 (B) a non-land-grant college of agriculture
6 (as defined in that section (7 U.S.C. 3103)).

7 (2) PROGRAM.—The term “Program” means
8 the Cattle Fever Tick Eradication Program carried
9 out by the Animal and Plant Health Inspection
10 Service in coordination with the Texas Animal
11 Health Commission.

12 (b) PROGRAM REVIEW.—Not later than 1 year after
13 the date of enactment of this Act, the Secretary shall offer
14 to enter into a contract with a covered institution under
15 which the covered institution shall conduct a review of the
16 Program.

17 (c) REVIEW ELEMENTS.—The review conducted pur-
18 suant to subsection (b) shall include an evaluation of—

19 (1) the effectiveness of the Program with re-
20 spect to preventing and reducing the spread of tick-
21 borne illnesses in cattle, including a review of places
22 from which the cattle fever tick has been eradicated
23 and the resulting economic impact;

24 (2) with respect to cattle producers—

25 (A) the benefits of the Program; and

1 (B) the burden of compliance with the Pro-
2 gram;

3 (3) the treatment protocols developed and im-
4 plemented under the Program; and

5 (4) the Federal and State funds allocated to
6 support the Program for the most recent fiscal year,
7 including the funds allocated to each research
8 project associated with the Program.

9 (d) REPORT.—Not later than 1 year after the date
10 on which the Secretary and a covered institution enter into
11 a contract under subsection (b), the Secretary shall submit
12 to the Committee on Agriculture, Nutrition, and Forestry
13 of the Senate and the Committee on Agriculture of the
14 House of Representatives a report that includes—

15 (1) the results of the review conducted under
16 that contract; and

17 (2) recommendations for improvements to the
18 Program, including recommendations for reducing
19 the burden on cattle producers of compliance with
20 the Program.

21 (e) FUNDING.—The Secretary shall use funds made
22 available for the agricultural and food policy research cen-
23 ters under section 1419A of the National Agricultural Re-
24 search, Extension, and Teaching Policy Act of 1977 (7
25 U.S.C. 3155) to carry out this section.

1 **SEC. 12509. QUALIFIED RENEWABLE BIOMASS.**

2 (a) DEFINITIONS.—In this section:

3 (1) AGENCY ACTION.—The term “agency ac-
4 tion” has the meaning given the term in section 551
5 of title 5, United States Code.

6 (2) QUALIFIED RENEWABLE BIOMASS.—

7 (A) IN GENERAL.—The term “qualified re-
8 newable biomass” means—

9 (i) forest product manufacturing bio-
10 energy feedstock, including from—

11 (I) forest product manufacturing
12 residuals, including spent pulping liq-
13 uors, pulping by-products, bark,
14 woody manufacturing residuals, paper
15 recycling residuals, wastewater and
16 process water treatment plant residu-
17 als, and anaerobic digester biogas;

18 (II) harvest residue, including
19 portions of harvested trees that are
20 too small or of too poor quality to be
21 utilized for wood products or paper
22 products;

23 (III) downed wood from extreme
24 weather events and natural disasters,
25 nonhazardous landscape or right-of-
26 way trimmings and municipal trim-

1 mings, and plant material removed for
2 purposes of invasive or noxious plant
3 species control;

4 (IV) biowaste, including landfill
5 gas; and

6 (V) nonchemically treated used
7 wood products, such as crates or pal-
8 lets; and

9 (ii) forest biomass derived from resi-
10 dues created as a by-product of timber
11 harvesting—

12 (I) including treetops, tree limbs,
13 and bark; but

14 (II) excluding stumps, roots, and
15 round wood suitable for industrial
16 purposes.

17 (B) EXCLUSION.—The term “qualified re-
18 newable biomass” does not include paper of a
19 type that is commonly recycled.

20 (b) CONSIDERATION AS RENEWABLE ENERGY
21 SOURCE.—With respect to any agency action of the De-
22 partment related to qualified renewable biomass, the Sec-
23 retary shall—

24 (1) consider qualified renewable biomass to be
25 a renewable energy source; and

1 (2) assign the qualified renewable biomass a
2 greenhouse gas emission rate and a carbon intensity
3 of not greater than zero if the use of the qualified
4 renewable biomass as fuel does not cause the conver-
5 sion of forests to nonforest use.

6 (c) PETITIONS.—Not later than 1 year after receiving
7 a petition requesting a change to a rule, policy, or program
8 of the Department in order to comply with the require-
9 ments of subsection (b), the Secretary shall take such ac-
10 tion as may be necessary to comply with such require-
11 ments with respect to such rule, policy, or program.

12 (d) GUIDANCE.—

13 (1) ESTABLISHMENT.—Not later than 180 days
14 after the date of enactment of this Act, the Sec-
15 retary shall establish guidance for purposes of car-
16 rying out subsections (b) and (c).

17 (2) MODIFICATION.—The Secretary may peri-
18 odically update the guidance established under para-
19 graph (1) as the Secretary determines necessary.

20 (3) CONSULTATION.—In carrying out this sub-
21 section, the Secretary shall consult with—

22 (A) the Administrator of the Environ-
23 mental Protection Agency;

24 (B) the Secretary of Energy; and

1 (C) any other relevant entities, as deter-
2 mined by the Secretary.

3 **SEC. 12510. PROMOTING PRECISION AGRICULTURE.**

4 (a) DEFINITIONS.—In this section:

5 (1) ADVANCED WIRELESS COMMUNICATIONS
6 TECHNOLOGY.—The term “advanced wireless com-
7 munications technology” means advanced technology
8 that contributes to mobile (5G or beyond) networks,
9 next-generation Wi-Fi networks, or other future net-
10 works using other technologies, regardless of wheth-
11 er the network is operating on an exclusive licensed,
12 shared licensed, or unlicensed frequency band.

13 (2) ARTIFICIAL INTELLIGENCE.—The term “ar-
14 tificial intelligence” has the meaning given the term
15 in section 238(g) of the John S. McCain National
16 Defense Authorization Act for Fiscal Year 2019
17 (Public Law 115–232; 10 U.S.C. note prec. 4061).

18 (3) FOREIGN ADVERSARY.—The term “foreign
19 adversary” means any foreign government or foreign
20 nongovernment person engaged in a long-term pat-
21 tern or serious instances of conduct significantly ad-
22 verse to the national security of the United States,
23 or security and safety of United States persons.

24 (4) PRECISION AGRICULTURE.—The term “pre-
25 cision agriculture” means managing, tracking, or re-

1 ducing crop or livestock production inputs, including
2 seed, feed, fertilizer, chemicals, water, time, and
3 such other inputs as the Secretary determines to be
4 appropriate, at a heightened level of spatial and tem-
5 poral granularity to improve efficiencies, reduce
6 waste, and maintain environmental quality.

7 (5) PRECISION AGRICULTURE EQUIPMENT.—

8 The term “precision agriculture equipment” means
9 any equipment or technology that directly contrib-
10 utes to a reduction in, or improved efficiency of, in-
11 puts used in crop or livestock production, includ-
12 ing—

13 (A) global positioning system-based or
14 geospatial mapping;

15 (B) satellite or aerial imagery;

16 (C) yield monitors;

17 (D) soil mapping;

18 (E) sensors for gathering data on crop,
19 soil, and livestock conditions;

20 (F) Internet of Things and technology that
21 relies on edge and cloud computing;

22 (G) data management software and ad-
23 vanced analytics;

1 (H) network connectivity products and so-
2 lutions, including public and private wireless
3 networks;

4 (I) global positioning system guidance,
5 auto-steer systems, autonomous fleetings, and
6 other machine-to-machine operations;

7 (J) variable rate technology for applying
8 inputs, such as section control; and

9 (K) any other technology that leads to a
10 reduction in, or improves efficiency of, crop and
11 livestock production inputs, which may in-
12 clude—

13 (i) seed;

14 (ii) feed;

15 (iii) fertilizer;

16 (iv) chemicals;

17 (v) water;

18 (vi) time;

19 (vii) fuel;

20 (viii) emissions; and

21 (ix) such other inputs as the Sec-
22 retary determines to be appropriate.

23 (6) TRUSTED.—The term “trusted” means,
24 with respect to a provider of advanced communica-
25 tions service or a supplier of communications equip-

1 ment or service, that the Secretary has determined
2 that the provider or supplier is not owned by, con-
3 trolled by, or subject to the influence of, a foreign
4 adversary.

5 (7) VOLUNTARY CONSENSUS STANDARDS DE-
6 VELOPMENT ORGANIZATION.—The term “voluntary
7 consensus standards development organization”
8 means an organization that develops standards in a
9 process that meets the principles for the develop-
10 ment of voluntary consensus standards (as defined
11 in the document of the Office of Management and
12 Budget entitled “Federal Participation in the Devel-
13 opment and Use of Voluntary Consensus Standards
14 and in Conformity Assessment Activities” (OMB
15 Circular A–119)).

16 (b) PURPOSES.—The purposes of this section are—

17 (1) to enhance the participation of precision ag-
18 riculture in the United States; and

19 (2) to promote United States leadership in vol-
20 untary consensus standards development organiza-
21 tions that set standards for precision agriculture.

22 (c) INTERCONNECTIVITY STANDARDS FOR PRECI-
23 SION AGRICULTURE.—

24 (1) IN GENERAL.—Not later than 2 years after
25 the date of enactment of this Act, the Secretary, in

1 consultation with the Director of the National Insti-
2 tute of Standards and Technology and the Federal
3 Communications Commission, shall—

4 (A) develop voluntary, consensus-based,
5 private sector-led interconnectivity standards,
6 guidelines, and best practices for precision agri-
7 culture that will promote economies of scale and
8 ease the burden of the adoption of precision ag-
9 riculture; and

10 (B) in carrying out subparagraph (A)—

11 (i) coordinate with relevant public and
12 trusted private sector stakeholders and
13 other relevant industry organizations, in-
14 cluding voluntary consensus standards de-
15 velopment organizations; and

16 (ii) consult with sector-specific agen-
17 cies, other appropriate agencies, and State
18 and local governments.

19 (2) CONSIDERATIONS.—The Secretary, in car-
20 rying out paragraph (1), shall, in consultation with
21 the Director of the National Institute of Standards
22 and Technology and the Federal Communications
23 Commission, consider—

24 (A) the evolving demands of precision agri-
25 culture;

1 (B) the connectivity needs of precision ag-
2 riculture equipment;

3 (C) the cybersecurity challenges facing pre-
4 cision agriculture, including cybersecurity
5 threats for agriculture producers and agri-
6 culture supply chains;

7 (D) the impact of advanced wireless com-
8 munications technology on precision agriculture;
9 and

10 (E) the impact of artificial intelligence on
11 precision agriculture.

12 (d) GAO ASSESSMENT OF PRECISION AGRICULTURE
13 STANDARDS.—

14 (1) STUDY.—Not later than 1 year after the
15 Secretary develops standards under subsection (c),
16 and every 2 years thereafter for the following 8
17 years, the Comptroller General of the United States
18 shall conduct a study that assesses those standards,
19 including the extent to which those standards, as ap-
20 plicable—

21 (A) are voluntary;

22 (B) were developed in coordination with
23 relevant industry organizations, including vol-
24 untary consensus standards development orga-
25 nizations; and

1 (C) have successfully encouraged the adop-
2 tion of precision agriculture.

3 (2) REPORT.—The Comptroller General of the
4 United States shall submit to the Committee on
5 Commerce, Science, and Transportation and the
6 Committee on Agriculture, Nutrition, and Forestry
7 of the Senate and the Committee on Science, Space,
8 and Technology and the Committee on Agriculture
9 of the House of Representatives a report that sum-
10 marizes the findings of each study conducted under
11 paragraph (1).

12 **SEC. 12511. FARMING OPPORTUNITIES TRAINING AND OUT-**
13 **REACH.**

14 Section 2501(c)(2) of the Food, Agriculture, Con-
15 servation, and Trade Act of 1990 (7 U.S.C. 2279(c)(2))
16 is amended, in the matter preceding subparagraph (A),
17 by striking “2023” and inserting “2031”.

18 **SEC. 12512. IMPROVEMENTS TO UNITED STATES DROUGHT**
19 **MONITOR.**

20 Section 12512(d)(2) of the Agriculture Improvement
21 Act of 2018 (7 U.S.C. 5856(d)(2)) is amended by striking
22 “2023” and inserting “2031”.

1 **SEC. 12513. WHOLE MILK UNDER THE SCHOOL BREAKFAST**
2 **PROGRAM.**

3 Section 9(a)(2) of the Richard B. Russell National
4 School Lunch Act (42 U.S.C. 1758(a)(2)) is amended—

5 (1) in subparagraph (A), in the matter pre-
6 ceding clause (i), by striking “Act—” and inserting
7 “Act and breakfasts served by schools participating
8 in the school breakfast program under section 4 of
9 the Child Nutrition Act of 1966 (42 U.S.C. 1773)—
10 ”;

11 (2) in subparagraph (C), in the matter pre-
12 ceding clause (i), by inserting “or the school break-
13 fast program under section 4 of the Child Nutrition
14 Act of 1966 (42 U.S.C. 1773)” after “Act”; and

15 (3) in subparagraph (D), by striking “section
16 210.10” and inserting “sections 210.10 and 220.8”.

17 **SEC. 12514. COMMISSION ON RURAL MATERNAL HEALTH.**

18 (a) ESTABLISHMENT.—There is established a com-
19 mission to be known as the “Commission on Rural Mater-
20 nal Health” (referred to in this section as the “Commis-
21 sion”).

22 (b) DUTIES.—

23 (1) STUDY.—The Commission shall conduct a
24 study on issues impacting rural maternal health, in-
25 cluding—

1 (A) access to and availability of maternal
2 healthcare providers in rural areas, including
3 the prevalence and impact of maternity care
4 deserts;

5 (B) impediments to access to appropriate
6 maternal care services in rural areas;

7 (C) factors that contribute to maternal
8 mortality, pregnancy-related mortality, severe
9 maternal morbidity, and adverse maternal
10 health outcomes across the full continuum of
11 care, including the prenatal, labor and delivery,
12 and postpartum periods;

13 (D) disparities in maternal health out-
14 comes among rural populations; and

15 (E) solutions, best practices, and evidence-
16 based interventions, including State programs
17 and community-based education and outreach
18 efforts, to reduce maternal mortality and ma-
19 ternal morbidity rates in rural areas.

20 (2) REPORT.—Not later than September 30,
21 2031, the Commission shall submit to the President,
22 the Committee on Agriculture, Nutrition, and For-
23 estry of the Senate, and the Committee on Agri-
24 culture of the House of Representatives a report
25 containing the results of the study required by para-

1 graph (1), including such recommendations as the
2 Commission considers appropriate.

3 (c) MEMBERSHIP.—

4 (1) IN GENERAL.—The Commission shall be
5 composed of 10 members, as follows:

6 (A) 3 members appointed by the Chair of
7 the Committee on Agriculture, Nutrition, and
8 Forestry of the Senate.

9 (B) 3 members appointed by the Chair of
10 the Committee on Agriculture of the House of
11 Representatives.

12 (C) 2 members appointed by the Ranking
13 Member of the Committee on Agriculture, Nu-
14 trition, and Forestry of the Senate.

15 (D) 2 members appointed by the Ranking
16 Member of the Committee on Agriculture of the
17 House of Representatives.

18 (2) DATE OF APPOINTMENTS.—All members of
19 the Commission shall be appointed not more than 90
20 days after the date of enactment of this Act.

21 (3) TERM; VACANCIES.—

22 (A) TERM.—A member shall be appointed
23 for the life of the Commission.

24 (B) VACANCIES.—A vacancy on the Com-
25 mission—

1 (i) shall not affect the powers of the
2 Commission; and

3 (ii) shall be filled in the same manner
4 as the original appointment was made.

5 (4) CO-CHAIRS.—The Chair of the Committee
6 on Agriculture, Nutrition, and Forestry of the Sen-
7 ate and the Chair of the Committee on Agriculture
8 of the House of Representatives shall appoint 2 of
9 the members of the Commission to serve as Co-
10 Chairs.

11 (d) MEETINGS.—

12 (1) INITIAL MEETING.—Not later than 30 days
13 after the date on which all members of the Commis-
14 sion have been appointed, the Commission shall hold
15 the initial meeting of the Commission.

16 (2) QUORUM.—A majority of the members of
17 the Commission shall constitute a quorum for the
18 transaction of business, but a lesser number of
19 members may hold hearings.

20 (e) INFORMATION FROM FEDERAL AGENCIES.—The
21 Commission may secure directly from a Federal agency
22 such information as the Commission considers necessary
23 to carry out this section.

1 (f) TERMINATION.—The Commission shall terminate
2 on the date that is 90 days after the date on which the
3 Commission submits the report under subsection (b)(2).